A state imposes a tax on the "income" of each of its residents. As defined in the taxing statute, "income" includes the fair rental value of the use of any automobile provided by the taxpayer's employer for the taxpayer's personal use.

The federal government supplies automobiles to some of its employees who are residents in the state so that they may perform their jobs properly. A federal government employee supplied with an automobile for this purpose may also use it for the employee's own personal business.

Assume there is no federal legislation on this subject.

May the state collect this tax on the fair rental value of the personal use of the automobiles furnished by the federal government to these employees?

A. No, because such a tax would be a tax on the United States.

B. No, because such a tax would be a tax upon activities performed on behalf of the United States, since the automobiles are primarily used by these federal employees in the discharge of their official duties.

C. Yes, because an exemption from such state taxes for federal employees would be a denial to others of the equal protection of the laws.

D. Yes, because the tax is imposed on the employees rather than on the United States, and the tax does not discriminate against persons who are employed by the United States.

Explanation:

Federal immunity from state & local taxes/regulations

Tax/regulation	Definition	Permissibility
Direct	Applies to federal government—including its agencies & instrumentalities	*Immune* unless: • Congress consents to tax/regulation
Indirect	Applies to affiliates—including persons/entities employed by or doing business with federal government	*Not immune* unless: • Congress grants immunity *or* • tax/regulation discriminates against or substantially interferes with federal duties

Under the Article VI **supremacy clause**, states are prohibited from taxing the federal government—including its agencies and instrumentalities—without congressional consent. But **states can tax** the **federal government's affiliates**—including federal employees (as seen here)—**unless**:

- **Congress has granted** the affiliate **immunity**
- the **tax discriminates** against the federal government or its affiliates *or*
- the **tax substantially interferes** with the affiliate's ability to accomplish its **federal purpose or duties**.

Here, the state seeks to collect an income tax on the value of the personal use of employer-provided automobiles from federal employees (not the U.S. government) **(Choice A)**. Congress did not grant these employees immunity, and the tax is nondiscriminatory since it applies to automobiles provided by *any* employer. Additionally, the tax does not substantially interfere with the employees' federal duties since it only applies to their personal use of the automobiles. Therefore, the state may collect this tax from the federal employees.

(Choice B) Although the automobiles may primarily be used by these federal employees in the discharge of their *official* duties, the tax only applies to *personal* use of the automobiles. Therefore, it is not a tax upon activities performed on behalf of the United States.

(Choice C) Under the equal protection clause, state actions that do not substantially impact a fundamental right or intentionally discriminate against a protected class (as seen here) are subject to mere rational basis scrutiny. State action almost always satisfies this standard, so a tax exemption for federal employees would likely be sustained under this clause.

Educational objective:

States can tax the affiliates of the federal government unless (1) Congress has granted the affiliate immunity, (2) the tax is discriminatory, or (3) the tax substantially interferes with the affiliate's federal purpose or duties.

References

- Graves v. New York, 306 U.S. 466, 486–87 (1939) (holding that a state income tax imposed on federal employees is not an unconstitutional burden).

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A federal statute authorizes a federal agency to issue rules requiring that state legislatures adopt laws of limited duration to reduce water pollution from gasoline-powered boat motors. The purpose of these rules is to assist the agency in attaining the clean water standards required by the statute.

After the agency issued such rules, several states filed an action challenging the rules on the sole ground that they are unconstitutional.

Should the court uphold the constitutionality of the agency's rules?

A. No, because the federal government may not compel a state legislature to enact into state law a federally mandated regulatory program.

B. No, because the Tenth Amendment grants states immunity from all direct federal regulation.

C. Yes, because the rules serve an important purpose, and the requirements they impose on the states are only temporary and do not excessively interfere with the functioning of the state governments.

D. Yes, because the supremacy clause of Article VI requires states to enforce federal law.

Explanation:

Federalism

(power distribution between federal & state governments)

Constitutional provision	**Effect**
Article VI supremacy clause	• Prioritizes U.S. Constitution, treaties & federal laws over state constitutions & laws • Prohibits states from regulating/taxing federal government or its agencies/instrumentalities
Tenth Amendment	• Reserves all powers not assigned to federal government by U.S. Constitution to states/people • Prohibits federal government from requiring states to enact laws or enforce federal laws • Immunizes states from federal taxes that discriminate against states or unduly interfere with essential state functions

The principles of federalism—ie, the power distribution between the federal and state governments—are embodied in the supremacy clause and the Tenth Amendment. The supremacy clause places federal law (including agency rules) above state law. But the **Tenth Amendment prohibits** the federal government and its agencies from **requiring states to enact laws** or to enforce federal laws. Therefore, the federal agency rules are unconstitutional because they require a state legislature to enact a federal regulatory program into state law.

(Choice B) The Tenth Amendment only grants states immunity from federal regulation that compels them to enact state laws or enforce federal ones. But states still must comply with other types of direct federal regulation (eg, EPA pollution standards).

(Choice C) The federal government cannot require states to enact state laws or enforce federal laws—even if it would serve an important purpose or impose a minimal burden on the states.

(Choice D) Under the supremacy clause, federal law preempts conflicting state law. But this clause does not require states to enforce federal law. And the Tenth Amendment prohibits the federal government from imposing such a requirement.

Educational objective:

The Tenth Amendment prohibits the federal government from requiring states to (1) enact state laws or (2) enforce federal laws.

References

- New York v. United States, 505 U.S. 144, 161 (1992) (holding that Congress cannot commandeer the legislative process of the states by directly compelling them to enact and enforce a federal regulatory program).

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A state statute requires corporations located in the state to pay an annual property tax based on the value of their inventory that is stored there. A tire distributor that imports tires manufactured in foreign countries and stores them at warehouses located in the state has sued to challenge the state tax, arguing that it is unconstitutional.

Is the state tax constitutional?

A. No, because the import-export clause prohibits state taxes on imported goods.

B. No, because the state tax discriminates against foreign commerce.

C. Yes, because states have absolute authority to tax goods within their borders.

D. Yes, because the state tax does not divert import revenue from the federal government.

Explanation:

The **import-export clause** generally prohibits **state taxation of imported goods** unless Congress consents or the tax is absolutely necessary for the state to execute its inspection laws. Additionally, a state tax on imported goods is **valid if**:

- the **federal government** is still able to **speak with one voice** in foreign commerce
- there is **interstate harmony** because the tax **satisfies the *Complete Auto* requirements** *and*
- the tax **does not divert import revenue** from the federal government.

Here, the state tax does not impair the federal government's ability to speak with one voice because the tax applies after the goods have gone through the import process. This means that the federal government may still tax the goods as they are imported. The tax also does not disturb interstate harmony because it:

- applies to inventory that is stored at the distributor's warehouses in the state (substantial nexus)
- is based on a rational formula that only taxes the value of the inventory in the state (fairly apportioned)
- applies equally to imported and domestic goods (nondiscriminatory) **(Choice B)** *and*
- is reasonable compared to services and benefits provided by the state (fairly related).

Finally, the tax does not divert import revenue from the federal government since the tax applies *after* the goods have been imported. It merely compensates the state for goods stored in the state. Therefore, the state tax is constitutional **(Choice A)**.

(Choice C) The Tenth Amendment reserves to the states any power that the Constitution does not expressly grant to the federal government, including the power to generally tax goods within their borders. But this power is not absolute because states must comply with other constitutional provisions (eg, the import-export clause).

Educational objective:

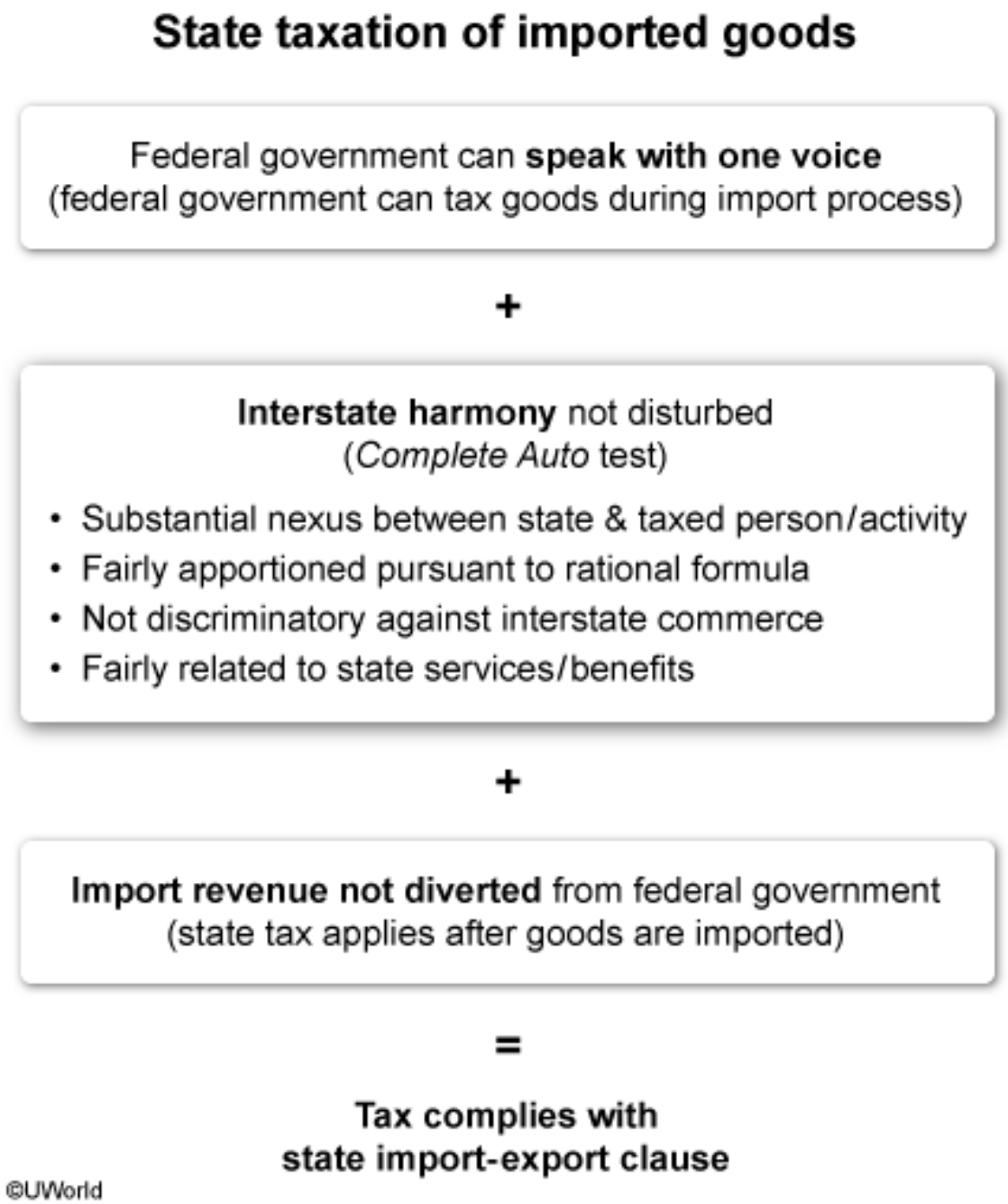
A state tax on imported goods is valid if (1) the federal government is still able to speak with one voice in foreign commerce, (2) there is interstate harmony because the tax satisfies the *Complete Auto* requirements, and (3) the tax does not divert import revenue from the federal government.

References

- U.S. Const. art. 1, § 10, cl. 2 (state import-export clause).
- Itel Containers Int'l Corp. v. Huddleston, 507 U.S. 60, 76–78 (1993) (setting forth the components of the modern import-export clause test).

- 71 Am. Jur. 2d State and Local Taxation § 74 (explaining when a state tax violates the import-export clause).

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A state representative made a speech on the floor of the state legislature in which she asserted that a state senator had violated the legislature's code of ethics by having a sexual relationship with a staff member. In making this assertion, the representative played a recording of a phone conversation between the senator and staff member in which they admitted having such a relationship. The representative obtained the recording from an acquaintance, who had placed an illegal wiretap on the staff member's phone.

One year later, the federal government initiated a prosecution against the state representative for violating a federal criminal statute that prohibits the intentional publication of communications that were unlawfully recorded. A person found guilty under the statute is subject to a one-year prison sentence and a monetary fine.

The representative has moved to dismiss the action.

Is the court likely to dismiss the action?

A. No.

B. Yes, because state legislators are absolutely immune from liability for actions taken pursuant to their official legislative functions.

C. Yes, because the Eleventh Amendment bars actions of this kind in federal court.

D. Yes, because the speech or debate clause wholly insulates state legislators from civil and criminal liability for legislative activity.

Explanation:

State legislative immunity

Absolute immunity	Legislative acts that are subject of: • state civil or criminal action • federal civil action
No immunity	Legislative acts that are subject of: • federal criminal action

State legislators generally possess absolute immunity from *state* civil or criminal liability for actions taken pursuant to official legislative functions (eg, making speeches in the legislature).* In the context of *federal* civil and criminal liability, the Supreme Court has held that a **state legislator's absolute immunity**:

- **extends to federal *civil* liability** because the federal government's interest in ensuring private civil actions is outweighed by the substantial impact such actions have on state legislative functions *but*
- **does not extend to federal *criminal* liability** because the federal government's important interest in enforcing criminal statutes outweighs the minimal impact prosecutions have on state legislative functions.

As a result, the state representative is not immune from federal prosecution for violating the federal statute, and the court will likely not dismiss the action **(Choice B)**.

*State legislative immunity derives from the common law. Today, most states have codified legislative immunity in their constitutions or statutes.

(Choice C) The Eleventh Amendment generally prohibits private parties and foreign governments from suing a state or state official for money damages in federal court. However, this amendment does not apply to actions initiated by another state or the United States (as seen here).

(Choice D) The speech or debate clause of the U.S. Constitution wholly insulates members of Congress, but not state legislators, from civil and criminal liability for any official legislative activity.

Educational objective:

A state legislator has absolute immunity from federal civil liability for official legislative actions. However, this immunity does not extend to federal criminal liability.

References

- Tenney v. Brandhove, 341 U.S. 367, 378–79 (1951) (holding that state legislators are immune from civil liability for acts performed in the regular course of the legislative process).
- United States v. Gillock, 445 U.S. 360, 373 (1980) (stating that a state legislator is subject to criminal prosecution for a violation of federal law).
- 72 Am. Jur. 2d States, Territories, and Dependencies § 62 (2020) (explaining state legislative immunity).

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A state law makes it a crime for an individual to intentionally provide false information on state tax forms when applying for employment.

A federal statute prohibits employers from hiring individuals who provide false Social Security numbers when applying for employment. The statute's purpose is to prevent individuals from assuming a false identity to obtain employment. A provision of the federal statute states that the statute expressly preempts state laws imposing civil or criminal punishments on employers who hire individuals who provide fraudulent Social Security numbers.

A man was charged in state court with violating the state law by intentionally providing a false Social Security number on his state tax withholding form when he applied for employment in the state. The man argued that the prosecution should not proceed because the federal statute preempts the state law.

Assume that no other federal statute applies.

How should the state court proceed with the case?

A. Determine whether the man intentionally provided false information on his state tax form and, if so, find him guilty of violating the state law.

B. Refuse to adjudicate the merits of the case and dismiss it, because the federal statute expressly preempts the state law.

C. Refuse to adjudicate the merits of the case and dismiss it, because the federal statute impliedly preempts the state law.

D. Refuse to adjudicate the merits of the case and dismiss it, because the federal statute expressly and impliedly preempts the state law.

Explanation:

The supremacy clause renders a **state law void** and without effect when a federal law expressly or impliedly preempts it. **Express preemption** occurs when a **federal law**:

- was enacted pursuant to a **power *exclusively* reserved to the federal government** by the U.S. Constitution (eg, power to declare war) *or*
- **explicitly prohibits state regulation**.

The federal government shares power with state governments to regulate hiring practices within the respective state. And though the federal statute here expressly preempts state laws that punish *employers*, it does not mention *applicants*. As a result, the federal statute does not expressly preempt the state law **(Choices B & D)**.

The federal statute also does not impliedly preempt the state law. **Implied preemption** occurs through:

- **field preemption** – when Congress intended to completely occupy a particular field by **legislating so thoroughly** that it has left **no room for supplementary state regulations**
- **direct conflict preemption** – when it is impossible or **nearly impossible to comply with both** federal and state law *or*
- **indirect conflict preemption** – when the **state law frustrates the purpose** of the federal law.

Here, there is no field preemption since the federal statute punishes employers but leaves room for states to punish applicants. There is no direct conflict preemption because individuals can comply with both statutes. And there is no indirect conflict preemption since the state law *furthers* the federal statute's purpose of preventing individuals from assuming a false identity to obtain employment **(Choices C & D)**.

Therefore, the state court should adjudicate the merits to determine whether the man intentionally provided false information on his state tax form and, if so, find him guilty.

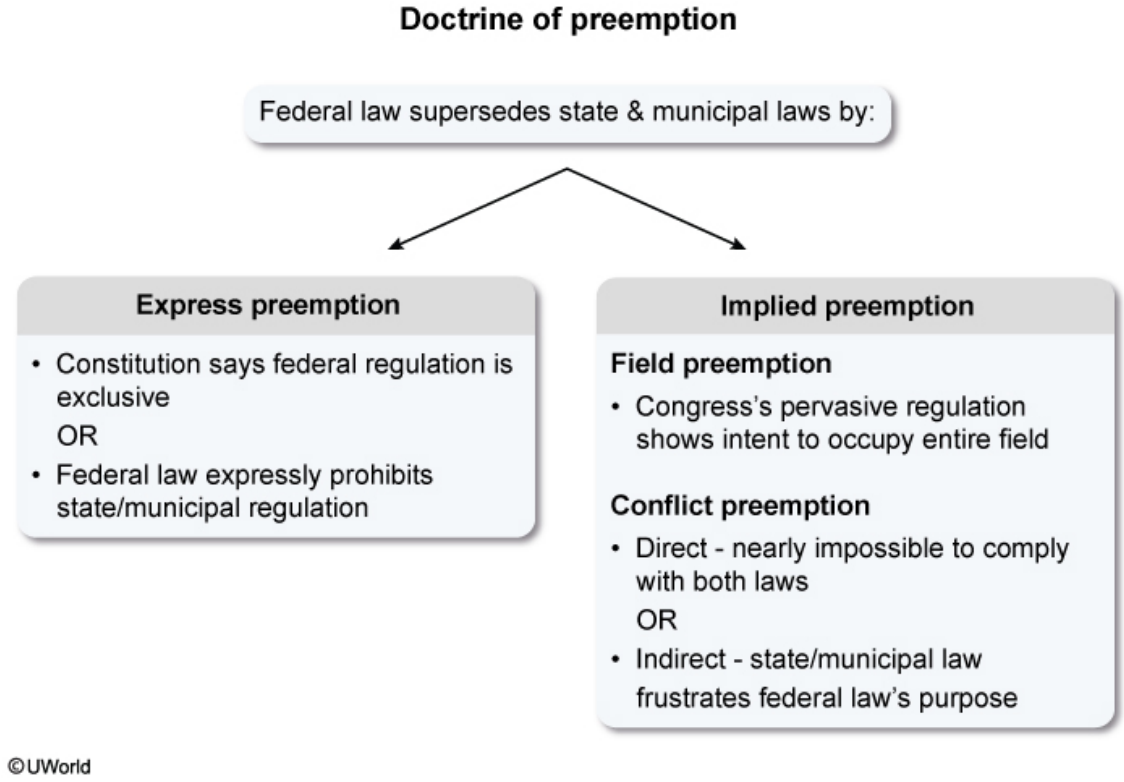
Educational objective:

Express preemption occurs when a federal law is enacted under an exclusive federal power or explicitly bars state regulation. Implied preemption occurs when there is no room for state regulation (field), it is nearly impossible to comply with both laws (direct conflict), or the state law frustrates the federal law's purpose (indirect conflict).

References

- Kansas v. Garcia, 140 S. Ct. 791, 804–07 (2020) (holding that a federal law regulating employment hiring practices does not expressly or impliedly preempt a state law criminalizing fraud when applying for employment).
- 16A Am. Jur. 2d Constitutional Law § 234 (2020) (explaining the tests used to determine preemption).

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A county in State A is located adjacent to the border of State B. The communities located in the county are principally suburbs of a large city located in State B, and therefore there is a large volume of traffic between that city and the county. While most of that traffic is by private passenger automobiles, some of it is by taxicabs and other kinds of commercial vehicles.

A county ordinance provides that only taxicabs registered in the county may pick up or discharge passengers in the county. The stated purpose of this ordinance is to reduce traffic congestion. The ordinance also provides that only residents of the county may register taxicabs in that county.

Which of the following is the proper result in a suit brought by State B taxicab owners challenging the constitutionality of this county ordinance?

A. Judgment for the county, because State B taxicab owners do not constitute a suspect or quasi-suspect class and the ordinance is reasonably related to the legitimate governmental purpose of reducing traffic congestion.

B. Judgment for the county, because the ordinance forbids taxicabs registered in other counties of State A as well as in states other than State A to operate in the county and, therefore, it does not discriminate against interstate commerce.

C. Judgment for the State B taxicab owners, because the fact that private passenger automobiles contribute more to the traffic congestion problem in the county than do taxicabs indicates that the ordinance is not a reasonable means by which to solve that problem.

D. Judgment for the State B taxicab owners, because the ordinance unduly burdens interstate commerce by insulating the county taxicab owners from out-of-state competition without adequate justification.

Explanation:

Dormant commerce clause

(state regulation of interstate commerce)

Type of regulation	Examples	Standard
Discriminatory (favors in-state interests)	• Taxing out-of-state products more heavily • Requiring use of in-state products/services	Unconstitutional unless: • furthers legitimate state interest *and* • no reasonable alternative
Nondiscriminatory (otherwise burdensome)	• Prohibiting all commercial vehicles on state highways • Overly strict requirements for all commercial shipments	Unconstitutional if: • burden clearly exceeds local benefits

The ability of state and local governments to regulate interstate commerce is limited by the **dormant commerce clause**. Under this clause, these entities are generally prohibited from discriminating against or otherwise unduly burdening interstate commerce. As a result, a **state or local action** that **discriminates against interstate commerce**—ie, an action that protects in-state over out-of-state economic interests—is **invalid unless**:

- it furthers a **legitimate, noneconomic** state or local **interest** *and*
- **no reasonable alternative** is available to achieve this interest.

Here, the State A county ordinance discriminates against interstate commerce since it only allows county residents to register and operate taxicabs in the county—thereby insulating them from out-of-state competition. The ordinance furthers the county's legitimate, noneconomic interest in reducing traffic congestion. But reasonable alternatives are available (eg, investing in public transportation). Therefore, the ordinance unduly burdens interstate commerce without adequate justification, and judgment for the State B taxicab owners is proper.

(Choice A) Taxicab owners are not a suspect or quasi-suspect class (ie, protected class), so the ordinance likely satisfies the Fourteenth Amendment equal protection clause under mere rational basis scrutiny. Nevertheless, the ordinance is invalid because it violates the dormant commerce clause.

(Choice B) The ordinance's unlawful discrimination against interstate commerce is not negated by the fact that it also discriminates against residents of other State A counties.

(Choice C) Although private passenger automobiles contribute more to traffic congestion in the county than taxicabs, the ordinance *is* a reasonable means to solve that problem since it alleviates some congestion. But it is still invalid because it discriminates against interstate commerce despite the availability of reasonable alternatives.

Educational objective:

A state or local action that discriminates against interstate commerce violates the dormant commerce clause unless (1) it furthers a legitimate, noneconomic state or local interest and (2) no reasonable alternatives exist.

References

- U.S. Const. art. I, § 8, cl. 3 (commerce clause).
- Dean Milk Co. v. Madison, 340 U.S. 349, 354–55 (1951) (holding that a city's ban on the sale of milk processed outside city limits discriminates against interstate commerce and violates the dormant commerce clause).
- 15A Am. Jur. 2d Commerce § 105 (2019) (explaining the proper standard of review for a law that discriminates against interstate commerce).

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A federal statute established a national lottery and created a new federal agency to administer it. In order to sell lottery tickets directly to the public, the agency established outlets throughout the country. Some of these outlets are within a state that levies a general tax on the gross receipts from all in-state gaming operations. The state seeks to tax the agency on the sales of lottery tickets from its outlets within the state.

Must the agency pay the state gross receipts tax?

A. No, because a federal agency may not pay any monies to a state without explicit federal statutory authorization to do so.

B. No, because a state may not impose a tax directly on the federal government or any of its agencies or instrumentalities.

C. Yes, because it is a generally applicable tax that does not discriminate against the agency.

D. Yes, because the federal government is not exempt from state taxation on its commercial activities.

Explanation:

Under the **supremacy clause**, the **federal government** is **immune** (ie, exempt) from any **direct taxation** by the **states**—including taxes on its commercial activities **(Choice D)**. As a result, states may not impose taxes on the federal government—or any of its agencies or instrumentalities—without the express consent of Congress.

Here, the state levies a general tax on the gross receipts (ie, total income) from all gaming operations within the state. And the state seeks to impose that tax on a new federal agency created to administer a national lottery. But since the agency is immune from direct state taxation, it is not required to pay the gross receipts tax.

(Choice A) A federal agency *can* pay monies to a state without explicit statutory authorization if Congress has granted the agency broad discretion to spend its funds. But even if a federal agency has such discretion, a state cannot *force* the agency to pay a tax.

(Choice C) A state can never impose a direct tax on a federal agency without Congress's explicit consent—even if that tax is generally applicable and therefore does not discriminate against the agency (as seen here).

Educational objective:

The federal government, its agencies, and its instrumentalities are immune from direct taxation by the states unless Congress expressly consents.

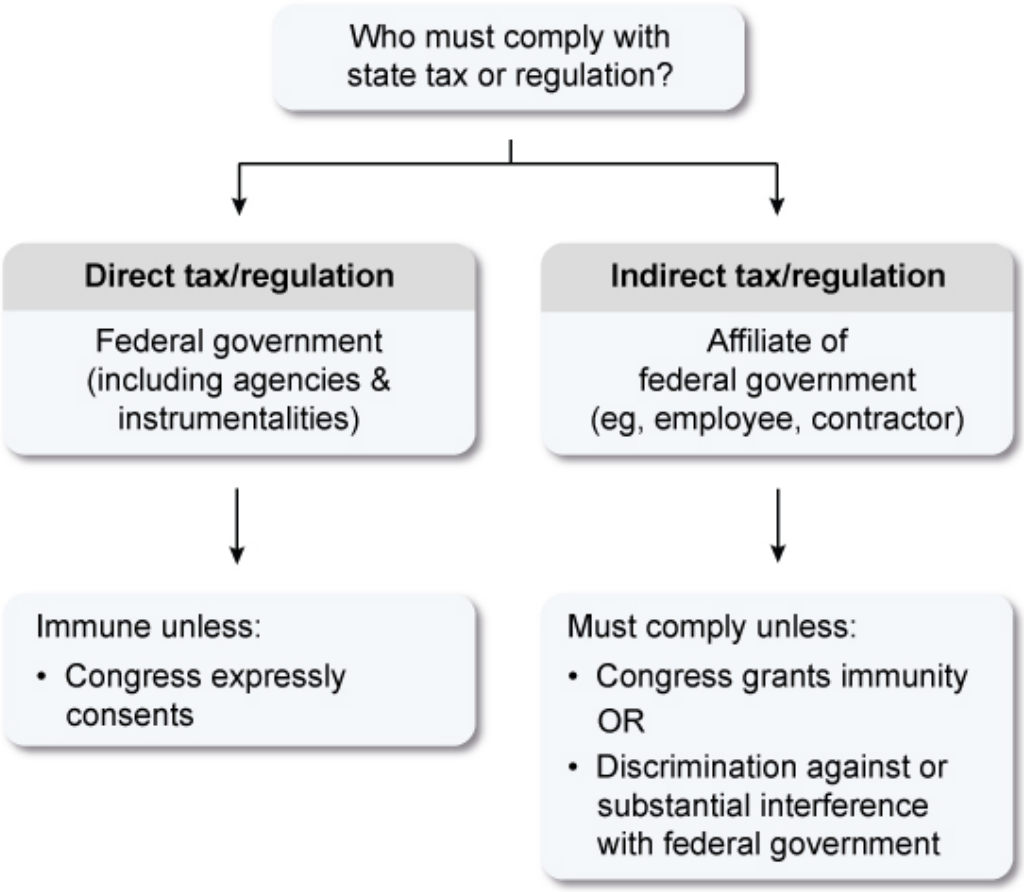
References

- McCullough v. Maryland, 17 U.S. 316, 436 (1819) (striking down a state tax imposed on the Bank of the United States).

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Federal immunity from state tax/regulation



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A federal law provides that all motor vehicle tires discarded in this country must be disposed of in facilities licensed by the federal Environmental Protection Agency. Pursuant to this federal law and all proper federal procedural requirements, that agency has adopted very strict standards for the licensing of such facilities. As a result, the cost of disposing of tires in licensed facilities is substantial.

A state has a very large fleet of motor vehicles, including trucks used to support state-owned commercial activities and police cars. The state disposes of used tires from both kinds of state motor vehicles in a state-owned and operated facility. This state facility is unlicensed, but its operation in actual practice meets most of the standards imposed by the federal Environmental Protection Agency on facilities it licenses to dispose of tires.

Is it consistent with United States Supreme Court precedent for the state to continue disposing of its used tires in this manner?

A. No, because a state must comply with valid federal laws that regulate matters substantially affecting interstate commerce.

B. No, because some of the tires come from vehicles that are used by the state solely in its commercial activities.

C. Yes, because some of the tires come from vehicles that are used by the state in the performance of core state governmental functions such as law enforcement.

D. Yes, because the legitimate needs of the federal government are satisfied by the fact that the unlicensed state disposal scheme meets, in actual practice, most of the federal standards for the licensing of such facilities.

Explanation:

Commerce clause

(U.S. Const. art. I, § 8)

Congress can regulate:

- channels of interstate commerce
- instrumentalities of interstate commerce
- persons/things moving in interstate commerce
- activities that substantially affect interstate commerce

The **commerce clause** gives **Congress** the broad authority to **regulate interstate commerce**. This power extends to nearly any activity that involves two or more states—including in-state activities that, in the aggregate, **substantially affect** interstate commerce. And under the **supremacy clause**, these regulations are the supreme law of the land. Therefore, **states must comply*** with federal regulations just as any other entity or person must do.

Here, a federal law requires the disposal of all motor vehicle tires at facilities licensed by the EPA. The state disposes of used tires at in-state facilities, but the aggregate effect of this activity likely has a substantial effect on interstate commerce. This means that the federal law is a valid exercise of Congress's commerce powers. And since that law is supreme, the state must comply with it and cannot continue to dispose of its tires at the unlicensed facility.

*Under the Tenth Amendment anti-commandeering principle, the state would have been immune from the federal law had it required the state to (1) enact state legislation or (2) enforce federal law.

(Choice B) Although some of the disposed tires come from vehicles that are used solely in the state's commercial activities, the aggregate effect of tire disposal on interstate commerce is likely substantial. Therefore, the federal law is a valid exercise of Congress's commerce power with which states must comply.

(Choice C) The dormant commerce clause generally prohibits states from discriminating against out-of-state economic interests. And though such discrimination is permitted when states perform core government functions (eg, law enforcement, waste disposal), this does not authorize states to violate valid federal laws.

(Choice D) A state must *fully* comply with a federal law even if the state could satisfy the legitimate needs of the federal government by *mostly* complying with that law.

Educational objective:

States must comply with all valid federal laws. This includes laws that are passed under Congress's broad commerce powers, which extend to any activities that substantially affect interstate commerce.

References

- Reno v. Condon, 528 U.S. 141, 151 (2000) (holding that a state must comply with a federal law regulating commerce since it does not require the state to enact or enforce any laws).

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A state enacted a statute requiring the state's appointed presidential electors to swear an oath that they will cast their electoral votes for the presidential and vice-presidential nominees chosen by the popular vote of the state. A provision of the statute provides that an elector who breaks this oath and votes for another candidate will be removed and replaced as an elector and fined $1,000.

Three appointed electors in the state swore the oath as required by the statute. When the time came to cast their electoral votes, however, the electors voted for a presidential candidate who was not chosen by the state's popular vote. The state removed the electors and replaced them with alternates. The state also fined each elector $1,000.

The three electors sued the state in state court, claiming that the statute governing presidential electors violates the United States Constitution.

How should the court rule on the constitutionality of the state statute?

A. The provision imposing a monetary fine on the electors is an unconstitutional bill of attainder.

B. The provision allowing the removal of electors violates their fundamental right to vote.

C. The provision requiring electors to swear an oath violates their First Amendment right to free speech and association.

D. The statute is constitutional in its entirety.

Explanation:

Every four years, the United States holds a presidential and vice-presidential election. When citizens cast their ballots, they are selecting members of the Electoral College. These **presidential electors** then vote to **determine the next President and Vice President**. This process is governed by the following constitutional provisions:

- Article II – grants **state legislatures the power to appoint** an allotted number of **presidential electors in any manner**.*
- Twelfth Amendment – requires electors to **meet in their states**, **vote separately** for President and Vice President, and **transmit sealed lists** of their votes to the U.S. Senate to be officially counted.

The power to appoint electors also permits states to place conditions on such appointments so long as the conditions do not violate another constitutional provision. Permissible conditions include requiring electors to pledge or swear an oath that they will cast their electoral vote for the candidate chosen by the popular vote. States can also punish an elector who violates the pledge or oath by removing the elector and/or imposing a monetary fine. Therefore, the state statute here is constitutional in its entirety.

*States cannot appoint as electors those who serve in the U.S. Senate or House of Representatives or who hold any other federal office.

(Choice A) A bill of attainder is an unconstitutional legislative act that declares a named person or group guilty of a crime (not seen here) and imposes punishment without a trial.

(Choice B) U.S. citizens who are 18 or older have the fundamental right to vote in federal, state, and local elections. However, this fundamental right does not extend to presidential electors casting electoral votes.

(Choice C) The First Amendment right to free speech and association bars the government from conditioning government employment or office on an overbroad or vague loyalty oath. Here, the oath is not overbroad since it focuses on how electors must vote. It is also not vague since a reasonable person would understand it.

Educational objective:

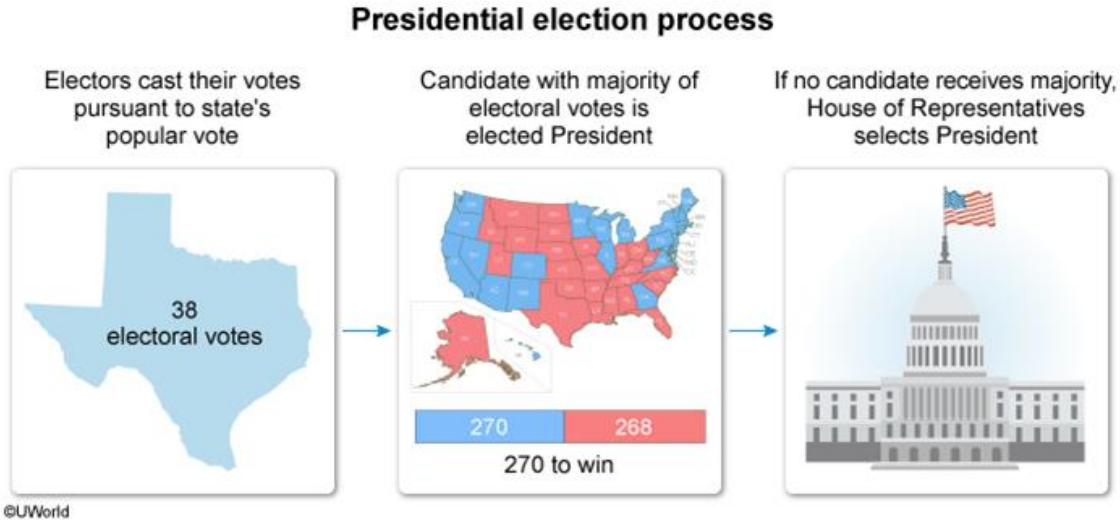
States have power to appoint presidential electors and place conditions on such appointments. Such conditions may include requiring electors to swear an oath that they will cast their electoral vote for the candidate chosen by the state's popular vote and punishing electors who violate this oath through removal and/or a monetary fine.

References

- U.S. Const. art. II, § 1, cl. 2 (appointing presidential electors).
- U.S. Const. amend. XII (electoral college voting procedure).

- Chiafalo v. Washington, 140 S. Ct. 2316, 2320 (2020) (holding that a state may penalize a presidential elector for breaking his/her pledge to cast a vote for the candidate who wins that state's popular vote).

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A federal statute authorizes the Interstate Commerce Commission (ICC) to permit interstate carriers to discontinue any unprofitable route.

An interstate bus company that operates in a five-state area applied to the ICC for permission to drop a very unprofitable route through a sparsely populated mountain region. The ICC granted that permission even though the bus company provided the only public transportation into that region.

A woman owns a mountain resort in this region. The resort's customers usually arrived on buses operated by the company. After exhausting all available federal administrative remedies, the woman filed suit against the bus company in the trial court of the state in which the resort is located to enjoin the discontinuance by the bus company of its service to that area. The woman alleged that the discontinuance of service would violate a state statute that prohibits common carriers from abandoning service to communities having no alternate form of public transportation.

What action should the state court take?

A. Deny the injunction, because a valid federal law preempts the state statute on which the woman relies.

B. Direct the removal of the case to federal court, because this suit involves a substantial federal question.

C. Dismiss the action, because the woman lacks standing to sue.

D. Grant the injunction because, on these facts, a federal agency is interfering with essential state functions.

Explanation:

Preemption

(federal law supersedes state law)

Type	**Applicability**
Express	• Constitution grants federal government exclusive power to regulate area *or* • Federal law expressly prohibits state regulation in same area
Implied	Field preemption: • Congressional intent to occupy entire field inferred from pervasive regulations that leave no room for state involvement Conflict preemption: • Direct conflict makes it impossible (or nearly impossible) to comply with federal & state law *or* • Indirect conflict frustrates accomplishment of federal law's purpose

Under the Article VI **supremacy clause**, a valid **federal law preempts** (ie, supersedes) **conflicting state law**. Such preemption can be express or implied. One type of **implied** preemption is **conflict preemption**, which stems from either:

- **direct conflict** – when it is impossible or nearly **impossible to comply with both** the federal and state laws *or*
- **indirect conflict** – when the **state law frustrates** the accomplishment of the **federal law's purpose**.

Here, the Interstate Commerce Commission (ICC) acted pursuant to a federal statute when it permitted the bus company to drop an unprofitable route. But a state statute prohibits the bus company from dropping that route since the area has no alternate form of public transportation. This frustrates the federal statute's purpose to let the ICC determine whether an interstate carrier may discontinue a given route. And since the federal statute impliedly preempts the conflicting state one, the woman's request to enjoin the discontinuance of the route should be denied.

(Choice B) A state court cannot remove a case to federal court on its own initiative—even if the suit involves a substantial federal question. Instead, the defendant must request removal (not seen here).

(Choice C) The woman has standing because she can allege an injury-in-fact (loss of customers) that is caused by the challenged action (dropped bus route) and redressable by the remedy sought (injunction).

(Choice D) An essential function of a state is to enact and enforce laws to protect the health, safety, and welfare of the public (ie, police power). But a federal agency can interfere with such functions when acting pursuant to a valid federal law (as seen here).

Educational objective:

A federal law will impliedly preempt a conflicting state law that makes it impossible or nearly impossible to comply with both laws (ie, direct conflict) OR frustrates the accomplishment of the federal law's purpose (ie, indirect conflict).

References

- Hines v. Davidowitz, 312 U.S. 52, 67 (1941) (stating that implied preemption occurs when a state law "stands as an obstacle to the accomplishment and execution of the full purposes and objectives of Congress").
- Chi. & Nw. Transp. Co. v. Kalo Brick & Tile Co., 450 U.S. 311, 331 (1981) (holding that ICC approval of an abandonment of a common-carrier route preempts conflicting state law).

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Due to the high cost of labor, several large corporations shut down their manufacturing plants in a state and moved their operations overseas. This caused severe and continuous unemployment in the state, which relies heavily on manufacturing jobs and manufactured goods to spur its economy. In response, the state legislature enacted a statute that requires certain businesses selling goods in the state to purchase goods produced in the state in an amount equal to at least half of the business's annual sales in the state. This statute only applies to businesses with annual sales in the state that exceed $3 million.

A company that has annual sales in the state of $5 million challenges the state statute in federal court.

Which constitutional provision provides the strongest ground on which to attack this statute?

A. The Article I commerce clause.

B. The Fourteenth Amendment due process clause.

C. The Fourteenth Amendment equal protection clause.

D. The Fourteenth Amendment privileges or immunities clause.

Explanation:

Dormant commerce clause

(state regulation of interstate commerce)

Type of regulation	Examples	Standard
Discriminatory (favors in-state interests)	• Taxing out-of-state products more heavily • Requiring use of in-state products/services	Unconstitutional unless: • furthers legitimate state interest *and* • no reasonable alternative
Nondiscriminatory (otherwise burdensome)	• Prohibiting all commercial vehicles on state highways • Overly strict requirements for all commercial shipments	Unconstitutional if: • burden clearly exceeds local benefits

The Article I commerce clause gives Congress extensive authority to regulate interstate commerce. This clause also carries a negative implication (ie, the **dormant commerce clause**), which prohibits states from discriminating against or otherwise unduly burdening interstate commerce. **Discrimination against interstate commerce**—ie, favoring in-state over out-of-state economic interests—is **unconstitutional unless** (1) it furthers a **legitimate, *noneconomic* state interest** and (2) **no reasonable alternative** exists.

Here, the state statute discriminates against interstate commerce since it requires certain businesses to purchase substantial goods in the state at the expense of out-of-state competitors. The statute was enacted to relieve severe and continuous unemployment in the state. But since that interest is *economic* in nature, it cannot justify discrimination against interstate commerce. Therefore, the commerce clause is the strongest constitutional basis on which to attack this statute.

(Choice B) Under the Fourteenth Amendment due process clause, state laws that substantially impact a fundamental right are almost always found invalid under strict scrutiny. But since there is no fundamental right to engage in business, a due process challenge would likely fail.

(Choice C) Discriminatory state laws that substantially impact a fundamental right or protected class generally violate the Fourteenth Amendment equal protection clause. But since no fundamental right is implicated and businesses are not a protected class, the statute likely satisfies this clause.

(Choice D) The Fourteenth Amendment privileges or immunities clause prohibits states from infringing on the very limited rights of national citizenship—none of which are at issue here.

Educational objective:

State laws that favor in-state over out-of-state economic interests violate the dormant commerce clause unless (1) they further a legitimate, noneconomic state interest and (2) no reasonable alternative exists.

References

- U.S. Const. art. I, § 8, cl. 3 (commerce clause).
- Maine v. Taylor, 477 U.S. 131, 138 (1986) (explaining that the appropriate test for a dormant commerce clause challenge depends on whether the burden on interstate commerce is discriminatory or nondiscriminatory).

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The United States Department of Energy regularly transports nuclear materials through a city on the way to a nuclear weapons processing plant it operates in a nearby state. The city recently adopted an ordinance prohibiting the transportation of any nuclear materials in or through the city. The ordinance declares that its purpose is to protect the health and safety of the residents of that city.

May the Department of Energy continue to transport these nuclear materials through the city?

A. No, because the ordinance is rationally related to the public health and safety of the city's residents.

B. No, because the Tenth Amendment reserves to the states certain unenumerated sovereign powers.

C. Yes, because the Department of Energy is a federal agency engaged in a lawful federal function and, therefore, its activities may not be regulated by a local government without the consent of Congress.

D. Yes, because the ordinance enacted by the city is invalid because it denies persons transporting such materials the equal protection of the laws.

Explanation:

Federal immunity from state & local taxes/regulations

Tax/regulation	Definition	Permissibility
Direct	Applies to federal government—including its agencies & instrumentalities	*Immune* unless: • Congress consents to tax/regulation
Indirect	Applies to affiliates—including persons/entities employed by or doing business with federal government	*Not immune* unless: • Congress grants immunity *or* • tax/regulation discriminates against or substantially interferes with federal duties

Under the Article VI supremacy clause, the U.S. Constitution, federal laws, and treaties are the supreme law of the land. A corollary of this principle is that the **federal government**—including its agencies and instrumentalities—**need not comply** with a **local** tax or **regulation unless Congress consents**. This is because local laws could hinder or destroy the operations of the federal government.

Here, a city recently adopted an ordinance prohibiting the transportation of nuclear materials in or through the city. This hinders the operations of the U.S. Department of Energy since this federal agency is engaged in the lawful federal function of regularly transporting nuclear materials through the city. But since Congress did not consent to this regulation, the Department of Energy cannot be regulated by the city and may continue its operations.

(Choices A & D) Under the equal protection clause, state and local laws that do not substantially impact a fundamental right or protected class (as seen here) are subject to mere rational basis scrutiny. The city's ordinance satisfies this standard since it is rationally related to the public health and safety of its residents. Nevertheless, the federal agency is not subject to this regulation without congressional consent.

(Choice B) The Tenth Amendment reserves to state and local governments all powers not given to the federal government by the Constitution—including the police power to protect residents' health and safety. But when exercising such powers, these entities must comply with other constitutional provisions (eg, the supremacy clause).

Educational objective:

The federal government—including its agencies and instrumentalities—is not subject to state and local taxes or regulations in the absence of congressional consent.

References

- McCulloch v. Maryland, 17 U.S. 316, 436 (1819) (establishing that states cannot directly tax or regulate the federal government, its agencies, or its instrumentalities).
- Envtl. Prot. Agency v. California ex rel. St. Water Res. Control Bd., 426 U.S. 200, 211 (1976) (holding that states can directly regulate a federal agency only when Congress consents).
- 72 Am. Jur. 2d States, Territories, and Dependencies § 23 (2019) (explaining that federal agencies do not need to comply with state regulations).

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National statistics revealed a dramatic increase in the number of elementary and secondary school students bringing controlled substances to school for sale. In response, Congress enacted a statute requiring each state's legislature to enact a law making it a crime for any person to sell, within 1,000 feet of any elementary or secondary school, any controlled substance that had previously been transported in interstate commerce.

Is the federal statute constitutional?

A. No, because Congress has no authority to require a state legislature to enact any specified legislation.

B. No, because the sale of a controlled substance in close proximity to a school does not have a sufficiently close nexus to interstate commerce to justify its regulation by Congress.

C. Yes, because Congress possesses broad authority under the commerce clause to regulate any activities affecting education that also have, in inseverable aggregates, a substantial effect on interstate commerce.

D. Yes, because it contains a jurisdictional provision that will ensure, on a case-by-case basis, that any particular controlled substance subject to the terms of this statute will in fact affect interstate commerce.

Explanation:

The Article I **commerce clause** empowers Congress to regulate **interstate commerce**—ie, nearly all activities involving two or more states. But when exercising this power, Congress cannot violate other constitutional provisions. This includes the **Tenth Amendment**, which **prohibits Congress** from **commandeering state or local legislatures** by requiring them to **enact laws** (or to enforce federal laws).

Here, the federal statute *requires* state legislatures to criminalize the sale, near a school, of any controlled substance that had previously been transported in interstate commerce. But even if Congress could regulate this conduct pursuant to its commerce power, it has no authority to require a state legislature to enact any specified legislation. Therefore, the federal statute is unconstitutional.

(Choices B & C) Congress can regulate any in-state activity that, singly or in the aggregate, substantially impacts interstate commerce. Here, national statistics show a dramatic increase in the number of students selling controlled substances at school. This suggests that the combined (ie, aggregated) sales have a substantial effect on interstate commerce. As a result, Congress can likely regulate that activity—but it cannot require states to do so.

(Choice D) The commerce clause also empowers Congress to regulate instrumentalities of, and persons or things moving in, interstate commerce—including controlled substances that have been *transported* in interstate commerce (as seen here). Nevertheless, the statute is invalid since it violates the Tenth Amendment.

Educational objective:

The commerce clause empowers Congress to regulate interstate commerce. But the Tenth Amendment prohibits Congress from requiring state or local legislatures to enact laws (or to enforce federal laws) that do so.

References

- New York v. United States, 505 U.S. 144, 161 (1992) (holding that Congress cannot require state legislatures to enact or enforce certain legislation).

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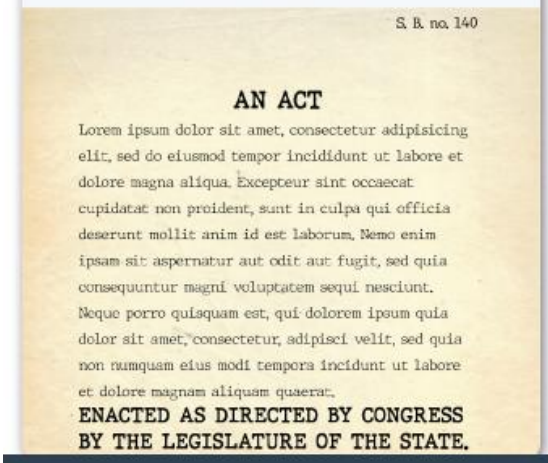
Tenth Amendment anti-commandeering principle (state immunity from federal law)

Congress cannot require that states:



OR

enact state laws



S. B. no. 140

AN ACT

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ENACTED AS DIRECTED BY CONGRESS BY THE LEGISLATURE OF THE STATE.

enforce federal laws



← Previous

Radon is a harmful gas found in the soil of certain regions of the United States. A state statute requires occupants of residences with basements susceptible to the intrusion of radon to have their residences tested for the presence of radon and to take specified remedial steps if the test indicates the presence of radon above specified levels. The statute also provides that the testing for radon may be done only by testers licensed by a state agency. According to the statute, a firm may be licensed to test for radon only if it meets specified rigorous standards relating to the accuracy of its testing. These standards may easily be achieved with current technology; but the technology required to meet them is 50% more expensive than the technology required to measure radon accumulations in a slightly less accurate manner.

The United States Environmental Protection Agency (EPA) does not license radon testers. However, a federal statute authorizes the EPA to advise on the accuracy of various methods of radon testing and to provide to the general public a list of testers that use methods it believes to be reasonably accurate.

A recently established firm in the state uses a testing method that the EPA has stated is reasonably accurate. The firm is also included by the EPA on the list of testers using methods of testing it believes to be reasonably accurate. The firm applies for a state radon-testing license, but its application is denied because the firm cannot demonstrate that the method it uses to test for radon is sufficiently accurate to meet the rigorous state statutory standards.

The firm sues appropriate state officials in federal court claiming that the state may not constitutionally exclude the firm from performing the required radon tests in the state.

Who will the court likely rule in favor of in this suit?

A. The firm, because the full faith and credit clause of the Constitution requires the state to respect and give effect to the action of the EPA in including the firm on its list of testers that use reasonably accurate methods.

B. The firm, because the supremacy clause of the Constitution requires the state to respect and give effect to the action of the EPA in including the firm on its list of testers that use reasonably accurate methods.

C. The state, because radon exposure is limited to basement areas that, by their very nature, cannot move in interstate commerce.

D. The state, because the federal statute and the action of the EPA in including the firm on its list of testers that use reasonably accurate methods are not inconsistent with the more rigorous state licensing requirement, and that requirement is reasonably related to a legitimate public interest.

Explanation:

Preemption

(federal law supersedes state law)

Type	**Applicability**
Express	• Constitution grants federal government exclusive power to regulate area *or* • Federal law expressly prohibits state regulation in same area
Implied	Field preemption: • Congressional intent to occupy entire field inferred from pervasive regulations that leave no room for state involvement Conflict preemption: • Direct conflict makes it impossible (or nearly impossible) to comply with federal & state law *or* • Indirect conflict frustrates accomplishment of federal law's purpose

The federal government and states can regulate the same subject matter. But the Article VI supremacy clause renders a **state law void** when a **federal law expressly or impliedly preempts** it. Here, the federal statute authorizing the EPA's actions does not *expressly* preempt the state statute since neither the Constitution nor federal law explicitly forbids the state from regulating radon testers. And there is no *implied* preemption because:

- Congress only regulated the accuracy—not the entire field—of radon testing (no field preemption)
- radon testers can comply with both federal and state requirements (no direct conflict) *and*
- the state statute does not frustrate the federal law or EPA's purpose to prevent radon poisoning (no indirect conflict).

Since the federal statute and the EPA's actions are not inconsistent with the more rigorous state licensing requirement, they do not preempt the state statute. Therefore, the state does *not* need to give effect to the EPA's inclusion of the firm on its list of testers **(Choice B)**.

The state's exclusion of the firm also complies with substantive due process, which requires all laws to at least satisfy rational basis scrutiny. That is because the state's testing requirement is **reasonably related** to the **state's legitimate interest** in preventing radon poisoning. Therefore, the court will likely rule in the state's favor.

(Choice A) Under the Article IV full faith and credit clause, a state must respect public acts (eg, legislation), records, and judicial proceedings of other states—not *federal* actions.

(Choice C) The commerce clause gives Congress broad power to regulate persons and things moving through interstate commerce. And though radon *exposure* is limited to immovable basement areas, Congress may still regulate radon testing since radon *testers* can move between states. But the state can also regulate radon testing since there is no preemption.

Educational objective:

Under the supremacy clause, a state law is void if it is expressly or impliedly preempted by a federal law. And all state laws must at least be reasonably related to a legitimate state interest to comply with substantive due process.

References

- Gade v. Nat'l Solid Wastes Mgmt. Ass'n, 505 U.S. 88, 98 (1992) (explaining when federal law expressly or impliedly preempts state law).
- 16A Am. Jur. 2d Constitutional Law § 234 (2019) (setting forth the preemption tests).

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State A requires commercial airlines to pay an annual property tax based on the value of the airline's fleet of planes that operate in the state. The tax is calculated by multiplying the percentage of the airline's annual arrivals and departures in the state by the fleet's overall value. The airline's fleet of planes is based in State B. Ten percent of the airline's annual arrivals and departures occur in State A. The airline has sued to challenge the State A tax, arguing that it is unconstitutional.

Is the state tax likely constitutional?

A. No, because Congress has the sole power to tax property moving in interstate commerce.

B. No, because the airline's fleet is based in State B.

C. Yes, because it does not place an undue burden on interstate commerce in violation of the negative implications of the commerce clause.

D. Yes, because states have plenary authority to construct their tax system in any manner they choose.

Explanation:

A **state tax** on the value of **property in the state** (ie, ad valorem property tax) is generally valid. But when this property **moves in interstate commerce** (eg, planes), the state tax must comply with the **negative implication of the commerce clause**.* This **prohibits states** from discriminating against or **unduly burdening interstate commerce**. As a result, this type of state tax is **valid when**:

- the state has a **substantial nexus** with the taxed property, which is established when the property has sufficient contacts with the state such that the property has acquired a **taxable situs** in the state
- the tax is **fairly apportioned** based on the amount of time that the taxed property is in the state
- the tax is **not discriminatory** against interstate commerce *and*
- the tax is **fairly related** to the benefits or services provided by the taxing state **(Choice A)**.

Here, there is a substantial nexus between State A and the airline since 10% of the airline's annual arrivals and departures occur in the state (taxable situs) **(Choice B)**. The tax is fairly apportioned because it is based on the percentage of the airline's annual arrivals and departures in the state. It is nondiscriminatory since it applies equally to intrastate and interstate commerce. And the tax is fairly related to the benefits provided by the state (eg, use of airport). Therefore, the state tax does *not* unduly burden interstate commerce and is likely constitutional.

*A state tax on property permanently located in another state is unconstitutional since the taxing state lacks jurisdiction over the property.

(Choice D) The Tenth Amendment reserves to the states any power that the Constitution does not expressly grant to the federal government, including the power to construct a state tax system. But this power is not plenary (ie, absolute) because states must comply with other constitutional provisions.

Educational objective:

A state tax on property moving in interstate commerce is valid if (1) the state has a substantial nexus with the taxed property such that the property has a taxable situs in the state, (2) the tax is fairly apportioned, (3) the tax is nondiscriminatory, and (4) the tax is fairly related to benefits or services provided by the state.

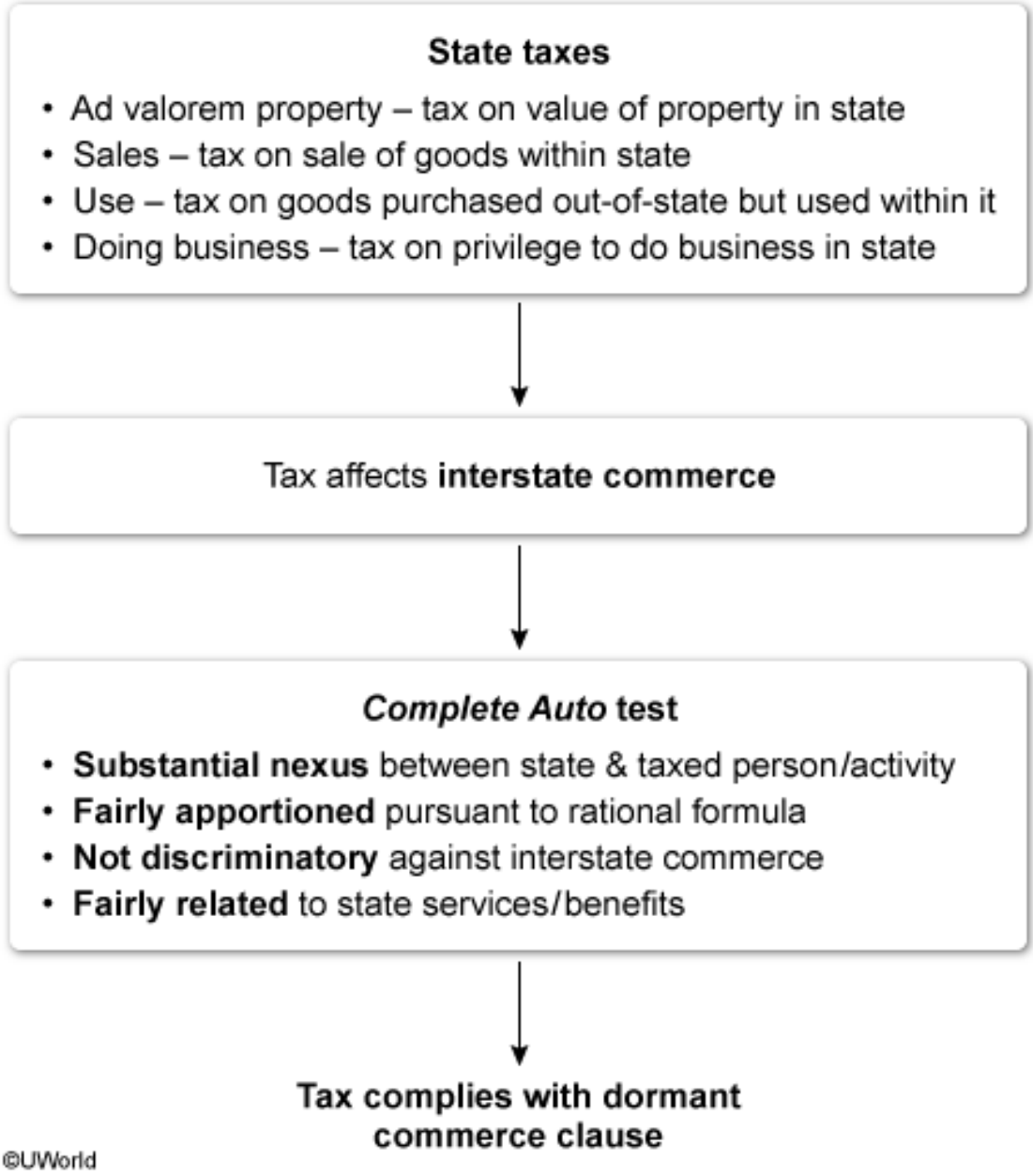
References

- Complete Auto Transit, Inc. v. Brady, 430 U.S. 274, 279 (1977) (setting forth the four-factor test used to determine if a state tax violates the commerce clause).

- Braniff Airways, Inc. v. Neb. State Bd. of Equalization and Assessment, 347 U.S. 590, 599–601 (1954) (holding that a state ad valorem property tax on an airline's fleet was valid since the airline had a taxable situs in the state).
- 71 Am. Jur. 2d State and Local Taxation § 163 (2020) (explaining that states may levy taxes on instrumentalities of commerce when they have a taxable situs in the state and the tax is fairly apportioned to their time in the state).

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State taxation of interstate commerce



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In recent years, several large corporations incorporated and headquartered in State A have been acquired by out-of-state corporations that have moved all of their operations out of State A. Other corporations incorporated and headquartered in State A have successfully resisted such acquisition attempts by out-of-state corporations, but they have suffered severe economic injury as a result.

In an effort to preserve jobs in State A and to protect its domestic corporations against their sudden acquisition by out-of-state purchasers, the legislature of State A enacts a statute governing acquisitions of shares in all corporations incorporated in State A. This statute requires that any acquisition of more than 25% of the voting shares of a corporation incorporated in State A that occurs over a period of less than one year must be approved by the holders of record of a majority of the shares of the corporation as of the day before the acquisition of those shares commences. The statute expressly applies to acquisitions of State A corporations by both in-state and out-of-state entities.

Assume that no federal statute applies.

Is this statute of State A constitutional?

A. No, because one of the purposes of the statute is to prevent out-of-state entities from acquiring corporations incorporated and headquartered in State A.

B. No, because the effect of the statute will necessarily be to hinder the acquisition of State A corporations by other corporations, many of whose shareholders are not residents of State A and, therefore, it will adversely affect the interstate sale of securities.

C. Yes, because corporations exist only by virtue of state law and, therefore, the negative implications of the commerce clause do not apply to state regulations governing their creation and acquisition.

D. Yes, because the statute imposes the same burden on both in-state and out-of-state entities wishing to acquire a State A corporation, it regulates only the acquisition of State A corporations, and it does not create an impermissible risk of inconsistent regulation on this subject by different states.

Explanation:

Under the dormant commerce clause, states are prohibited from discriminating against or otherwise **unduly burdening interstate commerce**. A state regulation is *not* discriminatory if it treats in-state and out-of-state activities equally. But the nondiscriminatory regulation is unduly burdensome if its **burden** on interstate commerce **clearly exceeds** its legitimate, **local benefits**. This often occurs when there is a **risk of inconsistent regulations** on the same activity by different states.

Here, the State A statute is not discriminatory since it imposes an equal burden on acquisitions by both in-state and out-of-state entities. And the statute is not unduly burdensome because there is no risk of inconsistent regulations by different states. That is because, as the Supreme Court reasoned in *CTS Corp. v. Dynamics Corp. of Am.*, corporations are typically governed by the law of the state in which they are incorporated, and this statute regulates only the acquisition of State A corporations. Therefore, the statute is constitutional.

(Choices A & B) The statute's purpose is to prevent out-of-state entities from acquiring State A corporations. And it will likely hinder acquisitions by corporations with out-of-state shareholders—adversely affecting the interstate sale of securities. But the statute's impact on interstate commerce is permissible because it is not discriminatory or unduly burdensome.

(Choice C) The negative implications of the commerce clause (ie, dormant commerce clause) *do* apply to state regulations governing the creation and acquisition of corporations if those regulations discriminate against or unduly burden interstate commerce. But the State A statute does not do so.

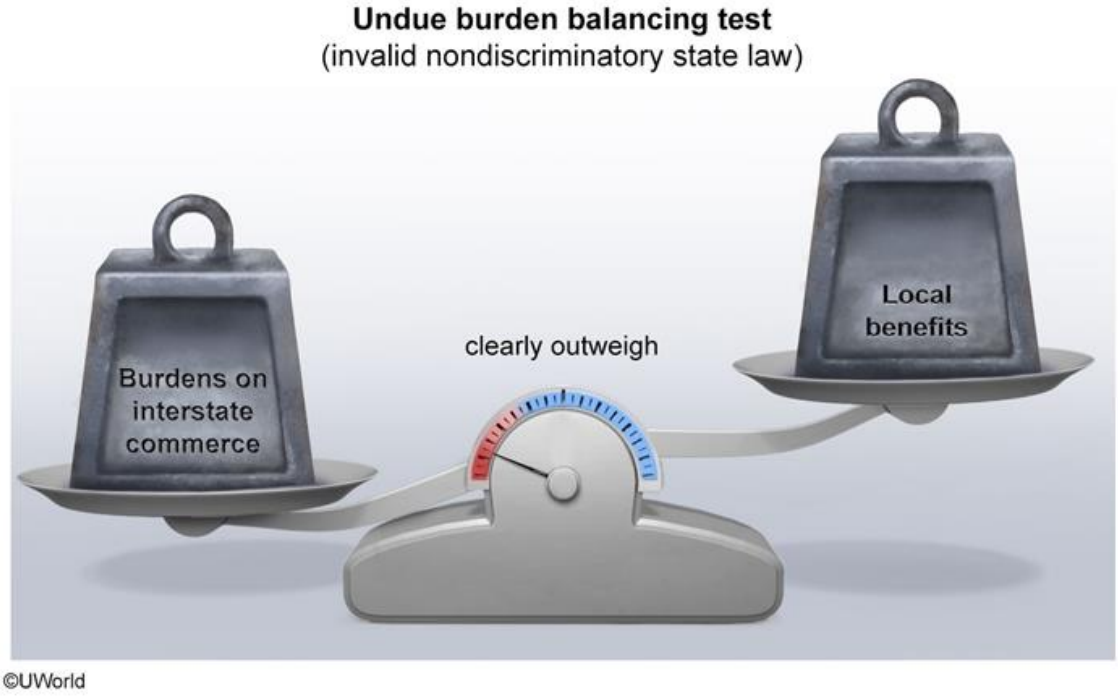
Educational objective:

The dormant commerce clause bars states from enacting nondiscriminatory regulations that unduly burden interstate commerce. This occurs when the regulation's burden on interstate commerce clearly exceeds its legitimate, local benefits—eg, when it creates a risk of inconsistent regulations by different states.

References

- U.S. Const. art. I, § 8, cl. 3 (commerce clause).
- CTS Corp. v. Dynamics Corp. of Am., 481 U.S. 69, 88–91 (1987) (explaining that a nondiscriminatory law governing the acquisition of a state corporation does not unduly burden interstate commerce).
- 15A Am. Jur. 2d Commerce § 39 (2019) (setting forth that a nondiscriminatory law violates the dormant commerce clause if its burdens on interstate commerce clearly exceed the law's local benefits).

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A state statute requires corporations located in the state to pay a use tax on equipment they purchased out-of-state for in-state use. The statute specifies that the use-tax rate is the same as the state's sales-tax rate for in-state equipment purchases. The statute also provides tax credits to corporations in the amount of the sales or use tax they paid on the same equipment in other states.

A construction company that builds homes in the state has refused to pay the state's use tax on equipment it purchased outside the state. The company has sued to challenge the state tax, arguing it is unconstitutional.

Is the state tax likely constitutional?

A. No, because it discriminates against interstate commerce.

B. No, because the commerce clause gives Congress the power to regulate interstate commerce.

C. Yes, because it does not unduly burden interstate commerce.

D. Yes, because the Tenth Amendment reserves to the states the power to construct their own tax system.

Explanation:

The Tenth Amendment reserves to the states any power that the Constitution does not expressly grant to the federal government, including the power to construct a state tax system. But when exercising this power, states must comply with other constitutional provisions **(Choice D)**. This includes the negative implication of the commerce clause (ie, **dormant commerce clause**), which **prohibits** states from **unduly burdening interstate commerce**.

A state tax on goods used in the state but purchased in another state (ie, use tax) affects interstate commerce. Therefore, to comply with the dormant commerce clause, the **state tax must be**:

- applied to a person or activity that has a **substantial nexus** with the taxing state
- **fairly apportioned** so that goods are not subject to multiple taxation in other states
- **not discriminatory** against interstate commerce, which is established when the use-tax rate on goods purchased out-of-state is not higher than the sales-tax rate on goods purchased in-state *and*
- **fairly related** to the benefits or services provided by the taxing state.

Here, there is a substantial nexus between the company and the state since the company builds homes there. The use tax is fairly apportioned because tax credits are provided for the sales or use tax that corporations paid on equipment in other states. The use tax is not discriminatory since it equals the state's sales tax for in-state equipment purchases **(Choice A)**. It is also fairly related to the benefits provided by the state (eg, use of public roads). Therefore, the state tax does *not* unduly burden interstate commerce and is constitutional.

(Choice B) The commerce clause gives Congress the power to regulate interstate commerce. However, states may still tax goods within their borders if the tax satisfies the negative implication of this clause (as seen here).

Educational objective:

A state tax on goods purchased out-of-state for in-state use is valid if (1) the state has a substantial nexus with the taxed person or activity, (2) the tax is fairly apportioned, (3) the tax is nondiscriminatory, and (4) the tax is fairly related to benefits or services provided by the state.

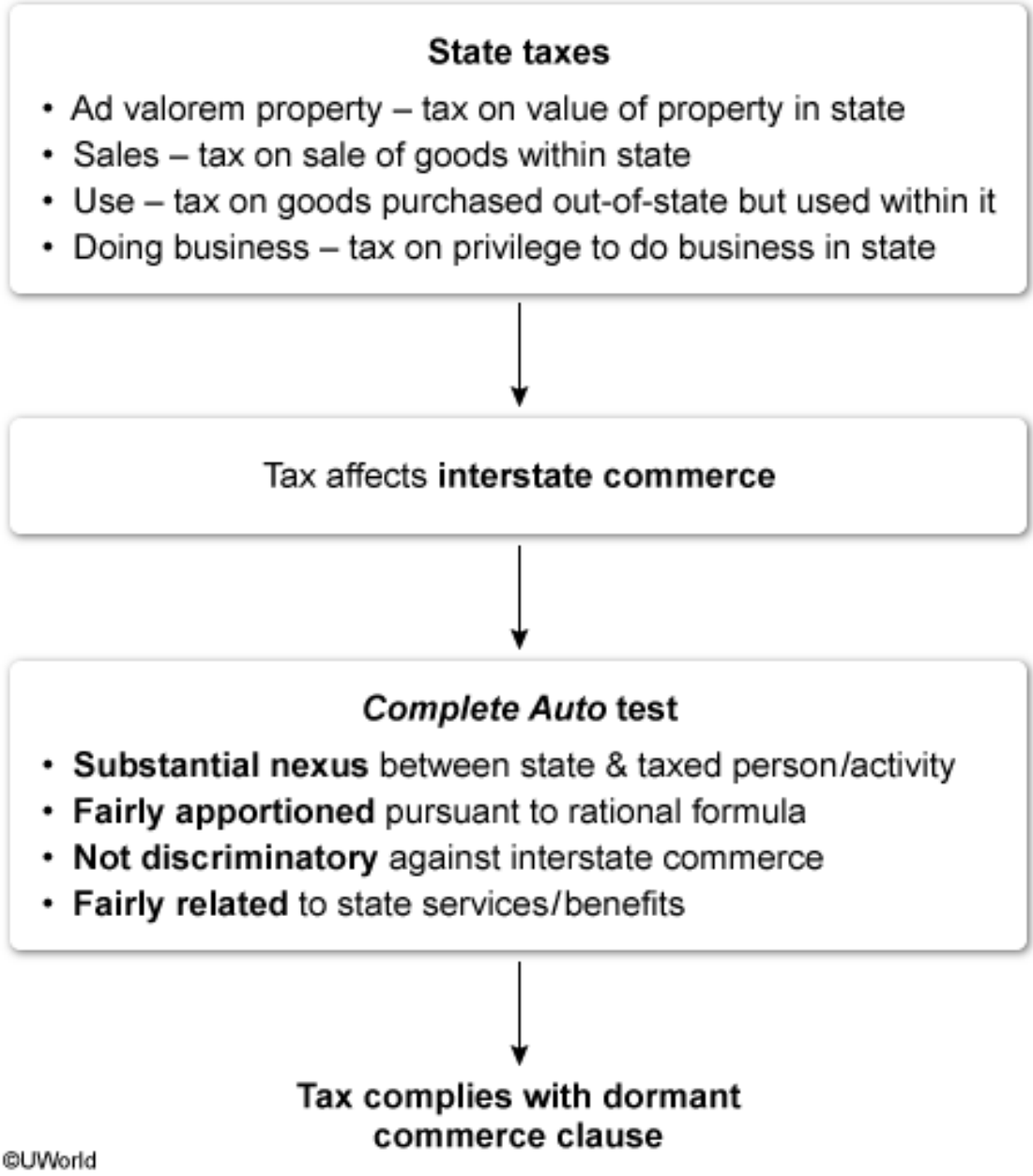
References

- Complete Auto Transit, Inc. v. Brady, 430 U.S. 274, 279 (1977) (setting forth the four-factor test used to determine if a state tax violates the commerce clause).

- Henneford v. Silas Mason Co., 300 U.S. 577, 584–85 (1937) (holding that a state's use tax on goods purchased out-of-state for in-state use is valid as long as the use-tax rate is not higher than the state's sales-tax rate).
- 67B Am. Jur. 2d Sales and Use Taxes §§ 155–59 (explaining the four-factor test for determining whether a use tax violates the commerce clause).

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State taxation of interstate commerce



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A state statute requires each insurance company that offers burglary insurance policies in the state to charge a uniform rate for such insurance to all of its customers residing within the same county in that state. So long as a company complies with this requirement, it is free to charge whatever rate the market will bear for its burglary insurance policies.

An insurance company located in the state files suit in federal district court against appropriate state officials to challenge this statute on constitutional grounds. The insurance company wishes to charge customers residing within the same county in the state rates for burglary insurance policies that will vary because they would be based on the specific nature of the customer's business, on its precise location, and on its past claims record.

How should the court rule in this suit?

A. Abstain from ruling on the merits of this case until the state courts have had an opportunity to pass on the constitutionality of this state statute.

B. Hold the statute constitutional, because the statute is a reasonable exercise of the state's police power.

C. Hold the statute unconstitutional, because the statute deprives the insurance company of its liberty or property without due process of law.

D. Hold the statute unconstitutional, because the statute imposes an undue burden on interstate commerce.

Explanation:

Under the **Tenth Amendment**, any power that the Constitution does not expressly grant to the federal government is **reserved to the states**. This includes the broad **police power** to enact and enforce laws that are reasonably related to protecting **public health, safety, and welfare**—eg, requiring insurers to charge uniform rates to residents is reasonably related to protecting their financial welfare (as seen here). But when exercising this power, states **cannot violate** other **constitutional provisions** like the due process and dormant commerce clauses.

The Fourteenth Amendment due process clause prohibits **state deprivations** of life, liberty, or property unless adequately justified. A deprivation impacting an **ordinary right** (eg, an economic right—as seen here) is justified if it satisfies mere **rational basis scrutiny**. Here, the statute satisfies this standard because it is reasonably related to the state's legitimate interest in protecting its citizens from varying insurance rates. As a result, the statute does *not* deprive the insurance company of due process of law **(Choice C)**.

Additionally, the Article I dormant commerce clause prohibits states from discriminating against or otherwise unduly burdening interstate commerce. A nondiscriminatory law is **unduly burdensome** if its **burden** on interstate commerce **clearly exceeds** its **local benefits**. Here, the statute is nondiscriminatory since it applies to all insurance companies. And it is not unduly burdensome because there is no indication that it has any effect outside the state **(Choice D)**. Therefore, the statute is a constitutional exercise of the state's police power.

(Choice A) A federal court should abstain from hearing a case that involves an unsettled issue of *state* law so that state courts can sort out the issue. But since this case concerns whether the statute violates the *federal* Constitution, the court need not abstain.

Educational objective:

States possess the police power to enact and enforce laws that are reasonably related to protecting public health, safety, and welfare. But states cannot violate other constitutional provisions when exercising this power.

References

- O'Gorman & Young, Inc. v. Hartford Fire Ins. Co., 282 U.S. 251, 257–58 (1931) (holding that a state regulation of insurance rates is a reasonable exercise of the state's police power and does not violate the due process clause).
- Kassel v. Consol. Freightways Corp., 450 U.S. 662, 669–70 (1981) (describing how a state acting pursuant to its police power can violate the dormant commerce clause).
- 16A Am. Jur. 2d Constitutional Law § 379 (2019) (explaining that a state cannot violate other constitutional provisions when exercising its police powers).

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Police power

Laws reasonably related to protect public:

Health



Safety



Welfare



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A toy manufacturer that has its headquarters and sole manufacturing plant in a particular state has developed a "Martian" toy that simulates the exploration of Mars by a remote-controlled vehicle. It accurately depicts the Martian landscape and the unmanned exploratory vehicle traversing it. The toy is of high quality, is safe and durable, and has sold very well.

Other toy manufacturers, all located outside of the state, have developed similar toys that are lower in price. These manufacturers have contracts to sell their Martian toys to outlets in the state. Although these toys are safe and durable, they depict the Martian landscape less realistically than the toys manufactured in the state. Nevertheless, because of the price difference, sales of these toys have cut severely into the sales of the Martian toys manufactured in the state.

The state legislature has recently enacted a law "to protect the children of this state from faulty science and to protect in-state toy manufacturers from unfair competition." The law forbids the sale in the state of any toy that purports to represent extraterrestrial objects and does not satisfy specified scientific criteria. The Martian toy manufactured in the state satisfies all of these criteria; none of the Martian toys of the competing manufacturers meet the requirements.

Is the state law constitutional?

A. No, because it abrogates the obligations of the contracts between the other toy manufacturers and the in-state outlets that have agreed to sell their Martian toys.

B. No, because it imposes an undue burden on interstate commerce.

C. Yes, because it deals only with a local matter, the sale of toys in stores located within the state.

D. Yes, because the state's interest in protecting the state's children from faulty science justifies this burden on interstate commerce.

Explanation:

Discrimination against out-of-state commerce

Type	Description	Example
Facial discrimination	Regulation's language explicitly favors in-state commerce	"Corn grown out-of-state must satisfy more extensive safety measures"
Discriminatory application	Facially neutral regulation applied to favor in-state over out-of-state commerce	State inspects corn grown out-of-state but not corn grown in-state
Discriminatory effect	Otherwise neutral regulation disproportionately affects out-of-state commerce	Enforcement of safety measures results in ban of corn grown out-of-state only

The commerce clause grants Congress extensive power to regulate interstate commerce—ie, nearly all activities involving two or more states. In the inverse, the **dormant commerce clause** **prohibits states** from **discriminating against out-of-state commerce** or otherwise unduly burdening interstate commerce. A state regulation can discriminate three ways:

- **on its face** – when language of a regulation expressly favors in-state interests
- **in its application** – when a facially neutral regulation is applied in favor of in-state interests
- **in its effect** – when an otherwise neutral law disproportionately impacts out-of-state commerce

A discriminatory regulation violates the dormant commerce clause unless the state proves that the regulation (1) furthers a **legitimate, non-economic state interest** (2) that could **not** be achieved by **reasonable alternatives**.

Here, the state law is neutral on its face and in its application since it applies equally to in-state and out-of-state toy manufacturers. But since only out-of-state toy manufacturers are impacted by the law, it has a discriminatory effect. The state does have a legitimate, non-economic interest in protecting children from faulty science. But there are reasonable alternatives to achieve this interest—eg, requiring a disclaimer that the toy is not scientifically accurate **(Choice D)**. Therefore, the law unduly burdens interstate commerce and is unconstitutional.

(Choice A) Under the contracts clause, state laws that substantially impair existing private contracts are valid if the impairment is (1) reasonable and narrowly tailored (2) to achieve an important state interest. This narrowly-tailored standard gives *more deference* to states

than the dormant commerce clause's no-reasonable-alternative standard. As a result, the statute is less likely to be invalidated under the contracts clause.

(Choice C) Although the law deals with the local matter of selling toys in stores located within the state, it also unduly burdens interstate commerce by discriminating against out-of-state manufacturers.

Educational objective:

A state regulation that discriminates—on its face, in its application, or in its effect—against interstate commerce is invalid unless (1) it furthers a legitimate, non-economic state interest and (2) no reasonable alternative exists.

References

- U.S. Const. art. I, § 8, cl. 3 (commerce clause).
- Bacchus Imps. v. Dias, 468 U.S. 263, 273 (1984) (holding that a state discriminated against interstate commerce when its regulation only negatively impacted out-of-state economic activities).
- 15A Am. Jur. 2d Commerce § 103 (2019) (explaining the types of discrimination against interstate commerce).

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Small retailers located in a state are concerned about the loss of business to certain large retailers located nearby in bordering states. In an effort to deal with this concern, the state legislature enacted a statute requiring all manufacturers and wholesalers that sell goods to retailers in the state to do so at prices that are no higher than the lowest prices at which they sell them to retailers in any of the bordering states.

Several manufacturers and wholesalers that are located in bordering states and that sell their goods to retailers in the state bring an action in federal court to challenge the constitutionality of this statute.

Which of the following arguments offered by these plaintiffs is likely to be most persuasive in light of applicable precedent?

A. The state statute denies them the equal protection of the laws.
B. The state statute deprives them of a privilege or immunity of national citizenship.
C. The state statute deprives them of their property or liberty without due process of law.
D. The state statute imposes an unreasonable burden on interstate commerce.

Explanation:

The **commerce clause** gives Congress the power to regulate interstate commerce. The **negative implication** of this clause (ie, the dormant commerce clause) is that **states cannot** discriminate against or otherwise **unduly burden interstate commerce**. As a result, state regulations that have the practical effect of controlling wholly out-of-state conduct (ie, **extraterritorial regulations**) are unconstitutional—even if the regulated conduct affects commerce within the state.

Here, the state statute is an extraterritorial regulation since it has the practical effect of regulating wholly out-of-state conduct. That is because the statute requires all manufacturers and wholesalers selling goods in the state to do so at prices that are no higher than the lowest prices they charge retailers in bordering states. This requires out-of-state commerce to be conducted in accordance with the state statute. Therefore, the most persuasive argument that the statute is unconstitutional is that it imposes an unreasonable burden on interstate commerce.

(Choice A) State laws that substantially impact a fundamental right or intentionally discriminate against a protected class almost always violate the Fourteenth Amendment equal protection clause. But there is no fundamental right to sell goods, and out-of-state businesses are not a protected class. As a result, the state statute does not deny the plaintiffs the equal protection of the laws.

(Choice B) The Fourteenth Amendment privileges or immunities clause* bars states from depriving individuals of the very limited rights of national citizenship—which do not include the right to sell goods.

*The privileges or immunities clause is almost always an incorrect answer choice on the MBE.

(Choice C) Under the Fourteenth Amendment due process clause, state laws cannot deprive an individual of life, liberty, or property without adequate justification. Laws that substantially impact a fundamental right are generally unjustified under strict scrutiny. But since no fundamental right is implicated here, the state statute is likely justified under rational basis scrutiny.

Educational objective:

The dormant commerce clause prohibits states from enacting extraterritorial regulations that have the practical effect of controlling wholly out-of-state conduct—eg, by requiring out-of-state commerce to be conducted in accordance with a state statute.

References

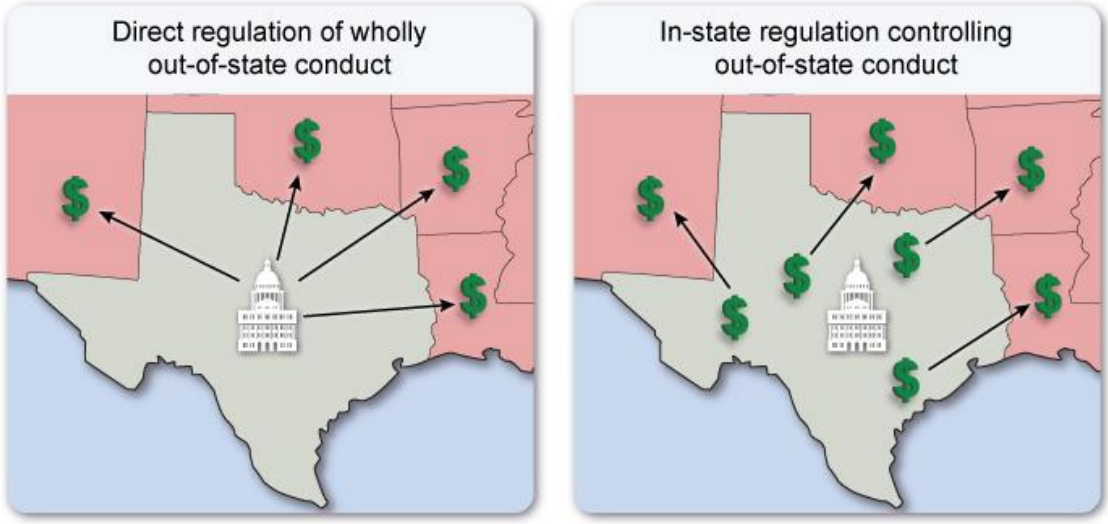
- U.S. Const. art. I, § 8, cl. 3 (commerce clause).

- Healy v. Beer Inst., 491 U.S. 324, 336–39 (1989) (holding that price-affirmation statutes violate the dormant commerce clause since they regulate commerce in other states).
- 15A Am. Jur. 2d Commerce § 40 (2019) (discussing impermissible extraterritorial regulation).

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Dormant commerce clause
(invalid extraterritorial regulations)



A state requires all corporations that operate in the state to file their annual income tax returns with the state's tax board for the purpose of calculating the amount of income tax that each corporation owes. The board requires corporations to provide reasonable approximations of their income earned on a worldwide basis. The board then calculates the income tax that a corporation owes based on the amount of income attributable to its operations within the state.

Several foreign corporations that operate in the state and do not use the state's method of accounting have sued the board in state court, arguing that the state tax is unconstitutional.

Is the state tax constitutional?

A. No, because Congress has the sole power to tax foreign corporations.

B. No, because the state tax discriminates against foreign commerce.

C. Yes, because the state tax was enacted pursuant to the state's police power, which takes precedence over the negative implications of the commerce clause.

D. Yes, if the court determines that the state tax does not impede federal uniformity in foreign commerce.

Explanation:

The commerce clause grants Congress the power to regulate foreign commerce. The negative implication of this clause (ie, the **dormant commerce clause**) prohibits states from discriminating against or otherwise **unduly burdening foreign commerce**. However, a state may still tax foreign persons and entities that earn income in the state if the state tax satisfies the *Complete Auto* and federal uniformity requirements **(Choice A)**. Here, the **state tax** satisfies the ***Complete Auto* requirements** (see image above) because the tax:

- is applied to the foreign corporations' business activities in the state (**substantial nexus**)
- is based on a rational formula that only taxes income earned in the state (**fairly apportioned**)
- applies equally to domestic and foreign corporations (**nondiscriminatory**) **(Choice B)** *and*
- is reasonable compared to services and benefits provided by the state, like infrastructure (**fairly related**).

Additionally, the state tax must satisfy **federal uniformity requirements**. This means that the tax **must not** create an **inevitable risk of international multiple taxation** OR **prevent** the federal government from **speaking with one voice** in international trade or foreign affairs. Therefore, the state tax is constitutional if the court determines that it satisfies these additional requirements.

(Choice C) The Tenth Amendment gives states all powers that are not expressly granted to the federal government by the Constitution—eg, police power to impose taxes on activities in the state. But pursuant to the supremacy clause, state police powers do *not* take precedence over other constitutional provisions, including the negative implications of the commerce clause.

Educational objective:

A state tax affecting foreign commerce must satisfy the *Complete Auto* requirements (substantial nexus, fairly apportioned, nondiscriminatory, and fairly related). Additionally, such a tax must not create an inevitable risk of international multiple taxation OR prevent the federal government from speaking with one voice in foreign affairs.

References

- U.S. Const. art. 1, § 8, cl. 3 (commerce clause).
- Barclays Bank Pub. Ltd. Co. v. Franchise Tax Bd. of Cal., 512 U.S. 298, 311 (1994) (setting forth the requirements for determining whether a state tax that affects foreign commerce violates the commerce clause).

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A state owned and operated an electric power system, which included a nuclear power plant. In order to ensure the availability of sites for the disposal of spent fuel from the nuclear power plant, the state refused to supply electric power to out-of-state purchasers residing in states that would not accept spent fuel from the plant for storage or disposal.

Assume that no federal statute applies.

Which of the following is the strongest argument that the state's action is constitutional?

A. A state may condition the sale to out-of-state purchasers of any products produced in that state on the willingness of those purchasers to bear their fair share of the environmental costs of producing those products.

B. The generation of electricity is intrastate by nature and therefore subject to plenary state control.

C. The state itself owns and operates the power system, and therefore its refusal to supply power to out-of-state purchasers is not subject to the negative implications of the commerce clause.

D. The state's action is rationally related to the health, safety, and welfare of state citizens.

Explanation:

The **commerce clause** grants Congress extensive authority to regulate interstate commerce. And the **negative implication** of this clause (ie, the dormant commerce clause) **prohibits states from discriminating** against or otherwise unduly burdening **interstate commerce**. But states are not restrained by this clause when they participate in the market by, for example, buying or selling goods or services (ie, **market-participant exception**).

Here, the state discriminated against interstate commerce by refusing to supply electricity to out-of-state purchasers residing in states that would not store or dispose of spent fuel. But since the state itself owns and operates the power system, the market-participant exception applies. As a result, the state's refusal to supply power is not subject to the negative implications of the commerce clause. Therefore, this is the strongest argument that its action is constitutional.

(Choice A) Discrimination against interstate commerce may be justified if it furthers a legitimate, *noneconomic* state interest and no reasonable alternative exists. But a state's *economic* interest in sharing the environmental costs of production with out-of-state purchasers cannot justify such discrimination.

(Choice B) Although generating electricity is *intrastate* (ie, within a state) by nature, supplying electricity to out-of-state purchasers is an *interstate* activity. But a state does not violate the dormant commerce clause by refusing to supply electricity to out-of-state purchasers when, as here, the state is acting as a market participant.

(Choice D) All powers not explicitly granted to the federal government by the Constitution are reserved to the states through the Tenth Amendment. This includes the states' police power to take action that is rationally related to protecting the health, safety, and welfare of its citizens. But this power does not allow states to violate other constitutional provisions—including the dormant commerce clause.

Educational objective:

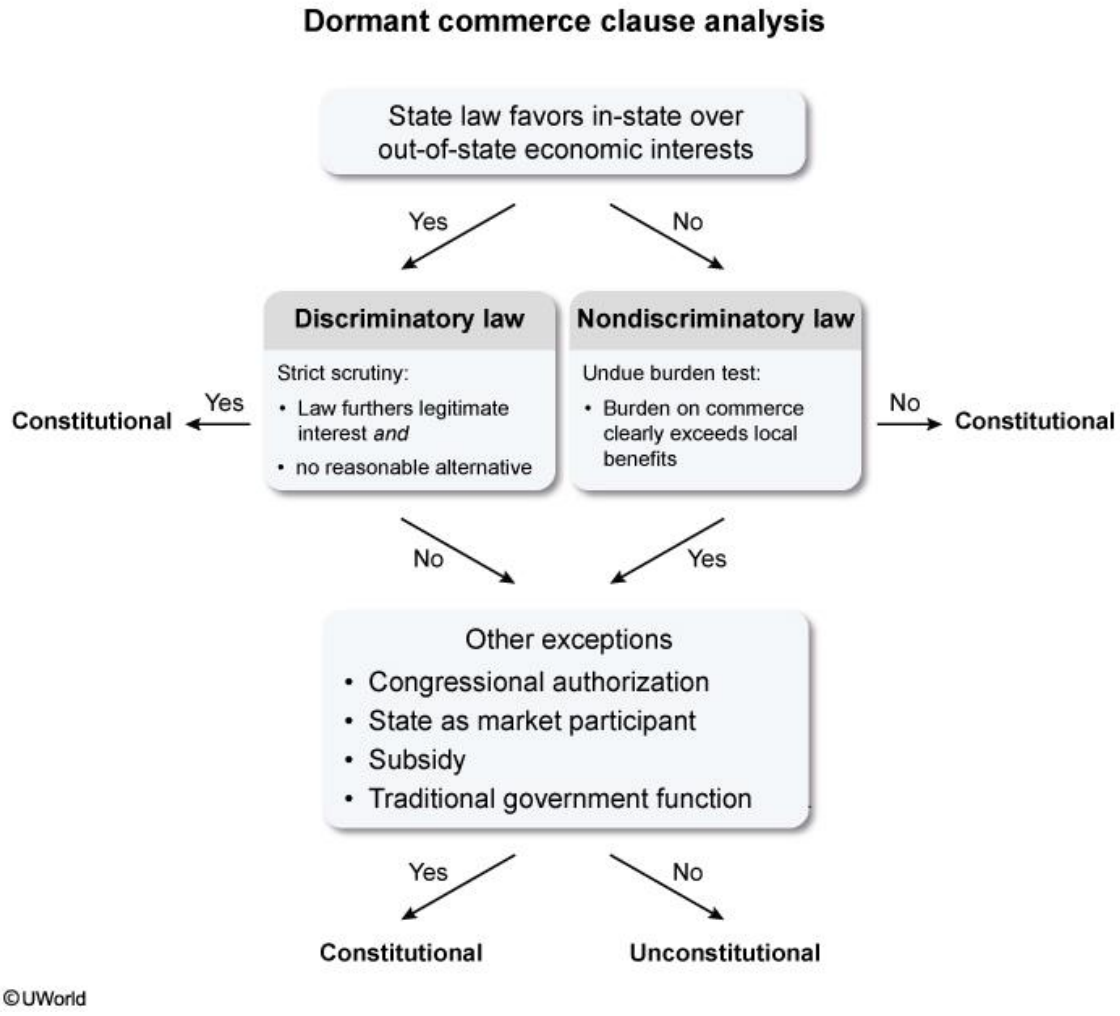
A state's activities are not restricted by the dormant commerce clause when the state is acting as a market participant (as opposed to a market regulator).

References

- U.S. Const. art. I, § 8, cl. 3 (commerce clause).
- Reeves, Inc. v. Stake, 447 U.S. 429, 439–40 (1980) (holding that a state is not subject to the dormant commerce clause when it acts as a market participant).
- 15A Am. Jur. 2d Commerce § 33 (2019) (explaining the market-participant exception to the dormant commerce clause).

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A state law requires any lawn mower sold in the state to meet a specified minimum level of fuel efficiency.

A new federal statute requires all power equipment, including lawn mowers, to be labeled with energy efficiency stickers to permit purchasers to make informed choices when buying such equipment. The statute does not expressly preempt state law.

Assume that no other federal statute or administrative regulation addresses the energy efficiency of power equipment.

Which of the following is the best argument the state can make for the continued validity of its law?

A. Congress cannot preempt state laws requiring a specified minimum level of fuel efficiency for lawn mowers, because the use of such equipment is a wholly local event and, therefore, is beyond the regulatory authority vested in Congress by the commerce clause.

B. The law is unaffected by the federal statute, because Congress did not expressly prohibit state laws requiring power equipment to meet specified levels of fuel efficiency.

C. The purpose of the law is consistent with the purpose of the federal statute, enforcement of the law would not interfere with the full execution of the statute, and there is no evidence that Congress intended to preclude the states from enacting supplemental laws on this subject.

D. There is a very strong presumption that a specific state law on a subject normally within the state's police power prevails over a more general federal statute, because the Tenth Amendment reserves to the states primary authority over matters affecting public health, welfare, and safety.

Explanation:

The Article VI **supremacy clause** allows a **federal law** to **preempt** a conflicting **state law**, thereby rendering the state law void and without effect. But there is a **presumption against preemption**—whether express or implied—that can only be **overcome** when **Congress clearly intended** to supersede the state law.

Here, the federal statute requiring power equipment (including lawn mowers) to have energy efficiency stickers does not ***expressly*** **preempt** the state law requiring lawn mowers to meet a minimum fuel-efficiency level. But the state must also show that the federal statute does not ***impliedly*** **preempt** the state law **(Choice B)**. It can do so here because:

- there is no evidence that Congress intended to *fully* occupy the field of power equipment, leaving no room for supplemental state laws (no **field preemption**)
- enforcement of the state law would not *directly* interfere with the full execution of the federal statute since a lawn mower can satisfy both laws' requirements (no **direct conflict preemption**) *and*
- the state and federal laws have *consistent* purposes since both aim to promote energy efficiency (no **indirect conflict preemption**).

Therefore, this is the state's best argument for the continued validity of its law.

(Choice A) The commerce clause gives Congress the power to regulate local activities that, singly or in the aggregate, substantially impact interstate commerce. Although the use of lawn mowers is a local activity, their aggregated sales likely have a substantial impact on interstate commerce. As a result, they are within Congress's regulatory authority.

(Choice D) The Tenth Amendment reserves to the states all powers that the Constitution does not expressly grant to the federal government—including the police power to enact and enforce laws that protect the public's health, safety, and welfare. But there is *no* presumption that state laws prevail over federal laws.

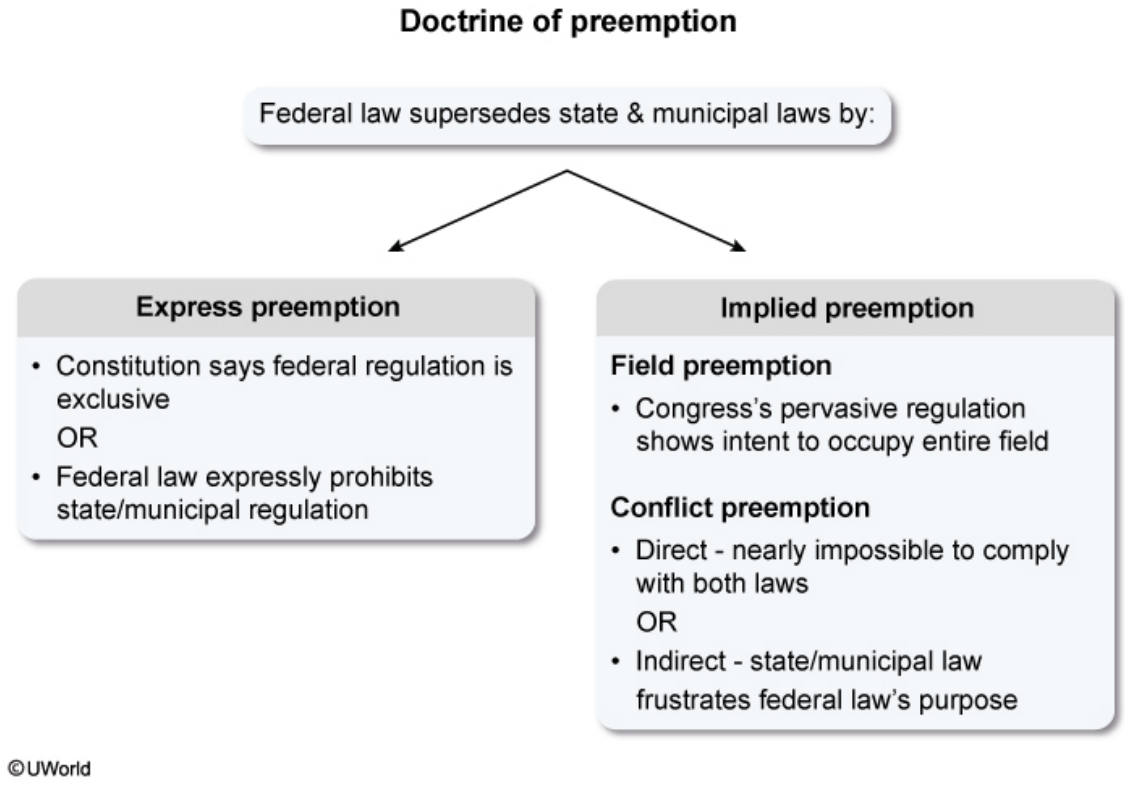
Educational objective:

The supremacy clause allows federal laws to expressly or impliedly preempt conflicting state laws. But there is a presumption against preemption that is only overcome when Congress clearly intended to supersede state laws.

References

- Gade v. Nat'l Solid Wastes Mgmt. Ass'n, 505 U.S. 88, 98 (1992) (explaining when federal law expressly or impliedly preempts state law).
- 16A Am. Jur. 2d Constitutional Law § 234 (2019) (stating the tests used to determine preemption).

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A plaintiff has sued a defendant in a court of the state in which both parties reside. The plaintiff alleges only a cause of action arising under a federal statute, although state law provides a similar cause of action. The federal statute provides that claims under the statute can be brought in any court of competent jurisdiction. The statute has not yet been interpreted by any federal court.

Should the state court hear the case?

A. No, because cases arising under federal law must be decided in federal court.
B. No, because state courts must abstain in cases arising under federal law until a federal court has decided the federal issue.
C. Yes, because state courts may not discriminate against cases arising under federal law.
D. Yes, because the parties cannot proceed in federal court since there is no diversity of citizenship.

Explanation:

Concurrent jurisdiction

Type of claim	Federal court	State court
Federal law	Jurisdiction always proper	Jurisdiction proper *unless*: • Congress granted federal courts exclusive jurisdiction *or* • neutral state rule bars state court jurisdiction
State law	Jurisdiction proper *if*: • diverse opposing parties *and* • amount in controversy > $75,000	Jurisdiction always proper

State and federal courts share concurrent jurisdiction over claims arising under federal law **(Choice A)**. But under the supremacy clause, **state courts cannot discriminate** against cases arising under **federal law**. As a result, state courts **can only refuse** to hear such a case in **two narrow circumstances**:

- when Congress expressly granted **federal courts exclusive jurisdiction** over the subject matter (eg, bankruptcy) *or*
- when a ***neutral* state rule prohibits** the state court from adjudicating the case (eg, a rule barring state courts from deciding cases that do not involve state residents or property).

Here, the plaintiff sued the defendant in state court, alleging only a cause of action arising under federal law. The relevant statute provides that claims under the statute can be brought in *any* court of competent jurisdiction, and there is no indication that a state rule prohibits the state court from hearing the case. And since state courts cannot discriminate against cases arising under federal law, the state court should hear the case.

(Choice B) A *federal* court should abstain from hearing a case involving an unsettled issue of *state* law so that state courts can sort out the issue. But *state* courts need not abstain from hearing unsettled issues of *federal* law (as seen here).

(Choice D) Federal courts can obtain subject-matter jurisdiction under either (1) diversity jurisdiction *or* (2) federal-question jurisdiction—ie, when the case arises under the Constitution, a treaty, or a federal law (as seen here). Therefore, the parties could have

proceeded in federal court even though they lack diversity of citizenship—ie, are citizens of the same state.

Educational objective:

The supremacy clause bars state courts from discriminating against cases arising under federal law. As a result, state courts can only refuse to hear federal-law claims if (1) Congress expressly granted federal courts exclusive jurisdiction or (2) a neutral state rule prohibits the state court from hearing the case.

References

- Claflin v. Houseman, 93 U.S. 130, 136 (1876) (holding that state courts share concurrent jurisdiction with federal courts over cases arising under federal law).
- Haywood v. Drown, 556 U.S. 729, 735–36 (2009) (explaining that state courts can refuse to hear a case involving a federal law only when federal courts have exclusive jurisdiction or a neutral state rule prohibits the state court from hearing it).
- 20 Am. Jur. 2d Courts § 88 (2019) (describing federal and state courts' concurrent jurisdiction).

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A city in State X is a center for businesses that assemble personal computers. Components for these computers are manufactured elsewhere in State X and in other states, then shipped to the city, where the computers are assembled.

A city ordinance imposes a special license tax on all of the many companies engaged in the business of assembling computers in that city. The tax payable by each such company is a percentage of the company's gross receipts earned in the state.

A State X statute that authorizes municipalities to impose this license tax has a "State X content" provision. To comply with this provision of the state statute, the city license tax ordinance provides that the tax paid by any assembler of computers subject to this tax ordinance will be reduced by a percentage equal to the proportion of computer components manufactured in State X.

A company assembles computers in the city and sells them from its offices in the city to buyers throughout the United States. All of the components of its computers come from outside State X. Therefore, the company must pay the city license tax in full without receiving any refund. Other computer assemblers in the city use components manufactured in State X in varying proportions and, therefore, are entitled to partial reductions of their city license tax payments.

Following prescribed procedure, the company brings an action in a proper court asking to have the city's special license tax declared unconstitutional on the ground that it is inconsistent with the negative implications of the commerce clause.

In this case, should the court rule in favor of the company?

A. No, because the commerce clause does not interfere with the right of a state to foster and support businesses located within its borders by encouraging its residents to purchase the products of those businesses.

B. No, because the tax falls only on companies resident in State X and, therefore, does not discriminate against or otherwise adversely affect interstate commerce.

C. Yes, because any tax on a company engaged in interstate commerce, measured in whole or in part by its gross receipts earned in the state, is a per se violation of the negative implications of the commerce clause.

D. Yes, because the tax improperly discriminates against interstate commerce by treating in-state products more favorably than out-of-state products.

Explanation:

The commerce clause gives Congress extensive power to regulate interstate commerce, which encompasses nearly all activities that affect two or more states. As a result, the negative implication of this clause—ie, the **dormant commerce clause**—prohibits **states and municipalities** from unduly burdening interstate commerce. A state or municipal **tax on interstate commerce** is an **undue burden *unless*** the tax:

- is applied to persons or activities with a **substantial nexus** to the taxing state or municipality
- is **fairly apportioned** to avoid taxing interstate activities performed in other states
- does **not discriminate** by favoring local over out-of-state entities *and*
- is **fairly related** to services and benefits provided by the taxing state or municipality.

Here, the city's license tax applies to all companies that assemble computers in the city (substantial nexus) at a percentage of their gross receipts (fairly apportioned). The tax is likely reasonable compared to the services provided by the city (fairly related). But it *discriminates* against interstate commerce by allowing companies to reduce their taxes by using computer components manufactured in the state, thereby treating in-state products more favorably than out-of-state products **(Choice B)**. Therefore, the court should rule in favor of the company.

(Choice A) States and municipalities can encourage their residents to purchase products from businesses located within their borders. But these entities cannot violate the dormant commerce clause when doing so.

(Choice C) A tax on a company engaged in interstate commerce, measured in whole or in part by its gross receipts, is *not* a per se (ie, automatic) violation of the negative implications of the commerce clause. Instead, such a tax complies with the "fairly apportioned" requirement imposed by this clause.

Educational objective:

A state or municipal tax on interstate commerce is valid if it is (1) levied on persons or activities that have a substantial nexus with the taxing entity, (2) fairly apportioned, (3) nondiscriminatory, and (4) fairly related to the services provided by the taxing entity.

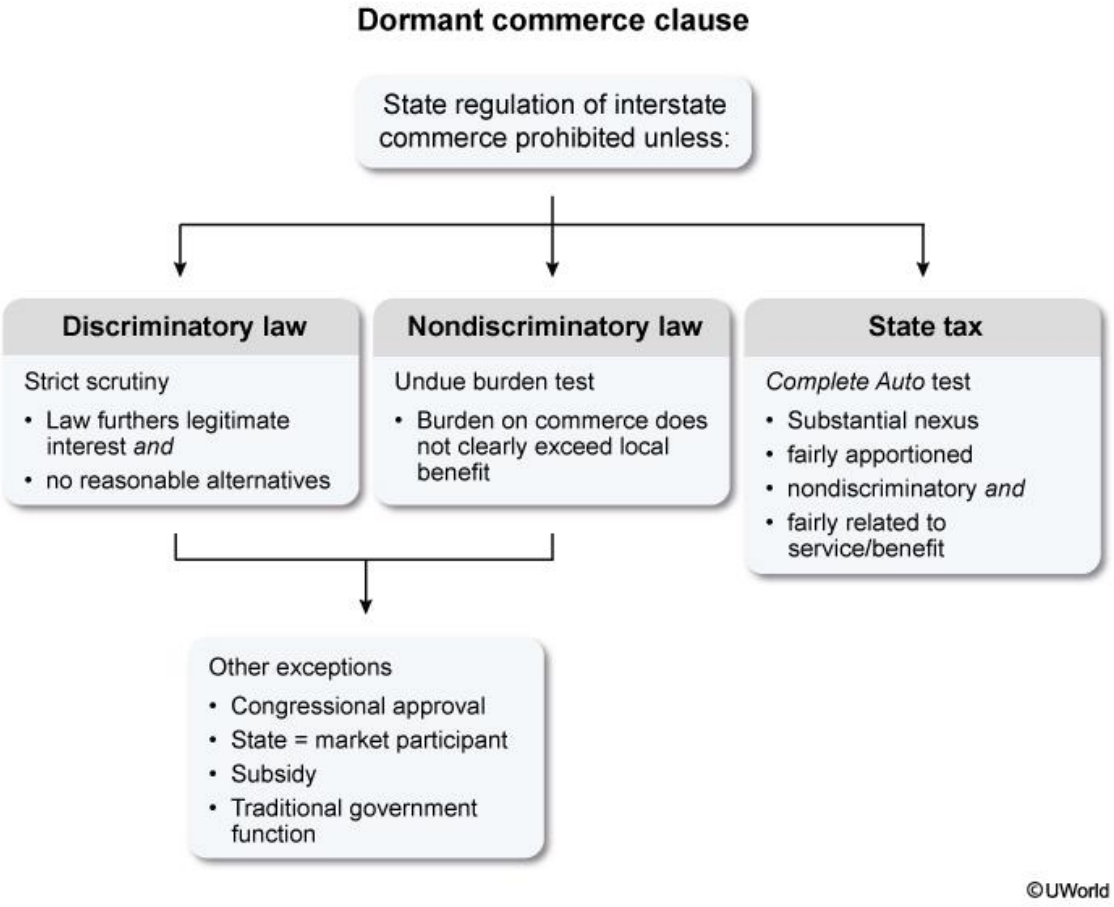
References

- U.S. Const. art. I, § 8, cl. 3 (commerce clause).
- Complete Auto Transit, Inc. v. Brady, 430 U.S. 274, 279 (1977) (setting forth the four-factor test used to determine if a state or municipal tax violates the dormant commerce clause).

- 71 Am. Jur. 2d State and Local Taxation § 168 (2019) (explaining that a state tax favoring in-state over out-of-state economic interests is invalid).

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A fatal virus recently infected poultry in several nations. Some scientific evidence indicates that the virus can be transmitted from poultry to humans.

Poultry farming is a major industry in several U.S. states. In one such state, the legislature has enacted a law imposing a fee of two cents per bird on all poultry farming and processing operations in the state. The purpose of the fee is to pay for a state inspection system to ensure that no poultry raised or processed in the state is infected with the virus.

A company that has poultry processing plants both in the state and in other states has sued to challenge the fee.

Is the fee constitutional?

A. No, because although it attaches only to intrastate activity, in the aggregate, the fee substantially affects interstate commerce.

B. No, because it places an undue burden on interstate commerce in violation of the negative implications of the commerce clause.

C. Yes, because it applies only to activities that take place wholly within the state, and it does not unduly burden interstate commerce.

D. Yes, because it was enacted pursuant to the state's police power, which takes precedence over the negative implications of the commerce clause.

Explanation:

The commerce clause gives Congress the power to regulate interstate commerce—ie, nearly all activities involving two or more states. This clause also carries a negative implication (ie, the **dormant commerce clause**) that **prohibits states** from discriminating against or ***unduly* burdening interstate commerce**. But a **state tax** that affects interstate commerce is not unduly burdensome if the tax is:

- applied to a person or activity that has a **substantial nexus** with the state
- **fairly apportioned** to avoid taxing activities performed in other states
- **not discriminatory** against interstate commerce *and*
- **fairly related** to services or benefits provided by the state.

Here, the state law imposes a fee (ie, tax) on all poultry farming and processing operations in the state. Although the fee only attaches to intrastate activity, in the aggregate, the fee likely has a substantial effect on interstate commerce **(Choice A)**. But it does not *unduly* burden interstate commerce—and is therefore constitutional—because:

- the entities taxed have poultry farming and processing operations in the state (substantial nexus)
- the fee only applies to birds raised or processed in the state (fairly apportioned)
- the fee applies to *all* poultry farming and processing operations in the state (nondiscriminatory) *and*
- the fee appears reasonable compared to the poultry inspection system that the state will provide (fairly related) **(Choice B)**.

(Choice D) The Tenth Amendment gives states all powers that are not expressly granted to the federal government by the Constitution—eg, police power to impose taxes on state activities. But pursuant to the supremacy clause, state police powers do *not* take precedence over other constitutional provisions, including the negative implications of the commerce clause.

Educational objective:

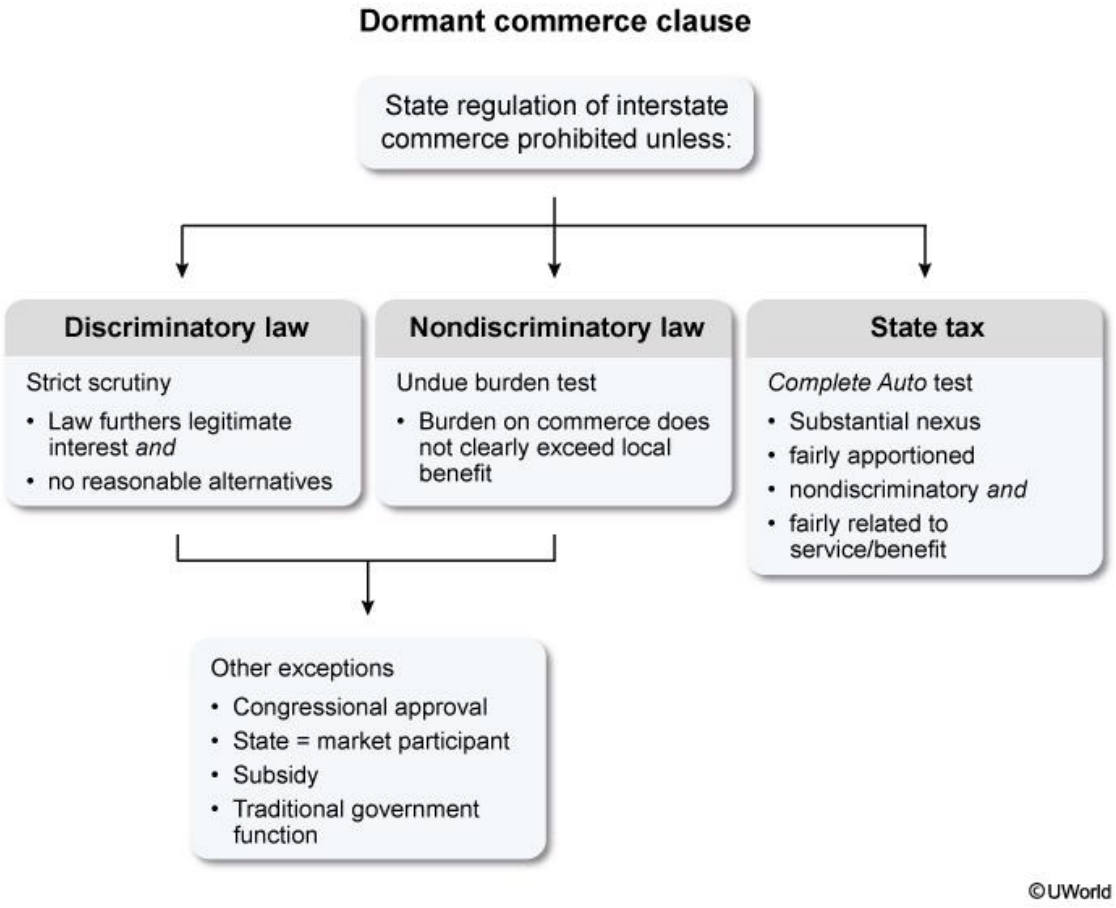
A state tax that affects interstate commerce does not violate the dormant commerce clause if it is (1) applied to a person or activity that has a substantial nexus with the state, (2) fairly apportioned, (3) nondiscriminatory, and (4) fairly related to services or benefits provided by the state.

References

- Complete Auto Transit, Inc. v. Brady, 430 U.S. 274, 279 (1977) (setting forth the four-factor test for determining whether a state tax violates the commerce clause).

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State A sent three of its employees to a city located in State B to consult with a chemical laboratory there about matters of state business. While in the course of their employment, the three State A employees negligently released into local State B waterways some of the chemical samples they had received from the laboratory in State B.

Persons in State B injured by the release of the chemicals sued the three State A employees and State A in a State B court for the damages they suffered. After a trial in which all of the defendants admitted jurisdiction of the State B court and fully participated, the plaintiffs received a judgment against all of the defendants for $5 million, which became final.

Subsequently, the plaintiffs sought to enforce their State B court judgment by commencing a proper proceeding in an appropriate State A court. In that enforcement proceeding, State A argued, as it had done unsuccessfully in the earlier action in the State B court, that its liability is limited by a State A law to $100,000 in any tort case. Because the three individual employees of State A are able to pay only $50,000 of the judgment, the only way the plaintiffs can fully satisfy their State B court judgment is from the funds of State A.

Can the plaintiffs recover the full balance of their State B court judgment from State A in the enforcement proceeding they filed in the State A court?

A. No, because the State A employees were negligent and, therefore, their actions were not authorized by State A.

B. No, because the Tenth Amendment preserves the right of a state to have its courts enforce the state's public policy limiting its tort liability.

C. Yes, because a limitation on damage awards against State A for tortious actions of its agents would violate the equal protection clause of the Fourteenth Amendment.

D. Yes, because the final judgment of the State B court is entitled to full faith and credit in the State A courts.

Explanation:

The Article IV **full faith and credit clause** requires states to respect the public acts, records, and judicial proceedings of other states. Under this clause, a **state court** must **recognize and enforce judicial decisions** rendered by a **court in another state** when:

- that court had **personal jurisdiction** and **subject-matter jurisdiction**
- the case was decided on its **merits**—ie, the substantive elements or grounds of a claim or defense—*and*
- a **final judgment** was entered.

Here, the State B residents (plaintiffs) sued the State A employees and State A (defendants) in a State B court. The defendants admitted that the court had *jurisdiction*. The case was then decided on its *merits* when the court issued a $5 million judgment against the defendants. And since the State B judgment became *final*, it is entitled to full faith and credit in the State A courts. Therefore, the plaintiffs can recover the full balance of that judgment from State A in the enforcement proceeding they filed in the State A court.

(Choice A) Since the employees acted in the course of their employment, their actions were authorized by State A—even if the employees were negligent. And State A is vicariously liable for that negligence under the doctrine of respondeat superior.

(Choice B) The Tenth Amendment gives states any power that is not expressly given to the federal government by the Constitution—eg, the power of state courts to enforce the state's public policy limiting its tort liability. But when exercising such powers, states must comply with other constitutional provisions—eg, the full faith and credit clause.

(Choice C) A limitation on damage awards against State A likely would *not* violate the equal protection clause because it would not substantially impact a fundamental right or protected class.

Educational objective:

Under the full faith and credit clause, a state court must recognize and enforce a judicial decision by a court in another state when (1) that court had personal and subject matter jurisdiction, (2) the case was decided on its merits, and (3) a final judgment was entered.

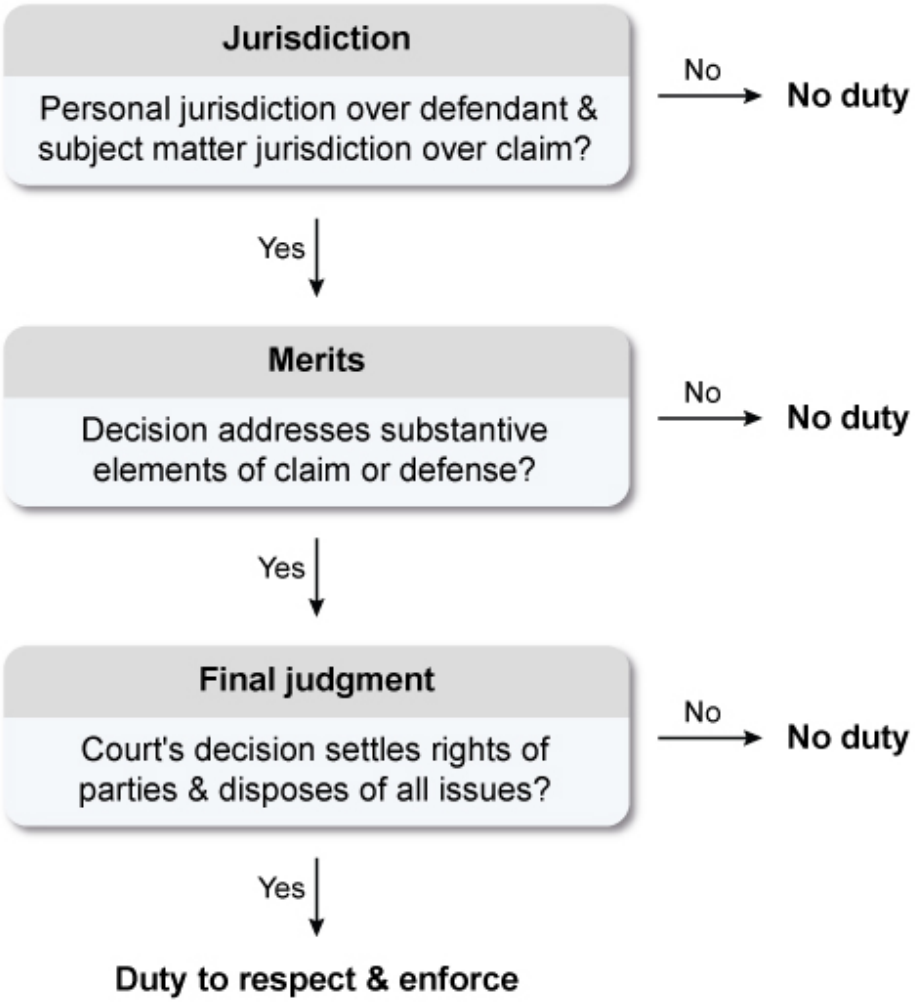
References

- Baker v. Gen. Motors Corp., 522 U.S. 222, 231–33 (1998) (explaining when the full faith and credit clause applies to state court judgments).
- V.L. v. E.L., 136 S. Ct. 1017, 1020–22 (2016) (holding that a state court cannot relitigate a case that has already been decided on its merits in a court of another state).

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Full faith and credit clause
(duty to respect/enforce judgment by court in another state)



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A state statute provides that only corporations whose owners have been residents of the state for at least two years may obtain a retail license to sell liquor in the state. The stated purpose of the statute is to promote responsible alcohol sales and consumption through the local control of retail liquor stores.

A corporation's application for a liquor store license was denied because its owners had been state residents for less than two years. The corporation has sued to challenge the statute.

Is the state statute constitutional?

A. No, because Congress has exclusive authority over interstate commerce.

B. No, because it unduly burdens interstate commerce.

C. Yes, because the issuance of licenses is a traditional government function.

D. Yes, because the Twenty-first Amendment grants states authority to regulate alcohol.

Explanation:

Unconstitutional state alcohol regulations

Constitutional provision	Example
Dormant commerce clause	Permitting only in-state businesses to ship alcohol to in-state consumers
Free speech clause	Banning advertisements featuring price of alcohol
Establishment clause	Granting churches power to veto liquor license applications for businesses within 500-foot radius of church
Equal protection clause	Permitting alcohol sales to females at age 18 but not to males until age 21

The Twenty-first Amendment grants **states broad authority to regulate** the use of **alcohol within their own borders**.* However, this authority is **restricted by** other constitutional provisions, including **the dormant commerce clause (Choice D)**. The dormant commerce clause **prohibits states** from **discriminating against** or unduly burdening **interstate commerce**. A discriminatory state statute favors in-state over out-of-state interests. Such a statute is subject to strict scrutiny and is **unconstitutional unless** the state proves that:

- the statute furthers a **legitimate, noneconomic state interest** (eg, public health or safety) *and*
- **no reasonable alternative** exists to further that interest.

Here, the state statute discriminates against interstate commerce by granting licenses to sell liquor only to corporations whose owners have been state residents for at least two years. Even if the statute furthers the state's legitimate, noneconomic interest in promoting responsible alcohol consumption, reasonable alternatives exist. For example, the state could limit the amount of alcohol that may be sold to individuals at one time. Therefore, the statute unduly burdens interstate commerce and is unconstitutional.

*The Twenty-first Amendment also repealed the Eighteenth Amendment's prohibition on the manufacture, transportation, and sale of alcohol in the United States.

(Choice A) Congress *does* have exclusive authority over interstate commerce. But if Congress has not enacted legislation in a particular area of interstate commerce, then the states are free to regulate that area so long as it does not discriminate against or unduly burden interstate commerce or regulate extraterritorial (ie, wholly out-of-state) activity.

(Choice C) The "traditional government function" exception allows states to favor government (not private) entities when those entities are performing a traditional

government function (eg, waste disposal). Here, issuing licenses may be a traditional government function. But since the state is favoring in-state residents (as opposed to government entities), this exception does not apply.

Educational objective:

The Twenty-first Amendment grants states broad authority to regulate alcohol within their borders. When doing so, states cannot violate the dormant commerce clause by discriminating against interstate commerce unless (1) the state statute furthers a legitimate, noneconomic state interest and (2) no reasonable alternative exists to do so.

References

- U.S. Const. amend. XXI (state's power to regulate alcohol).
- Tenn. Wine & Spirits Retailers Ass'n v. Thomas, 139 S. Ct. 2449, 2476 (2019) (holding that a state statute requiring liquor store operators to be state residents for at least two years violates the dormant commerce clause).
- 15A Am. Jur. 2d § 109 (2020) (explaining that the dormant commerce clause applies to state alcohol regulations).

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A state legislature conducted an investigation into a series of fatal accidents in the state involving commercial trucks with exteriors made of polished aluminum. The investigation revealed that the sun's glare reflecting off these trucks blinded the drivers of other vehicles. In response, the state's legislature enacted a law prohibiting commercial trucks with polished aluminum exteriors from traveling on the state's highways.

Litigation over the state law resulted in a final decision by the United States Supreme Court that the law impermissibly burdened interstate commerce and therefore was unconstitutional. Congress later enacted a statute permitting any state to enact a law regulating the degree of light reflectiveness of the exteriors of commercial trucks using the state's highways.

Is this federal statute constitutional?

A. No, because Article III vests the judicial power in the federal courts, the essence of judicial power is the ability to render a final judgment, and this statute overrules a final judgment of the U.S. Supreme Court.

B. No, because the U.S. Supreme Court has already determined that state laws of this type impermissibly burden interstate commerce.

C. Yes, because Article I, Section 8 grants Congress authority to enact statutes authorizing states to impose burdens on interstate commerce that would otherwise be prohibited.

D. Yes, because Article I, Section 8 grants Congress authority to enact statutes for the general welfare, and Congress could reasonably believe that state laws regulating the light reflectiveness of the exteriors of commercial trucks promote the general welfare.

Explanation:

Commerce clause

(U.S. Const. art. I, § 8)

Commerce clause	Congress *can* regulate: • channels of interstate commerce • instrumentalities of interstate commerce • persons or things moving in interstate commerce • activities that substantially affect interstate commerce
Dormant commerce clause	States *cannot*: • discriminate against interstate commerce • unduly burden interstate commerce

The state legislature enacted a law banning commercial trucks with aluminum exteriors from the state's highways. The U.S. Supreme Court then held that the law impermissibly burdened interstate commerce in violation of the *dormant* commerce clause.

But the **commerce clause** (in Article I, Section 8) gives Congress substantial authority to **regulate interstate commerce**. This includes the ability to **share commerce power with the states** by authorizing them to impose burdens on interstate commerce that would otherwise be prohibited by the dormant commerce clause. And since Congress used that power to later enact a statute permitting states to regulate the reflectiveness of commercial trucks on state highways, that statute is constitutional.

(Choices A & B) Article III grants federal courts judicial power, including the ability to render a final judgment. And here, the U.S. Supreme Court exercised that power by determining that the state law impermissibly burdened interstate commerce. But this did not preclude Congress from later exercising its commerce powers by authorizing states to impose such burdens.

(Choice D) The taxing and spending clause (in Article I, Section 8) only grants Congress the power to enact statutes to *tax and spend* for the general welfare—not to enact any type of statute.

Educational objective:

The commerce clause grants Congress extensive power to regulate interstate commerce, including the power to authorize state legislation that would otherwise violate the dormant commerce clause.

References

- S.-Cent. Timber Dev. v. Wunnicke, 467 U.S. 82, 87–88 (1984) (explaining that Congress can authorize states to regulate interstate commerce in a manner that would otherwise not be permissible).

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A man bought an antique car from a car dealer in State A. Under State A law, a person who buys from such a dealer acquires good title, even if the property was stolen from a previous owner. The man showed the car at an antique car show in State B. A woman recognized the car as having been stolen from her. Under State B law, a person whose property is stolen may reclaim it, even if the current possessor is an innocent purchaser.

The woman sued the man in a State B court to reclaim the car. In his defense, the man claimed that he had good title under the law of State A. Nevertheless, the State B court applied State B law, and the woman prevailed. The man did not appeal. The sheriff had the car returned to State B and gave the woman possession of the car.

Several months later, the woman moved to State A, bringing the car with her. The man brought a new suit against the woman in a State A court, claiming that the State B court in the prior suit should have applied the State A law, which protects innocent purchasers. The woman appeared and moved to dismiss the suit.

What should the State A court do?

A. Apply State A law, because the car is currently located in State A.

B. Apply the federal law on sale of goods, because the car has moved in interstate commerce.

C. Dismiss the suit, because the State A court must give full faith and credit to the State B judgment.

D. Remove the case to federal court, because the car has moved in interstate commerce, and therefore the case raises a federal question.

Explanation:

Under the Article IV **full faith and credit clause**, states have a duty to respect the public acts, records, and judicial proceedings of other states. This requires **state courts** to **recognize and enforce decisions** rendered by a **court in another state** when:

- that court had personal jurisdiction and **subject-matter jurisdiction**
- the case was decided **on its merits**—ie, the substantive elements or grounds of the claim or defense—*and*
- a **final judgment** was entered.

Here, the woman sued the man in a State B court to reclaim her car. And the State A court must give full faith and credit to the State B judgment since:

- the man waived any right to challenge *personal jurisdiction* by appearing in the State B court and presenting a defense
- state courts, including the State B court, have *subject matter jurisdiction* over virtually any case arising under federal or state law
- the case was decided *on its merits* when the State B court applied State B's substantive law and ruled in the woman's favor *and*
- the judgment became *final* when the man failed to appeal.

Therefore, the State A court should dismiss the man's suit.

(Choices A & B) The fact that the car is currently located in State A and has moved in interstate commerce is irrelevant in determining whether the State A court must give full faith and credit to the State B judgment.

(Choice D) Even if the car's movement in interstate commerce created a federal question, the state court cannot remove the case to federal court on its own initiative. Removal is only proper when the defendant requests it (not seen here).

Educational objective:

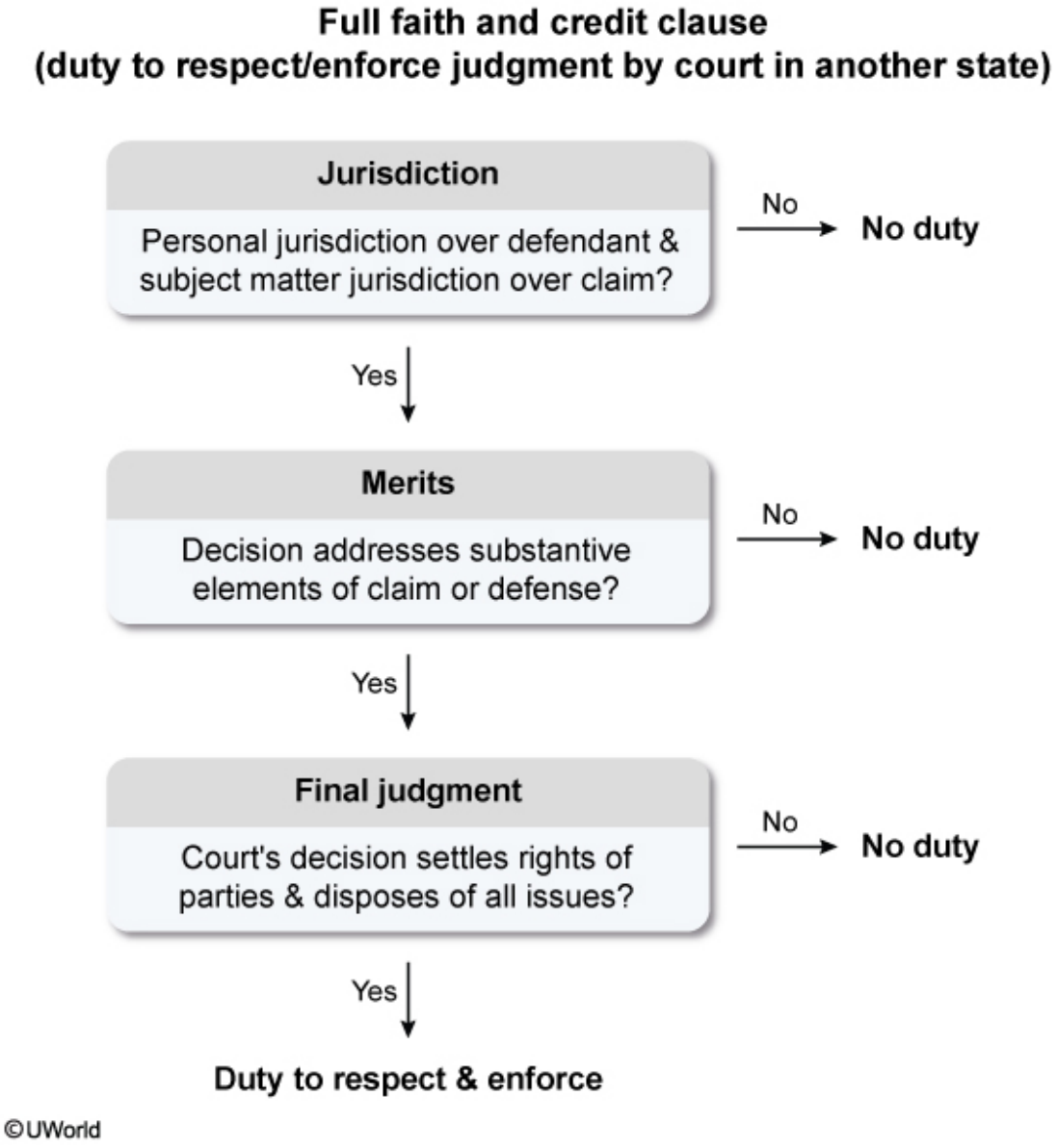
The full faith and credit clause requires a state court to recognize and enforce a decision by a court in another state when (1) that court had personal and subject matter jurisdiction, (2) the case was decided on its merits, and (3) a final judgment was entered.

References

- Baker v. Gen. Motors Corp., 522 U.S. 222, 231–33 (1998) (explaining when the full faith and credit clause applies to state court judgments).
- V.L. v. E.L., 136 S. Ct. 1017, 1020–22 (2016) (holding that a state court cannot relitigate a case that has already been decided on its merits in a court of another state).

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Congress enacted a federal statute providing that any state may "require labeling to show the state or other geographic origin of citrus fruit that is imported into the receiving state."

Pursuant to the federal statute, a state that produced large quantities of citrus fruit enacted a law requiring all citrus fruit imported into the state to be stamped with a two-letter postal abbreviation signifying the state of the fruit's origin. The law did not impose any such requirement for citrus fruit grown within the state. When it adopted the law, the state legislature declared that its purpose was to reduce the risks of infection of local citrus crops by itinerant diseases that have been found to attack citrus fruit.

A national association of citrus growers has sued to have the state law declared unconstitutional. The association claims that the law is prohibited by the negative implications of the commerce clause of the Constitution.

Which of the following is the best argument in favor of the state's effort to have this lawsuit dismissed?

A. Any burden on interstate commerce imposed by the state law is outweighed by a legitimate state interest.

B. Congress has the authority to authorize specified state regulations that would otherwise be prohibited by the negative implications of the commerce clause, and it has done so in this situation.

C. The state law does not discriminate against out-of-state citrus growers or producers.

D. The state law furthers a legitimate state interest, the burden it imposes on interstate commerce is only incidental, and the state's interest cannot be satisfied by other means that are less burdensome to interstate commerce.

Explanation:

The **negative implication of the commerce clause** (ie, the dormant commerce clause) **prohibits states from discriminating** against or otherwise unduly burdening interstate commerce. As a result, states generally cannot favor **in-state over out-of-state economic interests** unless:

- the state law furthers a legitimate, noneconomic state interest *and*
- no reasonable, nondiscriminatory alternatives are available.

But this analysis is unnecessary—and states *can* engage in such discrimination—when **Congress explicitly authorizes** the state's conduct (or some other exception to the dormant commerce clause applies).

Here, the state law discriminates against interstate commerce by requiring citrus fruit imported *into* the state—but not citrus fruit grown *within* the state—to have a stamp showing its origin **(Choice C)**. This law would ordinarily violate the dormant commerce clause since there are reasonable alternatives to prevent citrus fruit infections (eg, conducting safety inspections) **(Choice D)**. But since Congress *explicitly* authorized states to require this labeling, this is the state's best argument to have the lawsuit dismissed.

(Choice A) Under the undue burden test, a state regulation is justified if its legitimate, local benefits exceed the burdens imposed on interstate commerce. But this test does not apply to *discriminatory* state regulations (as seen here).

Educational objective:

The dormant commerce clause generally prohibits states from discriminating against or unduly burdening interstate commerce. But states can do so when Congress has explicitly authorized that conduct.

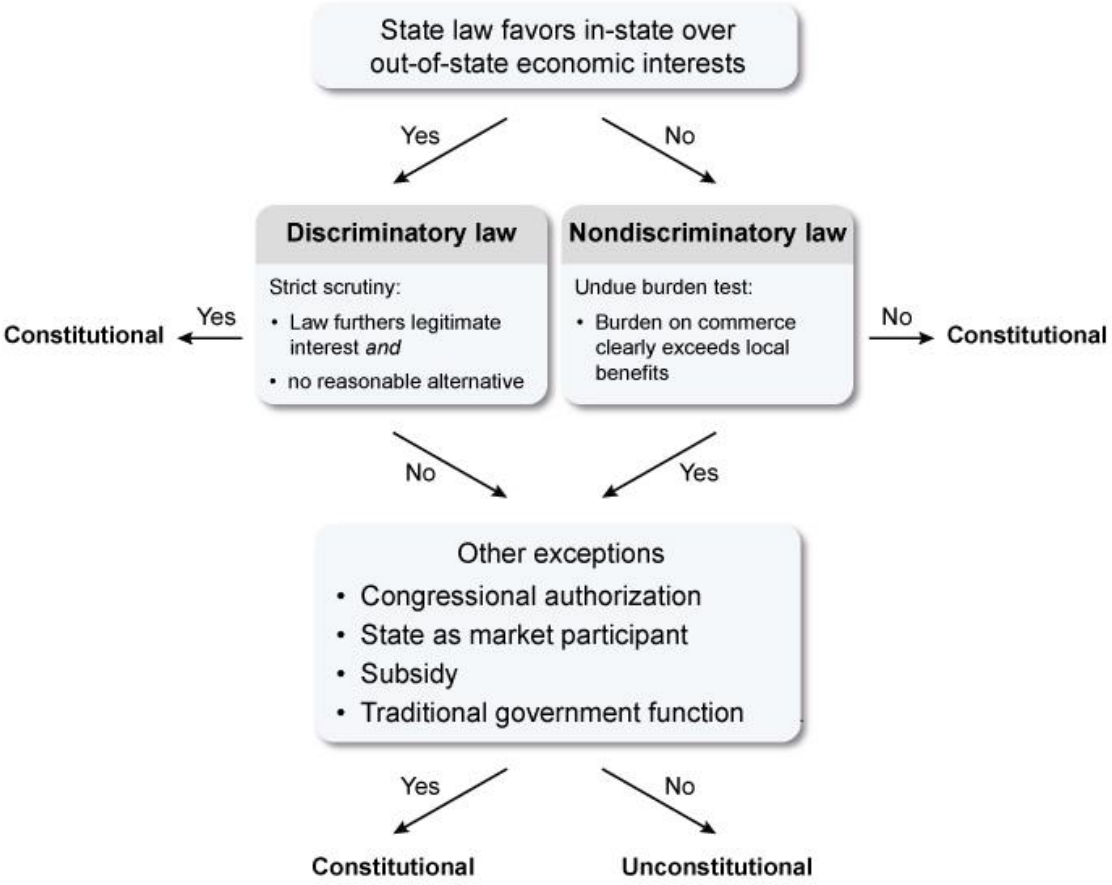
References

- U.S. Const. art. I, § 8 (commerce clause).
- Ne. Bancorp, Inc. v. Bd. of Governors of Fed. Reserve Sys., 472 U.S. 159, 174 (1985) (explaining that states can discriminate against interstate commerce when Congress authorizes them to do so).
- 15A Am. Jur. 2d Commerce § 27 (2019) (discussing congressional authorization to regulate interstate commerce).

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Dormant commerce clause analysis



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After several well-publicized deaths caused by fires in products made from highly flammable fabrics, State A enacted a statute prohibiting "the manufacture or assembly of any product in this state which contains any fabric that has not been tested and approved for flame retardancy by a specific privately owned and operated testing company located in State A."

For many years, a fabric mill located in State A has had its fabric tested for flame retardancy by a privately owned and operated testing company located in State B. This testing company is a reliable organization that uses a process for testing and approving fabrics for flame retardancy identical in all respects to that used by the State A testing company.

Because the fabric mill wishes to continue to have its fabric tested solely by the State B testing company, the fabric mill files an action in a State A court challenging the constitutionality of the State A statute as applied to its circumstances.

In this suit, should the court hold the statute to be constitutional?

A. No, because it denies the fabric mill the equal protection of the laws.

B. No, because it imposes an unreasonable burden on interstate commerce.

C. Yes, because it is a legitimate means of protecting the safety of the public.

D. Yes, because it is reasonably related to the protection of the reputation of the fabric industry located in State A.

Explanation:

Dormant commerce clause

(state regulation of interstate commerce)

Type of regulation	Examples	Standard
Discriminatory (favors in-state interests)	• Taxing out-of-state products more heavily • Requiring use of in-state products/services	Unconstitutional unless: • furthers legitimate state interest *and* • no reasonable alternative
Nondiscriminatory (otherwise burdensome)	• Prohibiting all commercial vehicles on state highways • Overly strict requirements for all commercial shipments	Unconstitutional if: • burden clearly exceeds local benefits

The states' power to regulate interstate commerce is restricted by the **dormant commerce clause**, which **prohibits states** from **discriminating against** or otherwise **unduly burdening interstate commerce**. Discrimination against interstate commerce—ie, favoring in-state over out-of-state economic interests—is **invalid unless**:

- it furthers a **legitimate, *noneconomic* state interest** (eg, public health and safety) *and*
- **no reasonable alternative** exists.

Here, the State A statute discriminates against interstate commerce since it requires that an *in-state* company test flame retardancy. The statute promotes the state's legitimate, noneconomic interest in ensuring safety. But reasonable alternatives are available—eg, allowing *any* reliable organization, including the State B company, to conduct these tests. Therefore, the statute is unconstitutional as applied to these circumstances because it unreasonably burdens interstate commerce **(Choice C)**.

(Choice A) State laws that substantially impact a fundamental right or intentionally discriminate against a protected class almost always violate the Fourteenth Amendment equal protection clause. But since no fundamental right is implicated and businesses are not a protected class, the statute likely does not deny the fabric mill the equal protection of the laws.

(Choice D) A state law that discriminates against interstate commerce must further a legitimate, *noneconomic* state interest and no reasonable alternatives can exist. Therefore, the fact that the statute is reasonably related to State A's *economic* interest in protecting the reputation of State A's fabric industry does not justify the statute.

Educational objective:

Under the dormant commerce clause, states cannot discriminate against interstate commerce unless (1) the discrimination furthers a legitimate, noneconomic state interest and (2) no reasonable alternative exists.

References

- U.S. Const. art. I, § 8, cl. 3 (commerce clause).
- Maine v. Taylor, 477 U.S. 131, 138 (1986) (explaining that state discrimination against interstate commerce is invalid unless it furthers a legitimate, noneconomic state interest and no reasonable alternatives exist).

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A state owned a large natural gas field and took bids for its exploitation. The highest bid came from an interstate pipeline company that distributed natural gas to providers throughout the country. A local gas company submitted the next highest bid, which included the commitment that it would pass along to local customers any savings if it was awarded the contract. The state awarded the contract to the local company.

The interstate company sued to overturn this decision.

Should the interstate company prevail?

A. No, because the state acted as a market participant.

B. No, because the state has a compelling interest in reducing the cost of gas for state citizens.

C. Yes, because the state acted irrationally by not choosing the highest bidder and thus denied the interstate company due process of law.

D. Yes, because the state discriminated against interstate commerce.

Explanation:

The commerce clause gives Congress broad power to regulate interstate commerce—ie, nearly all activities involving two or more states. The negative implication of this clause (ie, the **dormant commerce clause**) is that **states are generally prohibited** from **discriminating against** or otherwise unduly burdening **interstate commerce**. But under the **market-participant exception**, states are not subject to the dormant commerce clause when they act as a market participant—ie, buy or sell goods or services—rather than as a market regulator.

Here, the state discriminated against interstate commerce when it awarded the contract to the *local* company even though the *interstate* company was the highest bidder. But since the state was selling the right to exploit the natural gas field that it owned, it acted as a market participant. As a result, the dormant commerce clause does not apply, and the interstate company should not prevail in its suit to overturn the state's decision **(Choice D)**.

(Choice B) Had the dormant commerce clause applied, this state decision would have been subject to strict scrutiny. Under this test, state action that discriminates against interstate commerce is invalid unless (1) it furthers a legitimate, *noneconomic* state interest and (2) no reasonable alternative exists. And since the state's interest in reducing local customers' gas costs is *economic* in nature, the decision likely would have failed strict scrutiny.

(Choice C) Under the Fourteenth Amendment due process clause, most state deprivations of life, liberty, or property are justified if they are rationally related to a legitimate state interest. And here, choosing the local company's lower bid was rational since any savings would be passed on to local customers—a legitimate state interest. Therefore, the state did not deny the interstate company due process of law.

Educational objective:

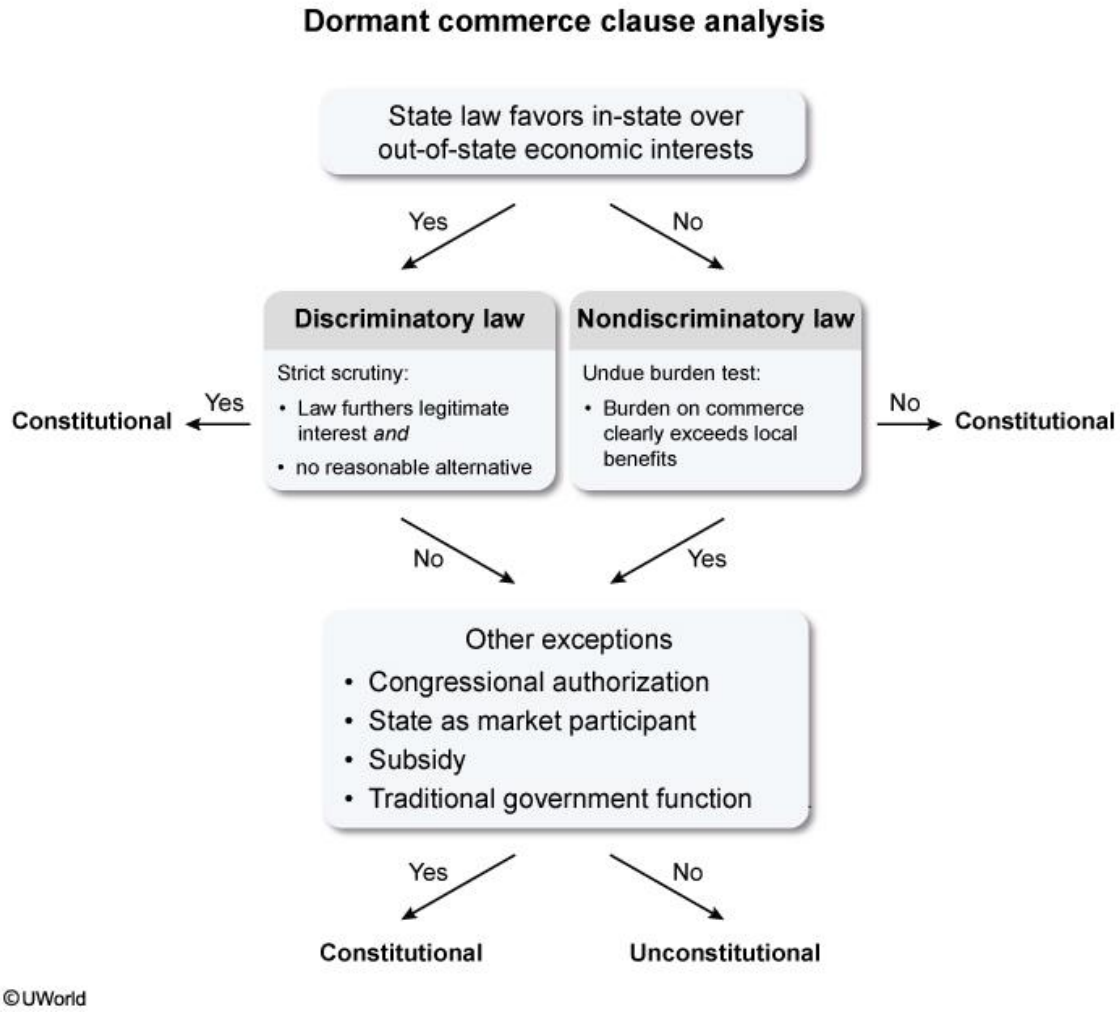
The dormant commerce clause—which prohibits states from discriminating against or otherwise unduly burdening interstate commerce—does not apply when a state acts as a market participant (eg, buyer or seller).

References

- U.S. Const. art. I, § 8, cl. 3 (commerce clause).
- Reeves, Inc. v. Stake, 447 U.S. 429, 439–40 (1980) (holding that a state acts as a market participant and is not subject to the dormant commerce clause when the state buys or sells goods or services).
- 15A Am. Jur. 2d Commerce § 33 (2019) (explaining that the dormant commerce clause does not apply when a state acts as a market participant as opposed to a market regulator).

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A state law prohibits the withdrawal of groundwater from any well within the state for use in another state. The express purpose of the law is to safeguard the supply of water for state citizens. Adoption of this state law followed enactment of a federal statute providing that "the transport of groundwater from one state to another may be restricted or prohibited in accordance with the laws of the state in which the water originates."

An association of water users in a neighboring state has filed suit to have the state law declared unconstitutional and enjoined on the ground that it violates the negative implications of the commerce clause.

Which of the following is the best argument supporting a motion to dismiss the lawsuit?

A. Groundwater located within a state is not itself an article of interstate commerce, and therefore state regulation of the withdrawal of such groundwater does not implicate the commerce clause.

B. The federal statute explicitly consents to a state's regulation of its groundwater in a way that would otherwise violate the negative implications of the commerce clause.

C. The law promotes a compelling state interest that outweighs any burden on interstate commercial activity that might result from this state regulation of its groundwater.

D. The Tenth Amendment reserves to the states plenary authority over the regulation of the natural resources located within their respective borders.

Explanation:

Under the negative implications of the commerce clause (ie, the **dormant commerce clause**), states are generally prohibited from unduly burdening interstate commerce. An **undue burden** can arise when a state **discriminates against interstate commerce** by favoring in-state over out-of-state economic interests. But such discrimination is permitted when **Congress explicitly consents** to the state's regulation.

Here, the state law discriminates against interstate commerce by prohibiting the withdrawal of in-state groundwater for out-of-state use. But since this law was adopted after the enactment of a federal statute that *explicitly* consents to such a regulation, the state law does not violate the negative implications of the commerce clause. Therefore, this is the best argument supporting the state's motion to dismiss the lawsuit.

(Choice A) An article of interstate commerce is anything that can be sold, exchanged, or transported between states—including natural resources like groundwater.

(Choice C) A *nondiscriminatory* state law is justified if the burdens on interstate commerce do not clearly exceed the law's local benefits. But a *discriminatory* state law (as seen here) cannot be justified on this basis.

(Choice D) The Tenth Amendment reserves to the states all powers that the Constitution does not expressly grant to the federal government—including the power to regulate in-state natural resources. But this power is not plenary (ie, absolute) since states must comply with other constitutional provisions (eg, the dormant commerce clause).

Educational objective:

A state law that would ordinarily violate the dormant commerce clause is valid if an exception exists—eg, when Congress explicitly consents to such a law.

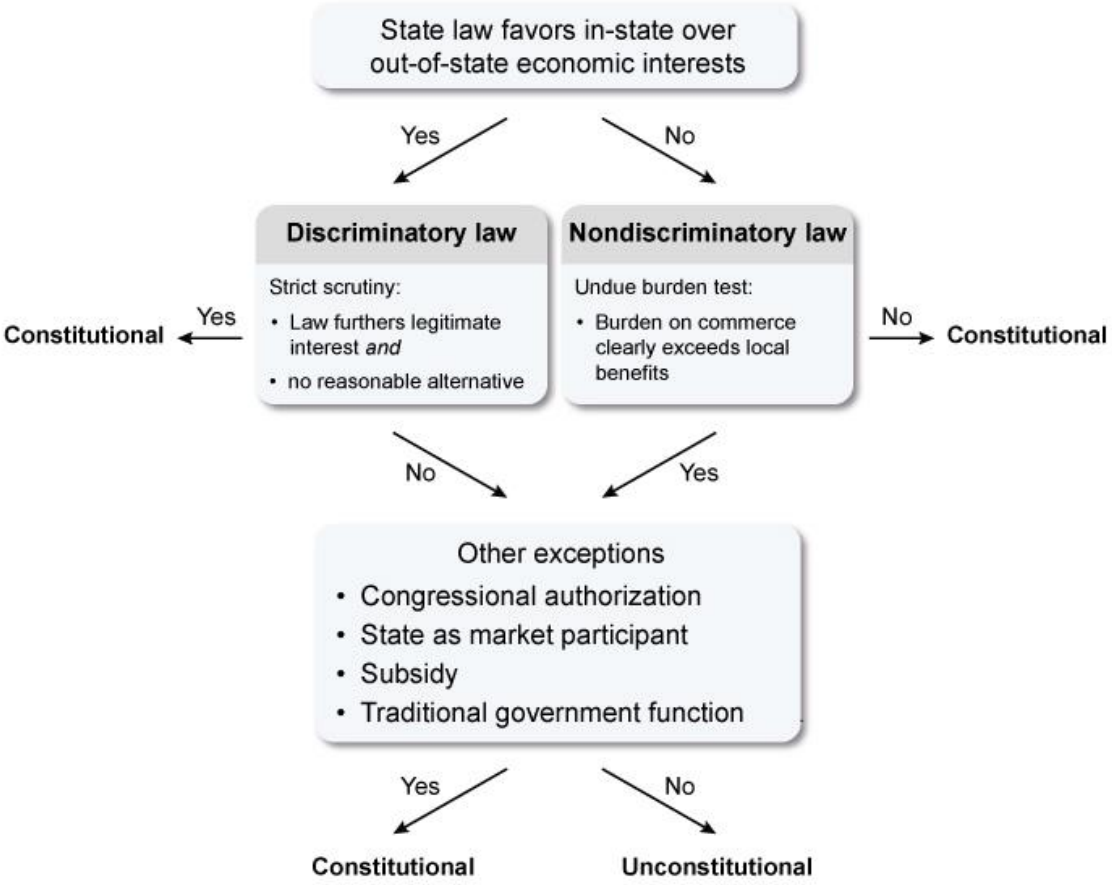
References

- U.S. Const. art. I, § 8, cl. 3 (commerce clause).
- Ne. Bancorp, Inc. v. Bd. of Governors of Fed. Reserve Sys., 472 U.S. 159, 174 (1985) (asserting that states can discriminate against interstate commerce when Congress authorizes such action).

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Dormant commerce clause analysis



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The childhood home of a former U.S. president is part of a national park located in a city. The National Park Service entered into a contract with an independent antique collector to acquire items owned by residents of the city during the former president's lifetime. According to the contract, the collector purchases items and then sells them to the Park Service at a price equal to the collector's cost plus a 10% commission. Purchases by antique collectors are ordinarily subject to the sales tax of the state in which the city is located.

The collector has filed suit in state court to enjoin collection of the tax on these purchases for the Park Service, claiming that the sales tax is unconstitutional as applied to them.

Should the state court issue the injunction?

A. No, because as the purchaser of the antiques, the collector, rather than the federal government, is liable for the tax.

B. No, because the suit is within the exclusive jurisdiction of the federal courts.

C. Yes, because the federal government is contractually obligated to pay the amount of the sales tax when the government covers the collector's cost of the antiques.

D. Yes, because under the supremacy clause, the federal program to acquire the antiques preempts the state sales tax on the purchase of these items.

Explanation:

Under the Article VI supremacy clause, the federal government is generally immune from direct taxation by the states. This is because such taxes could hinder or destroy the operations of the federal government. But **states can tax** the **federal government's *affiliates***, including persons or entities employed by or doing business with the federal government (eg, contractors—as seen here). This is true even if the cost of the tax is ultimately passed on to the federal government. As a result, an affiliate must pay these taxes **unless**:

- Congress has granted the affiliate **immunity**
- the tax **discriminates** against the federal government or the affiliate *or*
- the tax **substantially interferes** with the affiliate's **federal purpose or duties**—eg, when a high tax burden makes it impossible for the affiliate to accomplish its federal functions.

Here, the independent antique collector (federal government affiliate) is responsible for paying the state sales tax when purchasing items to sell to the National Park Service. Although the federal government is contractually obligated to pay the amount of the sales tax when it covers the collector's cost, this is not a direct tax **(Choice C)**. And since (1) Congress has not granted the collector immunity, (2) the tax is nondiscriminatory, and (3) there is no indication that it imposes a prohibitively high tax burden, the state should not be enjoined from collecting this tax.

(Choice B) Federal courts do not have *exclusive* jurisdiction over suits arising under federal law (as seen here) since state courts also have jurisdiction over such suits.

(Choice D) The supremacy clause also allows federal law to preempt conflicting state law. But there is no *direct* conflict here since the antique collector can pay the sales tax without violating federal law. And there is no *indirect* conflict since the collector can still acquire antiques to accomplish the federal program's purpose.

Educational objective:

States can tax federal government affiliates (eg, employees) unless (1) Congress granted the affiliate immunity, (2) the tax is discriminatory, or (3) the tax substantially interferes with the affiliate's federal purpose or duties.

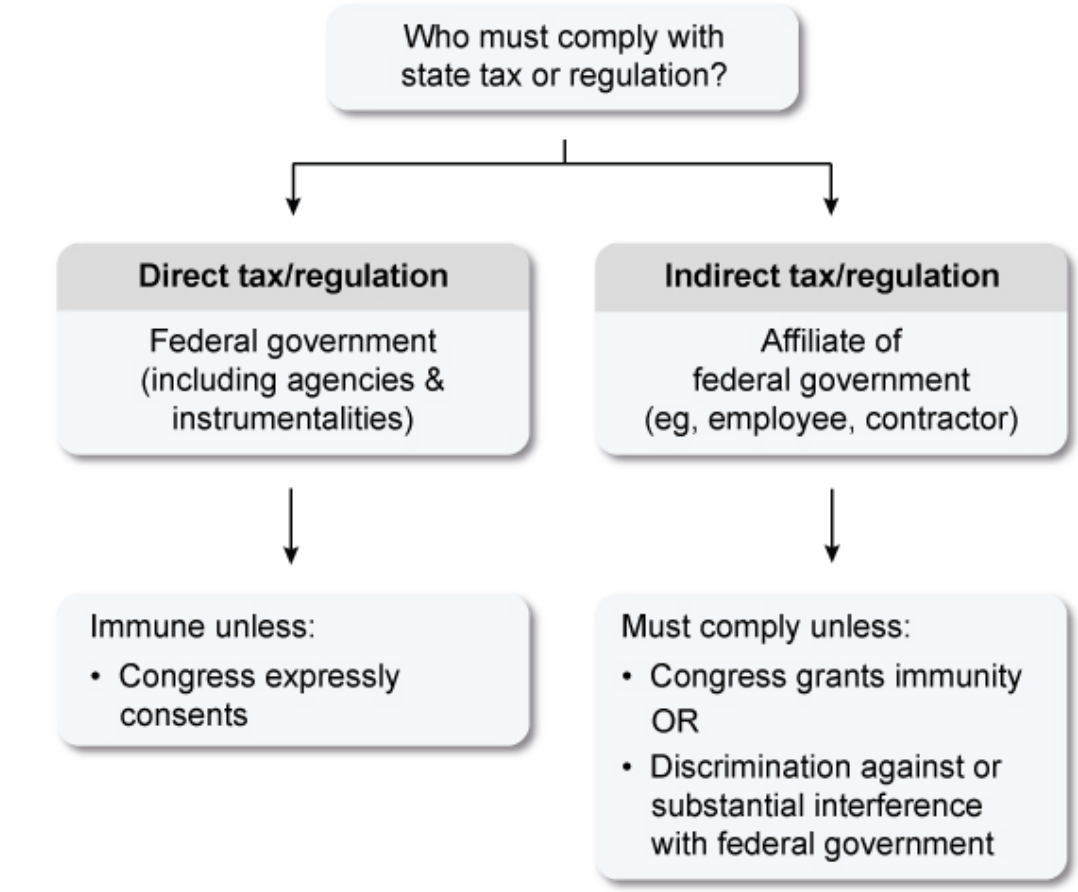
References

- Alabama v. King & Boozer, 314 U.S. 1, 8–9 (1941) (holding that a state can tax a federal contractor even if the tax is passed on to the federal government).

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Federal immunity from state tax/regulation



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In response to massive layoffs of employees of automobile assembly plants located in State A, the state legislature enacted a statute which prohibits the parking of automobiles manufactured outside of the United States in any parking lot or parking structure located within State A. This statute does not apply to parking on public streets.

Which of the following is the strongest argument with which to challenge the constitutionality of this statute?

A. The statute denies the owners of foreign-made automobiles the equal protection of the laws.

B. The statute deprives the owners of foreign-made automobiles of liberty or property without due process of law.

C. The statute imposes an undue burden on foreign commerce.

D. The statute is inconsistent with the privileges or immunities clause of the Fourteenth Amendment.

Explanation:

Dormant commerce clause

(state regulation of interstate commerce)

Type of regulation	Examples	Standard
Discriminatory (favors in-state interests)	• Taxing out-of-state products more heavily • Requiring use of in-state products/services	Unconstitutional unless: • furthers legitimate state interest *and* • no reasonable alternative
Nondiscriminatory (otherwise burdensome)	• Prohibiting all commercial vehicles on state highways • Overly strict requirements for all commercial shipments	Unconstitutional if: • burden clearly exceeds local benefits

The commerce clause gives Congress extensive authority to regulate interstate and foreign commerce. The negative implication of this clause (ie, the **dormant commerce clause**) prohibits states from discriminating against or otherwise unduly burdening interstate or foreign commerce. Therefore, **state laws** that **discriminate against *interstate* commerce** by favoring in-state over out-of-state interests are invalid unless:

- the law furthers a **legitimate, noneconomic state interest** (eg, public health) *and*
- **no reasonable alternative** exists to achieve that interest.

State laws that **discriminate against *foreign* commerce** are subject to even **greater scrutiny** due to the federal government's substantial interest in speaking with one voice in foreign affairs.

Here, the state statute discriminates against foreign commerce by preventing owners of foreign-made automobiles from parking in lots or structures in the state. This is to encourage consumers to buy domestic-made automobiles, many of which are manufactured in State A. And since the statute furthers an *economic* state interest, it unduly burdens foreign commerce. Therefore, this is the strongest argument to challenge the statute's constitutionality.

(Choices A & B) Discriminatory laws implicate the constitutional guarantee of equal protection of the laws. And a law cannot deprive persons of a life, liberty, or property interest without due process of law. But such laws are almost always upheld when they do not impact a fundamental right or protected class (as seen here) since they need only pass rational basis scrutiny.

(Choice D) The Fourteenth Amendment privileges or immunities clause bars states from depriving individuals of the very limited rights of national citizenship—none of which apply here.

Educational objective:

State laws that discriminate against foreign commerce are reviewed with the utmost scrutiny and are almost always invalid since it is imperative that the country speak with one voice in foreign affairs.

References

- U.S. Const. art. I, § 8, cl. 3 (commerce clause).
- South-Central Timber Dev., Inc. v. Wunnicke, 467 U.S. 82, 99–100 (1984) (explaining that state discrimination against foreign commerce is subject to greater scrutiny than state discrimination against interstate commerce).

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A man contracted with a moving company to ship household goods from the man's old home in State A to his new home in State B.

A federal statute provides that all liability of an interstate mover to a shipper for loss of or damage to the shipper's goods in transit is governed exclusively by the contract between them. The statute also requires the mover to offer a shipper at least two contracts with different levels of liability.

In full compliance with that federal statute, the moving company offered the man a choice between two shipping agreements that provided different levels of liability on the part of the moving company. The more expensive contract provided that the moving company was fully liable in case of loss or damage. The less expensive contract limited the moving company's liability in case of loss or damage to less than full value. The man voluntarily signed the less expensive contract, fixing the moving company's liability at less than the full value of the shipment.

The moving company's truck was involved in an accident in State B. The accident was entirely a product of the negligence of the moving company's driver. The man's household goods were destroyed. In accordance with the contract, the moving company reimbursed the man for less than the full value of the goods.

The man then brought suit against the moving company under the tort law of State B claiming that he was entitled to be reimbursed for the full value of the destroyed goods. The moving company filed a motion to dismiss.

In this suit, what action should the court take?

A. Deny the motion to dismiss, because it is unconstitutional for a federal statute to authorize the moving company to contract out of any degree of liability for its own negligence.

B. Deny the motion to dismiss, because the full faith and credit clause of the Constitution requires that state tort law be given effect.

C. Dismiss the case, because the contractual relationship between the man and the moving company is governed by the obligation of contracts clause of the Constitution.

D. Dismiss the case, because the federal statute governing liability of interstate carriers is the supreme law of the land and preempts state tort law.

Explanation:

The federal government and states share many powers, so they often regulate the same subject matter. But under the supremacy clause, the **U.S. Constitution, federal laws, and treaties** are the **supreme law of the land**. As a result, they **preempt** (ie, supersede) **conflicting state laws**, state constitutions, and local laws.

Here, the man and the moving company entered into a contract that *limited* the moving company's liability. The man then sued under state tort law to hold the moving company *fully* liable. But a ruling in the man's favor would conflict with a federal statute requiring that such disputes be governed exclusively by their contract. And since the federal statute is the supreme law of the land and preempts state tort law, the court should dismiss the case.

(Choice A) The federal statute *can* authorize the moving company to contract out of any degree of liability for its own negligence. This is because the commerce clause gives Congress extensive power to regulate nearly any activity involving two or more states—including an interstate mover's degree of liability.

(Choice B) The Article IV full faith and credit clause requires states to respect public acts, records, and judicial proceedings of all other states. But it does not require courts to give effect to state laws that conflict with federal law (as seen here).

(Choice C) The contracts clause restricts the ability of *state* legislatures to *impair* existing contracts. But this clause does not apply to Congress or *federal* statutes that *enforce* existing contracts (as seen here).

Educational objective:

Under the supremacy clause, the U.S. Constitution, federal laws, and treaties preempt conflicting state laws, state constitutions, and local laws.

References

- U.S. Const. art. VI, cl. 2 (supremacy clause).
- Allis-Chalmers Corp. v. Lueck, 471 U.S. 202, 210–11 (1985) (holding that a federal law governing contracts preempts a conflicting state law on the same subject).
- 16A Am. Jur. 2d Constitutional Law § 235 (2019) (discussing tests to determine if there is a conflict between federal and state law).

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Supremacy Clause



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A federal statute provides that the cities in which certain specified airports are located may regulate the rates and services of all limousines that serve those airports, without regard to the origin or destination of the passengers who use the limousines.

A city in State A is located adjacent to a city in State B. The airport serving both of them is located in the State A city and is one of those airports specified in the federal statute. The State A city council has adopted a rule that requires any limousines serving the airport to charge only the rates authorized by the State A city council.

An airline limousine service has a lucrative business transporting passengers between the State B city and the airport in the State A city, at much lower rates than those required by the State A city council. It transports passengers in interstate traffic only; it does not provide local service within the State A city. The new rule adopted by the State A city council will require the limousine service to charge the same rates as limousines operating only in the State A city.

Must the airline limousine service comply with the new rule of the State A city council?

A. No, because the airline limousine service is engaged in interstate commerce and this rule is an undue burden on that commerce.

B. No, because the rule would arbitrarily destroy a lucrative existing business and, therefore, would amount to a taking without just compensation.

C. Yes, because Congress has authorized this form of regulation by the State A city and, therefore, removed any constitutional impediments to it that may have otherwise existed.

D. Yes, because the airport is located in the State A city and, therefore, its city council has exclusive regulatory authority over all transportation to and from the airport.

Explanation:

The commerce clause empowers Congress to regulate interstate commerce—ie, nearly all activities involving two or more states. This clause also carries a negative implication (ie, the **dormant commerce clause**) that **prohibits states and municipalities** from discriminating against or otherwise **unduly burdening interstate commerce**. But **Congress** can exercise its broad commerce power to **explicitly authorize** conduct that would otherwise violate the dormant commerce clause.

Here, the State A city council rule requires all airport limousine services to charge only the rates authorized by the city council. It can be presumed that this rule unduly burdens interstate commerce because it regulates economic activities between State A and State B. But since Congress explicitly authorized this type of regulation by the State A city (via the federal statute), any constitutional impediments that may have existed were removed **(Choice A)**. As a result, the interstate limousine service must comply with the State A city rule.

(Choice B) A regulation that destroys *all* economic value of a business will be deemed a taking. Here, there is no evidence that the interstate limousine service's business will be destroyed by the higher rates, so the State A city council rule is not a taking. And even if it was, this would only allow the limousine service to seek just compensation (ie, fair market value at the time of the taking)—not to ignore the rule.

(Choice D) The city council's regulatory authority over transportation to and from the airport located in the city is *not* exclusive. Instead, this authority is shared with State A and the federal government.

Educational objective:

Congress can explicitly authorize states and municipalities to act in ways that would otherwise violate the dormant commerce clause.

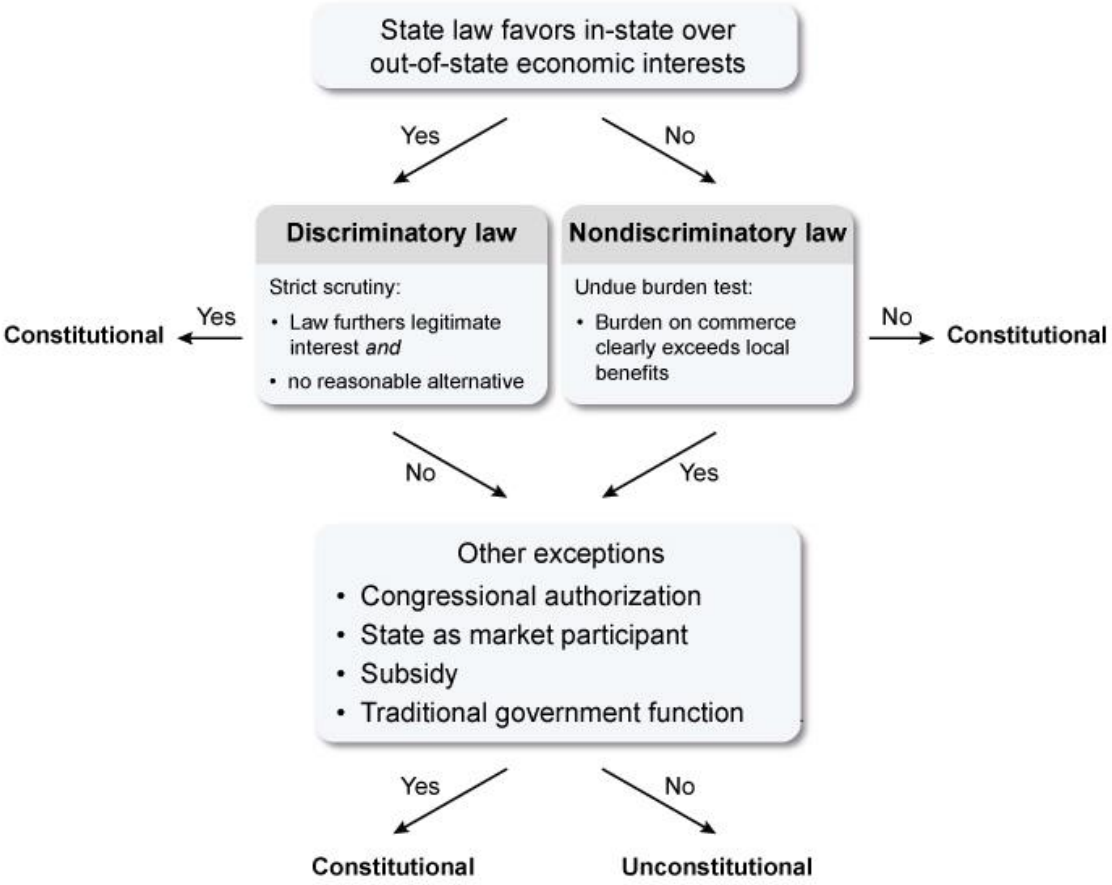
References

- U.S. Const. art. I, § 8, cl. 3 (commerce clause).
- Ne. Bancorp v. Bd. of Governors of Fed. Reserve Sys., 472 U.S. 159, 174 (1985) (setting forth that states can discriminate against interstate commerce when Congress authorizes such action).
- 15A Am. Jur. 2d Commerce § 27 (2019) (explaining that Congress can authorize state action that would ordinarily violate the dormant commerce clause).

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Dormant commerce clause analysis



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The United States Department of the Interior granted a man the food and drink concession in a federal park located in a state. The man operated his concession out of federally owned facilities in the park. The federal statute authorizing the Interior Department to grant such concessions provided that the grantees would pay only a nominal rental for use of these federal facilities because of the great benefit their concessions would provide to the people of the United States.

The state legislature enacted a statute imposing an occupancy tax on the occupants of real estate within that state that is not subject to state real estate taxes. The statute was intended to equalize the state tax burden on such occupants with that on people occupying real estate that is subject to state real estate taxes.

Pursuant to that statute, the state's Department of Revenue attempted to collect the state occupancy tax from the man because the federal facilities occupied by the man were not subject to state real estate taxes.

The man sued to invalidate the state occupancy tax as applied to him.

What is the strongest constitutional ground upon which the man could challenge the occupancy tax?

A. The tax violates the commerce clause by unduly burdening the interstate tourist trade.
B. The tax violates the equal protection clause of the Fourteenth Amendment because the tax treats him less favorably than federal concessionaires in other states who do not have to pay such occupancy taxes.
C. The tax violates the privileges or immunities clause of the Fourteenth Amendment by interfering with the fundamental right to do business on federal property.
D. The tax violates the supremacy clause of Article VI and the federal statute authorizing such concessions.

Explanation:

Federal immunity from state & local taxes/regulations

Tax/regulation	Definition	Permissibility
Direct	Applies to federal government—including its agencies & instrumentalities	*Immune* unless: • Congress consents to tax/regulation
Indirect	Applies to affiliates—including persons/entities employed by or doing business with federal government	*Not immune* unless: • Congress grants immunity *or* • tax/regulation discriminates against or substantially interferes with federal duties

The **supremacy clause immunizes** the **federal government**, including its agencies and instrumentalities, **from state and municipal taxation** unless Congress consents. But the federal government's **affiliates**—ie, persons or entities employed by or doing business with the federal government—are **only immune if**:

- **Congress grants** the affiliate immunity
- the **tax discriminates** against the federal government or its affiliates *or*
- the **tax substantially interferes** with the affiliate's **federal purpose or duties**.

Here, the state attempted to collect an occupancy tax from the man—an affiliate of the federal government who was granted the food and drink concession in a federal park. The federal statute authorizing this grant provided that the man would only pay nominal rent due to the great public benefit provided by concessions. And since the state tax may substantially interfere with the man's federal purpose or duties by raising his costs, his strongest argument is that the tax violates the supremacy clause and the federal statute as applied to him.

(Choice A) Under the dormant commerce clause, state taxes are invalid if they unduly burden interstate commerce. But the state tax here does not unduly burden the interstate tourist trade because it (1) applies to activities with a *substantial nexus* to the state, (2) is *fairly apportioned*, (3) does *not discriminate* against interstate commerce, and (4) is *fairly related* to the services and benefits provided by the state.

(Choice B) The Fourteenth Amendment equal protection clause is triggered when a state treats similarly situated persons differently. But state laws that do not substantially impact a fundamental right or intentionally discriminate against a protected class (as seen here) are almost always upheld under mere rational basis scrutiny.

(Choice C) The Fourteenth Amendment privileges or immunities clause bars states from interfering with the very limited rights of national citizenship—which do not include a right to do business on federal property.

Educational objective:

The federal government's affiliates are subject to state and municipal taxation unless (1) Congress grants them immunity, (2) the tax is discriminatory, or (3) the tax substantially interferes with their federal purpose or duties.

References

- U.S. Const. art. VI, cl. 2 (supremacy clause).
- McCulloch v. Maryland, 17 U.S. 316, 436 (1819) (establishing federal immunity from state taxation and regulation).
- United States v. New Mexico, 455 U.S. 720, 735 n.11 (1982) (explaining that state taxes on affiliates of the federal government must be nondiscriminatory and cannot substantially interfere with its activities).

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A state spends several million dollars a year on an oyster conservation program. As part of that program, the state limits, by statute, oyster fishing in its coastal waters to persons who have state oyster permits. In order to promote conservation, it issues only a limited number of oyster permits each year. The permits are effective for only one year from the date of their issuance and are awarded on the basis of a lottery, in which there is no differentiation between resident and nonresident applicants. However, each nonresident who obtains a permit is charged an annual permit fee that is $5 more than the fee charged residents.

A large fishing company operates from a port in another state and is incorporated in that other state. Each of the company's boats has a federal shipping license that permits it "to engage in all aspects of the coastal trade, to fish and to carry cargo from place to place along the coast, and to engage in other lawful activities along the coast of the United States." These shipping licenses are authorized by federal statute. Assume no other federal statutes or administrative rules apply.

Although it had previously held a state oyster permit, the company did not obtain a permit in that state's lottery this year.

Which of the following is the strongest argument that can be made in support of a continued right of the company to fish for oysters this year in the state's coastal waters?

A. The company has a right to fish for oysters in the state's waters despite the state law because it holds a federal shipping license.

B. The refusal to grant the company a permit this year is a taking of its property without due process of law because the company previously held a state oyster permit and the state knows that the company is engaged in a continuing business operation.

C. The state law denies the company the privileges and immunities of state citizenship because it provides higher permit charges for nonresidents.

D. The state law is an undue burden on interstate commerce because it provides higher permit charges for nonresidents.

Explanation:

Under the **supremacy clause**, the provisions of the **U.S. Constitution, federal laws, and treaties** are the **supreme law of the land**. As a result, these provisions **preempt conflicting** provisions in state constitutions, **state laws**, and local laws—rendering such provisions void and without effect.

Here, the fishing company possesses a shipping license authorized by a federal statute that *permits* it to fish in the state's waters. But the state statute *prohibits* the company from fishing since it lacks a state-issued permit. Since these statutes conflict, the company's strongest argument is that its federal shipping license gives it a right to fish in the state's waters despite the state law.

(Choice B) The Fourteenth Amendment due process clause requires a state to provide notice and a meaningful opportunity to be heard to those it deprives of life, liberty, or property. But the company has no property interest in its *expired* state permit, so the state did not violate this clause.

(Choice C) The Article IV privileges and immunities clause prohibits states from discriminating against *citizens* of other states by denying them a right of state citizenship. But noncitizens and corporations (like the fishing company) are not considered citizens under this clause. Therefore, this clause does not apply.

(Choice D) The dormant commerce clause generally bars states from discriminating against or otherwise unduly burdening interstate commerce. But discrimination is permitted when the state participates in the market—ie, buys or sells goods or services. And since the state is *selling* permits to fish in its coastal waters, it can charge nonresidents more for a permit.

Educational objective:

Under the supremacy clause, the U.S. Constitution, federal laws, and treaties preempt conflicting state constitutions, state laws, and local laws.

References

- U.S. Const. art. VI, cl. 2 (supremacy clause).
- Douglas v. Seacoast Prods., Inc., 431 U.S. 265, 283 (1977) (holding that a state fishing law that prohibits federally licensed ships from fishing in the state's waters violates the supremacy clause).

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Supremacy Clause



A federally owned and operated office building located in a state is heated with a new, pollution-free heating system. However, in the coldest season of the year, this new system is sometimes insufficient to supply adequate heat to the building. The federal appropriation statute providing the money for construction of the new heating system permitted use of the old, pollution-generating system when necessary to supply additional heat. When the old heating system operates (only about two days in any year), the smokestack of the building emits smoke that exceeds the state's pollution-control standards.

May the operators of the federal office building be prosecuted successfully by state authorities for violating that state's pollution-control standards?

A. No, because the operations of the federal government are immune from state regulation in the absence of federal consent.

B. No, because the violations of the state pollution-control standards involved here are so insignificant that they are beyond the legitimate reach of state law.

C. Yes, because the regulation of pollution is a joint concern of the federal government and the state and, therefore, both of them may regulate conduct causing pollution.

D. Yes, because the regulation of pollution is a legitimate state police power concern.

Explanation:

Under the Article VI supremacy clause, the U.S. Constitution, federal laws, and treaties are the supreme law of the land. As a result, the **operations of the federal government**—including those of its agencies and instrumentalities—are **completely immune** from **state regulation** in the **absence of congressional consent**. And since Congress did not consent to the state's pollution-control standards in this instance, the operators of the federal office building cannot be successfully prosecuted for violating them.

(Choice B) All federal government violations of state regulations—insignificant or otherwise—are beyond the reach of state law unless Congress consented to the regulation.

(Choice C) Both the federal and state governments may regulate pollution. But the supremacy clause prevents states from enforcing their regulations against the federal government without congressional consent.

(Choice D) The Tenth Amendment reserves to states the broad police power to enact and enforce laws that are reasonably related to protecting public health, safety, and welfare—eg, regulating pollution. But when exercising this power, states cannot violate other constitutional provisions like the supremacy clause (as seen here).

Educational objective:

The operations of the federal government—including those of its agencies and instrumentalities—are completely immune from state regulation unless Congress consents.

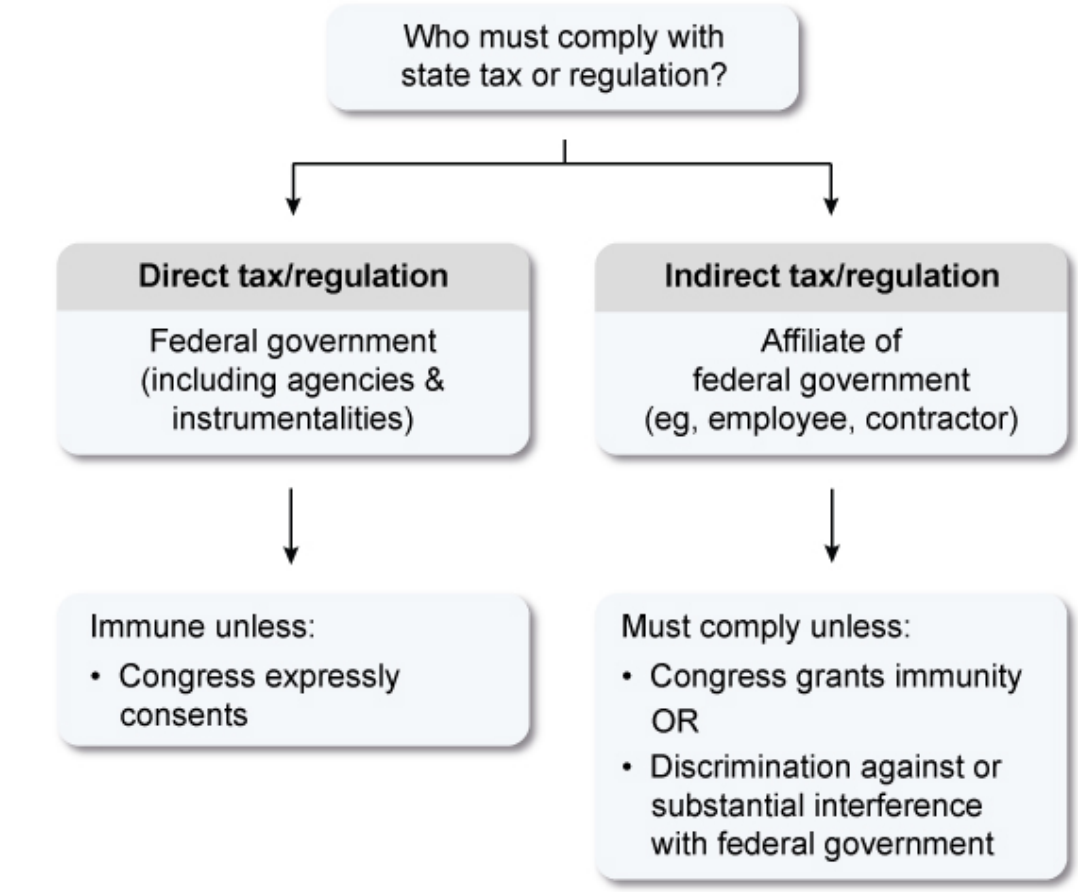
References

- Arizona v. California, 283 U.S. 423, 451 (1931) (explaining that "[t]he United States may perform its functions without conforming to the police regulations of a State").

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Federal immunity from state tax/regulation



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Congress enacted a statute that annually awards federal funds to states that must be used to improve the quality of public education. Every state agreed to participate in this federal program. On average, the funds awarded by the federal program comprise 15% of a state's overall annual budget.

Several years later, Congress enacted another statute that expanded this federal program to reduce the academic achievement gap between high-performing and low-performing public schools. A provision of this federal statute requires states to administer a statewide academic test to students that is then used to assess the academic performance of public schools. States that choose not to comply with this testing requirement will no longer receive any federal funding from the program and may suffer budgetary shortfalls as a result.

A state that has chosen not to comply with the testing requirement has sued the federal government, arguing that the statute's provision is unconstitutional.

Which of the following is the state's best argument?

A. Incentivizing states to adopt federal policies exceeds the scope of Congress's spending power.
B. The condition placed on the receipt of federal funding is unduly coercive.
C. The funding of public education has traditionally been performed by the states.
D. The Tenth Amendment grants states immunity from direct federal regulation.

Explanation:

Conditional federal funding

(Article I, section 8 spending clause)

Conditions must meet all the following criteria:

- clearly stated & unambiguous
- reasonably related to federal interest in funded program
- do not require states to engage in unconstitutional activity
- do not unduly coerce states into accepting

The **taxing and spending clause** gives Congress broad discretion to spend for the general welfare, such as improving the quality of public education. Congress can use this spending power to incentivize states to adopt federal policies by **placing appropriate conditions** on the **receipt of federal funds (Choice A)**. A condition is **appropriate when** it:

- is **clear and unambiguous** (eg, requiring states to comply with the testing requirement or lose federal funding)
- is **reasonably related** to the purpose for which the funds will be expended (eg, requiring academic testing to reduce the academic achievement gap)
- does **not require** recipients to engage in **unconstitutional activity** (eg, developing and administering a statewide academic test is not unconstitutional) *and*
- is **not unduly coercive**.

A condition is unduly coercive if it amounts to a "gun to the head" of a state. Although SCOTUS has not provided concrete guidance on how to make this determination, it has invalidated a condition that would have withheld 10% of a state's overall budget.*

Here, the condition on the receipt of federal funding would withhold 15% of an average state's annual budget. This amounts to a "gun to the head" and is unduly coercive since states that do not comply with this condition may suffer significant budgetary shortfalls. Therefore, this is the state's best argument that the provision is unconstitutional.

*In contrast, SCOTUS has upheld a condition that withheld less than 1% of a state's overall budget.

(Choice C) Although the funding of public education has traditionally been performed by the states, the spending clause gives Congress the power to spend for the general welfare—including public education.

(Choice D) The Tenth Amendment grants states immunity from federal regulations that compel or unduly coerce them to enact state laws or enforce federal laws. However, states must comply with other types of direct federal regulation (eg, EPA pollution standards).

Educational objective:

Congress may use its spending power to regulate states by placing conditions on the receipt of federal funds that (1) are clear and unambiguous, (2) are reasonably related to the purpose for which the funds will be expended, (3) do not require recipients to engage in unconstitutional activity, and (4) are not unduly coercive.

SCOTUS = Supreme Court of the United States; **EPA** = Environmental Protection Agency.

References

- U.S. Const. art. I, § 8, cl. 1 (taxing and spending clause).
- South Dakota v. Dole, 483 U.S. 203, 212 (1987) (holding that Congress can place a condition on the receipt of federal highway funding that amounts to less than 1% of a state's overall budget).
- Nat'l Fed'n of Indep. Bus. v. Sebelius, 567 U.S. 519, 581–82 (2012) (explaining that Congress cannot place a condition on the receipt of Medicaid funds that amounts to 10% of a state's overall spending).

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Widgets are manufactured wholly from raw materials mined and processed in a state. The only two manufacturers of widgets in the United States are also located in that state. However, their widgets are purchased by retailers located in every state.

The state legislature is considering the adoption of a statute that would impose a tax solely on the manufacture of widgets. The tax is to be calculated at 3% of their wholesale value.

Which of the following arguments would be LEAST helpful to the state in defending the constitutionality of this proposed state tax on widgets?

A. A tax on the manufacture of widgets may be imposed only by the state in which the manufacturing occurs and, therefore, it is not likely to create the danger of a multiple tax burden on interstate commerce.

B. At the time widgets are manufactured and taxed they have not yet entered the channels of interstate commerce.

C. Because of the powers reserved to them by the Tenth Amendment, states have plenary authority to construct their tax system in any manner they choose.

D. The economic impact of this tax will be passed on to both in-state and out-of-state purchasers of widgets and, therefore, the tax is wholly nondiscriminatory in its effect.

Explanation:

State taxation of interstate commerce

(*Complete Auto* test)

State tax on interstate commerce valid if tax:

- applied to person or activity with *substantial nexus* to state
- *fairly apportioned* to avoid taxing interstate activities performed in other states
- does *not discriminate* against interstate commerce AND
- *fairly related* to services & benefits provided by state

Under the **Tenth Amendment**, any power that the Constitution does not expressly grant to the federal government—including the power to construct a state tax system—is **reserved to the states**. But here, this is the *least* helpful argument for the state because this power is **not plenary** (ie, absolute). Instead, states must comply with other constitutional provisions. For example, a **state tax on interstate commerce** (as seen here) must comply with the **dormant commerce clause** and is only valid if it:

- is applied to persons or activities with a **substantial nexus** to the state—eg, widgets manufactured from raw materials mined and processed in the state
- is **fairly apportioned** to avoid taxing interstate activities performed in other states and thereby imposing multiple tax burdens—eg, tax imposed only in state where manufacturing occurs **(Choice A)**, tax applied before widgets enter channels of interstate commerce **(Choice B)**
- does **not discriminate** by favoring in-state over out-of-state entities—eg, economic impact passed on to both in-state and out-of-state purchasers **(Choice D)** *and*
- is **fairly related** (ie, reasonable compared) to services and benefits provided by the state—eg, police protection, public roads.

Educational objective:

Under the dormant commerce clause, states cannot tax interstate commerce unless the tax is (1) levied on persons or activities that have a substantial nexus with the state, (2) fairly apportioned, (3) nondiscriminatory, and (4) fairly related to state-provided services or benefits.

References

- Complete Auto Transit, Inc. v. Brady, 430 U.S. 274, 279 (1977) (setting forth the four-factor test used to determine if a state tax violates the commerce clause).

- 71 Am. Jur. 2d State and Local Taxation § 157 (2019) (explaining how state taxation cannot unduly burden interstate commerce).

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Congressional hearings determined that the use of mechanical power hammers is very dangerous to the persons using them and to persons in the vicinity of the persons using them. As a result, Congress enacted a statute prohibiting the use of mechanical power hammers on all construction projects in the United States.

Subsequently, a study conducted by a private research firm concluded that nails driven by mechanical power hammers have longer-lasting joining power than hand-driven nails. After learning about this study, a city council enacted an amendment to its building safety code requiring the use of mechanical power hammers in the construction of all buildings intended for human habitation.

Is this amendment to the city's building safety code constitutional?

A. No, because it conflicts with the provisions of the federal statute.

B. No, because it was enacted subsequent to the federal statute.

C. Yes, because the federal statute does not expressly indicate that it supersedes inconsistent state or local laws.

D. Yes, because the long-term safety of human habitations justifies some additional risk to the people engaged in their construction.

Explanation:

It is common for the federal government to regulate the same subject matter as states and/or municipalities because these governments share many of the same powers. But under the **supremacy clause**, federal law is the supreme law of the land. Therefore, a **federal law** can **preempt** (ie, supersede) conflicting state or municipal laws and render them void. One example is **implied conflict preemption**, which occurs when there is:

- **direct conflict** – a state/municipal law conflicts with a federal law to such a degree that it is **impossible** (or nearly impossible) for a person or entity **to comply with both laws** *or*
- **indirect conflict** – a state/municipal law **frustrates the accomplishment** of the **federal law's purpose**.

Here, the federal statute *prohibits* the use of mechanized hammers on all construction projects. But the city council amendment *requires* the use of such hammers on all construction projects for human habitation. These laws directly conflict since it is impossible for a company constructing human habitations in the city to comply with both laws. Therefore, the federal statute impliedly preempts the city council amendment and renders it unconstitutional.

(Choice B) In determining preemption, the timing of the laws is irrelevant. Therefore, it makes no difference whether the city council enacted the amendment before or after the federal statute.

(Choice C) Although the federal statute does not *expressly* state that it supersedes inconsistent state or local laws, it *impliedly* preempts them.

(Choice D) Federal laws always preempt inconsistent state and local laws—regardless of their justification.

Educational objective:

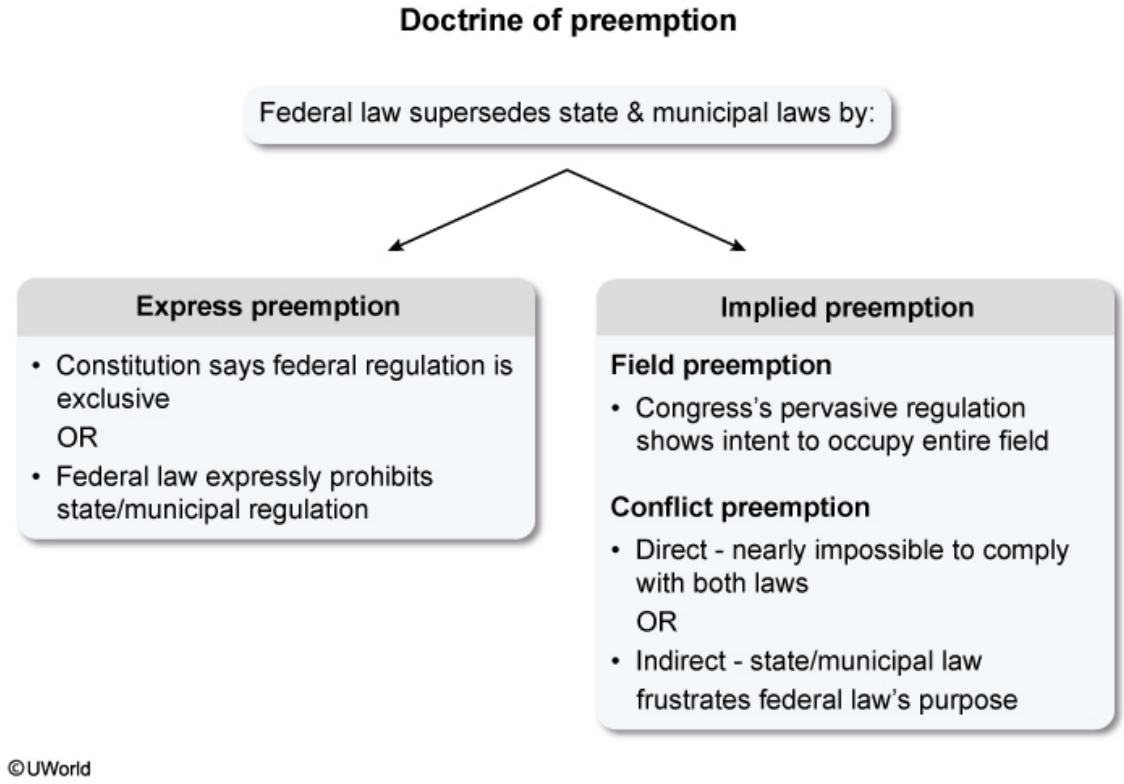
Implied conflict preemption exists when (1) it is impossible to comply with a federal law and a conflicting state/municipal law (ie, direct conflict) *or* (2) a state/municipal law frustrates the accomplishment of a federal law's purpose (ie, indirect conflict).

References

- English v. Gen. Elec. Co., 496 U.S. 72, 79 (1990) (stating that federal law preempts state law when "it is impossible for a private party to comply with both state and federal requirements").
- 16A Am. Jur. 2d Constitutional Law § 235 (2019) (explaining when federal and state laws conflict).

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A federal statute requires all owners of mineral springs to pay a sales tax on the mineral water they sell. A state that sells mineral water from the springs that it owns has refused to pay the tax. The United States has sued the state in federal court, seeking payment of the tax. The state has moved to dismiss the action.

Is the court likely to dismiss the action?

A. No, because Congress has unlimited power to tax and spend for the general welfare.

B. No, because the nondiscriminatory tax does not interfere with the essential functions of state government.

C. Yes, because the Eleventh Amendment prohibits states from being sued in federal court without the state's consent.

D. Yes, because the Tenth Amendment grants states immunity from all direct federal taxation.

Explanation:

Federalism

(power distribution between federal & state governments)

Constitutional provision	**Effect**
Article VI supremacy clause	• Prioritizes U.S. Constitution, treaties & federal laws over state constitutions & laws • Prohibits states from regulating/taxing federal government or its agencies/instrumentalities
Tenth Amendment	• Reserves all powers not assigned to federal government by U.S. Constitution to states/people • Prohibits federal government from requiring states to enact laws or enforce federal laws • Immunizes states from federal taxes that discriminate against states or unduly interfere with essential state functions

Article I grants **Congress** the broad **power to tax and spend** for the general welfare. But this power is not unlimited **(Choice A)**. Under the **Tenth Amendment**, Congress is prohibited from imposing **federal taxes on states** that:

- **discriminate against states** because the taxes apply to states and their agencies but not private individuals or entities *or*
- would **unduly interfere** with the **states' essential functions**, including property used for or income received from the state's performance of traditional government actions (eg, public schools, state parks).

However, the Tenth Amendment **does *not* immunize** states from **nondiscriminatory federal taxes** that apply to the public and private sectors and do not interfere with essential state functions **(Choice D)**.

Here, the federal sales tax is nondiscriminatory since it applies to *all* private and public owners of mineral springs who sell mineral water. The tax also does not unduly interfere with essential state functions because selling mineral water (or any other product) is a business action—not a traditional government action. As a result, the Tenth Amendment does not immunize the state from the tax, so the court is not likely to dismiss the action.

(Choice C) The Eleventh Amendment generally prohibits private parties and foreign governments from suing a state in federal court without the state's consent. However, this amendment does not bar actions brought by the United States (as seen here).

Educational objective:

The Tenth Amendment immunizes states from federal taxes that discriminate against states or unduly interfere with essential state functions.

References

- New York v. United States, 326 U.S. 572, 582 (1946) (holding that a state is not immune from a nondiscriminatory federal tax that does not interfere with essential state functions).

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The legislatures of several states entered into an agreement in which each state pledged to curb its pollution emissions. The agreement authorized a commission that contained a representative of each state to investigate how the states could reach their pollution emission goals and propose solutions for the states to adopt. The commission determined that each state needed to commit a fixed percentage of its energy consumption to clean energy sources, and each state enacted legislation that implemented the commission's suggestion. As a result, the states' demand for electricity produced by a company that uses coal-burning plants has significantly declined.

The company has filed suit against the commission in a federal district court, seeking a declaratory judgment that the states' agreement is unconstitutional.

Assume that no federal statute applies.

What action should the federal court take?

A. Dismiss the suit without reaching the merits, because the Eleventh Amendment bars suits of this kind in federal court.

B. Dismiss the suit without reaching the merits, because the suit presents a nonjusticiable political question.

C. Invalidate the states' agreement, because the states failed to obtain congressional consent.

D. Uphold the states' agreement, because the states validly entered into an interstate compact.

Explanation:

Congressional consent for interstate compacts

Required	States' political power increased at federal government's expense—eg, states: • cede territory to each other • exercise powers they cannot exercise on own
Not required	States do *not* encroach on federal government supremacy—eg, states: • enact reciprocal legislation for benefit of each state's residents (eg, state college tuition reciprocity) • form administrative body to study joint problems and make recommendations • create entity to operate transportation facility (eg, port authority)

States generally may enter into agreements with each other (ie, **interstates compacts**) without permission from the federal government.* However, the **compact clause requires** that states obtain **Congress's consent** for interstate compacts that **increase the compacting states' political power** at the expense of the federal government. This situation arises when the compact grants states or an administrative body powers that they could not exercise on their own.

Here, several states entered into an interstate compact to curb pollution emissions and created a commission that suggested that each state commit a fixed percentage of its energy consumption to clean energy sources. Each state did so. Since each state could have adopted energy guidelines without the commission's suggestion, the compact does not grant power to the states at the expense of the federal government. As a result, congressional consent was not required, and the federal court is likely to uphold the states' agreement **(Choice C)**.

*The compact clause also permits states to enter into agreements with foreign governments if Congress consents.

(Choice A) The Eleventh Amendment generally bars suits in federal court against state governments. However, it does not prohibit suits against commissions created by interstate compacts (as seen here).

(Choice B) The political-question doctrine prevents federal courts from hearing the merits of suits that present issues that (1) are reserved to the executive or legislative branch or (2) lack judicially manageable standards for resolution—neither of which are seen here.

Educational objective:

The compact clause requires states to obtain Congress's consent for agreements between the states (ie, interstate compacts) that increase the political power of the compacting states at the expense of the federal government.

References

- U.S. Const. art. I, § 10, cl. 3 (compact clause).
- U.S. Steel Corp. v. Multistate Tax Comm'n, 434 U.S. 452, 473–76 (1978) (holding that congressional consent was not required when an interstate compact granted powers that compacting states could exercise on their own).
- 72 Am. Jur. 2d States, Territories, and Dependencies § 10 (2020) (explaining when congressional consent is required for an interstate compact).

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A federal statute with inseverable provisions established a new five-member National Prosperity Board with broad regulatory powers over the operation of the securities, banking, and commodities industries, including the power to issue rules with the force of law. The statute provides for three of the board members to be appointed by the President with the advice and consent of the Senate. They serve seven-year terms and are removable only for good cause. The other two members of the board were designated in the statute to be the respective general counsel of the Senate and House of Representatives Committees on Government Operations. The statute stipulated that they were to serve on the board for as long as they continued in those positions.

Following all required administrative procedures, the board issued an elaborate set of rules regulating the operations of all banks, securities dealers, and commodities brokers. A securities company, which was subject to the board's rules, sought a declaratory judgment that the rules were invalid because the statute establishing the board was unconstitutional.

In this case, should the court rule that the statute establishing the National Prosperity Board is constitutional?

A. No, because all members of federal boards exercising executive powers must be appointed by the President or in a manner otherwise consistent with the appointments clause of Article II.

B. No, because all members of federal boards having broad powers that are quasi-legislative in nature, such as rulemaking, must be appointed by Congress.

C. Yes, because the necessary and proper clause authorizes Congress to determine the means by which members are appointed to boards created by Congress under its power to regulate commerce among the states.

D. Yes, because there is a substantial nexus between the power of Congress to legislate for the general welfare and the means specified by Congress in this statute for the appointment of board members.

Explanation:

Appointment of federal officers

(Art. II, § 2 appointments clause)

Type	Examples	Appointment
Principal	• Ambassador • Supreme Court justice • Cabinet official	Appointed by President (with Senate approval)
Inferior	• Independent counsel • Judicial clerk • Administrative law judge	Appointed by President (with Senate approval) *unless* Congress delegates appointment to: • President alone • federal courts *or* • heads of executive departments

Federal officers are persons who:

- hold a **continuing public office** (eg, for a term of years) *and*
- have significant discretionary authority to **administer and/or enforce laws** (ie, **executive powers**).

All federal officers must be **appointed by the President** or in a manner otherwise consistent with the Article II appointments clause. Under this clause, **Congress cannot appoint** federal officers.

Here, the National Prosperity Board comprises three members who serve seven-year terms and two who serve indefinitely—all of whom hold a continuing public office. And they all exercise executive powers since they have significant discretionary authority to issue rules with the force of law. As a result, they are federal officers who must be appointed by the President or in a manner otherwise consistent with the appointments clause. And since the applicable statute allows *Congress* to appoint two members, it is unconstitutional.

(Choice B) Congress may appoint persons to exercise quasi-legislative powers that are investigative or informative in nature. But in *Buckley v. Valeo*, the Supreme Court held that rulemaking is an administrative power that can only be exercised by federal officers (who can never be appointed by Congress).

(Choice C) The necessary and proper clause authorizes Congress to enact laws that are reasonably appropriate to carry out its express powers—including the power to regulate commerce among the states. But Congress cannot violate other constitutional provisions when doing so.

(Choice D) Article I, section 8 grants Congress the power to tax and spend for the general welfare. But Congress is not taxing or spending here, so this power does not apply.

Educational objective:

Federal officers are persons who hold a continuing public office AND have significant discretionary authority to administer and/or enforce laws (ie, executive powers). They can only be appointed by the President or in a manner otherwise consistent with the Article II appointments clause—never by Congress.

References

- Buckley v. Valeo, 424 U.S. 1, 132–33 (1976) (holding that federal officers must be appointed by the President or in a manner consistent with the appointments clause, which does not allow congressional appointments).
- Lucia v. SEC, 138 S. Ct. 2044, 2053 (2018) (describing the requirements for a federal officer).

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A drawbridge owned, operated, and maintained by a county government malfunctioned. A portion of the drawbridge fell and collided with a boat owned by a man who resides in another state. The man filed a lawsuit against the county in a federal district court to recover for the damage caused to his boat. The county has moved to dismiss the suit.

Is the court likely to grant the county's motion?

A. No.

B. Yes, because the Eleventh Amendment prohibits suits against county governments in federal court.

C. Yes, because the Tenth Amendment gives state courts exclusive jurisdiction over suits against state, county, and municipal governments.

D. Yes, because the U.S. Supreme Court has original and exclusive jurisdiction over suits against governments.

Explanation:

Eleventh Amendment

(state immunity from suit in federal court)

Immunity

- Suit brought by private party or foreign government
- Suit against state official violating state law
- Exceptions:
  - State consents to suit
  - Immunity removed by 13th, 14th, or 15th Amendment
  - State official sued for injunctive or declaratory relief
  - Damages to be paid by state officer personally (not state treasury)
  - State official sued for prospective (not retroactive) damages to be paid by state treasury

No immunity

- Suit brought by United States or other state
- Suit against local government (eg, counties, municipalities)
- Bankruptcy proceedings

The **Eleventh Amendment prohibits** foreign governments and private parties from **suing a state** in federal court without the state's consent. However, this immunity **does not extend to** actions brought against **local governments** (eg, municipalities, counties). Therefore, the Eleventh Amendment does not apply to the man's suit against the county, and the federal court will likely deny the county's motion to dismiss **(Choice B)**.

(Choice C) The Tenth Amendment reserves to the states all powers that the Constitution does not expressly grant to the federal government. However, it does not give state courts exclusive jurisdiction over suits against state, county, and municipal governments. Instead, state and federal courts have concurrent jurisdiction over such suits.

(Choice D) The U.S. Supreme Court has original jurisdiction over cases that affect ambassadors, public ministers, or consuls OR that involve a state as a party (neither seen here). Additionally, the Supreme Court has exclusive jurisdiction over suits between states (also not seen here).

Educational objective:

The Eleventh Amendment bars suits against state governments in federal court. However, this immunity does not extend to suits against local governments (eg, counties, municipalities).

References

- N. Ins. Co. v. Chatham County, 547 U.S. 189, 193–95 (2006) (holding that the Eleventh Amendment does not prohibit suits against local governments).
- 32A Am. Jur. 2d Federal Courts § 918 (2020) (explaining that the Eleventh Amendment does not bar suits against local governments in federal court).

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A state law that restricted access to contraception was challenged in state court as a violation of the due process clause of the Fourteenth Amendment to the U.S. Constitution and as a violation of a similar due process provision of the state constitution. The case made its way to the state's highest court, which ruled that the law violated the due process provisions of both the U.S. and the state constitutions.

If petitioned to do so, may the U.S. Supreme Court exercise jurisdiction to review the state court decision?

A. No, because the state court's decision in this case rests on adequate and independent state law grounds.

B. No, because the U.S. Supreme Court has appellate jurisdiction only over state court decisions that determine the constitutionality of federal laws.

C. Yes, because the U.S. Supreme Court has appellate jurisdiction over any ruling of a state's highest court based on an interpretation of federal law.

D. Yes, because the U.S. Supreme Court has appellate jurisdiction over decisions that find state laws in violation of the federal Constitution.

Explanation:

Appellate jurisdiction of SCOTUS

Type of review	Applicability
Certiorari (discretionary review)	• Appeal from lower federal court or highest state court by filing petition for writ of certiorari • SCOTUS will review if ≥ 4 Justices vote to accept appeal • Very common – how most cases come before SCOTUS
Direct appeal (mandatory review)	• Appeal from decision on injunction by special three-judge federal district court panel • Extremely rare – limited to cases brought under specific statutes (eg, Voting Rights Act)

SCOTUS = Supreme Court of the United States

The **U.S. Supreme Court** (SCOTUS) has discretionary jurisdiction to review final **state court decisions** that involve federal law. But SCOTUS **cannot exercise jurisdiction** to review those decisions if they rest on **adequate and independent state grounds**—ie, when:

- **state law completely resolves** the matter such that the application of federal law would not affect the outcome of the case (adequate) *and*
- the state court did **not rely on federal law** to decide the state law issue (independent).

This limit on SCOTUS's jurisdiction promotes judicial economy by barring SCOTUS from deciding a federal question when it would not change the outcome of the case.

Here, the highest state court's ruling rests on an *adequate* state ground because the court found the law invalid under the state constitution. So even if SCOTUS reversed the state court's ruling on the U.S. Constitution, the law would still violate the state constitution and the outcome of the case would remain the same. The ruling also rests on an *independent* state ground because the state court did not rely on federal law in ruling on the similar state constitutional issue.* As a result, SCOTUS may *not* exercise jurisdiction to review the state court decision.

*A state court ruling is not independent if the state court relied on an "identical" federal provision to rule on the state provision. Here, the federal and state due process provisions are similar but not the same, so the ruling rests on an independent state ground.

(Choice B) SCOTUS has appellate jurisdiction over state court decisions determining the constitutionality of federal laws AND the validity of state laws under the U.S. Constitution.

(Choices C & D) SCOTUS has appellate jurisdiction over state court decisions based on federal law—including decisions that find state laws in violation of the federal constitution—*unless* that decision rests on adequate and independent state grounds.

Educational objective:

The U.S. Supreme Court has no jurisdiction to review state court decisions based on adequate and independent state grounds—ie, when state grounds completely resolve the matter and the court does not rely on federal law to reach that decision.

References

- Michigan v. Long, 463 U.S. 1032, 1041 (1983) (explaining when a state supreme court judgment rests on adequate and independent state grounds).

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A state legislature recently enacted a statute forbidding public utilities regulated by the State Public Service Commission from increasing their rates more than once every two years.

A public utility company regulated by that commission has just obtained approval from the commission for a general rate increase. The company has routinely filed for a rate increase every 10 to 14 months during the last 20 years. Because of uncertainties about future fuel prices, the company cannot ascertain with any certainty the date when it will need a further rate increase, but it thinks that it may need such an increase sometime within the next 18 months.

The company files an action in the federal district court in the state requesting a declaratory judgment that this new state statute forbidding public utility rate increases more than once every two years is unconstitutional. Assume no federal statute is relevant.

How should the court rule in this case?

A. Dismiss the complaint, because controversies over state-regulated utility rates are outside of the jurisdiction conferred on federal courts by Article III of the Constitution.

B. Dismiss the complaint, because this action is not ripe for decision.

C. Hold the statute constitutional, because the judgment of a legislature on a matter involving economic regulation is entitled to great deference.

D. Hold the statute unconstitutional, because such a moratorium on rate increases deprives utilities of their property without due process of law.

Explanation:

Article III, Section 2 of the Constitution allows federal courts to hear cases and controversies that are **ripe for adjudication** (ie, capable of judicial resolution). This requirement is met when the plaintiff has suffered an **actual harm** or an **immediate threat** thereof. But a suit **cannot be heard** by a federal court if the plaintiff faces the mere **possibility of harm** (unripe) or the plaintiff's harm is **no longer capable of judicial resolution** (moot).

Here, the company filed a complaint in federal court requesting a declaratory judgment regarding the new statute limiting rate increases for public utilities to once every two years. But since the company had just obtained approval for a rate increase and merely thinks that it may need another rate increase in the next 18 months, it has suffered no actual harm or immediate threat of harm. Therefore, this action is unripe and should be dismissed.

(Choice A) Article III grants federal courts subject-matter jurisdiction over claims arising under the Constitution, federal laws, or treaties. Therefore, the company's complaint regarding the *constitutionality* of the new statute falls within the court's conferred jurisdiction and will not be dismissed on this basis.

(Choices C & D) A determination as to whether (1) the court should defer to the legislature's economic judgment or (2) the moratorium is a deprivation of property without due process of law involves the merits of the suit. But since the action is not ripe for adjudication, the court cannot consider the merits and must dismiss the suit.

Educational objective:

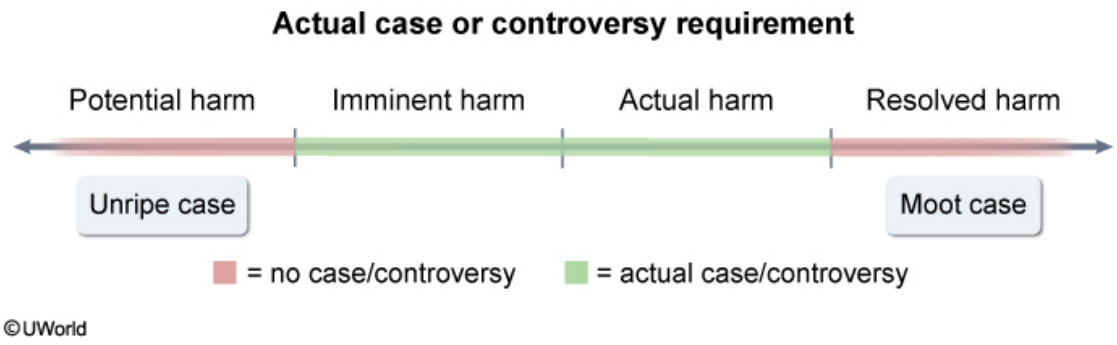
Federal courts can only hear cases and controversies that are ripe for adjudication—ie, claims that concern an actual or immediate threat of harm suffered by the plaintiff. Therefore, courts must dismiss claims that allege the mere possibility of harm (unripe) or harm that is no longer capable of judicial resolution (moot).

References

- Texas v. United States, 523 U.S. 296, 300 (1998) (explaining when a claim is unripe for adjudication).

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Actual case or controversy requirement
Potential harm
Imminent harm
Actual harm
Resolved harm
Unripe case
Moot case
= no case/controversy
= actual case/controversy
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A national coalition of activists announced that it would be holding a rally at the Capitol to protest federal laws that criminalize the possession or use of cannabis. The rally has been advertised as a "smoke-in," where the activists would smoke cannabis during the protest.

The President, who has recently announced her support for the decriminalization of recreational cannabis under federal law, does not want any of the activists to face criminal charges for participating in the rally. The President has proposed to grant a group pardon to the activists before the rally begins.

May the President constitutionally grant this pardon?

A. No, because the President may not grant a pardon before a federal offense has been committed.

B. No, because the President may not grant a pardon to a group of people.

C. Yes, because the President may grant a pardon for federal offenses.

D. Yes, because the President's power to pardon is plenary.

Explanation:

Exclusive executive powers

- Nominate principal officers
- Veto bills
- Prosecute & pardon federal offenses
- Communicate & negotiate with foreign governments
- Recognize foreign governments
- Enter executive agreements

Article II of the Constitution vests the **President** with plenary (ie, absolute) **power to grant reprieves and pardons** to persons or groups of people that have committed federal offenses—except in cases of impeachment **(Choices C & D)**. But the President may grant a pardon **only *after*** the **federal offense has been committed**—not before. Since the President here seeks to grant a group pardon to the activists *before* they commit a federal offense by smoking cannabis at the rally, she may not constitutionally grant this pardon.

(Choice B) A President *may* grant a pardon to a group of people who have committed a federal offense. For example, President Carter granted a group pardon to every person who avoided the military draft during the Vietnam War.

Educational objective:

Article II of the Constitution vests the President with plenary power to generally grant pardons to individuals or groups that have committed federal offenses. But a pardon cannot be granted *before* the federal offense has been committed.

References

- U.S. Const. art. II, § 2, cl. 1 (vesting the President with the power to grant reprieves and pardons).
- Ex Parte Garland, 71 U.S. (4 Wall) 333, 380 (1866) (explaining that a pardon can be granted only after a federal offense has been committed).

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Under the authority of a federal voting rights statute, some states drew congressional districts in a manner calculated to increase the likelihood that members of historically disadvantaged minority racial groups would be elected. The U.S. Supreme Court declared these districts to be unconstitutional, as improper racial gerrymanders.

In response to this ruling, Congress passed a new statute that explicitly denies the Supreme Court appellate jurisdiction over all future cases challenging the constitutionality of action taken under the authority of the federal voting rights statute.

Which of the following is the most persuasive argument for the constitutionality of the new statute restricting the Supreme Court's appellate jurisdiction?

A. Article III of the Constitution explicitly states that the Supreme Court's appellate jurisdiction is subject to such exceptions and regulations as Congress shall make.
B. The constitutional principle of separation of powers authorizes Congress to pass statutes calculated to reduce the effects of Supreme Court decisions that interfere with the exercise of powers that have been delegated to the legislative branch.
C. The establishment and apportionment of congressional districts directly affect interstate commerce, and the Constitution authorizes Congress to use its plenary authority over such commerce for any purpose it believes will promote the general welfare.
D. The Fifteenth Amendment authorizes Congress to enforce the amendment's voting rights provisions by appropriate legislation, and Congress could reasonably determine that this restriction on the Supreme Court's appellate jurisdiction is an appropriate means to that end.

Explanation:

Article III exceptions clause

Congress can modify SCOTUS's appellate jurisdiction unless modification would violate:

- separation-of-powers doctrine (eg, by usurping judicial power) *or*
- other constitutional provisions (eg, violating equal protection clause by only allowing men to appeal)

SCOTUS = Supreme Court of the United States

Appellate jurisdiction is a court's authority to overturn, modify, or affirm another court's decision. The **U.S. Supreme Court** (SCOTUS) has **appellate jurisdiction** over decisions by (1) lower federal courts and (2) the highest state courts when the decision turns on federal law. But Article III explicitly provides that this jurisdiction is **subject to** such **exceptions and regulations as Congress shall make**. Therefore, that is the most persuasive argument supporting the constitutionality of the statute restricting SCOTUS's appellate jurisdiction.

(Choice B) The constitutional principle of separation of powers bars each federal government branch from usurping another branch's powers. And since a congressional statute calculated to reduce the effects of SCOTUS decisions may usurp judicial power, this argument does *not* support the statute's constitutionality.

(Choice C) The Article I commerce clause grants Congress plenary (ie, absolute) authority to regulate activities that, singly or in the aggregate, have a *substantial* impact on interstate commerce. But since establishing and apportioning congressional districts only has a *mild* impact on interstate commerce, this argument would fail.

(Choice D) The Fifteenth Amendment authorizes Congress to enact legislation to ensure that the federal and state governments do not deny or abridge the right to vote based on race, color, or previous servitude. But Article III specifically allows Congress to alter SCOTUS's appellate jurisdiction, so it provides the *more* persuasive argument.

Educational objective:

Congress has the power to regulate and make exceptions to the U.S. Supreme Court's appellate jurisdiction under Article III of the Constitution.

References

- Ex parte McCardle, 74 U.S. 506, 514 (1869) (establishing that Congress has almost unlimited power to regulate and make exceptions to the Supreme Court's appellate jurisdiction).

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A county district attorney opened a criminal investigation into the President's business transactions conducted before the President assumed office. The district attorney brought the case before a grand jury, which validly issued a subpoena duces tecum requiring the President to produce various financial records related to the business transactions at issue. The President has refused to produce the financial records, citing absolute immunity and executive privilege.

Under what circumstances, if any, may the grand jury compel production of the financial records over the President's assertions of absolute immunity and executive privilege?

A. It may compel production only if the subpoena seeks critical evidence that cannot be obtained by any other means.

B. It may compel production without providing any additional justification.

C. It may not compel production under any circumstances because the disclosure of financial records is protected by executive privilege.

D. It may not compel production under any circumstances because the President has absolute immunity from complying with a subpoena.

Explanation:

Presidential immunity & privilege

Immunity Absolute immunity from civil suits seeking damages for official executive actions

- No immunity for actions that occurred before taking office
- No immunity for actions unrelated to executive functions
- No immunity from criminal subpoena

Privilege Power to withhold official documents & communications:

- National security secrets – afforded greatest deference
- Civil case – afforded greater deference than in criminal trial
- Criminal case – afforded least deference (disclosure required if prosecution shows need)

As the head of the executive branch, the President possesses all Article II powers, including the power to execute federal laws and serve as the commander in chief of the armed forces. To **safeguard** the **President's ability to perform** these important duties, the President has the following **protections in judicial proceedings**:

- **Executive privilege** – prevents the disclosure of confidential documents and communications made in performance of **official duties and responsibilities**
- **Absolute immunity** – prevents civil suits for damages against the President for any act performed as part of the President's official duties and responsibilities*

However, these protections are not infinite. For example, executive privilege **does not extend to** documents and communications that were made in performing **private functions** (ie, private papers). Since the financial records at issue here relate to the President's private affairs before taking office—not official conduct while in office—the records are *not* protected by executive privilege **(Choice C)**.

Additionally, the President is not absolutely immune from complying with a validly issued subpoena that seeks the President's private papers in a criminal proceeding **(Choice D)**. Instead, the President must comply with the subpoena just like any other citizen. Since the grand jury validly issued the subpoena duces tecum in this case, the President must produce the requested financial records. As a result, the grand jury need not provide any additional justification to compel production of those records.

*The U.S. Supreme Court has never ruled whether a President can be indicted for a crime while in office. However, Congress can use the impeachment process to remove the President from office for a high crime or misdemeanor.

(Choice A) The grand jury does not need to meet a heightened standard of need by showing that the subpoena seeks critical evidence that cannot be obtained by any other means. The reason is that, in the absence of a need to protect the President, the public interest in fair and effective law enforcement favors access to such evidence.

Educational objective:

Executive privilege and absolute immunity safeguard a President from liability when performing official duties and responsibilities. However, these protections are not absolute and will not shield the President from complying with a criminal subpoena that seeks the President's private papers.

References

- Trump v. Vance, 140 S. Ct. 2412, 2430 (2020) (holding that the President is not absolutely immune from state criminal subpoenas seeking his private papers and is not entitled to a heightened standard of need).

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A woman contracted for expensive cable television service for a period of six months solely to view the televised trial of a man who was on trial for murder in a state court. In the midst of the trial, the judge prohibited any further televising of the man's trial because the judge concluded that the presence of television cameras was disruptive.

The woman brought an action in a federal district court against the judge in the man's case and sought an injunction that would require the judge to resume the televising of the man's trial. The woman alleged that the judge's order to stop televising the trial deprived her of property—her investment in cable television service—without due process of law.

Before the woman's case came to trial, the man's criminal trial concluded in a conviction and sentencing. There do not appear to be any obvious errors in the proceeding that led to the result in the man's case. After the man's conviction and sentencing, the judge moved to dismiss the woman's suit.

What is the most proper disposition of this motion by the federal court?

A. Defer action on the motion until after any appellate proceedings in the man's case have concluded, because the man might appeal, his conviction might be set aside, he might be tried again, and television cameras might be barred from the new trial.

B. Defer action on the motion until after the state's supreme court expresses a view on its proper disposition, because the state law of mootness governs suits in federal court when the federal case is inexorably intertwined with a state proceeding.

C. Deny the motion, because the woman has raised an important constitutional question—whether her investment in cable service solely to view the man's trial is protected by the Fourteenth Amendment due process clause.

D. Grant the motion, because the subject matter of the controversy between the woman and the judge has ceased to exist and there is no strong likelihood that it will be revived.

Explanation:

Federal courts have the power to decide **actual cases and controversies**—ie, disputes that are capable of judicial resolution. But once the **plaintiff's harm is resolved**, his/her claim becomes **moot** and should be dismissed **unless**:

- the harm is **capable of repetition** yet **evading review** due to a reasonable chance that the same harm will (1) affect the plaintiff again and (2) not last long enough to be fully litigated (eg, pregnancy) *or*
- the **defendant voluntarily stops** the challenged action but **can resume** it at any time.

Here, the woman sued in federal court to force the judge to resume televising the man's murder trial. But before the court could consider her claim, this controversy ceased to exist because the man was convicted and sentenced. And the controversy is not likely to be revived since there were no obvious errors in the man's trial warranting a new trial. Therefore, this controversy is moot, and the federal court should grant the judge's motion to dismiss.

(Choice A) It is highly unlikely that the man will succeed on appeal. But even if he does and obtains a new trial, it is pure speculation whether television cameras will again be barred from the courtroom. Therefore, the woman's suit is moot and should be dismissed—not deferred.

(Choice B) Federal courts always apply *federal* law to decide procedural issues like mootness—even when the federal case is inexorably intertwined with a state proceeding.

(Choice C) The woman's claim would require the court to determine whether her investment in the cable service is a property interest protected by the Fourteenth Amendment due process clause. But the fact that a claim raises an important constitutional question does not make it an actual case or controversy subject to judicial review.

Educational objective:

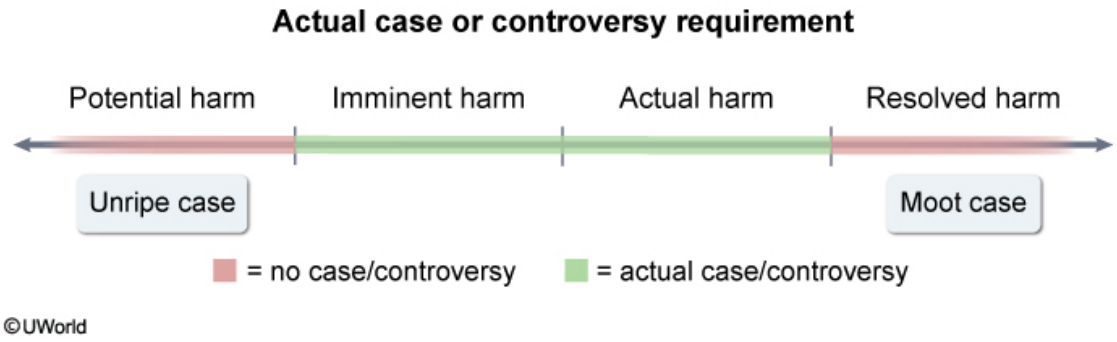
When the plaintiff's harm is resolved, his/her claim becomes moot and must be dismissed unless (1) the harm is capable of repetition yet evading review or (2) the defendant voluntarily stops the challenged action but can resume it at any time.

References

- U.S. Const. art. III, § 2 (case or controversy requirement).
- Turner v. Rogers, 564 U.S. 431, 439–40 (2011) (explaining the mootness doctrine and its exceptions).
- 32 Am. Jur. 2d Federal Courts § 575 (2019) (defining mootness and its exceptions).

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The House of Representatives created an investigatory committee to look into the judicial administrative processes of federal judges. In particular, the committee was tasked with investigating the issuance of court orders, the management of trial schedules, and the drafting of basic court documents by judicial assistants. The goal of the committee was to ensure that the administrative processes were carried out efficiently, accurately, and pursuant to federal legislation regarding the judicial administrative process.

After much investigation, the committee concluded that a federal district court judge was negligently mismanaging his trial schedule, causing undue delays in his case log. Based upon its findings, the committee made a recommendation to the House of Representatives to remove the federal judge.

Can the House of Representatives remove the federal judge based on the committee's recommendation?

A. No, because the House of Representatives cannot investigate a federal judge's administrative processes.

B. No, because the federal judge can be removed only by impeachment.

C. Yes, because the House of Representatives can remove federal judges with or without cause.

D. Yes, because the federal judge mismanaged his trial schedule.

Explanation:

Federal judges

Type	Attributes	Examples
Article I	• Implement Congress's enumerated powers • Not entitled to life tenure & undiminished pay	• Tax court • Bankruptcy court • Veterans' claims court
Article III	• Decide actual cases or controversies • Entitled to life tenure & undiminished pay	• District court • Circuit appellate court • SCOTUS

SCOTUS = Supreme Court of the United States.

There are **two types** of **federal judges**:

- Article I judges – who serve on specialized courts created by Congress under Article I to perform functions deemed helpful in carrying out Congress's enumerated powers (e.g., veterans' claims courts)
- Article III judges – who serve on courts created under Article III to decide the merits of actual cases or controversies (e.g., federal district courts)

Article III judges are independent of Congress, the President, and the political process. To help guarantee their judicial independence, Article III judges are **entitled to life tenure** during good behavior **and undiminished pay** during their service. This has been interpreted to mean that Article III judges **can be removed** from office **only through impeachment**. This process requires the House of Representatives to adopt articles of impeachment by a majority vote and the Senate to convict by a two-thirds vote.

Here, the House of Representatives created a committee to investigate the work of federal judges. After concluding that a federal district court judge negligently mismanaged his trial schedule, the committee recommended that the House of Representatives remove him **(Choice D)**. But since the federal district court judge can be removed only by impeachment—which also requires Senate action—the House of Representatives cannot unilaterally remove him based on the committee's recommendation.

(Choice A) Both the House of Representatives and the Senate have the power to *investigate* a federal judge's administrative processes. But a federal district court judge can be *removed* only through impeachment.

(Choice C) A federal district court judge can be removed through impeachment—regardless of whether adequate cause exists for removal.

Educational objective:

Article III judges are entitled to life tenure during good behavior and undiminished pay during their service—and therefore can be removed from office only through impeachment. This process requires the House of Representatives to adopt articles of impeachment by a majority vote and the Senate to convict by a two-thirds vote.

References

- Glidden Co. v. Zdanok, 370 U.S. 530, 534 (1962) (stating that only Article III judges are entitled to life tenure during good behavior and undiminished salaries while in service).

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A statute passed by both houses of Congress and signed by the President created a federal agency to regulate consumer financial products such as credit cards, student loans, and mortgages. The federal statute authorizes the agency to issue regulatory rules, conduct administrative proceedings, and initiate suits in federal court on behalf of consumers. A statutory provision establishes that the agency is led by a single director who must be appointed by the President with the advice and consent of the Senate. The provision also states that the director serves a five-year term and can only be removed from office by the President for good cause.

Is the provision allowing the director to be removed by the President for good cause constitutional?

A. No, because the President may remove a federal executive officer only with the advice and consent of the Senate.

B. No, because the provision amounts to an unconstitutional legislative interference with an executive function.

C. Yes, because Congress may require the President to show good cause to remove a federal executive officer.

D. Yes, because the provision is part of a statute that was passed by both houses of Congress and signed by the President.

Explanation:

The Constitution divides the federal government into three coequal branches that possess distinct powers (ie, separation of powers). Article II vests the executive power in the **President**, including the power to **faithfully execute federal laws**. Since it is impossible for one person to carry out this power, **federal executive officers** may be appointed pursuant to the appointments clause to assist the President.

The Constitution is silent about the removal of federal executive officers, but the U.S. Supreme Court has repeatedly held that the **President has absolute authority to remove** such officers absent two exceptions. This means that Congress cannot impose any removal restrictions, including good-cause requirements, **except for officers** who either:

- **belong to a multimember body** that is balanced along partisan lines and **exercises *no* executive power** (eg, committees that conduct investigations on behalf of Congress) *or*
- ***lack* policymaking or administrative authority** (eg, independent counsel who investigates and prosecutes alleged crimes by government officials).

Here, Congress created a federal agency headed by a single director. The director exercises significant executive power and administrative authority by issuing regulatory rules, conducting administrative proceedings, and initiating suits in federal court. As a result, the President has the absolute authority to remove the director. The provision requiring good cause for removal therefore amounts to an unconstitutional legislative interference with an executive function **(Choice C)**.

(Choice A) The President must *appoint* certain federal executive officers (eg, cabinet secretaries) with the advice and consent of the Senate. However, the Senate's advice and consent is not required for the President to *remove* such officers.

(Choice D) The removal provision is part of a statute that satisfied the federal legislative process because it was passed by both houses of Congress and signed by the President. But the provision is still an unconstitutional legislative interference with an executive power.

Educational objective:

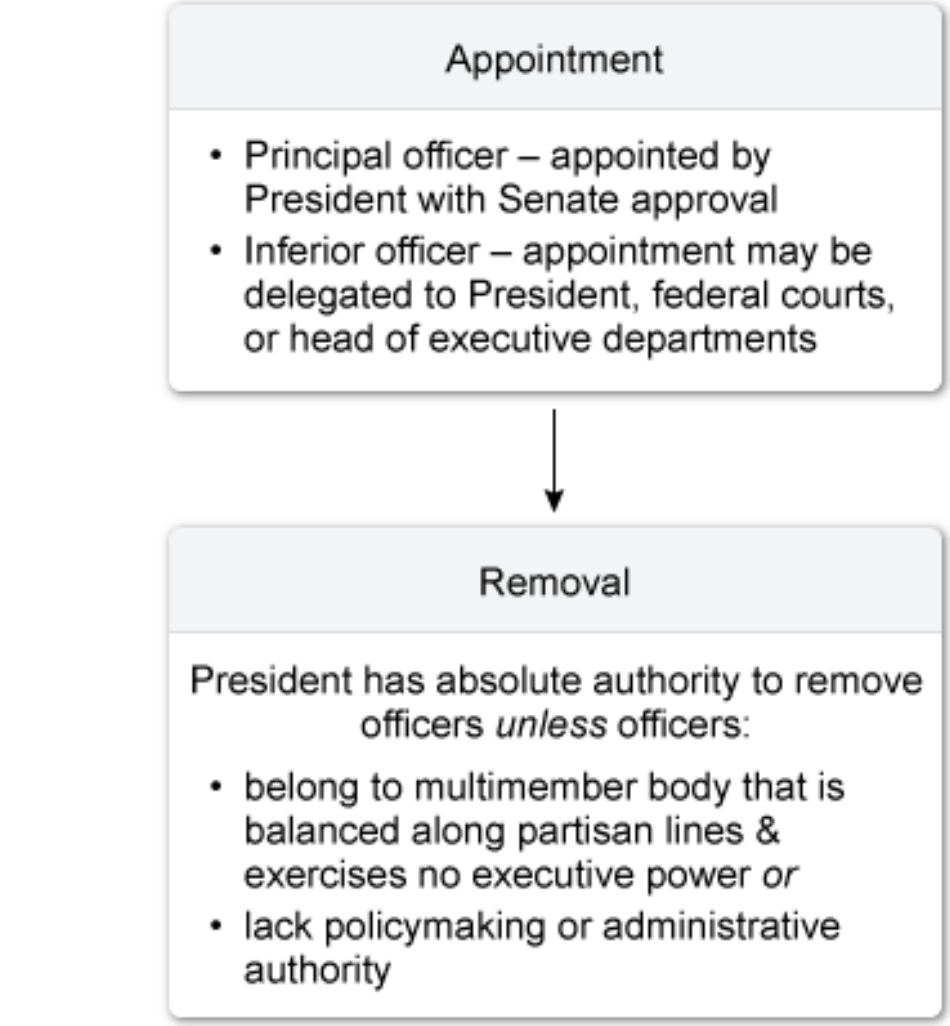
The President has absolute authority to remove federal executive officers. Congress may impose restrictions on this power only for officers who (1) belong to a multimember body that is balanced along partisan lines and exercises no executive power or (2) lack policymaking or administrative authority.

References

- Seila Law Ltd. Liab. Corp. v. Consumer Fin. Prot. Bureau, 140 S. Ct. 2183, 2197–2200 (2020) (explaining that the President has the absolute power to remove federal executive officers subject to very narrow exceptions).

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Appointment and removal of executive officers



A nightclub owner applied for a required zoning permit to open a nude-dancing nightclub in the theater district of a city. An organization of influential city residents began an intensive lobbying effort to persuade the city council to deny the owner a permit to operate any type of nude-dancing facility at any time or in any place in the city.

The owner has sued the city in an appropriate federal court, seeking an injunction that would prohibit the city council from considering the organization's views, on the ground that if the organization is successful in its lobbying efforts, the owner's First and Fourteenth Amendment rights would be violated. The city has moved to dismiss the action.

Should the court dismiss the owner's action?

A. No, because nude dancing is symbolic speech and is therefore protected by the First and Fourteenth Amendments.

B. No, because the organization does not seek a reasonable time, place, and manner regulation of nude dancing, but instead seeks a total ban on the owner's opening any type of nude-dancing facility at any time or in any place in the city.

C. Yes, because the action is not ripe.

D. Yes, because the First and Fourteenth Amendments do not protect obscenity, and nude dancing is obscene.

Explanation:

Article III of the Constitution limits the jurisdiction of federal courts to **actual cases or controversies**. An actual case or controversy exists when a **dispute** between adverse parties is **capable of judicial resolution**—ie, **ripe for adjudication**. A suit is ripe when the plaintiff has suffered **actual harm** or an **immediate threat thereof**. But a suit based on potential *future* harm is unripe and should be dismissed.

Here, the nightclub owner applied for a permit to open a nude-dancing facility. An organization then lobbied the city council to deny the permit. In response, the owner sued in federal court to enjoin the city council from considering the organization's views. But the city council has not yet denied his permit request (no actual harm), nor is there any indication that it will do so soon (no immediate threat). And since the owner's action is not ripe, the court should grant the city's motion and dismiss the suit.

(Choices A & B) Nude dancing is symbolic speech that is protected by the First and Fourteenth Amendments. As a result, a total ban on nude dancing (ie, a content-based restriction) would be presumptively unconstitutional. In contrast, a reasonable time, place, and manner (ie, content-neutral) regulation would likely be valid. But the court will not consider the constitutionality of the potential regulation since the suit is unripe.

(Choice D) The First and Fourteenth Amendments do not protect certain forms of speech, including obscenity. But mere nudity (including nude dancing) is not obscene.

Educational objective:

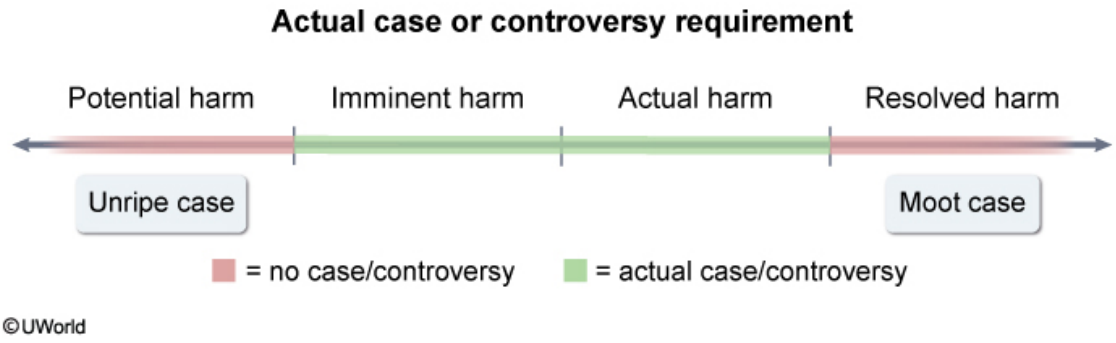
For a suit to be ripe for adjudication, the plaintiff must have suffered actual harm or an immediate threat thereof. Therefore, a claim based on potential future harm is unripe and will be dismissed.

References

- U.S. Const. art. III, § 2 (case or controversy requirement).
- Texas v. United States, 523 U.S. 296, 300 (1998) (explaining when a claim is unripe for adjudication).

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Actual case or controversy requirement
Potential harm
Imminent harm
Actual harm
Resolved harm
Unripe case
Moot case
= no case/controversy
= actual case/controversy
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The federal parole commission denied a federal prisoner's request for parole based on the commission's parole guidelines. The prisoner subsequently filed a class action against the commission in federal court, challenging the facial validity of the commission's parole guidelines on the basis that the guidelines violate federal law. After the court certified the class action, the prisoner was released from prison. The commission has moved to dismiss the case.

Should the court grant the motion?

A. No, because an actual case or controversy exists for the court to decide.

B. No, because the prisoner's suit is not ripe for decision.

C. Yes, because the Eleventh Amendment prohibits this type of action in federal court.

D. Yes, because the prisoner's claim has become moot.

Explanation:

Ripeness v. Mootness

Ripe (too soon)	Action will not be heard until plaintiff has experienced actual injury or imminent threat thereof
Moot (too late)	Action will be dismissed if further proceedings would have no effect *unless*: • plaintiff's harm is capable of repetition yet evading review (eg, pregnancy) • defendant voluntarily stops action but can resume it anytime • plaintiff is named plaintiff in class action & claims of unnamed plaintiffs are still viable

Article III of the Constitution grants federal courts the power to decide **actual cases and controversies**—ie, disputes that are capable of judicial resolution. If further legal proceedings would no longer have an effect—often because the plaintiff's harm has been resolved—then an actual case or controversy typically ceases to exist. When this occurs, the **plaintiff's claim** is typically rendered **moot** and the case must then be **dismissed**.

However, one **exception** to this rule applies when the plaintiff whose claim has become moot is the named plaintiff in a certified class action (as seen here). If the **claims of the unnamed plaintiffs** in the class are **still viable**, then the **class action will *not* be dismissed** as moot. That is because, while the named plaintiff's *personal* claim has become moot, an actual case or controversy still exists for the unnamed plaintiffs' claims.

Here, the prisoner filed a class action in federal court, thereby serving as the named plaintiff. The prisoner's personal claim—that the commission's parole guidelines violate federal law—became moot when he was released from prison. However, an actual case or controversy still exists for the unnamed plaintiffs who have not been released **(Choice D)**. Therefore, the court should deny the commission's motion to dismiss.

(Choice B) For a suit to be ripe for decision, the plaintiff must have experienced a real injury or an immediate threat thereof. Here, the prisoner suffered actual harm when the commission denied the prisoner's request for parole, so this suit *is* ripe for decision.

(Choice C) The Eleventh Amendment prohibits foreign governments and private parties from suing a *state* in federal court. It does not prohibit private parties from suing the *federal* government in federal court (as seen here).

Educational objective:

A federal court typically must dismiss a case when the plaintiff's claim becomes moot. However, one exception applies when (1) a plaintiff whose claim is moot is the named plaintiff in a certified class action and (2) the claims of the unnamed plaintiffs in that class action are still viable.

References

- U.S. Const. art. III, § 2 (case-or-controversy requirement).
- U.S. Parole Comm'n v. Geraghty, 445 U.S. 388, 404 (1980) (holding that federal courts must not dismiss a class action when the named plaintiff's claim becomes moot so long as the claims of the unnamed plaintiffs are viable).
- 32 Am. Jur. 2d Federal Courts § 575 (2020) (defining mootness and its exceptions).

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A federal statute provides that the United States Supreme Court has authority to review any case filed in a United States court of appeals, even if that case has not yet been decided by the court of appeals.

The Environmental Protection Agency (EPA), an agency in the executive branch of the federal government, issued an important environmental rule. Although the rule had not yet been enforced against them, companies that would be adversely affected by the rule filed a petition for review of the rule in a court of appeals, seeking a declaration that the rule was invalid solely because it was beyond the statutory authority of the EPA. The companies made no constitutional claim. A statute specifically provides for direct review of EPA rules by a court of appeals without any initial action in a district court.

The companies have filed a petition for a writ of certiorari in the Supreme Court requesting immediate review of this case by the Supreme Court before the court of appeals has actually decided the case. The EPA acknowledges that the case is important enough to warrant Supreme Court review and that it should be decided promptly, but it asks the Supreme Court to dismiss the petition on jurisdictional grounds.

What is the best constitutional argument in support of the EPA's request?

A. Article III precludes federal courts from reviewing the validity of any federal agency rule in any proceeding other than an action to enforce the rule.

B. Article III provides that all federal cases, except those within the original jurisdiction of the Supreme Court, must be initiated by an action in a federal district court.

C. The case is appellate in nature, but it is beyond the appellate jurisdiction of the Supreme Court, because Article III states that its jurisdiction extends only to cases arising under the Constitution.

D. The case is not within the original jurisdiction of the Supreme Court as defined by Article III, and it is not a proper subject of that court's appellate jurisdiction because it has not yet been decided by any lower court.

Explanation:

Article III of the Constitution states that the **U.S. Supreme Court** (SCOTUS) has both:

- **original jurisdiction** – the authority to **directly review** (1) cases involving an **ambassador, public minister, or consul** and (2) cases in which a **state is a party** *and*
- **appellate jurisdiction** – the authority to **overturn, modify, or affirm** a decision made by a lower federal court or a state's highest court in **all other cases** falling within federal judicial power.

Here, the companies filed a petition for a writ of certiorari requesting that SCOTUS immediately review their case against the EPA. But the case is not within SCOTUS's *original* jurisdiction as narrowly defined by Article III. And since the case has not yet been decided by a lower court—ie, there is no decision being appealed from—it is not a proper subject of SCOTUS's *appellate* jurisdiction. Accordingly, that is the best constitutional argument in support of the EPA's request.

(Choice A) Article III *allows* federal courts to review the validity of a federal rule in a proceeding other than an action to enforce the rule. For example, federal courts may issue a declaratory judgment that a rule is invalid before it has been enforced if the plaintiff faces imminent harm.

(Choice B) Under Article III, Congress has broad power to regulate the original and appellate jurisdiction of lower federal courts. As a result, a federal case can be initiated by an action in a U.S. court of appeals rather than a U.S. district court if authorized by Congress.

(Choice C) SCOTUS's appellate jurisdiction extends to all cases arising under the Constitution, a treaty, or federal law (as seen here). But this case is not appellate in nature since there is no lower court decision to review.

Educational objective:

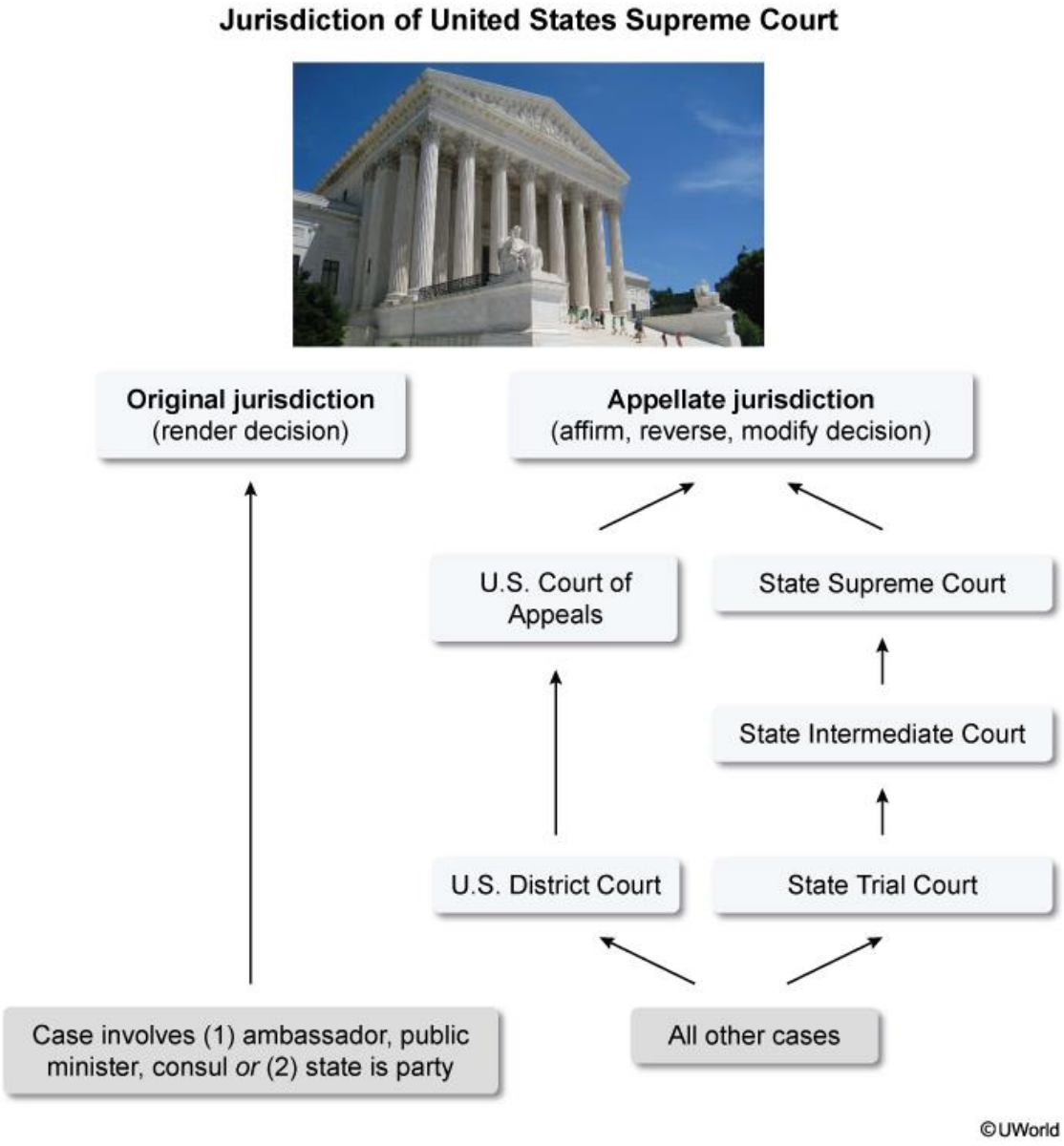
The U.S. Supreme Court (SCOTUS) has original jurisdiction in (1) cases involving an ambassador, public minister, or consul and (2) cases in which a state is a party. But in all other cases, SCOTUS's appellate jurisdiction requires a lower court decision.

References

- Balt. & Ohio R.R. Co. v. Interstate Com. Comm'n, 215 U.S. 216, 224–25 (1909) (explaining that SCOTUS has original jurisdiction in limited circumstances and that appellate jurisdiction requires a lower court decision).
- 32 Am. Jur. 2d Federal Courts § 453 (2019) (defining original and appellate jurisdiction).

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Assume that Congress passed and the President signed the following statute: "The appellate jurisdiction of the United States Supreme Court shall not extend to any case involving the constitutionality of any state statute limiting the circumstances in which a person may obtain contraception, or involving the constitutionality of this statute."

What is the strongest argument against the constitutionality of this statute?

A. Congress may not exercise its authority over the appellate jurisdiction of the Supreme Court in a way that seriously interferes with the establishment of a supreme and uniform body of federal constitutional law.

B. Congress may only regulate the appellate jurisdiction of the Supreme Court over cases initially arising in federal courts.

C. The appellate jurisdiction of the Supreme Court may only be altered by constitutional amendment.

D. The statute violates the equal protection clause of the Fourteenth Amendment.

Explanation:

Most cases come before the **U.S. Supreme Court** (SCOTUS) through its **appellate jurisdiction**. This allows SCOTUS to review certain cases that have been decided by a lower federal court or a state's highest court. Article III grants **Congress** the power to **regulate and make exceptions** to SCOTUS's appellate jurisdiction. But when exercising this almost unlimited power, Congress **cannot violate**:

- the **separation-of-powers doctrine**—eg, usurping judicial power to decide cases—*or*
- **other constitutional provisions**—eg, giving only men the right to appeal, in violation of the equal protection component of the Fifth Amendment.

Here, the federal statute denies SCOTUS appellate jurisdiction over any case involving the constitutionality of a state statute limiting access to contraception. As a result, the federal statute may violate the separation-of-powers doctrine since it could usurp SCOTUS's power to establish a supreme and uniform body of federal constitutional law on this issue. Therefore, this is the strongest argument against the constitutionality of the federal statute.

(Choices B & C) Since Article III of the Constitution gives Congress the power to limit SCOTUS's appellate jurisdiction over cases initially arising in *federal* or *state* court, no constitutional amendment is required.

(Choice D) The Fourteenth Amendment equal protection clause applies when *states* treat similarly situated persons differently. But since the challenged statute was enacted by the *federal* government, this clause does not apply.

Educational objective:

Article III grants Congress the power to regulate and limit SCOTUS's appellate jurisdiction. But when exercising this power, Congress cannot violate the separation-of-powers doctrine or other constitutional provisions.

References

- United States v. Klein, 80 U.S. 128, 147–48 (1871) (establishing that Congress cannot alter the Supreme Court's appellate jurisdiction if it would violate the separation-of-powers doctrine).

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Jurisdiction of United States Supreme Court



Original jurisdiction
(render decision)

Appellate jurisdiction
(affirm, reverse, modify decision)

U.S. Court of Appeals

State Supreme Court

State Intermediate Court

U.S. District Court

State Trial Court

Case involves (1) ambassador, public minister, consul *or* (2) state is party

All other cases

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Congress enacted a statute over the President's veto establishing a program to protect areas in the United States that are rich in biological diversity. The program is consistent with the terms of an environmental treaty that the President objected to and did not sign.

The statute creates an executive agency and authorizes it to designate parts of federal lands for inclusion in the program in accordance with criteria taken from the treaty. In an inseverable provision, the statute further provides that the agency must report each designation to a committee of Congress and that the committee may overturn the agency's designation by a majority vote.

Why is the statute unconstitutional?

A. It authorizes a committee of Congress to overturn an executive decision.

B. It constitutes an invalid delegation of legislative authority to an executive agency.

C. It interferes with the exercise of the President's paramount authority in foreign affairs.

D. It requires an executive agency to report its decisions to Congress.

Explanation:

The nondelegation doctrine prohibits Congress from delegating purely legislative powers (eg, making or repealing laws). But it allows **Congress** to **delegate** its **incidental powers** (eg, regulating federal lands) to executive agencies if it provides an **intelligible principle**—ie, a clear statement defining:

- the **policy** Congress seeks to advance (eg, protect areas in the United States that are rich in biodiversity)
- the **agency** to carry out that policy (eg, the agency created by statute here) *and*
- the **scope** of that agency's authority (eg, designate parts of federal lands for inclusion in the environmental protection program) **(Choice B)**.

But once Congress has delegated authority to an executive agency, **Congress cannot** authorize a committee to **veto** (ie, overturn) that agency's **executive decisions**. Such decisions can only be overturned through **new legislation**, which requires:

- **bicameralism**—which entails a majority vote in both the House of Representatives and the Senate (not merely a congressional committee)—*and*
- **presentment** to the President for approval or disapproval (which did not occur here).

Therefore, the statute is unconstitutional because it authorizes a committee of Congress to overturn an executive decision.

(Choice C) Article II gives the President paramount authority in foreign affairs, so Congress could not have forced the President to sign the environmental treaty. But since Congress has the power to enact *domestic* laws, it can implement this program protecting areas in the United States despite the President's objection to the treaty.

(Choice D) Congress can require executive agencies to *report* their decisions to Congress if this is necessary and proper for (ie, reasonably related to) implementing federal law. But Congress cannot *veto* executive agency decisions without adhering to bicameralism and presentment.

Educational objective:

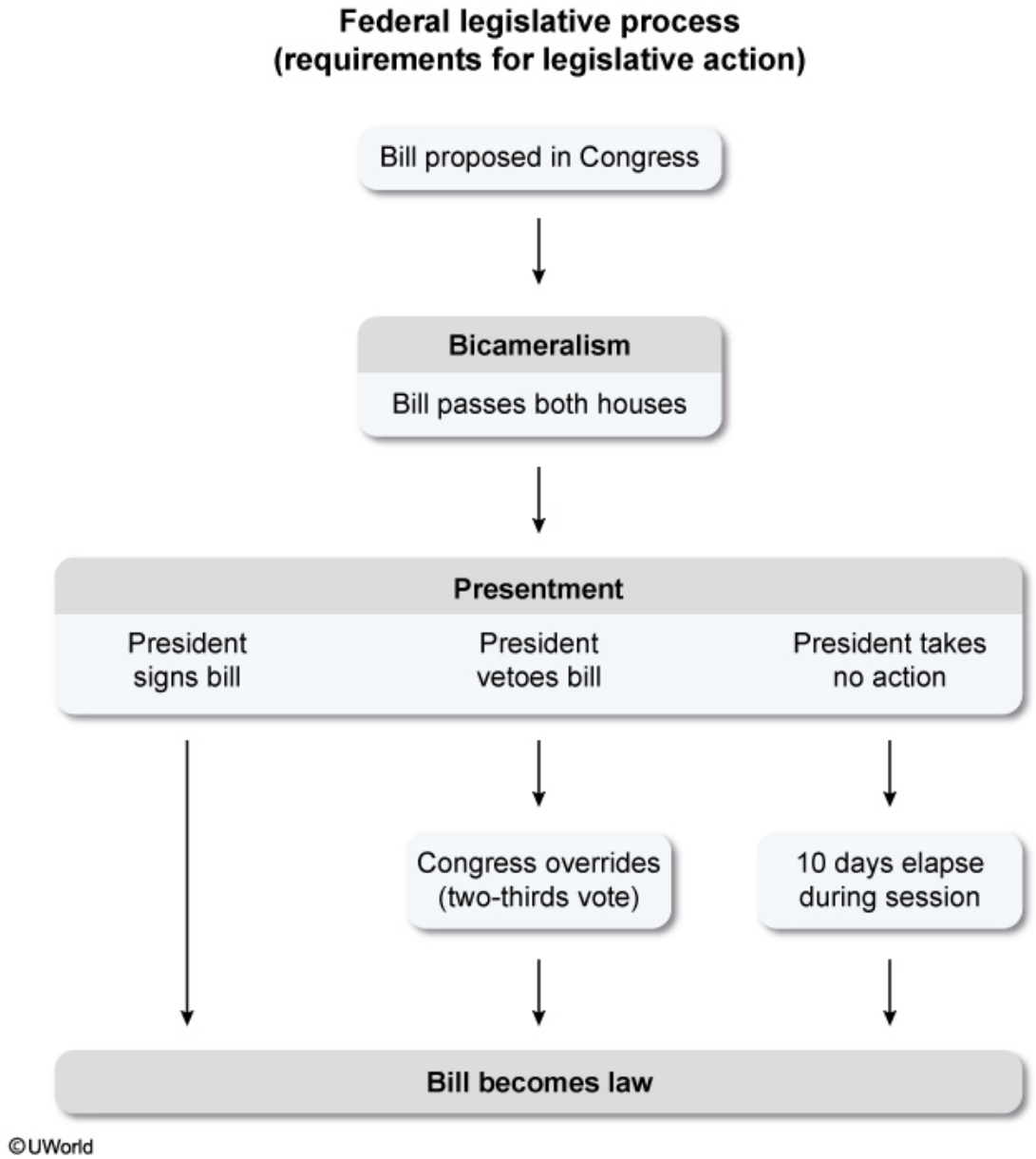
Congress can only overturn an executive agency's actions by enacting new legislation. This requires both (1) passage by majority vote in the House of Representatives and the Senate (ie, bicameralism) and (2) presentation to the President for approval or disapproval (ie, presentment).

References

- Gundy v. United States, 139 S. Ct. 2116, 2123 (2019) (explaining that the nondelegation doctrine allows Congress to delegate power as long as it provides an intelligible principle to guide the delegate's use of discretion).
- INS v. Chadha, 462 U.S. 919, 946–59 (1982) (striking down the congressional-veto provision of an immigration statute since it bypasses bicameralism and presentment).

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State A suffers from a high unemployment rate. To combat this problem, the State A legislature passed a statute requiring every business that sells over $5 million worth of goods each year in State A to annually buy goods produced in State A in an amount equal to half of its State A sales. Several persons and entities seek to challenge the constitutionality of this state statute in federal court.

Which of the following persons or entities most clearly has standing to do so?

A. A company that sells $3 million worth of goods in State A annually but currently purchases only $1 million in State A goods.

B. A distributor that currently does not sell or purchase goods in State A but expects to sell $15 million worth of goods in State A next fiscal year.

C. A State B manufacturer that supplies 75 percent of the goods bought by a corporation with annual sales in State A of $10 million.

D. The governor of State B on behalf of her state's businesses.

Explanation:

A federal court will not hear a case unless the plaintiff has **standing**—ie, a personal stake in the outcome of the case. This requires the plaintiff to allege three elements:

- **Injury-in-fact** – **actual or imminent harm** that is **concrete and particularized**
- **Causation** – the injury is **fairly traceable** to the defendant's **challenged conduct**
- **Redressability** – a **favorable judicial decision** will likely **remedy or prevent** the injury

Here, the State A statute requires businesses selling over $5 million worth of goods each year in State A to buy State A produced goods in an amount equal to half of their State A sales. As a result, a corporation annually selling $10 million worth of goods in State A but purchasing 75% of its goods from a State B manufacturer must now buy more State A goods. This will cause the State B manufacturer imminent financial harm that can be prevented if the statute is found unconstitutional. Therefore, the State B manufacturer likely has standing to contest the statute.

(Choice A) The statute does not apply to the company that annually sells $3 million (not over $5 million) worth of goods in State A. Therefore, this company does not have standing to contest the statute.

(Choice B) The distributor that currently does not sell or purchase goods in State A but expects to sell $15 million worth of goods in State A next year will need to purchase $7.5 million worth of State A goods *if* its prediction is accurate. But it lacks standing to contest the statute because this harm is speculative—not concrete.

(Choice D) The third-party standing doctrine allows an *injured* party to assert a third party's rights in limited circumstances. But the State B governor does not have standing to sue on behalf of her state's businesses because there is no evidence that the statute injured the governor.

Educational objective:

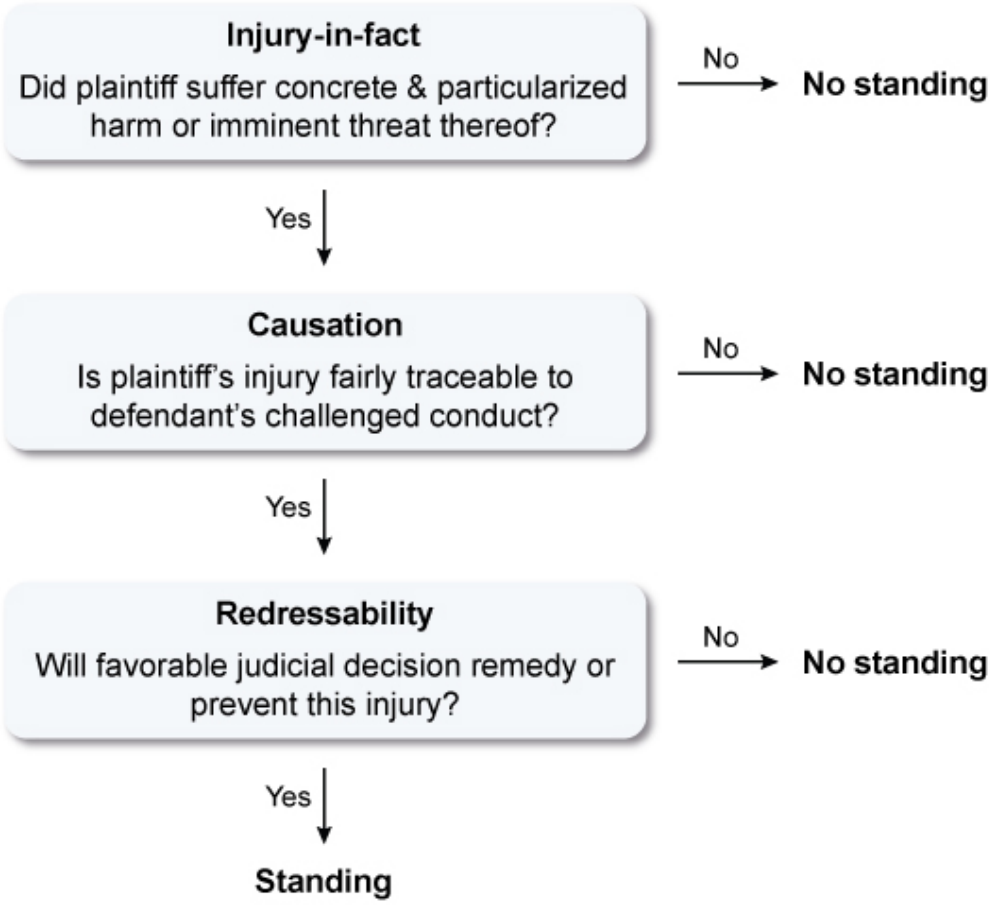
A plaintiff has standing to sue in federal court if he/she allegedly (1) suffered an injury-in-fact that (2) was caused by the defendant's challenged conduct and (3) is redressable by a favorable judicial decision.

References

- Lujan v. Defs. of Wildlife, 504 U.S. 555, 560–61 (1992) (holding that standing requires proof of an injury-in-fact, causation, and redressability).
- 32 Am. Jur. 2d Federal Courts § 577 (2019) (explaining the injury-in-fact element of standing).

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Standing doctrine



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A federal statute imposes an excise tax of $100 on each new computer sold in the United States. It also appropriates the entire proceeds of that tax to a special fund, which is required to be used to purchase licenses for computer software that will be made available for use, free of charge, to any resident of the United States.

Is this statute constitutional?

A. No, because the federal government may not impose any direct taxes on citizens of the United States.

B. No, because the statute takes, without just compensation, the property of persons who hold patents or copyrights on computer software.

C. Yes, because it is a reasonable exercise of Congress's powers to tax and spend for the general welfare.

D. Yes, because the patent power authorizes Congress to impose reasonable charges on the sale of technology and to spend the proceeds of those charges to advance the use of technology in the United States.

Explanation:

Congressional taxing power

Type of tax	Definition	Constitutional requirements
Direct	• Taxes on persons or their property • Payment cannot be avoided	Allowed if: • apportioned proportionately among states • reasonably related to revenue production
Indirect	• Taxes on goods/transactions • Payment can be avoided or shifted to another (eg, consumer)	Allowed if: • identical taxation in every state • reasonably related to revenue production
Export	• Taxes on goods/services leaving the country	Not allowed

The **taxing and spending clause** gives **Congress broad power** to tax and spend for the **general welfare** (ie, any public purpose). Congress can use its taxing power:

- **directly** (ie, on persons or real property) – so long as the tax is apportioned proportionately among the states and reasonably related to revenue production **(Choice A)** *or*
- **indirectly** (ie, on goods or transactions) – so long as the tax is identical in every state and reasonably related to revenue production.

Here, a federal statute imposes an *indirect* excise tax on new computers sold in the U.S. This tax is identical in every state since it applies to every sale of a new computer. Excise taxes are a common and reasonable way to raise revenue, and the proceeds of this tax are used for the general welfare—to provide free computer-software licenses to U.S. residents. Therefore, the statute is constitutional.

(Choice B) The takings clause prohibits the government from taking private property for public use without just compensation. But here, the federal government is *purchasing* licenses to use the computer software—not *taking* property from the holders of patents or copyrights on that software.

(Choice D) Under the copyright and patent clause, Congress can enact laws encouraging the production of creative works (copyright laws) and inventions (patent laws). But this clause does not authorize Congress to impose reasonable charges on, or spend proceeds from, the sale of these works or inventions.

Educational objective:

Congress has broad power to impose (1) direct taxes that are apportioned proportionately among the states and reasonably related to revenue production or (2) indirect taxes that are identical in every state and reasonably related to revenue production.

References

- Thomas v. United States, 192 U.S. 363, 371 (1904) (holding that a tax on the sale of stock is an indirect tax).
- Fernandez v. Wiener, 326 U.S. 340, 360–63 (1945) (upholding an indirect tax that is identical in every state).

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Congress passed a statute that expressly authorizes suits for damages in federal courts against state governments that violate federal copyright laws.

A photographer sued a state in a federal district court for damages pursuant to the federal statute. The photographer claimed that the state published her copyrighted photographs and videos on its website without her permission. The state has moved to dismiss the photographer's suit.

Should the court grant the state's motion?

A. No, because Article I grants Congress the power to enact laws that protect copyrighted materials.

B. No, because Articles I and III grant Congress the power to regulate the jurisdiction and procedures of the federal courts.

C. Yes, because the Eleventh Amendment prohibits the action for damages against the state in federal court.

D. Yes, because the Tenth Amendment prohibits the federal government from compelling states to act.

Explanation:

Eleventh Amendment

(state immunity from suit in federal court)

Immunity

- Suit brought by private party or foreign government
- Suit against state official violating state law
- Exceptions:
  - State consents to suit
  - Immunity removed by 13th, 14th, or 15th Amendment
  - State official sued for injunctive or declaratory relief
  - Damages to be paid by state officer personally (not state treasury)
  - State official sued for prospective (not retroactive) damages to be paid by state treasury

No immunity

- Suit brought by United States or other state
- Suit against local government (eg, counties, municipalities)
- Bankruptcy proceedings

The **Eleventh Amendment** generally prohibits private parties and foreign governments from suing a state for money damages or equitable relief in federal court. **Congress can abrogate** (ie, repeal) this immunity if it is **clearly acting to enforce** a Civil War Amendment—ie, the **Thirteenth, Fourteenth**, or **Fifteenth Amendment** (not seen here). Congress may then enact appropriate remedial legislation expressly subjecting the states to private suits for damages in federal court.

However, **Congress cannot abrogate** a state's Eleventh Amendment immunity **through its other powers**.* This includes its Article I power to enact laws protecting copyrighted materials **(Choice A)**. This also includes its power under Articles I and III to regulate the jurisdiction of the federal courts **(Choice B)**. Therefore, the court will likely grant the state's motion to dismiss the photographer's suit pursuant to the Eleventh Amendment.

*The lone exception to this rule is that Congress may subject nonconsenting states to bankruptcy proceedings through the Article I bankruptcy clause. The Supreme Court has justified this exception based on the bankruptcy clause's unique history and exceptionalism.

(Choice D) The Tenth Amendment prohibits the federal government from compelling states to enact state laws or enforce federal laws. However, states can be subjected to suits for damages in federal court if Congress validly abrogates state immunity.

Educational objective:

The Eleventh Amendment generally grants states immunity from suits for damages. Congress can abrogate this immunity when it clearly acts to enforce a Civil War Amendment but cannot do so through its other powers—eg, its powers to protect copyrights and regulate federal court jurisdiction.

References

- Allen v. Cooper, 140 S. Ct. 994, 1007 (2020) (holding that Congress cannot abrogate the states' Eleventh Amendment immunity through the Article I copyright clause).

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Congress recently enacted a statute imposing severe criminal penalties on anyone engaged in trading in the stock market who, in the course of that trading, takes "unfair advantage" of other investors who are also trading in the stock market. The statute does not define the term "unfair advantage." There have been no prosecutions under this new statute.

The members of an association of law school professors that is dedicated to increasing the clarity of the language used in criminal statutes believe that this statute is unconstitutionally vague. Neither the association nor any of its members is currently engaged in, or intends in the future to engage in, trading in the stock market.

The association and its members bring suit against the Attorney General of the United States in a federal district court, seeking an injunction against the enforcement of this statute on the ground that it is unconstitutional.

May the federal court determine the merits of this suit?

A. No, because a suit for an injunction against enforcement of a criminal statute may not be brought in federal court at any time prior to a bona fide effort to enforce that statute.

B. No, because the plaintiffs do not have an interest in invalidating this statute that is adequate to ensure that the suit presents an Article III controversy.

C. Yes, because the plaintiffs seek real relief of a conclusive nature—an injunction against enforcement of this statute.

D. Yes, because the suit involves a dispute over the constitutionality of a federal statute.

Explanation:

Article III only allows federal courts to determine the merits of *actual* **cases or controversies**. The **doctrine of standing** ensures that this requirement is met by requiring the plaintiff to show that he/she has a **personal stake** in the outcome of the case. This exists when the plaintiff has suffered an **injury-in-fact**—ie, **concrete and particularized** harm that is **actual or imminent**—that was caused by the challenged conduct and is redressable by a favorable decision.

Here, the association and its members sued in federal court to challenge the constitutionality of the stock market statute. But the statute has not caused these plaintiffs an injury-in-fact because neither is currently engaged in, or intends to engage in, stock market trading (no actual or imminent harm). This means that the plaintiffs do not have an interest in invalidating the statute that would satisfy Article III's case-or-controversy requirement. As a result, the court cannot determine the merits of their suit.

(Choice A) Even if a criminal statute has not been enforced, a suit for an injunction to prevent such enforcement *may* be brought in federal court if the plaintiff shows that the statute poses an immediate threat of harm (not seen here).

(Choice C) The injunction would provide real and conclusive relief. But the federal court does not have the power to issue an injunction in a suit that does not meet the case-or-controversy requirement (as seen here).

(Choice D) Federal courts have subject-matter jurisdiction over suits involving the constitutionality of federal statutes. But the court cannot hear the merits of such a suit when, as here, the plaintiffs lack standing to assert their constitutional challenge.

Educational objective:

Under the doctrine of standing, an injury-in-fact exists when the plaintiff has suffered concrete and particularized harm that is actual or imminent.

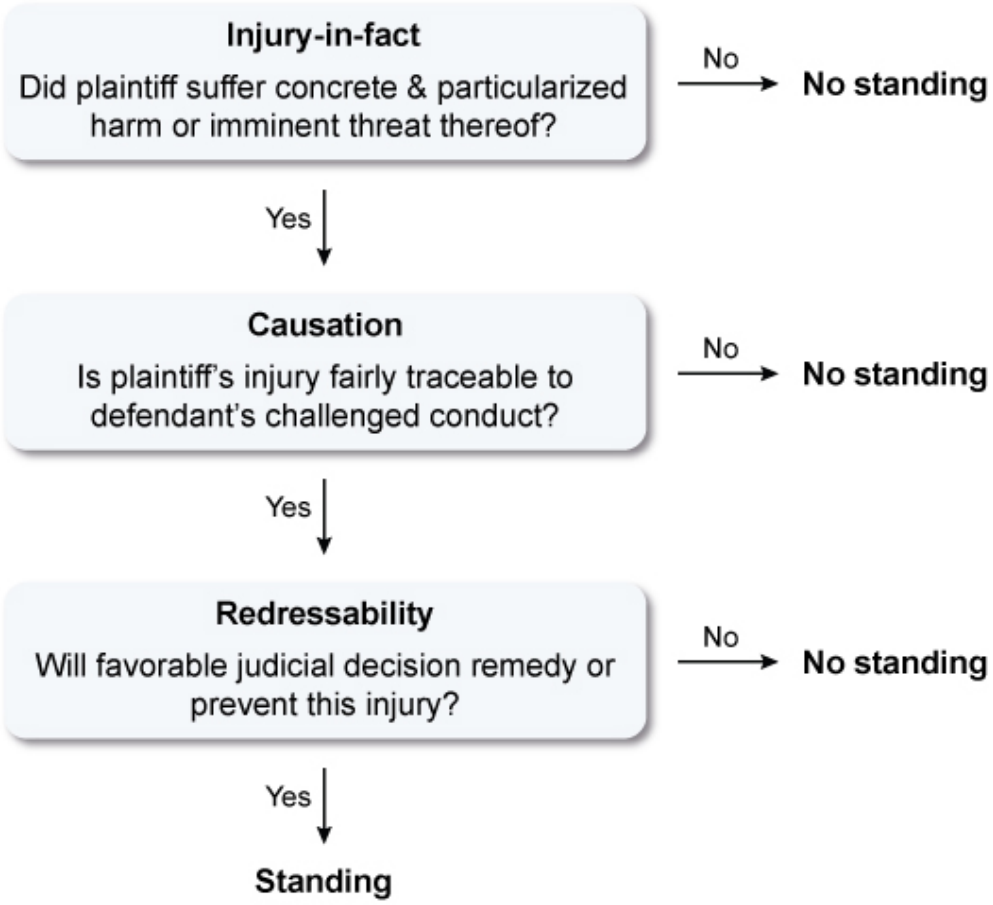
References

- Lujan v. Defs. of Wildlife, 504 U.S. 555, 560–61 (1992) (holding that standing requires proof of an injury-in-fact, causation, and redressability).

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Standing doctrine



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Congress enacted a statute providing grants of federal funds for the restoration and preservation of courthouses that were built before 1900 and are still in use. The statute contains an inseverable condition requiring that any courthouse restored with the aid of such a grant must be equipped with ramps and other facilities necessary to accommodate physically handicapped people.

A state law requires public buildings in the state to have ramps and other facilities for handicapped people. It exempts from those requirements any building that is more than 70 years old if the State Board of Architects finds that the installation of such facilities would destroy the architectural integrity of the building.

A county courthouse in the state was built in 1895 and is still in use. It does not contain ramps or other special facilities for handicapped people. The State Board of Architects has determined that the installation of those facilities would destroy the architectural integrity of the building. Nevertheless, the county applies for a federal grant to restore and preserve that county's courthouse.

If the county restores the courthouse with the aid of a federal restoration and preservation grant, is the county bound to install ramps and other facilities for handicapped people in that building?

A. No, because any acceptance of this condition by the county would, as a matter of law, be considered to be under duress.

B. No, because the Constitution does not authorize the federal government to direct the actions of the states or any of their political subdivisions with respect to matters affecting their own governmental buildings.

C. Yes, because Congress may impose reasonable conditions related to the public welfare on grants of federal funds to public bodies when the public bodies are free to accept or reject the grants.

D. Yes, because the rights of handicapped and disabled people are fundamental rights that take precedence, as a constitutional matter, over considerations of architectural integrity.

Explanation:

Conditional federal funding

(Article I, section 8 spending clause)

Conditions must meet all the following criteria:

- clearly stated & unambiguous
- reasonably related to federal interest in funded program
- do not require states to engage in unconstitutional activity
- do not unduly coerce states into accepting

The **taxing and spending clause** gives **Congress broad discretion** to tax and spend for the **general welfare** (ie, for any public purpose). Congress may use its spending power to incentivize state or local governments to act in certain ways by placing **conditions** on their **receipt of federal funds**. But these conditions are only **valid if** they:

- are **clearly stated and unambiguous** so that potential recipients may make an informed decision
- are **reasonably related** to the purpose for which the funds will be expended
- do **not** require recipients to engage in **unconstitutional activity** *and*
- are **not unduly coercive**—ie, are not so extreme that they amount to a "gun to the head."

Here, Congress imposed a condition on the receipt of federal grants for the restoration and preservation of historic courthouses (public welfare). That condition is valid—and the county will be bound to that condition if it restores its courthouse with the aid of such a grant—because:

- it unambiguously requires any courthouse restored with the aid of such a grant to be equipped with facilities for handicapped people
- installing handicap facilities in courthouses is reasonably related to restoring and preserving those buildings
- recipients are not required to do anything unconstitutional *and*
- being required to install handicap facilities is a relatively minor condition for receiving funds to restore and preserve an entire courthouse (ie, no undue coercion) **(Choice A)**.

(Choice B) Under the Tenth Amendment, the federal government cannot *direct* states or their political subdivisions (eg, counties) to enact legislation or enforce federal law. But Congress may *incentivize* them to act through conditional federal funding (as seen here).

(Choice D) Handicapped and disabled people enjoy the same fundamental rights as everyone else—but no such rights are implicated here.

Educational objective:

Conditional federal funding is valid if the conditions (1) are clear and unambiguous, (2) are reasonably related to the purpose for which the funds are expended, (3) do not require recipients to engage in unconstitutional activity, and (4) are not unduly coercive.

References

- South Dakota v. Dole, 483 U.S. 203, 207–12 (1987) (holding that conditions on states' receipt of federal funds must be unambiguous, related to the purpose of the funding, and noncoercive).

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A newly enacted federal statute appropriates $100 million in federal funds to support basic research by universities located in the United States. The statute provides that "the 10 best universities in the United States" will each receive $10 million. It also provides that "the 10 best universities" shall be "determined by a poll of the presidents of all the universities in the nation, to be conducted by the United States Department of Education." In responding to that poll, each university president is required to apply the well-recognized and generally accepted standards of academic quality that are specified in the statute. The provisions of the statute are inseverable.

Which of the following statements about this statute is correct?

A. The statute is constitutional, because Congress has plenary authority to determine the objects of its spending and the methods used to achieve them, so long as they may reasonably be deemed to serve the general welfare and do not violate any prohibitory language in the Constitution.

B. The statute is unconstitutional, because the limitation on recipients to the 10 best universities is arbitrary and capricious and denies other high-quality universities the equal protection of the laws.

C. The statute is unconstitutional, because the reliance by Congress on a poll of individuals who are not federal officials to determine the recipients of its appropriated funds is an unconstitutional delegation of legislative power.

D. The validity of the statute is nonjusticiable, because the use by Congress of its spending power necessarily involves political considerations that must be resolved finally by those branches of the government that are closest to the political process.

Explanation:

Congress's taxing & spending powers

(U.S. Const. art. I, sec. 8, cl. 1)

Taxing

- Direct taxes – must be:
  - apportioned evenly among states *and*
  - reasonably related to revenue raising
- Indirect taxes – must be:
  - uniformly applied in every state *and*
  - reasonably related to revenue raising
- Export taxes – always unconstitutional

Spending

- Funds must be spent for general welfare
- Conditions on receipt of funds must:
  - be clearly stated & unambiguous
  - be reasonably related to federal interest in funded program
  - not require states to engage in unconstitutional activity *and*
  - not unduly coerce states into accepting

The **taxing and spending clause** gives **Congress** the **power to spend** federal revenue for the **general welfare**—ie, for any public purpose. Aside from this narrow constraint, Congress has plenary (ie, absolute) authority to determine the objects of its spending and the methods used to achieve them. But when doing so, Congress cannot violate any prohibitory language in the Constitution (eg, equal protection clause).

Here, the federal statute appropriates $100 million in federal funds to support basic research by universities located in the United States. Such research may reasonably be deemed to serve the general welfare, and the statute does not violate any prohibitory language in the Constitution. And since Congress has plenary authority to determine its spending goals and the methods for achieving them, the statute is constitutional.

(Choice B) Equal protection principles extend to all persons and organizations. And though the statute limits funding to the 10 best universities, *all* universities are eligible to receive votes and have their presidents' votes counted. Therefore, the statute does not deny other high-quality universities the equal protection of the laws.

(Choice C) Congress *can* delegate legislative power if it provides intelligible guidelines for the delegates to follow. This standard is met here since Congress has clearly directed the Department of Education to conduct a poll of university presidents and specified the standards that must be applied in responding to that poll.

(Choice D) Federal courts are prohibited from adjudicating political questions—ie, issues that (1) are reserved to the executive or legislative branch or (2) lack judicially manageable standards for resolution. But since courts regularly determine the constitutionality of federal statutes, this prohibition does not apply.

Educational objective:

The taxing and spending clause gives Congress broad power to spend federal revenue, as long as the spending (1) is for the general welfare and (2) does not violate any prohibitory language in the Constitution.

References

- South Dakota v. Dole, 483 U.S. 203, 207–08 (1987) (explaining that Congress's spending power must serve a public purpose and cannot violate any prohibitory language of the Constitution).

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The U.S. House of Representatives authorized a House committee to investigate current election laws and develop new legislation to close any loopholes that permit foreign governments to interfere in the U.S. election process. The House authorized this investigation because of widespread reports of foreign interference in the most recent presidential election. As part of its investigation, the House committee issued subpoenas to various financial institutions that sought the President's financial records for the years preceding her election to the presidency. The Internal Revenue Service (IRS) possesses nearly the same information as the financial records sought by the House committee.

The President filed suit against the financial institutions in federal court to enjoin them from complying with the congressional subpoenas.

Which of the following is the best argument in favor of the President's effort to obtain the injunction?

A. A congressional subpoena that seeks the President's personal information violates the separation of powers.

B. A subpoena is unnecessary when the information that Congress seeks can be reasonably obtained from a source other than the President.

C. The power to conduct investigations or issue subpoenas is not among the powers of Congress enumerated in Article I.

D. The President's private information from before taking office is protected by executive privilege.

Explanation:

The necessary and proper clause allows Congress to take actions that are reasonably necessary to carry out its enumerated Article I powers. Although conducting investigations and issuing subpoenas are not enumerated powers, investigations are reasonably necessary to obtain information that will help Congress carry out its enumerated powers **(Choice C)**. As part of an investigation, a congressional committee may issue subpoenas to compel testimony and/or the production of documents and tangible things related to the investigation.

However, a **congressional subpoena** that seeks the **President's personal information** raises significant separation of powers issues between these two branches of government. Without proper limitations, Congress could usurp presidential authority. But prohibiting *all* subpoenas seeking the President's personal information would undercut Congress's investigatory power **(Choice A)**. As a result, a **congressional committee** seeking the President's personal information **must provide detailed evidence** that the subpoena:

- is **necessary** to **obtain the information sought** because that information *cannot* be reasonably obtained from another source
- is **limited in scope** to a valid legislative purpose (not vague or overbroad) *and*
- does **not impose an undue burden** on the President's time and attention.

Here, the IRS possesses nearly the same information as the financial records sought by the House committee. Therefore, the President's best argument to enjoin the financial institutions from complying with the congressional subpoenas is that they are unnecessary since the information that Congress seeks *can* be reasonably obtained from a source other than the President—the IRS.

(Choice D) The President may assert executive privilege to prevent the disclosure of confidential documents and communications made in performance of *official* duties and responsibilities—not *private* functions (eg, the President's personal financial records sought here).

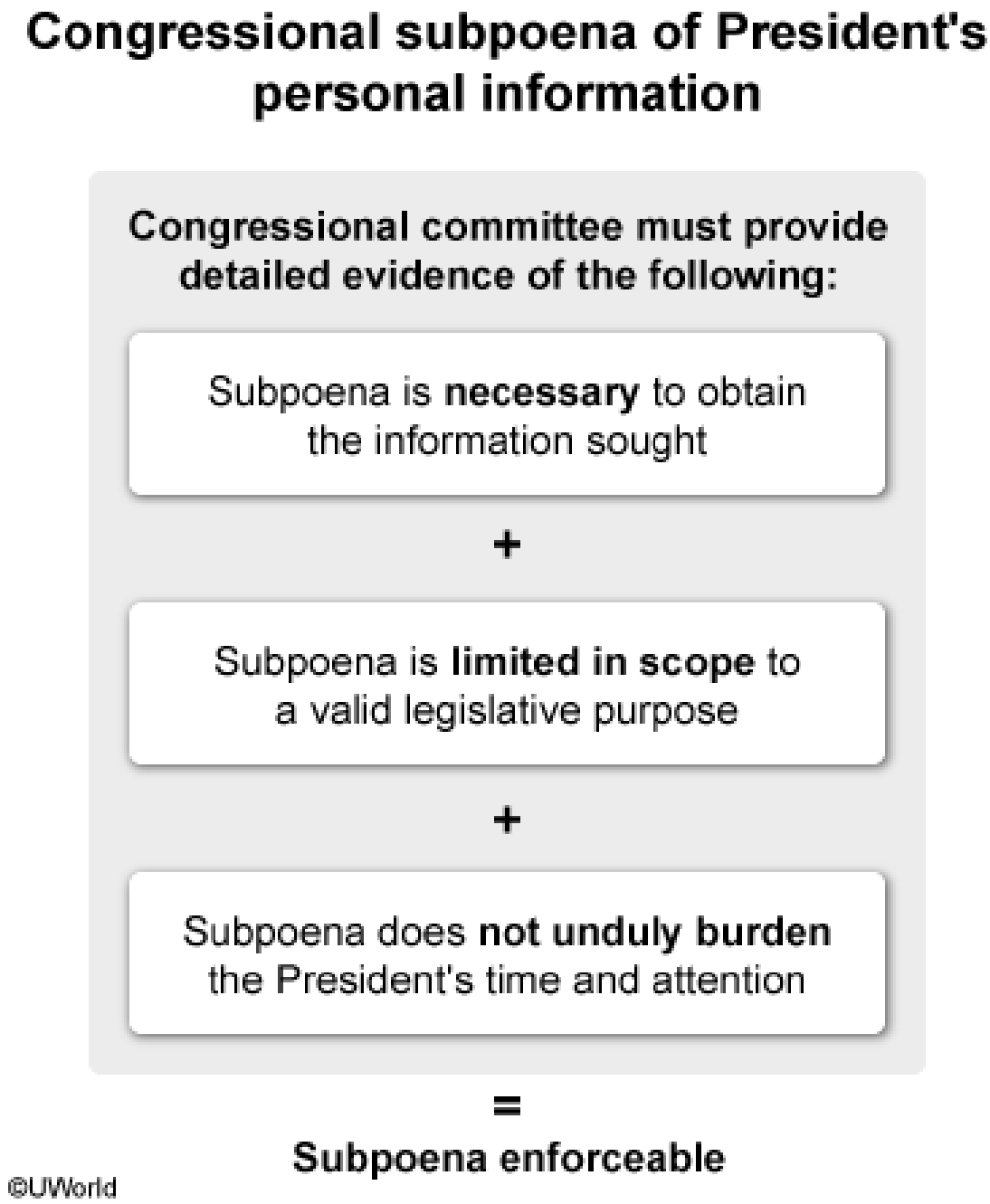
Educational objective:

A congressional committee seeking the President's personal information must provide detailed evidence that a subpoena (1) is necessary to obtain the information, (2) is limited in scope to a valid legislative purpose, and (3) does not unduly burden the President's time and attention.

References

- Trump v. Mazars, USA, Ltd. Liab. P'ship, 140 S. Ct. 2019, 2035–36 (2020) (setting forth the requirements for a congressional subpoena of the President's personal documents).

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A man mailed thousands of letters to individuals residing in his state that falsely claimed that the individuals were delinquent on their state tax payments. The letters further stated that the individuals needed to send a set amount of money to the listed address in order to avoid criminal prosecution. One of the individuals who received this letter contacted a federal agency. After investigating, the federal government charged the man with violating a federal statute that prohibits mailing misleading or false materials to obtain money.

At trial, the man argues that Congress had no authority to enact the federal statute and that the statute is a violation of his free speech rights protected by the First Amendment.

Is the court likely to find the statute constitutional?

A. No, because although Congress may regulate mail sent interstate, it lacks the power to regulate mail sent intrastate.

B. No, because the statute violates the man's First Amendment rights.

C. Yes, because Congress has the power to provide for the general welfare, and the statute directly advances and is narrowly tailored to achieve a substantial government interest.

D. Yes, because Congress has the power to regulate the mail, and the letters are not constitutionally protected speech.

Explanation:

The necessary and proper clause allows Congress to take actions that are reasonably necessary to carry out its enumerated Article I powers. As a result, **Congress may** regulate and restrict what is sent through the mail to carry out its enumerated power to **establish post offices and post roads** (as seen here). However, Congress must **comply with other constitutional provisions** when exercising this power, including the First Amendment **free speech clause**.

Under the free speech clause, Congress may **freely regulate and restrict** materials containing (1) unprotected speech or (2) **commercial speech** that is **false or misleading** or concerns unlawful activity. Here, the man's letters are false commercial speech because they falsely claimed that the individuals were delinquent on their state tax payments and needed to pay money to avoid criminal prosecution. As a result, the letters are not protected by the First Amendment, and the court will likely find the statute constitutional **(Choice B)**.

(Choice A) Congress has the power to regulate mail sent interstate (ie, between two or more states) as well as mail sent intrastate (ie, within a state).

(Choice C) Congress has the power to spend for the general welfare, but this power does not apply here since the federal statute is not a spending measure. Additionally, the statute need not directly advance or be narrowly tailored to achieve a substantial government interest. This intermediate level of First Amendment scrutiny only applies to commercial speech that is true, is not misleading, and concerns a lawful activity (not seen here).

Educational objective:

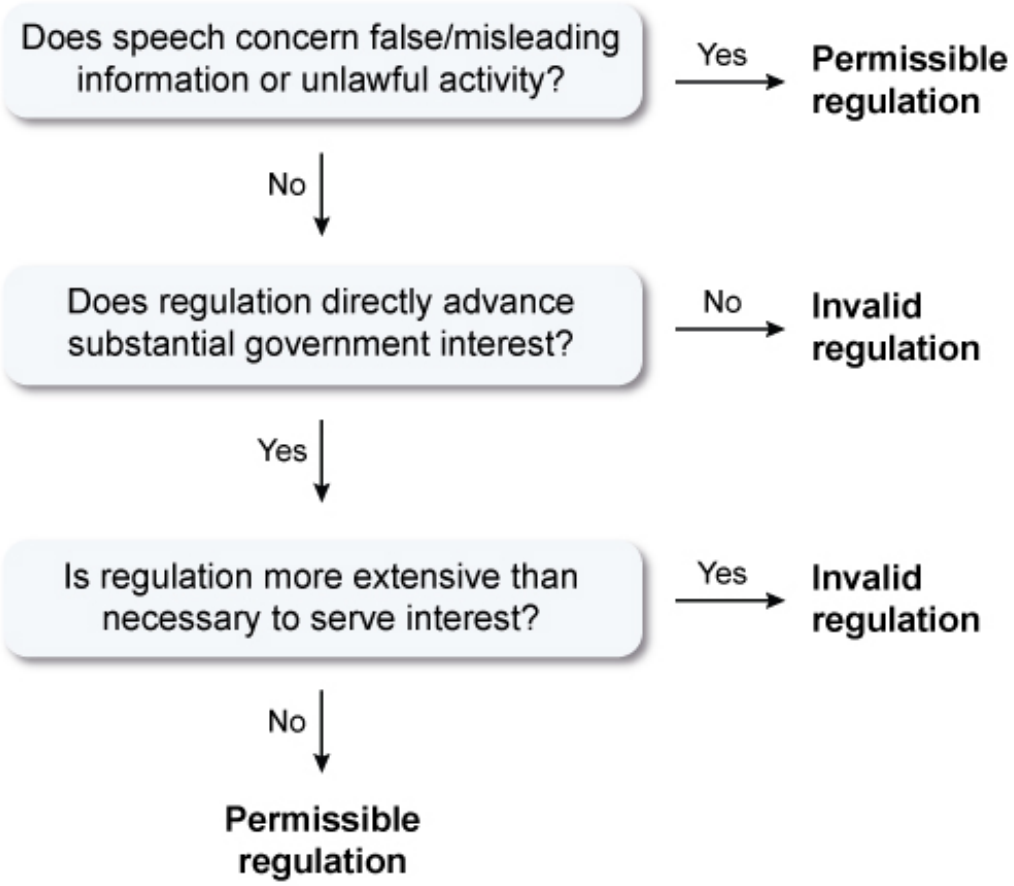
Congress has broad power to establish post offices and post roads, including regulating and restricting what may be sent by mail. When exercising this power, Congress does not violate the First Amendment free speech clause by restricting unprotected speech OR commercial speech that is false or misleading or concerns unlawful activity.

References

- U.S. Const. art. I, § 8, cl. 7 (power to establish post offices).
- U.S. Postal Serv. v. Council of Greenburgh Civic Ass'ns, 453 U.S. 114, 126 (1981) (explaining that Congress cannot exercise its postal power in a manner that violates the First Amendment).
- Cent. Hudson Gas & Elec. Corp. v. Pub. Serv. Comm'n, 447 U.S. 557, 566 (1980) (stating that false and misleading commercial speech is not protected by the First Amendment).

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Regulation of commercial speech



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Congress enacted a statute that authorized the construction of a monument commemorating the role of the United States in liberating a particular foreign nation during World War II. Another statute appropriated $3 million for the construction.

When the United States became involved in a bitter trade dispute with the foreign nation, the President announced that he was canceling the monument's construction and that he would not spend the appropriated funds. Although the actual reason for the President's decision was the trade dispute, the announcement stated that the reason was an unexpected rise in the federal deficit.

Assume that no other statutes apply.

Is the President's decision constitutional?

A. No, because the President failed to invoke his foreign affairs powers in his announcement.

B. No, because the President is obligated to spend funds in accordance with congressional directions.

C. Yes, because the President is vested with inherent executive power to control federal expenditures.

D. Yes, because the President's decision is a valid exercise of his foreign affairs powers.

Explanation:

Congress's taxing & spending powers

(U.S. Const. art. I, sec. 8, cl. 1)

Taxing

- Direct taxes – must be:
  - apportioned evenly among states *and*
  - reasonably related to revenue raising
- Indirect taxes – must be:
  - uniformly applied in every state *and*
  - reasonably related to revenue raising
- Export taxes – always unconstitutional

Spending

- Funds must be spent for general welfare
- Conditions on receipt of funds must:
  - be clearly stated & unambiguous
  - be reasonably related to federal interest in funded program
  - not require states to engage in unconstitutional activity *and*
  - not unduly coerce states into accepting

The **taxing and spending clause** gives **Congress very broad spending power**, which it exercises by proposing appropriations bills. Once an appropriations bill becomes law, the **President must spend** the **appropriated funds** as specifically **directed in the law**. That is because Article II obligates the President to take care that the laws are faithfully executed. Therefore, the President's decision not to spend the appropriated funds for the monument's construction is unconstitutional.

(Choices A & D) The President can never refuse to spend funds that are subject to a mandatory appropriation—even where foreign affairs are directly involved.

(Choice C) The Constitution does not vest the President with inherent executive power to control federal expenditures. Instead, the President must spend federal funds in accordance with congressional directives.

Educational objective:

An appropriations statute is a valid exercise of Congress's spending power. And the President must take care that the law is faithfully executed by spending the appropriated funds as specifically directed in the statute.

References

- U.S. Const. art. II, § 3 (take care clause).

- Train v. New York, 420 U.S. 35, 41 (1975) (requiring the EPA Administrator to spend the full amount authorized by the valid federal statute despite the President's order to withhold such funds).
- 63C Am. Jur. 2d Public Funds § 37 (2019) (explaining that the President and the executive branch do not have the power to impound congressionally appropriated funds).

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A recently enacted federal statute requires the President to make each appointment of a United States ambassador to a foreign country from a list of three individuals. The list is to be compiled by the Senate Foreign Relations Committee and approved by the full Senate in advance of the appointment. The statute also provides that Senate confirmation of the appointment is deemed to occur automatically 30 days after the time the President names an appointee from the list, unless the full Senate determines otherwise within the 30-day period.

Is this statute constitutional?

A. No, because the statute impermissibly restricts the plenary foreign affairs powers of the President.

B. No, because the statute violates the constitutional requirements for appointment of ambassadors of the United States.

C. Yes, because the statute is a necessary and proper measure in furtherance of Congress's power to regulate commerce with foreign states.

D. Yes, because the statute is consistent with the constitutional requirement that the presidential appointment of ambassadors be with the advice and consent of the Senate.

Explanation:

The **appointments clause** grants the **President** the **power to appoint ambassadors**, Supreme Court justices, and other principal federal officers with the Senate's advice and consent. This clause gives the President plenary (ie, exclusive) nomination power that **cannot be limited by Congress**. Therefore, the statute unconstitutionally infringes upon that power by limiting the President's ability to select ambassadorial nominees to a list compiled by a Senate committee.

This statute also provides for *automatic* Senate confirmation of any individual who had been named on the list of nominees approved by the Senate before the appointment. But Senate confirmation should only occur *after* a nomination, when the Senate gives **advice** (eg, by holding hearings) and then chooses to **consent to the nomination** by **majority vote**. Therefore, this statute also violates the majority-vote requirement **(Choice D)**.

(Choice A) The President does *not* have plenary power over foreign affairs since Congress also possesses powers in this area (eg, declare war, regulate foreign commerce).

(Choice C) The necessary and proper clause (article I, section 8) grants Congress the power to employ reasonably appropriate measures to carry out its other powers—eg, regulating commerce with foreign nations. But Congress cannot violate other constitutional provisions when exercising this power (as seen here).

Educational objective:

The appointments clause gives the President the power to appoint ambassadors, Supreme Court justices, and other principal federal officers with the advice and consent of the Senate. Congress cannot limit the President's plenary power to select nominees, and the Senate can only choose to consent to the nomination by majority vote.

References

- U.S. Const. art. II, § 2, cl. 2 (appointments clause).
- Edmond v. United States, 520 U.S. 651, 659 (1997) (stating that principal officers, including ambassadors, must be nominated by the President and confirmed by the Senate).

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Appointment clause (timeline)
(ambassadors, SCOTUS justices, principal federal officers)

President nominates



Senate gives advice (eg, holds hearings)



Senate consents (majority vote required)



SCOTUS = Supreme Court of the United States

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Congress passed a statute directing the United States Forest Service, a federal agency, to issue regulations to control campfires on federal public lands and to establish a schedule of penalties for those who violate the new regulations. The statute provides that the Forest Service regulations should "reduce, to the maximum extent feasible, all potential hazards that arise from campfires on Forest Service lands."

The Forest Service issued the regulations and the schedule of penalties directed by Congress. The regulations include a rule that provides for the doubling of the fine for any negligent or prohibited use of fire if the user is under the influence of alcohol or drugs.

Which of the following arguments best supports a finding that the rule providing for the fines is constitutional?

A. The executive branch of government, of which the Forest Service is part, has inherent rule-making authority over public lands.

B. The rule is justified by a compelling government interest in safeguarding forest resources.

C. The rule relates directly to law enforcement, which is an executive rather than a legislative function, and hence it does not need specific congressional authorization.

D. The rule was issued pursuant to a valid exercise of Congress's power to delegate rule-making authority to federal agencies.

Explanation:

The **nondelegation doctrine** prohibits Congress from delegating its exclusive legislative powers (eg, making or repealing laws). But **Congress can delegate** its ***incidental*powers** (eg, rule-making authority) if it provides an **intelligible principle**—ie, a clear statement defining:

- the **policy** Congress seeks to advance (eg, reduce campfire hazards on Forest Service lands)
- the **agency** to carry out that policy (eg, the United States Forest Service) *and*
- the **scope** of that agency's authority (eg, issue campfire regulations and establish a penalty schedule).

Since Congress properly delegated its rule-making authority to the United States Forest Service, its rule doubling the fine for a fire if the user is under the influence of alcohol or drugs is likely constitutional.

(Choice A) The Article IV property clause gives Congress (not the executive branch) inherent rule-making authority over federal lands. But Congress can delegate this incidental power to executive agencies.

(Choice B) The rule would only have to be justified by a compelling government interest—ie, satisfy strict scrutiny—if it substantially impacted a fundamental right or intentionally discriminated against a suspect class (not seen here).

(Choice C) Although law enforcement is an executive function, it must be exercised pursuant to congressional authorization (ie, federal law).

Educational objective:

Congress can delegate incidental legislative powers to federal agencies if it provides an intelligible principle—ie, a clear statement defining (1) the *policy* Congress seeks to advance, (2) the *agency* to carry out that policy, and (3) the *scope* of that agency's authority.

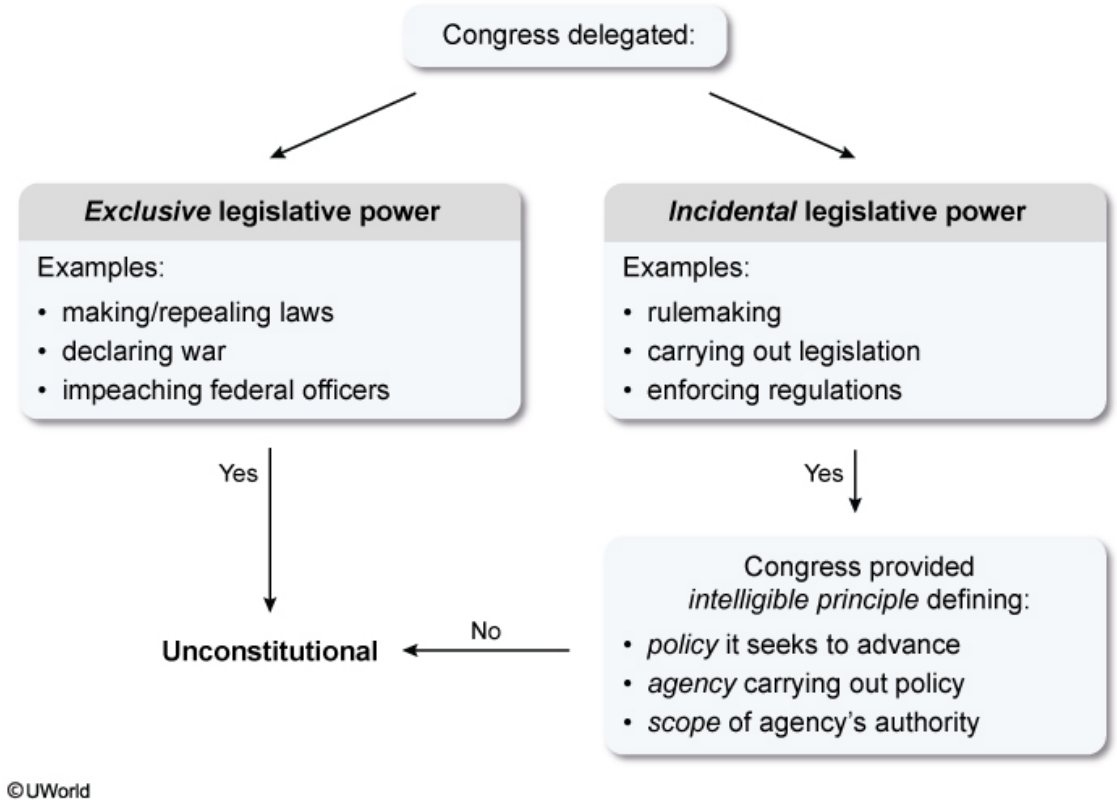
References

- Gundy v. United States, 139 S. Ct. 2116, 2123 (2019) (explaining that the nondelegation doctrine allows Congress to delegate power as long as it provides an intelligible principle to guide the delegate's use of discretion).

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Nondelegation doctrine



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The Federal Drone Safety Act establishes the Federal Drone Safety Commission, authorizes the Commission to issue licenses for the sale of unmanned aerial drones on terms that are consistent with the purposes of the Act, and makes the unlicensed sale of a drone a crime. The provisions of the Federal Drone Safety Act are inseverable.

A hobby store owner applied to the Federal Drone Safety Commission for a license to sell drones. The Commission held, and the store owner participated in, a trial-type proceeding on his license application. In that proceeding it was demonstrated that the store owner had repeatedly and intentionally sold drones without a license. As a result, the Commission denied the store owner's application for a license. The license denial was based on a Commission rule authorized by the Drone Safety Act that prohibited the issuance of drone licenses to persons who had engaged in such conduct. Nevertheless, the store owner continued to sell drones in his store.

The store owner was subsequently convicted of the crime of unlicensed sale of a drone. On appeal, he challenges the constitutionality of the Federal Drone Safety Act.

What will be the most likely holding of the reviewing court?

A. The Act is constitutional, because Congress may use the authority vested in it by the commerce clause to regulate the sale of drones and the provisions of the Act do not violate any prohibitory provision of the Constitution.

B. The Act is constitutional, because the Constitution generally authorizes Congress to enact all laws that are necessary and proper to advance the general welfare, and Congress could reasonably believe that the sale of drones by people like the store owner constitutes a threat to the general welfare.

C. The Act is unconstitutional, because Congress may not impose a criminal penalty on action that is improper only because it is inconsistent with an agency rule.

D. The Act is unconstitutional, because the mere sale of a drone is a wholly local matter that is beyond the regulatory authority of Congress.

Explanation:

The **commerce clause** gives Congress broad authority to regulate interstate commerce. This power even extends to **in-state activities** that, singly or in the aggregate, **substantially affect** interstate commerce. A substantial effect is **presumed** when the activity is **economic in nature**. So, though drone sales are wholly local, it is presumed that this economic activity substantially affects interstate commerce **(Choice D)**. Therefore, Congress can regulate these sales so long as it complies with prohibitory constitutional provisions.

One such provision is Article I, section 1 and its implied **nondelegation doctrine**. This doctrine prohibits Congress from delegating purely legislative powers. But it allows Congress to **delegate** its ***incidental* powers** (eg, rulemaking, legislative enforcement) if it provides an **intelligible principle**—ie, a clear statement defining:

- the **policy** Congress seeks to advance (eg, drone safety)
- the **agency** to carry out that policy (eg, the Federal Drone Safety Commission) *and*
- the **scope** of that agency's authority (eg, issue licenses on terms consistent with the Act's purpose).

Since Congress properly delegated its regulatory authority to the Federal Drone Safety Commission—and there is no evidence that the Act violates any other prohibitory provision of the Constitution—the reviewing court will likely hold that the Act is constitutional.

(Choice B) Article I authorizes Congress to *tax and spend* for the general welfare and to enact legislation necessary and proper to exercise this enumerated power. The Act here seeks to regulate drone sales—not tax or spend—for the general welfare. And since the commerce clause gives Congress direct authority to regulate this economic activity, its powers under the necessary and proper clause are unnecessary here.

(Choice C) The unlicensed sale of a drone is criminalized by the Act itself—not an agency rule. And Congress *could* impose a criminal penalty on an action that is inconsistent with an agency rule so long as the rule was created within the scope of the agency's delegated authority.

Educational objective:

Congress has broad authority to regulate economic activities since it is presumed that they substantially affect interstate commerce. But Congress can only delegate its incidental powers to another entity if it gives that entity an intelligible principle (**p**olicy, **a**gency, **s**cope) on which to base its regulations.

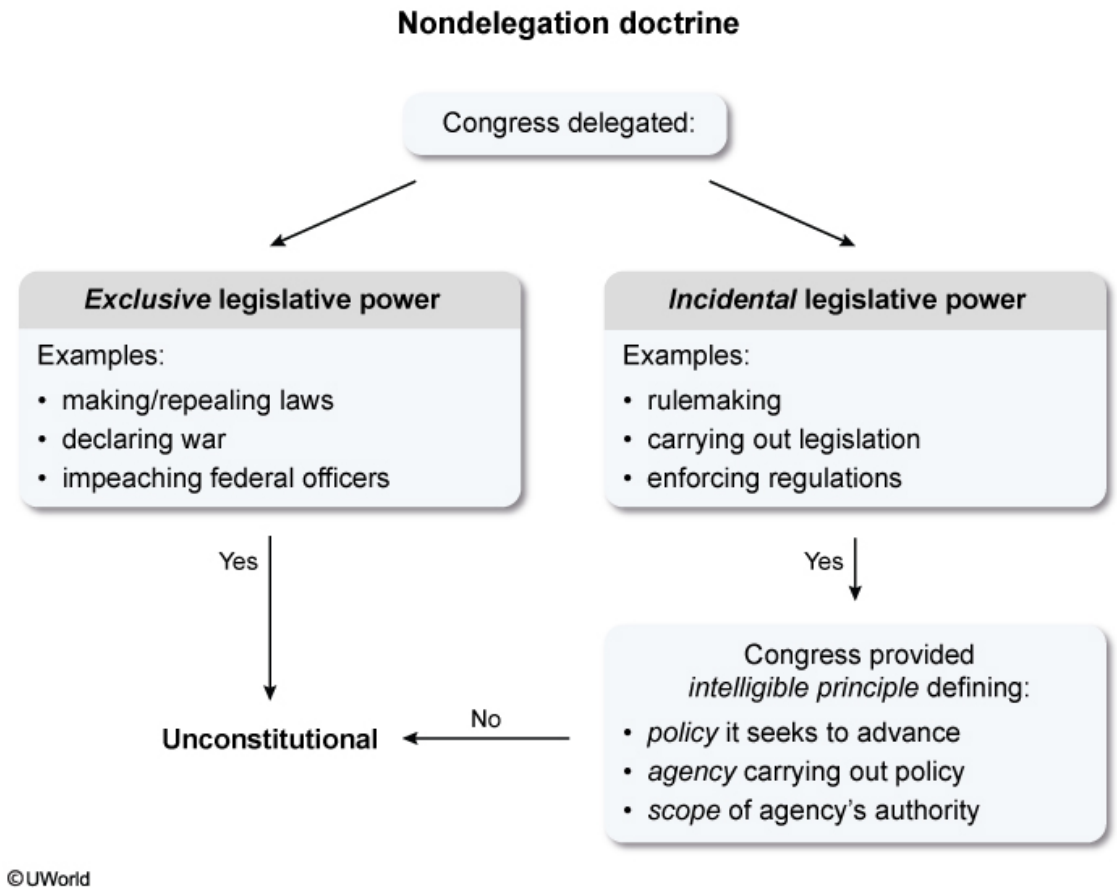
References

- Gonzales v. Raich, 545 U.S. 1, 17 (2005) (holding that Congress can regulate purely local activities that are part of an economic class of activities that substantially affect interstate commerce).

- Gundy v. United States, 139 S. Ct. 2116, 2123 (2019) (explaining that the nondelegation doctrine allows Congress to delegate power as long as it provides an intelligible principle to guide the delegee's use of discretion).

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A federal statute provides funds to private organizations that develop online learning materials for schools. A provision of the statute requires organizations that receive such funds to provide their educational materials to private, religious schools for use in their curriculum on the same terms that the organizations provide to public schools.

A taxpayer brought a suit in federal court to challenge the federal statutory provision as violating the establishment clause of the First Amendment. The taxpayer does not work in the education industry, nor does he have any children.

Does the taxpayer have standing to challenge the provision?

A. No, because the private organizations receiving the federal funds are not state actors.
B. No, because the provision did not cause the taxpayer to suffer a concrete and particularized injury.
C. Yes, because taxpayers have the right to challenge how Congress spends federal funds.
D. Yes, because the taxpayer's challenge is based on the establishment clause.

Explanation:

Article III standing

(suing on one's own behalf)

General rule	Plaintiff must prove: • injury-in-fact – concrete & particularized harm (actual or imminent) • causation – harm traceable to defendant's conduct AND • redressability – favorable judicial decision can remedy harm
Citizen	No standing as mere citizen
Legislator	Must prove personal stake in dispute & concrete injury to challenge constitutionality of government action
Taxpayer	Standing to challenge taxes owed—but not government spending unless: • challenging legislation enacted under taxing & spending power AND • legislation exceeds limits imposed by establishment clause

A federal court will not hear a case unless the plaintiff has **standing**—ie, a personal stake in the outcome of the case. To have standing, the plaintiff must assert an **injury-in-fact** that is **concrete and particularized**—a generalized grievance shared by many or all citizens is insufficient. Therefore, **taxpayers lack standing** to challenge the way the government spends tax dollars ***unless*** the taxpayer:

- challenges legislation enacted under Congress's **taxing and spending power** *and*
- alleges a violation of a **specific constitutional limitation** on this power—to date, the only limitation that the U.S. Supreme Court has found is the First Amendment establishment clause.

Here, the taxpayer is challenging a federal statute that provides funds to private organizations to develop online learning materials for schools (exercise of congressional spending power). He is specifically challenging the statutory provision requiring such organizations to provide materials to private, *religious* schools as a violation of the First Amendment establishment clause (specific constitutional limitation). The taxpayer therefore has standing to challenge this provision.

(Choice A) With the exception of the Thirteenth Amendment, the Constitution applies to government (ie, state) action. Private action is considered government action only if the state-action doctrine applies. But here, the taxpayer is challenging a federal law, so there is no need to determine whether the private organizations are engaging in state action.

(Choice B) The statutory provision did not cause the taxpayer to suffer a concrete and particularized injury since he does not work in the education industry and does not have

children who may be affected by the provision. However, as a taxpayer, he has standing to challenge the provision as violative of the establishment clause.

(Choice C) Taxpayers have the right to challenge how Congress spends federal funds only when the challenge alleges a violation of a specific constitutional limitation on Congress's taxing and spending power (as seen here).

Educational objective:

A plaintiff-taxpayer has standing when his/her suit (1) challenges legislation enacted under Congress's taxing and spending power and (2) alleges a violation of a specific constitutional limitation on that power (ie, the establishment clause).

References

- U.S. Const. art. III, § 2 (defining the case-or-controversy requirement).
- Flast v. Cohen, 392 U.S. 83, 102–04 (1968) (establishing the narrow exception to the rule against taxpayer standing).

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Terrorists in a foreign country kidnapped the United States ambassador to that country. They threatened to kill her unless the President of the United States secured the release of an identified person who was a citizen of the foreign country and was being held in a state prison in the United States pursuant to a valid conviction by that state.

The President responded by entering into an agreement with the foreign country which provided that the foreign country would secure the release of the United States ambassador on a specified date in return for action by the President that would secure the release of the identified person held in the state prison. The President then ordered the governor of the state to release the prisoner in question. The governor refused. No federal statutes are applicable.

Which of the following is the strongest constitutional argument for the authority of the President to take action in these circumstances requiring the state governor to release the prisoner?

A. The duty of the President to faithfully execute the laws authorizes him to resolve any conflicts between state and federal interests, making the determination of such matters wholly nonjusticiable.

B. The power of the President to appoint ambassadors authorizes him to take any action that he may think desirable to protect them from injury because those officials become agents of the President upon appointment.

C. The power of the President to conduct the foreign affairs of the United States includes a plenary authority to take whatever action the President deems wise to protect the safety of our diplomatic agents.

D. The power of the President to negotiate with foreign nations impliedly authorizes him to make executive agreements with them which prevail over state law.

Explanation:

Article II executive powers

Domestic powers	• Manage federal executive agencies & officers • Execute federal laws • Recommend legislation to Congress • Sign or veto bills • Appoint/remove federal officers • Prosecute & grant pardons for federal crimes
Foreign powers	• Serve as commander in chief • Negotiate/enter treaties (with 2/3 Senate approval) & executive agreements • Recognize foreign governments • Appoint/receive foreign diplomats

Article II gives the **President** a wide range of domestic and foreign powers. In **foreign affairs**, the President's **power** is **at its zenith** because it is imperative that the nation speak with one voice on the international stage. One such power is that the President can **negotiate and enter into** agreements with foreign nations. These agreements can take the form of either:

- **treaties** – formal agreements that take effect once the **Senate gives advice and consents** by a two-thirds vote *or*
- **executive agreements** – less formal agreements that take effect as soon as the **President enters into** them (ie, no Senate advice and consent required).

Here, the President entered into an executive agreement with the foreign country to secure the release of that country's citizen from state prison. And under the **supremacy clause**, **executive agreements**—which carry the force of federal law—**prevail over** conflicting **state laws**. Therefore, this is the strongest constitutional argument for the President's authority to require the governor to release the foreign country's citizen from state prison.

(Choice A) The President's duty to faithfully execute federal laws does *not* authorize him/her to resolve conflicts between state and federal interests. Instead, these conflicts are justiciable and must be resolved in court.

(Choices B & C) Article II grants the President the power to appoint ambassadors, who then become agents of the President. But this does not give the President plenary (ie, absolute) authority to take *any* action that he/she deems desirable or wise to protect them because the President must comply with the Constitution, treaties, and federal laws.

Educational objective:

The President has extensive powers in foreign affairs, including the power to negotiate and enter into executive agreements with foreign countries. And under the supremacy clause, executive agreements prevail over conflicting state laws.

References

- Am. Ins. Assoc. v. Garamendi, 539 U.S. 396, 415–17 (2003) (explaining the creation of executive agreements and their supremacy over conflicting state laws).

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Congress passed a bill prohibiting the President from granting a pardon to any person who has not served at least one-third of the sentence imposed by the court that convicted the person. The President vetoed the bill, claiming that it was unconstitutional. Nevertheless, Congress passed it over his veto by a two-thirds vote of each house.

Is this act of Congress constitutional?

A. No, because a presidential veto based upon constitutional grounds may be overridden only with the concurrence of three-fourths of the state legislatures.

B. No, because it interferes with the plenary power of the President to grant pardons.

C. Yes, because it is a necessary and proper means of carrying out the powers of Congress.

D. Yes, because it was enacted over the President's veto by a two-thirds vote of each house.

Explanation:

The Constitution gives each branch of government separate and distinct powers that generally cannot be exercised by another branch. This establishes a system of **checks and balances** that prevents concentration of power. The **President** (ie, executive branch) has the distinct **power to enforce laws**. This includes the plenary (ie, absolute) power to **grant reprievesand pardons** to persons who commit federal offenses (except in cases of impeachment). And since the other branches cannot interfere with this power in any way, this act of Congress is unconstitutional.

(Choice A) Article II grants the President the power to veto a bill for any reason, which can only be overridden by a two-thirds vote in each house of Congress. A three-fourths vote of the state legislatures is generally part of the constitutional amendment process—not the federal legislative process.

(Choice C) The necessary and proper clause gives Congress the power to use reasonably appropriate means to carry out its other powers. But it cannot violate other constitutional provisions when doing so (as seen here).

(Choice D) Although the bill was enacted into law over the President's veto by a two-thirds vote of each house of Congress, it is unconstitutional since it interferes with the President's plenary power to issue pardons.

Educational objective:

Under the separation-of-powers doctrine, each branch of government has separate and distinct powers that generally cannot be exercised by another branch—eg, Congress and the judiciary cannot interfere with the President's plenary power to grant reprieves and pardons.

References

- U.S. Const. art. II, § 2, cl. 1 (pardon power).
- Schick v. Reed, 419 U.S. 256, 266 (1974) (stating that Congress cannot alter the President's pardon power).

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Federal checks and balances
• Veto legislation
• Call special congressional session
• Adjourn Congress (rare)
Legislative
(Congress)
Executive
(President)
Bill
• Override veto
• Impeach & remove President
• Withhold funds
• Reject treaties/appointments (Senate only)
• Impeach & remove judges
• Reject judicial nominations (Senate only)
• Nominate judges
• Grant reprieves & pardons
Judicial
(Supreme Court & federal courts)
• Declare laws unconstitutional
• Declare executive actions unconstitutional
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A baseball fan has a fierce temper and an extremely loud voice. Attending a baseball game in which a number of calls went against the home team, the fan repeatedly stood up, brandished his fist, and angrily shouted, "Kill the umpires." The fourth time he engaged in this conduct, many other spectators followed the fan in rising from their seats, brandishing fists, and shouting, "Kill the umpires."

The home team lost the game. Although no violence ensued, spectators crowded menacingly around the umpires after the game. As a result, the umpires were able to leave the field and stadium only with the help of a massive police escort.

For his conduct, the fan was charged with inciting to riot and was convicted in a jury trial in state court. He appealed. The state supreme court reversed his conviction. In its opinion, the court discussed in detail decisions of the United States Supreme Court dealing with the First Amendment free speech clause as incorporated into the Fourteenth Amendment. At the end of that discussion, however, the court stated that it "need not resolve how, on the basis of these cases," the United States Supreme Court would decide the fan's case. "Instead," the court stated, "this court has always given the free-speech guarantee of the state's constitution the broadest possible interpretation. As a result, we hold that in this case, where no riot or other violence actually occurred, the state constitution does not permit this conviction for incitement to riot to stand."

The United States Supreme Court grants a writ of certiorari to review this decision of the state supreme court.

In this case, how should the United States Supreme Court rule?

A. Affirm the state supreme court's decision, because the fan's ballpark shout is commonplace hyperbole that cannot, consistent with the First and Fourteenth Amendments, be punished.

B. Dismiss the writ as improvidently granted, because the state supreme court's decision rests on an independent and adequate state-law ground.

C. Remand the case to the state supreme court with directions that it resolve the First and Fourteenth Amendment free-speech issue that it discussed in such detail.

D. Reverse the decision of the state supreme court, because incitement to violent action is not speech protected by the First and Fourteenth Amendments.

Explanation:

The **Supreme Court of the United States** (SCOTUS) may use its discretionary appellate jurisdiction and grant a writ of certiorari to review **state court judgments**. But since SCOTUS may only review such judgments if they are based on federal law, it **cannot review** a judgment based on **adequate and independent state grounds**. This occurs when:

- **state law fully resolves** the matter, so the outcome of the case is not affected by federal law (adequate) *and*
- the state court **did not rely on federal law** to reach its decision (independent).

If a writ of certiorari was improvidently (ie, incorrectly) granted in such a case, SCOTUS must dismiss the writ.

Here, the state supreme court reversed the fan's criminal conviction for inciting a riot on a *state* constitutional ground. The court held that the state constitution grants broader free-speech protection than the U.S. Constitution (adequate ground). And though the court discussed First Amendment cases in detail, it clearly stated that its decision was not based on that caselaw (independent ground). Therefore, the state supreme court's decision rests on an independent and adequate state ground, and SCOTUS must dismiss the writ as improvidently granted.

(Choices A & D) When a case is decided on adequate and independent state grounds (as seen here), SCOTUS has no jurisdiction to affirm or reverse that case on its merits. As a result, SCOTUS cannot decide whether the fan's ballpark shout is commonplace hyperbole or unprotected speech subject to punishment.

(Choice C) The state court need not resolve the federal constitutional issue since its decision was based on an adequate and independent state ground. But even if the decision was not based on such a ground, SCOTUS would not ask the state court to resolve the federal constitutional issue. Instead, it would rule on that issue and remand the case to state court to resolve any remaining state-law issues.

Educational objective:

SCOTUS only has jurisdiction to review a state supreme court decision based on federal law—*not* adequate and independent state grounds.

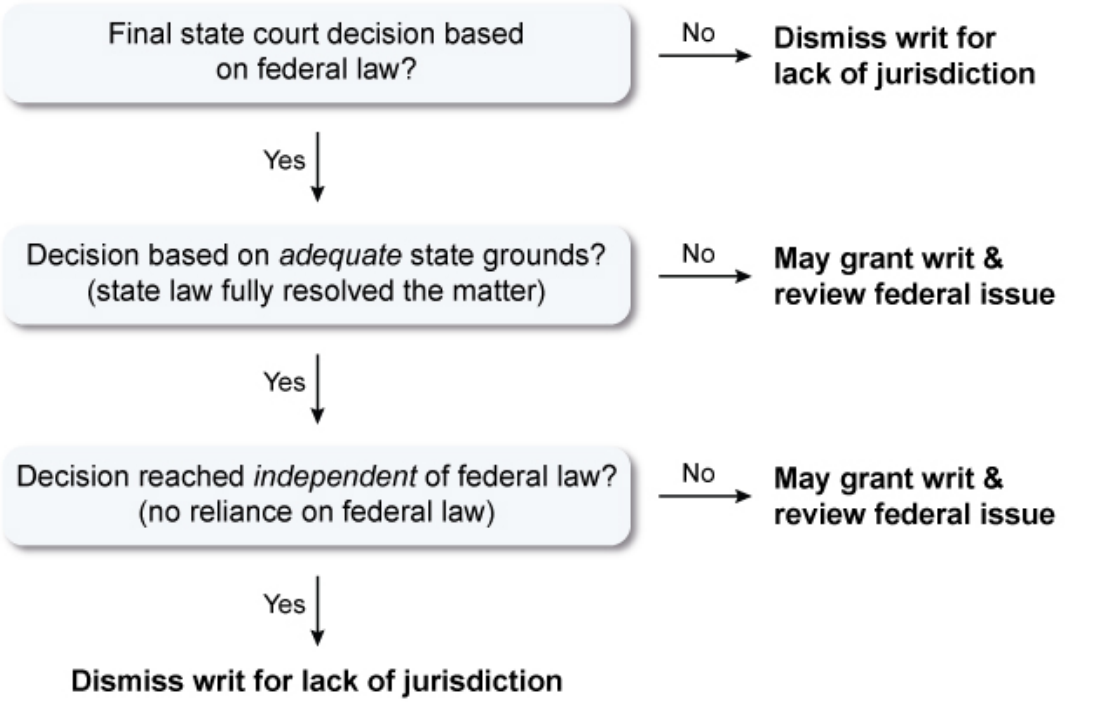
References

- Michigan v. Long, 463 U.S. 1032, 1040–41 (1983) (explaining when a state supreme court judgment rests on adequate and independent state grounds).

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SCOTUS review of state court decisions



SCOTUS = Supreme Court of the United States

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A plaintiff challenged the constitutionality of a state tax law, alleging that it violated the equal protection clauses of both the United States Constitution and the state constitution. The state supreme court agreed and held the tax law to be invalid. It said: "We hold that this state tax law violates the equal protection clause of the United States Constitution and also the equal protection clause of the state constitution because we interpret that provision of the state constitution to contain exactly the same prohibition against discriminatory legislation as is contained in the equal protection clause of the Fourteenth Amendment to the United States Constitution."

The state sought review of this decision in the United States Supreme Court, alleging that the state supreme court's determination of the federal constitutional issue was incorrect.

How should the United States Supreme Court dispose of the case if it believes that this interpretation of the federal Constitution by the state supreme court raises an important federal question and is incorrect on the merits?

A. Refuse to review the decision of the state supreme court, because a state government may not seek review of decisions of its own courts in the United States Supreme Court.

B. Refuse to review the decision of the state supreme court, because it is based on an adequate and independent ground of state law.

C. Reverse the state supreme court decision, because the equal protection clause of a state constitution must be construed by the state supreme court in a manner that is congruent with the meaning of the equal protection clause of the federal Constitution.

D. Reverse the state supreme court decision with respect to the equal protection clause of the federal Constitution and remand the case to the state supreme court for further proceedings, because the state and federal constitutional issues are so intertwined that the federal issue must be decided so that this case may be disposed of properly.

Explanation:

The **Supreme Court** of the United States (SCOTUS) has **appellate jurisdiction** over most **final state-court decisions** that present a **federal question**. But SCOTUS ***cannot* exercise** jurisdiction over, or review the merits of, such decisions if they are based on **adequate and independent state grounds**. This occurs when:

- **state law fully resolves** the issue and the outcome of the case is not affected by federal law (ie, adequate state grounds) *and*
- the final state-court decision is reached **without relying on federal precedent** (ie, independent state grounds).

Here, the state supreme court held that the state tax law violates the equal protection clauses of both the federal and state constitutions (adequate state grounds). But since that decision relied on the federal constitution to interpret the state constitution (no independent state grounds), SCOTUS has jurisdiction to *reverse** the state's interpretation of the federal constitution **(Choice B)**. Once it does so (resolving the federal question), it must then remand the case to the state supreme court for further proceedings on the remaining state-law issues.

*A remand would be unnecessary if SCOTUS agreed with (ie, affirmed) the state's interpretation of the federal constitution since there would be no issues remaining to be settled.

(Choice A) A state government can seek SCOTUS review of its own state-court decisions so long as they are *not* based on adequate and independent state grounds (as seen here).

(Choice C) States are not required to construe their constitutions in a manner congruent (ie, consistent) with the U.S. Constitution because states can always grant *broader* constitutional protections.

Educational objective:

SCOTUS has discretion to exercise appellate jurisdiction over state supreme court decisions that present a federal question—unless those decisions are based on adequate *and* independent state grounds. But once it resolves the federal question, SCOTUS must remand the case to the state supreme court if any state-law issues remain.

References

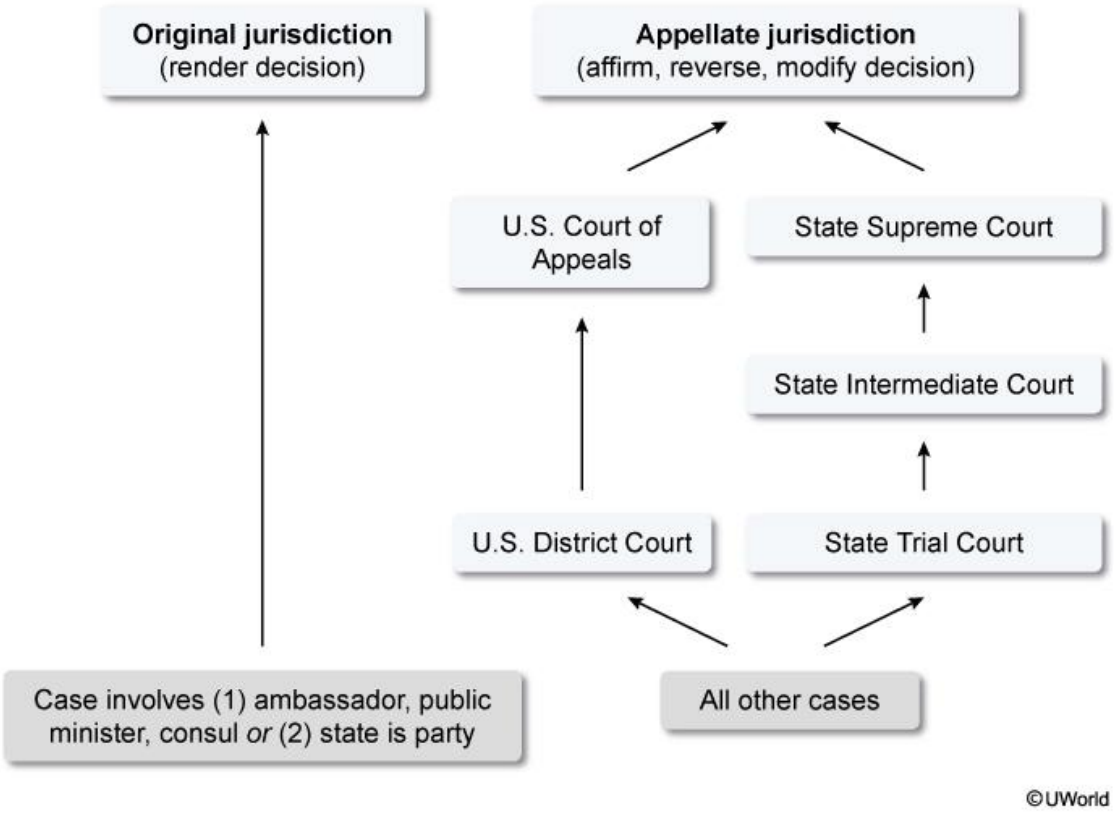
- 4 Am. Jur. 2d Appellate Review § 46 (2019) (explaining that state and federal grounds are interwoven when the state court decides that the state provision is identical to the federal provision).

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Jurisdiction of United States Supreme Court





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Because of a sudden and unanticipated severe shortage of heating fuel, the President has ordered all offices of federal executive agencies to be open only four days per week. The President's order allows an exception to the extent that emergency circumstances require different hours of operation (as in the case of federal hospitals).

When Congress enacted the appropriations statute for operating all federal executive agencies, its members assumed that the offices of those agencies would be open five days per week, but Congress did not include such a requirement in its appropriations statute or in any other statute.

Is the President's order constitutional?

A. No, because the heads of the various executive agencies have final responsibility for the operation of those agencies' offices.

B. No, because when they passed the statute appropriating monies for the operation of executive agencies, members of Congress assumed that those agencies' offices would be open five days per week.

C. Yes, because the Constitution vests the President with plenary authority to direct the administration of all federal agencies in any manner the President deems expedient.

D. Yes, because the order relates to the management of the executive branch and is not prohibited by any statute.

Explanation:

Article II gives the **President** a wide range of powers, which includes the power to manage federal executive agency operations by issuing executive orders. But **Congress can limit** those powers when these two branches **share authority** over a particular area (eg, executive agencies). When this occurs, the ***Youngstown*framework** is used to determine the **extent of the President's authority** to act by considering whether there was **congressional**:

- **authorization** – in which case the President had **maximum authority** to act and that act is **likely valid**
- **silence** – in which case the act is **valid so long as** it (1) fell within the President's **Article II powers** and (2) did **not interfere** with another branch's powers *or*
- **opposition** – in which case the President had **minimal authority** to act and that act is **likely invalid**.

Here, the President ordered all federal executive agency offices to be open only four days per week. Although Congress had assumed that agency offices would be open five days per week, it remained *silent* by not including such a requirement in any statute **(Choice B)**. And since the order falls within the President's Article II power to manage executive agencies and does not interfere with another branch's powers, the order is constitutional.

(Choice A) The heads of executive agencies have final responsibility for the operation of those agencies' offices. But this does not affect the constitutionality of the President's order since agency heads must comply with operational requirements validly imposed by Congress or the President when fulfilling that responsibility.

(Choice C) The President does *not* have plenary (ie, absolute) authority to direct the administration of federal agencies in any manner the President deems expedient. Instead, the President must comply with the Constitution and relevant federal statutes.

Educational objective:

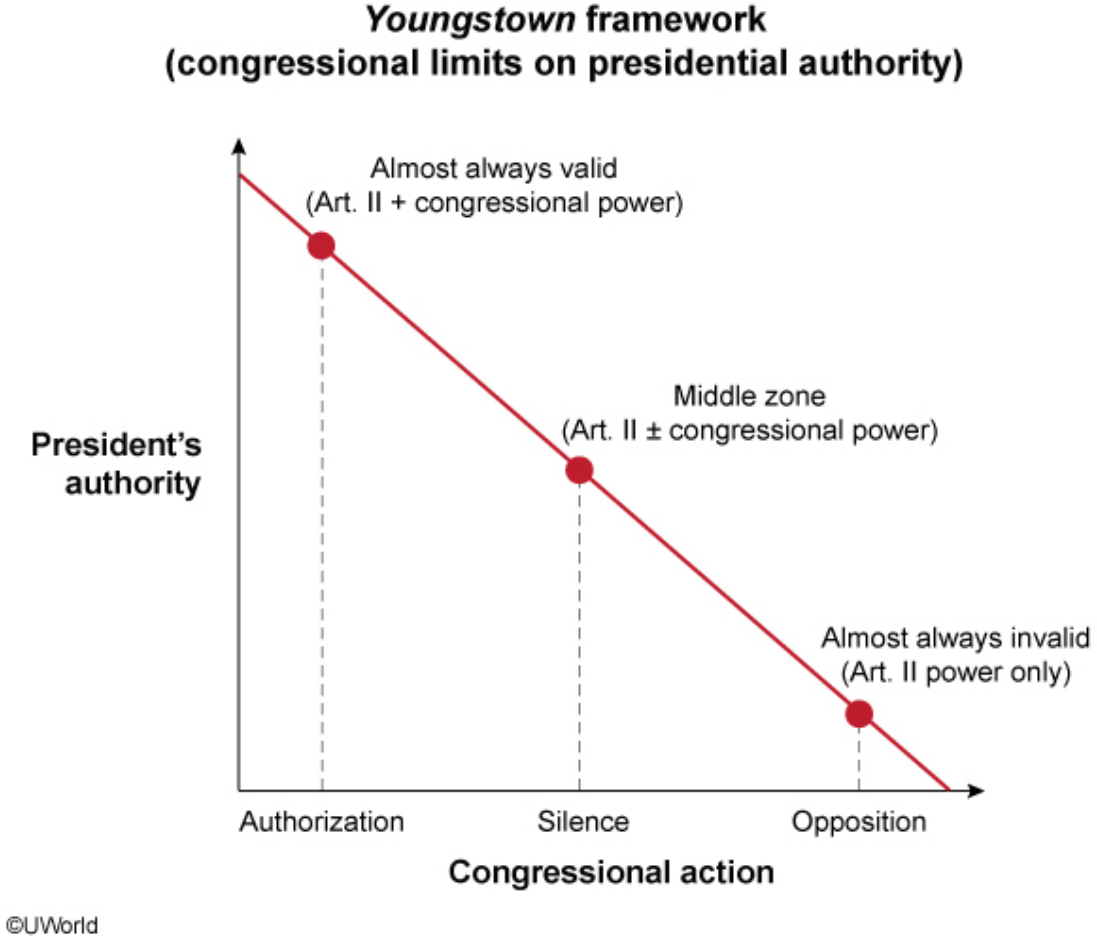
When Congress has remained silent about the President's actions, those actions are valid so long as they (1) fall within the President's Article II powers and (2) do not interfere with another branch's powers.

References

- Youngstown Sheet & Tube Co. v. Sawyer, 343 U.S. 579, 635–38 (1952) (Jackson, J., concurring) (setting forth the tripartite framework for analyzing the constitutionality of presidential actions).

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Youngstown framework
(congressional limits on presidential authority)
Almost always valid
(Art. II + congressional power)
Middle zone
(Art. II ± congressional power)
Almost always invalid
(Art. II power only)
President's authority
Authorization
Silence
Opposition
Congressional action

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An employer owed an employee $200 in unpaid wages. A law of the state in which the employer and the employee reside and in which the employee works provides that the courts of that state must decide claims for unpaid wages within 10 days of filing.

After the employee filed a claim in state court pursuant to this law, the employer filed a voluntary bankruptcy petition in federal bankruptcy court. In the bankruptcy proceeding, the employer sought to stay further proceedings in the unpaid wages claim on the basis of a federal statute which provides that a person who files a federal bankruptcy petition receives an automatic stay of all proceedings against him or her in all federal and state courts. No other federal laws apply.

In addition to the supremacy clause of Article VI, what is the most obvious constitutional basis for the imposition of a stay of the unpaid wages claim in the state court?

A. Congress's power to provide for the general welfare.

B. Congress's power to provide uniform rules of bankruptcy.

C. Congress's power to regulate commerce among the states.

D. Congress's power to regulate the jurisdiction and procedures of the courts.

Explanation:

Enumerated congressional powers

(Article I, Section 8)

- Taxing & spending
- Interstate & foreign commerce
- War, armed forces, militia
- Coin & borrow money
- Immigration & naturalization
- Mail
- Copyright & patent laws
- Federal courts
- District of Columbia
- Bankruptcy
- Rules concerning captures

Here, a state law requires that a state court decide unpaid-wages claims within 10 days of filing. But a federal statute requires an automatic stay of such claims if a party files a federal bankruptcy petition. Since the **supremacy clause** establishes that **federal laws** take **precedence** over **conflicting state laws**, the federal statute will trump the state law so long as the statute is a valid exercise of Congress's **enumerated powers**.

One enumerated power is the authority to provide **uniform rules of bankruptcy** across the country, which prevent inconsistent laws and judgments in different states. Therefore, Congress's bankruptcy power provides the most obvious basis to stay the state court proceedings.

(Choice A) The taxing and spending clause gives Congress the power to tax and spend for the general welfare—not to regulate judicial procedures (eg, requiring a stay of all proceedings).

(Choice C) The commerce clause does not support a federal statute providing for a stay of court proceedings against a person who has filed a federal bankruptcy petition. That is because the statute does not regulate (1) the channels or instrumentalities of interstate commerce or (2) activities that substantially affect interstate commerce (eg, economic activities).

(Choice D) Articles I and III give Congress the power to regulate the jurisdiction and procedures of federal courts—not state courts. Therefore, this power does not allow Congress to require a stay of state court proceedings.

Educational objective:

The supremacy clause establishes that federal law takes precedence over conflicting state laws so long as the federal law is a valid exercise of Congress's enumerated powers—eg, the power to provide uniform rules of bankruptcy.

References

- U.S. Const. art. I, § 8, cl. 4 (bankruptcy clause).
- U.S. Const. art VI, cl. 2 (supremacy clause).
- Puerto Rico v. Franklin Cal. Tax-Free Trust, 136 S. Ct. 1938, 1942 (2016) (holding that federal bankruptcy law preempts a municipal bankruptcy scheme).

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Congress wishes to enact legislation prohibiting discrimination in the sale or rental of housing on the basis of the affectional preference or sexual orientation of the potential purchaser or renter. Congress wishes this statute to apply to all public and private vendors and lessors of residential property in this country, with a few narrowly drawn exceptions.

Which of the following clauses would provide the most credible basis for congressional authority to enact such a statute?

A. The commerce clause of Article I, Section 8, because the sale or rental of almost all housing in this country could reasonably be deemed to have a substantial effect on interstate commerce.

B. The enforcement clause of the Fourteenth Amendment, because that amendment prohibits all public and private actors from engaging in irrational discrimination.

C. The enforcement clause of the Thirteenth Amendment, because that amendment clearly prohibits discrimination against the class of persons protected by this statute.

D. The general welfare clause of Article I, Section 8, because the conduct the statute prohibits could reasonably be deemed to be harmful to the national interest.

Explanation:

The Article I, section 8 **commerce clause** vests Congress with *broad* authority to **regulate interstate commerce** (ie, activities affecting two or more states). This includes:

- the channels of interstate commerce (eg, railroads)
- the instrumentalities of interstate commerce (eg, trains)
- persons or things moving in interstate commerce (eg, cargo) *and*
- any activities that, singly or in the aggregate, substantially affect interstate commerce.

Federal statutes enacted under this broad power are constitutional so long as there is a rational or **reasonable basis for concluding** that the regulated activity **substantially affects interstate commerce**. Therefore, regulations involving **economic activities** are **presumptively constitutional**.

Here, Congress wishes to enact a statute prohibiting discrimination based on affectional preference or sexual orientation in the sale or rental of almost all housing in this country. These activities presumably have a substantial effect on interstate commerce since they are *economic* in nature. Therefore, the commerce clause provides a credible basis for congressional authority to enact the proposed statute.

(Choice B) The Fourteenth Amendment enforcement clause gives Congress the authority to enforce the amendment's other provisions. But these provisions (eg, the equal protection clause) only apply to state actors—not all private actors.

(Choice C) Under the Thirteenth Amendment enforcement clause, Congress can enact legislation enforcing the amendment's prohibition of slavery and involuntary servitude—which are not at issue here.

(Choice D) The Article I, section 8 taxing and spending clause only authorizes Congress to *tax and spend* for the general welfare—not to prohibit conduct harmful to the national interest.

Educational objective:

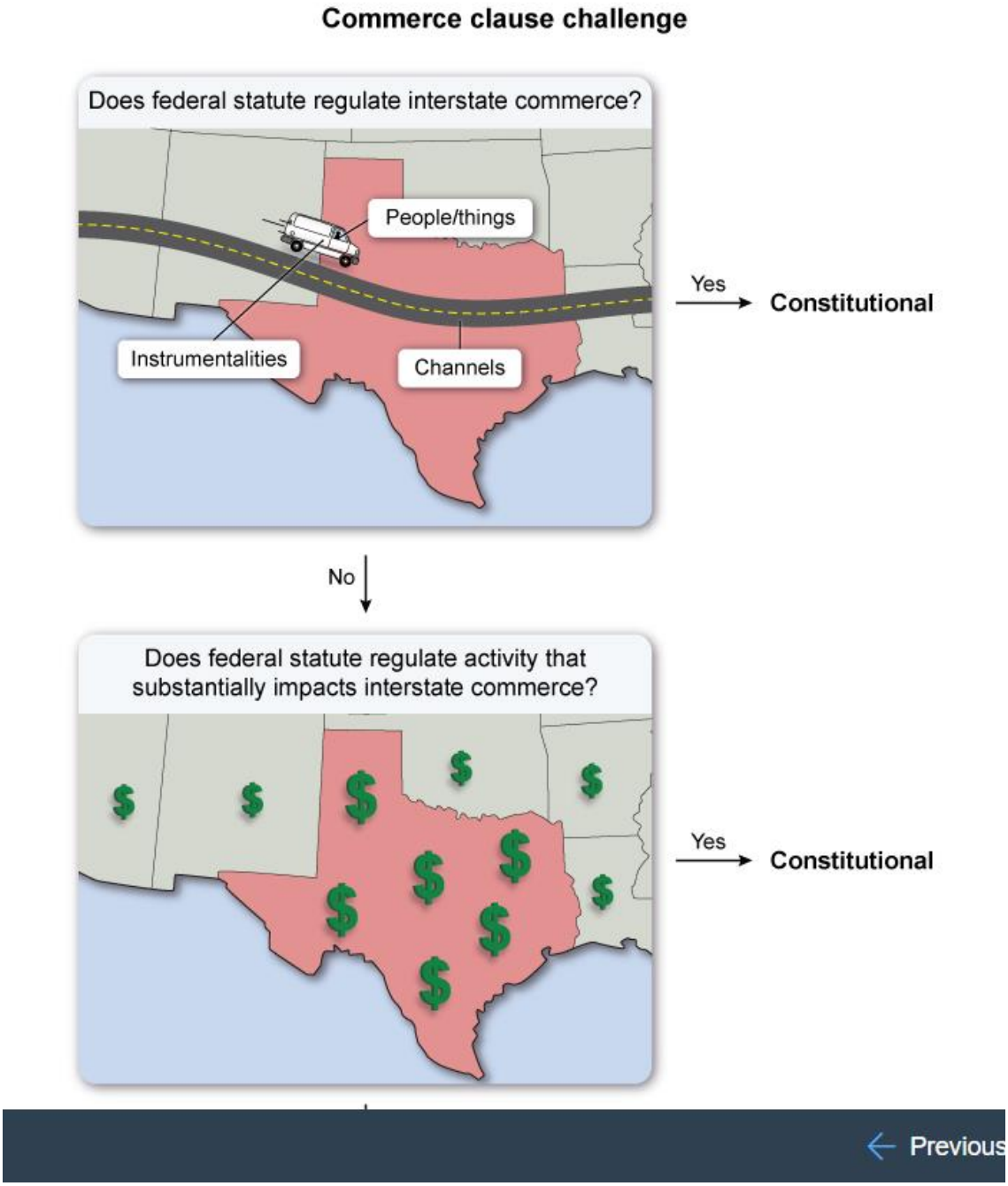
Federal statutes enacted under the commerce clause are constitutional so long as there is a rational basis for concluding that the regulated activity substantially affects interstate commerce. Therefore, regulations that involve economic activities are presumptively constitutional.

References

- Heart of Atlanta Motel, Inc. v. United States, 379 U.S. 241, 258 (1964) (holding that the commerce clause allows Congress to prohibit racial discrimination by local motels serving travelers).

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In the wake of massive terrorist attacks carried out inside the United States by foreign citizens, Congress declared war on the terrorists' nation of origin. It also passed a statute requiring every permanent resident who is a citizen of the enemy nation to either immediately leave the United States voluntarily or be subject to deportation. An inseverable provision of the new statute provides that the United States Supreme Court will have original and exclusive jurisdiction over any action brought to challenge the validity of the statute.

Is the new statute constitutional?

A. No, because cases brought under the statute do not fall within the categories of cases specified in Article III as those over which the Supreme Court shall have original jurisdiction.

B. No, because the statute violates the equal protection component of the Fifth Amendment.

C. Yes, because among the powers of Congress enumerated in Article I, Section 8, is the power to enact laws governing immigration and naturalization.

D. Yes, because Article III specifically provides that the jurisdiction of the Supreme Court shall be subject to such exceptions and regulations as Congress shall make.

Explanation:

SCOTUS jurisdiction

Type	Definition	Applicability
Original (Congress cannot adjust)	Case filed directly in SCOTUS	Cases involving either: • ambassador/public minister/consul *or* • state as party
Appellate (Congress may limit)	Case filed after decision by either: • lower federal court *or* • highest state court	All other cases by either: • writ of certiorari *or* • direct appeal (rare)

SCOTUS = Supreme Court of the United States.

Original jurisdiction is a court's power to hear and decide a case first—ie, before any appellate review. Article III provides that the **U.S. Supreme Court** (SCOTUS) has original jurisdiction over:

- cases involving **foreign ambassadors, public ministers, or consuls** and
- cases in which a **state is a party**.

And though Congress has the power to limit SCOTUS's *appellate* jurisdiction, **Congress cannot alter** SCOTUS's *original* jurisdiction **(Choice D)**.

Here, Congress passed a statute requiring every permanent resident who is a citizen of the enemy nation to leave the United States voluntarily or be subject to deportation. The statute provides that SCOTUS will have original and exclusive jurisdiction over any action challenging the statute's validity. Since this inseverable provision purports to expand SCOTUS's original jurisdiction beyond the categories of cases specified in Article III, the statute is unconstitutional.

(Choice B) Federal classifications based on citizenship are subject to mere rational basis scrutiny under the equal protection component of the Fifth Amendment. That is because Congress has plenary (ie, exclusive) authority to make immigration policy. And since the deportation order is rationally related to the government's legitimate interest in national security, the statute does not violate this component.

(Choice C) Article I, Section 8 enumerates Congress's powers, including the power to enact laws governing immigration and naturalization. But Congress cannot violate other constitutional provisions when exercising these powers (as seen here).

Educational objective:

The United States Supreme Court has original jurisdiction over (1) cases in which a state is a party and (2) cases involving foreign ambassadors, public ministers, or consuls. Congress cannot expand or limit this jurisdiction.

References

- Marbury v. Madison, 5 U.S. 137, 174–76 (1803) (holding that Congress cannot expand the Supreme Court's original jurisdiction).
- 32 Am. Jur. 2d Federal Courts § 453 (2019) (defining original and appellate jurisdiction).

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The President issued an executive order in an effort to encourage U.S. citizens to use the metric (Celsius) system of temperatures. Section 1 of the executive order requires the U.S. Weather Bureau, a federal executive agency, to state temperatures only in Celsius in all weather reports. Section 2 of the executive order requires all privately owned federally licensed radio and television stations giving weather reports to report temperatures only in Celsius. No federal statute is applicable.

Is the President's executive order constitutional?

A. Section 1 is constitutional, but section 2 is not.

B. Section 2 is constitutional, but section 1 is not.

C. Sections 1 and 2 are constitutional.

D. Sections 1 and 2 are unconstitutional.

Explanation:

Article II gives the **President**, as the country's **chief executive**, the authority to direct the actions of federal executive agencies (eg, the U.S. Weather Bureau). However, **Congress *also* has authority** over these agencies under the nondelegation doctrine, so the President must **act with congressional approval** or in a manner **consistent with an act of Congress**. And since there is no applicable statute that conflicts with the executive order, section 1 of that order is constitutional **(Choices B & D)**.

Additionally, the President generally has no Article II authority to direct the actions of persons outside of the executive branch (eg, privately owned companies) without congressional approval. There are no circumstances presented in the facts that might justify an exception to this general rule (eg, a sudden attack on the United States). Therefore, section 2 of the executive order is unconstitutional **(Choices B & C)**.

Educational objective:

When the President and Congress share authority over a particular area, the President's Article II powers must be exercised with congressional approval or in a manner that is consistent with an act of Congress.

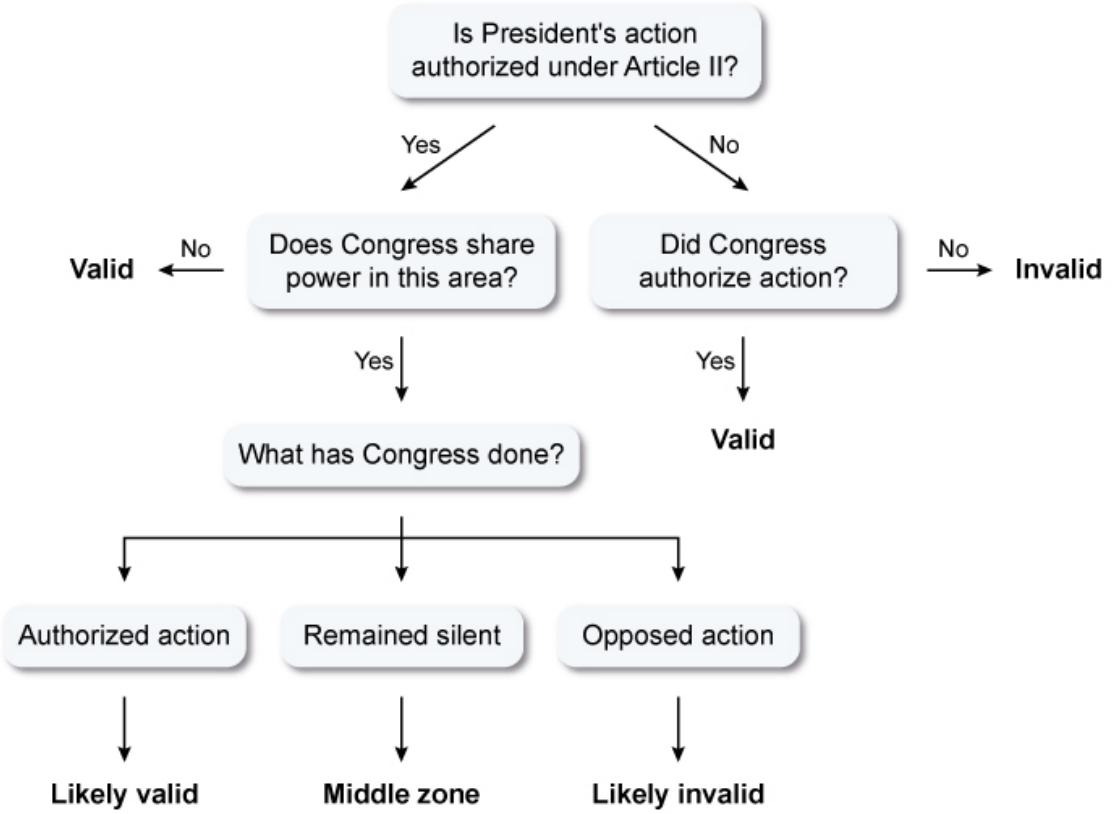
References

- Youngstown Sheet & Tube Co. v. Sawyer, 343 U.S. 579, 635–38 (1952) (Jackson, J., concurring) (setting forth the tripartite framework for analyzing the constitutionality of presidential actions).

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Assessing the validity of presidential actions (*Youngstown* framework)



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A U.S. senator made a speech on the floor of the Senate accusing a low-level purchasing officer employed by a federal agency of wasting millions of dollars of taxpayer money by purchasing many more office supplies than the agency needed. The accusation was demonstrably false, and the senator was negligent in making it.

The purchasing officer has sued the senator for defamation, alleging only that the accusation was false and that the senator was negligent.

What is the most appropriate ground for the court to dismiss the purchasing officer's complaint?

A. The federal government is constitutionally immune from suit without its consent, and it has not consented to suits of this kind.

B. The First Amendment guarantees members of Congress an unqualified right to speak on matters of public concern at any place and time without having to fear adverse legal consequences.

C. The First Amendment protects public officials from defamation liability for statements made in their official capacity, unless the plaintiff alleges and proves that the statement was false and uttered with actual malice.

D. The speech or debate clause of Article I, section 6 of the Constitution wholly insulates members of Congress from tort liability for statements made on the floor of Congress.

Explanation:

Speech or debate clause

(immunity for members of Congress & their aides)

Conduct	Examples	Immunity
Legislative activity	• Statements made on House or Senate floor • Drafting & enacting legislation • Conducting investigations & research • Committee hearings & reports • Preparing & distributing reports within Congress	Immunity from criminal & civil liability
Nonlegislative activity	• Statements made outside Congress • Republishing statements made in Congress • Writing newsletters & press releases • Bribery	No immunity

Under the **speech or debate clause** of Article I, section 6, **members of Congress** are **immune from criminal and civil liability** for any **official legislative activity**—eg, speeches given on the House or Senate floor. This ensures that members of Congress are free to represent their constituents' interests without fear that they will later be liable in court for that representation.

Here, the senator made a speech on the Senate floor that falsely and negligently accused the purchasing officer of wasting millions of dollars of taxpayer money. Therefore, the most appropriate ground for the court to dismiss the officer's complaint is that the speech or debate clause wholly insulates the senator from tort liability.

(Choice A) The federal *government* is constitutionally immune from suit without its consent. However, this immunity does not extend to suits against federal *legislators* in their individual capacities (as seen here).

(Choice B) Members of Congress do *not* have an unqualified right to speak on matters of public concern without fear of adverse legal consequences. But the speech or debate clause insulates them from liability for any speech that occurs in the course of official legislative activity.

(Choice C) The First Amendment heightens the standard for proving defamation when the plaintiff is a prominent public official. In that case, the plaintiff must prove that the defendant's statement was false and made with actual malice. But the speech or debate clause protects members of Congress from defamation liability for statements made in their official capacity—regardless of whether the plaintiff can meet that heightened standard.

Educational objective:

The speech or debate clause immunizes members of Congress from criminal and civil liability for official legislative activities—eg, speeches given on the House or Senate floor.

References

- Hutchinson v. Proxmire, 443 U.S. 111, 130 (1979) (stating that a speech made on the Senate floor would be wholly immune from a defamation suit).
- 77 Am. Jur. 2d United States § 7 (2019) (explaining that the speech or debate clause grants legislative immunity).

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The United States had long recognized the ruling faction in a foreign country as that country's government, despite an ongoing civil war. Throughout the civil war, the ruling faction controlled the majority of the country's territory, and the United States afforded diplomatic immunity to the ambassador representing the ruling faction.

A newly elected President of the United States decided to recognize a rebel group as the government of the foreign country and notified the ambassador from the ruling faction that she must leave the United States within 10 days. The ambassador filed an action in federal district court for a declaration that the ruling faction was the true government of the foreign country and for an injunction against enforcement of the President's order that she leave the United States. The United States has moved to dismiss the action.

If the court dismisses the action, what will be the most likely reason?

A. The action involves a nonjusticiable political question.

B. The action is not ripe.

C. The action is within the original jurisdiction of the U.S. Supreme Court.

D. The ambassador does not have standing.

Explanation:

Article III of the Constitution grants federal courts the power to decide actual cases and controversies. But the political-question doctrine **prohibits** federal courts from **adjudicating political questions**—ie, issues that (1) the **Constitution reserves** to the **legislative and executive branches** *or* (2) **lack judicially discoverable and manageable standards** for resolution. When this occurs, the federal court must dismiss the suit.

Here, the ambassador's suit for a declaratory judgment and an injunction concerned the President's recognition of a rebel group as the foreign country's true government. But such power is reserved to the executive branch under the Constitution, and there are no standards to help a court resolve this dispute. Therefore, the court will most likely dismiss this action because it involves a nonjusticiable political question.

(Choice B) Under Article III's case-or-controversy requirement, a suit must be ripe for adjudication. This means that the plaintiff must have suffered actual harm or an immediate threat thereof. Here, the ambassador's action *is* ripe because she has been ordered to leave the U.S. within 10 days (immediate threat of harm).

(Choice C) The U.S. Supreme Court has original jurisdiction over cases affecting ambassadors, so the ambassador's suit could have been filed directly in the Supreme Court. But original jurisdiction over ambassadors is not exclusive, so a lower federal court could also adjudicate this case if it was justiciable.

(Choice D) The ambassador *does* have standing because she suffered an injury-in-fact (expulsion) that was caused by the challenged action (President's order) and is redressable by the remedy sought (injunction).

Educational objective:

Under the political-question doctrine, federal courts cannot decide issues that (1) the Constitution reserves to the other branches of government *or* (2) lack judicially discoverable and manageable standards for resolution. Therefore, suits presenting these nonjusticiable political questions must be dismissed.

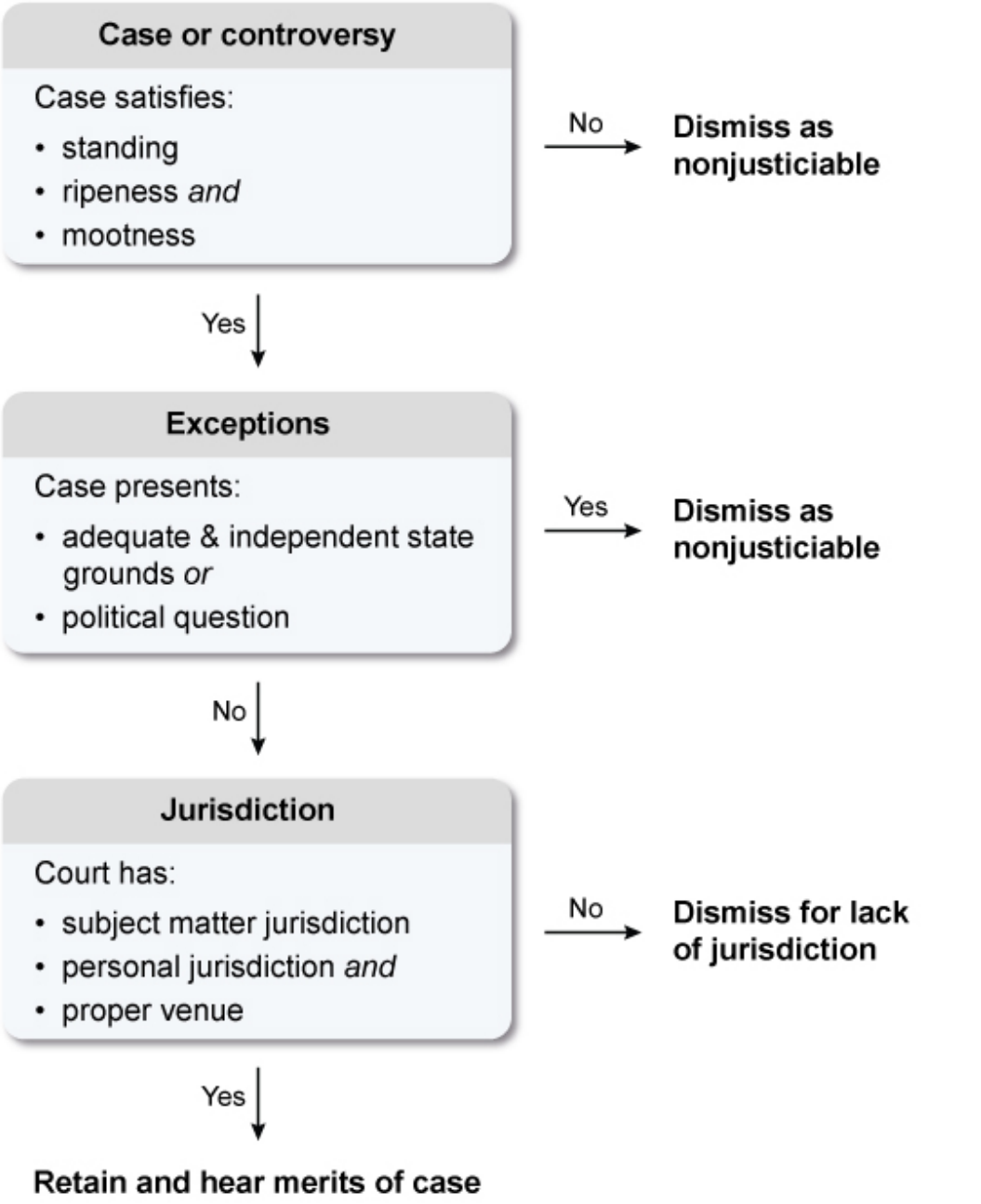
References

- Jones v. United States, 137 U.S. 202, 212 (1890) (stating that the recognition of a foreign government and its representatives is a nonjusticiable political question).
- Baker v. Carr, 369 U.S. 186, 210–17 (1962) (discussing the political-question doctrine).
- 32 Am. Jur. 2d Fed. Courts § 574 (2019) (listing examples of political questions).

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Justiciability and jurisdiction of federal courts



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A federal statute provides states with funds to establish a disability benefits program. The statute requires a participating state to disburse the benefits to eligible applicants within one month after an application is approved. A commissioner of a State A agency that established a disability benefits program pursuant to the federal statute issued a regulation that delayed the disbursement of benefits until six months after an application is approved.

Hundreds of residents of State A whose disability benefits were delayed because of the regulation have filed a class action against the commissioner in federal district court, arguing that the regulation violates the federal statute. The residents seek retroactive damages for the payment of the withheld benefits to be paid by the state treasury and an injunction to compel payment of future benefits. The commissioner has moved to dismiss the action and alleges that the requested relief is a violation of the Eleventh Amendment.

Should the federal court hear the merits of the residents' suit?

A. No, because the commissioner is immune from suit under the Eleventh Amendment.

B. Yes, but only on the request for retroactive damages for the withheld benefits.

C. Yes, but only on the request for the injunction to compel payment of future benefits.

D. Yes, on both because the suit is not subject to the Eleventh Amendment.

Explanation:

Eleventh Amendment

(state immunity from suit in federal court)

Immunity

- Suit brought by private party or foreign government
- Suit against state official violating state law
- Exceptions:
  - State consents to suit
  - Immunity removed by 13th, 14th, or 15th Amendment
  - State official sued for injunctive or declaratory relief
  - Damages to be paid by state officer personally (not state treasury)
  - State official sued for prospective (not retroactive) damages to be paid by state treasury

No immunity

- Suit brought by United States or other state
- Suit against local government (eg, counties, municipalities)
- Bankruptcy proceedings

The **Eleventh Amendment** generally bars private parties from suing a state in federal court without the state's consent. This immunity extends to suits against a state official for violating federal law when the state treasury, rather than the official, will be forced to pay damages that allegedly occurred before the action commenced (ie, retroactive damages). However, the Eleventh Amendment **does *not* prohibit suits against** a **state official** when:

- the **official will pay the damages** from his/her own pocket, which occurs when the official is sued for actions taken as an individual rather than as a government official *or*

- the suit **seeks a declaratory judgment or injunction**, even if such relief would force the state treasury to pay money in the future to comply with the court order (ie, prospective damages).

Here, the residents filed a class action in federal court against the state commissioner, arguing that the regulation delaying their disability benefits violates the federal statute. The court may hear their request for an injunction to compel payment of future benefits because such payments would constitute prospective damages **(Choice A)**. However, the court may not hear the merits of their request for payment of the withheld benefits since such payments would constitute retroactive damages that would be paid by the state treasury **(Choices B & D)**.

Educational objective:

The Eleventh Amendment bars suits against state officials for violating federal law when the state would pay retroactive damages. But it allows such suits when (1) the official will pay the damages or (2) the suit seeks declaratory or injunctive relief, even if the state would have to pay prospective damages under the court order.

References

- Ex parte Young, 209 U.S. 123, 159–60 (1908) (describing when the Eleventh Amendment does not bar suits in federal court against state officials for violations of federal law).
- Edelman v. Jordan, 415 U.S. 651, 675–77 (1974) (holding that actions for injunctive relief against state officials in federal court are limited to those that result in the future payment of monetary damages from the state treasury).
- 32A Am. Jur. 2d Federal Courts § 916 (2020) (explaining that the Eleventh Amendment bars citizens from suing state officials in federal court unless certain exceptions apply).

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In response to the need for additional toxic waste landfills in a state, the state's legislature enacted a law authorizing a state agency to establish five new state-owned and state-operated toxic waste landfills. The law provided that the agency would decide the locations and sizes of the landfills after an investigation of all potential sites and a determination that the particular sites chosen would not endanger public health and would be consistent with the public welfare.

A community in the state was scheduled for inspection by the agency as a potential toxic waste landfill site. Because the community's residents obtained most of their drinking water from an aquifer that ran under the entire community, a citizens' group, made up of residents of that community, sued the appropriate officials of the agency in federal court. The group sought a declaratory judgment that selecting their community as the site of a toxic waste landfill would be unconstitutional and an injunction preventing the agency from doing so. The agency officials moved to dismiss.

Which of the following is the most appropriate basis for the court to dismiss this suit?

A. The case is not ripe for a decision on the merits.

B. The case presents a nonjusticiable political question.

C. The Eleventh Amendment bars suits of this kind in the federal courts.

D. The interest of the state in obtaining suitable sites for toxic waste landfills is sufficiently compelling to justify the selection of the community as a location for such a facility.

Explanation:

Justiciability

(suitability for judicial resolution)

Case or controversy	Prohibits advisory opinions under three doctrines: • Standing – plaintiff must allege injury-in-fact caused by challenged action & redressable by remedy sought • Ripeness – claim must present actual controversy involving past injury or present threat of injury • Mootness – claim must be unresolved
Adequate & independent state grounds	SCOTUS cannot review final state court judgment that rests on adequate & independent state grounds
Political question	Court cannot hear case if issue presented: • is reserved for executive/legislative branches *or* • lacks judicially manageable standards for resolution

SCOTUS = Supreme Court of the United States.

A suit may only be heard by a federal court if it is **justiciable**. A suit is justiciable if it presents an **actual case or controversy** that is ripe for (and capable of) judicial resolution—ie, when the plaintiff has suffered **actual harm or an imminent threat of harm**. Therefore, a suit based on **potential harm (unripe)** or harm that is **no longer capable of judicial resolution (moot)** should be dismissed.

Here, the group sued to prevent agency officials from selecting its community as a toxic waste landfill site. But the suit is based on potential—not actual or imminent—harm since the agency is still investigating where to place these landfills. Therefore, the most appropriate basis to dismiss this suit is that it is not ripe for a decision on the merits. But the group's claim may become justiciable and can be re-filed in federal court if its community is later selected as a landfill site.

(Choice B) The political-question doctrine prohibits federal courts from hearing cases that present issues that (1) are reserved for the executive or legislative branch *or* (2) lack judicially manageable standards for resolution. But since federal courts often determine the constitutionality of state laws, this doctrine is not a basis for dismissal.

(Choice C) The Eleventh Amendment generally bars private parties and foreign governments from suing a *state* in federal court for monetary relief. But it does not bar suits against *state officials* for declaratory or injunctive relief (as seen here).

(Choice D) Federal courts can only determine the merits of a suit—eg, whether a government action is necessary to serve a compelling government interest (strict scrutiny)—if that suit is justiciable. And since this suit is not ripe for judicial resolution, the court cannot determine the merits of the group's claim.

Educational objective:

To be justiciable, a suit must present an actual case or controversy. This occurs when the plaintiff has suffered actual harm or an imminent threat thereof—not a mere possibility of harm.

References

- U.S. Const. art. III, § 2 (case or controversy requirement).
- Abbot Labs. v. Gardner, 387 U.S. 136, 148 (1967) (stating that federal courts cannot adjudicate unripe suits).

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A federal statute provides states with funds for child welfare programs, subject to the condition that such programs be administered in accordance with federal standards.

The United States sued a state in federal court for injunctive relief, arguing that the state's child welfare programs, which were funded in part by federal funds disbursed under this statute, failed to comply with federal standards. The state has moved to dismiss the action.

Is the court likely to dismiss the action?

A. No, because Congress can place any condition on the receipt of federal funds.

B. No, because the Eleventh Amendment does not bar actions brought by the United States.

C. Yes, because the Eleventh Amendment bars actions against a state in federal court.

D. Yes, because the protection of child welfare is reserved to the states.

Explanation:

Eleventh Amendment

(state immunity from suit in federal court)

Immunity

- Suit brought by private party or foreign government
- Suit against state official violating state law
- Exceptions:
  - State consents to suit
  - Immunity removed by 13th, 14th, or 15th Amendment
  - State official sued for injunctive or declaratory relief
  - Damages to be paid by state officer personally (not state treasury)
  - State official sued for prospective (not retroactive) damages to be paid by state treasury

No immunity

- Suit brought by United States or other state
- Suit against local government (eg, counties, municipalities)
- Bankruptcy proceedings

The **Eleventh Amendment** prohibits private parties and foreign governments from suing a state in federal court without the state's consent.* However, this amendment **does not bar actions** brought by the **United States or another state**. And since the United States sued the state here for injunctive relief, the Eleventh Amendment does not apply. As a result, the federal court likely will not dismiss this action **(Choice C)**.

*Additionally, the doctrine of sovereign immunity bars private federal-law actions against a state sued in the courts of that state or any other state without the state's consent.

(Choice A) Congress may place *certain* conditions on the receipt of federal funds. Such conditions are valid if they (1) are unambiguous, (2) relate to the funded program's purpose, and (3) are not unduly coercive. Therefore, the federal court will likely retain this suit and determine if this funding condition satisfies these requirements.

(Choice D) Under the Tenth Amendment, all powers not expressly granted to the federal government by the Constitution are reserved to the states—eg, the power over child welfare. But the federal government can use its taxing and spending power to encourage states to adopt certain policies by placing conditions on the receipt of federal funds—eg, requiring state-recipients to comply with federal standards (as seen here).

Educational objective:

The Eleventh Amendment bars private parties and foreign governments from suing a state in federal court without the state's consent. But it does *not* bar suits brought by the United States or another state.

References

- Principality of Monaco v. Mississippi, 292 U.S. 313, 329 (1934) (stating that the Eleventh Amendment does not bar a suit by the United States against a state in federal court).
- 32A Am. Jur. 2d Federal Courts § 911 (2019) (explaining that the United States may sue a state in federal court without the state's consent).

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Congress enacted a statute directing U.S. ambassadors to send formal letters to the governments of their host countries, protesting any violations by those governments of international treaties on weapons sales. The President prefers to handle violations by certain countries in a less formal manner and has directed ambassadors not to comply with the statute.

Is the President's action constitutional?

A. No, because Congress has the power to implement treaties, and therefore the statute is binding on the President.

B. No, because Congress has the power to regulate commerce with foreign nations, and therefore the statute is binding on the President.

C. Yes, because Congress has no jurisdiction over matters outside the U.S. borders.

D. Yes, because the President and his subordinates are the exclusive official representatives of the United States in foreign affairs.

Explanation:

Article II vests the **President** with authority over a wide array of domestic and foreign policy areas. When the President shares authority with Congress over a particular area (eg, federal agencies), the validity of the President's actions is determined by the *Youngstown* framework. But when the President **does not share authority** with Congress, the President can exercise that exclusive Article II power without adhering to congressional directives.

One **exclusive Article II power** is the authority to **communicate** and negotiate **with foreign governments** as the official U.S. representative in foreign affairs. The President can exercise this power directly or through his/her subordinates—including ambassadors and other executive-branch officials. Therefore, it was constitutional for the President to direct the ambassadors not to comply with the federal statute regarding formal letters to foreign governments.

(Choice A) Congress has the power to implement treaties through appropriate legislation under the necessary and proper clause. But such legislation cannot restrict the President's ability to exercise an *exclusive* Article II power (as seen here).

(Choices B & C) Congress has *some* jurisdiction over matters outside U.S. borders—eg, the power to declare war and to regulate commerce with foreign nations. But this does not give Congress the power to bind the President (or his/her subordinates) on matters within the President's exclusive authority.

Educational objective:

When the President does not share power with Congress over a particular area—eg, communicating with foreign governments—the President can exercise that exclusive Article II power without congressional interference.

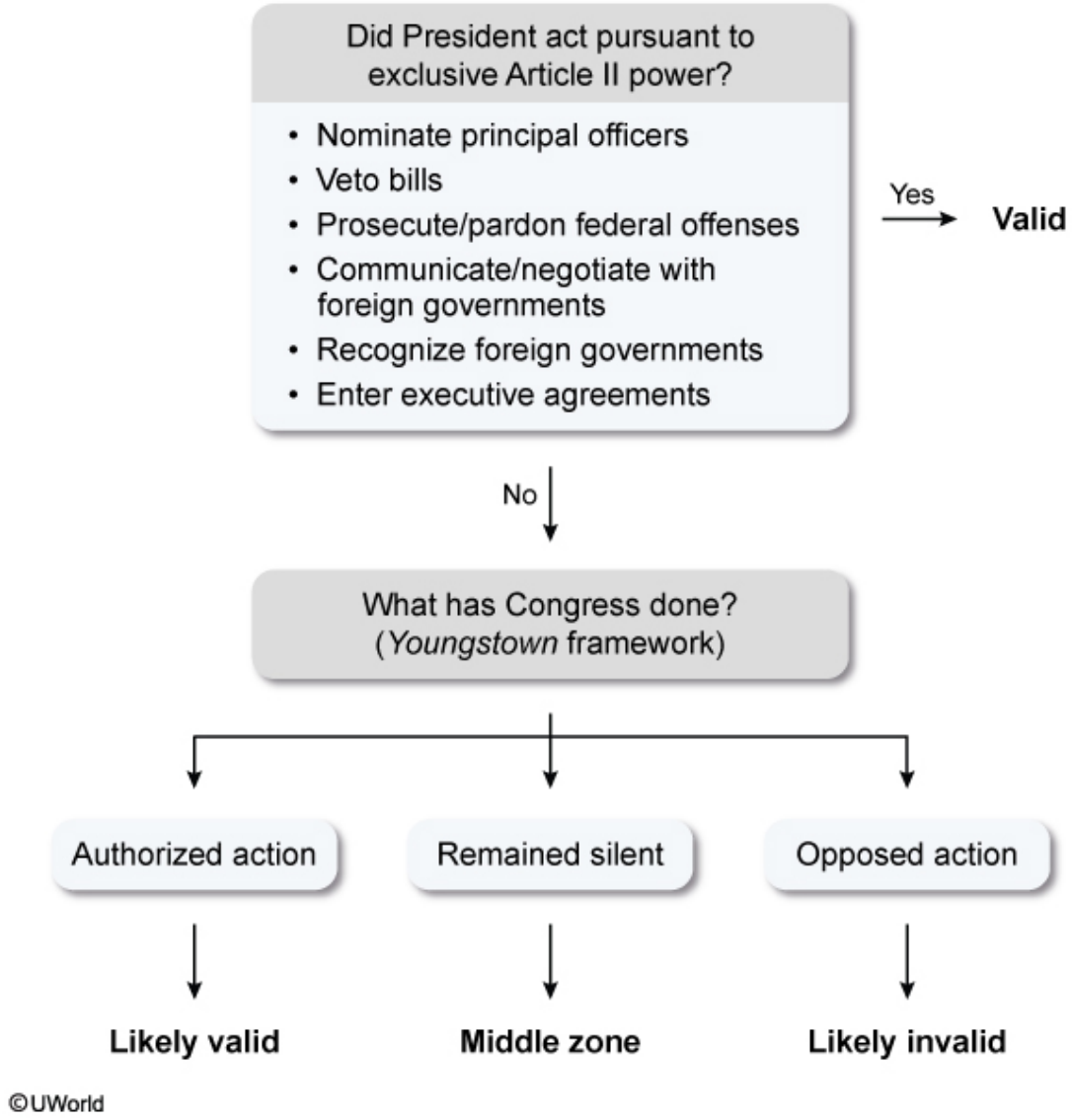
References

- United States v. Curtiss-Wright Exp. Corp., 299 U.S. 304, 319 (1936) (stating that "the President alone has the power to speak or listen as a representative of the nation").

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Assessing the validity of presidential actions



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The constitution of State A grants the state legislature the power to redraw the boundaries of the state's federal congressional districts every 10 years. In the last redistricting cycle, the legislature's majority political party redrew the equally populated districts with the express intent to increase the party's representation in Congress. During the most recent election, the legislature's majority political party won 10 of the 13 available congressional seats despite receiving less than 50 percent of the overall statewide vote.

A resident of State A who voted for a congressional candidate representing another political party filed suit in a State A federal court against the state legislators who drafted the redistricting map. The resident argued that the court should enjoin the use of the map in future elections because the legislators violated the U.S. Constitution by engaging in partisan gerrymandering.

Should the federal court hear the merits of the resident's suit?

A. No, because the case presents a nonjusticiable issue.

B. No, because the Eleventh Amendment prohibits suits against state officials in federal court.

C. Yes, because the court must guarantee that the state has a republican form of government.

D. Yes, because the map violates the "one person, one vote" principle.

Explanation:

Nonjusticiable political questions

(issues incapable of judicial resolution)

- Recognition of foreign governments
- Reception of ambassadors
- Nature of wars/hostilities
- Partisan gerrymandering
- Guarantee of republican form of government
- Recognition of Native American tribes
- House/Senate rules for impeachment
- Ratification process for constitutional amendments

Article III of the U.S. Constitution grants federal courts the power to decide justiciable cases and controversies. However, the **political-question doctrine bars** a federal court from hearing the merits of **nonjusticiable political questions**. A case presents a political question when:

- the Constitution reserves the issue to the legislative or executive branch *and/or*
- there is a **lack of judicially discoverable and manageable standards** to resolve the issue.

Here, the resident filed suit in federal court to enjoin the use of the state's redistricting map in future elections due to partisan gerrymandering—ie, drawing electoral districts to favor or weaken a political party. However, SCOTUS held in *Rucho v. Common Cause* that partisan gerrymandering suits present nonjusticiable political questions because there are no judicial standards to resolve them. Therefore, the court should not hear the merits of the resident's suit.

(Choice B) The Eleventh Amendment generally bars private parties and foreign governments from suing a *state* in federal court for monetary relief. But it does not bar suits against *state officials* for injunctive relief (as seen here).

(Choice C) Under Article IV of the Constitution, the federal government must guarantee a republican form of government to every state. However, the issue of what constitutes a republican form of government is a nonjusticiable political question reserved to Congress.

(Choice D) The "one person, one vote" principle holds that one person's vote must be essentially equal to any other person's vote. When a state establishes congressional districts, this principle requires nearly precise mathematical equality between the districts. Since State A's 13 congressional districts are equally populated, the map does not violate the "one person, one vote" principle.

Educational objective:

Under the political-question doctrine, federal courts cannot hear the merits of a suit that presents a nonjusticiable political question—ie, an issue that (1) the Constitution reserves to another branch of government and/or (2) lacks judicially discoverable and manageable standards for the issue to be resolved by a court.

SCOTUS = Supreme Court of the United States.

References

- Rucho v. Common Cause, 139 S. Ct. 2484, 2506–07 (2019) (holding that partisan gerrymandering claims are nonjusticiable because there is no judicially discoverable and manageable standard to review them).
- Baker v. Carr, 369 U.S. 186, 210–17 (1962) (explaining the political-question doctrine).
- 32 Am. Jur. 2d Fed. Courts § 574 (2020) (listing common examples of political questions).

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The vaccination of children against childhood contagious diseases (such as measles, diphtheria, and whooping cough) has traditionally been a function of private doctors and local and state health departments. Because vaccination rates have declined in recent years, especially in urban areas, the President proposes to appoint a Presidential Advisory Commission on Vaccination which would be charged with conducting a national publicity campaign to encourage vaccination as a public health measure.

No federal statute authorizes or prohibits this action by the President.

The activities of the Presidential Advisory Commission on Vaccination would be financed entirely from funds appropriated by Congress to the Office of the President for "such other purposes as the President may think appropriate."

May the President constitutionally create such a commission for this purpose?

A. No, because Congress has not specifically authorized the creation and support of such a new federal agency.
B. No, because the protection of children against common diseases by vaccination is a traditional state function and, therefore, is reserved to the states by the Tenth Amendment.
C. Yes, because the President has plenary authority to provide for the health, safety, and welfare of the people of the United States.
D. Yes, because this action is within the scope of executive authority vested in the President by the Constitution, and no federal statute prohibits it.

Explanation:

Article II gives the **President** the power to manage the executive branch. Pursuant to this power, the President can use congressional funds to create advisory commissions that will recommend and promote policies. **Congress can limit** the President's powers when they **share authority** over an area (eg, use of federal funds). The ***Youngstown* framework** is then used to determine the **extent of the President's authority**. And when **Congress is silent**, the President's action is **valid so long as** it:

- falls within the President's **Article II powers** *and*
- does **not interfere** with another branch's powers.

Here, the President proposes an advisory commission that would encourage vaccination and be financed entirely from funds already appropriated for Presidential use. Congress is silent on the President's proposal since no federal statute authorizes or prohibits it. And since the President is acting within the scope of his Article II executive authority and is not interfering with another branch's powers, he may constitutionally create the commission.

(Choice A) Specific congressional authorization is not needed since the President is establishing an advisory commission—not a new federal agency with rule-making powers (eg, Securities and Exchange Commission).

(Choice B) All powers that the Constitution does not expressly give to the federal government—including the police power to protect children against common diseases—are reserved to the states by the Tenth Amendment. But the President has the power to establish advisory commissions on traditional state functions like protecting child welfare.

(Choice C) The President does *not* have plenary (ie, absolute) authority to provide for the health, safety, and welfare of the people of the United States. Instead, the President must comply with the Constitution and relevant federal statutes.

Educational objective:

When Congress has remained silent about the President's actions in an area over which they share authority, those actions are valid so long as they (1) fall within the President's Article II powers and (2) do not interfere with another branch's powers.

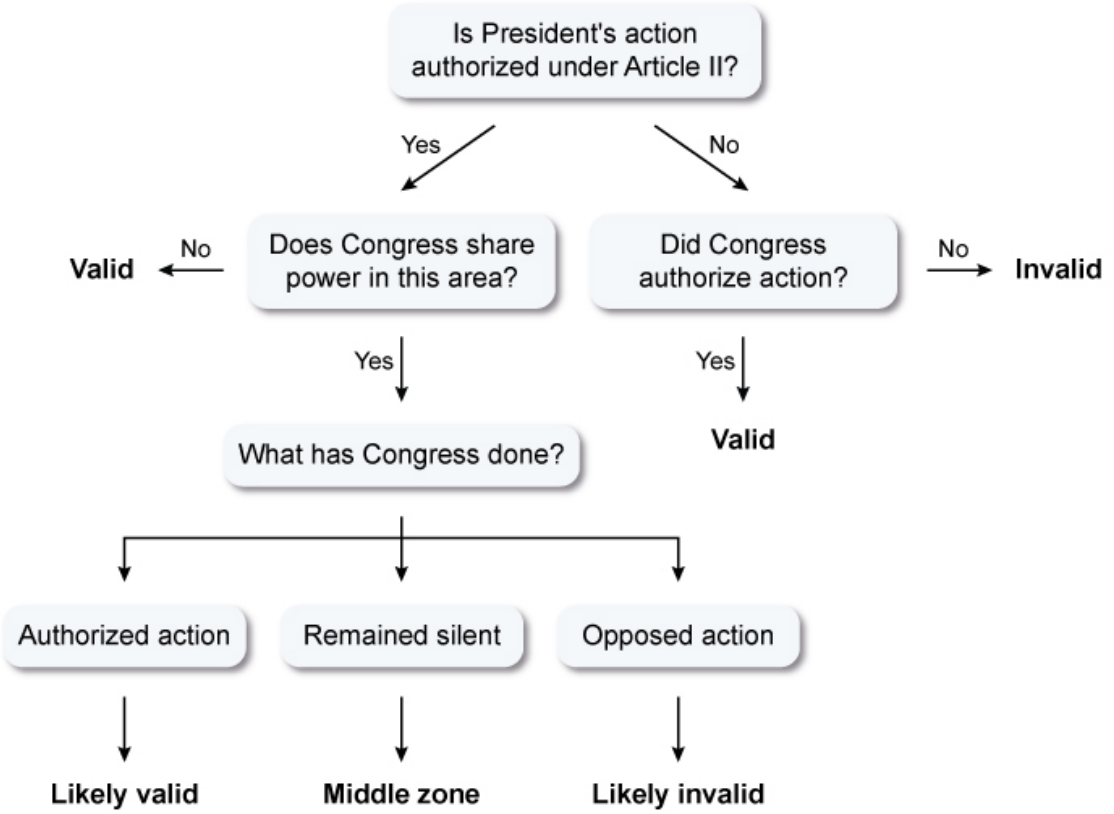
References

- Youngstown Sheet & Tube Co. v. Sawyer, 343 U.S. 579, 635–38 (1952) (Jackson, J., concurring) (setting forth the tripartite framework for analyzing the constitutionality of presidential actions).

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Assessing the validity of presidential actions (*Youngstown* framework)



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A federal statute prohibits the construction of nuclear energy plants in this country without a license from the Federal Nuclear Plant Siting Commission. The statute provides that the Commission may issue a license authorizing the construction of a proposed nuclear energy plant 30 days after the Commission makes a finding that the plant will comply with specified standards of safety, technological and commercial feasibility, and public convenience. In a severable provision, the Commission's enabling statute also provides that Congress, by simple majorities in each house, may veto the issuance of a particular license by the Commission if such a veto occurs within 30 days following the required Commission finding.

Early last year, the Commission found that an energy corporation met all statutory requirements and, therefore, voted to issue the corporation a license authorizing it to construct a nuclear energy plant. Because they believed that the issuance of a license to the corporation was not in accord with the applicable statutory criteria, a majority of each of the two houses of Congress voted, within the specified 30-day period, to veto the license. On the basis of that veto, the Commission refused to issue the license.

Subsequently, the corporation sued the Commission in an appropriate federal district court, challenging the constitutionality of the Commission's refusal to issue the license.

In this suit, how should the court rule regarding the congressional veto of the energy corporation's license?

A. The veto is invalid, because any determination by Congress that particular agency action does not satisfy statutory criteria violates Article III, Section 1 of the Constitution because it constitutes the performance of a judicial function by the legislative branch.

B. The veto is invalid, because Article I, Section 7 of the Constitution has been interpreted to mean that any action of Congress purporting to alter the legal rights of persons outside of the legislative branch must be presented to the President for his signature or veto.

C. The veto is valid, because Congress has authority under the commerce clause to regulate the construction of nuclear energy plants.

D. The veto is valid, because there is a compelling national interest in the close congressional supervision of nuclear-plant siting in light of the grave dangers to the public health and safety that are associated with the operation of such plants.

Explanation:

Article I grants all federal legislative power to **Congress**, which consists of the House of Representatives and the Senate. Article I also prescribes the method Congress must use to take **legislative action**—ie, any action that alters the legal rights of persons outside of the legislative branch. Under this method, all legislative action must be:

- approved by both houses of Congress (ie, **bicameralism**) *and*
- presented to the President for approval or disapproval (ie, **presentment**).

As a result, **congressional vetoes** are **always invalid** since they attempt to overturn agency actions without adhering to the proper method of bicameralism and presentment.

Here, the federal statute authorizes an agency to issue licenses for the construction of nuclear energy plants. Pursuant to this statute, the agency voted to issue a license to an energy corporation. But the statute also includes a provision allowing Congress, by majority vote of both houses, to veto the agency's issuance of a license. And though a majority of each house of Congress voted to veto the corporation's license (bicameralism), the veto was not presented to the President (no presentment). Therefore, this legislative action is invalid.

(Choice A) Article III, section 1 gives federal courts the power to resolve cases and controversies. This precludes Congress from issuing a judgment in individual cases. But Congress can still make a nonbinding determination (eg, through a resolution) that particular agency action does not satisfy statutory criteria.

(Choice C) Congress can regulate the construction of nuclear energy plants under the commerce clause since the production of energy substantially impacts interstate commerce. But Congress must do so through bicameralism and presentment.

(Choice D) Congressional vetoes are always invalid—even when they are supported by a compelling national interest (eg, public health and safety).

Educational objective:

Congressional vetoes are always invalid since they attempt to overturn agency actions without adhering to the proper method for legislative action—ie, bicameralism and presentment.

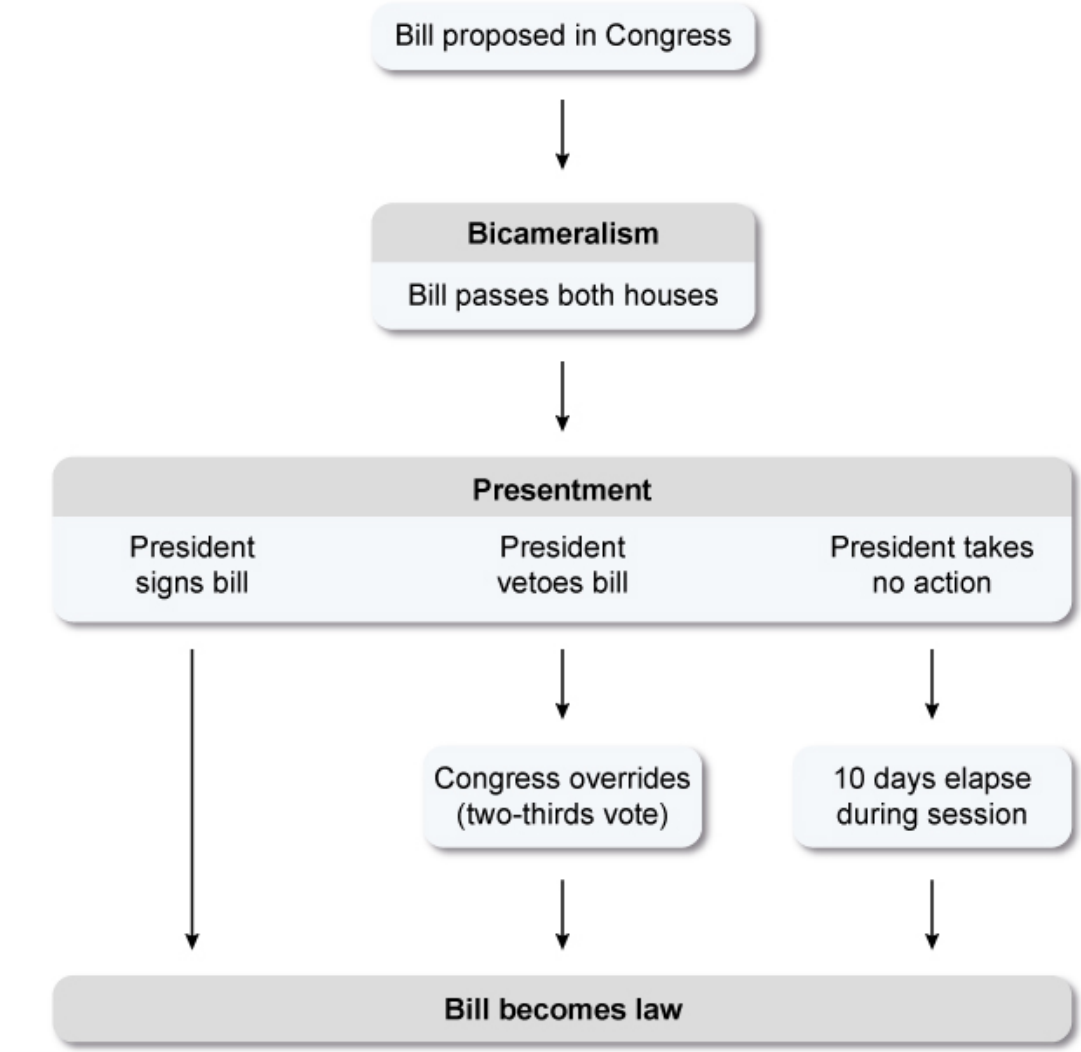
References

- INS v. Chadha, 462 U.S. 919, 959 (1983) (striking down a congressional-veto provision in a federal immigration statute).

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Federal legislative process
(requirements for legislative action)



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The House of Representatives passed a bill imposing a tax on all insurance premiums for policies covering shipments of goods to foreign countries. The legislative record states that the purpose of this export tax is to subsidize the marine insurance industry. The tax applies to all goods manufactured or grown in every state. The bill passed the Senate and was signed into law by the President.

Pursuant to the statute, a company paid the tax on insurance premiums for policies that cover goods exported to its foreign subsidiaries. The company filed a claim for a tax refund and was denied. The company filed suit alleging that the tax is unconstitutional.

Is this federal tax likely constitutional?

A. No, because Congress does not have the power to tax exported goods or closely related services.
B. No, because the tax does not reasonably relate to raising revenue.
C. Yes, because Congress's taxing power is unlimited.
D. Yes, because the tax is necessary to serve a compelling government interest.

Explanation:

The taxing and spending clause gives Congress broad power to tax and spend for the general welfare (ie, any public purpose). However, this power is not unlimited and must comply with other constitutional provisions—including the **export clause (Choice C)**. The export clause **prohibits federal taxation of**:

- **exported goods**, which are goods leaving the U.S. and shipped to foreign countries *and*
- **services and activities closely related** to the export process—eg, insurance premiums paid to cover the shipment of exported goods (as seen here).

Therefore, the federal tax on insurance premiums for policies covering shipments of goods to foreign countries is not within Congress's power to tax and is unconstitutional.

(Choice B) The tax in this case is reasonably related to raising revenue because its purpose is to raise funds that will be used to subsidize the marine insurance industry. But this issue is irrelevant because the tax is an unconstitutional export tax.

(Choice D) Federal export taxes are never valid, even if the government shows that they are necessary to serve a compelling interest (ie, satisfy strict scrutiny).

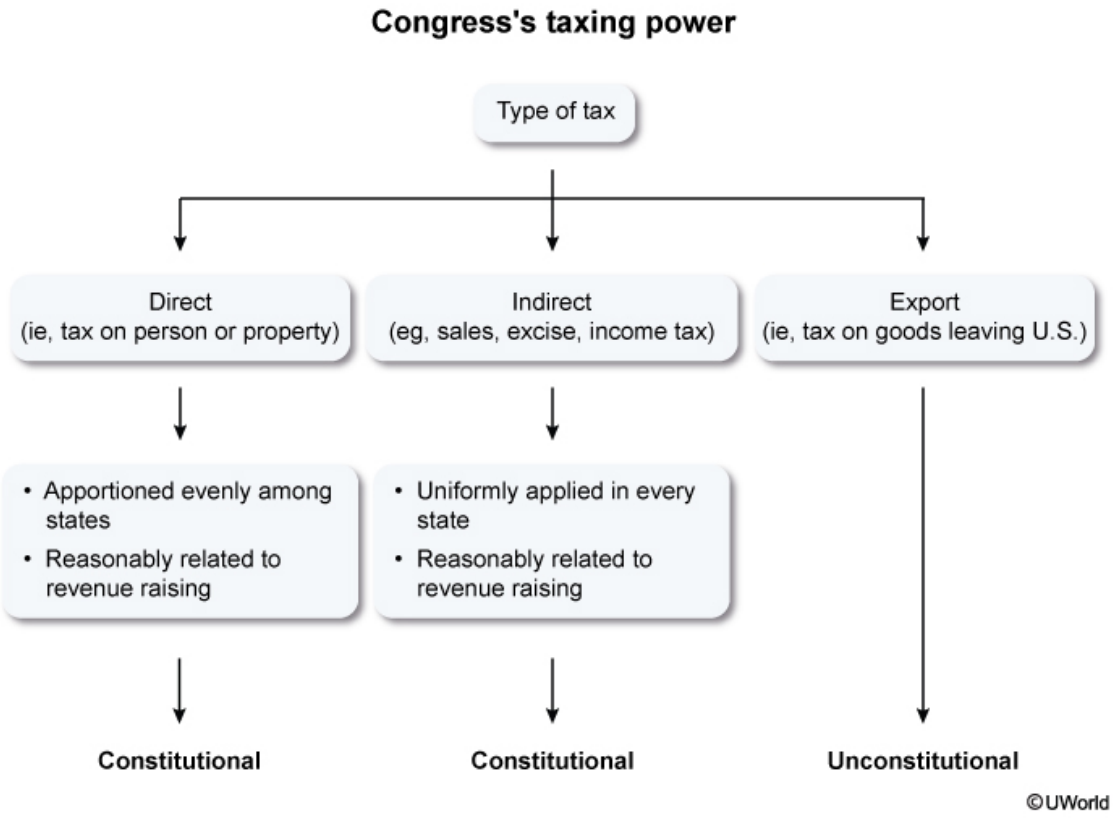
Educational objective:

Congress has broad power to tax and spend for the general welfare. However, Congress can never impose taxes on exported goods or on services and activities closely related to the export process.

References

- U.S. Const. art. I, § 9 (export clause).
- United States v. Int'l Bus. Machs. Corp., 517 U.S. 843, 846–47 (1996) (explaining that the export clause prohibits federal taxation of exported goods and services and activities closely related to the export process).

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Congress's taxing power
Type of tax
Direct
(ie, tax on person or property)
Indirect
(eg, sales, excise, income tax)
Export
(ie, tax on goods leaving U.S.)
• Apportioned evenly among states
• Reasonably related to revenue raising
• Uniformly applied in every state
• Reasonably related to revenue raising
Constitutional
Constitutional
Unconstitutional
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A valid treaty between the United States and a foreign country provides for the elimination of all tariff barriers between the two countries. It authorizes the president of either country to issue a proclamation nullifying any state or local laws in that country that have the effect of impeding imports from the other country.

The foreign country uses the metric system of measurement, and thus all goods produced there and exported to the United States are packaged in metric sizes, such as liters and kilograms. A law of a state in the United States requires all goods sold in that state to be packaged in traditional American sizes, such as quarts or pounds. Because the state law substantially impedes imports from the foreign country, the President of the United States has issued a proclamation nullifying the state law pursuant to the treaty.

Is the President's proclamation valid?

A. No, because the Constitution vests in Congress the exclusive authority to specify binding legal standards for weights and measures, and the President therefore lacks constitutional authority for the proclamation.

B. No, because the principles of federalism embedded in the Constitution prohibit the President from taking action to invalidate a state law.

C. Yes, because it is authorized by a valid treaty of the United States and is not prohibited by any provision of the Constitution and, therefore, is the supreme law of the land.

D. Yes, because the President has inherent authority to nullify any state law that substantially impedes commerce between the United States and another country.

Explanation:

Article II gives the **President** extensive power over foreign policy and international relations—including the power to **negotiate and enter into treaties** with foreign nations. But a treaty cannot be **ratified** (ie, signed into law) until it has been **approved** by a **two-thirds Senate vote** (no action by the House of Representatives required). It then becomes valid and binding on the federal and state governments:

- immediately, if the treaty is **self-executing**—ie, *contains* explicit enforcement provisions (as seen here)—*or*
- after implementing legislation or judicial action, if the treaty is **non-self-executing**—ie, *lacks* explicit enforcement provisions.

And under the supremacy clause, an executed treaty **supersedes any conflicting state law** so long as the treaty is consistent with other constitutional provisions.

Here, the President issued a proclamation nullifying a state law that substantially impeded imports from a foreign country. This proclamation was authorized by an explicit enforcement provision in a *self-executing* treaty between the U.S. and the foreign nation. And since the proclamation is not prohibited by any constitutional provision, it is the supreme law of the land and nullifies the state law.

(Choice A) Article I, section 8 gives Congress the exclusive authority to specify standards for weights and measures. The President's proclamation does not interfere with that authority because it was merely used to eliminate a state-imposed packaging requirement—not to adjust national measurement standards.

(Choice B) The principles of federalism allocate power between the federal and state governments. But federalism does *not* prohibit the President from invalidating state laws pursuant to a federal statute or treaty (as seen here).

(Choice D) The President has *no* inherent authority to nullify a state law that substantially impedes commerce between the U.S. and another country. But the President can do so if authorized by Congress (eg, under its commerce power) or a valid treaty (as seen here).

Educational objective:

A treaty must be approved by a two-thirds vote in the Senate (not the House of Representatives) before it can be ratified. Once this occurs, the treaty takes precedence over any conflicting state law pursuant to the supremacy clause.

References

- Medellin v. Texas, 552 U.S. 491, 526–30 (2008) (explaining the President's powers to implement self-executing and non-self-executing treaties).

- Ware v. Hylton, 3 U.S. 199, 236–37 (1796) (declaring that treaties take precedence over conflicting state laws).

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A statute passed by both houses of Congress and signed by the President authorizes a federal agency to select a site for and to construct a monument honoring members of the capitol police force killed in the line of duty. The statute appropriates the necessary funds but provides that the funds may not be expended until both houses of Congress have adopted a concurrent resolution, not subject to presentment to the President, approving the agency's plans for the monument's location and design.

Is the provision requiring further congressional approval before expenditure of the funds constitutional?

A. No, because decisions regarding the placement and design of government-owned structures are an exclusively executive function with which Congress may not interfere by any means.

B. No, because the provision amounts to an unconstitutional legislative interference with an executive function.

C. Yes, because Congress may attach reasonable conditions to its appropriation of funds to executive departments, and its special interest in the members of its own police force makes the provision a reasonable condition.

D. Yes, because the provision is part of a statute that was passed by both houses of Congress and signed by the President.

Explanation:

Article I entrusts **Congress** (ie, the House of Representatives and the Senate) with the power to take legislative action. Action is legislative when its purpose or effect is to alter the legal rights or duties of persons outside of Congress. And **legislative action**, absent narrow exceptions, must be:

- approved by both houses of Congress (ie, **bicameralism**) *and*
- presented to the President for approval or disapproval (ie, **presentment**).

Through this process, Congress can **delegate some of its powers** (eg, rulemaking) to federal executive agencies. But once Congress does so, it **cannot interfere** with the agencies' functions unless it again complies with the legislative-action process. Any attempt to bypass this process amounts to an **unconstitutional legislative veto**.

Here, Congress delegated power to the federal agency to select a site for and construct a monument. But a statutory provision prevents the agency from expending the appropriated funds until Congress adopts a concurrent resolution approving the agency's plans. And since the resolution will not be presented to the President, the provision amounts to an unconstitutional legislative interference with an executive function (ie, legislative veto).

(Choice A) Decisions regarding the placement and design of government structures are *not* an exclusively executive function because Congress also has the authority to make these determinations.

(Choice C) Congress may attach reasonable conditions to its appropriations of funds—eg, directing how executive departments can spend funds. But such conditions must comply with the Constitution (not seen here).

(Choice D) The provision is part of a statute that passed both houses of Congress and was signed by the President. However, the provision amounts to an unconstitutional legislative veto since it grants Congress the future power to approve or disapprove the agency's plans without presentment to the President.

Educational objective:

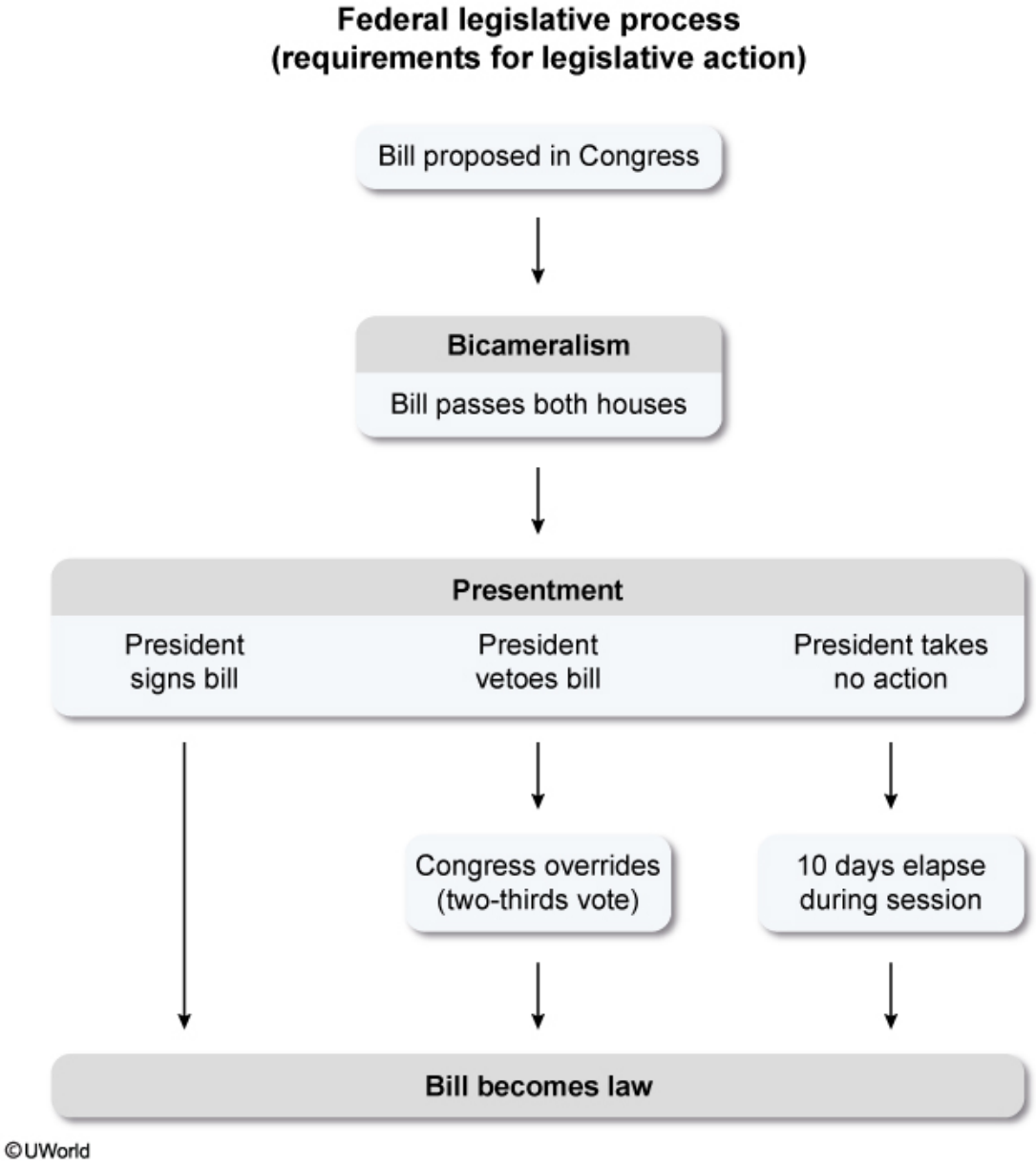
Once Congress delegates power to an executive agency, it cannot interfere with the agency's functions without satisfying the legislative-action process—ie, bicameralism and presentment. Any attempt to bypass this process is an unconstitutional legislative veto.

References

- U.S. Const. art. I, § 7, cl. 2 (bicameralism and presentment requirements).
- INS v. Chadha, 462 U.S. 919, 951–52 (1983) (explaining that almost all legislative acts must satisfy the constitutional requirements of bicameralism and presentment to have effect).

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A trade association in State A was formed for the purpose of protecting the state's lucrative cattle industry. The association's members, who are cattle breeders and dealers, use a grading system to grade the quality of cattle bred in the state. The grades assigned by the association are nationally recognized and prominently displayed on cattle to promote the state's cattle industry.

The commissioner of the agency that regulates cattle in State B has adopted a regulation that requires cattle sold in the state to display a grade approved by the federal government or no grade at all. The sales in State B of several members of the trade association have declined as a result of complying with this regulation. As a result, the association has filed suit against the commissioner in a federal district court, seeking an injunction against the enforcement of the regulation on the ground that it is unconstitutional.

May the court determine the merits of this suit?

A. No, because the association itself has suffered no injury.

B. No, because the Eleventh Amendment prohibits suits against state officials in federal court.

C. Yes, because federal courts have exclusive jurisdiction over federal-law claims.

D. Yes, because the association has standing to sue on behalf of its members.

Explanation:

Article III standing

(suing on another's behalf)

Organization members	Organization has standing if: • members have standing to sue on their own behalf • their injuries relate to organization's purpose AND • lawsuit does not require member participation (if damages sought)
Third party	Injured plaintiff has standing when: • parties share inextricably close relationship (eg, doctor/patient) AND • obstacle prevents third party from suing (eg, privacy/retaliation concern)
Child	Parent has standing unless parental rights have been limited by court OR lawsuit may adversely affect child
Assignor	Assignee has standing if assigned legal claim for ordinary & good faith business purpose

A federal court cannot hear a case unless the plaintiff has **standing**—ie, a concrete interest in the outcome of the case—to bring it. When the **plaintiff is an organization** (eg, trade association), the organization has standing to sue when it has suffered an injury. It also has standing to **bring an action on behalf of its members** when:

- the **members** themselves would **have standing** to sue (ie, members suffered an injury-in-fact that was caused by the defendant and is redressable by the remedy sought)
- the interests at stake (eg, members' injuries) relate to the **organization's purpose** *and*
- if damages are sought, the lawsuit **does not require member participation** (eg, to prove monetary damages).

Here, the association's members would have standing because the decline in sales (injury-in-fact) caused by the commissioner's regulation (causation) will be remedied if the court grants an injunction (redressability). The decline in sales relates to the association's purpose of protecting State A's cattle industry. And since the association seeks an injunction (not damages), member participation is not needed. Therefore, the association

has standing to sue on behalf of its members, and the court may determine the merits of this suit.

(Choice A) An organization must suffer an injury-in-fact to have standing to sue on its *own* behalf. But an organization may have standing to sue on its *members'* behalf even if it has not suffered an injury.

(Choice B) The Eleventh Amendment generally bars private parties and foreign governments from suing a *state* in federal court for *monetary* relief. But it does not bar suits against *state officials* for *injunctive* relief (as seen here).

(Choice C) Federal and state courts have concurrent jurisdiction over federal-law claims unless the Constitution or Congress expressly provides federal courts with exclusive jurisdiction (not seen here).

Educational objective:

An organization has standing to sue on its members' behalf when (1) the members themselves would have standing to sue, (2) the interests at stake relate to the organization's purpose, and (3) if damages are sought, the lawsuit does not require member participation.

References

- U.S. Const. art. III, § 2 (case-or-controversy requirement).
- Hunt v. Wash. State Apple Adver. Comm'n, 432 U.S. 333, 343–45 (1977) (holding that organizations may bring actions on behalf of their members when the requirements for organizational standing are met.)

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A senator made a speech on the floor of the U.S. Senate in which she asserted that a federal civil servant with minor responsibilities was twice convicted of fraud by a state. In making this assertion, the senator relied wholly on research done by her chief legislative assistant.

In fact, it was a different man with the same name, and not the civil servant, who was convicted of these crimes in the state court proceedings. This mistake was the result of carelessness on the legislative assistant's part.

No legislation affecting the appointment or discipline of civil servants or the program of the federal agency for which the civil servant works was under consideration at the time the senator made her speech about him on the floor of the Senate.

The civil servant sues the senator and her legislative assistant for defamation. Both defendants move to dismiss the complaint.

As a matter of constitutional law, how should the court proceed on the defendants' motion?

A. Deny it as to both defendants, because any immunity of the senator under the speech or debate clause does not attach to a speech that is not germane to pending legislative business, and her legislative assistant is entitled to no greater immunity than the legislator he was assisting.

B. Deny it as to the legislative assistant, because he is not a legislator protected by the speech or debate clause; but grant it as to the senator, because she is immune from suit for her speech by virtue of that clause.

C. Grant it as to both defendants, because the senator is immune to suit for any speech she makes in the Senate under the speech or debate clause of Article I, section 6, and her legislative assistant may assert the senator's immunity for his assistance to her in preparing the speech.

D. Grant it as to the legislative assistant, because he is protected by the freedom of speech guarantee against defamation actions by government officials based on his mere carelessness; but deny it as to the senator, because, as an officer of the United States, she is a constituent part of the government and, therefore, has no freedom of speech rights in that capacity.

Explanation:

Federal government immunities

Branch	Actor	Immunity	Applicable suit
Legislative	Member of Congress	• Absolute immunity for official legislative acts	Civil & criminal
	Aide	• Absolute immunity for acts that would be immune if performed by member of Congress	
Executive	President	• Absolute immunity for official executive acts • No immunity for acts before taking office or unrelated to executive function	Civil
	Aide/official	• Qualified immunity for discretionary acts	
Judicial	Judge/prosecutor	• Absolute immunity for official judicial acts unless clearly lacks subject matter jurisdiction	Civil
	Officer/employee	• Absolute immunity for acts pursuant to court order • Qualified immunity for discretionary acts	

The Article I, section 6 **speech or debate clause** gives **members of Congress absolute immunity** from criminal and civil liability for official legislative activities. This includes *any* speech made on the House or Senate floor—regardless of whether the speech relates to pending legislative business **(Choice A)**. And this immunity **extends to legislative aides** who engage in activities that would be immune if performed by a member of Congress.

Here, the senator relied on the legislative assistant's careless research and falsely asserted that the civil servant had previously been convicted of fraud. The civil servant then sued both for defamation. But since the senator made the assertion during a speech on the Senate floor, she is immune from suit for that speech. And the legislative assistant may assert the senator's immunity for his assistance to her in preparing that speech. Therefore, the court should grant the motion to dismiss as to both defendants **(Choice B)**.

(Choice D) All persons—including legislators—have freedom of speech. But defamatory statements fall outside First Amendment protections. And though *prominent* government

officials can only prevail in a defamation action if they prove actual malice, *minor* government officials need only prove negligence (as seen here). Therefore, only the speech or debate clause will immunize the defendants' conduct.

Educational objective:

Under the speech or debate clause, members of Congress are immune from criminal and civil liability for any official legislative activity (eg, a speech given on the floor of Congress). And this immunity extends to legislative aides who engage in conduct that would be immune if performed by a member of Congress.

References

- Gravel v. United States, 408 U.S. 606, 621–22 (1972) (holding that the speech or debate clause grants immunity to members of Congress and legislative aides for certain conduct).
- 77 Am. Jur. 2d United States § 7 (2019) (explaining that the speech or debate clause grants legislative immunity).

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A state constitution provides that in every criminal trial "the accused shall have the right to confront all witnesses against him face to face." A defendant was convicted in state court of child abuse based on testimony from a six-year-old child. The child testified while she was seated behind one-way glass, which allowed the defendant to see the child but did not allow the child to see the defendant. The defendant appealed his conviction to the state's highest court, claiming that the inability of the child to see the defendant while she testified violated both the United States Constitution and the state constitution. Without addressing the federal constitutional issue, the state's highest court reversed the defendant's conviction and ordered a new trial. The court held that "the constitution of this state is clear, and it requires that while testifying in a criminal trial, a witness must be able to see the defendant." The state petitioned the United States Supreme Court for a writ of certiorari.

On which ground should the United States Supreme Court DENY the state's petition?

A. A state may not seek appellate review in the United States Supreme Court of the reversal of a criminal conviction by its highest court.

B. The decision of the state's highest court requires a new trial, and therefore it is not a final judgment.

C. The decision of the state's highest court was based on an adequate and independent state ground.

D. The Sixth Amendment to the United States Constitution does not require that a witness against a criminal defendant be able to see the defendant while the witness testifies.

Explanation:

The **U.S. Supreme Court** (SCOTUS) has discretion to review a highest state court judgment that turns on *federal* law. But SCOTUS **must decline to review** a **state court judgment based on *state* grounds** that are:

- **adequate** – the state grounds **fully resolve the matter** such that the application of federal law would not affect the outcome of the case *and*
- **independent** – it is clear from the opinion that the state court **did not rely on federal law** in reaching its conclusion.

Here, the defendant appealed his conviction to the state's highest court, claiming violations of both the U.S. Constitution and the state constitution. Without addressing the *federal* constitutional issue, the court reversed his conviction on the ground that the *state* constitution clearly requires that a witness be able to see a criminal defendant while testifying. Since the court's decision was based on an adequate and independent state ground, SCOTUS should deny the state's petition for a writ of certiorari (ie, request for appellate review).

(Choice A) A state *may* seek appellate review in the Supreme Court of the reversal of a criminal conviction by the state's highest court. But SCOTUS must decline to review the reversal if it rests on adequate and independent state grounds.

(Choice B) Although the decision of the state's highest court requires a new trial, it *is* a final judgment since it fully resolves the confrontation issue—ie, whether witnesses must be able to see criminal defendants while testifying—and that issue will not arise on retrial.

(Choice D) A criminal defendant's Sixth Amendment right to confront adverse witnesses does not require that a witness be able to see the defendant while testifying. But here, SCOTUS would not reach the merits of the defendant's Sixth Amendment claim since the decision of the state's highest court was based entirely on *state* law.

Educational objective:

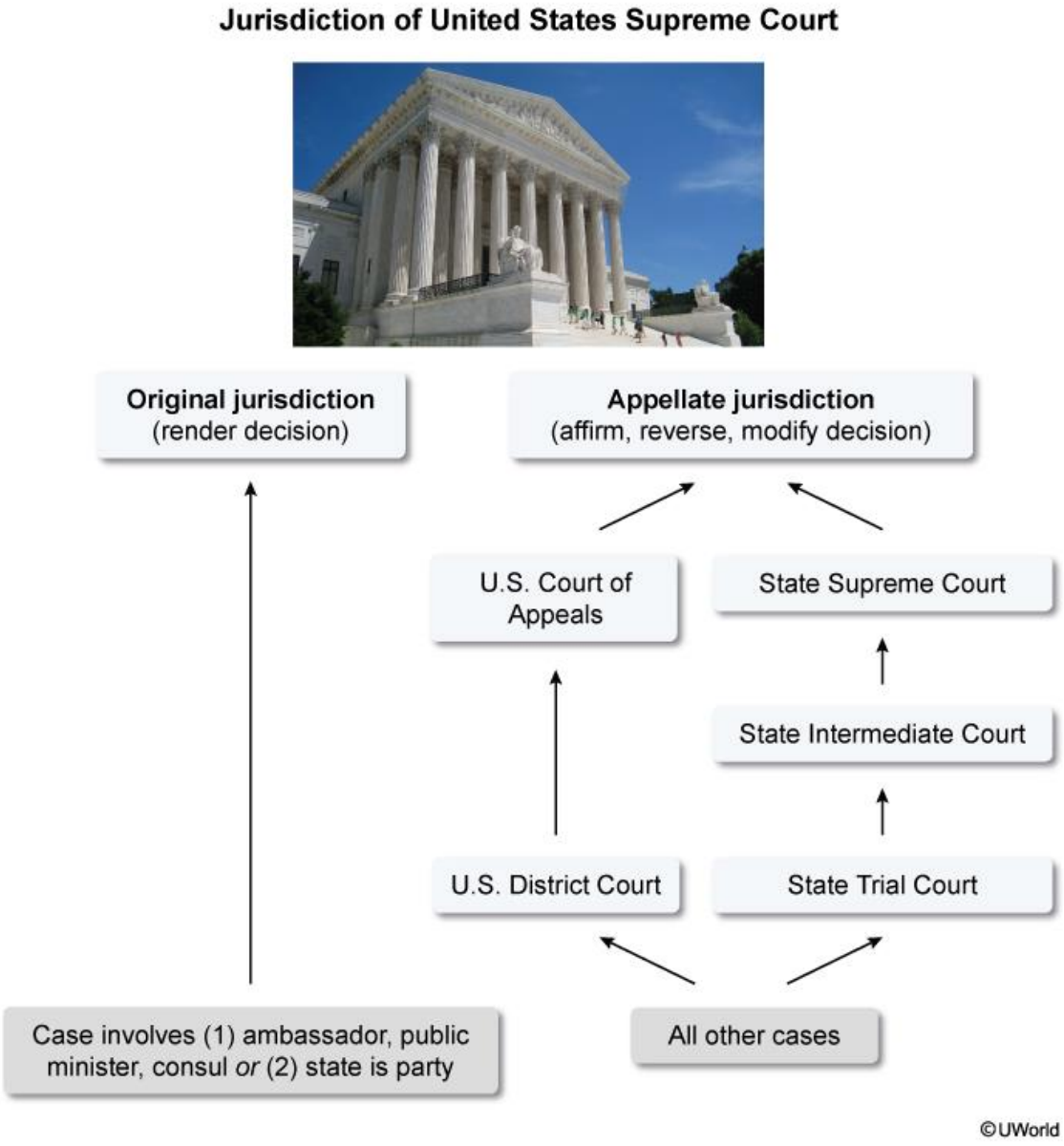
The U.S. Supreme Court cannot review a state court judgment based on state-law grounds that are adequate (ie, the state grounds fully resolve the matter) AND independent (ie, the state court did not rely on federal law).

References

- Michigan v. Long, 463 U.S. 1032, 1041 (1983) (holding that a state supreme court judgment rests on adequate and independent state-law grounds if the state court makes a plain statement to that effect).
- 4 Am. Jur. 2d Appellate Review § 44 (2019) (explaining the plain statement rule).

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The United States found itself involved in a foreign conflict. Congress enacted a statute that established a military court in a foreign country to determine if individuals captured in an active combat zone should be classified as enemy combatants and detained until the cessation of hostilities. The statute provides that the military court may hear evidence presented by the captured individual at its discretion.

A man, a U.S. citizen, was captured in an active combat zone and tried by the military court. After the government presented its evidence, the court determined that the man was an enemy combatant and ordered that he be detained until the end of hostilities. The man was not permitted to provide a defense.

The man seeks to overturn his detention in a habeas corpus proceeding in a federal district court, claiming that the statute is unconstitutional as applied to him.

How is the federal court likely to rule in this action?

A. It will set aside the military court's ruling, because Congress has no enumerated power to establish military courts.

B. It will set aside the military court's ruling, because the man was entitled to a fair opportunity to rebut the government's factual assertions before a neutral decision-maker.

C. It will uphold the military court's ruling, because an individual in a foreign country does not possess constitutional rights.

D. It will uphold the military court's ruling, because federal courts do not have jurisdiction to review decisions issued by military courts.

Explanation:

The necessary and proper clause allows Congress to take actions that are reasonably necessary to carry out its enumerated Article I powers. Congress may therefore establish **military courts and tribunals** to carry out its enumerated powers to regulate the military and make rules regarding captures on land and sea **(Choice A)**. Congress may grant military courts jurisdiction over enemy combatants, enemy civilians, and current members of the U.S. military.*

However, Congress must afford procedural due process to **U.S. citizens** classified and detained as **enemy combatants**. Procedural due process requires that U.S. citizens be given:

- **notice** of the factual basis for the citizen's classification as an enemy combatant *and*
- a **fair opportunity to rebut** the government's factual assertions **before a neutral decision-maker**.

A U.S. citizen detained as an enemy combatant who does not receive these protections may file a petition for a writ of habeas corpus in a federal court unless Congress has explicitly suspended the writ (not seen here). The federal court has jurisdiction to then set aside an unlawful detention **(Choice D)**.

Here, the man was captured in an active combat zone and classified as an enemy combatant by the military court. The statute gives the military court the *discretion* whether to allow a captured individual to provide evidence in his/her defense. However, the man is *entitled* to rebut the government's factual assertions because he is a U.S. citizen. Since the military court did not provide the man that opportunity, the statute is unconstitutional as applied to him. Therefore, the federal court will likely set aside the military court's ruling.

*Military courts and tribunals do not have jurisdiction over U.S. civilians who are not classified as enemy combatants unless hostilities have forced state and federal civilian courts to close.

(Choice C) U.S. citizens, including citizens in foreign countries, always possess constitutional rights.

Educational objective:

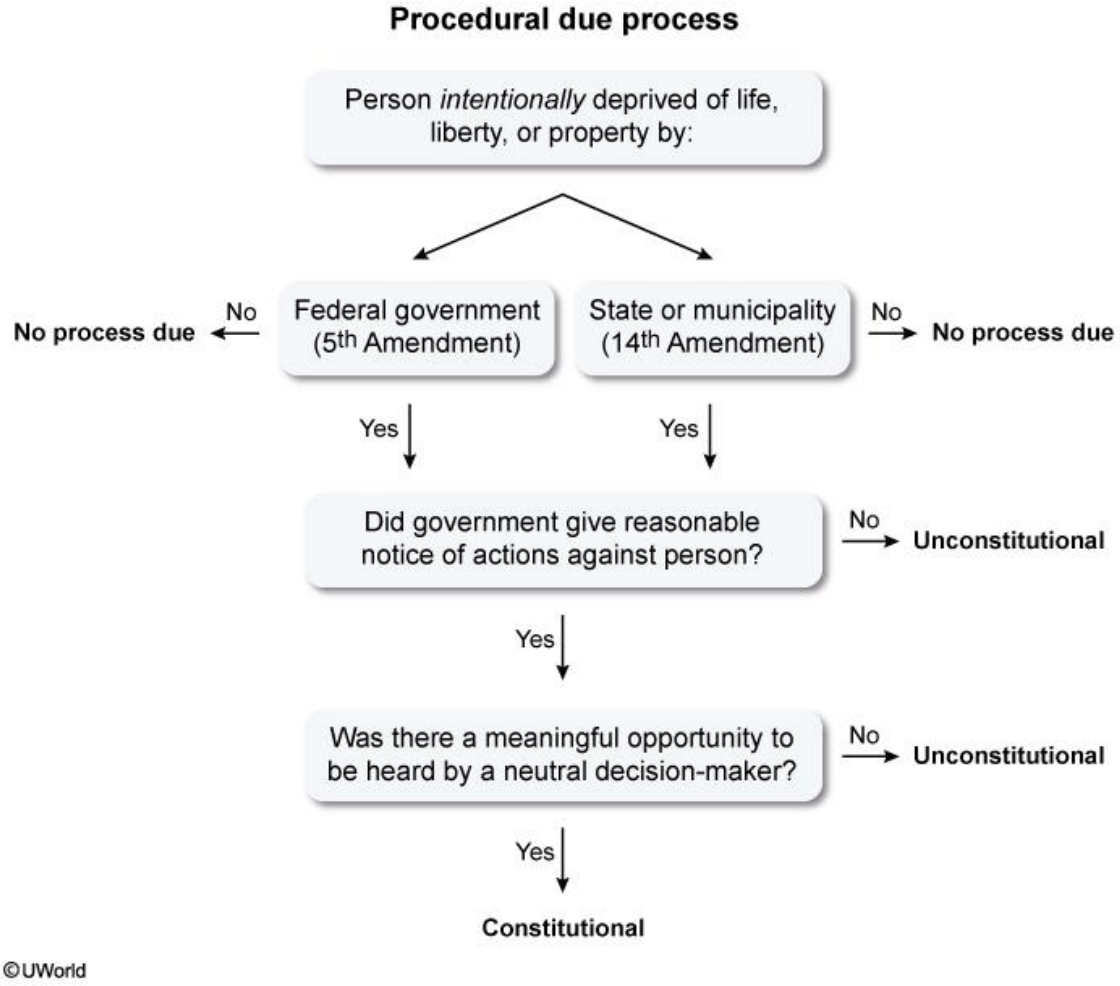
Congress may establish military courts and tribunals but must afford U.S. citizens classified as enemy combatants procedural due process. This requires (1) notice of the factual basis for the citizen's classification and (2) a fair opportunity to rebut those facts before a neutral decision-maker.

References

- U.S. Const. art. I, § 8, cl. 14 (power to make rules regarding capture).

- Hamdi v. Rumsfeld, 542 U.S. 507, 533 (2004) (O'Connor, J., plurality) (holding that detained U.S. citizens seeking to challenge enemy combatant status are entitled to procedural due process).

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Congressional committees heard testimony from present and former holders of licenses issued by state vocational licensing boards. According to the testimony, the boards had unfairly manipulated their disciplinary proceedings in order to revoke the licenses of some license holders as a means of protecting favored licensees from competition.

In response, Congress enacted a statute prescribing detailed procedural requirements for the disciplinary proceedings of all state vocational licensing boards. The statute requires the state boards to provide licensees with adequate notice and opportunity for an adjudicatory hearing in all disciplinary proceedings. The statute also prescribes membership criteria for state vocational licensing boards, designed to ensure that the boards are likely to be neutral.

Which of the following provides the best source of authority for this federal statute?

A. Section 5 of the Fourteenth Amendment.

B. The general welfare clause of Article I, Section 8.

C. The privileges and immunities clause of Article IV, Section 2.

D. The takings clause of the Fifth Amendment.

Explanation:

Fourteenth Amendment protections

Clause	**Applicability**
Equal protection	Discriminatory treatment of similarly situated people
Due process	Substantive – deprivation of life, liberty, or property without adequate *justification*
	Procedural – deprivation of life, liberty, or property without adequate *process*
Privileges or immunities*	Interference with rights of national citizenship

*Rarely a correct answer.

Section 5 of the Fourteenth Amendment gives **Congress the power** to enact appropriate legislation to **enforce** the rights guaranteed by the amendment (eg, procedural due process). Legislation is appropriate under this section when it:

- seeks to **remedy or prevent** state action that violates the Fourteenth Amendment *and*
- is **narrowly tailored**—ie, its requirements are congruent with and proportional to the violations it addresses.

A violation of **procedural due process** occurs when the state fails to follow certain procedures when it intentionally deprives a person of a life, liberty, or property interest (eg, vocational license). These procedures include giving the person **notice** and a **meaningful opportunity to be heard** by a **neutral decision-maker**.

Here, state vocational licensing boards apparently violated procedural due process by unfairly manipulating their disciplinary proceedings. Congress attempted to remedy this by enacting a statute prescribing detailed procedural requirements for such proceedings in all states. This statute is narrowly tailored since its requirements—ie, adequate notice and a hearing before a neutral board—are the basic standards of procedural fairness. Therefore, section 5 of the Fourteenth Amendment is the best source of authority for this statute.

(Choice B) The Article I, section 8 general welfare clause empowers Congress to spend for the general welfare (ie, for any public purpose). But this clause does not apply because the statute is not a spending measure.

(Choice C) The privileges and immunities clause of Article IV, section 2 prohibits states from improperly discriminating against citizens of other states. Since this statute does not address discrimination against citizens of other states, this clause does not apply.

(Choice D) The Fifth Amendment takings clause prohibits governmental taking of private property for public use without just compensation. But this clause only applies to real or personal property—not vocational licenses.

Educational objective:

Congress can enforce Fourteenth Amendment rights through legislation that (1) seeks to remedy or prevent state violations of the amendment and (2) is narrowly tailored—ie, its requirements are congruent with and proportional to the violations it addresses.

References

- Tennessee v. Lane, 541 U.S. 509, 520 (2004) (explaining that Congress can enact laws to remedy or prevent Fourteenth Amendment violations if there is congruence and proportionality between the injury and the law).

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Which of the following acts by the United States Senate would be constitutionally IMPROPER?

A. The Senate appoints a commission to adjudicate finally a boundary dispute between two states.
B. The Senate decides, with the House of Representatives, that a disputed state ratification of a proposed constitutional amendment is valid.
C. The Senate determines the eligibility of a person to serve as a senator.
D. The Senate passes a resolution calling on the President to pursue a certain foreign policy.

Explanation:

Independent legislative powers

(legislative-action process not required)

Legislative body	Powers
House of Representatives	• Impeach federal officials • Elect President (when electoral-college threshold not met) • Determine internal rules & members' eligibility • Punish/expel members for bad behavior
Senate	• Try impeached federal officials • Confirm/reject presidential appointments • Approve/reject treaties • Determine internal rules & members' eligibility • Punish/expel members for bad behavior
Full Congress	• Propose constitutional amendments • Decide disputes regarding ratification of amendments

Article I prescribes the method Congress (ie, the House of Representatives and the Senate) must use to take any action that alters the legal rights of persons outside the legislative branch (ie, legislative action). Under this method, **most legislative action must be**:

- approved by both houses of Congress (ie, **bicameralism**) and
- presented to the President for approval or disapproval (ie, **presentment**).

But **certain legislative powers** are independent and **do not require bicameralism and/or presentment**. These include:

- the power of the Senate, together with the House of Representatives, to decide disputes regarding the ratification of amendments (no presentment required) **(Choice B)** *and*

- the power of the Senate to determine a person's eligibility to serve as a senator (no bicameralism or presentment required) **(Choice C)**.

These independent legislative powers do *not* include the power to appoint a commission to adjudicate boundary disputes between two states. Therefore, it would be constitutionally improper for the Senate to do so without adhering to bicameralism and presentment.

(Choice D) A resolution does not amount to legislative action because it is a *nonbinding* recommendation that has no effect on the legal rights of persons outside the legislative

branch. Therefore, the Senate can pass a resolution calling on the President to pursue a certain foreign policy without adhering to bicameralism or presentment.

Educational objective:

Absent narrow exceptions, all legislative action must be approved by both houses of Congress (ie, bicameralism) AND presented to the President for approval or disapproval (ie, presentment).

References

- Coleman v. Miller, 307 U.S. 433, 456 (1939) (explaining that Congress controls the promulgation of the adoption of constitutional amendments).
- INS v. Chadha, 462 U.S. 919, 952 (1983) (explaining that legislative action is subject to bicameralism and presentment when Congress alters the legal rights, duties, and relations of persons outside the legislative branch).

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A federal statute enacted pursuant to the power of Congress to enforce the Fourteenth Amendment prohibits any state from requiring any of its employees to retire from state employment solely because of their age. The statute expressly authorizes employees required by a state to retire from state employment solely because of their age to sue the state government in federal district court for any damages resulting from that state action.

On the basis of this federal statute, a retiree sues State X in federal district court. State X moves to dismiss the suit on the ground that Congress lacks authority to authorize such suits against a state.

Which of the following is the strongest argument that the retiree can offer in opposition to the state's motion to dismiss this suit?

A. When Congress exercises power vested in it by any provision of the Constitution, Congress has unlimited authority to authorize private actions for damages against a state.

B. When Congress exercises power vested in it by the Fourteenth Amendment, Congress may enact appropriate remedial legislation expressly subjecting the states to private suits for damages in federal court.

C. While the Eleventh Amendment applies to suits in federal court by citizens of one state against another state, it does not apply to such suits by citizens against their own states.

D. While the Eleventh Amendment restrains the federal judiciary, that amendment does not limit the power of Congress to modify the sovereign immunity of the states.

Explanation:

Eleventh Amendment

(state immunity from suit in federal court)

Immunity

- Suit brought by private party or foreign government
- Suit against state official violating state law
- Exceptions:
  - State consents to suit
  - Immunity removed by 13th, 14th, or 15th Amendment
  - State official sued for injunctive or declaratory relief
  - Damages to be paid by state officer personally (not state treasury)
  - State official sued for prospective (not retroactive) damages to be paid by state treasury

No immunity

- Suit brought by United States or other state
- Suit against local government (eg, counties, municipalities)
- Bankruptcy proceedings

The **Eleventh Amendment** generally forbids the federal courts from hearing private suits for damages against the states. **Congress cannot override** this ban, even to exercise one of its constitutionally enumerated powers **(Choices A & D)**. But there is a **narrow exception** to this rule when Congress is clearly acting to **enforce** the Civil War Amendments (eg, Fourteenth Amendment—as seen here). In that case, it may enact appropriate remedial legislation expressly subjecting the states to private suits for damages in federal court.

(Choice C) The Eleventh Amendment applies to *all* private suits for damages against the states—including suits by citizens against their own state. But it does not bar Congress from authorizing such suits as a means of enforcing the Civil War Amendments.

Educational objective:

The Eleventh Amendment generally forbids the federal courts from hearing private suits for damages against the states. But Congress can authorize such suits when it is clearly acting to enforce the Civil War Amendments (ie, Thirteenth, Fourteenth, and Fifteenth Amendments).

References

- United States v. Georgia, 546 U.S. 151, 158–59 (2006) (explaining that the Fourteenth Amendment allows Congress to abrogate state sovereign immunity by authorizing private suits for damages against the states).

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A federal statute extends federal minimum wage requirements to all dry cleaning stores. The statute contains express findings that, when combined, the wages received by dry cleaning workers have a substantial impact on the national economy and on the flow of goods and services in interstate commerce. These findings are supported by information presented to Congress during committee hearings on the legislation.

A small dry cleaning store operates exclusively within a community in the center of a geographically large state. It has no customers from outside the state. It employs three workers, each of whom is paid less than the federal minimum wage.

Must this dry cleaning store comply with the statute imposing the federal minimum wage requirements on all dry cleaning stores?

A. No, because the store does no business in interstate commerce.

B. No, because the wages of the store's three workers do not have a substantial impact on interstate commerce.

C. Yes, because the commerce clause vests Congress with plenary legislative authority over labor relations.

D. Yes, because the wages paid by dry cleaning stores have a substantial impact on interstate commerce.

Explanation:

The Article I **commerce clause** gives Congress broad power to regulate **interstate commerce**—ie, nearly all activities involving two or more states. This includes the power to regulate the following:

- **channels** of interstate commerce (eg, highways, waterways)
- **instrumentalities** of interstate commerce (eg, trucks, trains)
- **persons or things** moving in interstate commerce (eg, goods, electricity) *and*
- **in-state activities** that—singly or in the aggregate—**substantially impact** interstate commerce.

Here, the federal statute requires all dry cleaning stores to pay their employees a minimum wage. This includes the small dry cleaning store that employs three low-wage workers, whose wages alone do not have a substantial impact on interstate commerce. But when the wages paid by all dry cleaning stores are added together (ie, aggregated), they *do* have a substantial impact on interstate commerce **(Choice B)**. Therefore, Congress can regulate these wages under the commerce clause, and the store must comply with the minimum wage requirement.

(Choice A) Although the store does no business in interstate commerce, Congress can regulate the store's wages since the aggregate wages paid by all dry cleaning stores have a substantial impact on interstate commerce.

(Choice C) The commerce clause does *not* vest Congress with plenary (ie, absolute) legislative authority over labor relations. Congress can only regulate labor relations that substantially affect interstate commerce, and states can also regulate labor relations so long as they comply with the dormant commerce clause.

Educational objective:

The commerce clause gives Congress broad authority to regulate interstate commerce—including in-state activities that substantially impact interstate commerce singly or in the aggregate.

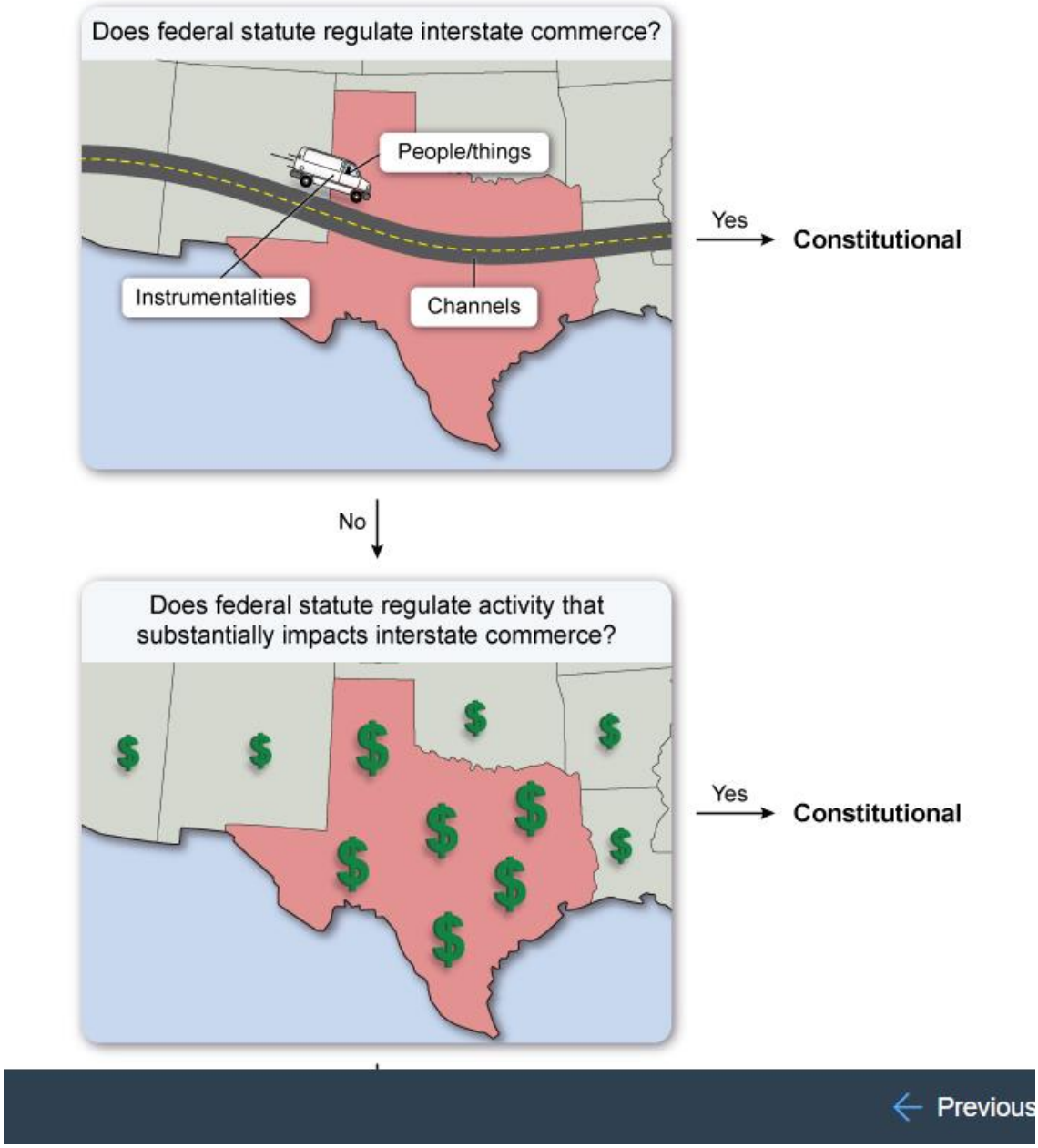
References

- Gonzales v. Raich, 545 U.S. 1, 17 (2005) (holding that Congress can regulate purely local activities that are part of an economic class of activities that have a substantial effect on interstate commerce).
- NLRB v. Jones & Laughlin Steel Corp., 301 U.S. 1, 36–37 (1937) (recognizing that Congress's commerce powers extend to activities that impact interstate commerce independently or in combination with other sources).

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Commerce clause challenge



A jury convicted a federal district court judge of bribery. When the judge subsequently refused to resign from his office, the House of Representatives adopted and presented to the Senate an article of impeachment that charged the judge with bribery. Pursuant to its rules for impeachment, the Senate authorized a committee of senators to hold closed-door hearings to take testimony and receive evidence related to the impeachment charge. At the conclusion of the hearings, the committee reported the facts and summarized the evidence to the full Senate. Based on the committee's report, the Senate voted to convict the judge and remove him from office.

The judge has filed suit in federal court to enjoin the Senate from removing him from office. The judge claims that the Senate violated Article I of the U.S. Constitution by prohibiting the full Senate from taking part in the hearings.

If the court dismisses the judge's action, what will be the most likely reason?

A. The action involves a nonjusticiable political question.

B. The action is moot.

C. The judge lacks standing.

D. The U.S. Supreme Court has original and exclusive jurisdiction over the action.

Explanation:

Nonjusticiable political questions

(issues incapable of judicial resolution)

- Recognition of foreign governments
- Reception of ambassadors
- Nature of wars/hostilities
- Partisan gerrymandering
- Guarantee of republican form of government
- Recognition of Native American tribes
- House/Senate rules for impeachment
- Ratification process for constitutional amendments

Article III of the U.S. Constitution grants **federal courts** the **power to decide justiciable cases and controversies**. However, some actions are not capable of judicial resolution (ie, nonjusticiable). This includes actions implicating the **political-question doctrine**. Under this doctrine, federal courts are **prohibited from deciding political questions** that should be resolved by another branch of government. A case presents a nonjusticiable political question when:

- the issue has been **reserved** to the **executive or legislative** branch *and/or*
- there is a **lack of judicially discoverable and manageable standards** to resolve the issue.

Here, the judge seeks to enjoin the Senate from removing him from office. He claims that the Senate violated Article I of the U.S. Constitution by prohibiting the full Senate from participating in the evidentiary hearings. However, the impeachment and removal of federal judges is a power reserved *solely* to Congress,* and there are no standards to help a court resolve an impeachment process issue. Therefore, the court will most likely dismiss the judge's action because it involves a nonjusticiable political question.

*Congress also has the exclusive power to impeach and remove the President, Vice President, and other federal officers (eg, the U.S. Attorney General).

(Choice B) A suit is also nonjusticiable if it is moot—ie, when the suit no longer presents an actual controversy for the court to resolve. Here, the judge's action is not moot since his harm has not been resolved. However, the federal courts cannot provide relief because his claim presents a nonjusticiable political question.

(Choice C) The judge has standing because he suffered an injury-in-fact (removal from office) that was caused by the challenged action (impeachment procedure) and is redressable by the remedy sought (injunction).

(Choice D) The U.S. Supreme Court has original jurisdiction over cases that affect ambassadors, public ministers, or consuls OR involve a state as a party (neither seen here). Additionally, the Supreme Court has exclusive jurisdiction over suits between states (not seen here).

Educational objective:

Federal courts must dismiss a suit that presents a nonjusticiable political question. This occurs when (1) the Constitution reserves the issue to another branch of government and/or (2) the court lacks judicially discoverable and manageable standards to resolve the issue.

References

- Nixon v. United States, 506 U.S. 224, 238 (1993) (holding that the impeachment process presents a nonjusticiable question that is reserved to the legislative branch).
- Baker v. Carr, 369 U.S. 186, 210–17 (1962) (explaining the political-question doctrine).
- 32 Am. Jur. 2d Fed. Courts § 574 (2020) (listing common examples of political questions).

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Congress passed a statute providing that parties could no longer seek review in the U.S. Supreme Court of final judgments in criminal matters made by the highest court in each state.

What is the best argument supporting the constitutionality of the statute?

A. Congress has the power to make exceptions to the appellate jurisdiction of the Supreme Court.

B. Criminal matters are traditionally governed by state law.

C. The proper means of federal judicial review of state criminal matters is by habeas corpus.

D. The review of state court judgments is not within the original jurisdiction of the Supreme Court.

Explanation:

SCOTUS jurisdiction

Type	Definition	Applicability
Original (Congress cannot adjust)	Case filed directly in SCOTUS	Cases involving either: • ambassador/public minister/consul *or* • state as party
Appellate (Congress may limit)	Case filed after decision by either: • lower federal court *or* • highest state court	All other cases by either: • writ of certiorari *or* • direct appeal (rare)

SCOTUS = Supreme Court of the United States.

The **U.S. Supreme Court** (SCOTUS) has **appellate jurisdiction** to review a final judgment of lower federal courts and the highest state courts when the judgment turns on federal law. But the Article III **exceptions clause** gives **Congress almost unlimited power** to **regulate or make exceptions** to this jurisdiction. Therefore, that is the best argument supporting the constitutionality of the statute prohibiting SCOTUS from reviewing final judgments in criminal matters made by the highest court in each state.

(Choice B) Although criminal matters are traditionally governed by state law, SCOTUS can review final judgments in state criminal cases involving an alleged violation of the Constitution, a federal law, or a treaty.

(Choice C) A person in custody can file a petition for a writ of habeas corpus in federal court to challenge the legality of his/her detention. But a habeas corpus petition is a separate civil suit—not part of the criminal appeals process. So, the better argument is that Congress can make exceptions to SCOTUS's appellate jurisdiction.

(Choice D) The review of state court judgments is not within SCOTUS's very limited *original* jurisdiction (ie, power to hear a case first and render a decision). But it is within SCOTUS's *appellate* jurisdiction.

Educational objective:

The U.S. Supreme Court's appellate jurisdiction extends to final judgments of lower federal courts and the highest state courts when the judgment turns on federal law. But the Article III exceptions clause gives Congress extensive power to regulate and make exceptions to this jurisdiction.

References

- Ex parte McCardle, 74 U.S. 506, 514 (1869) (establishing that Congress has almost unlimited power to make exceptions to the Supreme Court's appellate jurisdiction).

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The National AIDS Prevention and Control Act is a new, comprehensive federal statute that was enacted to deal with the public health crisis caused by the AIDS virus. Congress and the President were concerned that inconsistent lower court rulings with respect to the constitutionality, interpretation, and application of the statute might adversely affect or delay its enforcement and thereby jeopardize the public health. As a result, they included a provision in the statute providing that all legal challenges concerning those matters may be initiated only by filing suit directly in the United States Supreme Court.

Is the provision authorizing direct review of the constitutionality, interpretation, or application of this statute only in the United States Supreme Court constitutional?

A. No, because it denies persons who wish to challenge this statute the equal protection of the laws by requiring them to file suit in a court different from that in which persons who wish to challenge other statutes may file suit.

B. No, because it is inconsistent with the specification in Article III of the original jurisdiction of the United States Supreme Court.

C. Yes, because Article III provides that the jurisdiction of the United States Supreme Court is subject to such exceptions and such regulations as Congress shall make.

D. Yes, because it is authorized by the Article I power of Congress to enact all laws that are "necessary and proper" to implement the general welfare.

Explanation:

SCOTUS jurisdiction

Type	Definition	Applicability
Original (Congress cannot adjust)	Case filed directly in SCOTUS	Cases involving either: • ambassador/public minister/consul *or* • state as party
Appellate (Congress may limit)	Case filed after decision by either: • lower federal court *or* • highest state court	All other cases by either: • writ of certiorari *or* • direct appeal (rare)

SCOTUS = Supreme Court of the United States.

Article III gives the **U.S. Supreme Court** (SCOTUS) **original jurisdiction**—ie, the authority to **directly review** a case—in two rare circumstances:

- when a case affects an **ambassador, public minister, or consul** *and*
- when a **state is a party** to the suit.

Congress cannot expand or restrict SCOTUS's original jurisdiction beyond Article III's specifications **(Choice C)**. Since the statutory provision attempts to do so by authorizing SCOTUS to directly review challenges to the National AIDS Prevention and Control Act, it is unconstitutional.

(Choice A) This provision implicates the equal protection component of the Fifth Amendment because it treats persons challenging this statute differently than persons challenging other statutes. But since the provision does not substantially impact a fundamental right or protected class, it likely does not violate this component.

(Choice D) Article I allows Congress to enact laws that are "necessary and proper" (ie, reasonably appropriate) to carry out its enumerated powers—including the power to spend for the public's general welfare. But when doing so, it cannot violate other constitutional provisions (eg, Article III—as seen here).

Educational objective:

Article III gives the U.S. Supreme Court original jurisdiction over cases (1) that affect an ambassador, public minister, or consul *or* (2) in which a state is a party. And Congress cannot alter SCOTUS's original jurisdiction.

References

- Marbury v. Madison, 5 U.S. 137, 174–76 (1803) (holding that Congress cannot alter the Supreme Court's original jurisdiction).
- 32 Am. Jur. 2d Federal Courts § 453 (2019) (defining original and appellate jurisdiction).

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In order to reduce the federal deficit, Congress enacted a statute imposing a five percent national retail sales tax. The tax was levied upon all retail sales in the United States and applied equally to the sales of all kinds of goods.

Is this tax constitutional as applied to retail sales of newspapers?

A. No, because retail sales taxes are within the taxing power of the states.
B. No, because the imposition of a tax on the sale of newspapers violates the freedom of the press.
C. Yes, because it is within Congress's power to tax.
D. Yes, because the tax is necessary to serve the compelling interest of balancing the federal budget.

Explanation:

The **taxing and spending clause** (ie, general welfare clause) gives Congress broad authority to raise revenue through taxation. This includes the power to impose **indirect taxes** (eg, sales tax) if they are **applied equally** in every state AND are reasonably related to **revenue production**—as seen here.

But a tax also must respect other constitutional provisions—including the First Amendment freedom of the press. The retail sales tax does so here because it is generally applicable to all goods and in no way targets press operations **(Choice B)**. And since the sales tax does not implicate any other constitutional provisions, it is a constitutional exercise of Congress's taxing power—even as applied to retail sales of newspapers.

(Choice A) Retail sales taxes are within the taxing power of the states *as well as* Congress's enumerated taxing power.

(Choice D) The tax need not be necessary to serve a compelling interest because it is generally applicable and does not target the press.

Educational objective:

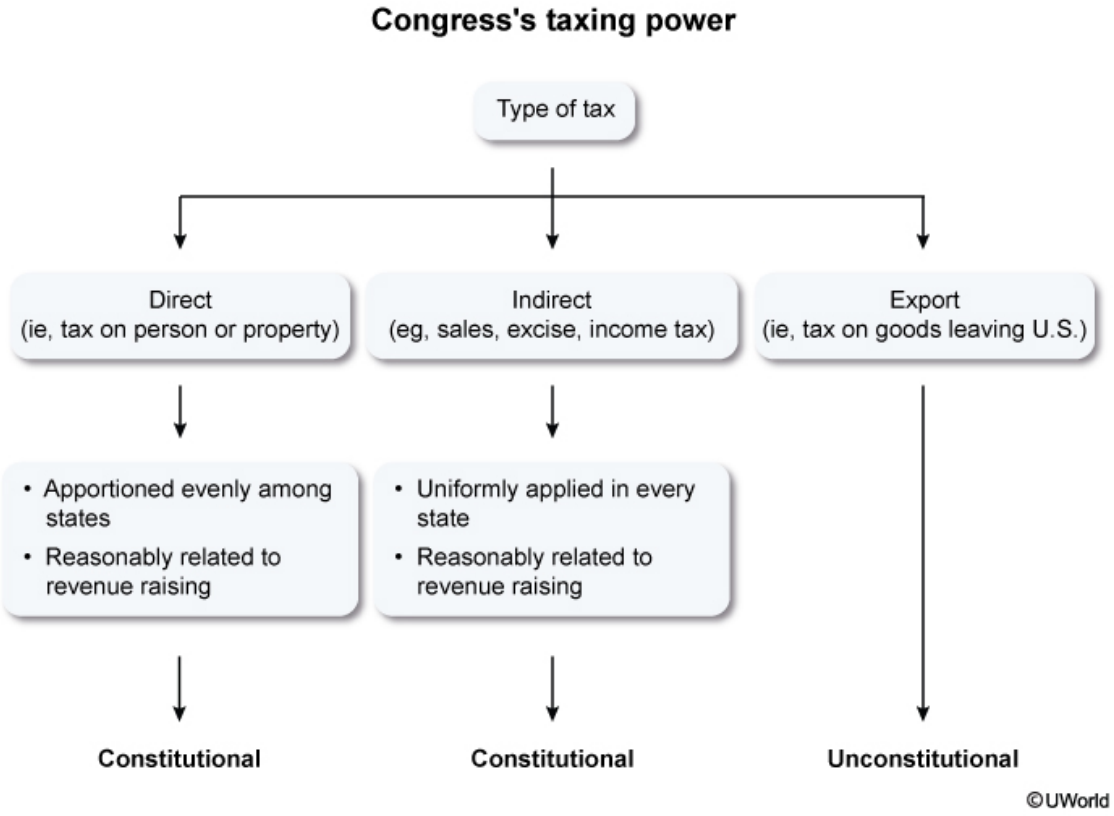
Indirect taxes must be applied equally in every state and reasonably related to revenue production. And such taxes cannot violate any other constitutional provision—eg, by targeting the press in violation of the First Amendment.

References

- Leathers v. Medlock, 499 U.S. 439, 447 (1991) (holding that the government may not exercise its taxing power to single out the press or target small groups of speakers).

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Congress's taxing power
Type of tax
Direct
(ie, tax on person or property)
Indirect
(eg, sales, excise, income tax)
Export
(ie, tax on goods leaving U.S.)
• Apportioned evenly among states
• Reasonably related to revenue raising
• Uniformly applied in every state
• Reasonably related to revenue raising
Constitutional
Constitutional
Unconstitutional
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"Look-alike drugs" is the term used to describe nonprescription drugs that look like narcotic drugs and are sold on the streets as narcotic drugs. After extensive hearings, Congress concluded that the sale of look-alike drugs was widespread in this country and was creating severe health and law-enforcement problems. To combat these problems, Congress enacted a comprehensive statute that regulates the manufacture, distribution, and sale of all look-alike drugs in the United States.

Which of the following sources of constitutional authority can most easily be used to justify the authority of Congress to enact this statute?

A. The commerce clause.

B. The enforcement powers of the Fourteenth Amendment.

C. The general welfare clause.

D. The spending power.

Explanation:

Commerce power to regulate

activities that substantially affect interstate commerce

To determine if Congress can regulate, consider whether:

- activity is economic in nature (then substantial effect presumed)
- jurisdictional element limits reach to activities with direct connection to interstate commerce
- express congressional findings that activity substantially affects interstate commerce *and*
- strong link between activity & effect on interstate commerce

Congress's **extensive power to regulate** interstate commerce extends to nearly all activities that (1) involve two or more states or (2) have a **substantial effect on interstate commerce**. To determine whether activities have a substantial effect that triggers Congress's commerce power, courts consider whether:

- the activities are **economic in nature** (if so, a substantial effect is **presumed**)
- the regulation has a **jurisdictional element** that limits its reach to activities with a direct connection to or effect on interstate commerce
- there are **express congressional findings** concerning the activities' effect on interstate commerce *and*
- there is a **strong link** between the regulated activities and that effect.

Here, the commerce clause most easily justifies Congress's enactment of a statute that regulates the manufacture, distribution, and sale of look-alike drugs. That is because, while some of these activities may only occur in one state (eg, manufacturing), all of them are *economic* in nature. It is therefore presumed that these activities have a substantial effect on interstate commerce and are subject to Congress's commerce powers.

(Choice B) The Fourteenth Amendment enforcement clause authorizes Congress to enact legislation enforcing the amendment's other provisions. But those other provisions only apply to state actors—not the private individuals likely selling look-alike drugs here.

(Choices C & D) The taxing and spending clause (ie, general welfare clause) gives Congress the power to tax and spend for the general welfare. But here, the comprehensive statute regulating the manufacture, distribution, and sale of look-alike drugs goes beyond merely taxing and spending.

Educational objective:

An activity is presumed to have a substantial effect on interstate commerce that warrants regulation by Congress when the activity is *economic* in nature.

References

- Gonzales v. Raich, 545 U.S. 1, 32–33 (2005) (upholding the constitutionality of a federal drug law since in-state marijuana cultivation substantially affects interstate commerce).

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Congress enacted a statute prohibiting discrimination in the rental of residential property anywhere in the United States on the basis of sexual orientation or preference by any person or entity, public or private.

Which of the following provisions provides the strongest basis for Congress's authority to enact this statute?

A. The commerce clause of Article I, Section 8.

B. The enforcement clause of the Fourteenth Amendment.

C. The general welfare clause of Article I, Section 8.

D. The privileges and immunities clause of Article IV.

Explanation:

The **commerce clause** of Article I, section 8 gives **Congress broad regulatory authority** over most activities involving two or more states. This includes the power to regulate:

- the **channels** of interstate commerce (eg, airports)
- the **instrumentalities** of interstate commerce (eg, planes)
- **people and things** moving in interstate commerce (eg, commercial shipments) *and*
- activities that, singly or in the aggregate, **substantially affect** interstate commerce (presumed when **activity is economic** in nature).

Here, Congress enacted a statute prohibiting discrimination based on sexual orientation in the rental of residential property. Since renting is an *economic* activity, there is a strong presumption that this activity substantially affects interstate commerce. Therefore, the commerce clause provides the strongest basis for Congress's authority to enact this statute to regulate that activity.

(Choice B) Under the Fourteenth Amendment's enforcement clause, Congress can enact legislation to enforce the amendment's other provisions against state actors—but not private actors (eg, residential landlords).

(Choice C) The Article I, section 8 taxing and spending clause (ie, general welfare clause) only empowers Congress to tax and spend for the general welfare—not to prohibit rental discrimination.

(Choice D) The Article IV privileges and immunities clause prohibits states from discriminating against out-of-state citizens by denying them a right of state citizenship. But this clause is a limitation on state power—not a basis for congressional authority.

Educational objective:

The commerce clause grants Congress extensive authority to regulate (1) the channels of interstate commerce, (2) the instrumentalities of interstate commerce, (3) persons and things moving in interstate commerce, and even (4) activities that substantially affect interstate commerce.

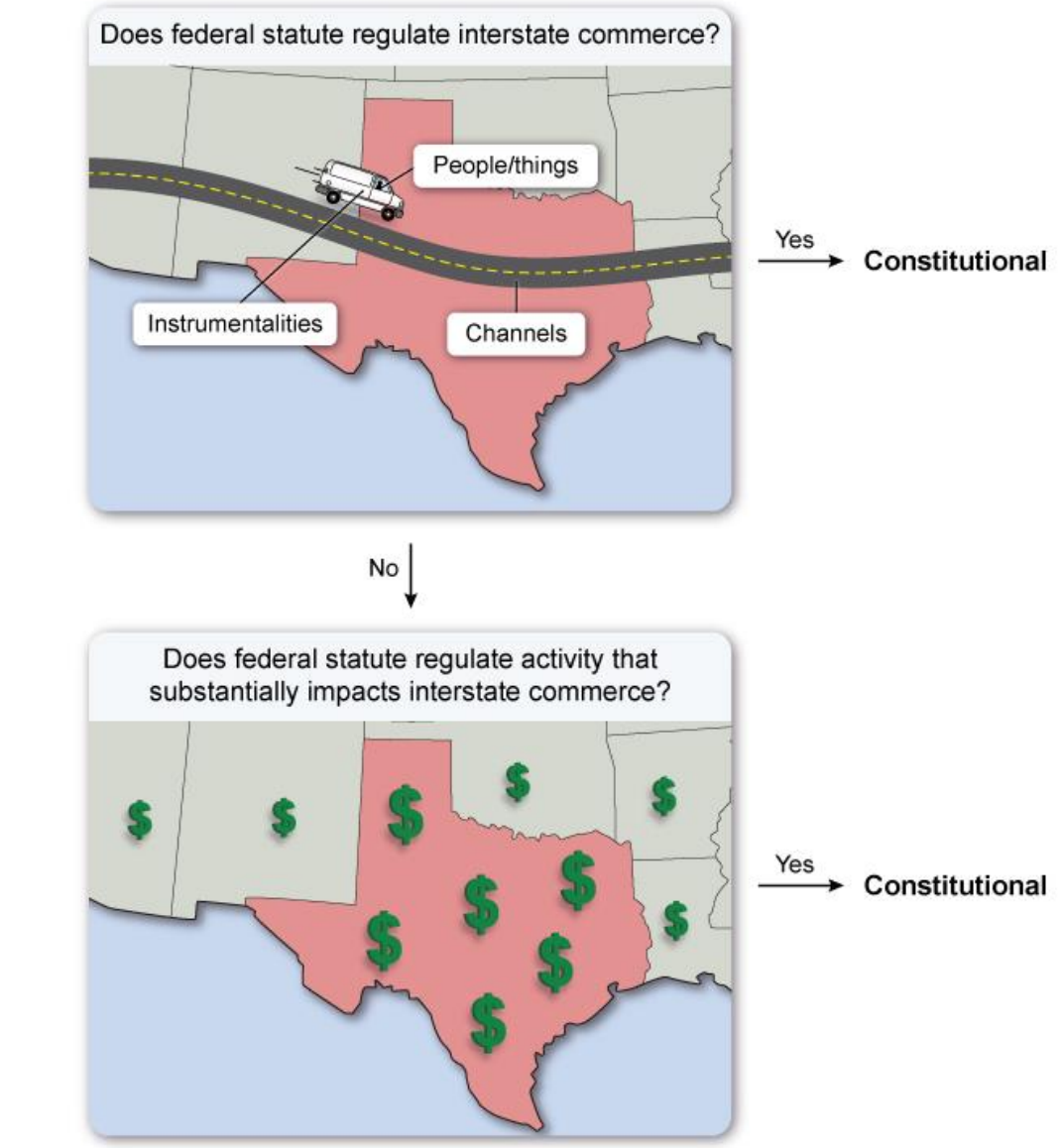
References

- Heart of Atlanta Motel, Inc. v. United States, 379 U.S. 241, 258 (1964) (holding that the commerce clause allows Congress to prohibit racial discrimination by local motels serving travelers).

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Commerce clause challenge



Previous

A federal statute admitting a state to the Union granted the state certain public lands and established some very ambiguous conditions on the state's subsequent disposition of these lands. This federal statute also required the new state to write those exact same conditions into its state constitution.

One hundred years later, a state statute dealing with the sale of these public lands was challenged in a state court lawsuit on the ground that it was inconsistent with the conditions contained in the federal statute and with the provisions of the state constitution that exactly copy the conditions contained in the federal statute.

The trial court decision in this case was appealed to the state supreme court. In its opinion, the state supreme court dealt at length with the ambiguous language of the federal statute and with cases interpreting identical language in federal statutes admitting other states to the union. The state supreme court opinion did not discuss the similar provisions of the state constitution, but it did hold that the challenged state statute is invalid because it is "inconsistent with the language of the federal statute and therefore is inconsistent with the identical provisions of our state constitution."

If the losing party in the state supreme court seeks review of the decision of that court in the United States Supreme Court, how should the United States Supreme Court proceed?

A. The court should accept the case for review and determine the validity of the interpretation of the federal statute if it is an important and substantial question.
B. The court should ask the state supreme court to indicate more clearly whether it relied on the state constitutional provision in rendering its decision.
C. The court should decline to review the case because a decision by a state supreme court concerning the proper disposition of state public lands is not reviewable by the United States Supreme Court.
D. The court should decline to review the case on the ground that the decision of the state supreme court rests on an adequate and independent state ground.

Explanation:

The **Supreme Court of the United States** (SCOTUS) has appellate jurisdiction to review decisions issued by lower federal courts and the **highest state courts** that concern important and substantial issues of federal law. But SCOTUS has **no jurisdiction to review** a state court decision that is supported by **state-law grounds** that are both:

- **adequate** – when state law completely resolves the matter such that the application of federal law would not affect the outcome of the case *and*
- **independent** – when the state court did not rely on federal law to reach its decision.

Here, a state statute dealing with the sale of certain public lands was challenged in state court and held to be inconsistent with a federal statute *and* the state constitution (adequate state grounds). But the state supreme court's decision relied on federal case law that interpreted identical language in other federal statutes (no independent state grounds) **(Choice D)**. Therefore, SCOTUS should review the state supreme court's interpretation if it is an important and substantial question.

(Choice B) The state supreme court explicitly stated that it relied on federal case law, so no clarification is needed. But even if the grounds for the state court's decision were unclear, SCOTUS would not ask the state court for clarification. Instead, SCOTUS would assume that the state court used federal law to reach its decision, rule on the federal issue, and remand the case to state court to resolve any remaining state-law issues.

(Choice C) SCOTUS can review a state supreme court decision—even if it involves the proper disposition of state public lands—as long as that decision was *not* based on adequate and independent state-law grounds.

Educational objective:

The U.S. Supreme Court has *no* jurisdiction to review a state court decision based on an adequate state-law ground that completely resolves the case independent of federal law.

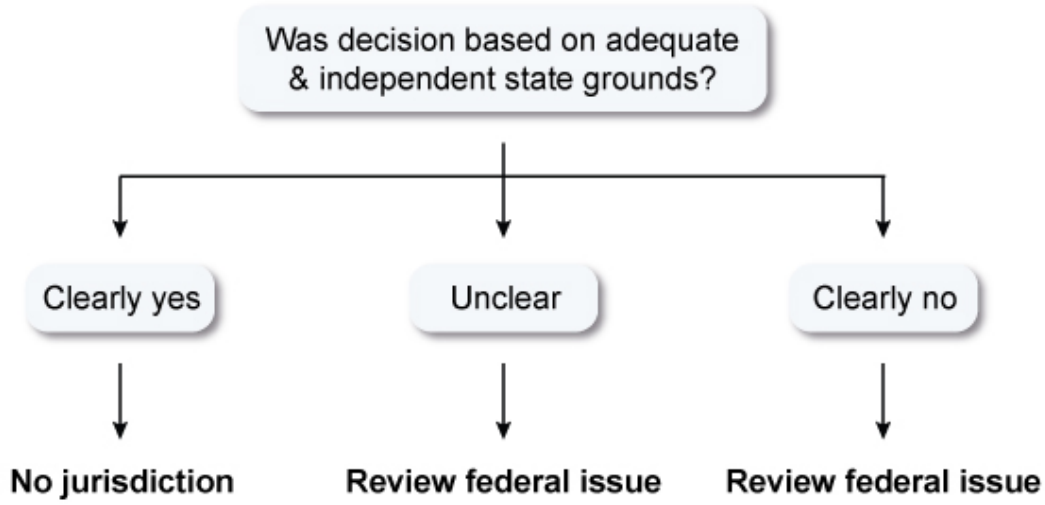
References

- Michigan v. Long, 463 U.S. 1032, 1040–41 (1983) (explaining when a state supreme court judgment rests on adequate and independent state-law grounds).
- 4 Am. Jur. 2d Appellate Review § 44 (2019) (listing the rules to determine whether a decision rests on adequate and independent state grounds).

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SCOTUS review of state court decisions
(adequate & independent state grounds)



SCOTUS = Supreme Court of the United States

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The National Ecological Balance Act prohibits the destruction or removal of any wild animals located on lands owned by the United States without express permission from the Federal Bureau of Land Management. Violators are subject to fines of up to $1,000 per offense.

After substantial property damage was inflicted on residents of a state by hungry coyotes, the state legislature passed the Coyote Bounty Bill, which offers $25 for each coyote killed or captured within the state. A national forest, owned by the federal government, is located entirely within the state. Many coyotes live in the national forest.

Without seeking permission from the Bureau of Land Management, a hunter shot several coyotes in the national forest and collected the bounty from the state. As a result, he was subsequently tried in federal district court, convicted, and fined $1,000 for violating the National Ecological Balance Act. The hunter appealed his conviction to the United States Court of Appeals.

On appeal, should the Court of Appeals hold the National Ecological Balance Act constitutional as applied to the hunter?

A. No, because Congress may not use its delegated powers to override the Tenth Amendment right of the state to legislate in areas of traditional state governmental functions, such as the protection of the property of its residents.

B. No, because Congress violates the full faith and credit clause of Article IV when it punishes conduct that has been authorized by state action.

C. Yes, because Article I, Section 8, of the Constitution authorizes Congress to enact all laws necessary and proper to advance the general welfare.

D. Yes, because the property clause of Article IV, Section 3, of the Constitution authorizes such federal statutory controls and sanctions.

Explanation:

Article IV clauses

Clause	Requirements
Full faith & credit	States must recognize public acts, records & judicial proceedings of other states
Privileges & immunities	States cannot deny rights of state citizenship to citizens of other states
Property	Congress can dispose of & regulate federal land/territories
Guarantee	Federal government must guarantee states republican form of government & protect states from invasion

The Article IV, section 3 **property clause** gives **Congress *complete* power** to dispose of and **regulate federally owned land** and territories—including the wildlife living thereon. As a result, Congress can prohibit the destruction or removal of wild animals on federal land without permission from the Federal Bureau of Land Management. And since the hunter shot coyotes in a national forest without permission, he can be prosecuted under this statute. Therefore, the court should hold this statute constitutional as applied to the hunter.

(Choice A) The Tenth Amendment reserves to the states (or to the people) all powers not expressly given to the federal government by the Constitution—including the police power to protect residents' property. But Congress can use its delegated powers to override a state's Tenth Amendment powers. And when it does so, the Article VI supremacy clause prescribes that the federal law supersedes the conflicting state law.

(Choice B) The full faith and credit clause of Article IV requires *states* to respect public acts, records, and judicial proceedings of other states. Therefore, *Congress* does not violate this clause by punishing conduct that has been authorized by a state.

(Choice C) Article I, section 8 authorizes Congress to enact laws that are "necessary and proper" to carry out its enumerated powers—including the power to *tax and spend* for the general welfare. But Congress is not taxing or spending here, so the necessary and proper clause cannot justify the statute.

Educational objective:

Under the property clause, Congress has absolute power over federally owned land and territories—including the power to prohibit the destruction or removal of wild animals living thereon.

References

- Kleppe v. New Mexico, 426 U.S. 529, 540–41 (1976) (stating that Congress's plenary power over federal lands "includes the power to regulate and protect the wildlife living there").

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A proposed federal statute would prohibit all types of discrimination against minorities on the basis of their race in every business transaction executed anywhere in the United States by any person or entity, governmental or private.

Is this proposed federal statute likely to be constitutional?

A. No, because it would invade the powers reserved to the states by the Tenth Amendment.

B. No, because it would regulate purely local transactions that are not in interstate commerce.

C. Yes, because it could reasonably be viewed as a means of enforcing the provisions of the Thirteenth Amendment.

D. Yes, because it could reasonably be viewed as an exercise of Congress's authority to enact laws for the general welfare.

Explanation:

Congress's power to enforce the Civil War Amendments

Amendment	Effects	Congress's enforcement powers
Thirteenth	Prohibits government & private actors from engaging in slavery/involuntary servitude	• Prohibit badges/incidents of slavery • Override state 11th Amendment immunity
Fourteenth	Prohibits states from denying equal protection, due process, or privileges/immunities of national citizenship	• Remedy/prevent violations with proportional & congruent legislation • Override state 11th Amendment immunity
Fifteenth	Prohibits states & federal government from denying or abridging voting rights based on race, color, or previous servitude	• Ban methods of voter discrimination • Override state 11th Amendment immunity

Section 1 of the **Thirteenth Amendment prohibits** all government and private entities from engaging in **slavery or involuntary servitude**. And the Section 2 **enforcement clause** gives **Congress the power** to **forbid any racial discrimination** that can reasonably be viewed as a **"badge or incident of slavery"** (eg, discrimination in housing, education, or employment). Since racial discrimination against minorities in business transactions can reasonably be viewed as a relic of slavery, the proposed federal statute banning this conduct is likely constitutional.

(Choice A) The Tenth Amendment reserves to the states all powers that the Constitution does not expressly grant to the federal government (eg, police powers). But the Thirteenth Amendment expressly grants Congress the authority to enact legislation addressing slavery and involuntary servitude (as seen here).

(Choice B) The fact that the statute would regulate purely local transactions that do not have a substantial effect on interstate commerce shows that it cannot be supported by the commerce clause. But Congress can still enact this statute pursuant to its power to enforce the Thirteenth Amendment.

(Choice D) The taxing and spending clause gives Congress the authority to *tax or spend* for the general welfare—not to enact *any* type of law for this purpose (eg, prohibiting discrimination).

Educational objective:

The Thirteenth Amendment (1) prohibits all government and private entities from engaging in slavery or involuntary servitude and (2) empowers Congress to ban any type of racial discrimination that can reasonably be viewed as a badge or incident of slavery.

References

- Patterson v. McLean Credit Union, 491 U.S. 164, 192 (1989) (explaining that the Thirteenth Amendment empowers Congress to identify the badges and incidents of slavery and to legislate to end them).

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A state law provides for an award of damages against anyone who publishes the name of a rape victim. Pursuant to that law, a woman sued a local newspaper in state court after the newspaper identified her as a rape victim.

The state trial and appellate courts rejected the claim, holding that the state law was invalid under both the state constitution and the First Amendment of the U.S. Constitution. The state supreme court affirmed, holding specifically: "We think that this well-intentioned law very likely violates the First Amendment of the federal Constitution. We need not, however, decide that issue, because the law assuredly violates our state constitution, which provides even greater protection to the right of the press to report the news."

The woman petitioned for review in the U.S. Supreme Court.

Is the U.S. Supreme Court likely to review the state supreme court judgment?

A. No, because the First Amendment prohibits the imposition of liability for the publication of truthful information.

B. No, because the judgment of the state supreme court rests upon an adequate and independent state-law ground.

C. Yes, because the supremacy clause does not permit a state to create rights greater than those conferred by the federal Constitution.

D. Yes, because the U.S. Supreme Court's appellate jurisdiction extends to cases arising under federal law.

Explanation:

Adequate & independent state ground

(precludes SCOTUS review)

Adequate State ground fully resolves matter & application of federal law would not affect outcome

Independent State court did not rely on federal law to reach conclusion

SCOTUS = Supreme Court of the United States

The **U.S. Supreme Court** (SCOTUS) may exercise its appellate jurisdiction to review a judgment of the highest court of a state if that judgment turned on federal law. But SCOTUS **may not review** a state court judgment that rests on an **adequate and independent state ground**—ie:

- a state ground that **fully resolves the matter** such that the application of federal law would not affect the outcome of the case (adequate) *and*
- the **state court did not rely on federal law** to reach its conclusion (independent).

Here, the state supreme court indicated that the state law very likely violates the U.S. Constitution. But the court also stated that it need not decide that federal issue because the law assuredly violates the state constitution. Since the state ground fully resolves the matter and the court did not rely on federal law to interpret the state constitution, SCOTUS is *unlikely* to review the state court judgment **(Choice D)**.

(Choice A) The First Amendment freedom of the press generally bars liability for publicizing truthful information. But this does not provide a basis for SCOTUS to decline to review a case. Instead, review is improper here because the state court decision was based on an adequate and independent state ground.

(Choice C) The Article VI supremacy clause establishes that the U.S. Constitution and federal laws trump conflicting state laws. Therefore, states cannot restrict rights conferred by the U.S. Constitution. However, states are always free to create *greater* rights and protections than the U.S. Constitution does.

Educational objective:

The U.S. Supreme Court cannot review a state court judgment that rests on an adequate and independent state ground—ie, (1) a state ground fully resolves the matter such that the application of federal law would not affect the outcome of the case and (2) the state court did not rely on federal law to reach its conclusion.

References

- Michigan v. Long, 463 U.S. 1032, 1041 (1983) (holding that a state supreme court can plainly state that its decision rests on adequate and independent state-law grounds).
- 4 Am. Jur. 2d Appellate Review § 42 (2019) (explaining the adequate and independent state ground doctrine).

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City police officers shot and killed a woman's friend as he attempted to escape arrest for an armed robbery he had committed. The woman brought suit in federal district court against the city police department and the police officers involved, seeking only a judgment declaring unconstitutional the state statute under which the police acted. That newly enacted statute authorized the police to use deadly force when necessary to apprehend a person who has committed a felony. In her suit, the woman alleged that the police would not have killed her friend if the use of deadly force had not been authorized by the statute. The defendants filed a motion to dismiss the woman's suit.

How should the federal district court rule on this motion?

A. Deny the motion, because the suit raises a substantial federal question.

B. Grant the motion, because the Eleventh Amendment prohibits federal courts from deciding cases of this type.

C. Grant the motion, because the suit does not present a case or controversy.

D. Grant the motion, because the suit involves a nonjusticiable political question.

Explanation:

Justiciability

(suitability for judicial resolution)

Case or controversy	Prohibits advisory opinions under three doctrines: • Standing – plaintiff must allege injury-in-fact caused by challenged action & redressable by remedy sought • Ripeness – claim must present actual controversy involving past injury or present threat of injury • Mootness – claim must be unresolved
Adequate & independent state grounds	SCOTUS cannot review final state court judgment that rests on adequate & independent state grounds
Political question	Court cannot hear case if issue presented: • is reserved for executive/legislative branches *or* • lacks judicially manageable standards for resolution

SCOTUS = Supreme Court of the United States.

Article III restricts federal judicial power to **actual cases or controversies**—ie, disputes that are capable of judicial resolution. As a result, federal courts can only issue a **declaratory judgment** if the **dispute presents a real and immediate danger** to a party's interests. Otherwise, the dispute would not satisfy Article III's case-or-controversy requirement since a judgment would amount to an **impermissible advisory opinion**—ie, a judicial opinion that determines the validity of a law *without* resolving an actual dispute.

Here, the woman sought a declaratory judgment that the state statute under which the police had killed her friend was unconstitutional. But the statute does not present a real and immediate danger to the woman since there is no indication that it poses any present or future harm to her. This means that the woman does not have any interest at stake to satisfy Article III's case-or-controversy requirement. Therefore, the federal court should grant the defendants' motion to dismiss the suit to avoid rendering an advisory opinion.

(Choice A) The woman's suit raises a federal question because she is challenging the constitutionality of a statute. However, the court must still dismiss her claim because no case or controversy exists.

(Choice B) The Eleventh Amendment bars private parties (and foreign governments) from suing *states* in federal court. But it does not apply to suits against *local* governments (eg, the city) or their affiliates (eg, the police department and its officers).

(Choice D) The political-question doctrine prevents federal courts from adjudicating issues that (1) are reserved to the executive or legislative branches or (2) lack judicially manageable standards for resolution. But since federal courts regularly determine the constitutionality of state statutes, this doctrine does not apply here.

Educational objective:

Article III's case-or-controversy requirement prohibits federal courts from issuing declaratory judgments unless the dispute presents a real and immediate danger to a party's interests. Otherwise, the judgment would amount to an impermissible advisory opinion.

References

- Ashcroft v. Mattis, 431 U.S. 171, 172–73 (1977) (holding that a father's emotional harm caused by the police shooting his son did not present an injury that would allow him to seek a declaratory judgment).

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Congress provides funds to states that can be used to reimburse medical providers for procedures they perform for low-income individuals. A state that participates in this federal program enacted a statute that prohibits reimbursing providers for the cost of performing vasectomies for men.

A doctor who routinely performs vasectomies for low-income men has submitted numerous requests for reimbursement pursuant to the program. However, the commissioner of the state agency administering the program has repeatedly denied the doctor's requests pursuant to the state statute.

The doctor sued the commissioner in a federal district court, seeking an injunction against the enforcement of the statute on the ground that it violates men's right to privacy.

Assuming that this federal district court has previously held that men have a privacy right to obtain vasectomies, how should the district court proceed with the doctor's suit?

A. Determine the merits of the suit, because federal courts have exclusive jurisdiction over federal-law claims.

B. Determine the merits of the suit, because the doctor has standing.

C. Refuse to adjudicate the merits of the suit and dismiss it, because the Eleventh Amendment bars this type of action in federal court.

D. Refuse to adjudicate the merits of the suit and stay the suit until a man seeking a vasectomy joins the suit.

Explanation:

Article III standing

(suing on another's behalf)

Organization members	Organization has standing if: • members have standing to sue on their own behalf • their injuries relate to organization's purpose AND • lawsuit does not require member participation (if damages sought)
Third party	Injured plaintiff has standing when: • parties share inextricably close relationship (eg, doctor/patient) AND • obstacle prevents third party from suing (eg, privacy/retaliation concern)
Child	Parent has standing unless parental rights have been limited by court OR lawsuit may adversely affect child
Assignor	Assignee has standing if assigned legal claim for ordinary & good faith business purpose

In federal litigation, parties are generally limited to asserting their own rights and not the rights of a third party. That is because the third party will likely be the most effective advocate of his/her own interests. However, the **third-party standing doctrine** permits an injured **plaintiff to assert** the **rights of a third party** when:

- the plaintiff and the third party share an **inextricably close relationship** *and*
- **genuine obstacles** prevent the third party from asserting his/her rights.

Here, enforcement of the statute harmed the doctor since he was denied reimbursement for performing vasectomies for men. Doctors share an inextricably close relationship with their patients. Additionally, the men's low-income status, fear of retaliation, and privacy concerns pose genuine obstacles that may prevent the men from challenging vasectomy restrictions. Therefore, the doctor has standing to assert that the statute violates men's right to privacy, and the court should hear the merits of the doctor's suit.

(Choice A) Federal and state courts have concurrent jurisdiction over federal-law claims unless the Constitution or Congress expressly provides federal courts with exclusive jurisdiction (not seen here).

(Choice C) The Eleventh Amendment generally bars federal courts from adjudicating suits against a state *government* for monetary relief—not suits against a state *official* for injunctive relief (as seen here).

(Choice D) A federal court can stay (ie, suspend) a suit to force a party to comply with a court order or protect a party's rights. But here, the federal court need not stay the action until a man seeking a vasectomy joins the suit because the doctor has third-party standing.

Educational objective:

Under the third-party standing doctrine, an injured plaintiff may assert a third party's rights when (1) the parties share an inextricably close relationship and (2) genuine obstacles prevent the third party from asserting his/her rights.

References

- Singleton v. Wulff, 428 U.S. 106, 118 (1976) (concluding that "it generally is appropriate to allow a physician to assert the rights of women patients as against governmental interference").
- U.S. Const. art. III, § 2 (case-or-controversy requirement).
- 16 Am. Jur. 2d Constitutional Law § 145 (2020) (explaining third-party standing requirements).

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A city ordinance requires that its mayor must have been continuously a resident of the city for at least five years at the time he or she takes office. The plaintiff, who is thinking about running for mayor in an election that will take place next year, will have been a resident of the city for only four and one-half years at the time the elected mayor would take office. Before he decides to run for mayor, the plaintiff wants to know whether he could lawfully assume that position if he were elected.

As a result, the plaintiff files suit in the local federal district court for a declaratory judgment that the city's five-year-residence requirement is unconstitutional and that he is entitled to a place on his political party's primary election ballot for mayor. He names the chairman of his political party as the sole defendant and does not join any election officials. The chairman responds by joining the plaintiff in requesting the court to declare the city's residence requirement invalid.

What should the court do in this case?

A. Issue the declaratory judgment, because a residency requirement of this type is a denial of the equal protection of the laws.

B. Issue the declaratory judgment, because the plaintiff will have substantially complied with the residency requirement.

C. Refuse to determine the merits of this suit, because there is no case or controversy.

D. Refuse to issue the declaratory judgment, because an issue of this kind involving only a local election does not present a substantial federal constitutional question.

Explanation:

Article III of the Constitution limits federal judicial power to **actual cases or controversies**—ie, disputes that are **capable of judicial resolution**. This case-or-controversy requirement is not met unless the plaintiff has **standing**—ie, a personal stake in the outcome of the case. To have standing, the plaintiff must allege three elements:

- **Injury-in-fact** – actual or imminent harm that is concrete and particularized
- **Causation** – the injury is fairly traceable to the defendant's challenged conduct
- **Redressability** – a favorable judicial decision will likely remedy or prevent the alleged injury

Here, the plaintiff sued to have the city's residency requirement invalidated. But he has not suffered actual or imminent harm since he has merely thought about running for mayor and any injury to him is purely hypothetical (no injury-in-fact). And even if the plaintiff could allege such harm, he still lacks standing because that injury would not be fairly traceable to the chairman of his political party (no causation). Therefore, there is no actual case or controversy, and the court should refuse to determine the merits of this suit.

(Choice A) The residency requirement triggers the equal protection clause since it discriminates against persons who have lived in the city for less than five years. But this does not create an actual case or controversy since the plaintiff still lacks standing.

(Choice B) The fact that the plaintiff will have "substantially complied" with the residency requirement if and when he runs for mayor is no basis for the court to declare the requirement invalid.

(Choice D) The plaintiff's suit *does* present a substantial federal constitutional question since it challenges the constitutionality of the city's residency requirement. As a result, the court has subject-matter jurisdiction to hear this suit. But it cannot adjudicate the suit because there is no case or controversy.

Educational objective:

Article III's case-or-controversy requirement is not met unless the plaintiff has standing—ie, suffered an injury-in-fact that was caused by the defendant's challenged conduct and is redressable by the courts.

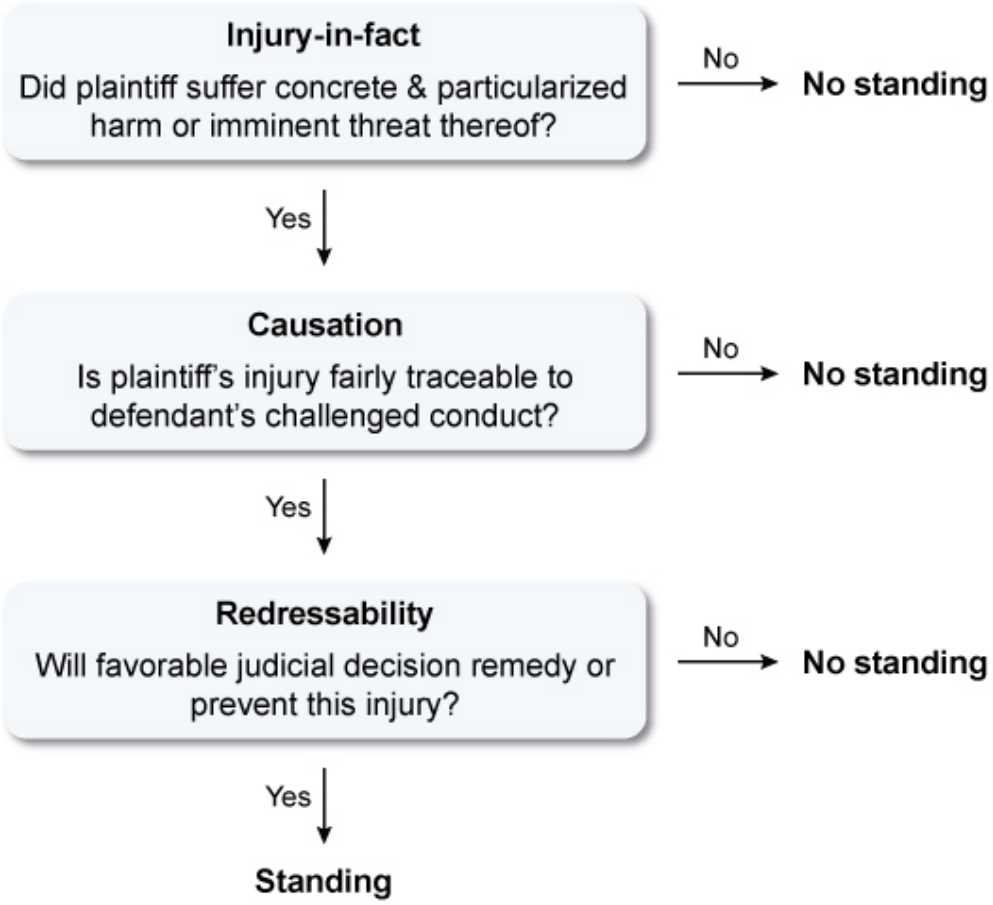
References

- Lujan v. Defs. of Wildlife, 504 U.S. 555, 560–61 (1992) (holding that standing requires proof of an injury-in-fact, causation, and redressability).

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Standing doctrine



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The President issued an executive order banning the extraction of natural gas on federal land. An oil and gas company that had been drilling for natural gas on federal land sued the President in federal court and sought a preliminary injunction that would prevent the executive order from going into effect.

Before the federal judge ruled on the injunction, an employee of the oil company left an envelope of cash on the judge's doorstep with a note that stated, "Remember who your friends are." The next day, the judge issued a nationwide injunction preventing the executive order from taking effect. Several months later, a local newspaper broke the story about the envelope of cash, the note, and the judge's subsequent ruling. The judge has not been indicted for bribery, but the President has called for the judge's immediate removal.

May the President constitutionally remove the federal judge?

A. No, because a federal judge can only be removed by impeachment.

B. No, because the federal judge has not been indicted for bribery.

C. Yes, because bribery is an impeachable offense.

D. Yes, because the President's removal power is absolute.

Explanation:

The Constitution divides the federal government into three coequal branches that possess distinct powers (ie, separation of powers). The **President** has the power to **appoint federal judges** with the Senate's advice and consent. Federal judges have lifetime tenure during good behavior, which helps guarantee judicial independence. And **Congress** has the **sole power** to **impeach and remove federal judges** for treason, bribery, or other high crimes and misdemeanors, which helps ensure judicial integrity.

Here, the President seeks the removal of the federal judge, who has been accused of bribery. Although bribery is an impeachable offense, only Congress has the power to remove a federal judge by impeachment **(Choice C)**. Therefore, the President may not constitutionally remove the federal judge.

(Choice B) The fact that the federal judge has not been indicted for bribery has no bearing on whether the President can remove the federal judge from office.* That is because the power to impeach and remove federal judges belongs to Congress—not the President.

*An indictment is not required for a federal judge to be impeached and removed from office because the House of Representatives—not a grand jury—determines whether the judge's conduct constitutes an impeachable offense.

(Choice D) The Constitution is silent about the President's removal of federal executive officers, but the U.S. Supreme Court has repeatedly held that the President has near-absolute authority to remove such officers. But though the President's removal power is broad, it does not include the power to remove federal judges.

Educational objective:

The President has the power to appoint federal judges with the Senate's advice and consent, but Congress has the sole power to impeach and remove federal judges for treason, bribery, or other high crimes and misdemeanors.

References

- U.S. Const. art. II, § 2 (vesting the President with the power to appoint federal judges).
- U.S. Const. art. II, § 4 (stating that Congress may impeach and remove federal judges from office for treason, bribery, or other high crimes and misdemeanors).
- U.S. Const. art. III, § 1 (granting lifetime tenure to federal judges during good behavior).

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Federal checks and balances
• Veto legislation
• Call special congressional session
• Adjourn Congress (rare)
Legislative
(Congress)
Executive
(President)
Bill
• Override veto
• Impeach & remove President
• Withhold funds
• Reject treaties/appointments (Senate only)
• Impeach & remove judges
• Reject judicial nominations (Senate only)
• Nominate judges
• Grant reprieves & pardons
Judicial
(Supreme Court & federal courts)
• Declare laws unconstitutional
• Declare executive actions unconstitutional
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In response to a terrorist attack that occurred within the United States, Congress authorized the President to use military force against nations, organizations, and persons the President determined were responsible for the attack. Pursuant to this authorization, enemy combatants were seized in a foreign country and transported to a foreign location under the de facto control of the United States, which was well outside the area of military activity. The President ordered that a military tribunal be convened in that location to try the enemy combatants.

Prior to the attack, Congress, pursuant to its constitutional authority, had authorized the use of military tribunals and set out procedures to guarantee specific basic rights that the tribunals must provide, such as the right of a defendant to hear the evidence against him. The procedural rules for the military tribunal established by the presidential order did not provide for those basic rights.

Does the President have the constitutional authority to convene this military tribunal?

A. No, because a military tribunal only has power over current members of the U.S. armed forces.

B. No, because the procedures adopted for the President's military tribunal conflict with the procedures adopted by Congress.

C. Yes, because Congress authorized the President to use military force that led to the seizure of the enemy combatants.

D. Yes, because the President has plenary power over military tribunals as commander in chief.

Explanation:

Article II grants the President constitutional authority over a wide range of domestic and foreign policy areas, including serving as commander in chief of the U.S. military. Congress also has authority over military matters, including the power to establish military courts and tribunals. When these coequal branches of government share power, the ***Youngstown* framework** determines whether the **President acted within his/her constitutional authority**. This framework considers whether there was **congressional**:

- **authorization** – in which case the President had **maximum authority** to act and that act is **likely valid**
- **silence** – in which case the act is **valid so long as** it (1) fell within the President's **Article II powers** and (2) did **not interfere** with another branch's powers *or*
- **opposition** – in which case the President had **minimal authority** to act and that act is **likely invalid**.

Here, Congress authorized the use of military tribunals and set out procedures to guarantee defendants specific basic rights. However, these rights were not included in the President's executive order that provided procedural rules for a tribunal to try certain enemy combatants. Since the congressional authorization and the executive order are in opposition, the President does not have the constitutional authority to convene this military tribunal.

(Choice A) A military tribunal can exercise jurisdiction over current members of the U.S. armed forces *as well as* enemy combatants and enemy civilians.

(Choice C) Although Congress authorized the President to use military force that led to the seizure of the enemy combatants, Congress also guaranteed specific basic rights to defendants tried in a military tribunal. Since the executive order did not include these rights, the President cannot convene the tribunal.

(Choice D) The President, acting as the commander in chief, does *not* have plenary (ie, exclusive) power over military tribunals. Instead, the President shares this power with Congress and must abide by congressional requirements.

Educational objective:

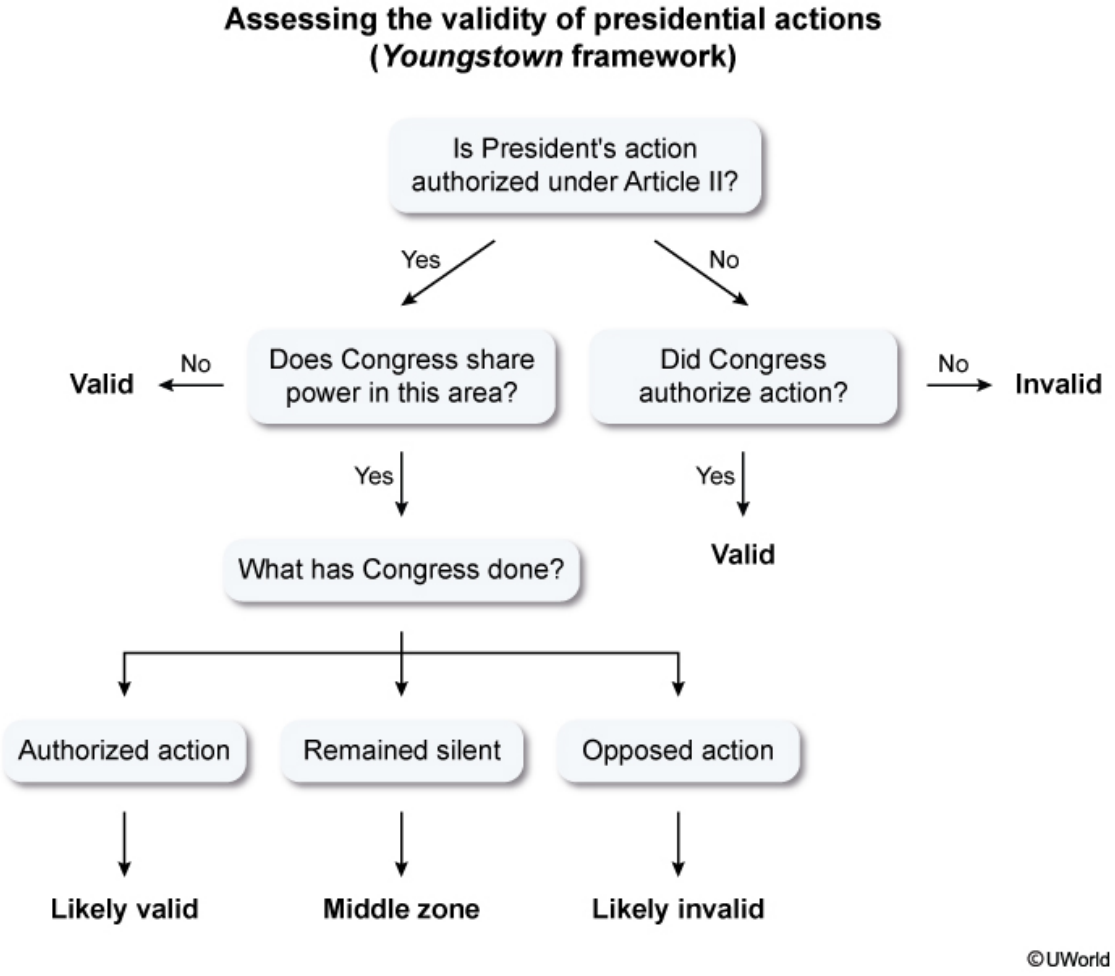
The President has minimal constitutional authority to act when Congress opposes the President's actions in an area over which the executive and legislative branches share authority.

References

- Youngstown Sheet & Tube Co. v. Sawyer, 343 U.S. 579, 635–38 (1952) (Jackson, J., concurring) (setting forth the tripartite framework for analyzing the constitutionality of presidential actions).

- Hamdan v. Rumsfeld, 548 U.S. 557, 613 (2006) (holding that a military tribunal created by an executive order is invalid when the procedures that will govern the tribunal contravene existing federal law).

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A federal statute requires the National Bureau of Standards to establish minimum quality standards for all beer sold in the United States. The statute also provides that public hearings must precede adoption of the standards, and that once they are adopted, the standards will be subject to judicial review. While the proposed standards have not yet been announced, several Bureau officials have publicly expressed opinions indicating a belief that pasteurized beer is safer than unpasteurized beer. However, these officials have not stated whether they intend to include a pasteurization requirement in the standards.

A brewery that produces unpasteurized beer is concerned that, after the appropriate proceedings, the Bureau may adopt quality standards that will prohibit the sale of unpasteurized beer. The brewery has sued in federal district court to enjoin the Bureau from adopting standards that would prohibit the sale of unpasteurized beer.

How should the district court proceed with the suit?

A. Determine whether the Bureau could reasonably believe that pasteurization is the safest process by which to brew beer and, if so, refuse to issue the injunction against the Bureau.

B. Determine whether the process used by the brewery is as safe as pasteurization and, if so, issue the injunction against the Bureau.

C. Refuse to adjudicate the merits of the suit and dismiss it, because it does not involve a justiciable case or controversy.

D. Refuse to adjudicate the merits of the suit at this time and stay the action until the Bureau has actually issued beer-quality standards.

Explanation:

Justiciability

(suitability for judicial resolution)

Case or controversy	Prohibits advisory opinions under three doctrines: • Standing – plaintiff must allege injury-in-fact caused by challenged action & redressable by remedy sought • Ripeness – claim must present actual controversy involving past injury or present threat of injury • Mootness – claim must be unresolved
Adequate & independent state grounds	SCOTUS cannot review final state court judgment that rests on adequate & independent state grounds
Political question	Court cannot hear case if issue presented: • is reserved for executive/legislative branches *or* • lacks judicially manageable standards for resolution

SCOTUS = Supreme Court of the United States.

A federal court should *not* proceed with a suit unless it is **justiciable**—ie, appropriate for judicial resolution—based on the following Article III requirements: (1) case or controversy, (2) no adequate and independent state grounds, and (3) no political questions. The **case-or-controversy requirement** is met if the plaintiff has **standing**—ie, suffered an **injury-in-fact** that was caused by the defendant and is redressable by the court. An injury-in-fact exists if the plaintiff alleges **actual**, or an **immediate threat** of, **harm**. Therefore, a court should dismiss a suit that is:

- unripe – the suit is based on the mere potential for, or future threat of, harm *or*
- moot – the suit no longer presents a live (ie, actual) controversy for the court to resolve.

Here, the brewery filed suit in federal district court to enjoin the Bureau from adopting standards that would prohibit the brewery from selling unpasteurized beer. But this suit does not involve a justiciable case or controversy because the Bureau has not adopted such standards (no actual harm) and public hearings that must precede the adoption have yet to occur (no imminent harm). Therefore, the court should refuse to adjudicate the merits of this unripe suit and dismiss it.

(Choices A & B) Since this suit is not justiciable, the court cannot consider its merits—eg, whether (1) the Bureau could reasonably believe that pasteurization is the safest process or (2) the brewery's process is as safe as pasteurization.

(Choice D) A federal court can *stay* (ie, suspend) a suit to (1) force a party to comply with a court order or (2) protect a party's rights. However, a federal court must *dismiss* a suit when, as here, it does not present a justiciable case or controversy.

Educational objective:

Article III limits the jurisdiction of federal courts to justiciable cases or controversies. This requires proof that the plaintiff has suffered an injury-in-fact—ie, an actual, or immediate threat of, harm. Therefore, a federal court must dismiss a suit involving future or resolved harm.

References

- U.S. Const. art. III, § 2 (case or controversy requirement).
- Texas v. United States, 523 U.S. 296, 300 (1998) (explaining when a claim is unripe for adjudication).

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A federal statute appropriated $7 million for a nationwide essay contest on "How the United States Can Best Stop Drug Abuse." The statute indicates that its purpose is to generate new, practical ideas for eliminating drug abuse in the United States. Contest rules set forth in the statute provide that winning essays are to be selected based on the "originality, aptness, and feasibility of their ideas."

The statute expressly authorizes a first prize of $1 million, 50 second prizes of $100,000 each, and 100 third prizes of $10,000 each. It also states that judges for the contest are to be appointed by the President of the United States with the advice and consent of the Senate and that all residents of the United States who are not employees of the federal government are eligible to enter and win the contest.

A provision of the statute authorizes any taxpayer of the United States to challenge its constitutionality.

In a suit by a federal taxpayer to challenge the constitutionality of the statute, how should the court rule?

A. Hold the statute constitutional, because it is reasonably related to the general welfare, it states concrete objectives, and it provides adequate criteria for conducting the essay contest and awarding the prize money.

B. Hold the statute unconstitutional, because it does not provide sufficient guidelines for awarding the prize money appropriated by Congress and, therefore, unconstitutionally delegates legislative power to the contest judges.

C. Hold the statute unconstitutional, because its relationship to legitimate purposes of the spending power of Congress is too tenuous and conjectural to satisfy the necessary and proper clause of Article I.

D. Refuse to decide its merits, because the suit involves policy questions that are inherently political and, therefore, nonjusticiable.

Explanation:

Congress's taxing & spending powers

(U.S. Const. art. I, sec. 8, cl. 1)

Taxing

- Direct taxes – must be:
  - apportioned evenly among states *and*
  - reasonably related to revenue raising
- Indirect taxes – must be:
  - uniformly applied in every state *and*
  - reasonably related to revenue raising
- Export taxes – always unconstitutional

Spending

- Funds must be spent for general welfare
- Conditions on receipt of funds must:
  - be clearly stated & unambiguous
  - be reasonably related to federal interest in funded program
  - not require states to engage in unconstitutional activity *and*
  - not unduly coerce states into accepting

The **spending clause** gives Congress the broad power to **appropriate** (ie, spend) money **for the general welfare**—ie, any purpose reasonably related to a concrete public objective. But any **conditions** placed on the receipt of appropriated funds must:

- be **clearly stated**
- be **reasonably related** to the purpose of the expenditure
- **not induce** the recipient to do anything unconstitutional *and*
- **not unduly coerce** the recipient to accept the funds.

Here, a federal statute conditioned the appropriation of $7 million on a nationwide essay contest that is reasonably related to a concrete public objective of generating ideas to eliminate drug abuse. The selection criteria are clearly set forth in the contest rules, and there is no evidence that these conditions are unduly coercive or would induce the recipient to engage in unconstitutional conduct. Therefore, the statute should be ruled constitutional.

(Choice B) Under the nondelegation doctrine, Congress may only delegate its legislative authority to others if it provides an intelligible principle to guide them. Since the statute here *does* provide sufficient guidelines for awarding the prize money, it does not unconstitutionally delegate legislative power to the contest judges.

(Choice C) This statute *is* related to a legitimate purpose of the spending clause since it seeks to eliminate drug abuse for the general welfare. But since the spending clause is an

express source of congressional power, Congress need not use its implied powers under the necessary and proper clause to enact this statute.

(Choice D) A suit is nonjusticiable if it presents a political question—ie, requires courts to decide a matter that (1) the Constitution has reserved to the legislative or executive branch or (2) lacks judicially manageable standards for resolution. Since courts have the constitutional authority and ability to determine if Congress has properly exercised its powers, this suit presents a justiciable issue.

Educational objective:

The spending clause allows Congress to place conditions on the receipt of federal funds if those conditions (1) are clearly stated, (2) are reasonably related to the purpose of the expenditure, (3) do not induce unconstitutional behavior, and (4) are not unduly coercive.

References

- U.S. Const. art. I, § 8, cl. 1 (taxing and spending clause).
- South Dakota v. Dole, 483 U.S. 203, 207–08 (1987) (holding that conditions on a federal expenditure must be unambiguous and reasonably related to the purpose of the expenditure).

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A federal statute prohibits the sale or resale, in any place in this country, of any product intended for human consumption or ingestion into the human body that contains designated chemicals known to cause cancer, unless the product is clearly labeled as dangerous.

The constitutionality of this federal statute may be justified most easily on which of the following bases?

A. Congress's power to enforce the Fourteenth Amendment.

B. Congress's power to promote science and the useful arts.

C. Congress's power to provide for the general welfare.

D. Congress's power to regulate commerce among the states.

Explanation:

Commerce clause

(U.S. Const. art. I, § 8)

Congress can regulate:

- channels of interstate commerce
- instrumentalities of interstate commerce
- persons/things moving in interstate commerce
- activities that substantially affect interstate commerce

The Article I **commerce clause** grants **Congress** broad authority to **regulate commerce among the states**. This includes any **activity** that has a substantial effect on interstate commerce. If the regulated activity is **economic** in nature, a **substantial effect is presumed**.

Here, the federal statute requires sellers to clearly label products that contain cancer-causing chemicals as dangerous. Selling dangerous consumables is an economic activity that is presumed to substantially affect interstate commerce. Therefore, Congress can regulate this activity under its commerce power.

(Choice A) The Fourteenth Amendment's enforcement clause enables Congress to pass laws enforcing the amendment's other provisions. But since these provisions only apply to *state* action, Congress cannot regulate the labeling practices of *private* entities on this basis.

(Choice B) The Article I copyright and patent clause empowers Congress to pass laws that promote science and the useful arts—which are not implicated here.

(Choice C) The taxing and spending clause only allows Congress to *tax and spend* for the general welfare of the United States. Since the federal statute does not involve such activities, this would not justify the statute.

Educational objective:

The Article I commerce clause grants Congress broad authority to regulate commerce among the states. This includes any activity that substantially affects interstate commerce (eg, economic activities).

References

- United States v. Sullivan, 332 U.S. 689, 697–98 (1948) (holding that a federal drug-labeling statute is a proper exercise of Congress's commerce power).

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In order to provide funds for a system of new major airports near the 10 largest cities in the United States, Congress levies a tax of $25 on each airline ticket issued in the United States. The tax applies to every airline ticket, even those for travel that does not originate in, terminate at, or pass through any of those 10 large cities.

Is this tax constitutional as applied to the issuance in the United States of an airline ticket for travel between two cities that will not be served by any of the new airports?

A. No, because the burden of the tax outweighs its benefits for passengers whose travel does not originate in, terminate at, or pass through any of the 10 largest cities.

B. No, because the tax adversely affects the fundamental right to travel.

C. Yes, because an exemption for the issuance of tickets for travel between cities that will not be served by the new airports would deny the purchasers of all other tickets the equal protection of the laws.

D. Yes, because Congress has broad discretion in choosing the subjects of its taxation and may impose taxes on subjects that have no relation to the purpose for which those tax funds will be expended.

Explanation:

Congressional taxing power

Type of tax	Definition	Constitutional requirements
Direct	• Taxes on persons or their property • Payment cannot be avoided	Allowed if: • apportioned proportionately among states • reasonably related to revenue production
Indirect	• Taxes on goods/transactions • Payment can be avoided or shifted to another (eg, consumer)	Allowed if: • identical taxation in every state • reasonably related to revenue production
Export	• Taxes on goods/services leaving the country	Not allowed

The **taxing and spending clause** grants Congress the broad power to impose **indirect taxes** on the subject of its choosing. The taxed subject need not have any relation to the purpose for which the tax funds will be spent. Instead, an indirect tax is **constitutional** as long as it is (1) **identical** in every state and (2) **reasonably related** to **revenue production**.

Here, Congress has imposed a $25 tax on airline tickets. This indirect tax is identical in every state since it applies to *all* airline tickets issued in the U.S. And the tax is reasonably related to raising revenues for a system of new major airports near the 10 largest cities. Therefore, this tax is constitutional—even as applied to airline tickets for travel between cities that will not be served by the new airports.

(Choice A) Courts do not weigh the burdens and benefits of a tax to determine its constitutionality.

(Choice B) The Fifth Amendment due process clause generally prohibits the federal government from substantially impairing persons' fundamental rights (eg, the right to travel). And though a tax on airline tickets may affect the right to travel, a minimal tax of $25 would not *substantially* impair this right.

(Choice C) This type of exemption—which does not appear in the tax levied by Congress—may raise equal protection concerns since it treats similarly situated passengers differently. But the exemption would *not* deny passengers equal protection of the laws

since it (1) does not substantially impact a fundamental right or protected class and (2) would likely pass rational basis scrutiny.

Educational objective:

Under the taxing and spending clause, Congress can impose indirect taxes on goods or transactions as long as the taxes are (1) identical in every state and (2) reasonably related to revenue production. This is true even if the taxes have no relation to the purpose for which the funds will be spent.

References

- Fernandez v. Wiener, 326 U.S. 340, 355–63 (1945) (holding that an IRS inheritance tax is constitutional since it is indirect, identical in every state, and reasonably related to revenue production).

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In order to reduce the federal deficit, Congress passed, and the President signed into law, a statute that grants the President line-item veto power. Pursuant to this power, the President has the authority to cancel specific spending and tax-benefit measures that have been enacted into law.

Several members of Congress who voted against the legislation have sued the appropriate federal officials in a federal district court. The members of Congress claim that the statute is unconstitutional because it violates the requirements of the federal legislative process. The federal officials move to dismiss the suit.

Which of the following is the most appropriate basis for the court to dismiss this suit?

A. The Eleventh Amendment bars suits of this kind in federal court.

B. The members of Congress do not have standing.

C. The suit presents a nonjusticiable political question.

D. The U.S. Supreme Court has exclusive jurisdiction over the action.

Explanation:

Article III standing

(suing on one's own behalf)

General rule	Plaintiff must prove: • injury-in-fact – concrete & particularized harm (actual or imminent) • causation – harm traceable to defendant's conduct AND • redressability – favorable judicial decision can remedy harm
Citizen	No standing as mere citizen
Legislator	Must prove personal stake in dispute & concrete injury to challenge constitutionality of government action
Taxpayer	Standing to challenge taxes owed—but not government spending unless: • challenging legislation enacted under taxing & spending power AND • legislation exceeds limits imposed by establishment clause

Federal courts can only hear suits in which the plaintiff has **standing**—ie, a personal stake in the outcome of the case. A **federal or state legislator** has standing to challenge the constitutionality of government action in the rare instance that the action caused the legislator **personal and concrete harm**—eg, by nullifying the legislator's vote. Institutional, abstract harm shared equally by all legislators in that respective body does not confer standing.

Here, several members of Congress have challenged the constitutionality of the federal statute. However, the statute has not caused the members to suffer personal and concrete injuries since they were able to vote against the statute and can vote to repeal it in the future. Instead, they are asserting institutional, abstract harm that is shared equally by all other members of Congress. Therefore, the most appropriate basis to dismiss the suit is that the members of Congress lack standing.*

*In Clinton v. City of New York, the U.S. Supreme Court held that plaintiffs who would lose funding or tax benefits have standing to challenge line-item veto power, which was subsequently found unconstitutional as a violation of the federal legislative process.

(Choice A) The Eleventh Amendment generally prohibits suits in federal court against state governments—not federal officials (as seen here).

(Choice C) The political-question doctrine prevents federal courts from adjudicating issues that (1) are reserved to the executive or legislative branch or (2) lack judicially manageable standards for resolution. But since federal courts regularly determine the constitutionality of federal laws, this doctrine does not apply here.

(Choice D) The U.S. Supreme Court has exclusive jurisdiction over suits between states (not seen here).

Educational objective:

A legislator has standing to challenge the constitutionality of government action when that action causes the legislator personal and concrete harm—not institutional, abstract harm shared equally by all legislators in that respective body.

References

- U.S. Const. art. III, § 2 (case-or-controversy requirement).
- Raines v. Byrd, 521 U.S. 811, 829–30 (1997) (holding that members of Congress lack standing when the challenged government action causes an institutional and abstract harm instead of personal and concrete harm).
- 32 Am. Jur. 2d Constitutional Law § 153 (2020) (explaining legislator standing requirements).

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A certain mineral is added to bodies of fresh water to prevent the spread of freshwater parasites. The presence of those parasites threatens the health of the organisms living in rivers and streams throughout the country and imperils the freshwater commercial fishing industry. This mineral is currently mined only in State A.

In order to raise needed revenue, Congress recently enacted a statute providing for the imposition of a $100 tax on each ton of the mineral mined in the United States. Because it will raise the cost of the mineral, this tax is likely to reduce the amount added to freshwater rivers and streams and, therefore, is likely to have an adverse effect on the interstate freshwater commercial fishing industry.

The mineral producers in State A have filed a lawsuit in federal court challenging this tax solely on constitutional grounds.

Is this tax constitutional?

A. No, because it is likely to have an adverse effect on the freshwater commercial fishing industry and Congress has a responsibility under the commerce clause to protect, foster, and advance such interstate industries.

B. No, because only producers in State A will pay the tax and, therefore, it is not uniform among the states and denies the mineral producers equal protection of the laws.

C. Yes, because the power of Congress to impose taxes is plenary, this tax does not contain any provisions extraneous to tax needs or purposes, and it is not barred by any prohibitory language in the Constitution.

D. Yes, because the tax is a necessary and proper means of exercising federal authority over the navigable waters of the United States.

Explanation:

Congressional taxing power

Type of tax	Definition	Constitutional requirements
Direct	• Taxes on persons or their property • Payment cannot be avoided	Allowed if: • apportioned proportionately among states • reasonably related to revenue production
Indirect	• Taxes on goods/transactions • Payment can be avoided or shifted to another (eg, consumer)	Allowed if: • identical taxation in every state • reasonably related to revenue production
Export	• Taxes on goods/services leaving the country	Not allowed

The **taxing and spending clause** gives Congress plenary (ie, exclusive) power to raise federal revenue by imposing taxes. But Congress can only impose an **indirect federal tax** if it is:

- **imposed identically** in every state where the taxed goods are found (ie, geographically uniform) *and*
- **reasonably related** to **revenue production** (ie, no provisions extraneous to tax purposes).

Here, Congress imposed a $100 indirect tax on a mineral mined in the U.S. The tax is imposed uniformly in every state where the mineral is or may be found and does not contain provisions unrelated to the need for revenue production. Therefore, it complies with the taxing and spending clause. And though the tax only impacts the mineral producers in State A, there is no evidence of intentional discrimination that would raise equal protection concerns—or any other constitutional prohibition **(Choice B)**. Therefore, the tax is constitutional.

(Choice A) The commerce clause vests Congress with broad authority to regulate interstate commerce. But it does not obligate Congress to protect, foster, or advance interstate industries like freshwater commercial fishing.

(Choice D) The necessary and proper clause allows Congress to enact legislation reasonably necessary to carry out its enumerated powers (eg, taxation). But Congress can only use its taxing power to raise revenue—not to exercise authority over navigable waters.

Educational objective:

Indirect federal taxes comply with the taxing and spending clause so long as they are (1) identical in every state where the taxed goods are located and (2) reasonably related to revenue production.

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A federal statute requires any individual or entity owning more than 100 cars to ensure that at least 10 percent of those cars are electric-powered.

A city that owns over 500 cars has sued the federal official responsible for enforcing this statute in federal district court, seeking an injunction prohibiting enforcement of the statute on the ground that it is unconstitutional.

Should the court grant the injunction?

A. No, because the federal government has sovereign immunity and cannot be sued without its explicit consent.

B. No, because the statute is valid under the commerce clause and does not violate the Tenth Amendment.

C. Yes, because as applied to state and local governments, the statute exceeds Congress's power under the commerce clause.

D. Yes, because the statute violates the reserved rights of the states under the Tenth Amendment.

Explanation:

The **commerce clause** grants Congress broad power to **regulate interstate commerce**, including:

- **channels** of interstate commerce
- **instrumentalities** of interstate commerce
- **persons/things** moving in interstate commerce *and*
- **activities** that **substantially affect** interstate commerce.

But Congress must comply with other constitutional provisions when exercising its commerce power. This includes the **Tenth Amendment**, which **prohibits** Congress from **commandeering state or local governments** by requiring them to (1) enforce a federal law or (2) enact a state or local law.

Here, Congress enacted a statute requiring individuals and entities owning over 100 cars (like the city) to ensure that at least 10 percent of those cars are electric-powered. This is a valid exercise of Congress's commerce power since cars are instrumentalities of interstate commerce **(Choice C)**. And since the statute does not require the city to enforce it against others or enact related laws, the statute does not violate the Tenth Amendment. Therefore, the court should *deny* the injunction**(Choice D)**.

(Choice A) The federal government enjoys sovereign immunity from suits seeking monetary damages. But this immunity does not extend to suits seeking nonmonetary relief—eg, an injunction (as seen here).

Educational objective:

Congress has broad power to regulate interstate commerce. But the Tenth Amendment limits this power by prohibiting Congress from requiring state or local governments to (1) enforce a federal law or (2) enact a state or local law.

References

- Reno v. Condon, 528 U.S. 141, 149–51 (2000) (holding that a federal statute regulating states' commercial activity does not violate the Tenth Amendment since it does not require states to enact or enforce any laws).

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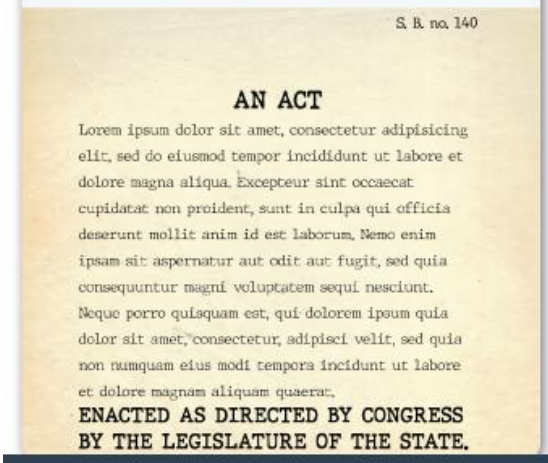
Tenth Amendment anti-commandeering principle (state immunity from federal law)

Congress cannot require that states:



OR

enact state laws



S. B. no. 140

AN ACT

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ENACTED AS DIRECTED BY CONGRESS BY THE LEGISLATURE OF THE STATE.

enforce federal laws



← Previous

A congressional committee investigated the pharmaceutical industry and found that the high cost of prescription drugs purchased and sold in the United States negatively impacted the nation's economy and the health of its citizens. In response, Congress passed a statute that regulates "the retail prices of every purchase or sale of prescription drugs in the United States."

A group of pharmaceutical companies challenged the constitutionality of this statute in federal court.

What is the strongest argument in support of the constitutionality of this statute?

A. Congress may enact statutes for the general welfare.

B. Congress may regulate the prices of all domestic purchases and sales of goods.

C. The Constitution grants Congress the power to regulate the interstate transportation of prescription drugs.

D. The purchases and sales of prescription drugs in the United States substantially impact interstate commerce in the aggregate.

Explanation:

The **commerce clause** gives **Congress** broad power to regulate **interstate and foreign commerce**. This includes:

- the **channels** of interstate and foreign commerce (eg, roadways)
- the **instrumentalities** of interstate and foreign commerce (eg, vehicles)
- **persons and things** moving in interstate or foreign commerce (eg, goods and services) *and*
- **in-state activities** that, singly or in the aggregate, **substantially impact** interstate or foreign commerce.

Since Congress's commerce power is broad, federal statutes are **constitutional** if there is any **rational basis** for concluding that the regulated activity substantially affects interstate or foreign commerce. This can be shown through express congressional findings.

Here, the federal statute regulates the retail prices of prescription drugs in the United States. Congress has the authority to regulate such products' interstate transportation, but this statute also regulates in-state purchases and sales **(Choice C)**. Since the congressional committee found that the high cost of prescription drugs negatively impacted the nation's economy, it is rational to conclude that their aggregated in-state purchases and sales substantially impact interstate commerce. Therefore, this is the strongest argument to support this statute.

(Choice A) The taxing and spending clause empowers Congress to tax and spend for the general welfare. But regulating prices is not equivalent to taxing or spending.

(Choice B) Congress cannot regulate the prices of *every* domestic purchase and sale of goods since it cannot regulate purely in-state sales that do not substantially affect interstate commerce.

Educational objective:

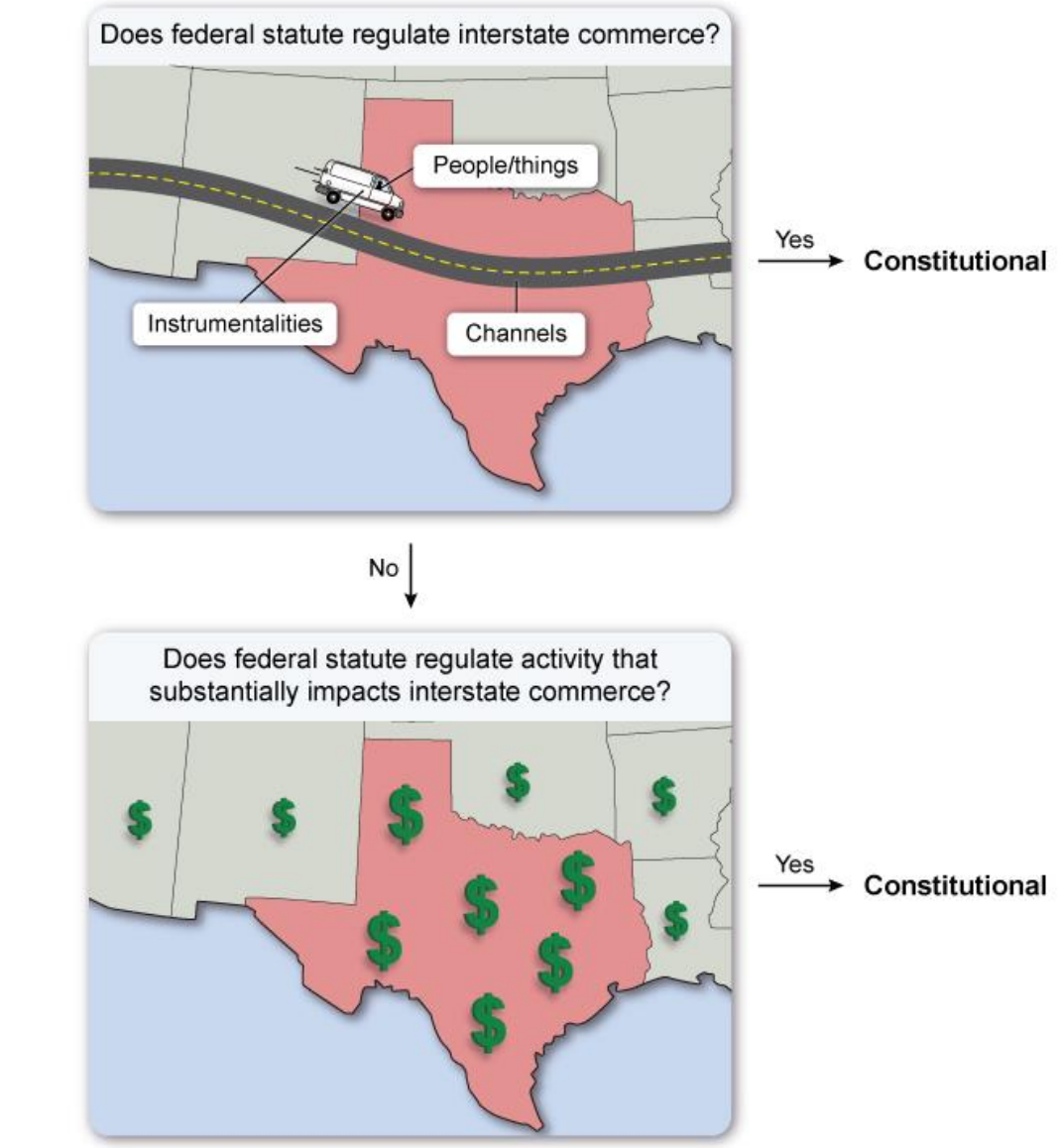
The commerce clause empowers Congress to regulate (1) channels and instrumentalities of, (2) persons and things moving in, and (3) in-state activities that—singly or in the aggregate—substantially affect interstate or foreign commerce.

References

- Gonzales v. Raich, 545 U.S. 1, 17 (2005) (explaining Congress's broad authority under the commerce clause).

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Commerce clause challenge



Congress enacted a statute that requires all males between the ages of 18 and 30 to register with the Selective Service Agency, which is responsible for drafting individuals to serve in the armed forces in the event of war. Males who fail to register are not eligible to receive federal student aid for college.

An 18-year-old male refused to register and was denied federal student aid pursuant to the statute. The student challenged the federal statute in federal court, arguing that the statute discriminated on the basis of sex and age.

Is the statute constitutional?

A. No, because the statute violates the due process clause of the Fifth Amendment.
B. No, because the statute violates the equal protection clause of the Fourteenth Amendment.
C. Yes, because Congress has broad power to raise and regulate the armed forces.
D. Yes, because federal student aid for college is a privilege, not a right.

Explanation:

The necessary and proper clause allows Congress to take actions that are reasonably necessary to carry out its enumerated Article I powers. As a result, Congress may establish and require citizens to register for a military draft to carry out its enumerated power to **raise and regulate the U.S. armed forces**.* However, Congress must still **comply with other constitutional provisions** when exercising this broad power, including the **equal protection component** of the **Fifth Amendment** due process clause.

This component applies when the federal government discriminates against similarly situated persons. **Sex-based discrimination** is subject to **intermediate scrutiny**, which requires the government to show that its action is substantially related to an important government interest. This standard is met here because the U.S. Supreme Court held in *Rostker v. Goldberg* that a male-only requirement for military draft registration is substantially related to the government's important interest in national defense.

Age-based discrimination is subject to mere **rational basis scrutiny**, under which the challenger need only show that the challenged government action is not related to a legitimate government interest. Since the government will be able to overcome the higher hurdle of intermediate scrutiny to justify its sex-based discrimination, the student's age discrimination claim will also fail. Therefore, the statute complies with the Fifth Amendment due process clause and is constitutional **(Choice A)**.

*Congress also has the power to declare war and authorize the President to call state National Guard units into action without the approval of the state governor to execute federal laws, suppress insurrections, and repel invasions.

(Choice B) The Fourteenth Amendment equal protection clause applies to discrimination by *state* governments, not the *federal* government.

(Choice D) Due process protections historically extended to rights—not privileges. But this distinction has been abandoned, so it is irrelevant whether federal student aid for college is a privilege or a right.

Educational objective:

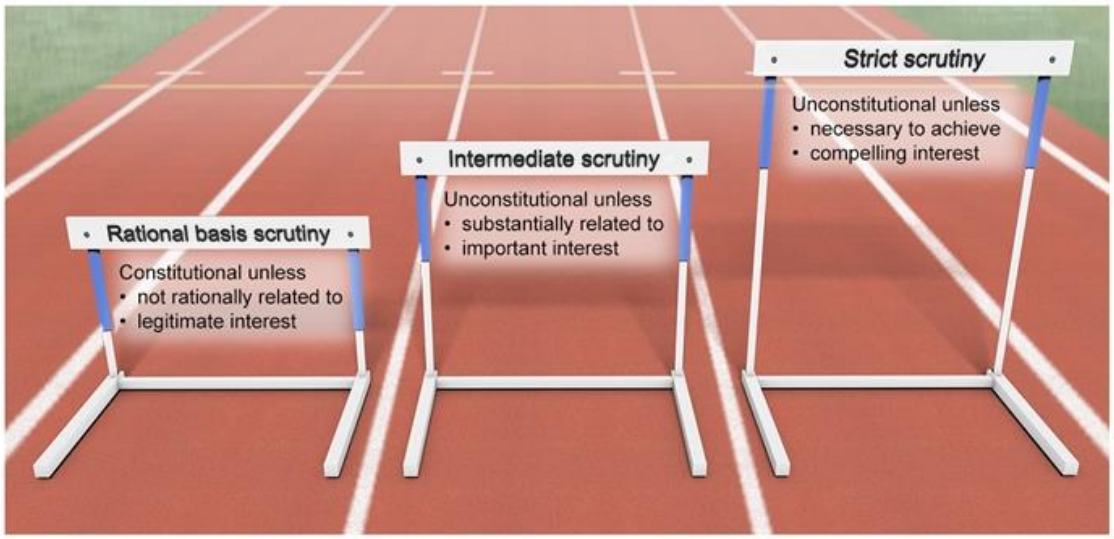
Congress has broad power to raise and regulate the U.S. armed forces, including establishing and requiring citizens to register for a military draft. When exercising this power, Congress does not violate the equal protection component of the Fifth Amendment by restricting registration to males in a specified age range.

References

- U.S. Const. art. I, § 8 (power to raise and regulate armed forces).
- Rostker v. Goldberg, 453 U.S. 57, 83 (1981) (holding that Congress can use its broad authority to raise and regulate the armed forces to require only males in a certain age range to register for a military draft).

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Fifth Amendment due process challenge
(equal protection principles)



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The Sports Championship Revenue Enhancement Act is a federal statute that was enacted as part of a comprehensive program to eliminate the federal budget deficit. That act imposed, for a period of five years, a 50% excise tax on the price of tickets to championship sporting events. Such events included the World Series, the Super Bowl, major college bowl games, and similar championship sports events.

Is this federal tax likely constitutional?

A. No, because a 50% tax is likely to reduce attendance at championship sporting events and, therefore, is not rationally related to the legitimate interest of Congress in eliminating the budget deficit.

B. No, because Congress violates the equal protection component of the Fifth Amendment by singling out championship sporting events for this tax while failing to tax other major sporting, artistic, or entertainment events to which tickets are sold.

C. Yes, because an act of Congress that appears to be a revenue raising measure on its face is not rendered invalid because it may have adverse economic consequences for the activity taxed.

D. Yes, because the compelling national interest in reducing the federal budget deficit justifies this tax as a temporary emergency measure.

Explanation:

The **taxing and spending clause** vests **Congress** with broad taxing power. This allows Congress to impose an indirect tax (eg, excise tax) so long as it is:

- **imposed uniformly** in every state where the taxed goods are found *and*
- **reasonably related** to **revenue raising** on its face.

Such taxes are constitutional even if they have an adverse economic impact on, or otherwise burden, the thing taxed.

Here, the federal statute imposed a 50% excise tax on tickets to championship sporting events. This indirect tax is applied uniformly to all such events, regardless of where they are held. And though the tax may create adverse economic consequences (eg, reduced attendance) for these events, it is reasonably related to raising revenues to eliminate the budget deficit **(Choice A)**. Therefore, the tax is likely constitutional.

(Choice B) This excise tax triggers equal protection concerns since it taxes championship sporting events differently than other major events. But since neither the events nor the attendees are a protected class, the tax need only pass rational basis scrutiny. Therefore, the tax likely *complies* with the equal protection component.

(Choice D) Congress does not need a compelling national interest or emergency powers to justify the use of its broad taxing power.

Educational objective:

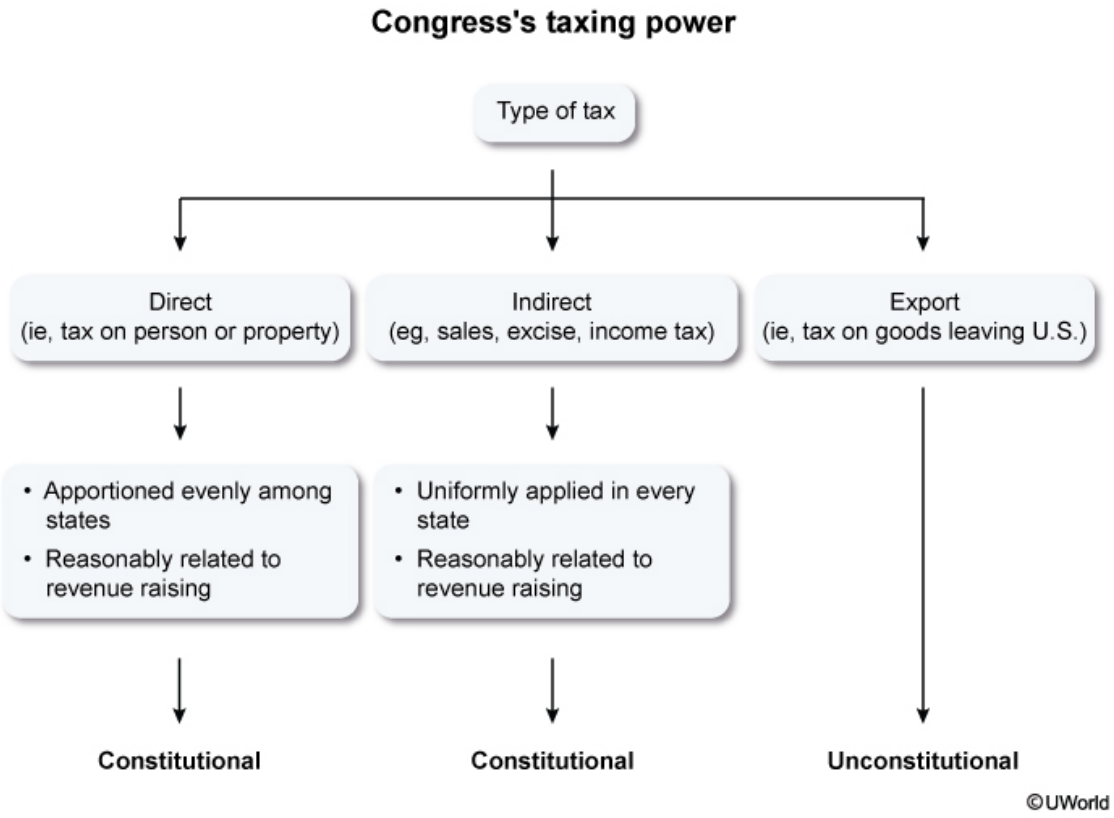
Congress can impose indirect taxes so long as they are (1) uniformly applied in every state where the taxed goods are found and (2) reasonably related to revenue production. This power is not diminished by the fact that such taxes may burden or restrict the thing taxed.

References

- Flint v. Stone Tracy Co., 220 U.S. 107, 151 (1911) ("[T]he terms duties, imposts and excises are generally treated as embracing the indirect forms of taxation").
- Fernandez v. Wiener, 326 U.S. 340, 362 (1945) ("It has long been settled that an Act of Congress which on its face purports to be an exercise of the taxing power, is not any the less so because the tax is burdensome or tends to restrict or suppress the thing taxed").

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Congress's taxing power
Type of tax
Direct
(ie, tax on person or property)
Indirect
(eg, sales, excise, income tax)
Export
(ie, tax on goods leaving U.S.)
• Apportioned evenly among states
• Reasonably related to revenue raising
• Uniformly applied in every state
• Reasonably related to revenue raising
Constitutional
Constitutional
Unconstitutional
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On the basis of scientific studies showing a causal relationship between the consumption of "red meat" (principally beef) and certain forms of cancer, a federal statute prohibits all commercial advertising of red-meat products. The statute does not, however, restrict the sale of red-meat products. Producers of red meat have challenged the statute as a violation of their free speech rights protected by the First Amendment.

Is the court likely to find the statute constitutional?

A. No, because it does not serve a substantial government interest.
B. No, because it is more extensive than necessary to serve the government interest in preventing certain cancers.
C. Yes, because it does not affect speech protected by the First Amendment.
D. Yes, because it serves a legitimate government interest in protecting public health.

Explanation:

The **government can ban** commercial speech that (1) is **false or misleading** or (2) concerns **unlawful activity**. But all other commercial speech is protected by the First Amendment, albeit to a lesser extent than other forms of expression (eg, political speech). This means that the government can only **regulate protected commercial speech** if the government proves that its regulation **directly advances a substantial government interest** *and* is **not more extensive than necessary** to serve that interest.

Here, the red-meat advertisements *are* protected commercial speech since there is no evidence that they are false or misleading and red meat is a lawful product **(Choice C)**. And the statute prohibiting these advertisements likely advances the government's substantial interest in protecting the public from certain cancers **(Choice A)**. But the statute is more extensive than necessary to achieve that interest since a cancer warning in those advertisements (instead of a total ban) would suffice. Therefore, the statute will likely be found unconstitutional.

(Choice D) A legitimate government interest is never sufficient to justify the regulation of protected speech.

Educational objective:

The government can only regulate protected commercial speech if the regulation (1) directly advances a substantial government interest and (2) is not more extensive than necessary to serve that interest.

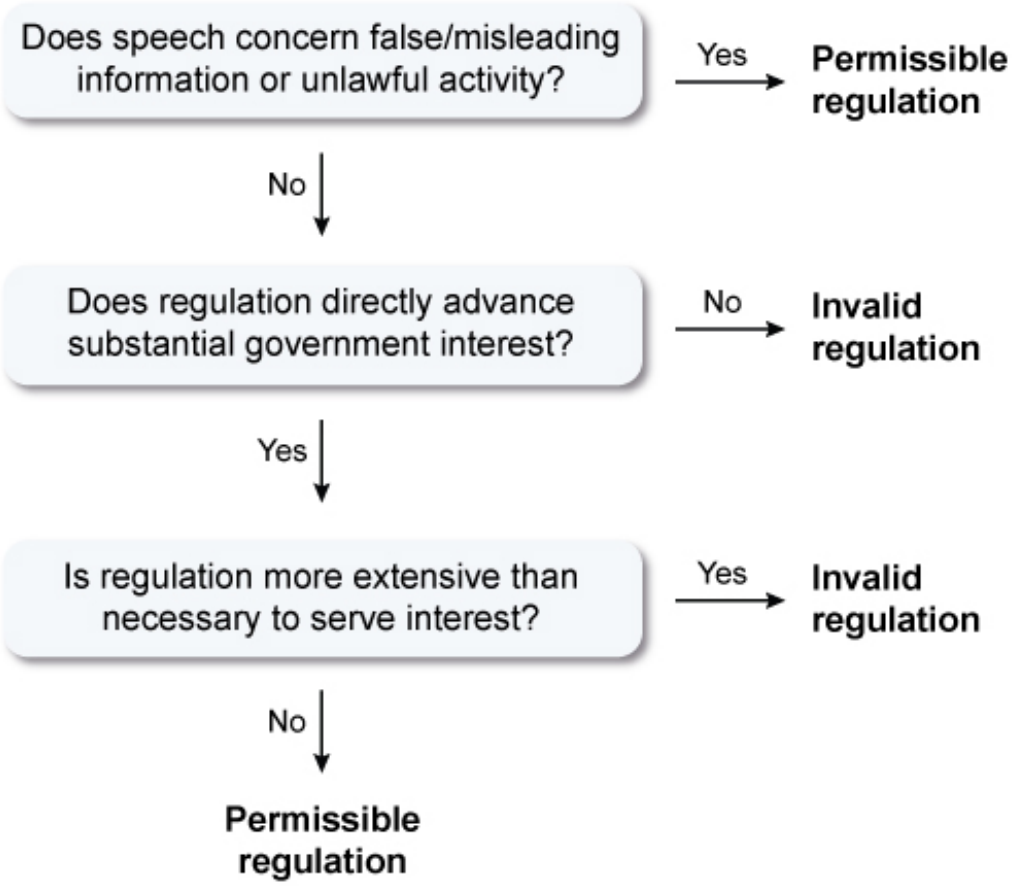
References

- Cent. Hudson Gas & Elec. Corp. v. Pub. Serv. Comm'n, 447 U.S. 557, 564 (1980) (providing the test for determining whether the government's regulation of protected commercial speech is constitutional).

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Regulation of commercial speech



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Several sites on a mountain within federal public lands are regarded as sacred to a group of people that has gathered there for years to perform religious ceremonies. The United States Forest Service recently issued a permit to a private developer to construct a ski facility in an area that includes the sites that are sacred to the group.

The group has filed suit in federal district court against the Forest Service to force cancellation of the permit, claiming solely that the permit violates its First Amendment right to the free exercise of religion. The Forest Service has conceded that the group's religious beliefs are sincere and that construction of the ski facility will adversely affect the group's religious practices.

What must the group show to prevail on its First Amendment claim?

A. Construction of the ski facility will have a discriminatory impact on the group's religious practices in relation to the practices of other religious groups.

B. The burden on the group's religious practices that will be imposed by construction of the ski facility outweighs the government's interest in allowing the facility.

C. The government can serve its legitimate interest in allowing the ski facility by issuing a permit that is less burdensome on the group's religious practices.

D. The permit issued by the government is aimed at suppressing the religious practices of the group.

Explanation:

First Amendment free exercise of religion

Burden	Applicability	Level of scrutiny
Incidental	Generally applicable to all persons	Rational basis scrutiny: • burden rationally related to • legitimate government interest
Direct	Intentionally targets religious belief/practice	Strict scrutiny: • burden necessary to achieve • compelling government interest

The United States Forest Service issued a permit for the construction of a ski facility on land sacred to a religious group. As a result, the group filed suit to cancel the permit since the construction would adversely affect its **First Amendment right** to perform religious ceremonies. The group's likelihood of success depends on whether that burden is either:

- **incidental** – triggering **rational basis scrutiny**, where the **challenger will fail** unless the challenger shows that the burden has no rational relation to any legitimate government interest *or*
- **direct** – triggering **strict scrutiny**, where the **challenger will prevail** unless the government meets the nearly impossible task of showing that the burden is necessary to achieve a compelling government interest.

Therefore, to have the greatest chance of prevailing on its First Amendment claim, the group must show that the government-issued permit is aimed at suppressing (ie, directly burdens) the group's religious practices.

(Choice A) The ski facility's discriminatory impact on the group's religious practices allows the group to bring a free exercise claim. But that claim will likely fail unless the group can show that the discriminatory impact was *intentional*, which would create a presumption of invalidity that would be difficult for the government to rebut.

(Choice B) A free exercise challenge will be analyzed under rational basis or strict scrutiny, neither of which weighs the burden on religion against the government's interest.

(Choice C) To prevail, the group must show that the permit directly burdens its religious practices. Once it does so, the burden shifts to the *government* to show that its compelling (not merely legitimate) interest in the ski facility cannot be achieved by less burdensome means.

Educational objective:

Incidental burdens on the free exercise of religion are typically upheld under rational basis review. But direct burdens are almost always invalidated under strict scrutiny.

References

- Emp't Div. v. Smith, 494 U.S. 872, 878–79 (1990) (establishing the direct/incidental burden test).
- Church of Lukumi Babalu Aye v. City of Hialeah, 508 U.S. 520, 546 (1993) (applying strict scrutiny to a city ordinance that intentionally targeted a religious practice).

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A federal statute requires all males between the ages of 18 and 26 to register with the Selective Service Agency, which is responsible for drafting individuals to serve in the armed forces in the event of war. The statute makes it a felony to fail to register but provides an exemption for individuals who hold a sincere religious objection to war. The statute allows the federal government to question the sincerity and reasonableness of religious objections. The provisions of the statute are inseverable.

An 18-year-old man applying for federal student loans noted on the loan application that he had not registered with the Selective Service Agency. A representative of the Agency contacted the man, and the man said that he had no intention of registering due to his religious belief that all war is wrong. After refusing to register on several more occasions, the man was arrested and charged under the federal statute.

What is the man's strongest argument that the federal statute is unconstitutional?

A. The statute denies him the equal protection of the laws because it only applies to men.

B. The statute denies him the equal protection of the laws because it only applies to those between the ages of 18 and 26.

C. The statute violates his right to freely exercise his religious beliefs by allowing the government to challenge the reasonableness of those beliefs.

D. The statute violates his right to freely exercise his religious beliefs by allowing the government to challenge the sincerity of those beliefs.

Explanation:

The First Amendment **free exercise clause** prohibits the government from punishing an individual for *any* **sincerely held religious belief**. As a result, any **government inquiry is limited** to whether a professed belief is sincere—not whether that belief is reasonable or true **(Choice D)**. Here, the federal statute allows the government to challenge the *reasonableness* of any religious objection to Selective Service registration. Therefore, this is the man's strongest argument that the federal statute is unconstitutional.

(Choice A) A federal law that intentionally discriminates based on gender or nonmarital birth violates the equal protection component of the Fifth Amendment unless it passes intermediate scrutiny. This standard of scrutiny is likely met here because, as the U.S. Supreme Court held in *Rostker v. Goldberg*, the male-only requirement is substantially related to the government's important interest in national defense.

(Choice B) Under the Fifth Amendment's equal protection component, a federal law that does not impact a fundamental right or protected class is generally valid under mere rational basis scrutiny. Age is not a protected class, so the statute's application to those between the ages of 18 and 26 is likely valid.

Educational objective:

The free exercise clause allows the government to question whether a religious belief is sincerely held but not whether that belief is reasonable or true.

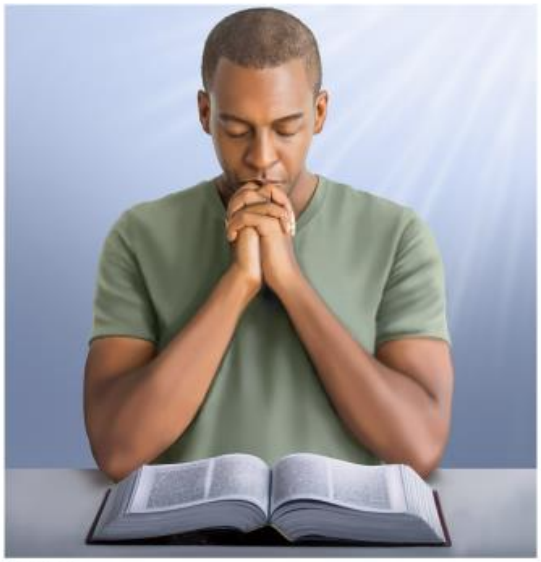
References

- United States v. Seeger, 380 U.S. 163, 184–85 (1965) (explaining that the government's only task is to determine whether a professed religious belief is sincerely held).
- Rostker v. Goldberg, 453 U.S. 57, 78–79 (1981) (holding that a law exempting women from the draft does not violate the equal protection component of the Fifth Amendment).

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Religious inquiries

Do you sincerely believe?
(permissible)



Is your belief reasonable or true?
(impermissible)



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A city ordinance prohibits the location of "adult theaters and bookstores" (theaters and bookstores presenting sexually explicit performances or materials) in residential or commercial zones within the city. The ordinance was intended to protect surrounding property from the likely adverse secondary effects of such establishments. Adult theaters and bookstores are freely permitted in the areas of the city zoned industrial, where those adverse secondary effects are not as likely.

A storekeeper was denied a zoning permit to open an adult theater and bookstore in a building owned by him in an area zoned commercial. As a result, the storekeeper brought suit in an appropriate court challenging the constitutionality of the zoning ordinance.

Which of the following statements regarding the constitutionality of this city ordinance is most accurate?

A. The ordinance is invalid, because a city may not enforce zoning regulations that deprive potential operators of adult theaters and bookstores of their freedom to choose the location of their businesses.

B. The ordinance is invalid, because a city may not zone property in a manner calculated to protect property from the likely adverse secondary effects of adult theaters and bookstores.

C. The ordinance is valid, because a city may enforce this type of time, place, and manner regulation on speech-related businesses, so long as the regulation is designed to serve a substantial governmental interest and does not unreasonably limit alternative avenues of communication.

D. The ordinance is valid, because a city may enforce zoning restrictions on speech-related businesses to ensure that the messages they disseminate are acceptable to the residents of adjacent property.

Explanation:

Speech regulations

Type	Definition	Test
Content-based	• Facial discrimination • Primary purpose targets message, subject, or idea	Strict scrutiny • Necessary & narrowly tailored to achieve compelling interest
Content-neutral	• Regulates time, place, or manner of speech	Intermediate scrutiny • Narrowly tailored to achieve important interest • Alternative avenues of communication remain

Adult theaters and bookstores are **speech-related businesses** that are protected by the **First Amendment**. As a result, government regulation of such businesses is subject to constitutional review. If the regulation targets what is being said (ie, **content-based** restriction), it is subject to **strict scrutiny** and **presumptively unconstitutional**. But if the regulation targets the time, place, or manner of speech (ie, **content-neutral** restriction), it is subject to **intermediate scrutiny** and **generally acceptable**.

In *Renton v. Playtime Theatres, Inc.*, the Supreme Court held that zoning ordinances for adult-entertainment businesses are time, place, and manner restrictions. That is because such ordinances target the *secondary effects* that adult businesses have on the surrounding community—not the acceptability of their content. As a result, these ordinances are valid so long as they pass intermediate scrutiny—ie, are narrowly tailored to serve a substantial or important government interest *and* do not unreasonably limit alternative avenues of communication **(Choice B)**.

(Choice A) A city *can* enforce zoning regulations that restrict adult theater and bookstore operators' freedom to choose the location of their businesses so long as the regulation survives intermediate scrutiny.

(Choice D) A zoning ordinance is a content-based restriction if its primary purpose is to ensure that the *messages* disseminated by speech-related businesses are acceptable to residents. Such a restriction is almost certainly invalid since it must pass strict scrutiny—ie, be necessary and narrowly tailored to achieve a compelling government interest.

Educational objective:

Time, place, and manner restrictions (eg, zoning ordinances) are valid so long as they are narrowly tailored to serve a substantial government interest *and* do not unreasonably limit alternative avenues of communication.

References

- Renton v. Playtime Theatres, Inc., 475 U.S. 41, 46–47 (1986) (explaining that zoning ordinances for adult-entertainment businesses are time, place, and manner restrictions).

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Insurance is provided in a state only by private companies. Although the state insurance commissioner inspects insurance companies for solvency, the state does not regulate their rates or policies. An insurance company charges higher rates for burglary insurance to residents of one part of a county in the state than to residents of another section of the same county because of the different crime rates in those areas.

A resident of that county was charged the higher rate by the insurance company because of the location of her residence. She sues the insurance company, alleging that the differential in insurance rates unconstitutionally denies her the equal protection of the laws.

Will the resident's suit succeed?

A. No, because the constitutional guarantee of equal protection of the laws is not applicable to the actions of these insurance companies.

B. No, because there is a rational basis for the differential in insurance rates.

C. Yes, because the higher crime rate in the resident's neighborhood demonstrates that the county police are not giving persons who reside there the equal protection of the laws.

D. Yes, because the insurance rate differential is inherently discriminatory.

Explanation:

State-action doctrine

Traditional government function	• Private actor performs traditional & exclusive government function (eg, running elections)
Significant government involvement	• Government & private actor have *mutually beneficial* relationship (eg, joint activity or venture) • Government creates *nexus* by affirmatively facilitating or authorizing private action (eg, police officer acting under color of law) • Government is *pervasively intertwined* in private entity's management or control

The Constitution (excluding the Thirteenth Amendment) only applies to government actors. But in rare circumstances, a **private actor** is **viewed as a government actor** (and subject to the Constitution) under the **state-action doctrine**. This doctrine applies when:

- the private actor performs a **traditional and exclusive government function** *or*
- the **government is significantly involved** in the private actor's activities.

Therefore, the resident can only challenge the private insurance company's **discriminatory conduct** on **equal protection** grounds if the state-action doctrine applies.

Here, the company does not perform a traditional and exclusive government function since insurance has historically been provided by private entities. And though the state inspects all insurance companies for solvency, it does not regulate their rates and policies. But even if it did, state regulation (however substantial) does not amount to *significant* government involvement since this an *ordinary* government activity. Therefore, the resident's suit will fail because equal protection guarantees do not apply to the company's actions.

(Choice B) Equal protection challenges undergo rational basis review when the challenged action does not impact a fundamental right or protected class. But since the insurance company's actions cannot be challenged on equal protection grounds, it does not matter whether there is a rational basis for the insurance rate differential.

(Choices C & D) The higher crime rate in the resident's neighborhood may demonstrate that county police are not giving neighborhood residents the equal protection of the laws. And the insurance rate differential is inherently discriminatory. But these facts are irrelevant in this suit against a *private* insurance company.

Educational objective:

The state-action doctrine applies when (1) a private actor performs a traditional and exclusive government function or (2) the government is significantly involved in the private

actor's activities. The private actor is then treated as a government actor and bound by the Constitution.

References

- Am. Mfrs. Mut. Ins. Co. v. Sullivan, 526 U.S. 40, 52 (1999) (holding that private insurance companies are not government actors unless there is proof of significant government involvement in their activities).

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A state law provides some funding for public schools on a per-student basis from general state revenues, which primarily come from the state income and sales taxes. The law also provides that all other public monies used to support public schools in the state come from locally levied real estate taxes. This results in a large disparity in per-student funding among the state's many public school districts because some districts have higher property values per student than other districts.

Public school students who claim to be disadvantaged by this school-funding law have challenged the law solely on the ground that it violates the Fourteenth Amendment's equal protection clause.

Which of the following best states the burden of persuasion in this action?

A. The state must demonstrate that the law is necessary to vindicate a compelling state interest.

B. The state must demonstrate that the law is rationally related to a legitimate state interest.

C. The students must demonstrate that the law is not rationally related to any legitimate state interest.

D. The students must demonstrate that the law is not substantially related to an important state interest.

Explanation:

Equal protection

(standards of review)

Standard	Applicability	Test
Rational basis	Default test	*Challenger* must show • action is not rationally related • to legitimate government interest
Intermediate scrutiny	Discriminates against quasi-suspect class: • Sex/gender • Legitimacy	*Government* must show • action is substantially related • to important government interest
Strict scrutiny	Discriminates against suspect class: • Ethnicity • Citizenship (state law only) • Race • Nationality Impacts fundamental right (**First VIP**): • **First** Amendment rights • **V**oting • **I**nterstate travel • **P**rivacy: family, marriage, parental rights, sexual acts, contraceptives	*Government* must show • action is necessary (ie, least restrictive means) • to achieve compelling government interest

An **equal protection** challenge requires proof that the law (1) is discriminatory—ie, treats similarly situated people differently—and (2) lacks adequate justification. The required justification depends on whether the law substantially impacts a **suspect class or fundamental right** (triggering strict scrutiny) or a **quasi-suspect class** (triggering intermediate scrutiny). If it does **not**, then the challenger must satisfy the **rational basis test**.

Here, the students challenged a state law that results in a large disparity in per-student funding among the state's public school districts. But education is not a fundamental right, and the funding disparities are not alleged to affect a suspect or quasi-suspect class (no strict or intermediate scrutiny) **(Choice A)**. Therefore, the court will apply the rational basis standard—ie, the burden of persuasion is on the students (not the state) to demonstrate that the school-funding law is *not* rationally related to *any* legitimate state interest **(Choice B)**.

(Choice D) The burden would be on the *state* to demonstrate that the law is not substantially related to an important state interest (ie, intermediate scrutiny), had the law affected a quasi-suspect class.

Educational objective:

A discriminatory law can be challenged on equal protection grounds and is generally reviewed under the rational basis test. However, a more stringent level of review will be used when the law substantially impacts a quasi-suspect class, suspect class, or fundamental right.

References

- U.S. Const. amend. XIV, § 1 (equal protection clause).
- San Antonio Indep. Sch. Dist. v. Rodriguez, 411 U.S. 1, 28, 37 (1973) (holding that disparities in public school funding do not implicate a protected class or fundamental right).

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A city operates a cemetery pursuant to a city ordinance. The ordinance requires the operation of the city cemetery to be supported primarily by revenues derived from the sale of cemetery lots to individuals. The ordinance further provides that the purchase of a cemetery lot entitles the owner to perpetual care of the lot, and entitles the owner to erect on the lot, at the owner's expense, a memorial monument or marker of the owner's choice, subject to certain size restrictions. The city ordinance requires the city to maintain the cemetery, including mowing the grass, watering flowers, and plowing snow, and provides for the expenditure of city tax funds for such maintenance if revenues from the sale of cemetery lots are insufficient.

Although cemetery lots are sold at full fair market value, which includes the current value of perpetual care, the revenue from the sale of such lots has been insufficient in recent years to maintain the cemetery. As a result, a small amount of city tax funds has also been used for that purpose.

A group of city taxpayers brings suit against the city challenging the constitutionality of the city ordinance insofar as it permits the owner of a cemetery lot to erect a religious memorial monument or marker on his or her lot.

Is this suit likely to be successful?

A. No, because only a small amount of city tax funds has been used to maintain the cemetery.

B. No, because the ordinance does not violate the establishment clause of the First Amendment.

C. Yes, because city maintenance of any religious object is a violation of the establishment clause of the First Amendment.

D. Yes, because no compelling governmental interest justifies authorizing private persons to erect religious monuments or markers in a city-operated cemetery.

Explanation:

City taxpayers have challenged the constitutionality of a city ordinance that permits persons to erect religious monuments or markers on cemetery lots maintained by the city. This challenge triggers the First Amendment **establishment clause** since it alleges that the government **failed to remain neutral toward religion**. As a result, the government action will be reviewed under the **historical test** and upheld if the action has **historically been permitted** in accordance with the **original meaning of the Constitution**.

Historically, individuals have had the right to erect monuments or markers of their choice on individual cemetery lots, including religious monuments or markers on lots in city-operated cemeteries. And since the ordinance here adheres to this long-standing practice, it is in accord with the original meaning of the Constitution and does not violate the establishment clause **(Choice C)**. As a result, the taxpayers' suit will likely be unsuccessful.

(Choice A) The small amount of city tax funds used to maintain the cemetery helps establish the lack of government entanglement with religion required to satisfy the *Lemon* test. But this test has been abandoned in establishment-clause challenges.

(Choice D) The city ordinance would have to be necessary to achieve a compelling government interest to survive strict scrutiny. But courts will only apply this heightened standard and forego the historical test when a law *expressly* favors or disfavors religion—which the ordinance here did not do. Therefore, no compelling interest is required.

Educational objective:

Establishment clause challenges are reviewed under the historical test, which upholds government actions that have historically been permitted in accordance with the original meaning of the Constitution.

References

- Kennedy v. Bremerton School Dist., 142 S. Ct. 2407, 2428 (2022) (holding that challenges based on the establishment clause "must be interpreted by reference to historical practices and understandings").

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Wall separating church and state



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Congress enacted a statute authorizing the denial of all federal funding to public school districts in which a specified percentage of the students enrolled in the public schools fail to pass a national achievement test. According to the terms of the federal statute, the first national achievement test was scheduled for administration five years from the effective date of the statute.

After reviewing then-current levels of public school student performance, the officials of a state became concerned that several of its public school districts would lose their federal funding after the administration of the first national achievement test. Then-current levels of private school student performance were substantially higher.

In order to improve the chances of those school districts retaining their federal funding, the state recently enacted a law that requires all children of elementary and secondary school age to attend the schools operated by their respective local public school districts. The law is to take effect at the beginning of the next school year.

Parents of children enrolled in private schools within the state have filed suit to challenge the constitutionality of this state law.

Should the court uphold the law?

A. No, because it is not necessary to further a compelling state interest.

B. No, because it is not rationally related to a legitimate state interest.

C. Yes, because it is necessary to further a compelling state interest.

D. Yes, because it is rationally related to a legitimate state interest.

Explanation:

Fourteenth Amendment **substantive due process** principles prevent states from depriving individuals of life, liberty, or property without adequate justification. State laws that substantially impair a fundamental right—eg, the **right to privacy**, which encompasses parents' right to control their children's upbringing and education*—must undergo **strict scrutiny**. This difficult test requires the **state** to show that its **law is necessary** to achieve a **compelling state interest**.

Here, the state law substantially impairs parents' fundamental right to control their children's upbringing and education by requiring all children to attend public school. And though the state may have a compelling interest in raising test scores to retain federal funding, the law is *not necessary* to further that interest. This is because the state can do so with less restrictive measures—eg, improving teaching and test preparation in public schools **(Choice C)**. Therefore, the law should not be upheld under strict scrutiny.

*The right to education is an ordinary right that is subject to rational basis review. But this right has not been impaired by the state law because each child is still receiving an education through the public school system.

(Choices B & D) The law *is* rationally related to the state's legitimate interest in raising test scores to retain federal funding. But the easy-to-pass rational basis test does not apply here since the law substantially impairs a fundamental right.

Educational objective:

Laws that substantially impair a fundamental right—eg, parents' right to control their children's upbringing and education—can be challenged on substantive due process grounds. Such laws are reviewed under strict scrutiny and rarely survive.

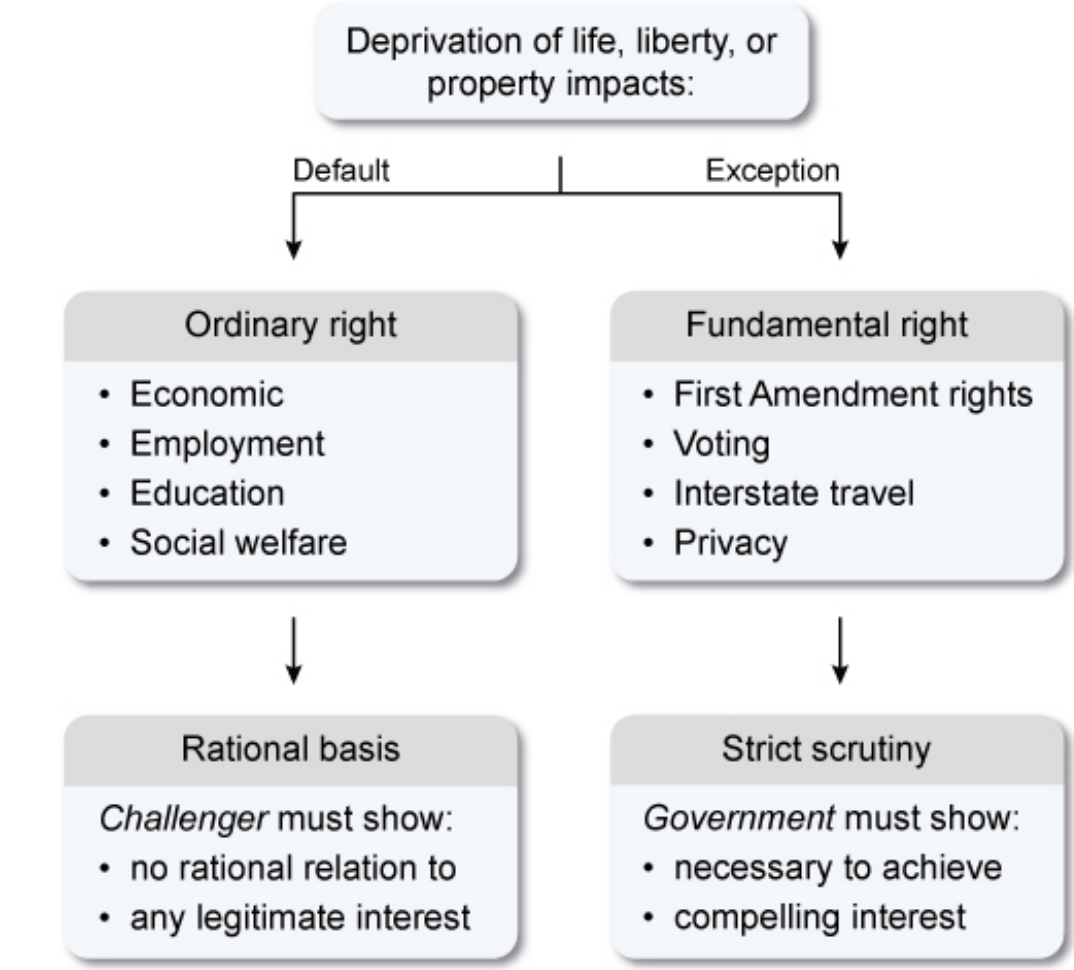
References

- Pierce v. Soc'y of Sisters, 268 U.S. 510, 534–35 (1925) (holding that a law eliminating private schools violates the fundamental right of parents to direct the upbringing and education of their children).

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Substantive due process



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A state prohibits voting for a write-in candidate in both primary and general elections. However, the state provides a mechanism by which individuals who want to appear as candidates on the primary ballot, as well as groups that want to be classified as a party, can do so.

Of the following, which is the best argument that a voter challenging the constitutionality of this ban on write-in candidates can make?

A. The Fifteenth Amendment limits a state's power to regulate its own elections.
B. The mechanism provided by the state does not provide for reasonable access to the ballot.
C. The right to vote is a fundamental right, so the state ban is subject to strict scrutiny review.
D. The state ban imposes a burden on the right of voters to select the candidates of their choice.

Explanation:

State-election restrictions

Restriction	Examples	Test
Ordinary (nondiscriminatory)	• Voter registration • Photo-ID requirement • Disallowing write-in voting	Rational basis: *challenger* must show restriction lacks rational relationship to legitimate state interest
Severe (discriminatory)	• Poll tax • Disallowing third-party candidacies • Property-ownership requirement	Strict scrutiny: *state* must show restriction is necessary to achieve compelling state interest

State **electoral regulations** impact an individual's fundamental right to vote and freely associate, so they can be challenged under the First Amendment or the Fourteenth Amendment equal protection clause. The standard for evaluating such regulations under either amendment depends on the severity of the burden imposed. A court will apply either:

- **rational basis review** – applies to **ordinary** (nondiscriminatory) burdens and requires the challenger to show that the regulation is not rationally related to a legitimate state interest *or*
- **strict scrutiny** – applies to **severe** (discriminatory) burdens and requires the state to show that the regulation is the least restrictive means of achieving a compelling state interest.

Here, the state bans write-in candidates in both primary and general elections. The state instead provides a mechanism by which individuals who want to appear as candidates on the primary ballot, as well as groups that want to be classified as a party, can do so. Since this ban is an ordinary (nondiscriminatory) burden, it is subject to rational basis review—not strict scrutiny review **(Choice C)**. Therefore, the best argument to challenge this ban is that the mechanism provided by the state does not provide for reasonable access to the ballot.

(Choice A) The Fifteenth Amendment prohibits state and federal governments from abridging the right to vote on the basis of race, color, or previous condition of servitude. But since the state regulation here does not bar voting on any of these bases, this is not a strong argument.

(Choice D) The fact that the state ban imposes a burden on the right of voters to select candidate of their choice does not, on its own, provide a strong argument to challenge the constitutionality of the ban. Instead, a challenger must also show that the ban does not satisfy rational basis scrutiny.

Educational objective:

Severe (discriminatory) electoral regulations are subject to strict scrutiny. But ordinary (nondiscriminatory) electoral regulations (eg, ban on write-in candidates) are subject to the less stringent rational basis test.

References

- Burdick v. Takushi, 504 U.S. 428, 434 (1992) (holding that a state ban on write-in candidates is an ordinary burden subject to rational basis scrutiny).

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A state court issued a gag order that prohibited the publication of information about a pending murder trial until the jury had been impaneled. The purpose of the order was to avoid pretrial publicity that would prejudice the criminal defendant's right to an impartial jury.

Several newspapers that sought to report about the trial's pretrial events challenged the order, arguing that it was unconstitutional.

Is the court's order likely constitutional?

A. No, because the Sixth Amendment right to an impartial jury does not apply to state criminal prosecutions.

B. No, because there are less restrictive means to guarantee the defendant's right to an impartial jury.

C. Yes, because the court has a compelling interest in protecting the defendant's right to an impartial jury.

D. Yes, because the Tenth Amendment reserves to the states plenary authority over state criminal prosecutions.

Explanation:

The First Amendment **freedom of the press** generally prohibits the government from restricting the right to publish lawfully obtained, truthful information about matters of public significance. A government action that abridges this right is **presumptively unconstitutional** and must survive **strict scrutiny**. This requires the government to prove that its action was the **least restrictive means** (ie, narrowly tailored) to achieve a **compelling government interest**.

A gag order is a judicial order that prohibits the press from reporting about court proceedings, which abridges the freedom of the press. Here, the state court likely has a compelling interest in ensuring that the criminal defendant is afforded the right to an impartial jury. However, the court has less restrictive means to achieve this interest—eg, changing the trial's venue, postponing the trial, or intensely questioning prospective jurors during voir dire **(Choice C)**. Therefore, the court's order cannot survive strict scrutiny and is likely unconstitutional.

(Choice A) The Sixth Amendment guarantees the right to an impartial jury in federal criminal prosecutions *and* in state criminal prosecutions through the due process clause of the Fourteenth Amendment.

(Choice D) The Tenth Amendment reserves to the states any power that the Constitution does not expressly grant to the federal government, including power over state criminal prosecutions. However, this power is not plenary (ie, absolute) because states must comply with other constitutional provisions.

Educational objective:

A government action that abridges the First Amendment freedom of the press (eg, a gag order) must survive strict scrutiny, which requires the government to prove that its action was the least restrictive means to achieve a compelling government interest.

References

- Neb. Press Ass'n v. Stuart, 427 U.S. 539, 563–64 (1976) (explaining that a court has other means short of a gag order to achieve its compelling government interest in ensuring a criminal defendant's right to a fair trial).

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An environmental organization's stated mission is to support environmental causes. The organization's membership is generally open to the public, but its bylaws permit its officers to refuse membership to anyone who does not adhere to the organization's mission statement.

In a recent state administrative proceeding, the organization opposed plans to begin mining operations in the mountains surrounding a small town. Its opposition prevented the mine from being opened on schedule. In an effort to force the organization to withdraw its opposition, certain residents of the town attended a meeting of the organization and tried to become members, but the officers refused to admit them. The residents sued the organization, claiming that the refusal to admit them was discriminatory and violated a local ordinance that prohibits any organization from discriminating on the basis of an individual's political views. The organization responded that the ordinance is unconstitutional as applied to its membership decisions.

Are the residents likely to prevail in their claim?

A. No, because the membership policies of a private organization are not state action.

B. No, because the organization's right to freedom of association allows it to refuse to admit potential members who do not adhere to its mission statement.

C. Yes, because the action of the officers in refusing to admit the residents as members violates equal protection of the laws.

D. Yes, because the ordinance serves the compelling interest of protecting the residents' free speech rights.

Explanation:

Freedom of association

General rule	Infringing upon right to associate *barred* unless: • necessary to achieve compelling interest
Subversive organization	Punishing member of subversive organization *permitted* if person: • is active member • knows of organization's illegal objectives *and* • specifically intends to further them
Loyalty oath	Requiring loyalty oath for public employment *permitted* unless: • overbroad – infringes on constitutionally protected behavior *or* • vague – reasonable person would not understand oath
Forced inclusion	Interfering with organization's discriminatory policy *barred* unless: • no significant burden on organization's mission *and* • necessary to achieve compelling interest
Electoral process	Imposing restriction on electoral process: • ordinary – *permitted* if rationally related to legitimate interest • severe – *barred* unless necessary to achieve compelling interest

The First Amendment **freedom of association** allows persons to form groups to express certain viewpoints. The government interferes with this right when it **forces a group** to **accept members** who would **significantly burden** the group's ability to **express its views** or **carry out its mission**—eg, forced inclusion of a homophobe in a gay-rights organization. Such interference is only justified if it is **necessary** to achieve a **compelling government interest** unrelated to the suppression of ideas.

Here, residents allege that an environmental organization violated an ordinance prohibiting political-viewpoint discrimination when the organization refused to admit them. But the ordinance is unconstitutional as applied to the organization because it significantly burdens the organization's right to oppose the mining operation. And the ordinance is not necessary to achieve the government's compelling interest in protecting free speech **(Choice D)**. Therefore, the residents' claim against the organization will likely fail.

(Choice A) The Constitution—excluding the Thirteenth Amendment—only applies to state (ie, government) action. Since private organizations are not state actors, their membership policies need not comply with the Constitution. But since the ordinance under which the residents sued *is* state action, the ordinance must respect the organization's constitutional rights—including its freedom of association.

(Choice C) Since the environmental organization is a private (not state) actor, its conduct is not subject to the Fourteenth Amendment's guarantee that individuals will be afforded the equal protection of the laws.

Educational objective:

Under the First Amendment freedom of association, the government cannot force a group to accept members who would significantly burden its views unless that interference is necessary to achieve a compelling government interest.

References

- Boy Scouts of Am. v. Dale, 530 U.S. 640, 659 (2000) (striking down a state law requiring the Boy Scouts to retain a gay scoutmaster since his presence seriously impacted the group's ability to advocate viewpoints).

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A city ordinance makes the city building inspector responsible for ensuring that all buildings in that city are kept up to building code standards and requires the inspector to refer for prosecution all known building code violations. Another ordinance provides that the city building inspector may be discharged for "good cause." The building inspector took a newspaper reporter through a number of run-down buildings in a slum neighborhood. After using various epithets and slurs to describe the occupants of these buildings, the building inspector stated to the reporter: "I do not even try to get these buildings up to code or to have their owners prosecuted for code violations because if these buildings are repaired, the people who live in them will just wreck them again." The reporter published these statements in a story in the local newspaper. The building inspector admitted he made the statements.

On the basis of these statements, the city council discharged the building inspector.

Is the action of the city council constitutional?

A. No, because the statements were lawful comments on a matter of public concern.

B. No, because the statements were published in a newspaper that is protected by the First and Fourteenth Amendments.

C. Yes, because the building inspector is a government employee and a person holding such a position may not make public comments inconsistent with current governmental policy.

D. Yes, because the statements demonstrate that the building inspector has an attitude toward a certain class of persons that interferes with the proper performance of the obligations of his job.

Explanation:

Acceptance of **public employment** does not eliminate an individual's **right to free speech**—but this right is not absolute. When a public employee is **speaking as a private citizen**, the **government can limit** that speech if its **interest in efficient government function outweighs** the employee's right to free speech. And when the employee is speaking pursuant to official duties (ie, within the scope of employment), the government has even greater latitude to regulate that speech and First Amendment protections rarely apply.

Here, the city building inspector was likely speaking as a private citizen since talking to a reporter presumably fell outside his official duties. But since the inspector's statements showed his lack of effort to get some buildings up to code, the city council's interest in ensuring that he properly perform his job outweighed his right to free speech. And if talking to reporters *was* an official duty, the city council's right to regulate that speech was even greater. Therefore, the city's decision to discharge him was constitutional.

(Choice A) Comments on a matter of *public* concern (as seen here) are afforded greater First Amendment protection than those involving a *private* concern. But the city council still had "good cause" to fire the inspector since his statements demonstrated that he could not properly perform his job.

(Choice B) The First Amendment (applied to the states through the Fourteenth Amendment) gives the media the right to publish information on matters of public concern. But the fact that the inspector's statements were published in a newspaper is irrelevant to determining whether the city council can fire him for those statements.

(Choice C) A government employee *can* make public comments that are inconsistent with current government policy if those comments do not interfere with his/her ability to adequately perform official duties.

Educational objective:

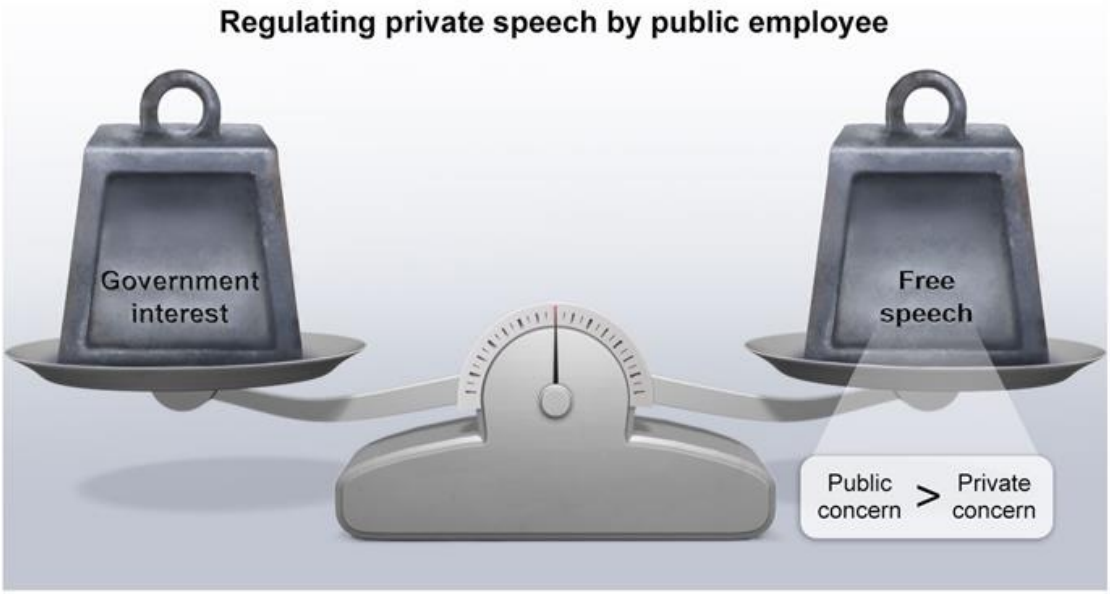
When a public employee is speaking as a private citizen, the government can only restrict that speech if its interest in efficient government function outweighs the employee's right to free speech. But when the employee is speaking pursuant to official duties, the government has greater latitude to regulate that speech.

References

- Pickering v. Bd. of Educ., 391 U.S. 563, 568 (1968) (explaining that a public employee's right to free speech as a private citizen must be balanced against the government's interest in efficient government function).

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Regulating private speech by public employee
Government interest
Free speech
Public concern
>
Private concern

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A city ordinance prohibited individuals from picketing in residential neighborhoods unless the picketing related to the neighborhood zoning requirements. This exception to the ordinance was adopted in response to local citizens' strong views about proposed rezoning of residential neighborhoods.

A group that wished to picket in front of a business owner's home because of the business owner's employment practices challenged the ordinance as unconstitutional under the First Amendment.

Will the group's challenge likely prevail?

A. No, because the ordinance is a content-neutral regulation of speech.

B. No, because the ordinance regulates conduct rather than speech.

C. Yes, because the ordinance irrationally discriminates between different types of protesters.

D. Yes, because the ordinance is a content-based regulation of speech.

Explanation:

The First Amendment's preeminent task is to protect the free flow of ideas, so **content-based restrictions** on speech are **presumptively unconstitutional** and subject to **strict scrutiny**. As a result, the government can only regulate speech based on what is said (ie, its message or ideas) by showing that the regulation is **necessary and narrowly tailored** to achieve a **compelling government interest**—a nearly impossible task.

The ordinance here is a content-based regulation because it allows speech on one topic (neighborhood zoning requirements) but no other. And since it is highly unlikely that the ordinance can survive strict scrutiny, the group's challenge will likely prevail.

(Choice A) Unlike content-based restrictions (as seen here), content-*neutral* regulations are constitutional if they pass intermediate scrutiny—ie, the government proves that the regulation (1) is narrowly tailored to achieve an important or substantial government interest and (2) leaves open alternative channels of communication.*

*Content-neutral restrictions that likely satisfy intermediate scrutiny include those penalizing trespasses on private property and prohibiting protests on streets during rush-hour traffic.

(Choice B) A person's conduct is protected by the First Amendment if it is expressive—ie, (1) the person intends to communicate a message and (2) the audience is likely to understand that message. And since the ordinance unjustifiably restricts the expressive aspect of picketing, it is likely unconstitutional.

(Choice C) Had the ordinance regulated a nonpublic forum, rational basis scrutiny would require the group to show that the ordinance irrationally discriminates between different types of protesters. However, residential neighborhoods are *public* forums because they contain public streets and sidewalks.

Educational objective:

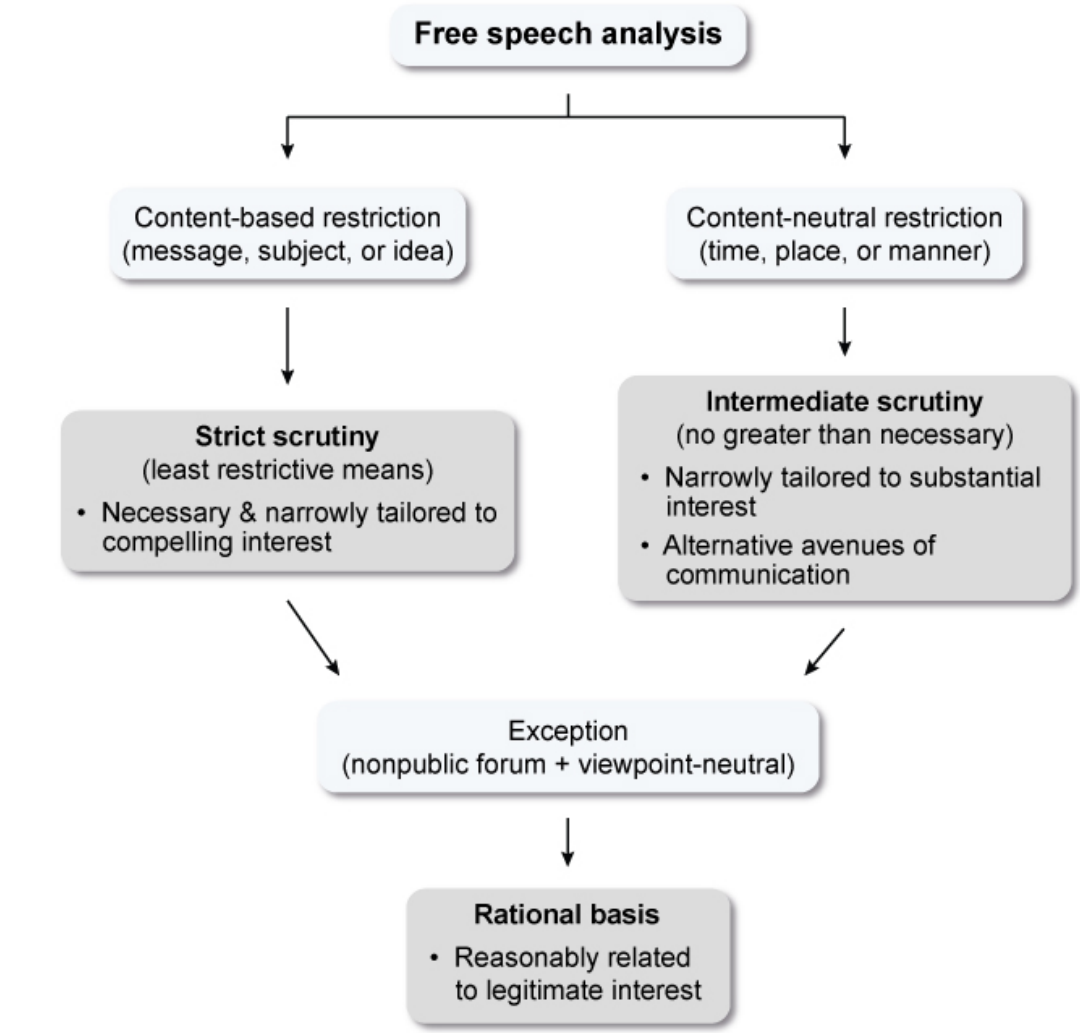
Since content-based restrictions on speech are heavily disfavored, they are unconstitutional unless they survive strict scrutiny—ie, the government proves that the restriction is necessary and narrowly tailored to achieve a compelling government interest.

References

- United States v. Playboy Entm't Group, 529 U.S. 803, 816–17 (2000) (explaining that content-based restrictions on speech require the government to satisfy strict scrutiny).

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Free speech analysis
Content-based restriction (message, subject, or idea)
Content-neutral restriction (time, place, or manner)
Strict scrutiny
(least restrictive means)
• Necessary & narrowly tailored to compelling interest
Intermediate scrutiny
(no greater than necessary)
• Narrowly tailored to substantial interest
• Alternative avenues of communication
Exception
(nonpublic forum + viewpoint-neutral)
Rational basis
• Reasonably related to legitimate interest

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In an effort to prevent quid pro quo corruption between donors and candidates for state elective office, a state enacted a law that limits the total amount an individual may contribute to individual candidates during an election cycle. A donor who was fined for violating this statute has argued that it is unconstitutional.

Is the state law constitutional?

A. No, because political speech cannot be restricted.

B. No, because the law is not the least restrictive means to serve a compelling state interest.

C. Yes, because campaign contributions are not speech protected by the First Amendment.

D. Yes, because the law is closely drawn to serve an important state interest.

Explanation:

Campaign-finance restrictions

	Examples	Test
Contribution restrictions	• Limit on amount of contribution to: – single candidate – political candidates, parties & action committees combined • Increase of limit on amount of contribution to candidate when self-financed opponent exceeds certain spending amount	Intermediate scrutiny • closely drawn/substantially related to important government interest
Expenditure restrictions	• Limit on spending by: – corporations or unions in support of or opposition to candidate – candidate on his/her own behalf	Strict scrutiny • necessary/least restrictive means to achieve compelling government interest

The **First Amendment** protects political speech, which includes campaign contributions and expenditures **(Choice C)**. Political speech is fundamental to a free and democratic society but may be restricted if the government satisfies the appropriate level of scrutiny **(Choice A)**. A government **restriction on campaign contributions** must survive **intermediate scrutiny**, which requires the government to prove that its restriction is **closely drawn** to serve (ie, substantially related to) an **important government interest**.

Here, the state law limits the amount that an individual may contribute to a single candidate for state elective office during an election cycle. The state has an important interest in preventing quid pro quo corruption between donors and candidates.* And in *Buckley v. Valeo*, the U.S. Supreme Court held that limiting the amount of money an individual may donate to a single candidate is closely drawn to serve that interest. Therefore, the state law is constitutional.

*Preventing quid pro quo corruption or the appearance of it is the only government interest that the U.S. Supreme Court has recognized is important enough to justify government restrictions on campaign contributions.

(Choice B) A government restriction on campaign *expenditures* must satisfy strict scrutiny—ie, the government must show that its restriction is the least restrictive means to

serve a compelling government interest. However, this law restricts campaign *contributions*, so the state need only satisfy intermediate scrutiny.

Educational objective:

The First Amendment protects political speech, which includes campaign contributions and expenditures. A law that restricts campaign contributions is unconstitutional unless the government satisfies intermediate scrutiny by showing that the law is closely drawn to serve (ie, substantially related to) an important government interest.

References

- Buckley v. Valeo, 424 U.S. 1, 29 (1976) (holding that a limit on the amount an individual may donate to a candidate is a constitutional means to serve the government's important interest in combating quid pro quo corruption).

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To improve the quality of rental housing within its boundaries, a city proposed an ordinance requiring all new and existing rental-housing units to provide at least one full bathroom for each bedroom, plumbing and electrical hookups for a washer and dryer, and a covered parking space.

A majority of the owners of existing rental housing in the city opposed the ordinance. They argued that it would dramatically decrease the number of low-income rental-housing units because owners would be unable to raise rents enough to recoup the investment required to comply. Without denying these contentions, the city enacted the ordinance. A plaintiff who owns low-income rental housing has sued the city, claiming only that the ordinance is unconstitutional on its face.

Which of the following best states the burden of persuasion in this action?

A. The city must demonstrate that the ordinance is necessary to serve a compelling state interest, because it adversely affects the fundamental right of rental-housing owners to use their property in the manner they deem most economically efficient.

B. The city must demonstrate that the ordinance is necessary to serve a compelling state interest, because it will have a substantial and disproportionate negative impact on low-income persons.

C. The plaintiff must demonstrate that the ordinance is not substantially related to an important state interest, because it requires some owners of rental housing to invest money that they will not be able to recoup from increased rents.

D. The plaintiff must demonstrate that there is no rational relationship between the ordinance and any legitimate state interest, because the ordinance regulates economic activity of a type normally presumed to be within state regulatory authority.

Explanation:

All state and local laws must comply with the **Fourteenth Amendment**, including the **substantive due process** and **equal protection** clauses. The substantive due process clause applies when a law impacts *all* persons, while the equal protection clause applies when a law impacts a *particular class* of persons. And under either clause, the challenged law must survive the appropriate level of scrutiny:

- **rational basis** scrutiny (default test) – requires the **challenger** to show that the law is **not rationally related** to any **legitimate state interest**
- **intermediate** scrutiny (quasi-suspect class) – requires the **state** to show that the law is **substantially related** to an **important state interest** *or*
- **strict** scrutiny (suspect class or fundamental right) – requires the **state** to show that the law is **necessary** to serve a **compelling state interest**.

Here, the city ordinance requires all rental-housing units to include certain amenities. Although this may have a substantial and disproportionate negative impact on low-income persons, wealth-based classifications are not a suspect or quasi-suspect class **(Choice B)**. And rental-housing owners do not have a fundamental right to use their property in any manner **(Choice A)**. Instead, the ordinance regulates the type of economic activity normally presumed to be within a state's authority. Therefore, the plaintiff has the burden to satisfy rational basis scrutiny.

(Choice C) The *city* would have to show that the ordinance *is* substantially related to an important government interest had the ordinance substantially impacted a quasi-suspect class.

Educational objective:

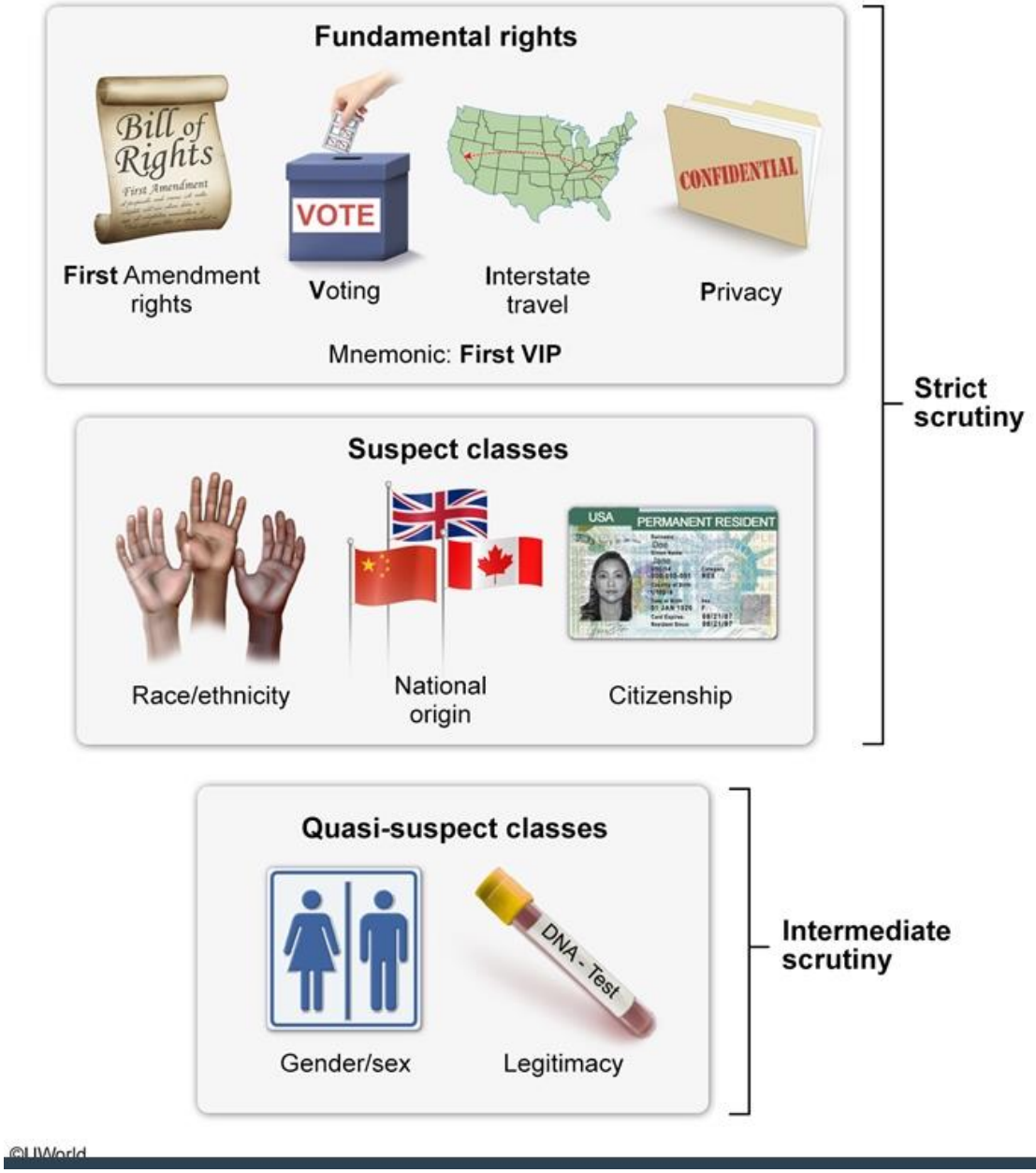
Under the Fourteenth Amendment due process and equal protection clauses, most state and local laws are subject to rational basis review. This standard requires the challenger to demonstrate that the law has no rational relation to any legitimate state interest.

References

- Pennell v. San Jose, 485 U.S. 1, 13–14 (1988) (applying rational basis scrutiny to a price-control ordinance since it does not impact a protected class or a fundamental right).

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Fundamental rights
Bill of Rights
First Amendment
VOTE
CONFIDENTIAL
First Amendment rights
Voting
Interstate travel
Privacy
Mnemonic: First VIP
Strict scrutiny
Suspect classes
USA
PERMANENT RESIDENT
Race/ethnicity
National origin
Citizenship
Quasi-suspect classes
DNA - Test
Gender/sex
Legitimacy
Intermediate scrutiny
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A man pleaded guilty in state court to dealing a controlled substance. He was sentenced to two years of probation and ordered to pay a $2,000 fine, the maximum monetary fine permissible for this offense. The state has now brought a civil forfeiture action in state court against the man's new automobile, which was seized when the man was arrested.

The state claims that the man used the automobile to transport the controlled substance. The man, who had recently purchased the automobile for $50,000 with money he inherited from his mother's estate, believes that the civil forfeiture action violates his constitutional rights.

What is the most obvious constitutional basis for the man to challenge the civil forfeiture action?

A. The Eighth Amendment's prohibition against excessive fines, as incorporated into the due process clause of the Fifth Amendment.

B. The Eighth Amendment's prohibition against excessive fines, as incorporated into the due process clause of the Fourteenth Amendment.

C. The Fifth Amendment's prohibition against taking private property without just compensation, as incorporated into the due process clause of the Fifth Amendment.

D. The Fifth Amendment's prohibition against taking private property without just compensation, as incorporated into the due process clause of the Fourteenth Amendment.

Explanation:

The Bill of Rights is composed of the first 10 amendments to the U.S. Constitution. Prior to the ratification of the Civil War Amendments, the Bill of Rights only limited the power of the federal government. These protections, with limited exceptions, have since been incorporated into the due process clause of the Fourteenth Amendment and therefore apply to the states with equal force.

In *Timbs v. Indiana*, the Supreme Court held that the **Eighth Amendment** ban on **excessive fines** applies to the states because it has been incorporated into the **Fourteenth Amendment due process clause**. The Eighth Amendment ban limits the amount of payments, whether in cash or other property, that may be imposed as punishment for an offense. Since the maximum allowable fine for the man's offense is $2,000 but his car is worth $50,000, this protection is his most obvious basis to challenge the civil forfeiture action.

(Choice A) The Fifth and Fourteenth Amendment due process clauses contain the same language. However, the Fifth Amendment applies to the *federal* government while the Fourteenth Amendment applies to the *states*.

(Choices C & D) The Fifth Amendment takings clause—applied to the states through the *Fourteenth* Amendment due process clause—bars the government from taking private property for public use without just compensation. However, the Supreme Court has consistently held that a government seizure of property for a criminal investigation or forfeiture action (as seen here) is not a Fifth Amendment taking.

Educational objective:

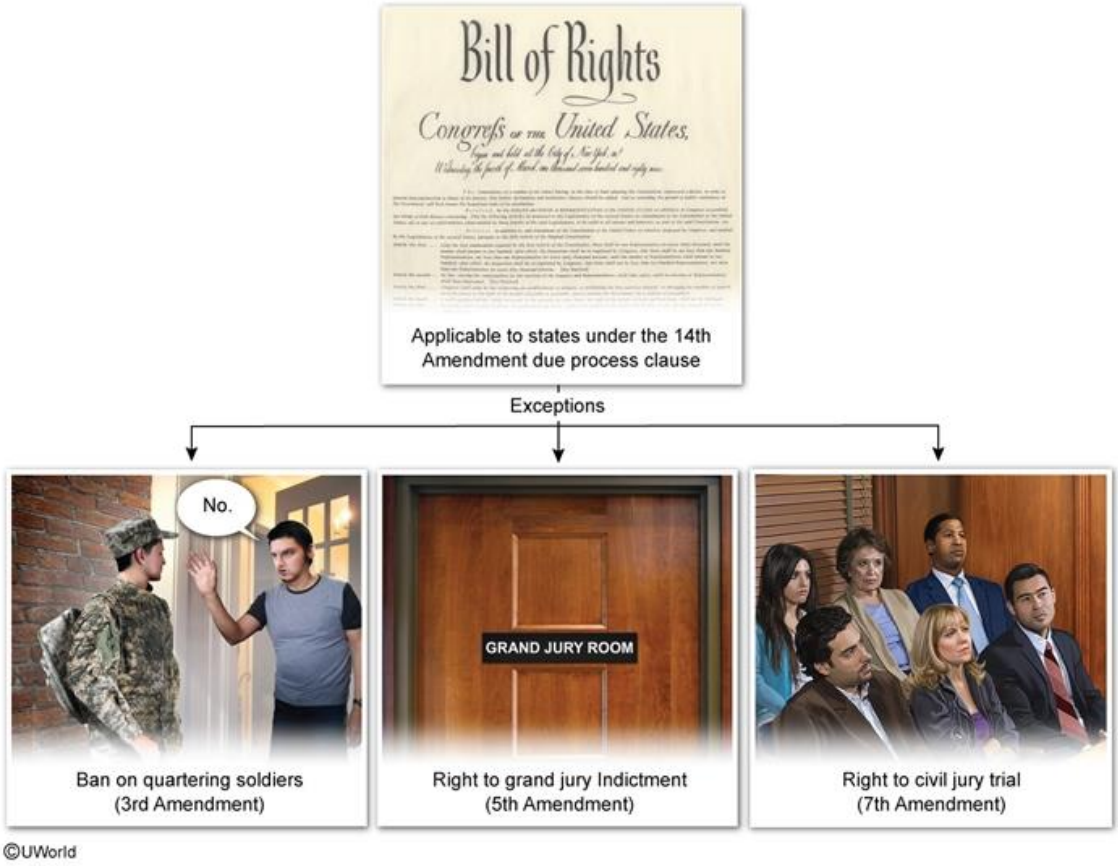
Most of the Bill of Rights protections, including the Eighth Amendment ban on excessive fines, apply with equal force to the states because they have been incorporated into the Fourteenth Amendment due process clause.

References

- Timbs v. Indiana, 139 S. Ct. 682, 687 (2019) (holding that the Eighth Amendment's ban on excessive fines applies to the states through the Fourteenth Amendment due process clause).

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Applicability of Bill of Rights to states



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A group of students at a state university's law school wished to debate the future of affirmative action in that state and at that law school. For this debate, the students requested the use of a meeting room in the law school that is available on a first-come, first-served basis for extracurricular student use. Speakers presenting all sides of the issue were scheduled to participate. The law school administration denied the use of its meeting room for this purpose solely because it believed that "such a debate, even if balanced, would have a negative effect on the morale of the law school community and might cause friction among the students that would disrupt the institution's educational mission."

Is the law school's denial of the use of its meeting room for this purpose likely constitutional?

A. No, because the law school cannot demonstrate that its action was necessary to serve a compelling state interest.

B. No, because the law school cannot demonstrate that its action was rationally related to a legitimate state interest.

C. Yes, because the law school's only concern was the adverse effect of such a discussion of affirmative action on the immediate audience and the mission of the institution.

D. Yes, because the law students do not have a right to use a state-owned law school facility for a meeting that is not organized and sponsored by the law school itself.

Explanation:

The **First Amendment** protects the right to free expression and encourages the free flow of ideas—even on government property. As a result, speech that occurs in a **public forum** cannot be regulated based on its message, subject, or ideas (ie, **content-based restriction**) unless that regulation meets **strict scrutiny**. This standard of constitutional review gives the government the nearly impossible burden of proving that the restriction is **necessary** to serve a **compelling government interest**.

Here, a state-owned law school has a meeting room that is *designated* for extracurricular student use. A student group asked to use the room to debate affirmative action. However, the school denied this request because it feared that the *content* of the debate would negatively affect the school. As a result, the denial is subject to strict scrutiny. And since this is such a difficult standard to meet, the denial is likely unconstitutional.

(Choice B) Rational basis scrutiny requires the challenger (eg, students) to demonstrate that the government's content-based restriction was not rationally related to any legitimate state interest and viewpoint neutral. But this standard of review only applies when the government restricts use of (1) a nonpublic forum or (2) a public forum for an undesignated purpose (eg, something other than extracurricular student use).

(Choice C) The debate's effect on the immediate audience and the mission of the institution are important—but not compelling—concerns for the state-owned school. But even if they were compelling, the denial was not necessary to achieve those interests.

(Choice D) The meeting room is a designated public forum available for extracurricular student use. Therefore, the students had the right to use the room for a meeting—regardless of whether it was organized or sponsored by the law school—for that limited purpose.

Educational objective:

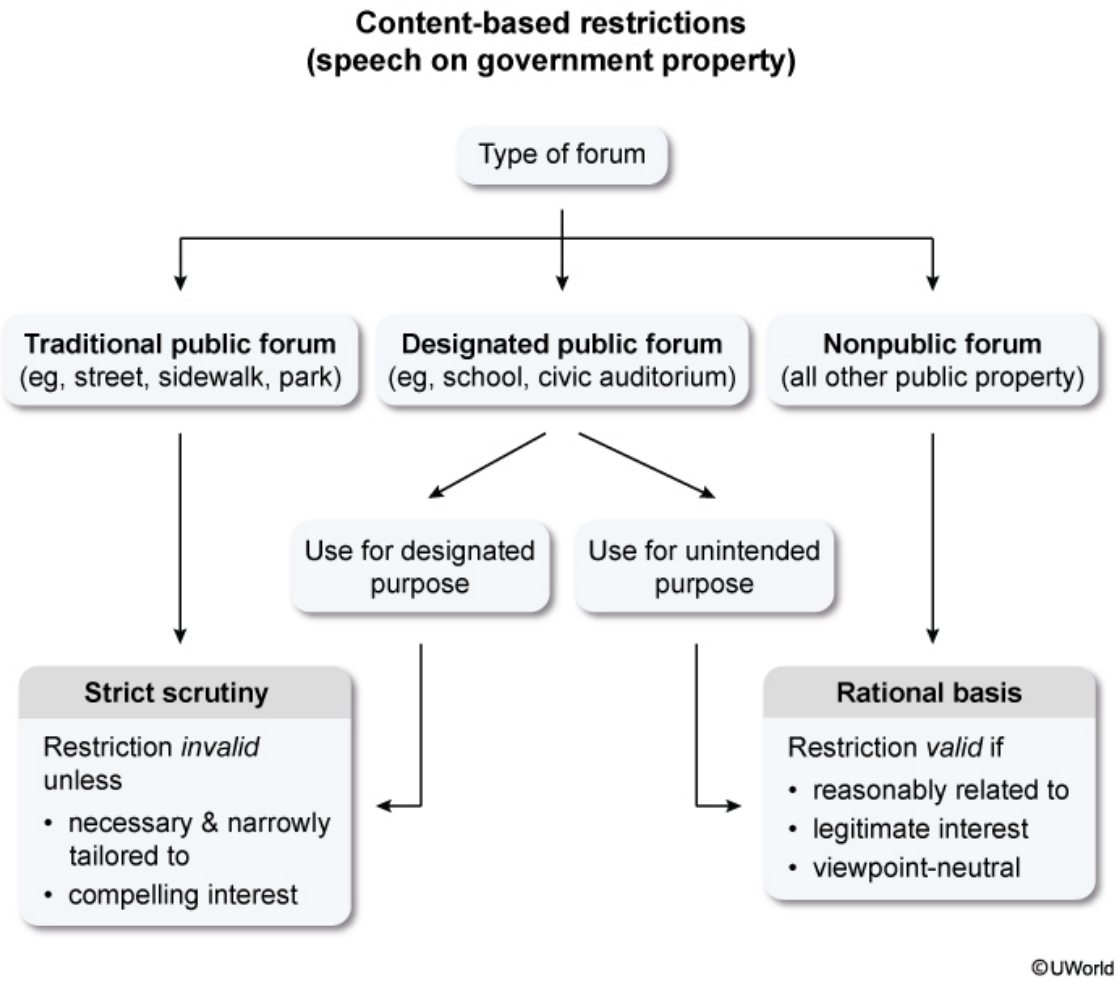
The government cannot impose content-based restrictions on speech in public forums unless it can satisfy strict scrutiny—ie, show that the restrictions are necessary to achieve a compelling government interest.

References

- Widmar v. Vincent, 454 U.S. 263, 269–70 (1981) (holding that a state university's exclusion of a religious student group from using university facilities is a content-based restriction on speech subject to strict scrutiny).

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Content-based restrictions
(speech on government property)
Type of forum
Traditional public forum
(eg, street, sidewalk, park)
Designated public forum
(eg, school, civic auditorium)
Nonpublic forum
(all other public property)
Use for designated purpose
Use for unintended purpose
Strict scrutiny
Restriction invalid unless
• necessary & narrowly tailored to
• compelling interest
Rational basis
Restriction valid if
• reasonably related to
• legitimate interest
• viewpoint-neutral
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In an effort to counteract a steep increase in juvenile crime, a state enacted a law terminating the parental rights of any state resident whose child under 16 years of age is convicted of a violent crime in the state. The law directs the state juvenile court to enter a termination order in such a case after the parent has been afforded notice and an opportunity for a hearing at which the only relevant issues are the age of the child and whether the child has been convicted of a violent crime in the state.

Is the state law constitutional?

A. No, because the law is not narrowly tailored to serve a substantial state interest.

B. No, because the law is not necessary to serve a compelling state interest.

C. Yes, because a state's police power authorizes it to punish criminal behavior with appropriate sanctions.

D. Yes, because the law is rationally related to a legitimate state interest.

Explanation:

Fundamental rights (**First VIP**)

(strict scrutiny)

- **First** Amendment freedoms
- **V**oting
- **I**nterstate travel
- **P**rivacy
  - Marriage / family
  - Parental rights
  - Sexual acts
  - Contraceptives

State laws that substantially impact a **fundamental right**—including parents' right to direct the upbringing of their children—can be challenged under the **Fourteenth Amendment** based on either:

- **substantive due process** – applies when a law affects **all people** (eg, everyone's fundamental parental rights) *or*
- **equal protection** – applies when a law affects a **specific class** of persons (eg, parents with children under 16 years of age).

Fundamental rights are highly protected under both clauses, and any law that substantially impacts these rights is unconstitutional unless it survives **strict scrutiny**. This standard of constitutional review requires the **state** to perform the nearly impossible task of showing that the **law is necessary** to serve a **compelling state interest**.

Here, the state law is subject to strict scrutiny because it terminates the fundamental parental rights of any resident whose child under 16 years of age is convicted of a violent crime. The law addresses the state's compelling interest in counteracting juvenile crime. But the law is not *necessary* to serve that interest because the state can do so with less restrictive measures—eg, creating diversion programs for at-risk youths. Therefore, the law is unconstitutional.

(Choice A) There is no standard of constitutional review that requires a law to be narrowly tailored to serve a *substantial* state interest.

(Choice C) The Tenth Amendment gives states any power that the Constitution does not expressly grant to the federal government—including the police power to punish criminal behavior with appropriate sanctions. But these sanctions must comport with other constitutional provisions—including the Fourteenth Amendment.

(Choice D) Most due process and equal protection challenges are subject to rational basis scrutiny, which requires the challenger to show that the law has no rational relation to any legitimate state interest. But when a law substantially impacts a fundamental right (as seen here), strict scrutiny is required.

Educational objective:

Under the Fourteenth Amendment due process and equal protection clauses, state laws that substantially impact a fundamental right (eg, parental rights) must satisfy strict scrutiny—ie, the law must be necessary to serve a compelling state interest.

References

- Meyer v. Nebraska, 262 U.S. 390, 399 (1923) (establishing parents' fundamental right to direct their children's upbringing).
- Troxel v. Granville, 530 U.S. 57, 65–66 (2000) (plurality opinion) (explaining that parents have a fundamental right "to make decisions concerning the care, custody, and control of their children").

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A woman belonged to a subversive organization that advocated for the United States to preemptively attack certain foreign countries. The organization usually used leafleting and public speeches to advance this view, but it sometimes engaged in violent demonstrations against the embassies and consuls of those countries. Although the woman had never participated in a violent demonstration, she was criminally prosecuted for being a member of the organization. In her defense, the woman claimed that her association with the organization was protected by the First Amendment.

Which of the following would the prosecution need to prove to overcome that defense?

A. The woman continued to provide material aid to the organization through the payment of dues after the violent demonstrations.

B. The woman expressed public support of the organization after the violent demonstrations.

C. The woman joined the organization with the specific intent of furthering its illegal activities.

D. The woman provided material aid to the organization through the payment of dues before the violent demonstrations.

Explanation:

Freedom of association

General rule	Infringing upon right to associate *barred* unless: • necessary to achieve compelling interest
Subversive organization	Punishing member of subversive organization *permitted* if person: • is active member • knows of organization's illegal objectives *and* • specifically intends to further them
Loyalty oath	Requiring loyalty oath for public employment *permitted* unless: • overbroad – infringes on constitutionally protected behavior *or* • vague – reasonable person would not understand oath
Forced inclusion	Interfering with organization's discriminatory policy *barred* unless: • no significant burden on organization's mission *and* • necessary to achieve compelling interest
Electoral process	Imposing restriction on electoral process: • ordinary – *permitted* if rationally related to legitimate interest • severe – *barred* unless necessary to achieve compelling interest

The **First Amendment** protects against government interference with a person's **right to associate** with *any* group or organization. But since this right is **not absolute**, the **government can punish** (ie, criminally prosecute or deny public employment to) persons who:

- are **active members** of a **subversive organization**
- know of the organization's **illegal objectives** *and*
- **specifically intend to further** those objectives.

Therefore, to overcome the woman's freedom-of-association defense, the prosecution would have to prove that she joined the subversive organization with the specific intent of furthering its illegal activities.

(Choices A & D) Payment of dues does not show that the woman was an *active* member of that organization since even passive (ie, nonparticipating) members pay dues.

(Choice B) The woman cannot be convicted for merely expressing public support for the organization. But she could be convicted for intentionally furthering its illegal objectives.

Educational objective:

The government can interfere with the First Amendment freedom of association by punishing persons who (1) are active members of a subversive organization, (2) know of the organization's illegal objectives, and (3) specifically intend to further those objectives.

References

- Scales v. United States, 367 U.S. 203, 229 (1961) (explaining when a person can be criminally prosecuted for membership in a subversive organization).

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According to a state law, state employees may be fired only "for good cause." A woman who was both a resident and an employee of the state was summarily fired on the sole ground that she had notified federal officials that the state was not following federal rules governing the administration of certain federally funded state programs on which she worked. The state denied the woman's request for a hearing to allow her to contest the charge. There is no record of any other state employee having been terminated for this reason.

In a suit to reinstate her employment, which of the following claims provides the LEAST support for the woman?

A. The state's firing of her unconstitutionally abridged her freedom of speech.

B. The state's firing of her unconstitutionally denied her a privilege or immunity of state citizenship protected by Article IV.

C. The state's firing of her violated the supremacy clause of Article VI, because it interfered with the enforcement of federal rules.

D. The state's firing of her without affording her an opportunity for a hearing was an unconstitutional denial of procedural due process.

Explanation:

Privileges & immunities clauses

Provision	Applicability
Article IV	• Discrimination against citizens of other states • Interference with right of *state* citizenship
Fourteenth Amendment	• Interference with right of *national* citizenship

The **Article IV privileges and immunities clause** prohibits states from **discriminating against citizens of *other* states** by denying them a **right of state citizenship**. But this clause does not apply here since (1) the woman is a resident (ie, citizen) of the state that fired her and (2) public employment is not a right of state citizenship. Therefore, this clause provides the *least* support for the woman in a suit to reinstate her employment.

(Choice A) The state fired the woman solely because she notified federal officials that the state was not complying with federal rules. As a result, that firing may have unconstitutionally abridged her right to free speech as a public employee.

(Choice C) The Article VI supremacy clause renders state action void when federal law preempts it—eg, when state action interferes with the achievement of federal objectives. Here, the state's firing of the woman for notifying federal officials that the state was not following federal rules likely interfered with the enforcement of those rules in violation of the supremacy clause.

(Choice D) The Fourteenth Amendment right to procedural due process requires states to give persons notice and a meaningful opportunity to be heard when depriving them of life, liberty, or property. And public employees who can only be fired for cause—like the woman—have a property interest in their jobs. Therefore, it was an unconstitutional denial of procedural due process to fire her without giving her an opportunity for a hearing.

Educational objective:

The Article IV privileges and immunities clause prohibits states from discriminating against citizens of other states by denying them a right of state citizenship.

References

- Paul v. Virginia, 75 U.S. 168, 180 (1869) (holding that the Article IV privileges and immunities clause only applies when a state discriminates against citizens of other states).

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A generally applicable state statute requires an autopsy by the county coroner in all cases of death that are not obviously of natural causes. The purpose of this law is to ensure the discovery and prosecution of all illegal activity resulting in death. In the 50 years since its enactment, the statute has been consistently enforced.

A married couple are sincere practicing members of a religion that maintains it is essential for a deceased person's body to be buried promptly and without any invasive procedures, including an autopsy. When the couple's son died of mysterious causes and an autopsy was scheduled, they filed an action in state court challenging the constitutionality of the state statute and seeking an injunction prohibiting the county coroner from performing an autopsy on their son's body. In this action, the couple claimed only that applying this statute in the circumstances of their son's death would violate their right to the free exercise of religion as guaranteed by the First and Fourteenth Amendments. Assume that no federal statutes are applicable.

Is the state's autopsy statute constitutional as applied to the couple?

A. No, because it is not necessary to vindicate a compelling state interest.

B. No, because it is not substantially related to an important state interest.

C. Yes, because a dead individual is not a person protected by the due process clause of the Fourteenth Amendment.

D. Yes, because it is a generally applicable statute and is rationally related to a legitimate state purpose.

Explanation:

The First Amendment, applicable to the states through the Fourteenth Amendment due process clause, protects an individual's **right to freely exercise** his/her **sincerely held religious beliefs**. Any government infringement on this right must satisfy the appropriate level of scrutiny, which depends on the **type of burden** imposed:

- **direct** (intentionally targets religion) – the burden is presumptively invalid and the state must prove that the burden is necessary to achieve a compelling state interest (ie, **strict scrutiny**)
- **incidental** (generally applies to all) – the burden is presumptively valid and the challenger must prove that the burden is not rationally related to any legitimate state interest (ie, **rational basis scrutiny**)

Here, the couple's sincere religious belief that bodies must be buried promptly and without any invasive procedures was burdened when the county coroner scheduled an autopsy of their son's body. But since a generally applicable state statute requires autopsies for *all* mysterious deaths like his, that burden is merely incidental. And since autopsies for suspicious deaths are rationally related to a legitimate state purpose—discovering and prosecuting illegal activity resulting in death—the statute is constitutional as applied to the couple.

(Choice A) Had the state *intentionally* targeted the couple's religion, the state would have needed to prove that the statute was necessary to vindicate a compelling state interest (ie, strict scrutiny).

(Choice B) Under the Fourteenth Amendment equal protection clause, laws that impact a quasi-suspect class must be substantially related to an important state interest (ie, intermediate scrutiny). But religion is not a quasi-suspect class, so this standard does not apply.

(Choice C) A dead individual is not protected by the Fourteenth Amendment due process clause. But the couple's challenge of the statute is based on their own constitutional rights—not those of their dead son.

Educational objective:

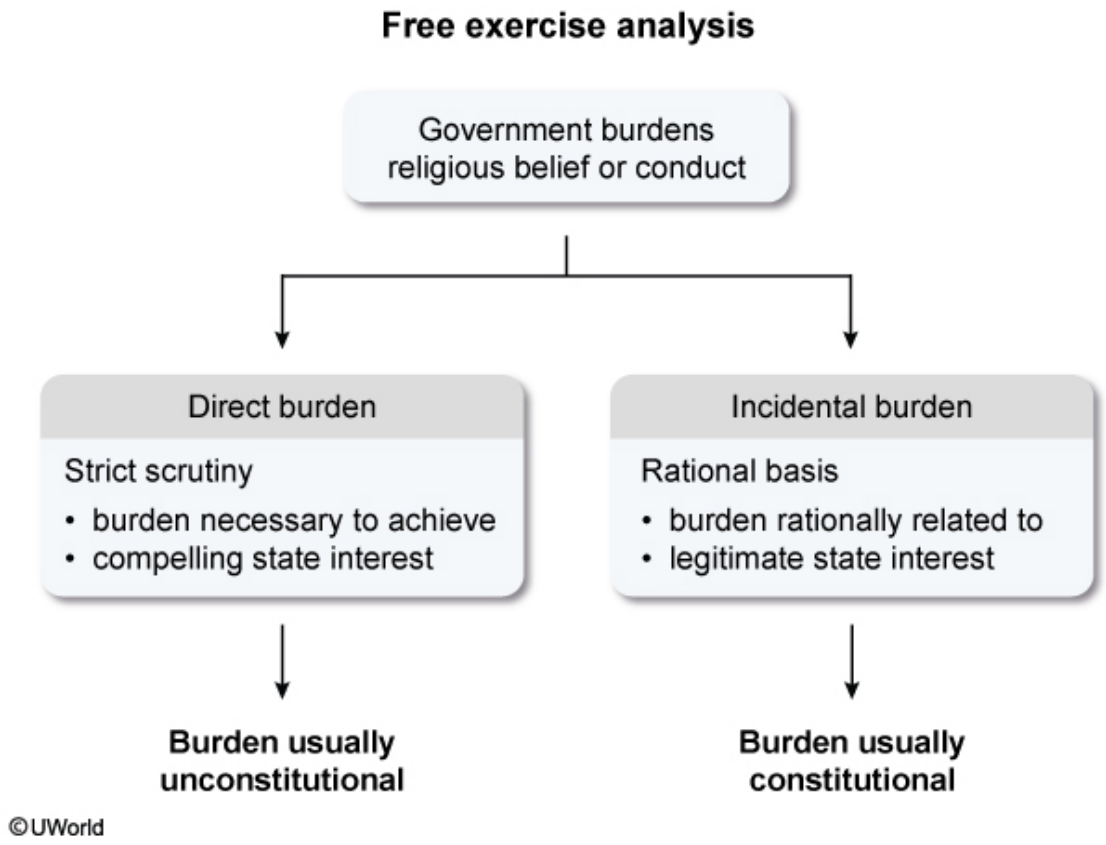
The First Amendment protects the right to freely exercise one's sincerely held religious beliefs. Direct burdens (which target religion) are almost always unconstitutional under strict scrutiny. But incidental burdens (which apply to all) are usually constitutional under rational basis scrutiny.

References

- Emp't Div. v. Smith, 494 U.S. 872, 885 (1990) (holding that a generally applicable regulation on conduct need not satisfy strict scrutiny to comply with the First Amendment free exercise clause).

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A state legislature enacted a statute to provide parental and student choice in education. The statute established a program that allocates taxpayer funds to private organizations that award scholarships to students for tuition at private or charter schools within the state. However, the statute expressly prohibits scholarship recipients from using the funds at any school controlled by a church, sect, or denomination.

A group of parents whose children were awarded tuition assistance through the program sought to use the funds at a private, religious school. The state denied the parents' request pursuant to the statutory provision. The parents have filed suit in federal district court to obtain an injunction, challenging the constitutionality of the provision.

Is the court likely to uphold the provision?

A. No, because the provision is an unconstitutional establishment of religion.

B. No, because the provision unconstitutionally restricts the parents' right to freely exercise their religious beliefs.

C. Yes, because the parents do not have standing.

D. Yes, because the Tenth Amendment gives the state legislature plenary power to appropriate state funds in the manner that it deems most conducive to the welfare of its people.

Explanation:

The First Amendment **free exercise clause** bars governments from enacting laws or policies that impose **burdens based on** an individual's **religious beliefs or conduct**. The **level of scrutiny** applied to such laws and policies **depends on whether** that burden was:

- **direct** (intentional) – triggering **strict scrutiny**, which invalidates a law unless the government proves that it is necessary to achieve a compelling government interest *or*

- **incidental** (generally applicable) – triggering **rational basis scrutiny**, which upholds a law unless the challenger proves that the law has no rational relation to any legitimate government interest.

Here, the statutory provision directly burdens religion because it intentionally prohibits scholarship recipients from using the funds at schools controlled by a church, sect, or denomination. Since the state has the nearly impossible task of satisfying strict scrutiny, this provision unconstitutionally restricts the parents' right to freely exercise their religious beliefs. As a result, the court is unlikely to uphold the provision.

(Choice A) The First Amendment establishment clause prohibits the government from expressing a religious preference or otherwise violating the separation of church and state. The statutory provision does not violate the establishment clause because it applies equally to all religious schools and promotes the separation of church and state.

(Choice C) The parents have standing since their right to direct the religious upbringing of their children was intentionally burdened (injury-in-fact) by the statutory provision (causation) and an injunction will provide relief (redressability).

(Choice D) Although the Tenth Amendment gives states the power to establish laws for the welfare, health, and safety of their people, that power is not plenary (ie, absolute). Instead, the state must comply with the other provisions of the U.S. Constitution (eg, free exercise clause) when exercising this power.

Educational objective:

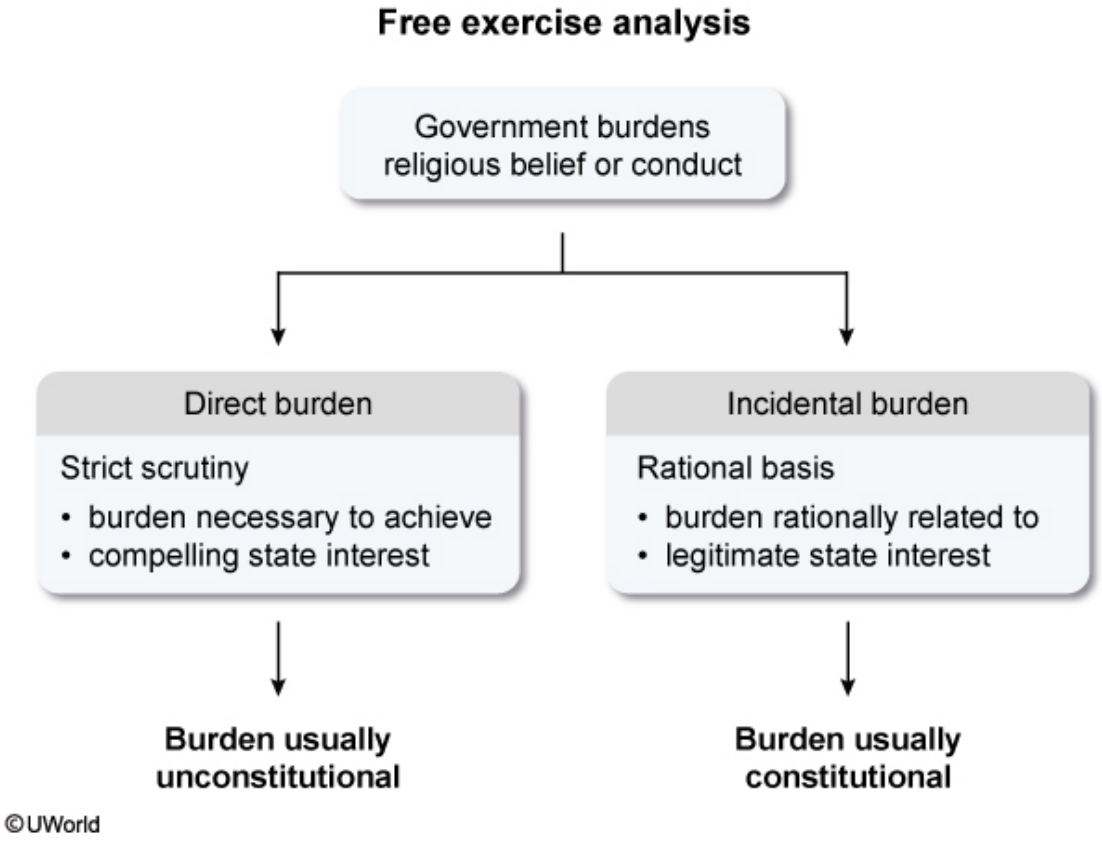
Direct burdens on the free exercise of religion are almost always invalidated under strict scrutiny, which requires the government to prove that the burden is necessary to achieve a compelling government interest.

References

- Emp't Div. v. Smith, 494 U.S. 872, 878–79 (1990) (establishing the direct/incidental burden test for the free exercise clause).

- Espinoza v. Mont. Dep't of Revenue, 140 S. Ct. 2246, 2261 (2020) (holding that a state cannot prohibit state-sponsored scholarships from being used at religious schools).

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An unconstrued state law prohibited the distribution within the state of "seditious propaganda." The state prosecuted United States Post Office letter carriers under this law for delivering propaganda from a foreign country to state residents.

Which of the following statements is an INACCURATE description of the state's law as applied to the letter carriers?

A. It is an unconstitutional bill of attainder.

B. It is void for vagueness.

C. It may not be applied to the letter carriers, because they are employees of a federal instrumentality carrying out an authorized function.

D. It unconstitutionally abridges rights protected by the First and Fourteenth Amendments.

Explanation:

Prohibited legislation

Bill of attainder clauses	Prohibit legislative acts that inflict *civil or criminal* punishment against identified persons (or groups of persons) without a trial
Ex post facto clauses	Prohibit enactment of retroactive *criminal* laws that: • criminalize previously legal conduct • impose greater punishment than previously prescribed • eliminate previously available defenses • decrease prosecution's previous burden of proof

The Constitution bars the federal and state governments from enacting **bills of attainder**—ie, legislative acts that **punish specified persons** (or an easily identifiable group of persons) **without a judicial trial**. Here, the state law prohibits the distribution of seditious propaganda by *all* persons—not just *specified* letter carriers. And since the state prosecuted the letter carriers under this law, it afforded them a trial prior to imposing any punishment. Therefore, the law is *not* an unconstitutional bill of attainder as applied to the letter carriers.

(Choice B) A law is void for vagueness if it fails to provide persons of ordinary intelligence with fair and reasonable notice of the prohibited conduct. Here, the law is unconstitutionally vague since it does not define "seditious propaganda" and the average person would not know what this term means.

(Choice C) States cannot regulate the federal government unless Congress consents. As a result, federal employees are immune from state laws that interfere with their obligation to carry out authorized functions of their employment. And since U.S. Post Office letter carriers are authorized by federal law to deliver mail, they would be immune from the state law prohibiting the distribution of seditious propaganda.

(Choice D) The First Amendment—applied to the states through the Fourteenth Amendment—protects individuals' right of expression, including the distribution of seditious propaganda. Seditious speech is unprotected and subject to punishment only when it is directed to incite imminent lawlessness and likely will do so. But since the state law prohibits the distribution of *all* seditious propaganda, it unconstitutionally abridges free expression.

Educational objective:

Bills of attainder are constitutionally prohibited legislative acts that punish *specified* persons—or an easily identifiable group of persons—without a trial. Therefore, laws that applies to *all* persons are not bills of attainder.

References

- U.S. Const. art. I, § 10 (prohibits states from enacting bills of attainder).
- United States v. Lovett, 328 U.S. 303, 315 (1946) (explaining that the Constitution prohibits bills of attainder).

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A city ordinance requires residents to keep firearms unloaded and disassembled while the firearms are located in their homes. The ordinance also requires residents to keep the disassembled firearm parts and any ammunition in separate safes. The purpose of the ordinance is to deter gun ownership by making it inconvenient to store firearms.

A resident of the city who owns and keeps firearms in her home for self-defense has filed suit against the city in a federal district court, arguing that the ordinance is unconstitutional.

Is the ordinance constitutional?

A. No, because the ordinance interferes with the right to use firearms for self-defense in one's home.

B. No, because the Second Amendment guarantees the absolute right to possess and use firearms.

C. Yes, because the ordinance is rationally related to a legitimate government purpose.

D. Yes, because the Second Amendment does not apply to municipal actions.

Explanation:

The **Second Amendment** generally prohibits government interference with an individual's **right to possess and use firearms** for a **traditionally lawful purpose** (eg, self-defense in one's home). This right is applicable to states and municipalities (eg, cities) through the Fourteenth Amendment due process clause **(Choice D)**.* However, this **right is not absolute (Choice B)**. Instead, SCOTUS has stated that certain government restrictions on firearms are permissible, including:

- banning unusually dangerous firearms (eg, grenades)
- imposing conditions and qualifications on commercial sales of firearms
- forbidding the possession of firearms by felons and mentally ill individuals *and*
- prohibiting the open carry of firearms in certain areas (eg, schools) or concealed carry of firearms in public.

Here, a city ordinance requires residents to keep firearms unloaded and disassembled while the firearms are in their homes. This restriction makes it virtually impossible for residents to use firearms for the traditionally lawful purpose of self-defense in their homes. That is because residents must reassemble and reload the firearm to use it, which means that residents would not be able to immediately defend themselves if needed. For that reason, and because the ordinance does not fall within the permitted government restrictions, the ordinance is unconstitutional.

*Every constitutional right applies to states and municipalities except (1) the Third Amendment ban on quartering soldiers in homes, (2) the Fifth Amendment requirement of a grand jury indictment for capital charges, and (3) the Seventh Amendment guarantee of a civil jury trial.

(Choice C) SCOTUS has never determined whether rational basis or strict scrutiny review applies to restrictions on the Second Amendment right to bear arms. Instead, such restrictions must not interfere with a traditionally lawful purpose for possessing and using firearms.

Educational objective:

The Second Amendment guarantees individuals the right to possess and use firearms for traditionally lawful purposes like self-defense in the home. However, this right is not absolute, so certain government restrictions are permissible—eg, banning certain types of firearms, prohibiting possession of firearms in certain places.

SCOTUS = Supreme Court of the United States.

References

- District of Columbia v. Heller, 554 U.S. 570, 635 (2008) (holding that the Second Amendment protects an individual's right to possess and use firearms for the traditionally lawful purpose of self-defense in the home).

- McDonald v. City of Chicago, 561 U.S. 742, 791 (2010) (holding that the Second Amendment is applicable to the states through the Fourteenth Amendment due process clause).

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A city filed eminent domain proceedings in order to obtain 40 beach houses fronting a particularly attractive stretch of shoreline. The city would pay the owners the fair market value of the properties. As part of an elaborate plan to increase the city's tourist trade and revive the local economy, the city planned to sell the beach houses to a company that would demolish the houses and build a luxury hotel in their place.

The owners of the beach houses have challenged the city's exercise of eminent domain, contending only that the city's plan is unconstitutional.

Will the owners of the beach houses be likely to prevail?

A. No, because a property owner can challenge an exercise of eminent domain only on the ground of the sufficiency of the compensation.

B. No, because the planned sale to the private developer to increase the tourist trade qualifies as a public use.

C. Yes, because a public entity cannot seize the property of one person in order to transfer that property intact to other private parties.

D. Yes, because the city's action would deprive the owners of all economic use of their property.

Explanation:

The Fifth Amendment **takings clause** requires the government to pay **just compensation** (ie, fair market value) when exercising its power of **eminent domain**—ie, taking private property for public use. **Public use** is broadly defined as any use that is **rationally related** to a **legitimate public purpose**.

Here, the city initiated eminent domain proceedings to seize 40 beachfront houses and plans to pay the owners the fair market value of their property. The city also plans to sell the houses to a company that will build a luxury hotel in their place. This planned sale qualifies as a public use because it is rationally related to the city's interest in increasing tourist trade and reviving the local economy. Therefore, the beach-house owners will likely fail.

(Choice A) A property owner can challenge an exercise of eminent domain on two grounds: (1) that the compensation is insufficient and (2) that the taking is not for a public use.

(Choice C) A public entity (eg, the city) *can* seize private property to transfer it—intact or otherwise—to other private parties if doing so would primarily benefit the public (eg, economic redevelopment).

(Choice D) The government commits a regulatory taking when its actions deprive an owner of all economically beneficial uses of the property—even when the owner retains possession of that property. But any taking is constitutional when, as here, property is taken for public use and the owners receive just compensation.

Educational objective:

The takings clause requires the government to pay just compensation when it exercises its eminent domain powers by taking private property for public use. Public use encompasses any use that is rationally related to a legitimate public purpose (eg, economic redevelopment).

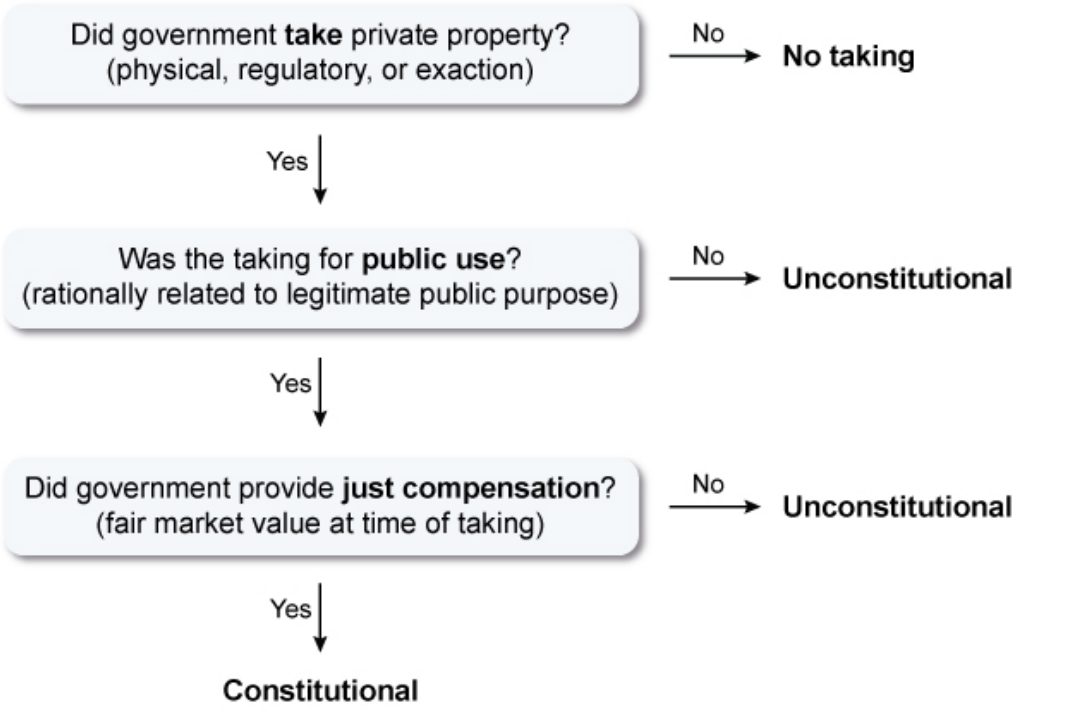
References

- Kelo v. City of New London, 545 U.S. 469, 488–89 (2005) (holding that a taking is for a public use when the government transfers private property to another private party as part of an economic redevelopment plan).
- 26 Am. Jur. 2d Eminent Domain § 44 (2019) (explaining that a taking is for a public use if it is rationally related to a legitimate public purpose).

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Fifth Amendment taking



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A clerical employee of a city water department was responsible for sending out water bills to customers. His work in this respect had always been satisfactory. The employee's sister ran in a recent election against the incumbent mayor, but she lost. The employee had supported his sister in the election campaign. After the mayor found out about this, she fired the employee solely because his support for the sister indicated that he was "disloyal" to the mayor. The city's charter provides that "all employees of the city work at the pleasure of the mayor."

Is the mayor's action constitutional?

A. No, because public employees have a property interest in their employment, which gives them a right to a hearing prior to discharge.

B. No, because the mayor's action violates the employee's right to freedom of expression and association.

C. Yes, because the employee has no property interest in his job since the city charter provides that he holds the job "at the pleasure of the mayor."

D. Yes, because the mayor may require members of her administration to be politically loyal to her.

Explanation:

First Amendment freedoms

Expression	Right to communicate information & ideas through speech or conduct
Association	Right to form or participate in any group or organization
Press	Right to publish truthful information
Religion	Free exercise – right to practice religion or no religion without government interference
	Establishment – prohibits government from favoring particular religion or religion generally

The **First Amendment** protects a person's (including a public employee's) right to **freedom of expression and association**. Political belief and association are the core of these protected activities. As a result, the government cannot **condition public employment** on a person's **political views or affiliations** unless these factors are **essential to effective performance** of the job in question (eg, policymaking position).

Here, the mayor fired a city water department employee for "disloyalty" after the employee supported his sister in an election against the mayor. But since the employee was merely responsible for sending out water bills to customers, his political views and affiliations were irrelevant to performing his job. Therefore, the mayor's action is an unconstitutional violation of the employee's right to freedom of expression and association.

(Choices A & C) Procedural due process guarantees persons a fair opportunity to be heard when the government deprives them of life, liberty, or property. And public employees have a property interest in their employment if they can only be fired *for cause*. But since this city's employees work "at the pleasure of the mayor," they do *not* have a property interest in their jobs. Nevertheless, the mayor's action violates the First Amendment.

(Choice D) The mayor may only require members of her administration to be politically loyal to her if that loyalty is essential to the effective performance of the job in question—eg, chief of staff (not clerical employee).

Educational objective:

The government cannot condition public employment on a person's political views or affiliations unless these factors are required for effective job performance.

References

- Rutan v. Republican Party, 497 U.S. 62, 75–76 (1990) (holding that the government cannot base employment-related decisions on political views or affiliations unless required for effective job performance).

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A state law provides that only U.S. citizens may serve as jurors in the state courts of that state. A woman who is a lawful resident noncitizen and who has resided in the state for many years was summoned for jury duty in a state court. The woman's name was selected from a list of potential jurors that was compiled from a comprehensive list of local residents. She was disqualified from service solely because she is not a U.S. citizen.

The woman has filed an action for a declaratory judgment that the state law is unconstitutional.

Who should prevail in this action?

A. The state, because a state may limit to U.S. citizens functions that are an integral part of the process of self-government.

B. The state, because jury service is a privilege, not a right, and therefore it is not a liberty interest protected by the due process clause of the Fourteenth Amendment.

C. The woman, because the Constitution gives Congress plenary power to make classifications with respect to noncitizens.

D. The woman, because the state has not articulated a legitimate reason for prohibiting resident noncitizens from serving as jurors in the state's courts.

Explanation:

State laws that discriminate against lawful residents of the United States based on their citizenship can be challenged under the Fourteenth Amendment equal protection clause. Since citizenship is a suspect class, such laws are generally subject to **strict scrutiny review*** and struck down.

However, a growing exception exists for state laws that restrict a noncitizen's participation in government functions that would allow (1) direct formulation, execution, or review of public policy or (2) exercise of broad discretion—eg, serving on a jury, voting, employment as a police officer or public school teacher. Under this **political-function exception**, such laws need only satisfy **rational basis scrutiny** and will be upheld unless the challenger proves that the law is not rationally related to any legitimate state interest.

Here, a state law discriminates against noncitizens by excluding them from jury service. And since jury service is a function that is an integral part of the process of self-government, the political-function exception applies. The law is rationally related to the state's legitimate interest in ensuring that only U.S. citizens have a direct effect on the functioning of the government **(Choice D)**. Therefore, the state should prevail.

*Because Congress has the power to regulate immigration, federal laws that discriminate based on citizenship are subject to rational basis review under the equal protection component of the Fifth Amendment.

(Choice B) The distinction between a privilege and a right is *never* relevant to a Fourteenth Amendment due process challenge. Additionally, the woman's claim will be analyzed under the equal protection clause since the challenged law denies jury service to some (but not all) persons.

(Choice C) Congress has plenary power (ie, exclusive authority) to make immigration law and policy. But states can still make classifications based on citizenship so long as they are constitutional (as seen here).

Educational objective:

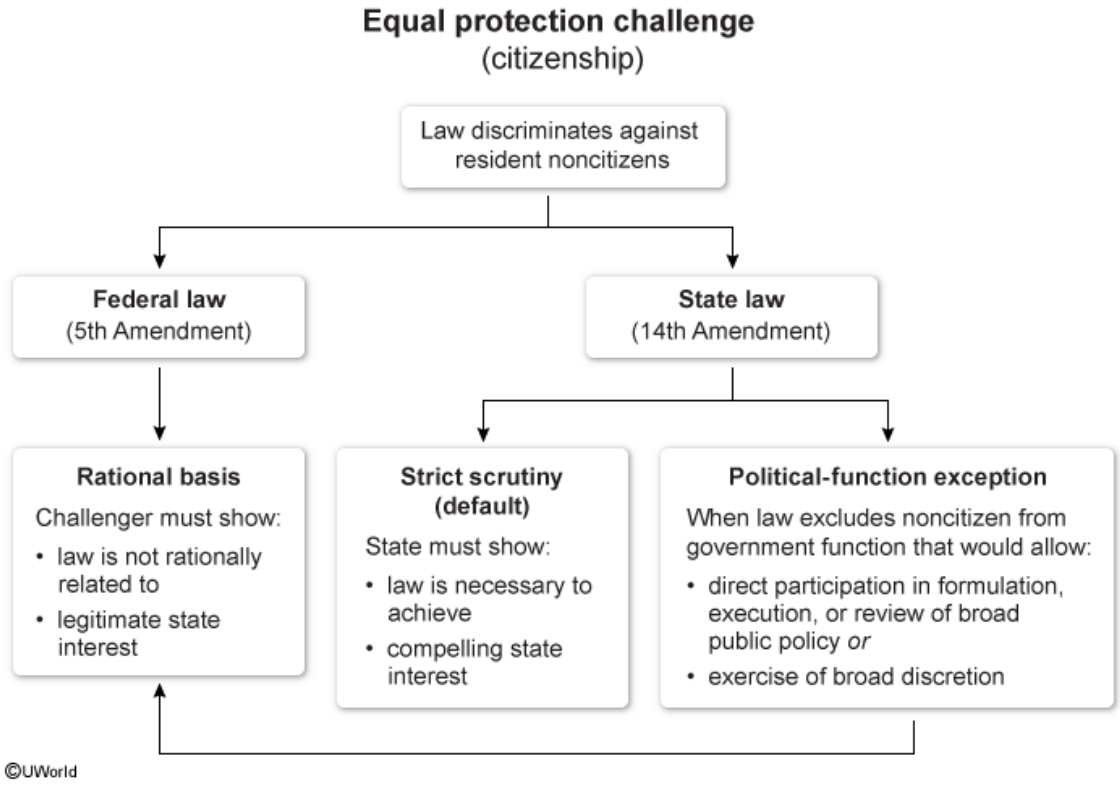
State laws that discriminate based on citizenship are generally subject to strict scrutiny. But under the political-function exception, rational basis scrutiny applies when such laws restrict a noncitizen's participation in government functions allowing the (1) direct formulation, execution, or review of public policy or (2) exercise of broad discretion.

References

- Bernal v. Fainter, 467 U.S. 216, 219–20 (1984) (holding that a state law discriminating against resident noncitizens is subject to strict scrutiny unless the political-function exception applies).

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A state enacted a statute that prohibited children born outside of marriage from receiving welfare benefits that the state provides to children who live in households below the federal poverty line. The purpose of the statute was to encourage individuals to get married before having children.

A man and his unmarried partner had a daughter out of wedlock. Before the man and his partner married, the partner died. The man's annual household income was below the federal poverty line, so he applied for welfare benefits on the daughter's behalf. The state agency overseeing the program denied the application based on the state statute.

The man filed suit in a federal district court, alleging that the state statute violates the equal protection clause.

Which of the following best states the burden of persuasion in the suit?

A. The agency must demonstrate that the state statute is substantially related to an important state interest.
B. The agency must demonstrate that the state statute is the least restrictive means to achieve a compelling state interest.
C. The man must demonstrate that the state statute is not substantially related to an important state interest.
D. The man must demonstrate that the state statute is not the least restrictive means to achieve a compelling state interest.

Explanation:

A state law that discriminates against similarly situated persons can be challenged under the Fourteenth Amendment **equal protection clause**. The standard under which a court will review this challenge depends on the alleged discrimination. A law that discriminates against a **quasi-suspect class** (eg, nonmarital birth) must satisfy **intermediate scrutiny**. This imposes a difficult **burden on the state** to prove that the law is **substantially related** to an **important state interest**.

Here, a state statute prohibits children born outside of marriage from receiving welfare benefits that the state provides to children who live in households below the federal poverty line. Since this statute discriminates against nonmarital children, the state agency overseeing the welfare program (not the man) has the burden to satisfy intermediate scrutiny **(Choice C)**. Therefore, the agency must demonstrate that the state statute is substantially related to an important state interest.

(Choices B & D) Strict scrutiny applies when a state law discriminates against a suspect class or substantially impacts a fundamental right. This highest level of scrutiny places the burden on the state (not the challenger) to prove that the law is the least restrictive means to achieve a compelling state interest. But since the state statute here discriminates against a quasi-suspect class, intermediate scrutiny applies.

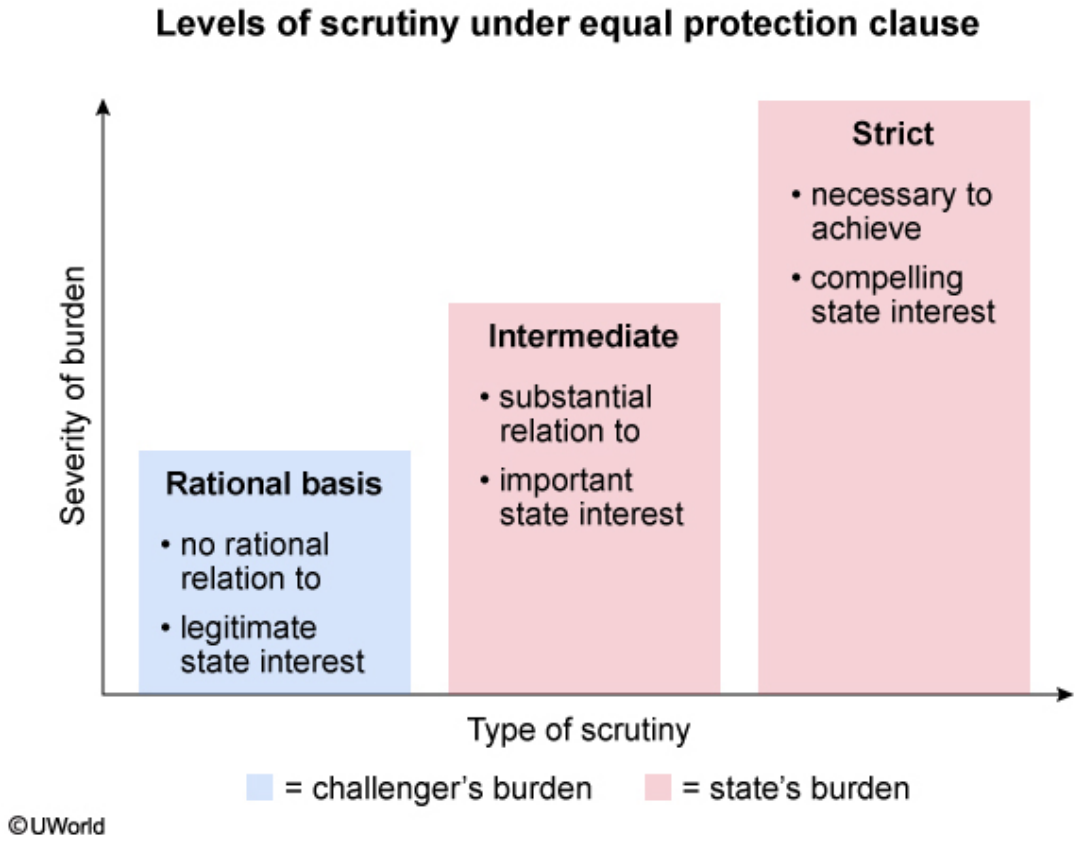
Educational objective:

A state law that discriminates against a quasi-suspect class (eg, nonmarital birth) must satisfy intermediate scrutiny, which imposes the burden on the state to prove that the law is substantially related to an important state interest.

References

- U.S. Const. amend. XIV (equal protection clause).
- Clark v. Jeter, 486 U.S. 456, 461 (1988) (holding that a law discriminating against nonmarital children is subject to intermediate scrutiny).

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Levels of scrutiny under equal protection clause
Severity of burden
Rational basis
• no rational relation to
• legitimate state interest
Intermediate
• substantial relation to
• important state interest
Strict
• necessary to achieve
• compelling state interest
Type of scrutiny
= challenger's burden
= state's burden
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A federal criminal law imposes penalties for the intentional publication of communications by individuals who know or have reason to know that the communications were unlawfully recorded.

A teachers' union and school board were engaged in contentious negotiations over a collective-bargaining agreement. One of the members of the teachers' union unlawfully placed a wiretap on the president of the school board's telephone. The teachers' union member anonymously sent the recordings of several of the president's phone conversations about the negotiations to a local radio talk show host. The talk show host received the recordings in a box with no return address, sender information, or label. After listening to the recordings, the talk show host played them on her show. In the conversations, the president made several derogatory and embarrassing remarks.

A prosecutor subsequently filed charges against the radio talk show host for playing the recordings on her show in violation of the federal law. The radio talk show host claims that the federal law is unconstitutional.

Is the prosecution of the radio talk show host under the federal law likely constitutional?

A. No, because the federal law is a prior restraint.

B. No, because the host did not unlawfully obtain the recordings and does not know who did.

C. Yes, because private phone conversations are not a matter of public concern.

D. Yes, because the host knew that the recordings were unlawfully obtained.

Explanation:

The **First Amendment** shields the media from criminal and civil liability for publishing *lawfully* obtained private facts (eg, crime victim's identity) and other truthful information involving matters of public concern (ie, newsworthy events). This amendment also **shields the media from liability** for **publishing truthful information** that is ***unlawfully* obtained by a third party** if:

- the information involves a **matter of public concern** *and*
- the **publisher neither obtained it unlawfully** nor **knows who did**.

Here, the federal government prosecuted the radio talk show host for publishing the recordings of the school board president's phone conversations, which were unlawfully obtained by a member of the teachers' union. The conversations involve a matter of public concern since they relate to the ongoing collective-bargaining negotiations. Additionally, the host did not unlawfully obtain the recordings herself and did not know the member who anonymously sent them to her. Therefore, the prosecution is likely unconstitutional.

(Choice A) A prior restraint is a government action (eg, an injunction) that prohibits a publication *before* it occurs. Since the federal law here penalizes a publication *after* it occurs, it is not a prior restraint.

(Choice C) The phone conversations *are* a matter of public concern because public and private statements about collective-bargaining negotiations between a school board and a teachers' union are newsworthy.

(Choice D) The host may have had reason to believe that the recordings were unlawfully obtained. However, she did not unlawfully obtain them herself or know who did because they were sent in box with no return address, sender information, or label. Therefore, she had the right to publish the information without punishment.

Educational objective:

The First Amendment shields the media from liability for publishing truthful information that was unlawfully obtained by a third party if (1) the information involves a matter of public concern and (2) the publisher neither obtained it unlawfully nor knows who did.

References

- Bartnicki v. Vopper, 532 U.S. 514, 535 (2001) (holding that the First Amendment prevents liability for the publication of truthful information about a matter of public concern unlawfully obtained by an unknown third party).

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A federal law prohibits individuals and corporations from making independent expenditures that support or oppose specific candidates for federal elective office. The purpose of the law is to prevent quid pro quo corruption in the federal government.

A steel manufacturer broadcast a television ad in support of a federal congressional candidate who favors placing tariffs on imported steel. The manufacturer has filed an action in federal district court that challenges the law's constitutionality.

Should the court uphold the law's constitutionality?

A. No, because political speech cannot be banned or restricted as a categorical matter.

B. No, because the law is not the least restrictive means to achieve the federal government's compelling interest in preventing quid pro quo corruption.

C. Yes, because campaign expenditures are not speech protected by the First Amendment.

D. Yes, because the law is closely drawn to serving the federal government's important interest in preventing quid pro quo corruption.

Explanation:

Campaign-finance restrictions

	Examples	Test
Contribution restrictions	• Limit on amount of contribution to: – single candidate – political candidates, parties & action committees combined • Increase of limit on amount of contribution to candidate when self-financed opponent exceeds certain spending amount	Intermediate scrutiny • closely drawn/substantially related to important government interest
Expenditure restrictions	• Limit on spending by: – corporations or unions in support of or opposition to candidate – candidate on his/her own behalf	Strict scrutiny • necessary/least restrictive means to achieve compelling government interest

Political speech, including campaign contributions and expenditures, is a core right protected by the **First Amendment (Choice C)**. However, this category of speech is still subject to government restrictions that satisfy the appropriate level of scrutiny **(Choice A)**. Restrictions on **campaign expenditures** impose a substantial burden on political speech and must therefore survive **strict scrutiny**. This gives the government the nearly impossible burden of proving that its restriction is the **least restrictive means** to achieve a **compelling government interest**.

Here, the federal law prohibits individuals and corporations from making independent campaign expenditures that support or oppose a specific candidate for federal elective office. The government likely has a compelling interest in preventing quid pro quo corruption. However, this prohibition is not the least restrictive means to achieve that interest. For example, the government can require that the identity of the individual or corporation expending the money be disclosed. Therefore, the law is unconstitutional and the court should not uphold it.*

*Government restrictions that limit how much a candidate can spend on his/her own behalf are also unconstitutional. That is because the government's interest in preventing quid pro quo corruption or the appearance of it are absent when a candidate spends his/her own money.

(Choice D) A government restriction on campaign *contributions* must satisfy intermediate scrutiny—ie, the government must show that its restriction is closely drawn to serve an important government interest. However, this law restricts campaign *expenditures*, so the federal government must satisfy the more exacting strict scrutiny.

Educational objective:

The First Amendment protects political speech, including campaign contributions and expenditures. A government restriction on campaign expenditures is unconstitutional unless the government satisfies strict scrutiny by showing that the restriction is the least restrictive means to serve a compelling government interest.

References

- Citizens United v. Fed. Election Comm'n, 558 U.S. 310, 360–61 (2010) (holding that limits on independent campaign expenditures made by corporations violate the First Amendment and are unconstitutional).
- 16A Am. Jur. 2d Constitutional Law § 489 (2020) (explaining the constitutionality of campaign finance regulations).

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Twenty percent of a city's residents are members of minority racial groups. These residents are evenly distributed among the many different residential areas of the city. The five city council members of the city are elected from five single-member electoral districts that are nearly equally populated. No member of a minority racial group has ever been elected to the city council.

A group of citizens who are members of minority racial groups files suit in federal district court seeking a declaratory judgment that the single-member districts in the city are unconstitutional. The group claims that the single-member districting system in that city diminishes the ability of voters who are members of minority racial groups to affect the outcome of city elections. The group seeks an order from the court forcing the city to adopt an at-large election system in which the five candidates with the greatest vote totals would be elected to the city council. No state or federal statutes are applicable to the resolution of this suit.

Which of the following constitutional provisions provides the most obvious basis for the group's claim in this suit?

A. The due process clause of the Fourteenth Amendment.

B. The Fifteenth Amendment.

C. The privileges or immunities clause of the Fourteenth Amendment.

D. The Thirteenth Amendment.

Explanation:

Voting protections

14th Amendment	Prohibits substantial impairment of voting rights
15th Amendment	Prohibits denial or abridgment of voting rights based on race, color, previous servitude
19th Amendment	Prohibits denial or abridgment of voting rights based on sex
24th Amendment	Abolishes poll taxes
26th Amendment	Establishes right to vote at 18 years old

The **Fifteenth Amendment prohibits** state and federal governments from **abridging the right to vote**—which includes the right to have that vote meaningfully counted—on the basis of **race, color, or previous condition of servitude**. As a result, the Fifteenth Amendment provides a basis to challenge both:

- **direct limitations** on the ability to register to vote or cast a ballot (eg, only whites are allowed to vote) *and*
- **dilutions of voting power** (eg, districting system purposely limits minority voters' ability to affect election outcomes).

Here, the group of citizens is challenging the city's districting system on the ground that it diminishes the ability of racial minority voters to affect the outcome of city elections. Since this alleges dilution of voting power based on race, the Fifteenth Amendment provides the *most* obvious basis for the group's claim.

(Choice A) The group could base its claim on the Fourteenth Amendment due process clause, which prohibits states from infringing upon a life, liberty, or property interest (eg, the right to vote) without adequate justification. But since the Fifteenth Amendment specifically prohibits a denial of voting rights based on race (as alleged here), it provides a *more* obvious basis for the group's claim.

(Choice C) The Fourteenth Amendment privileges or immunities clause prohibits states from interfering with the very limited rights of national citizenship—eg, the right to vote for *national* offices. But since the group's claim concerns *city council* elections, no right of national citizenship is at stake.

(Choice D) The Thirteenth Amendment prohibits both government and private actors from engaging in slavery or involuntary servitude—neither of which is at issue here.

Educational objective:

The Fifteenth Amendment prohibits state and federal governments from abridging the right to vote—by direct limitation or diluting voting power—on the basis of race, color, or previous condition of servitude.

References

- Allen v. State Bd. of Elections, 393 U.S. 544, 569 (1969) (explaining that the "right to vote can be affected by a dilution of voting power as well as by an absolute prohibition on casting a ballot").

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A federal law requires cable television providers to carry local broadcast television stations as part of the television programming they provide to subscribers. The purpose of the federal law is to preserve the economic viability of local broadcast television, which has suffered a significant decline in viewers and revenue due to the increased demand for cable television.

A cable television provider that refuses to carry local broadcast television stations has filed an action in a federal district court that challenges the federal law. The provider argues that the law is unconstitutional.

Is this federal law constitutional?

A. No, because the federal government cannot regulate the content of cable television.

B. No, because there are less restrictive means to preserve the economic viability of local broadcast television stations.

C. Yes, because the cable television provider cannot show that the federal law does not directly advance an important government interest.

D. Yes, because the federal law preserves the economic viability of local broadcast television without being substantially more restrictive than necessary.

Explanation:

The First Amendment protects the right to freely communicate information and ideas, including those transmitted by cable television. As a result, a **government regulation of cable television** is subject to strict scrutiny if it is content-based—ie, targets the message being conveyed. However, a regulation is subject to less strenuous **intermediate scrutiny** if it is **content-neutral**—ie, targets the manner of operations. Intermediate scrutiny requires the government to prove that its regulation:

- directly advances an **important government interest** *and*
- is **not substantially more restrictive than necessary** to serve that interest.

Here, the federal law requires cable providers to carry local broadcast television stations. This requirement is content-neutral since it regulates the providers' manner of operations—not the content of their programming. SCOTUS has held that Congress has an important interest in preserving the economic viability of local broadcast television stations. And since the federal law directly advances this interest without being substantially more restrictive than necessary, the law satisfies intermediate scrutiny and is constitutional.

(Choice A) The federal government *can* regulate the content of cable television if the regulation satisfies strict scrutiny. Additionally, the federal law here does not regulate the content of cable television but is merely a content-neutral regulation.

(Choice B) There may be *less* restrictive means available to preserve the economic viability of local broadcast television stations (eg, providing them with subsidies). However, intermediate scrutiny only requires that the regulation not be substantially *more* restrictive than necessary to achieve an important government interest.

(Choice C) Intermediate scrutiny places the burden on the government, not the challenger, to show that its content-neutral regulation directly advances an important government interest.

Educational objective:

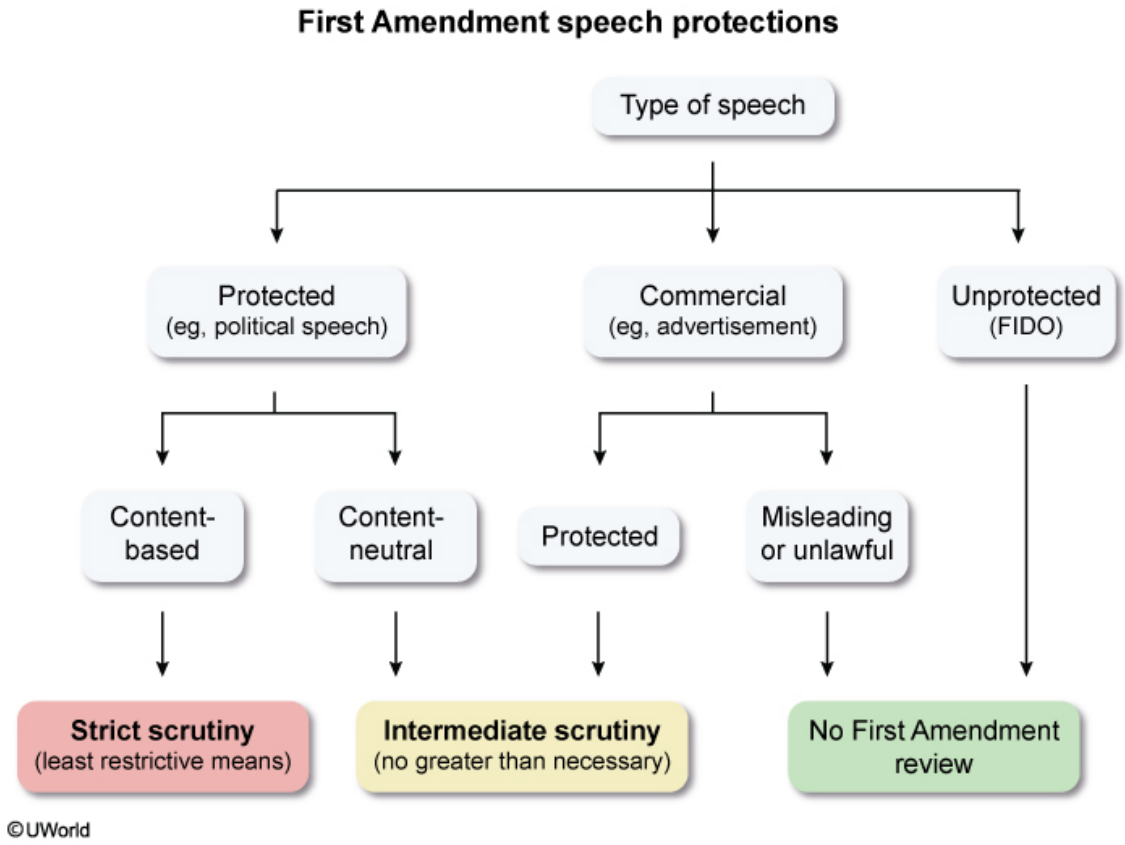
Content-neutral regulations of speech, including speech transmitted by cable television, are constitutional if they satisfy intermediate scrutiny. This requires the government to prove that the regulation (1) directly advances an important government interest and (2) is not substantially more restrictive than necessary to serve that interest.

SCOTUS = Supreme Court of the United States.

References

- Turner Broad. Sys., Inc. v. Fed. Commc'ns Comm'n, 512 U.S. 622, 662 (1994) (holding that a federal law requiring cable providers to carry local broadcast television is a content-neutral regulation subject to intermediate scrutiny).

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A professional motorcycle rider put on a performance in a privately owned stadium during which he leaped his motorcycle over 21 automobiles. Spectators were charged $5 each to view the jump and were prohibited from using cameras. However, the local television station filmed the whole event from within the stadium without the rider's knowledge or consent and showed the film in its entirety on the evening newscast that day.

The rider thereafter brought suit to recover damages from the station for the admittedly unauthorized filming and broadcasting of the performance. The television station raised only constitutional defenses.

How should the court rule on the rider's suit?

A. Find the station liable, because its action deprives the rider of his property without due process.

B. Find the station liable, because the First and Fourteenth Amendments do not deprive an entertainer of the commercial value of his or her performances.

C. Hold against the rider, because news broadcasts are absolutely privileged under the First and Fourteenth Amendments.

D. Hold against the rider, because the First and Fourteenth Amendments authorize press coverage of newsworthy entertainment events.

Explanation:

The First Amendment—applicable to the states through the Fourteenth Amendment—protects the **right to publish** lawfully obtained and truthful information about **matters of public significance** (ie, newsworthy events). But this right is not unlimited and must be balanced against the **right to publicity**—ie, the right to control or commercially benefit from one's own name, likeness, or other intimately associated qualities.

Here, the station published the rider's entire performance—a newsworthy event—on its evening newscast without the rider's consent. That newscast deprived the rider of the commercial value of his performance since people are less likely to pay to see what they can now view for free. Therefore, the First and Fourteenth Amendments offer the station no protection, and the court should find the station liable.

(Choice A) The Fourteenth Amendment prohibits the *government* from depriving an individual of life, liberty, or property without due process. But since the television station is a *private* entity, it is not required to provide due process.

(Choice C) Some news broadcasts are absolutely privileged under the First and Fourteenth Amendments—eg, shows broadcast with the entertainer's consent—and shield the broadcaster from liability for interfering with another's right to publicity (ie, invasion of privacy). But no absolute privilege applies to the newscast at issue here.

(Choice D) The First and Fourteenth Amendments authorize *some* press coverage of newsworthy entertainment events. But they do not authorize the unapproved broadcasting of an *entire* event because that would seriously infringe upon the entertainer's right to publicity.

Educational objective:

There is a First Amendment right to report on newsworthy events. But there is no right to publish an entertainer's entire act without his/her consent since that would seriously infringe upon the entertainer's right to publicity.

References

- Zacchini v. Scripps-Howard Broad. Co., 433 U.S. 562, 578 (1977) (holding that the press does not have a First Amendment right to broadcast the entirety of a private individual's performance).

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A state statute declares that after five years of continuous service in their positions all state employees, including faculty members at the state university, are entitled to retain their positions during "good behavior." The statute also contains a number of procedural provisions. Any state employee who is dismissed after that five-year period must be given reasons for the dismissal before it takes effect. In addition, such an employee must, upon request, be granted a post-dismissal hearing before an administrative board to seek reinstatement and back pay. The statute precludes any other hearing or opportunity to respond to the charges. That post-dismissal hearing must occur within six months after the dismissal takes effect. The burden of proof at such a hearing is on the state, and the board may uphold the dismissal only if it is supported by a preponderance of the evidence. An employee who is dissatisfied with a decision of the board after a hearing may appeal its decision to the state courts. The provisions of this statute are inseverable.

A teacher who had been employed continuously for seven years as a faculty member at the state university was dismissed. A week before the dismissal took effect, she was informed that she was being dismissed because of a charge that she accepted a bribe from a student in return for raising the student's final grade in her course. At that time, she requested an immediate hearing to contest the propriety of her dismissal.

Three months after her dismissal, she was granted a hearing before the state administrative board. The board upheld her dismissal, finding that the charge against her was supported by a preponderance of the evidence presented at the hearing.

The teacher did not appeal the decision of the state administrative board to the state courts. Instead, she sought a declaratory judgment in federal district court to the effect that the state statute prescribing the procedures for her dismissal violates the United States Constitution.

In this case, how should the federal district court rule?

A. Dismiss the suit, because a claim that a state statute is unconstitutional is not ripe for adjudication by a federal court until all judicial remedies in state courts provided for by state law have been exhausted.

B. Hold that the statute is constitutional, because the due process clause of the Fourteenth Amendment entitles state employees who have a right to their jobs during good behavior only to a statement of reasons for their dismissal and an opportunity for a post-dismissal hearing.

C. Hold that the statute is unconstitutional, because a state may not ordinarily deprive an employee of a property interest in a job without giving the employee an opportunity for some kind of a pre-dismissal hearing to respond to the charges against that employee.

D. Hold that the statute is unconstitutional, because the due process clause of the Fourteenth Amendment requires a state to demonstrate beyond a reasonable doubt the facts constituting good cause for termination of a state employee.

Explanation:

Deprivation of public employment

Type	Due process requirements
Termination (serious)	• Notice of alleged misconduct • Pre-termination opportunity to respond to allegation • Post-termination evidentiary hearing
Suspension without pay (less serious)	• Notice of alleged misconduct • Prompt post-suspension evidentiary hearing

When a state attempts to deprive an individual of life, liberty, or property, the Fourteenth Amendment requires that the state provide **procedural due process**. To determine the process due, courts balance the government's interest against the individual's interest. And since a **public employee** who can only be terminated for cause has a **property interest** in such employment—and termination is a serious deprivation of that interest—due process requires that the employee receive:

- **notice** of his/her alleged misconduct
- a **pre-termination opportunity to respond** to that allegation *and*
- a **post-termination evidentiary hearing** to determine if the termination was warranted.

Here, the state-university teacher had a property interest in her job because she was entitled to retain her position during "good behavior" and could only be terminated for cause. The university provided the teacher with notice and a post-termination evidentiary hearing. But since the statute precludes any other hearing or opportunity to respond to the charge, she did not have a pre-termination opportunity to respond. Therefore, the court should hold that the statute violates due process **(Choice B)**.

(Choice A) Under the doctrine of administrative remedies, a constitutional claim is not ripe for adjudication until the plaintiff has exhausted all *administrative* remedies provided by law. But this doctrine does not require plaintiffs to exhaust all state *judicial* remedies before proceeding to federal court.

(Choice D) Due process does not require a state to prove good cause for terminating an employee. And even if a state chooses to require good cause, due process does not require the state to prove it beyond a reasonable doubt.

Educational objective:

When a public employee can only be fired for cause, procedural due process generally requires that the employee receive (1) notice of any alleged misconduct, (2) a pre-

termination hearing to respond to the allegation, and (3) a post-termination evidentiary hearing to determine if the dismissal was warranted.

References

- Cleveland Bd. of Educ. v. Loudermill, 470 U.S. 532, 542–46 (1985) (explaining the process due when the government terminates a public employee who can only be fired for cause).

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In order to foster an environment conducive to learning, a school board enacted a dress code that prohibited all public high school students from wearing in school shorts cut above the knee. Because female students at the school considered it unfashionable to wear shorts cut at or below the knee, they no longer wore shorts to school. On the other hand, male students at the school regularly wore shorts cut at or below the knee because they considered such shorts to be fashionable.

Female students sued to challenge the constitutionality of the dress code on the ground that it denied them the equal protection of the laws.

Should the court uphold the dress code?

A. No, because the dress code is not necessary to further a compelling state interest.
B. No, because the dress code is not substantially related to an important state interest.
C. Yes, because the dress code is narrowly tailored to further an important state interest.
D. Yes, because the dress code is rationally related to a legitimate state interest.

Explanation:

Types of discrimination

Type	Description	Proof of intent
Facially discriminatory	• Language of law distinguishes between classes of persons • Eg, law states "all state employees must be male"	• Discriminatory intent presumed
Discriminatory application	• Facially neutral law applied differently to different classes of persons • Eg, state hires only male applicants	• Purposeful discrimination • Eg, female applicants equally qualified
Discriminatory impact	• Law neutral on its face & in its application, but disproportionately impacts particular class • Eg, 6' height requirement mostly affects female applicants	• Purposeful discrimination • Eg, legislative history shows intent to exclude female applicants

Discriminatory government regulations are permissible so long as they withstand **equal protection** review. The **default standard** is **rational basis** review, which requires the challenging party to show that the regulation is not rationally related to any legitimate government interest. But a **heightened standard** of review applies when the challenger proves that the government **intentionally discriminated** against a **quasi-suspect class** **or** **suspect class** (or substantially impacted a fundamental right).

Here, the dress code is not facially discriminatory since it applies to "all public high school students." Nor is it discriminatory in its application since the dress code is applied equally to male and female students. And though it has a discriminatory impact on female students, there is no evidence that the school board *intentionally* targeted that quasi-suspect class. Therefore, the court will apply rational basis review and uphold the dress code since it is rationally related to the school's legitimate interest in fostering an environment conducive to learning.

(Choice A) Proof that a regulation is necessary to further a compelling state interest (ie, strict scrutiny) is required when the regulation intentionally discriminates against a suspect class or substantially impacts a fundamental right—neither of which is implicated here.

(Choice B) A regulation must be substantially related to an important state interest (ie, intermediate scrutiny) when the regulation *intentionally* discriminates against a quasi-suspect class (ie, sex/gender, legitimacy). Here, the dress code may discriminate based on gender, but that discrimination was not intentional.

(Choice C) There is no level of scrutiny requiring that a regulation be *narrowly tailored* to further an *important* state interest.

Educational objective:

A law that discriminates—on its face, in its application, or in its impact—against a quasi-suspect class or suspect class will only be subject to heightened scrutiny if the government engaged in *intentional* discrimination.

References

- Washington v. Davis, 426 U.S. 229, 242 (1976) (laws that disproportionately impact a protected class are unconstitutional if the government acted intentionally).

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A city passed an ordinance requiring individuals to obtain a license in order to care for children under the age of 12 for pay. City officials who promoted the ordinance said that the licensing process would ensure that child-care workers were adequately regulated for the health and safety of the city's children. To receive a license, the ordinance requires an individual to complete 10 hours of instruction in child care, undergo a background check, and pay a $100 fee. The ordinance affects women disproportionately to men, because female child-care workers far outnumber male child-care workers in the city.

Is the ordinance constitutional?

A. No, because it has a disparate impact on women without a showing that the ordinance is necessary to serve a compelling government interest.

B. No, because it infringes on the freedom of contract without a compelling government interest.

C. Yes, because any burden it imposes is clearly outweighed by an important government objective.

D. Yes, because it is rationally related to a legitimate government objective.

Explanation:

Discriminatory laws challenged under the **equal protection clause** are generally subject to rational basis scrutiny, which requires that a law be **rationally related** to a **legitimate government objective**. But heightened scrutiny is used when a law (1) substantially impacts a fundamental right or (2) **intentionally discriminates** against a suspect or quasi-suspect class. Intentional discrimination can be seen on a law's:

- **face** – the language of the law distinguishes between different classes (intent *presumed*)
- **application** – a facially neutral law is *purposefully* applied differently to different classes *or*
- **motive** – an otherwise neutral law was *enacted* to disproportionately impact a protected class.

Here, although the ordinance disproportionately affects women (quasi-suspect class), it is not subject to heightened scrutiny since there is no evidence that this discrimination was *intentional*. That is because the ordinance:

- requires that *all* child-care workers obtain a license (no facial discrimination)
- is applied *equally* to men and women (no discriminatory application) *and*
- was not enacted to target women (no discriminatory motive).

And since the ordinance is rationally related to the government's legitimate interest in the health and safety of children, it is constitutional.

(Choice A) The city would have had to prove that the ordinance was necessary to serve a compelling government interest (ie, strict scrutiny) had it substantially impacted a fundamental right or intentionally discriminated against a suspect class. Since the ordinance does neither, it need only survive rational basis review.

(Choice B) The freedom of contract is protected by the contracts clause, which restricts state and local legislatures from impairing *existing* contracts. Since the ordinance affects the ability to enter into *future* contracts for child-care services, it does not violate this clause.

(Choice C) Had the ordinance intentionally discriminated against women, the city would have had to prove that the ordinance is substantially related to an important government objective (ie, intermediate scrutiny)—not that this objective clearly outweighs any burden the ordinance imposes.

Educational objective:

Heightened equal protection review is appropriate when a law intentionally discriminates—on its face, in its application, or in its motive—against a quasi-suspect or suspect class.

References

- U.S. Const. amend. XIV (equal protection clause).

- Pers. Adm'r of Mass. v. Feeney, 442 U.S. 256, 274 (1979) (explaining that a neutral law's disparate impact on a quasi-suspect or suspect class, standing alone, is insufficient to require heightened scrutiny).

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A defendant was on trial for a highly publicized capital murder in a federal district court. The court issued an order that prohibited public attendance during voir dire to protect the prospective jurors' privacy, especially concerning sensitive issues. The court issued findings on the record and concluded that public attendance during voir dire would prevent the prospective jurors from answering sensitive questions without suffering personal embarrassment.

Several television networks that are televising the trial have challenged the order, arguing that it is unconstitutional.

Is the court's order likely constitutional?

A. No, because the First Amendment guarantees the press and the public the right to attend criminal trials.

B. No, because there are less restrictive means to protect the privacy of the prospective jurors.

C. Yes, because the court has an interest in protecting prospective jurors from personal embarrassment.

D. Yes, because the court-issued findings on the record warranted closing the proceedings to the public.

Explanation:

The **First Amendment** generally guarantees the press and the public the **right to attend** every stage of a **criminal trial**, including voir dire.* However, this right is not absolute, and a court can order that trial proceedings be closed if the court's findings on the record demonstrate that the closure satisfies **strict scrutiny (Choice A)**. This requires the court to show that the closure is the **least restrictive means** to serve a **compelling government interest**.

Here, the court prohibited the public from attending voir dire in the defendant's murder trial to protect the prospective jurors from personal embarrassment. This promotes the compelling interests of encouraging the prospective jurors to speak frankly about sensitive issues and protecting their privacy—but less restrictive means were available to serve these interests **(Choice C)**. For example, the court could have allowed prospective jurors to answer any sensitive questions outside the presence of the public. Therefore, the order is likely unconstitutional.

*The Supreme Court has not conclusively ruled whether the First Amendment guarantees the press and the public the right to attend civil trials.

(Choice D) The court-issued findings on the record did *not* warrant closing the proceedings to the public because these findings did not demonstrate that the closure was the least restrictive means to protect the prospective jurors' privacy.

Educational objective:

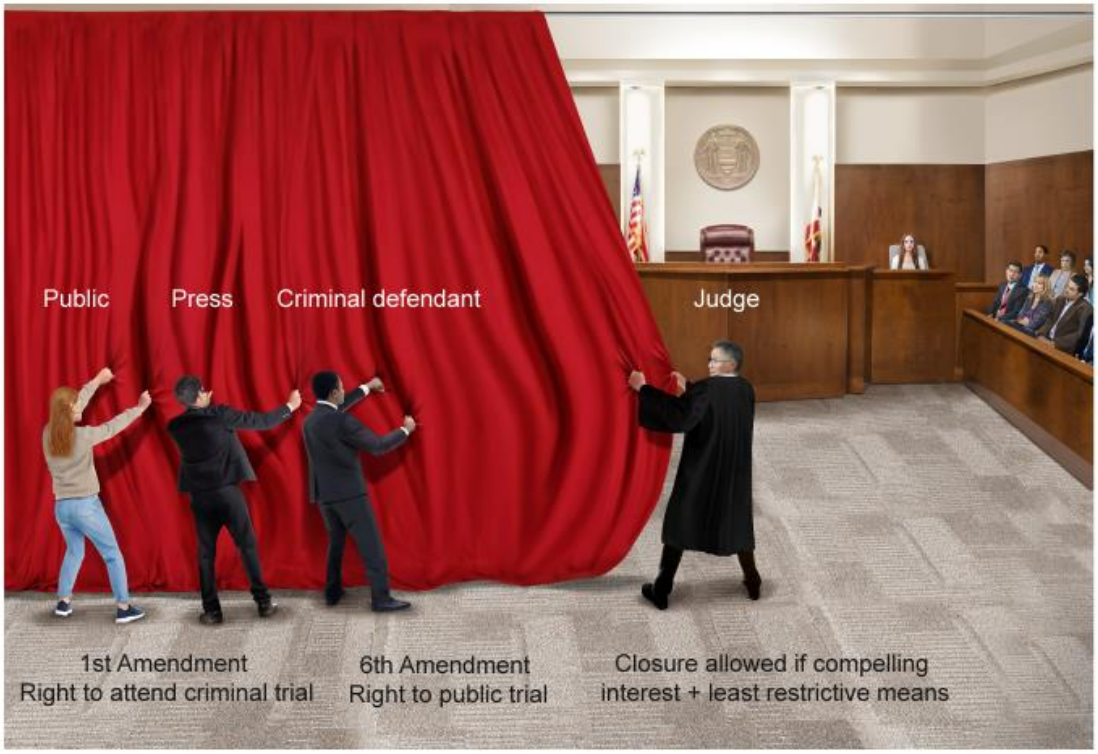
The First Amendment generally guarantees the press and the public the right to attend criminal trials. However, criminal trial proceedings may be closed when the court demonstrates that the closure satisfies strict scrutiny—ie, that it is the least restrictive means to serve a compelling government interest.

References

- Press-Enter. Co. v. Super. Ct. of Cal., 464 U.S. 501, 511 (1984) (holding that closing all voir dire proceedings in a criminal trial to the public and press is unconstitutional).

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Right to open courtroom



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A state law imposes penalties for "any public statement containing false or misleading information about a service or product." An airline falsely claimed in an advertisement that its competitor had an inferior safety record. The claim was based on erroneous information, found on the website of a nonprofit consumer advocacy group, that the airline assumed to be true. The airline was charged under the state law for making a false statement. No federal statute applies.

Which of the following best supports the airline in a defense based on the First Amendment?

A. Its statement about the safety record was made without malice.

B. Its statement about the safety record was protected noncommercial speech.

C. The state law is a prior restraint.

D. The state law is overbroad.

Explanation:

Constitutional challenges

Facial	• No application of law would be constitutional • Strike down law in its entirety
As applied	• Generally valid law is unconstitutional as to challenger • Overturn application of law against challenger

The state law cannot be challenged *as applied* to the airline's false advertisement because the First Amendment does not protect commercial speech that is (1) false or misleading or (2) concerns an unlawful activity. But the airline can still use the First Amendment to challenge the law ***on its face*** based on the **overbreadth doctrine**. Under this doctrine, a law is **unenforceable against anyone**—including those engaged in unprotected speech—if it **restricts** a **substantial amount** of constitutionally **protected speech**.

Here, the law penalizes "*any* public statement containing false or misleading information about a service or product." And though this encompasses unprotected commercial speech, it also impacts a substantial amount of protected speech—eg, false or misleading *noncommercial* speech. Therefore, the airline's best defense is that the law is overbroad.

(Choice A) Defamation of a public official or figure (eg, the airline's competitor) requires proof that the speaker acted with malice—ie, knowingly or recklessly disregarded the falsity of its published statement. And though the airline's lack of malice may show that its advertisement was not defamatory, the false advertisement is still unprotected speech. Therefore, this evidence would not aid the airline's defense.

(Choice B) The airline's claim about the competitor's safety record was *commercial* speech because it was used in an advertisement—a type of economically-oriented expression. And it was *unprotected* commercial speech because it contained false information.

(Choice C) A prior restraint is a government action (eg, an injunction) that prohibits speech *before* it occurs. But the state law is not a prior restraint since it imposes penalties *after* speech occurs.

Educational objective:

Under the overbreadth doctrine, a law is unenforceable against anyone—including those engaged in unprotected speech—if it restricts a substantial amount of constitutionally protected speech.

References

- Houston v. Hill, 482 U.S. 451, 458–59 (1987) (explaining the overbreadth doctrine).

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A protester entered an IRS office during business hours. He denounced the income tax and set fire to pages from his copy of the Internal Revenue Code. The fire was extinguished before it caused any other damage. The protester was arrested and charged with violating a state law that prohibited igniting a fire in a public building. He claimed that his prosecution was unconstitutional under the First Amendment.

May the protester constitutionally be convicted?

A. No, because he was exercising his right to freedom of speech by burning a copy of the code.

B. No, because the copy of the code belonged to him, and thus burning it did not infringe upon a legitimate government interest.

C. Yes, because the burning of the code was conduct rather than speech.

D. Yes, because the state law is narrowly drawn to further a substantial government interest in prohibiting the noncommunicative aspects of the act in question.

Explanation:

The **First Amendment** protects *all* forms of expression from unjustified government interference. This includes **expressive conduct**—ie, behavior that is intended to **convey a particular message** that is **likely to be understood** by the audience. To ensure such protection, regulations based solely on the message being communicated (ie, content-based restrictions) are subject to strict scrutiny and usually invalid. But **content-neutral regulations** are valid so long as they are **narrowly tailored** to further a **substantial government interest**.

Here, the protester's burning of the tax code was protected *expressive* conduct since it was intended to denounce the IRS and that message would likely be understood by viewers **(Choice C)**. But the law banning fires in public buildings is content-neutral since *all* fires are prohibited—regardless of any message being conveyed. And since the law is a narrowly drawn means of furthering the state's substantial interest in preventing fires in public buildings, the protester can constitutionally be convicted of violating it **(Choice A)**.

(Choice B) The state's legitimate (and substantial) interest in preventing fires in public buildings applies regardless of who owns the materials being burned.

Educational objective:

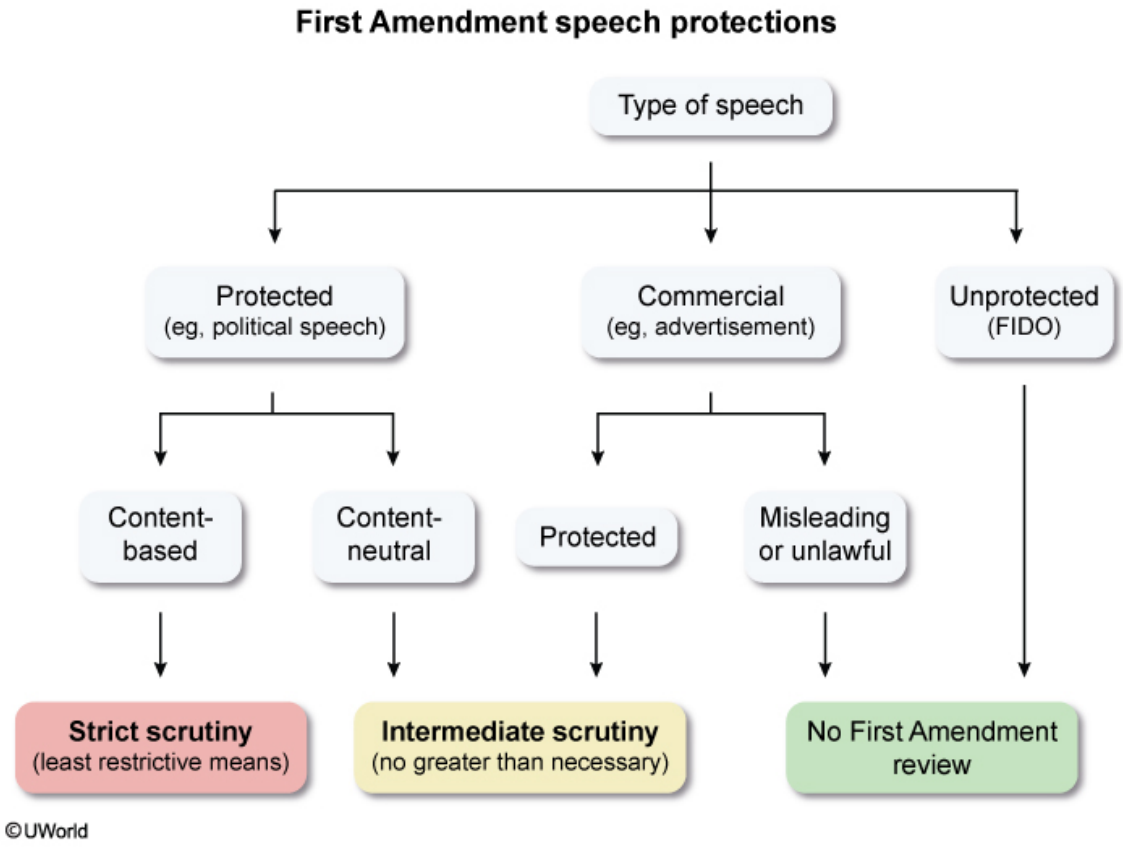
Content-based restrictions on expression (including expressive conduct) are strictly scrutinized and usually invalid. But *content-neutral* restrictions are valid if they are narrowly tailored to further a substantial government interest.

References

- Clark v. Cmty. for Creative Non-Violence, 468 U.S. 288, 294 (1984) (setting forth the test for determining whether the government's regulation of expressive conduct is valid).

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First Amendment speech protections
Type of speech
Protected
(eg, political speech)
Commercial
(eg, advertisement)
Unprotected
(FIDO)
Content-based
Content-neutral
Protected
Misleading or unlawful
Strict scrutiny
(least restrictive means)
Intermediate scrutiny
(no greater than necessary)
No First Amendment review
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A public high school has had a very high rate of pregnancy among its students. In order to assist students who keep their babies to complete high school, the school has established an infant day-care center for children of its students, and also offers classes in child care. Because the child-care classes are always overcrowded, the school limits admission to those classes solely to students who are the mothers of babies in the infant day-care center.

A male student at the high school has legal custody of his infant son. The school provides care for his son in its infant day-care center, but will not allow the student to enroll in the child-care classes. He brings suit against the school challenging, on constitutional grounds, his exclusion from the child-care classes.

Which of the following best states the burden of persuasion in this case?

A. The male student must demonstrate that the admission requirement is not as narrowly drawn as possible to achieve a substantial governmental interest.

B. The male student must demonstrate that the admission requirement is not rationally related to a legitimate governmental interest.

C. The school must demonstrate that the admission policy is substantially related to an important governmental interest.

D. The school must demonstrate that the admission policy is the least restrictive means by which to achieve a compelling governmental interest.

Explanation:

A government action that treats similarly situated persons differently may be challenged under the **equal protection clause**. The action will only be deemed constitutional if there is adequate justification for the alleged **discrimination**. A law that discriminates based on **gender or nonmarital birth** (ie, quasi-suspect classes) is presumptively invalid unless it survives **intermediate scrutiny**—ie, the **government** demonstrates that the law is **substantially related** to an **important government interest**.

Here, a public high school offers child-care classes to students with children (government action). But enrollment is limited to female students with children in the school's infant day-care center (gender discrimination). And since the male student was excluded from these classes, the admission policy will only be found constitutional if the school meets its burden of persuasion under intermediate scrutiny.

(Choice A) The male student would have had the burden to prove that there was no adequate justification for the admission policy if rational basis review applied. And there is no burden of persuasion that requires proof that a government action be as narrowly drawn as possible to achieve a *substantial* government interest.

(Choice B) Generally, a challenger must prove that the government action does not rationally relate to a legitimate government interest (ie, rational basis review). But this burden of persuasion does not apply when the government action impacts a fundamental right, suspect class, or quasi-suspect class (as seen here).

(Choice D) The school would have had to demonstrate that the admission policy is the least restrictive means to achieve a compelling government interest (ie, strict scrutiny) had the policy impacted a fundamental right or suspect class. But here, the policy affected a *quasi*-suspect class (gender).

Educational objective:

A government action challenged under the equal protection clause is subject to intermediate scrutiny if it discriminates against a quasi-suspect class (ie, sex/gender, nonmarital children). Intermediate scrutiny requires the government to prove that its action is substantially related to an important government interest.

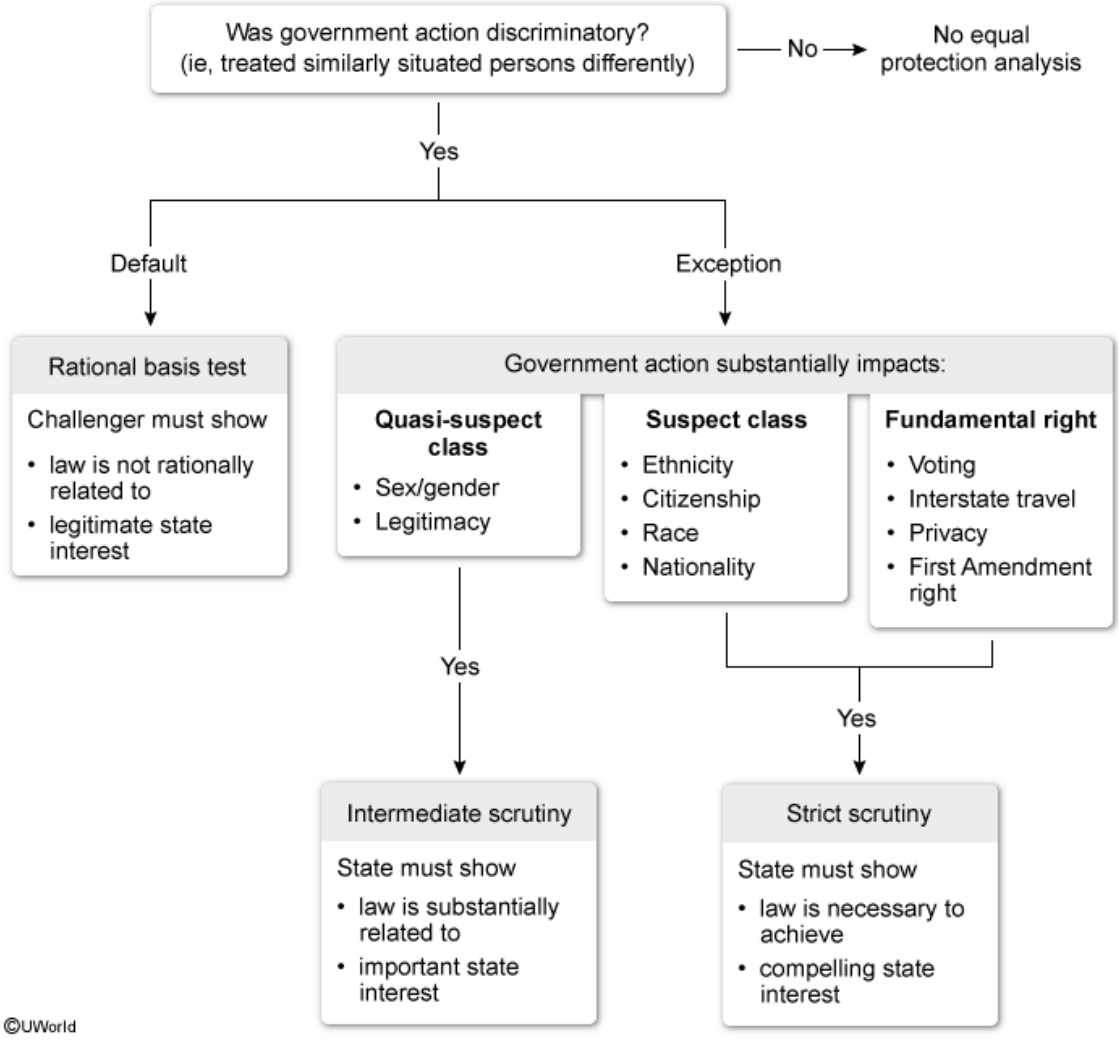
References

- U.S. Const. amend. XIV (equal protection clause).
- Craig v. Boren, 429 U.S. 190, 197 (1976) (holding that state discrimination based on sex/gender places the burden on the state to show that its action is substantially related to an important government interest).

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Equal protection analysis



A city enacted an ordinance banning from its public sidewalks all machines dispensing publications consisting wholly of commercial advertisements. The ordinance was enacted because of a concern about the adverse aesthetic effects of litter from publications distributed on the public sidewalks and streets. However, the city continued to allow machines dispensing other types of publications on the public sidewalks. As a result of the ordinance, 30 of the 300 sidewalk machines that were dispensing publications in the city were removed.

Is this ordinance constitutional?

A. No, because it does not constitute the least restrictive means with which to protect the aesthetics of the city's sidewalks and streets.

B. No, because there is not a reasonable fit between the city's legitimate interest in preserving the aesthetics of its sidewalks and streets and the means it chose to advance that interest.

C. Yes, because regulations of commercial speech are subject only to the requirement that they be rationally related to a legitimate state goal, and that requirement is satisfied here.

D. Yes, because the city has a compelling interest in protecting the aesthetics of its sidewalks and streets, and such a ban is necessary to vindicate this interest.

Explanation:

Commercial speech is protected by the First Amendment so long as it concerns lawful activity and is not false or misleading. As a result, the government can only regulate protected commercial speech if the government proves that its regulation (1) **directly advances** a **substantial government interest** *and* (2) is **not more extensive than necessary** to serve that interest. The second element is met if there is a **reasonable fit** between the means chosen and the interest served.

Here, a city ordinance banned all sidewalk machines dispensing solely commercial advertisements. The ordinance directly advances the city's legitimate (and likely substantial) interest in preserving the aesthetics of its sidewalks and streets. But there is no reasonable fit between that interest and the means chosen to advance it since only 30 of the 300 machines were removed and there is no indication that the advertisements generate more litter than other publications. Therefore, the ordinance is unconstitutional.

(Choice A) In the context of commercial speech, "no more extensive than necessary" does not mean the least restrictive means available. Instead, it means that there must be a reasonable fit between the relevant government interest and the means chosen to achieve it. And since there is no reasonable fit here, the ordinance is invalid.

(Choice C) Rational basis review—which merely requires that a government regulation be rationally related to a legitimate government interest—does not apply to commercial speech.

(Choice D) Strict scrutiny would require the city to prove that its ordinance is necessary to achieve a compelling government interest. But this stringent standard of review does not apply here. And if it did, the ordinance would fail since it cannot even meet the lower standard applicable to commercial speech.

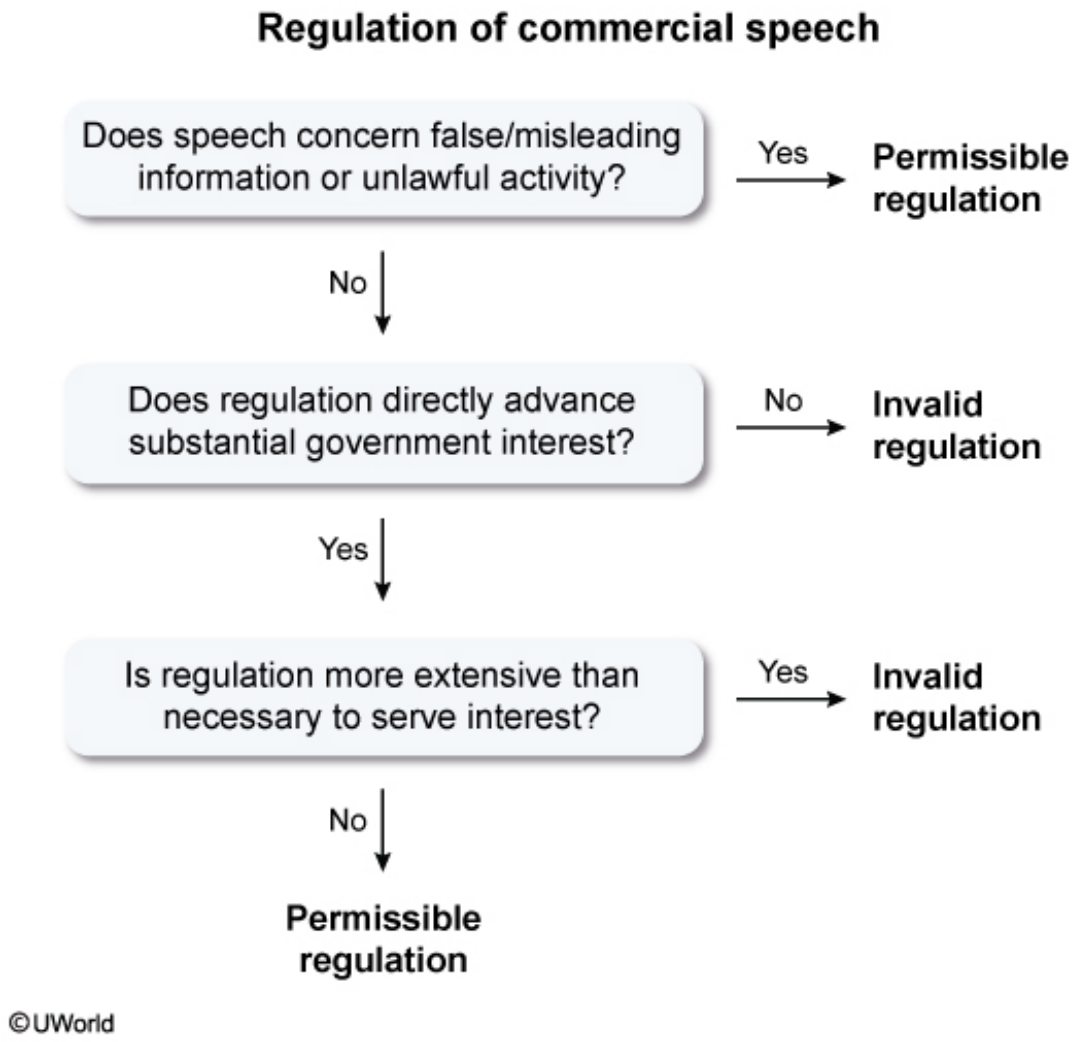
Educational objective:

Government regulations of protected commercial speech must (1) directly advance a substantial government interest and (2) not be more extensive than necessary to serve that interest. The second element is met if there is a reasonable fit between the government interest and the means chosen to achieve it.

References

- Bd. of Trs. of State Univ. of N. Y. v. Fox, 492 U.S. 469, 480 (1989) (explaining that government restrictions on protected commercial speech must have a reasonable fit between means and end).
- Cincinnati v. Discovery Network, 507 U.S. 410, 424–25 (1993) (finding that there was no reasonable fit between city's ban only of commercial news racks and city's interest in sidewalk aesthetics).

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A city's personnel handbook contains all of that city's personnel policies. One section of the handbook states that "where feasible and practicable supervisors are encouraged to follow the procedures specified in this handbook before discharging a city employee." Those specified procedures include a communication to the employee of the reasons for the contemplated discharge and an opportunity for a pre-termination trial-type hearing at which the employee may challenge those reasons.

After a year of service, the secretary to the city council was discharged without having received any communication of reasons for her contemplated discharge and without having received an opportunity for a pre-termination trial-type hearing.

The former secretary files suit in federal district court to challenge her discharge solely on constitutional grounds.

Which of the following best describes the initial burden of persuasion in that suit?

A. The city council must demonstrate that its personnel handbook created no constitutionally protected interest in city employment or in the procedures by which such employment is terminated.

B. The city council must demonstrate that the former secretary's termination was for good cause.

C. The former secretary must demonstrate that she reasonably believed that she could work for the city for as long as she wished.

D. The former secretary must demonstrate that state law creates a constitutionally protected interest in her employment or in the procedures by which her employment is terminated.

Explanation:

The former secretary's claim raises the Fourteenth Amendment right to **procedural due process**, which requires states and municipalities to follow certain procedures when they **intentionally deprive** a person of **life, liberty, or property**. These procedures include giving persons:

- notice of the charges, proceedings, or other actions against them *and*
- a meaningful opportunity to be heard by a neutral decision-maker.

In a due process claim, the **challenging party** has the **initial burden** of showing that he/she has a protected life, liberty, or property interest at stake. Therefore, the *former secretary* must demonstrate that state law created a constitutionally protected interest in her employment or the procedures by which she was terminated **(Choice A)**.

(Choice B) The city council would only need to demonstrate that the former secretary's termination was for good cause if she *first* demonstrates that she has a constitutionally protected interest in her employment.

(Choice C) Public employees have a property interest in their jobs if they (1) have an ongoing employment contract, (2) can only be fired for cause, or (3) receive assurances of continued employment. But the former secretary's reasonable belief that she could work for the city as long as she wished would not create this interest.

Educational objective:

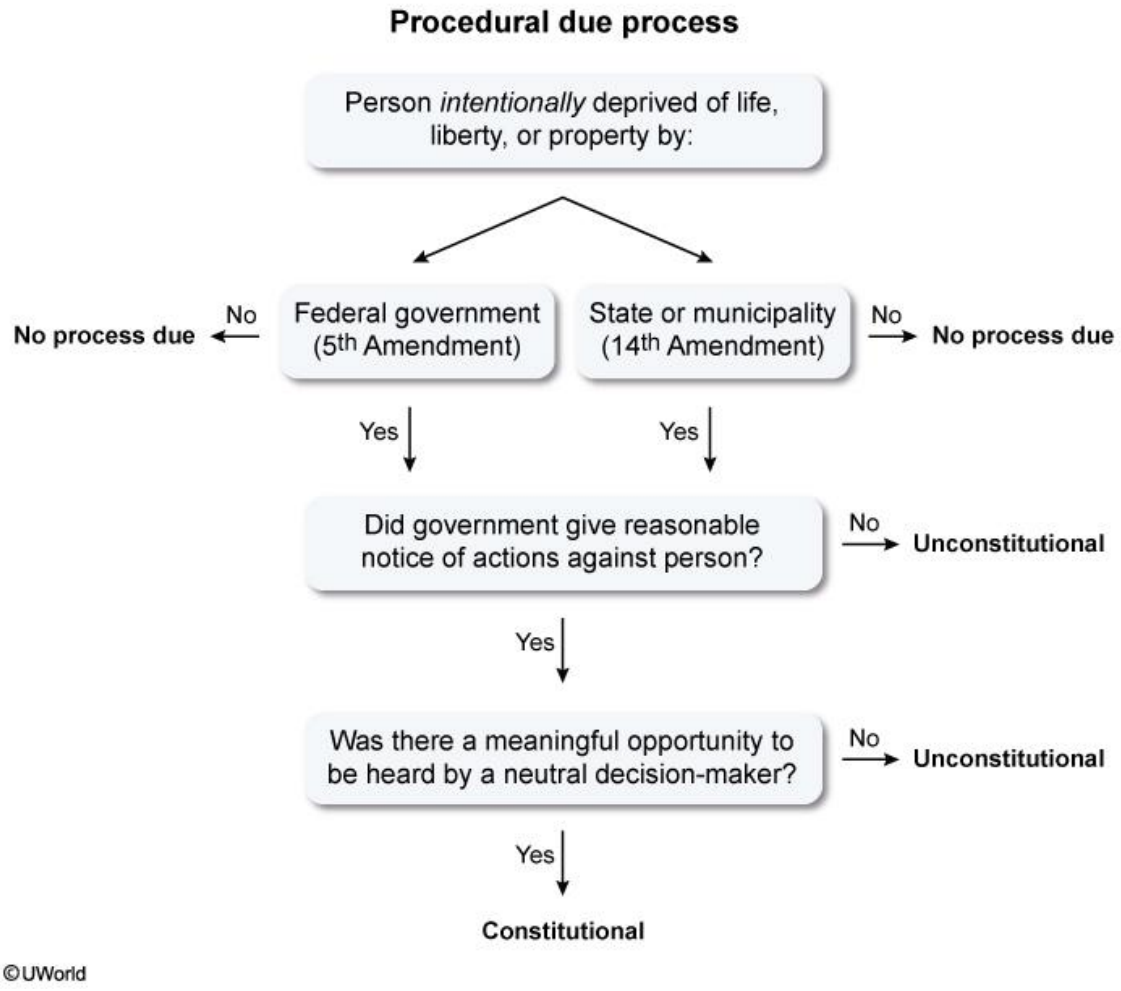
Procedural due process requires the government to follow certain procedures when it intentionally deprives a person of life, liberty, or property. And in a due process claim, the challenger has the initial burden of showing that he/she has a protected interest at stake.

References

- Cleveland Bd. of Educ. v. Loudermill, 470 U.S. 532, 538 (1985) (holding that a state cannot terminate an employee without due process when the employee has a property right in his/her employment).

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Procedural due process
Person intentionally deprived of life, liberty, or property by:
Federal government (5th Amendment)
State or municipality (14th Amendment)
No
No process due
No
No process due
Yes
Yes
Did government give reasonable notice of actions against person?
No
Unconstitutional
Yes
Was there a meaningful opportunity to be heard by a neutral decision-maker?
No
Unconstitutional
Yes
Constitutional
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A clerical worker has been employed for the past two years in a permanent position in the county public records office in a state. The clerk has been responsible for copying and filing records of real estate transactions in that office. The clerk works in a nonpublic part of the office and has no contact with members of the public. However, state law provides that all real estate records in that office are to be made available for public inspection.

On the day an attempted assassination of the state's governor was reported on the radio, the clerk remarked to a coworker, "Our governor is such an evil man, I am sorry they did not get him." The coworker reported this remark to their employer, the county recorder. After the clerk admitted making the remark, the county recorder dismissed him stating that "there is no room in this office for a person who hates the governor so much."

The clerk sued for reinstatement and back pay. His only claim is that the dismissal violated his constitutional rights.

What will the court likely hold?

A. The case is nonjusticiable, because public employment is a privilege rather than a right and, therefore, the clerk lacked standing to bring this suit.

B. The dismissal was constitutional, because the compelling interest of the state in having loyal and supportive employees outweighs the interest of any state employee in his or her job or in free speech on a matter of public concern.

C. The dismissal was unconstitutional, because in light of the clerk's particular employment duties, his right to express himself on a matter of public concern outweighed any legitimate interest the state might have had in discharging him.

D. The dismissal was unconstitutional, because it constitutes a taking without just compensation of the clerk's property interest in his permanent position with the county.

Explanation:

The First Amendment **right to free speech**, applied to the states through the Fourteenth Amendment, does *not* extend to **public employees** speaking pursuant to their official duties. Therefore, the government can **freely discipline or terminate** employees for the content of their **employment-related speech**. But since this right *does* extend to public employees speaking as **private citizens**, the government can only regulate the content of that speech if its **interest in efficient government function outweighs** the employee's free speech right.

Here, the clerk was fired for remarking that he was sorry that the governor had not been assassinated. But the clerk spoke as a private citizen because his comment was made to a single coworker and was unrelated to his job duties—copying and filing real estate records with no public interaction. And since there is no indication that his comment impeded government efficiency, his right to express himself on this matter of public concern outweighs any legitimate state interest in discharging him. Therefore, the dismissal will likely be held unconstitutional.

(Choice A) To have a justiciable claim, a plaintiff must have standing—ie, suffered an injury-in-fact (unemployment) caused by the challenged action (termination) and redressable by the remedy sought (reinstatement and back pay). The fact that public employment is a privilege rather than a right is irrelevant.

(Choice B) The state's compelling interest in loyal and supportive employees does *not* outweigh a government employee's right to free speech on a matter of *public* concern (as seen here). But the state's interest will *always* outweigh an employee's right to free speech on a matter of *private* concern (eg, co-worker grievances).

(Choice D) The Fifth Amendment takings clause prohibits the government from taking private property for public use without just compensation. Under this clause, private property includes real property and personal property—but not the clerk's property interest in continuing public employment.

Educational objective:

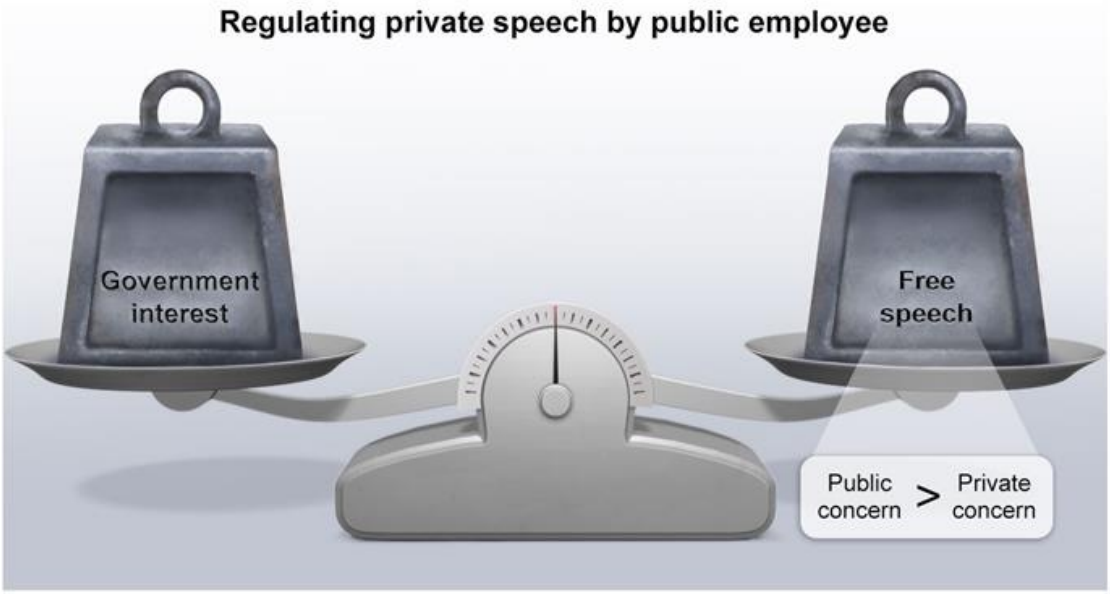
The government may regulate private speech by a public employee if the government's legitimate interest in efficient government function outweighs the employee's right to free speech.

References

- Rankin v. McPherson, 483 U.S. 378, 388–90 (1987) (discussing when a government employee can be punished for speaking as a private citizen).

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Regulating private speech by public employee
Government interest
Free speech
Public concern
>
Private concern

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A state statute provided state monetary grants to private dance, theater, and opera groups located in that state. The statute required recipients of such grants to use the granted monies for the acquisition, construction, and maintenance of appropriate facilities for the public performance of their performing arts. The last section of the statute conditioned the award of each such grant on the recipient's agreement to refrain from all kinds of political lobbying calculated to secure additional tax support for the performing arts.

Which of the following provides the strongest constitutional basis to attack the validity of the last section of the statute?

A. Commerce clause.

B. Fifth Amendment.

C. First and Fourteenth Amendments.

D. Obligation of contracts clause.

Explanation:

Conditions on government funding

Funded activities	Government can restrict use of funds to authorized purposes	"Grant monies must be used for the acquisition, construction, and maintenance of appropriate performance facilities"
Funding recipients	Government cannot restrict protected conduct unrelated to funding's purpose	"Recipient must agree to refrain from all kinds of political lobbying calculated to secure additional tax support for the performing arts"

The last section of the statute **conditions state funding** on a recipient's agreement to refrain from certain political lobbying efforts. Since this condition interferes with the First Amendment **right to free expression**—which is applied to the states through the Fourteenth Amendment—the section can be challenged on that basis. But due to the government's countervailing right to decide how to spend its funds, the success of this attack depends on whether the **condition is placed on**:

- **funded activities** – in which case, the **government can insist** that the funds be used for authorized purposes *or*
- **funding recipients** – in which case, the **government cannot restrict** the recipient's right to engage in protected conduct that falls outside the funding's purpose or scope (as seen here).

Political lobbying is protected First Amendment conduct that is unrelated to the activities—acquiring, constructing, and maintaining performing arts facilities—that are funded by the statute. And since the statute conditions the award of such grants on the *recipient's* agreement to refrain from such conduct, the First and Fourteenth Amendments provide the strongest constitutional basis to attack this section of the statute.

(Choice A) The commerce clause bars states from discriminating against interstate commerce by favoring in-state over out-of-state economic interests *unless* the state acts as a market participant (eg, by providing grants—as seen here). Therefore, this is a weak basis to attack the last section's constitutionality.

(Choice B) The Fifth Amendment does not, by itself, provide a basis to attack the last section since the Fifth Amendment only applies to the states through the Fourteenth Amendment.

(Choice D) The contracts clause restricts state legislatures' ability to substantially impair existing contracts. But since no existing contracts are at issue here, this clause does not apply.

Educational objective:

The government *can* condition funding on the promise that the funds be used for a particular purpose. But it *cannot* condition funding on a recipient's promise to refrain from engaging in protected First Amendment conduct if that conduct is unrelated to the funding's purpose or scope.

References

- Agency for Int'l Dev. v. All. for Open Soc'y Int'l, Inc., 570 U.S. 205, 221 (2013) (holding that a state funding program violated the First Amendment by conditioning funds on requirements unrelated to the program's purpose).
- Rust v. Sullivan, 500 U.S. 173, 192–200 (1991) (upholding a federal funding program that limited fund recipients' ability to provide abortion-related services that were outside the program's scope).

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The constitution of State X authorizes a five-member state reapportionment board to redraw state legislative districts every ten years. In the last state legislative reapportionment, the board, by a unanimous vote, divided a greater metropolitan area composed of a city and several contiguous townships into three equally populated state legislative districts. As a result of that districting, 40% of the area's total black population resided in one of those districts, 45% of the area's total black population resided in the second of those districts, and 15% resided in the third district.

A black resident of the greater metropolitan area is a registered voter. He filed suit in the appropriate court against the members of the state reapportionment board, seeking declaratory and injunctive relief that would require the boundary lines of the state legislative districts in the greater metropolitan area to be redrawn. His only claim is that the current apportionment violates the Fifteenth Amendment and the equal protection clause of the Fourteenth Amendment because it improperly dilutes the voting power of blacks who reside in that area.

If no federal statute is applicable, which of the following facts, if proven, would most strongly support the validity of the action of the state reapportionment board?

A. Although the rate of voter registration among blacks is below that of voter registration among whites in the greater metropolitan area, two minority-preferred legislators were elected from that area during the last 15 years.

B. In drawing the current district lines, the reapportionment board precisely complied with state constitutional requirements that state legislative districts be compact and follow political subdivision boundaries to the maximum extent feasible.

C. The reapportionment board was composed of three white members and two black members, and the black board members were satisfied that the plan did not improperly dilute the voting power of blacks residing in that area.

D. The total black population of the greater metropolitan area amounts to only 15% of the population that is required to comprise a single legislative district.

Explanation:

The **Fourteenth Amendment equal protection** clause ensures that each citizen is given **equal voting power** (ie, one person, one vote) by requiring state legislative districts to have largely equal populations. And the **Fifteenth Amendment** ensures that the right to vote is **not abridged on account of race**. Therefore, race cannot be the **predominant factor** used to draw boundary lines for state legislative districts. If it is, the boundary lines will be strictly scrutinized and likely deemed unconstitutional.

Here, the state reapportionment board created three equally populated state legislative districts. These districts have varying black populations and may improperly dilute the voting power of blacks who reside in those areas. But race would not be the predominant factor behind redistricting if the board drew these boundaries to comply with state constitutional requirements that districts be compact and follow political subdivision boundaries. In that case, the board's action would be valid.

(Choice A) The Voting Rights Act (not the Constitution) requires that jurisdictions maintain a minority's ability to elect preferred candidates. But the question stipulates that this federal statute does not apply. And even if it did, the prior election of minority-preferred legislators could *invalidate* the board's action if the redistricting impaired black voters' ability to continue electing these candidates. But the rate of voter registration is irrelevant.

(Choice C) Had the board been predominantly motivated by the improper dilution of minority voting power (ie, race), neither its composition nor its black members' satisfaction with the plan could validate the redistricting. But an argument that the board was motivated by other, non-racial factors would support its redistricting action.

(Choice D) Although the metropolitan area's black population is only 15% of the population required for a legislative district, the validity of a redistricting plan is not impacted by how the area's minority population compares to the population required for a district. Therefore, this fact has no bearing on the validity of the board's action.

Educational objective:

Race cannot be the predominant factor used to draw boundary lines for state legislative districts. And if it is, those boundary lines will be subject to strict scrutiny and likely invalidated on equal protection grounds.

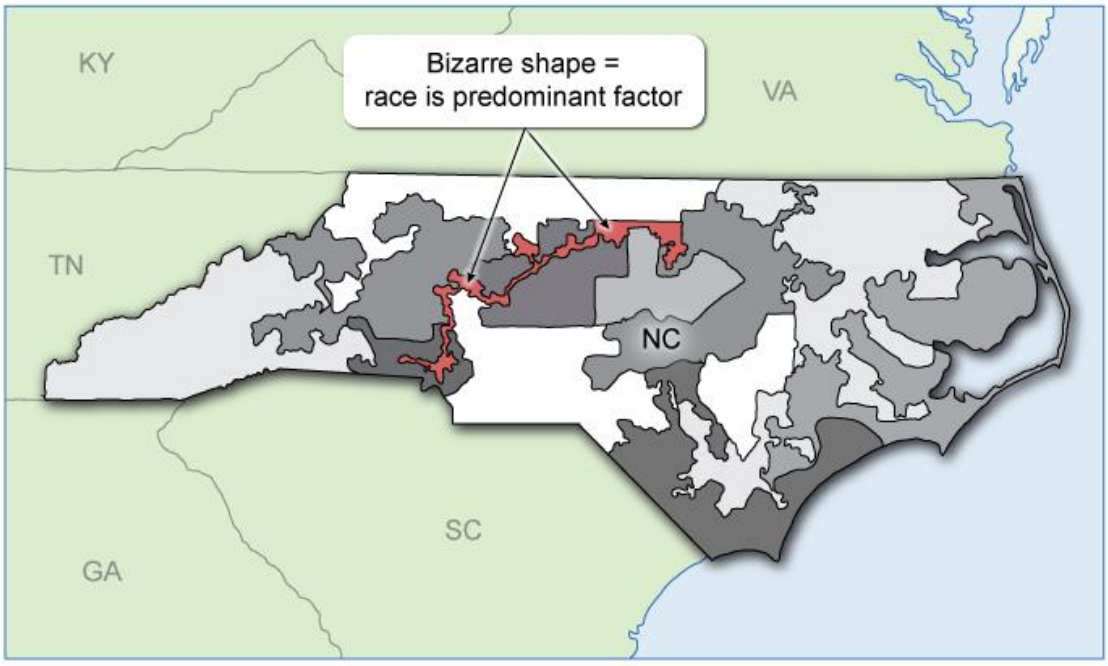
References

- Miller v. Johnson, 515 U.S. 900, 916 (1995) (explaining that the use of race as a predominant factor in drawing state legislative districts should be strictly scrutinized).

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Unconstitutional redistricting under 14th & 15th Amendments



Shaw v. Reno, 509 U.S. 630 (1993)

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The open-air amphitheater in a city park has been utilized for concerts and other entertainment programs. Until this year, each of the groups performing in that city facility was allowed to make its own arrangements for sound equipment and sound technicians.

After recurring complaints from occupants of residential buildings adjacent to the city park about intrusive noise from some performances held in the amphitheater, the city council passed an ordinance establishing city control over all sound amplification at all programs held there. The ordinance provided that the city's parks department would be the sole provider in the amphitheater of sound amplification equipment and of the technicians to operate the equipment "to ensure a proper balance between the quality of the sound at such performances and respect for the privacy of nearby residential neighbors."

Which of the following standards should a court use to determine the constitutionality on its face of this content-neutral ordinance?

A. The ordinance is narrowly tailored to serve a substantial government interest and does not unreasonably limit alternative avenues of expression.

B. The ordinance is rationally related to a legitimate government interest and does not unreasonably limit alternative avenues of expression.

C. The ordinance is rationally related to a legitimate government interest and restricts the expressive rights involved no more than is reasonable under the circumstances.

D. The ordinance is substantially related to a legitimate governmental interest and restricts the expressive rights involved no more than is reasonable in light of the surrounding circumstances.

Explanation:

The First Amendment primarily protects speech against content-based regulations (ie, restrictions on what is said). And though the government has more latitude to impose **content-neutral** regulations (ie, **time, place, or manner restrictions**), such regulations are still subject to constitutional review. And in a **public forum** (as seen here), the government may only impose time, place, or manner restrictions if they:

- are **narrowly tailored** to serve a **substantial government interest** *and*
- leave open ample **alternative channels of communication**.

Here, the city ordinance regulates the *manner* of performances in the city park by requiring all performers to use city-provided sound equipment and technicians. This content-neutral ordinance is only valid if it is narrowly tailored to serve a substantial government interest and does not unreasonably limit alternative avenues of expression. Therefore, the court should use this standard to determine the ordinance's constitutionality **(Choices B, C, & D)**.

Educational objective:

In a public forum, the government's time, place, or manner restrictions on speech must (1) be narrowly tailored to serve a substantial government interest and (2) leave open ample alternative channels of communication.

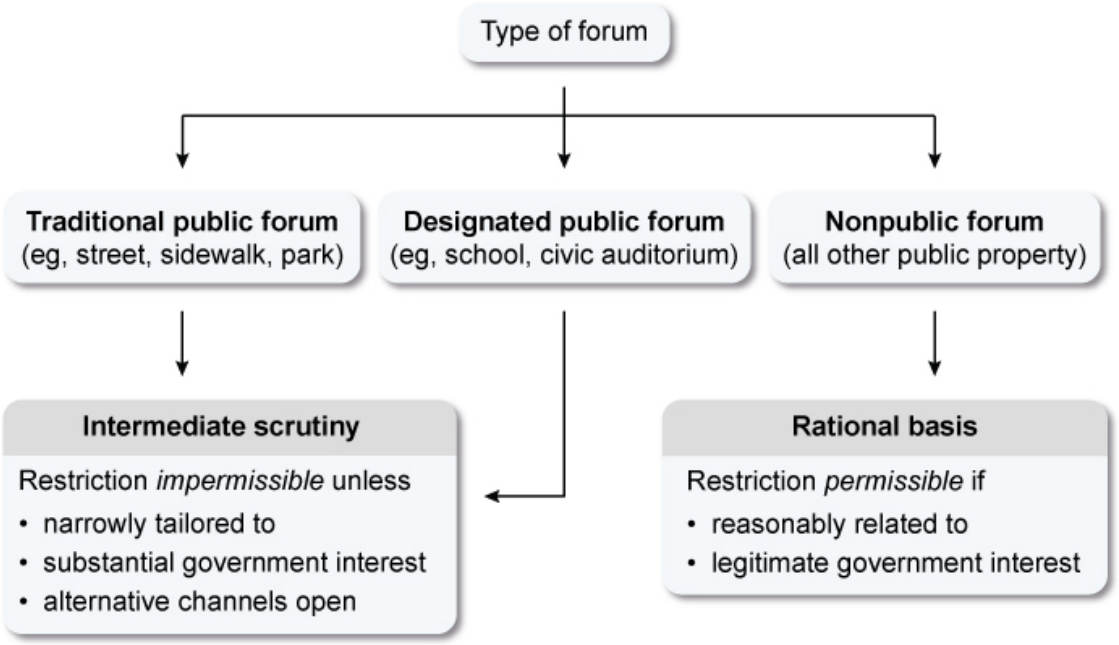
References

- Ward v. Rock Against Racism, 491 U.S. 781, 791 (1989) (setting forth the test for determining the validity of government restrictions on the time, place, or manner of protected speech in a public forum).

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Content-neutral restrictions
(speech on government property)



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A state criminal law prohibits the publication of any description of the details of the execution of any prisoner who is sentenced to death by the courts of the state. Although the law allows a specified number of reporters to observe an execution, only the prison warden's official statement that the prisoner was "executed as provided by law" at a certain time and date may be published. The purpose of the law is to protect the public, particularly children, from the details of executions.

After a particular execution was mishandled, causing the prisoner to suffer, a newspaper in the state published a story describing the event in detail. The story was written by the newspaper's reporter, who was permitted to observe the execution but did not promise prison officials that he would report only the warden's official statement. A prosecutor subsequently filed charges against the newspaper for publishing the details of the execution in violation of the state law.

Is this prosecution constitutional?

A. No, because the prosecution seeks to punish the publication of lawfully obtained, truthful information about a matter of public significance, without adequate justification.

B. No, because the reporter did not promise prison officials that he would report only the warden's official statement about the execution.

C. Yes, because publication of the details of such events might cause psychological damage to some children.

D. Yes, because the newspaper should have brought an action to test the validity of the law before publishing the reporter's story.

Explanation:

First Amendment freedoms

Expression	Right to communicate information & ideas through speech or conduct
Association	Right to form or participate in any group or organization
Press	Right to publish truthful information
Religion	Free exercise – right to practice religion or no religion without government interference
	Establishment – prohibits government from favoring particular religion or religion generally

The First Amendment **freedom of the press** prohibits the government from unduly restricting the **right to publish lawfully obtained** and **truthful information** about matters of **public significance**. Any government actions that abridge this right must satisfy **strict scrutiny**, which requires the government to prove that its actions were **narrowly tailored** (ie, the least restrictive means) to achieve a **compelling government interest**.

Here, the state prosecuted a newspaper for publishing the truthful details of a mishandled execution that its reporter was permitted to observe. The state may have a compelling interest in protecting the public, particularly children, from the details of executions. But this interest could be achieved by less restrictive means—eg, by requiring a graphic-content warning **(Choice C)**. And since the prosecution lacks adequate justification to survive strict scrutiny, it is unconstitutional.

(Choice B) The prosecution would still be unconstitutional had the reporter promised prison officials that he would report only the warden's official statement about the execution. That is because the published information about the execution was lawfully obtained, truthful, and significant to the public.

(Choice D) The newspaper did not need to bring an action to test the validity of the law before publishing the reporter's story. Instead, it can challenge the law's validity in its defense against this prosecution.

Educational objective:

The First Amendment freedom of the press protects the right to publish lawfully obtained and truthful information about matters of public significance. If the government seeks to abridge this right, it must satisfy strict scrutiny—ie, prove that its actions are narrowly tailored to achieve a compelling government interest.

References

- Smith v. Daily Mail Pub. Co., 443 U.S. 97, 103 (1979) (holding that the government must satisfy strict scrutiny to justifiably punish the publication of lawfully obtained, truthful information about a matter of public significance).

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Congress enacted a statute that made it illegal for "any employee, without the consent of his or her employer, to post on the Internet any information concerning the employer." The purpose of the statute was to prevent employees from revealing their employers' trade secrets.

Is the statute constitutional?

A. No, because it is not narrowly tailored to further a compelling government interest.

B. No, because it targets a particular medium of communication for special regulation.

C. Yes, because it leaves open ample alternative channels of communication.

D. Yes, because it prevents employees from engaging in unethical conduct.

Explanation:

The First Amendment **free speech clause** prohibits the government from unduly restricting an individual's right to freely communicate information and ideas. **Restrictions** based on the **content of speech** (ie, its message or ideas) are **presumptively invalid** and will only be upheld if they survive **strict judicial scrutiny**. Under this standard of review, the government has the nearly impossible task of proving that the restriction is **necessary and narrowly tailored** (ie, the least restrictive means) to further a **compelling government interest**.

Here, the statute targets speech based on its content since the statute prohibits employees from posting information concerning their employer. And though the government may have a compelling interest in preventing employees from revealing trade secrets, the statute is *not* necessary or narrowly tailored to further that interest. That is because less restrictive means could be used to protect trade secrets—eg, barring employees from posting information concerning their employers' trade secrets. As a result, the statute is unconstitutional.

(Choice B) A speech regulation does not violate the First Amendment simply because it targets a particular medium of communication (eg, Internet postings—as seen here).*

*In Packingham v. North Carolina, the Supreme Court equated the Internet to public streets and parks in dicta but never expressly held that the Internet is a public forum. Several cases dealing with this issue are currently being litigated in lower courts.

(Choice C) The availability of alternative channels of communication is one factor in evaluating content-*neutral* speech restrictions (ie, time, place, or manner restrictions). But since this statute is a content-*based* restriction, the fact that it leaves open channels of communication other than the Internet is irrelevant.

(Choice D) The statute may prevent employees from engaging in unethical conduct (eg, revealing trade secrets). But regardless, it is unconstitutional because it cannot survive strict scrutiny.

Educational objective:

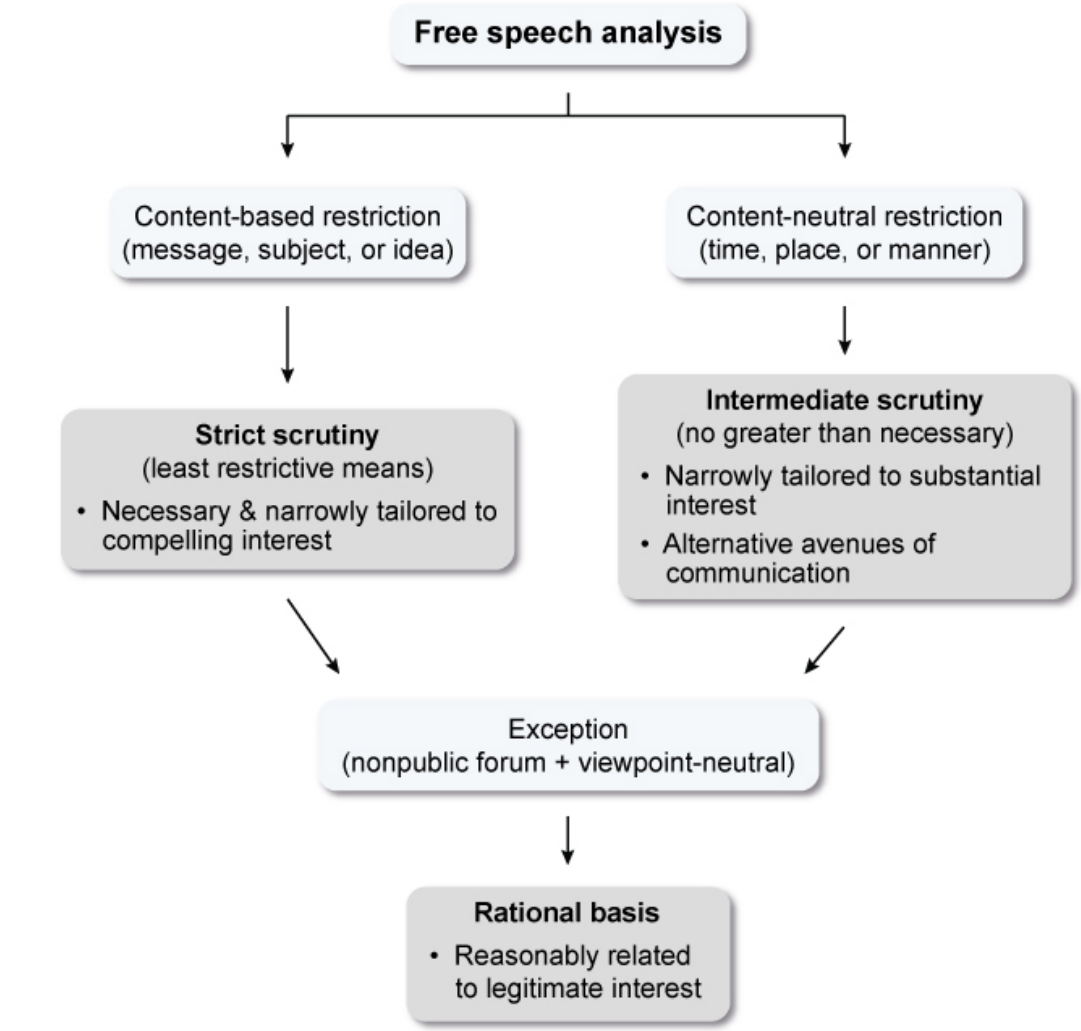
Content-based restrictions on speech are presumptively invalid and will only be upheld if they survive strict scrutiny—ie, the government must prove that the restriction is necessary and narrowly tailored to achieve a compelling government interest.

References

- United States v. Playboy Entm't Grp., 529 U.S. 803, 816–17 (2000) (explaining that content-based restrictions on speech require the government to satisfy strict scrutiny).

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A state's department of education routinely accredits public and private schools, licenses their teachers, sets strict curriculum guidelines, and provides funds for busses and secular extracurricular activities. A private high school in the state receives all of these benefits and enforces a strict "whites only" admissions policy.

A group of parents whose children were denied admission to the private school solely because they are minorities brought suit in federal court. The parents sought to enjoin the private school from continuing its admissions policy on the ground that it violates the Fourteenth Amendment equal protection clause. The private school's sole defense is that it is not bound by this constitutional provision.

What is the parents' strongest argument that the private school must comply with the equal protection clause?

A. Education is a traditional public function.

B. Racial segregation is not allowed in any school.

C. The private school employs teachers licensed by the state.

D. The private school is subject to pervasive state regulation and support.

Explanation:

State-action doctrine

Traditional government function	• Private actor performs traditional & exclusive government function (eg, running elections)
Significant government involvement	• Government & private actor have *mutually beneficial* relationship (eg, joint activity or venture) • Government creates *nexus* by affirmatively facilitating or authorizing private action (eg, police officer acting under color of law) • Government is *pervasively intertwined* in private entity's management or control

Constitutional claims must typically be asserted against government entities—not private actors.* But under the **state-action doctrine**, a **private actor** can be treated as a government entity and similarly **bound by the Constitution** when the **government is pervasively intertwined** in the control or management of the private actor.

Here, the parents sought to enjoin the *private* school from continuing its racially segregated admissions policy on the ground that it violates the Fourteenth Amendment equal protection clause. Therefore, the strongest argument that the private school must comply with this clause is that the school is subject to pervasive state regulation and support—eg, through state accreditation, teacher licensing, curriculum guidelines, funding for busses and secular extracurricular activities.

*The Thirteenth Amendment's prohibition against slavery is the only constitutional provision that directly applies to private conduct.

(Choice A) Private entities can be treated as state actors if they perform a function that has traditionally and *exclusively* been performed by the state. Although education is a public function, it has long been undertaken by private entities—not just the state. Therefore, the private school will not be treated as a state actor on this basis.

(Choice B) States are constitutionally obligated to eliminate segregation in all *public* schools within their borders. However, racial segregation is allowed in *private* schools that do not have significant government involvement.

(Choice C) The fact that the private school employs state-licensed teachers does not, by itself, require the school to comply with the equal protection clause. That is because the Supreme Court held in *Moose Lodge No. 107 v. Irvis* that issuing a license—without more—does not amount to significant government involvement.

Educational objective:

The Constitution generally applies to government (not private) entities. But under the state-action doctrine, a private entity will be bound by the Constitution when the government is so pervasively intertwined in its control or management that the private entity is essentially a government actor.

References

- Brentwood Acad. v. Tenn. Secondary Sch. Athletic Ass'n, 531 U.S. 288, 298–302 (2001) (recognizing that a private association's regulatory activity amounted to state action due to the state's pervasive entwinement).
- Moose Lodge No. 107 v. Irvis, 407 U.S. 163, 176–77 (1972) (explaining that mere licensure does not amount to significant government involvement).

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A city had a severe traffic problem on its streets. As a result, it enacted an ordinance prohibiting all sales to the public of food or other items by persons selling directly from trucks, cars, or other vehicles located on city streets. The ordinance included an inseverable grandfather provision exempting from its prohibition vendors who, for 20 years or more, have continuously sold food or other items from such vehicles located on the city's streets.

An ice cream truck is the only food vendor that qualifies for this exemption. A frozen yogurt vendor is similar to the ice cream truck, but the yogurt vendor has only been selling to the public directly from trucks located on the city's streets for the past ten years.

The yogurt vendor has filed suit in an appropriate federal district court to enjoin enforcement of this ordinance on the ground that it denies the yogurt vendor equal protection of the laws.

How is the court likely to rule?

A. The ordinance is constitutional, because it is narrowly tailored to implement the city's compelling interest in reducing traffic congestion and, therefore, satisfies strict scrutiny.

B. The ordinance is constitutional, because its validity is governed by the rational basis test, and courts consistently defer to the objectives embodied in such legislation if they are even plausibly justifiable.

C. The ordinance is unconstitutional, because economic benefits or burdens imposed by legislatures through grandfather provisions have consistently been declared invalid by courts as per se equal protection violations.

D. The ordinance is unconstitutional, because the nexus between the legitimate purpose of the ordinance and the conduct it prohibits is so tenuous and the ordinance is so underinclusive that it fails to satisfy the substantial relationship test.

Explanation:

Equal protection

(standards of review)

Standard	Applicability	Test
Rational basis	Default test	*Challenger* must show • action is not rationally related • to legitimate government interest
Intermediate scrutiny	Discriminates against quasi-suspect class: • Sex/gender • Legitimacy	*Government* must show • action is substantially related • to important government interest
Strict scrutiny	Discriminates against suspect class: • Ethnicity • Citizenship (state law only) • Race • Nationality Impacts fundamental right (**First VIP**): • **First** Amendment rights • **V**oting • **I**nterstate travel • **P**rivacy: family, marriage, parental rights, sexual acts, contraceptives	*Government* must show • action is necessary (ie, least restrictive means) • to achieve compelling government interest

Equal protection challenges to discriminatory laws are generally reviewed under the **rational basis** test. This test requires the challenger to show that the law has no rational relationship to any legitimate government interest. Most laws subject to rational basis review are upheld because the court will give **extreme deference** to a **legislature's right to define** the law's objectives. And if those objectives are unclear, the law will still be upheld if the court can conceive of ***any*plausible justification** for the law. As a result, the court will likely rule that the ordinance is constitutional.

(Choice A) Laws are only subject to strict scrutiny if they substantially impact a fundamental right or suspect class. Since the ordinance discriminates based on a vendor's years of operation, this heightened level of scrutiny does not apply. But if it did, the ordinance would fail strict scrutiny since the city's interest in reducing traffic can be achieved by narrower or less restrictive means (eg, limiting vendors' hours of operation).

(Choice C) There are no per se (ie, automatic) equal protection violations. Instead, all equal protection challenges must undergo the appropriate review—strict scrutiny, intermediate scrutiny, or rational basis.

(Choice D) The substantial relationship test (ie, intermediate scrutiny) does not apply here since the ordinance does not substantially impact a quasi-suspect class. But if this test did apply, it would require a substantial nexus between the ordinance and an important (not merely legitimate) government interest.

Educational objective:

When reviewing an equal protection challenge under the rational basis test, the court will give extreme deference to a legislature's right to define a law's objectives. And if those objectives are unclear, the law will be upheld if the court can conceive of *any* plausible justification for the law.

References

- New Orleans v. Dukes, 427 U.S. 297, 305 (1976) (upholding a city ordinance containing a grandfather clause that discriminates against vendors that have been in operation for less than eight years).

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In response to consumer complaints across the country, Congress enacted a statute prohibiting private parties from making automated telephone calls that deliver a recorded message (robocalls). A severable provision of the statute permits robocalls solely to collect a debt owed to or guaranteed by the federal government.

An organization that wishes to make robocalls to solicit political donations challenged the statutory provision authorizing robocalls to collect federal government debt as unconstitutional under the First Amendment.

Will the organization's challenge likely prevail?

A. No, because the provision is a content-neutral speech restriction.

B. No, because the provision leaves open ample alternative channels of communication.

C. Yes, because the provision is a content-based speech restriction.

D. Yes, because the provision targets a particular form of communication for specific regulation.

Explanation:

Speech regulations

Type	Definition	Test
Content-based	• Facial discrimination • Primary purpose targets message, subject, or idea	Strict scrutiny • Necessary & narrowly tailored to achieve compelling interest
Content-neutral	• Regulates time, place, or manner of speech	Intermediate scrutiny • Narrowly tailored to achieve important interest • Alternative avenues of communication remain

The First Amendment **free speech clause** is designed to protect the free flow of information and ideas from undue government restrictions. A **content-based restriction** exists when the government treats speech differently based on its message or subject matter. Such a restriction is **presumptively invalid** and will only be upheld if it survives **strict scrutiny**. This level of scrutiny requires the government to satisfy the **nearly impossible task** of proving that the restriction is **necessary and narrowly tailored** to further a **compelling government interest**.

Here, the congressional statute prohibiting robocalls by private parties contains a severable provision* that permits such calls to collect a debt owed to or guaranteed by the federal government. This provision is a content-based speech restriction because it allows speech on one subject (government debt collection) but no others (eg, political donation solicitation). Since it is highly unlikely that the government can justify the provision under strict scrutiny, the organization's challenge will likely prevail.

*A statutory provision that is held unconstitutional does not affect the validity of the rest of the statute when, as here, it can be severed from the rest of the law.

(Choices A & B) Content-neutral speech restrictions regulate the time, place, or manner of speech (eg, no robocalls after 5:00 PM). These restrictions are constitutional if they satisfy intermediate scrutiny, which requires that alternative channels of communication remain open. But since the statutory provision here is a content-based restriction, the fact that it leaves open such channels is irrelevant.

(Choice D) A speech regulation does not violate the First Amendment simply because it specifically targets a particular form of communication (eg, robocalls—as seen here).

Educational objective:

A content-based speech restriction exists when the government singles out messages or subject matter for different treatment. Such restrictions will only be upheld if the government satisfies strict scrutiny by proving that the restriction is necessary and narrowly tailored to further a compelling government interest.

References

- Barr v. Am. Ass'n of Political Consultants, Inc., 140 S. Ct. 2335, 2347 (2020) (holding that a provision allowing robocalls to collect government debt but barring all others is a content-based restriction that cannot satisfy strict scrutiny).

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A city ordinance requires every taxicab operator in the city to have a license and permits revocation of that license only for "good cause." The ordinance conditions the issuance of such a license on an agreement that the licensee "not display in or on his or her vehicle any bumper sticker or other placard or sign favoring a particular candidate for any elected municipal office." The ordinance imposes this condition to prevent the possible imputation of the views of taxicab licensees onto the city council, and it states that any licensee who violates this condition shall have his or her license revoked.

A driver who holds a taxicab operator's license decorates his cab with bumper stickers and other signs favoring specified candidates in a forthcoming election for municipal offices. A proceeding is initiated against him to revoke his taxicab operator's license on the sole basis of that admitted conduct.

In this proceeding, does the driver have a meritorious constitutional defense?

A. No, because a taxicab operator's license is a privilege and not a right and, therefore, is not protected by the due process clause of the Fourteenth Amendment.

B. No, because he accepted the license with knowledge of the condition and, therefore, has no standing to contest it.

C. Yes, because such a proceeding threatens the driver with a taking of property, his license, without just compensation.

D. Yes, because the condition imposed on taxicab operators' licenses restricts political speech based wholly on its content, without any adequate governmental justification.

Explanation:

The city ordinance infringes upon the First Amendment right to **free expression** by conditioning the issuance of a license on the driver's promise not to display signage favoring political candidates. The ordinance regulates speech based on its **content** (ie, message, subject, or ideas), so it is **presumptively invalid** and only enforceable if it survives **strict scrutiny**. This requires the government to prove that the ordinance is **necessary and narrowly tailored** (ie, the least restrictive means) to achieve a compelling government interest.

Here, the city may have a compelling interest in avoiding the imputation of drivers' views onto the city council. But since that interest can be achieved through less restrictive means—eg, by requiring drivers to display a disclaimer—the ordinance cannot survive strict scrutiny. As a result, the driver has a meritorious constitutional defense against his license being revoked based solely on his violation of this invalid ordinance.

(Choice A) The Supreme Court no longer distinguishes between a privilege and a right when considering challenges under the Fourteenth Amendment due process clause.

(Choice B) The driver did not waive his constitutional right to engage in political speech by accepting the license with knowledge of the signage condition. Therefore, the driver *does* have standing to contest the revocation of his license.

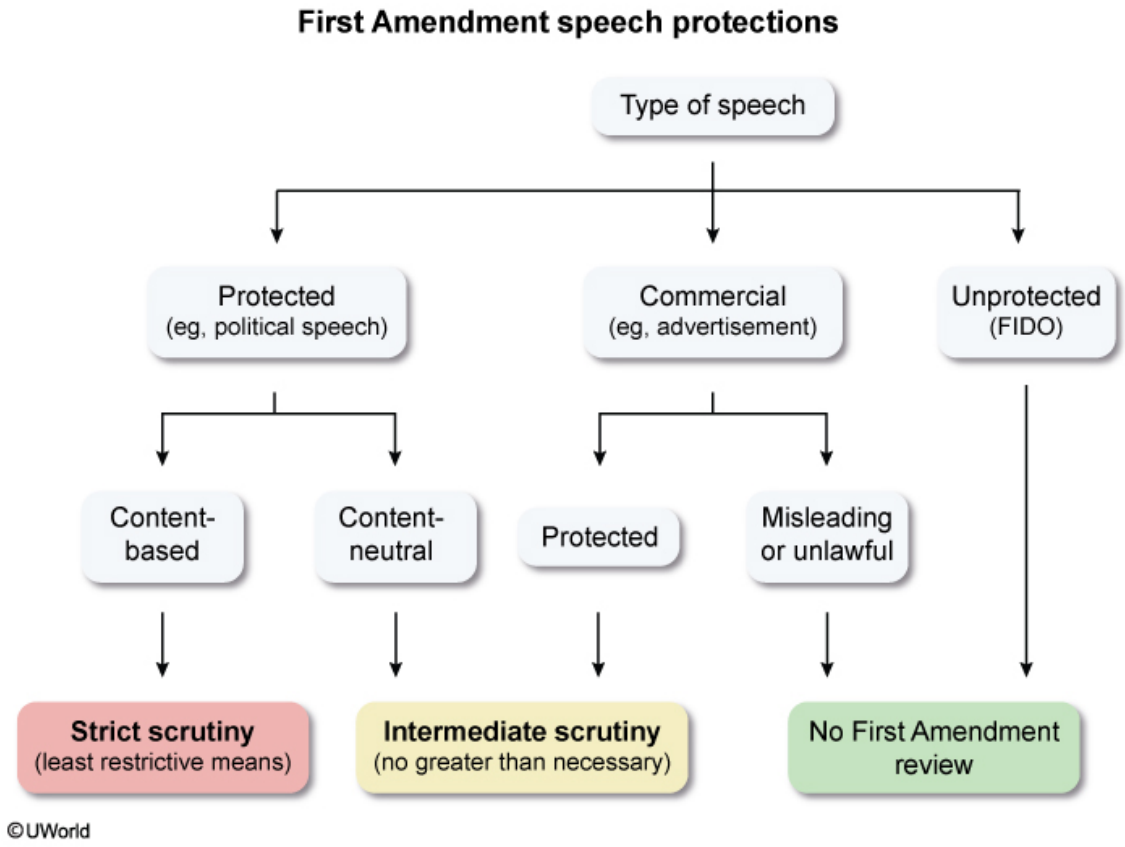
(Choice C) The Fifth Amendment takings clause only requires the payment of just compensation when the government takes private property for *public use*, so it does not apply here.

Educational objective:

Content-based speech regulations must pass strict judicial scrutiny. This requires proof that the regulation is necessary and narrowly tailored to achieve a compelling government interest.

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First Amendment speech protections
Type of speech
Protected
(eg, political speech)
Commercial
(eg, advertisement)
Unprotected
(FIDO)
Content-based
Content-neutral
Protected
Misleading or unlawful
Strict scrutiny
(least restrictive means)
Intermediate scrutiny
(no greater than necessary)
No First Amendment review
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To encourage the growth of its population, a state established a program that awarded $1,000 to the parents of each child born within the state, provided that at the time of the child's birth the mother and father of the newborn were citizens of the United States.

A married couple, noncitizens who are permanent residents of the United States, have resided in the state for three years. When their first child was born two months ago, they applied for and were denied the $1,000 award by state officials on the sole ground that they are not citizens of the United States. The couple filed suit in federal court contending that their exclusion from the award program was unconstitutional. Assume no federal statute addresses this question.

In this case, how should the court rule as to the constitutionality of the state's exclusion of noncitizens from the award program?

A. The exclusion is constitutional, because the state has a legitimate interest in encouraging the growth of its population, and a rational legislature could believe that families in which both parents are United States citizens are more likely to stay in the state and contribute to its future prosperity than those in which one or both of the parents are noncitizens.

B. The exclusion is constitutional, because the Tenth Amendment reserves to the states plenary authority over the spending of state funds.

C. The exclusion is unconstitutional, because state classifications based on citizenship are impermissible unless explicitly authorized by an act of Congress.

D. The exclusion is unconstitutional, because strict scrutiny governs judicial review of such state classifications based on citizenship, and the state cannot demonstrate that this classification is necessary to advance a compelling state interest.

Explanation:

Discriminatory state action can be challenged on **Fourteenth Amendment equal protection** grounds. When such action discriminates against a **suspect class** or substantially impacts a fundamental right, it must survive **strict scrutiny**—the most stringent standard of review. This requires the state to prove that its action is **necessary** to advance a **compelling state interest**. And since this is a **nearly impossible standard** to meet, state actions subject to strict scrutiny are almost always held unconstitutional.

Here, the state program discriminates against parents who are resident noncitizens by denying them the $1,000 award given to other parents of newborns. Since citizenship is a suspect class, strict scrutiny applies. And since the state's interest in promoting population growth could be achieved without excluding resident noncitizens from its award program, the state cannot demonstrate that its actions were necessary to advance a compelling state interest. As a result, the court should find the state's exclusion of noncitizens from the award program unconstitutional.

(Choice A) Under the *rational basis* test (the least stringent standard of review), government actions are constitutional as long as they are rationally related to any legitimate state interest. But this test only applies when the government action does not impact a quasi-suspect class, suspect class, or fundamental right.

(Choice B) The Tenth Amendment gives the states any powers not given to the federal government. But states must comply with other constitutional provisions like the equal protection clause when exercising those powers.

(Choice C) Congress cannot authorize state classifications based on citizenship. Such classifications must survive strict judicial scrutiny instead.

Educational objective:

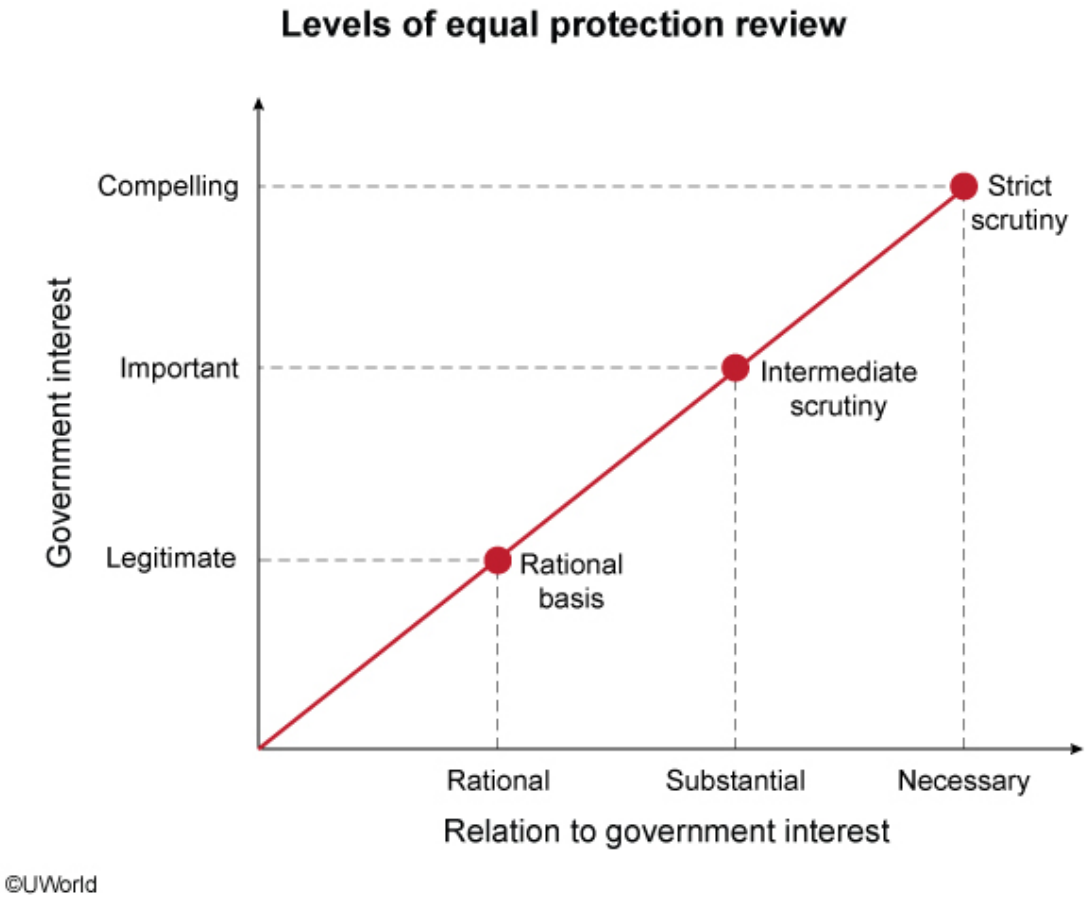
State actions that discriminate against a suspect class or substantially impact a fundamental right are subject to strict scrutiny. Under this most stringent standard of review, such actions are unconstitutional unless the state can prove that they are necessary to advance a compelling state interest.

References

- Nyquist v. Mauclet, 432 U.S. 1, 7 (1977) (explaining that state classifications based on citizenship are inherently suspect and subject to strict scrutiny).

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Levels of equal protection review
Compelling
Important
Legitimate
Government interest
Strict scrutiny
Intermediate scrutiny
Rational basis
Rational
Substantial
Necessary
Relation to government interest

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The governor of a state proposes to place a Christmas nativity scene, the components of which would be permanently donated to the state by private citizens, in the state capitol building rotunda where the state legislature meets annually. The governor further proposes to display this state-owned nativity scene annually from December 1 to December 31, next to permanent displays that depict the various products manufactured in the state. The governor's proposal is supported by all members of both houses of the legislature.

If the governor's proposed nativity-scene display is challenged in a lawsuit on establishment clause grounds, will the court likely find it constitutional?

A. No, because the components of the nativity scene would be owned by the state rather than by private persons.

B. No, because the nativity scene would not be displayed in a context that appeared to depict and commemorate the Christmas season as a primarily secular holiday.

C. Yes, because the components of the nativity scene would be donated to the state by private citizens rather than purchased with state funds.

D. Yes, because the nativity scene would be displayed alongside an exhibit of various products manufactured in the state.

Explanation:

Government displays of religious symbols (eg, nativity scene, menorah) violate the First Amendment **establishment clause**—which guarantees the separation of church and state—unless they satisfy the **endorsement test**. Under this test, a display is prohibited when its **overall context** would cause a **reasonable observer** to conclude that the display **endorses** (or disapproves of) **religion**.

Here, the governor proposes placing a Christmas nativity scene in the state capitol building rotunda. A reasonable observer would likely conclude that this display endorses religion (specifically Christianity) since:

- it would be located on prominent government property *and*
- it would not include secular holiday items (eg, Christmas tree, reindeer) that would negate the endorsement of religion represented by the nativity scene.

And since the nativity scene would not be displayed in a context that depicts and commemorates the Christmas season as a primarily secular holiday, the court will likely find the display unconstitutional.

(Choice A) If the proposed nativity scene were displayed in a context that paints Christmas as a primarily secular holiday, the fact that the state (not private persons) owned the display would not make it unconstitutional.

(Choice C) The fact that the nativity scene's components would be donated by private persons—if disclosed to the public—could support a reasonable belief that the display is not a government endorsement of religion. But it is unlikely that this one factor would overcome the display's overall appearance of endorsement.

(Choice D) Displaying the nativity scene alongside an exhibit of state-manufactured products would only lessen the display's religious endorsement if those products were secular, *holiday-themed* items. Without such evidence, the court cannot conclude that the display commemorates Christmas as a primarily secular holiday.

Educational objective:

Under the endorsement test, government displays of religious symbols violate the establishment clause when the overall context of the display would cause a reasonable person to conclude that the display endorses religion.

References

- Lynch v. Donnelly, 465 U.S. 668, 692–93 (1984) (finding that a government-sponsored nativity scene surrounded by secular holiday displays is not a government endorsement of religion).

- County of Allegheny v. ACLU, 492 U.S. 573, 598–601 (1989) (holding that a government-sponsored nativity scene located on prominent government property and not surrounded by secular holiday displays is unconstitutional).

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Establishment clause
(endorsement of religion prohibited)

Constitutional display



Unconstitutional display



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A city owned and operated a municipal bus system. The city sold space on its buses for the posting of placards. Under the relevant city ordinance, the administrator of the bus system had sole discretion to decide which placards could be posted on the buses, and the administrator's decision was final. Although most of the placards that appeared on city buses were commercial advertisements, the administrator had often sold space on the buses for placards promoting various political, charitable, and religious causes.

After a circus bought space on the buses for placards advertising its upcoming performances, an animal rights organization asked to buy space for a placard with photographs showing the mistreatment of animals in circus shows.

The administrator denied the organization's request, stating that the proposed placard would be offensive to the circus, which had paid a substantial sum to place its placards on the buses, and that a circus employee had told her that none of the photographs on the organization's placard depicted animals belonging to this particular circus.

The organization sued the administrator in an appropriate court for a declaration that her denial of the organization's request for placard space for the reasons she gave violated the First Amendment as made applicable to the states by the Fourteenth Amendment.

Is the organization likely to prevail?

A. No, because a public official may not allow the use of public facilities for the propagation of a message that he or she believes may create a false or misleading impression.

B. No, because the administrator's denial of space to the organization was a reasonable time, place, and manner restriction of speech.

C. Yes, because a public official may not refuse to allow the use of any public facility to publish a message dealing with an issue of public concern.

D. Yes, because a public official may not refuse to permit the dissemination of a message in a public forum solely on the basis of its content unless that denial is necessary to serve a compelling government interest.

Explanation:

Forum-based regulation of speech

Types	Definition	Regulations
Traditional public forums	Public property historically used for, or associated with, public speech (eg, streets, sidewalks, parks)	Content-based regulations *prohibited*
Designated (limited) public forums	Public property opened for specific types of expression (eg, school classrooms, civic auditoriums)	
Nonpublic forums	All other public property	Content-based regulations *permitted* if viewpoint-neutral

The **First Amendment prohibits** the government from engaging in **content-based discrimination** against different categories of **speech** in public forums. Therefore, government censorship of speech **based solely on its message** (or what is said) will only be upheld if the government can satisfy **strict scrutiny**. This requires the government to prove that its actions are necessary and narrowly tailored to achieve a compelling government interest.

Here, the administrator for the municipal bus system denied the animal rights organization's request to buy space for placards with photos of mistreated circus animals. Her stated reasoning was that the content of the placard would offend the circus and the photos therein did not depict animals belonging to that circus. Since this constitutes content-based discrimination that is unlikely to pass strict scrutiny, the organization will likely prevail.

(Choice A) The government can limit the use of public facilities for *commercial* speech (eg, an advertisement placard) that creates a false or misleading impression since that speech is not protected by the First Amendment. But it cannot limit the use of public facilities for *noncommercial* speech—even if it is false or misleading—since that amounts to a content-based restriction subject to strict scrutiny.

(Choice B) The administrator's denial of space for bus placards was based on the content—not the time, place, or manner—of the organization's message. However, reasonable time, place, and manner restrictions are permitted in designated public forums. Here, the placard spaces likely qualify as designated public forums because the city opened this public property for expressive use—including political, charitable, religious, and commercial content.*

*In contrast, the bus likely would have been a nonpublic forum had the city permitted only commercial content or put comprehensive, restrictive guidelines in place for approving noncommercial content.

(Choice C) A public official engages in content-based regulation by refusing to allow the use of a public facility to publish a message that addresses a public concern. But this refusal is permitted in *nonpublic* forums so long as it is viewpoint-neutral—ie, denies discussion on all sides of the issue.

Educational objective:

The government can only impose content-based restrictions on speech in public forums if the government can satisfy the strict scrutiny test—ie, prove that the restriction is necessary to achieve a compelling government interest.

References

- Lehman v. City of Shaker Heights, 418 U.S. 298, 303–04 (1974) (holding that advertisement placards on a city-owned transit system are a nonpublic forum when the city permits commercial content only).
- N.Y. Magazine v. Metro. Transp. Auth., 136 F.3d 128, 130 (2d Cir. 1998) (holding that a designated public forum exists when a city permits both noncommercial and commercial content on city-owned transit systems).

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A state law imposed a generally applicable sales tax payable by the vendor. That law exempted from its provisions the sale of "all magazines, periodicals, newspapers, and books." In order to raise additional revenue, the state legislature eliminated that broad exemption and substituted a narrower exemption. The new, narrower exemption excluded from the state sales tax only the sale of those "magazines, periodicals, newspapers, and books that are published or distributed by a state-recognized religious faith and that consist wholly of writings sacred to such a religious faith."

A magazine devoted to history and politics paid under protest the sales tax due on its sales according to the amended sales tax law. The magazine then filed suit against the state in an appropriate state court for a refund of the sales taxes paid. It contended that the state's elimination of the earlier, broader exemption and adoption of the new, narrower exemption restricted to sacred writings of state-recognized religious faiths violates the First and Fourteenth Amendments to the Constitution.

In this case, how will the court likely rule?

A. The Eleventh Amendment bars the state court from exercising jurisdiction over this suit in the absence of a state law expressly waiving the state's immunity.

B. The magazine lacks standing to sue for a refund of sales taxes imposed by a generally applicable state law because Article III of the Constitution precludes taxpayers from bringing such suits.

C. The new, narrower exemption from the state sales tax law violates the establishment clause of the First and Fourteenth Amendments by granting preferential state support to religious faiths recognized by the state.

D. The new, narrower exemption from the state sales tax law violates the freedom of the press guaranteed by the First and Fourteenth Amendments because it imposes a prior restraint on nonreligious publications that are required to pay the tax.

Explanation:

Establishment clause tests

Test	Requirements	Applicability
Historical*	• Longstanding tradition & historical foundation	Default
Endorsement	• No appearance that government endorses religion	Public displays or monuments (eg, holiday displays)
Coercion	• No forced conformity with religious belief or practice	Public schools (eg, convocation prayer)

*Courts may apply strict scrutiny if government directly benefits/burdens religion.

Government benefits to **religious organizations** must comply with the First Amendment **establishment clause**, which applies to the states through the Fourteenth Amendment. Challenges brought under this clause are generally reviewed under the historical test. However, courts may forego this test and apply the more stringent **strict scrutiny** test when the law **directly benefits or burdens a particular religion**. Under strict scrutiny, the law is invalid unless the government proves that the law is **necessary** to achieve a **compelling government interest**.

Here, the new sales tax exemption applies only to sacred writings published or distributed by religious faiths recognized by the state. This exemption directly benefits state-recognized religions and burdens unrecognized religions, so strict scrutiny applies. And since it is unlikely that the state will be able to show that granting preferential state support to state-recognized religious faiths is necessary to achieve a compelling interest, the court will likely rule that the exemption violates the establishment clause.

(Choice A) The Eleventh Amendment bars private parties (and foreign governments) from suing a state in *federal* court without the state's express consent. But since the magazine sued in *state* court, the Eleventh Amendment does not apply.

(Choice B) Article III's standing requirement only applies to federal courts. But even if it applied to state courts, taxpayers *do* have standing to sue the government for sales tax refunds or any other issue regarding taxes owed if that injury is redressable by the remedy sought.

(Choice D) Prior restraints are a form of government censorship that bans publication before it occurs. As a result, they are unconstitutional absent exceptional circumstances (eg, national security). Here, the tax exemption is not a prior restraint since it does not prohibit publication.

Educational objective:

Establishment clause challenges are generally reviewed under the historical test. But strict scrutiny can be used instead when a law directly benefits or burdens a particular religion. In that case, the law is invalid unless the government proves that the law is necessary to achieve a compelling government interest.

References

- Texas Monthly, Inc. v. Bullock, 489 U.S. 1, 14–15, 20 (1989) (holding that preferential tax exemptions solely for religious groups violate the establishment clause).
- Larson v. Valente, 456 U.S. 228, 246 (1982) (explaining that strict scrutiny applies to laws that aid or prefer one religion).

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A city ordinance created a three-member zoning board, which is responsible for approving the location of all entertainment venues in the city. In an inseverable provision, the ordinance requires that one member of the board be a representative of the local council of churches.

A minister was appointed to the board to represent the local council of churches. During the minister's tenure, the board denied a company permission to open a nightclub in a particular location solely because it would be so close to an existing church that it might disturb the church's operations. The company has challenged the ordinance and its application in federal court on constitutional grounds.

Is the company likely to prevail?

A. No, because the existing church has a right to have its vested property interests protected.

B. No, because the minister was only one of three votes and, therefore, could not dictate the decision of the zoning board.

C. Yes, because, as applied, the ordinance denied the company the equal protection of the laws by irrationally discriminating against its particular type of business.

D. Yes, because the requirement that the zoning board include a representative of the local council of churches violates the First and Fourteenth Amendments.

Explanation:

A law that **benefits or burdens religion** can be challenged under the First Amendment **establishment clause**, as applied to states and municipalities through the Fourteenth Amendment. This clause places a wall of **separation between church and state**. But this wall contains gates that can be opened if the government passes the appropriate test. The busiest gate—the **historical test**—opens when a law has **historically been permitted** in accordance with the **original meaning of the Constitution**.

Here, an ordinance requires that one member of the zoning board be a representative of the local council of churches. However, guaranteeing religious institutions positions on government boards and committees has historically not been permitted under the original meaning of the Constitution. Since the ordinance requires membership by a church representative on the zoning board, the gates of the establishment-clause wall should remain closed. Therefore, the company will likely prevail.

(Choice A) Although the church has a vested interest in its property, this interest can only be protected by constitutional means—eg, religiously neutral zoning decisions.

(Choice B) The minister had only one of three votes and could not dictate the zoning board's decision. But the provision granting him a spot on the board is still unconstitutional as violative of the establishment clause.

(Choice C) The equal protection clause can be used to invalidate a law that is applied in a discriminatory manner. But since there is no evidence that similarly situated businesses were permitted to open near a church, there is no proof of discrimination against the company. As a result, it is unlikely to prevail on this basis.

Educational objective:

The historical test allows the government to pass through the First Amendment establishment-clause wall separating church and state when the government action has historically been permitted in accordance with the original meaning of the Constitution.

References

- Larkin v. Grendel's Den, 459 U.S. 116, 125–27 (1982) (holding that a law that delegates or shares important government powers with a religious institution violates the First Amendment establishment clause).
- Kennedy v. Bremerton School Dist., 142 S. Ct. 2407, 2428 (2022) (holding that challenges based on the establishment clause "must be interpreted by reference to historical practices and understandings").

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Wall separating church and state



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A doctor who was licensed to practice medicine in a particular state was convicted in state court of improperly distributing specified drugs by writing prescriptions for fictitious persons. Under state law, such an abuse of the prescription-writing privilege requires revocation of a doctor's license. After it received an official notification of the doctor's conviction, the state medical board revoked the doctor's license without affording him any opportunity for a hearing.

The doctor has sued the board in state court to set aside the revocation, alleging deprivation of property without due process of law because the board did not provide an opportunity for a trial-type hearing before revoking the license. The doctor does not deny the conviction or the factual basis for it.

Which of the following is the strongest argument in support of the state medical board?

A. A doctor's license to practice is a privilege, not a right, and therefore is not property within the meaning of the due process clause of the Fourteenth Amendment.

B. Due process requires a balancing of interests, and the state's interest in preventing drug abuse outweighs the doctor's interest in the particular procedure followed in the disciplinary proceeding.

C. The adjudicative facts necessary to revoke the doctor's license were determined in the criminal trial, and therefore due process does not require any further trial-type hearing.

D. The licensing board was required to summarily revoke the doctor's license because Article IV, Section 1, of the Constitution requires the licensing board to give full faith and credit to the doctor's criminal conviction.

Explanation:

Procedural due process requires that the government provide **reasonable notice** and a **meaningful opportunity to be heard** before a neutral decision-maker when depriving persons of life, liberty, or property. To determine whether the government provided due process, courts **balance three factors**:

- the **private interest** affected by the deprivation
- the **risk of erroneous deprivation** of that interest through current procedures and the probable **value of additional** or **substitute procedural safeguards** *and*
- the **government's interest**, including the fiscal and administrative burdens that other safeguards would entail.

Here, the doctor's property interest in his medical license is likely outweighed by the state's interest in preventing drug abuse—particularly since additional or substitute proceedings would fiscally and administratively burden the medical board. And the risk of erroneously depriving the doctor of his license is low given the protections afforded in his related criminal proceeding. Therefore, the board's strongest argument is that the facts necessary to revoke the doctor's license were determined in the criminal trial, so no further trial-type hearing is required.

(Choice A) Due process protections historically extended to rights—not privileges. But this distinction has been abandoned, and such protections extend to any legitimate life, liberty, or property interest.

(Choice B) Due process does require a balancing of interests. But it weighs the state's interest in preventing drug abuse against the doctor's interest in his license (not the board's particular procedures) *and* the risks of current procedures and value of alternative safeguards.

(Choice D) Under the full faith and credit clause, a valid judgment issued in one state must be recognized in every other state. This clause does not apply here since the doctor's conviction and license revocation occurred in the same state. But even if it did, the state need only honor the criminal conviction—not revoke the doctor's license.

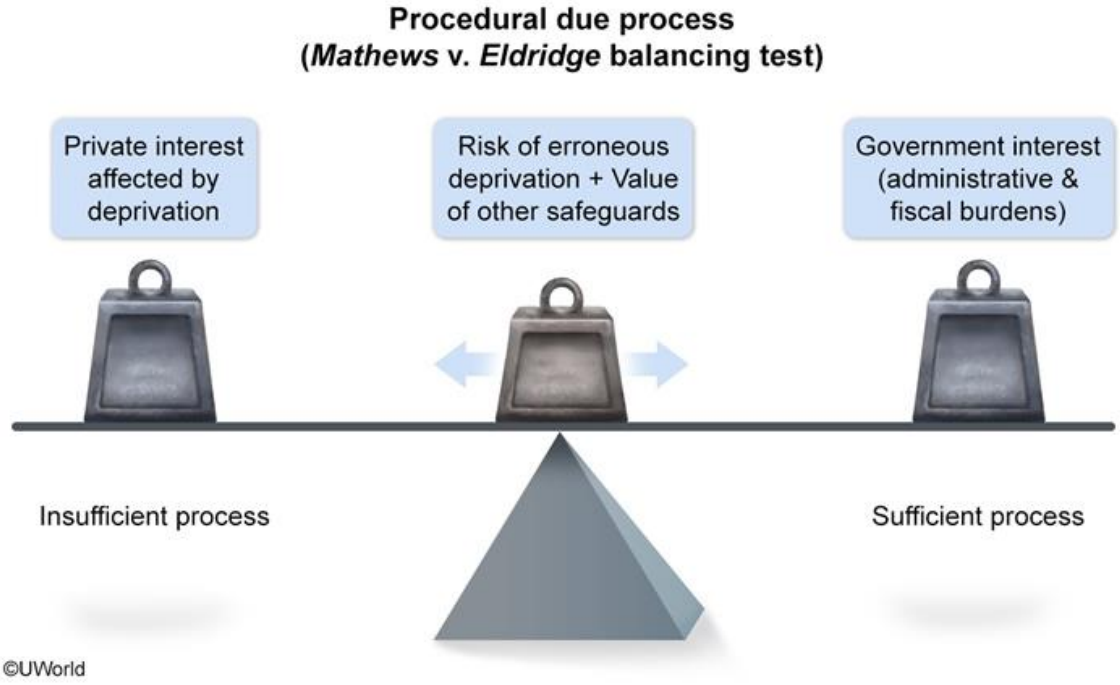
Educational objective:

Procedural due process is assessed by weighing three factors: (1) the private interest affected, (2) the risk of erroneous deprivation of that interest and probable value of other procedural safeguards, and (3) the government's interest, including the fiscal and administrative burdens that other safeguards would entail.

References

- Mathews v. Eldridge, 424 U.S. 319, 335 (1976) (listing the three factors used to assess compliance with procedural due process).

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A state statute prohibits any retailer of books, magazines, pictures, or posters from "publicly displaying or selling to any person any material that may be harmful to minors because of the violent or sexually explicit nature of its pictorial content." Violation of this statute is a misdemeanor.

A corner store displays publicly and sells magazines containing violent and sexually explicit pictures. The owner of this store is prosecuted under the above statute for these actions.

In defending against this prosecution in a state trial court, which of the following is the best defense for the corner store?

A. Equal protection of the laws, because the statute irrationally distinguishes between violent and sexually explicit pictorial material that may harm minors and such material that may harm only adults.
B. Equal protection of the laws, because the statute irrationally treats violent and sexually explicit material that is pictorial differently from such material that is composed wholly of printed words.
C. First Amendment as it is incorporated into the Fourteenth Amendment, because a state may not prohibit the sale of violent or sexually explicit material in the absence of proof that the material is utterly without any redeeming value in the marketplace of ideas.
D. First Amendment as it is incorporated into the Fourteenth Amendment, because the statute is excessively vague and overbroad.

Explanation:

The **First Amendment free speech** clause (applied to the states through the **Fourteenth Amendment**) protects the free flow of ideas with limited exceptions. A law that infringes upon this right can be challenged on its face and struck down in its entirety under either:

- the **overbreadth** doctrine – renders laws unconstitutional if they **restrict** a substantial amount of **protected speech** *or*
- the **vagueness** doctrine – renders laws unconstitutional if **ordinary persons** would have to guess the law's meaning because the law fails to provide notice of what speech is prohibited.

Here, the state statute regulates speech by prohibiting retailers from publicly displaying or selling *any* material containing violent or sexually explicit pictures that may be harmful to minors. Although some violent or sexually explicit speech is not protected by the First Amendment, a substantial amount is. Therefore, the overbreadth doctrine is a defense against the enforcement of this statute. And since this statute also requires ordinary persons to guess as to which materials may be harmful to minors, the vagueness doctrine is another valid defense.

(Choices A & B) The Fourteenth Amendment equal protection clause prohibits states from treating similarly situated persons (or classes of persons) differently without adequate justification. But here, there is no evidence that this law is being applied in a discriminatory manner—eg, had corner store owners, but no other retailers, been prosecuted under the statute. Therefore, an equal protection defense would likely fail.

(Choice C) A state *may* prohibit the sale of violent or sexually explicit material if (1) it falls outside of the First Amendment's protections—eg, material that incites crime or is obscene under the *Miller* test—or (2) this content-based restriction passes strict scrutiny. Neither requires proof that the material is utterly without any redeeming value in the marketplace of ideas.

Educational objective:

A law that interferes with the freedom of speech will be struck down on its face if it restricts a substantial amount of protected speech (ie, overbroad) OR fails to give ordinary persons notice of the prohibited speech (ie, unduly vague).

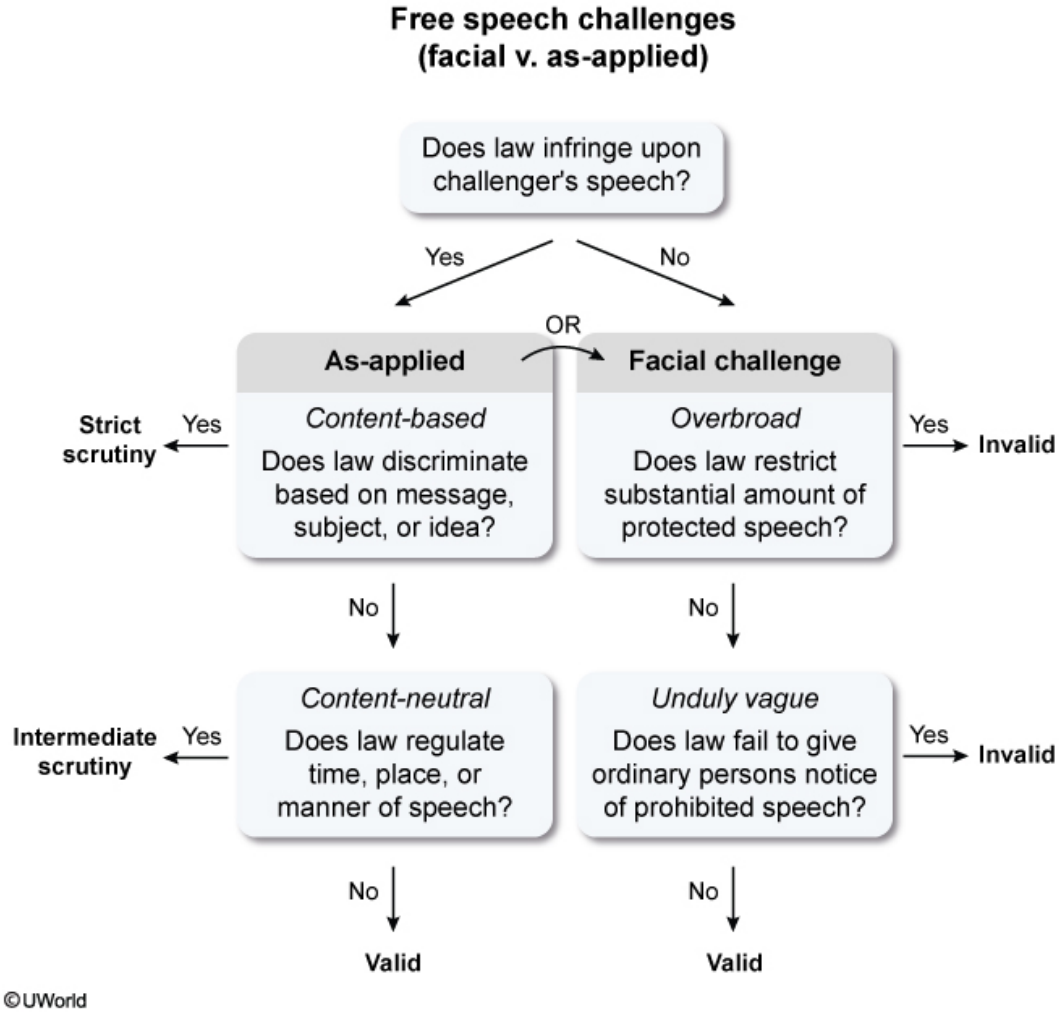
References

- Watchtower Bible & Tract Soc'y of N.Y., Inc. v. Vill. of Stratton, 536 U.S. 150, 165 (2002) (finding an ordinance overbroad since it prohibits all door-to-door, not just commercial, canvassing without a license).

- Gentile v. State Bar of Nev., 501 U.S. 1030, 1057–58 (1991) (striking down a law for vagueness since it tends to mislead attorneys about potential punishment for pretrial publicity of clients' criminal defenses).

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A purchaser bought land in the mountain foothills just outside a resort town and planned to build a housing development there. Soon thereafter, the county in which the land was located unexpectedly adopted a regulation that, for the first time, prohibited all construction in several foothill and mountain areas, including the area of the purchaser's property. The purpose of the county's regulation was "to conserve for future generations the unique natural wildlife and plant habitats" in the mountain areas. Since the adoption of the regulation, the purchaser has been unable to lease or sell the property at any price. Several realtors have advised the purchaser that his property is now worthless.

The purchaser has sued the county, claiming that the regulation has effected a taking of the purchaser's property and that the county therefore owes the purchaser just compensation.

Is the court likely to rule in favor of the purchaser?

A. No, because the county did not take title to the property from the purchaser.

B. No, because the regulation has not caused or authorized any uninvited physical invasion or intrusion onto the property.

C. Yes, because the conservation objective of the county ordinance is not sufficiently compelling to justify the substantial diminution in the property value.

D. Yes, because the effect of the county's regulation is to deny the purchaser's investment-backed expectation and essentially all economically beneficial use of the property.

Explanation:

Fifth Amendment takings

Type	Attributes
Physical	• Possession or permanent physical invasion of property
Regulatory	• Deprivation of all economically beneficial uses • Restricts use under totality of circumstances: – character of government action – economic impact – reasonable investment-back expectations
Exaction	• Condition to obtain building/development permit
Destruction	• Destruction of property or property interest (eg, easements, liens)

A **taking** occurs when the government:

- **physically possesses or invades** private property (ie, physical taking) *or*
- **deprives** the owner of **all economically beneficial use** of the property but the **owner retains possession** (ie, regulatory taking) **(Choices A & B)**.

And under the Fifth Amendment—as applied to the states through the Fourteenth Amendment—a taking must be for a public use, and the government must justly compensate the owner for the property's fair market value.

Here, the county's regulation prohibits all construction on the purchaser's land. This amounted to a regulatory taking because it denied the purchaser (1) his investment-backed expectation for the planned housing development and (2) essentially all economically beneficial use of the property. And since the property was rendered worthless, the court will likely rule that the purchaser is entitled to just compensation.

(Choice C) The ordinance's objective to conserve natural wildlife and plant habitats may be compelling. But the county can only justify the substantial diminution in the purchaser's property value by providing him just compensation.

Educational objective:

A Fifth Amendment taking occurs when (1) the government physically possesses or invades private property or (2) the owner retains possession but loses all economically beneficial use of the property due to government action.

References

- Lucas v. S.C. Coastal Council, 505 U.S. 1003, 1019 (1992) (holding that a deprivation of all economically beneficial uses of property constitutes a taking).
- 26 Am Jur. 2d Eminent Domain § 12 (2019) (explaining a deprivation of all economically beneficial uses of property).

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A state law required vacant public school buildings to be sold at auction to the highest bidder. A church in a city located in the state wanted to acquire larger facilities for its school. The city's school board proposed a new state law that would authorize it to sell a vacant public school building, at a price below its fair market value, to the church for use as its school.

If enacted, would this law be constitutional?

A. No, because a statute specially authorizing the sale of the building without competitive bidding would violate the equal protection clause of the Fourteenth Amendment.

B. No, because the transfer of the building to the church under these circumstances would constitute an establishment of religion prohibited by the First and Fourteenth Amendments.

C. Yes, because surplus government property is not subject to the limitations imposed by the establishment clause as incorporated into the Fourteenth Amendment.

D. Yes, because the law would not primarily or substantially support the religious activities of the church.

Explanation:

Establishment clause tests

Test	Requirements	Applicability
Historical*	• Longstanding tradition & historical foundation	Default
Endorsement	• No appearance that government endorses religion	Public displays or monuments (eg, holiday displays)
Coercion	• No forced conformity with religious belief or practice	Public schools (eg, convocation prayer)

*Courts may apply strict scrutiny if government directly benefits/burdens religion.

The First Amendment **establishment clause**, applied to the states through the Fourteenth Amendment, compels government **neutrality toward religion**. Laws that purportedly favor (or disfavor) a particular religion are generally reviewed under the historical test. But courts may forego this test and apply the more stringent **strict scrutiny** test when the law ***expressly* impacts a religion**. Under strict scrutiny, the law is invalid unless the government proves that the law is **necessary** to achieve a **compelling government interest**.

Here, the proposed law expressly favors the church by allowing it (but no others) to purchase a vacant public school building at a below-market price. The state may have an interest in reusing vacant schools for educational purposes. But since there is no indication that the building must be transferred to the church at a lower price to achieve that interest, the proposed law would be an unconstitutional establishment of religion.

(Choice A) The state-authorized sale of the building without competitive bidding can be challenged under the equal protection clause since it discriminates against other buyers. But it would *not violate* that clause since it does not discriminate against a protected class or substantially impact a fundamental right.

(Choice C) The establishment clause does not contain an exception for surplus government property.

(Choice D) The primary or substantial effect of the law would be considered only if the court applied the *Lemon* test instead of strict scrutiny. But the *Lemon* test is no longer used in establishment clause challenges.

Educational objective:

Establishment clause challenges are generally reviewed under the historical test. But strict scrutiny can be used instead when a law expressly impacts a religion. In that case, the law is

invalid unless the government proves that the law is necessary to achieve a compelling government interest.

References

- Larson v. Valente, 456 U.S. 228, 246 (1982) (explaining that strict scrutiny applies to laws that aid or prefer one religion).
- Kennedy v. Bremerton School Dist., 142 S. Ct. 2407, 2428 (2022) (holding that challenges based on the establishment clause "must be interpreted by reference to historical practices and understandings").

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A state initiated a criminal prosecution against the owner of a video store for selling a video that consisted entirely of pictures of nude sunbathers on a beach in a foreign country where nude public sunbathing is common. The state charged that selling the video violated its anti-obscenity law. The store owner defended on the ground that the prosecution violated his constitutional right to freedom of speech.

Should the store owner prevail in this defense?

A. No, because the store owner is engaged in the commercial sale of the video, which is not protected by the First and Fourteenth Amendments.

B. No, because the video consists entirely of portrayals of nudity, appeals to the prurient interest of viewers, and lacks serious social value as a whole.

C. Yes, because mere portrayals of nudity are insufficient to justify a finding that the video is obscene as a matter of constitutional law.

D. Yes, because the portrayals of nudity occurred outside the United States, and therefore the state lacks a compelling interest in applying its anti-obscenity law to the sale of the video.

Explanation:

Unprotected speech

- **F**ighting words/threats
- **I**nciting crime
- **D**efamation
- **O**bscenity

Mnemonic: **FIDO**

The First Amendment **free speech clause** generally prohibits the government from regulating speech based on its content (ie, what is being said). Such content-based regulations are usually subject to strict scrutiny. But certain categories of speech—like **obscenity**—are **not protected** and can be freely regulated by the government. Under the ***Miller*test**, speech is considered obscene when it:

- appeals to the prurient interest (ie, a shameful or morbid interest in sexual matters)
- depicts sexual conduct in a patently offensive way *and*
- lacks serious literary, artistic, political, or scientific value.

The first two elements of this test are evaluated under contemporary community standards, while the third element is evaluated under a national standard. But **mere portrayals of nudity**—as seen in the store owner's video—are **never obscene (Choice B)**. As a result, this content-based restriction is invalid unless it survives strict scrutiny. This requires the state to prove that the restriction is necessary to achieve a compelling state interest. And since this is a nearly impossible task, the store owner should prevail.

(Choice A) The government can freely regulate the production, sale, and distribution of obscene materials. But since the video is not obscene, commercial sale of the video *is* protected by the First Amendment (as applied to the states through the Fourteenth Amendment).

(Choice D) The location of the video itself is relevant since it affects whether the state has jurisdiction to prosecute the store owner. But where the nudity in that video occurred is irrelevant and does not affect the state's interest in applying the anti-obscenity law.

Educational objective:

Obscenity is not protected by the free speech clause. And under the three-part *Miller* test for evaluating obscenity, mere portrayals of nudity are never obscene.

References

- Miller v. California, 413 U.S. 15, 24 (1973) (setting forth the three-prong obscenity test).

- Erznoznik v. Jacksonville, 422 U.S. 205, 213–14 (1975) (holding that mere nudity is not obscene).

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A public university requires students to pay a student-activity fee that funds the activities of various student organizations. The university allocates these funds to student organizations without regard to their views.

A student organization received student-activity fee funds to hold a float parade. The organization rejected a student's float submission because the views espoused by the float were contrary to the organization's and parade's message. The student appealed the organization's decision to the university, but the university upheld the rejection of his submission.

The student has filed an action against the university, arguing that the university's decision to uphold the organization's rejection of the student's submission and the university's mandatory student-activity fee violate the First Amendment.

Are the university's actions constitutional?

A. The decision to uphold the organization's rejection of the student's submission and the mandatory student-activity fee are constitutional.
B. The decision to uphold the organization's rejection of the student's submission and the mandatory student-activity fee are unconstitutional.
C. The decision to uphold the organization's rejection of the student's submission is constitutional but the mandatory student-activity fee is unconstitutional.
D. The decision to uphold the organization's rejection of the student's submission is unconstitutional but the mandatory student-activity fee is constitutional.

Explanation:

First Amendment freedom not to speak

Type	Examples
Impermissible compulsion	• Forcing students to salute flag or recite Pledge of Allegiance • Punishing motorists for covering state motto on license plates • Requiring private groups to include opposing viewpoints in their events • Requiring nonunion employees to pay public-sector union dues
Permissible compulsion	• Forcing public university students to pay activity fee if funds allocated in viewpoint-neutral manner • Requiring public shopping center to permit speech on property if speech not dictated by state & not identified with center's owner • Requiring lawyers to join bar association & pay dues to practice law

The **First Amendment** protects individuals' freedom to speak and their **freedom not to speak**. This means that the government and its subsidiaries (eg, public universities) **cannot compel individuals** to **endorse or include viewpoints** with which they disagree. Here, the student organization had the right to reject the student's float submission, and the university could not force the organization to accept that submission. Therefore, the university's decision to uphold the organization's rejection of the submission is constitutional **(Choices B & D)**.

Additionally, the First Amendment **generally prohibits** the government and its subsidiaries from **compelling** individuals to **financially support *private* speech** with which they disagree.* However, there are limited **exceptions** to this rule, including that a public university can force its students to pay a student-activity fee if the funds are allocated in a **viewpoint-neutral manner**. Since the public university here allocates funds to student organizations without regard to their views, the mandatory student-activity fee is constitutional **(Choices B & C)**.

*Individuals can be compelled to subsidize government speech through taxes because the First Amendment does not prohibit the government from using taxpayer funds to advocate for or defend its own policies or viewpoints.

Educational objective:

The First Amendment protects the right to speak and not to speak. This means that the government cannot compel individuals to endorse, include, or financially support private speech with which they disagree. However, a public university can compel its students to pay an activity fee if the funds are allocated in a viewpoint-neutral manner.

References

- Hurley v. Irish-Am. Gay, Lesbian & Bisexual Grp. of Bos., 515 U.S. 557, 581 (1995) (holding that a state may not require private parade organizers to include messages they oppose in the parade).
- Bd. of Regents of Univ. of Wisconsin Sys. v. Southworth, 529 U.S. 217, 234 (2000) (holding that a public university's mandatory student-activity fee is constitutional if the fee is allocated in a viewpoint-neutral manner).
- 16A Am. Jur. 2d Constitutional Law §§ 471–73 (2020) (explaining when the First Amendment prohibits government-compelled speech).

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An independent municipal water-supply district was incorporated under the applicable laws of a state. The district was created solely to supply water to an entirely new community in a recently developed area of the state. That new community is racially, ethnically, and socioeconomically diverse, and the community has never engaged in any discrimination against members of minority groups.

The five-member elected governing board of the newly created water-supply district contains two persons who are members of racial minority groups. At its first meeting, the governing board adopted a rule unqualifiedly setting aside 25% of all positions on the staff of the water-supply district and 25% of all contracts to be awarded by the district to members of racial minority groups. The purpose of the rule was "to help redress the historical discrimination against these groups in this country and to help them achieve economic parity with other groups in our society." Assume that no federal statute applies.

In a suit by appropriate parties challenging the constitutionality of these set-asides, what is the most appropriate ruling based on applicable United States Supreme Court precedent?

A. The set-asides are constitutional, because the function and activities of the water-supply district are of a proprietary nature rather than a governmental nature and, therefore, are not subject to the usual requirements of the Fourteenth Amendment.

B. The set-asides are constitutional, because they would assure members of racial minority groups the equal protection of the laws.

C. The set-asides are unconstitutional, because they would deny other potential employees or potential contractors the equal protection of the laws.

D. The set-asides are unconstitutional, because they would impermissibly impair the right to contract of other potential employees or potential contractors.

Explanation:

Permissible race-based affirmative action

SCOTUS precedent	Discriminatory action	Government interest
Richmond v. J.A. Croson Co.	Minority set-asides for government employment/contracts	Remedying its own history of racial discrimination
Freeman v. Pitts	Race-based student assignments in public elementary/high schools	Remedying past intentional racial segregation in public schools
Grutter v. Bollinger	Race-based admissions policy in state universities	Achieving diverse student body in higher education

SCOTUS = Supreme Court of the United States.

All race-based classifications imposed by the government are subject to **strict scrutiny** under the equal protection clause—even when those classifications are designed to promote racial equality. That is because race is a suspect class that has historically faced discrimination. As a result, the government must prove that its racially discriminatory actions are **necessary** to achieve a **compelling government interest**.

Here, the water-district board developed an affirmative action program that sets aside a percentage of its employment positions and contracts for racial minorities (ie, minority set-asides). And in *Richmond v. J.A. Croson Co.*, the Supreme Court held that these discriminatory programs can only survive strict scrutiny if the government proves that:

- it has a compelling interest in remedying its *own* history of discrimination against the favored group *and*
- the discriminatory program is necessary because race-neutral methods are unavailable or insufficient to further that interest.

But since the water-district board created this program to address the *country's* broader history of discrimination against racial minority groups—not its *own* specific history of racial discrimination—the board's set-asides cannot survive strict scrutiny. Therefore, the most appropriate ruling is that the set-asides are unconstitutional because they would deny other (non-minority) potential employees and contractors the equal protection of the laws.

(Choice A) All state and municipal actions—whether proprietary or governmental in nature—must comply with the Fourteenth Amendment equal protection clause.

(Choice B) The set-asides do not *assure* racial minority groups the equal protection of the laws. Instead, they *prefer* racial minority groups and deny other potential employees and contractors the equal protection of the laws.

(Choice D) The contracts clause of the U.S. Constitution restricts state and municipal legislatures' ability to impair *existing* contracts. But actions that affect *future* contracts (as seen here) are not subject to this clause.

Educational objective:

All race-based classifications imposed by the government must survive strict scrutiny. This requires the government to prove that these classifications are necessary to achieve a compelling government interest—eg, to remedy its *own* history of racial discrimination.

References

- U.S. Const. amend. XIV (equal protection clause).
- Richmond v. J.A. Croson Co., 488 U.S. 469, 504 (1989) (holding that racially-based set-asides for government employment or contracts must satisfy strict scrutiny).

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A state legislature received complaints from traffic accident victims who, in the days immediately following their accidents, had received unwelcome and occasionally misleading telephone calls on behalf of medical care providers. The callers warned of the risks of not obtaining prompt medical evaluations to detect injuries resulting from accidents and offered free examinations to determine whether the victims had suffered any compensable injuries.

In response to these complaints, the legislature enacted a law prohibiting medical care providers from soliciting any accident victim by telephone within 30 days of his or her accident.

Which of the following arguments would be most helpful to the state in defending the constitutionality of the law?

A. Because the commercial speech that is the subject of the law includes some speech that is misleading, the First Amendment does not limit the state's power to regulate that speech.

B. Because the law regulates only commercial speech, the state need only demonstrate that the restriction is rationally related to achieving the state's legitimate interests in protecting the privacy of accident victims and in regulating the medical profession.

C. The law is a reasonable time, place, and manner regulation.

D. The state has substantial interests in protecting the privacy of accident victims and in regulating the practice of medical care providers, and the law is narrowly tailored to achieve the state's objectives.

Explanation:

Commercial speech that (1) is **false or misleading** or (2) concerns **unlawful activity** does **not fall under First Amendment protection** and can be freely regulated by the government. But all other commercial speech is entitled to an intermediate level of First Amendment protection. This means that the government can only **regulate protected commercial speech** if the government proves that its regulation **directly advances a substantial government interest** *and* the regulation is **narrowly tailored** to achieve that interest.

Here, the state law prohibits medical care providers from soliciting accident victims by telephone within 30 days of the accident. The phone calls are protected commercial speech since they are only occasionally misleading (ie, most are truthful) and do not concern unlawful activity **(Choice A)**. As a result, the state's best argument is that it has *substantial* interests in protecting the privacy of accident victims and in regulating the practice of medical care providers, and the law is *narrowly tailored* to achieve those objectives **(Choice B)**.

(Choice C) The law is *not* a time, place, and manner regulation (ie, content-neutral restriction) since it prohibits phone calls based on what is being said (ie, content-based restriction).

Educational objective:

Commercial speech that is not false or misleading and does not concern unlawful activity receives First Amendment protection. And any government regulation of that speech must (1) directly advance a substantial government interest and (2) be narrowly tailored to achieve that interest.

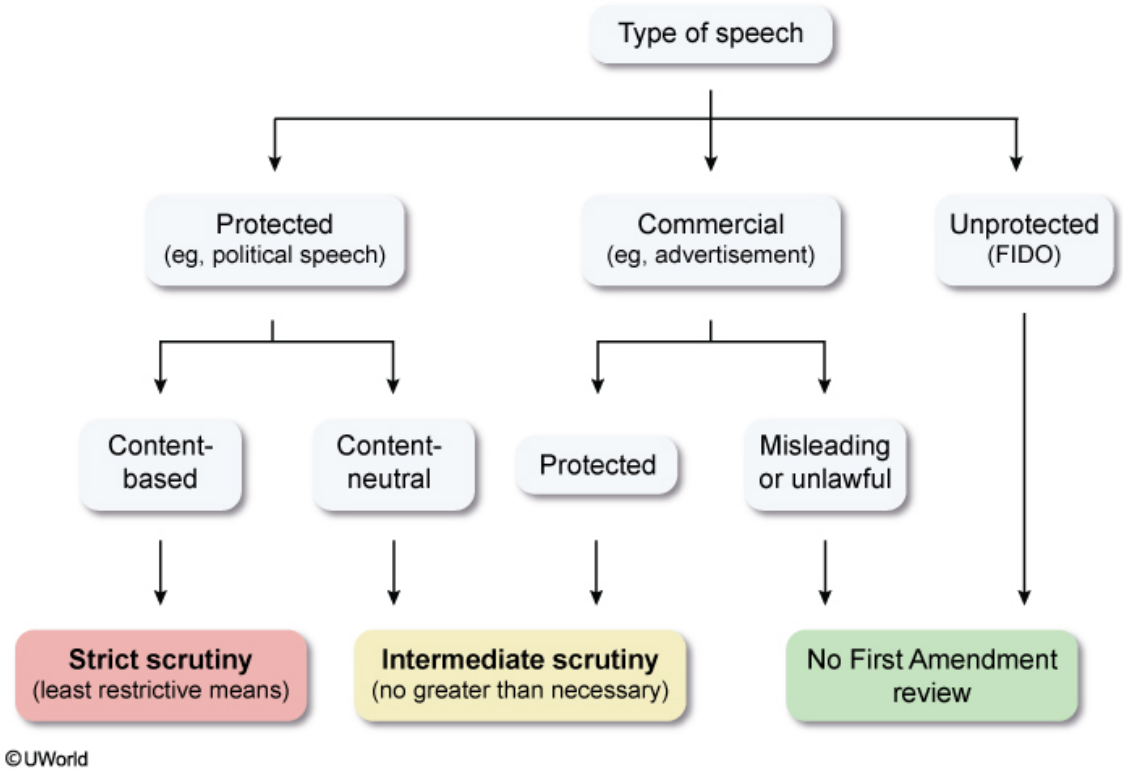
References

- Cent. Hudson Gas & Elec. Corp. v. Pub. Serv. Comm'n, 447 U.S. 557, 564 (1980) (providing the test for determining whether the government's regulation of protected commercial speech is constitutional).

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First Amendment speech protections



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Residents of a city complained that brightly colored signs detracted from the character of the city's historic district and distracted motorists trying to navigate its narrow streets. In response, the city council enacted an ordinance requiring any "sign or visual display" visible on the streets of the historic district to be black and white and to be no more than four feet long or wide.

A political party wanted to hang a six-foot-long red, white, and blue political banner in front of a building in the historic district. The party filed suit to challenge the constitutionality of the sign ordinance as applied to the display of its banner.

Which of the following would be the most useful argument for the political party?

A. The ordinance effectively favors some categories of speech over others.

B. The ordinance imposes a prior restraint on political expression.

C. The ordinance is not narrowly tailored to further an important government interest, nor does it leave open alternative channels of communication.

D. The ordinance is not the least restrictive means of promoting a compelling government interest.

Explanation:

Laws that restrict an individual's right to freely communicate information and ideas through speech or conduct can be challenged under the **First Amendment**. The **level of scrutiny** applied to such challenges depends on whether the law is either:

- **content-based** – in which case, **strict scrutiny** applies and the law is unconstitutional unless the government can show that it is **necessary and narrowly tailored** (ie, least restrictive means) to achieve a **compelling government interest** *or*

- **content-neutral** – in which case, **intermediate scrutiny** applies and the law is permissible so long as the government can show that it is **narrowly tailored** to achieve an **important government interest** *and* leaves open **alternative channels** of communication.

The ordinance here is content-neutral since it applies *equally* to all signs and visual displays irrespective of their message, so strict scrutiny does not apply **(Choices A & D)**. As a result, the political party's most useful argument is that the ordinance cannot survive intermediate scrutiny.

(Choice B) A prior restraint is a highly disfavored government action that prohibits speech before it even occurs (eg, injunction, permitting process). The ordinance here is not a prior restraint because it does not require government approval before signs can be posted—they must merely comply with the ordinance.

Educational objective:

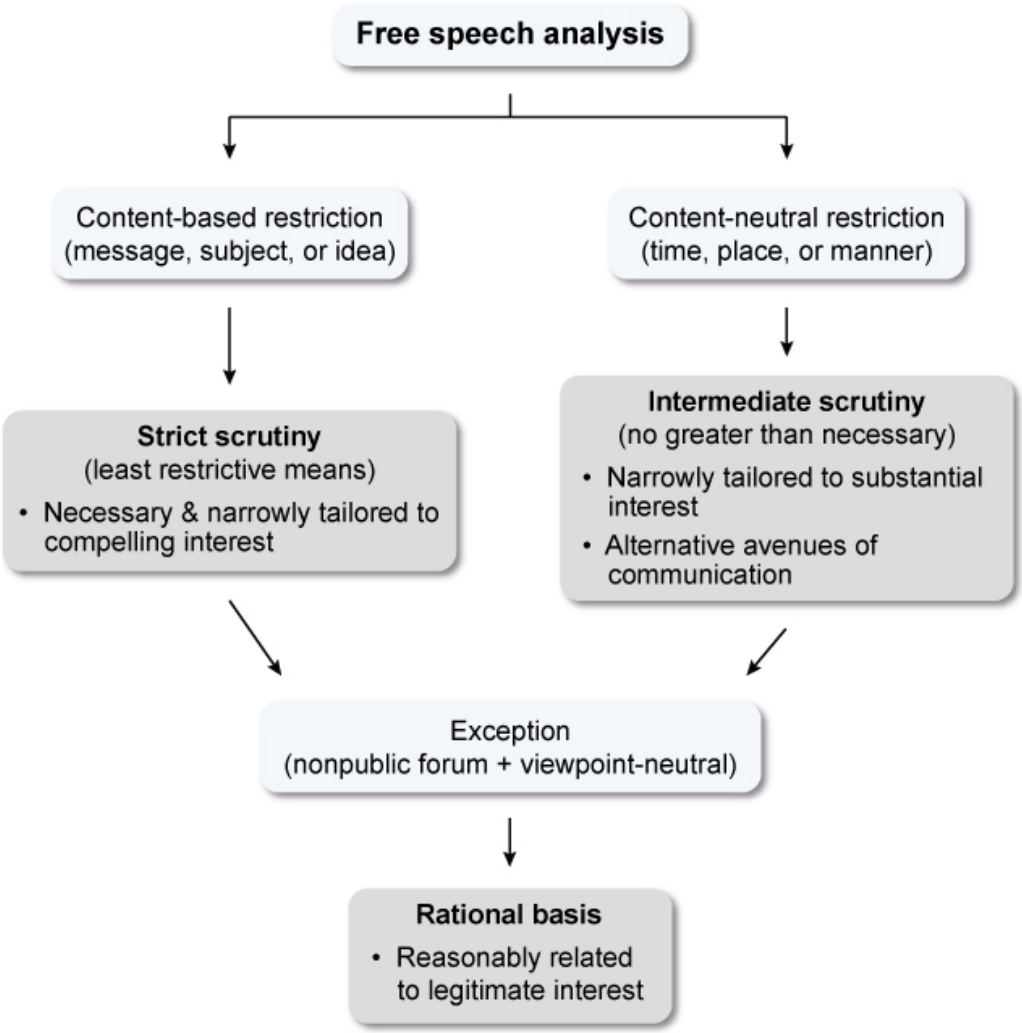
Content-*based* speech regulations must be necessary and narrowly tailored to achieve a compelling government interest (strict scrutiny). In contrast, content-*neutral* regulations need only be narrowly tailored to achieve an important government interest and leave open alternative channels of communication (intermediate scrutiny).

References

- 16A Am. Jur. 2d Constitutional Law § 480 (2019) (level of scrutiny applied to content-based and content-neutral restrictions).

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Free speech analysis
Content-based restriction (message, subject, or idea)
Content-neutral restriction (time, place, or manner)
Strict scrutiny
(least restrictive means)
• Necessary & narrowly tailored to compelling interest
Intermediate scrutiny
(no greater than necessary)
• Narrowly tailored to substantial interest
• Alternative avenues of communication
Exception
(nonpublic forum + viewpoint-neutral)
Rational basis
• Reasonably related to legitimate interest

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A state statute provides financial aid for tuition, books, and other academic materials to students who are accepted into one of the state's universities. The state statute lists several requirements for a student to receive this financial aid. One of the requirements is that the student be a citizen of the United States or a resident noncitizen who has applied for citizenship.

A teenager was accepted into one of the state's universities and applied for financial aid pursuant to the state statute. However, his application was denied solely because he is a resident noncitizen who has not applied for United States citizenship. The teenager filed suit in federal court to challenge the constitutionality of the state statute's provision relating to United States citizenship.

Will the federal court likely find the provision to be constitutional?

A. No, because the state likely cannot show that the provision is necessary to achieve a compelling government interest.

B. No, because this type of arbitrary classification is barred by the Article IV privileges and immunities clause.

C. Yes, because the Fourteenth Amendment does not apply to resident noncitizens.

D. Yes, because the provision is reasonably related to a legitimate state interest.

Explanation:

The state statutory provision is **discriminatory** since it grants tuition assistance to U.S. citizens and resident noncitizens who have applied for citizenship—but not resident noncitizens who have not sought citizenship. As a result, it can be challenged under the Fourteenth Amendment **equal protection clause**.

The court will impose **strict scrutiny** since citizenship is a suspect class **(Choice C)**. Under this test, the state bears the **nearly impossible burden** of proving that the law is **necessary** to achieve a **compelling state interest**. As a result, this statutory provision—like most laws subject to strict scrutiny—is likely unconstitutional.

(Choice B) The Article IV privileges and immunities clause prohibits states from creating arbitrary classifications that discriminate against citizens of other states. But noncitizens (and corporations) are not protected by this clause.

(Choice D) The statutory provision would be valid under the *rational basis* test if it was reasonably related to a legitimate state interest. But this minimal scrutiny only applies to laws that do *not* discriminate against a suspect or quasi-suspect class or substantially impact a fundamental right.

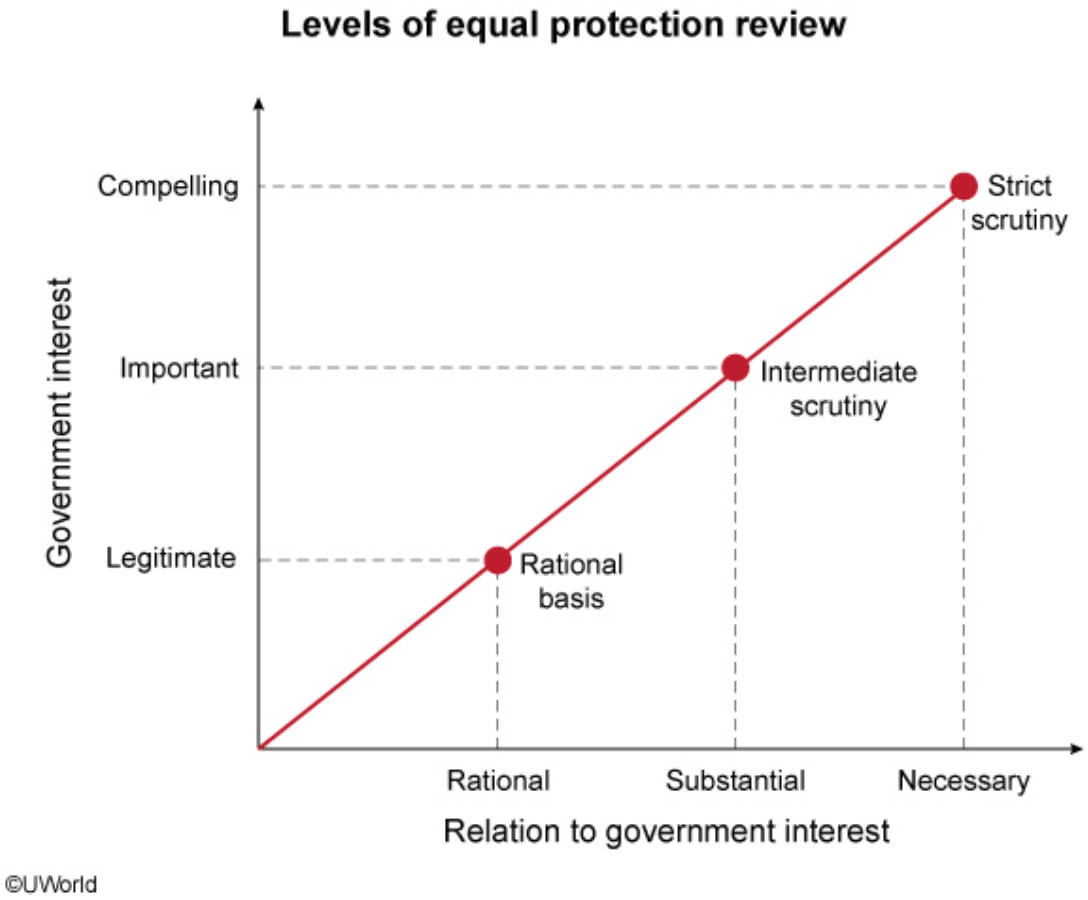
Educational objective:

Laws that discriminate against a suspect class are subject to strict scrutiny, which requires the government to prove that the law is necessary to achieve a compelling government interest. Since this standard is nearly impossible to meet, these laws are almost always struck down.

References

- Nyquist v. Mauclet, 432 U.S. 1, 8–9 (1977) (applying strict scrutiny to invalidate a state statute that denied tuition assistance to resident noncitizens not seeking citizenship).

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Levels of equal protection review
Compelling
Important
Legitimate
Government interest
Strict scrutiny
Intermediate scrutiny
Rational basis
Rational
Substantial
Necessary
Relation to government interest

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Several public high school students asked the superintendent of their public school district whether the minister of a local church could deliver an interdenominational prayer at their graduation ceremony in the school auditorium. None of the students or their guests at graduation would be required to pray while the minister delivered the prayer.

Would the minister's delivery of such a prayer at the public high school graduation be constitutional?

A. No, because it would be an unconstitutional establishment of religion.

B. No, because it would deny attendees who are not members of the minister's denomination the right to freely exercise their religion.

C. Yes, because none of the students or their guests would be required to pray at the graduation ceremony.

D. Yes, because the idea for the prayer originated with the students and not with school officials.

Explanation:

Establishment clause tests

Test	Requirements	Applicability
Historical*	• Longstanding tradition & historical foundation	Default
Endorsement	• No appearance that government endorses religion	Public displays or monuments (eg, holiday displays)
Coercion	• No forced conformity with religious belief or practice	Public schools (eg, convocation prayer)

*Courts may apply strict scrutiny if government directly benefits/burdens religion.

The **First Amendment establishment clause** prohibits the government from expressing a religious preference or otherwise violating the **separation of church and state**. In *Lee v. Weisman*, the Supreme Court held that **school-sponsored prayer** must be reviewed under the **coercion test**, which considers whether the government **forced participation in a religious exercise**.

Since elementary and secondary school students are more susceptible to social and peer pressure than adults, school-sponsored prayer in these public schools is inherently coercive—even when participation is voluntary **(Choice C)**. As a result, the minister's delivery of a prayer at the public high school graduation would be an unconstitutional establishment of religion.

(Choice B) Since participation would be voluntary, the minister's prayer would not deny attendees the right to freely exercise their own religion. But the prayer would still violate the establishment clause—despite being interdenominational—because it would show government preference for religion in general.

(Choice D) Although the graduation prayer was the students' idea, the school still must abide by the Constitution if it approves that idea and sponsors the prayer.

Educational objective:

Under the coercion test, school-sponsored prayer in public schools violates the establishment clause even when participation is voluntary.

References

- Lee v. Weisman, 505 U.S. 577, 592–93 (1992) (holding that an interdenominational prayer at middle school graduation ceremony coerces religious participation in violation of the establishment clause).

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Congress recently enacted a statute creating a program that made federal loans available to family farmers who had been unable to obtain loans from private lenders. Congress appropriated a fixed sum of money to fund loans made pursuant to the program and gave a designated federal agency discretion to decide which applicants were to receive the loans.

Two weeks after the program was established, a family farmer applied to the agency for a loan. Agency officials promptly reviewed her application and summarily denied it.

The farmer has sued the agency in federal district court, claiming only that the denial of her application without the opportunity for a hearing violated the due process clause of the Fifth Amendment. The farmer claims that she could have proved at such a hearing that without the federal loan it would be necessary for her to sell her farm.

Should the court uphold the agency's decision?

A. No, because due process requires federal agencies to provide a hearing before making any factual determination that adversely affects an identified individual based on his or her particular circumstances.

B. No, because the denial of a loan may deprive the farmer of an established liberty interest to pursue her chosen occupation.

C. Yes, because the applicable statute gives the farmer no legitimate claim of entitlement to receive a loan.

D. Yes, because the spending clause of Article I, Section 8, gives Congress plenary power to control the distribution of appropriated funds in any manner it wishes.

Explanation:

Due process rights

Right	Applicability	Examples
Life	Government deprives person of life	• Execution
Liberty	Government significantly restrains person's physical freedom, exercise of fundamental rights, or freedom of choice	• Incarceration • Commitment to mental institution • Loss of parental rights
Property	Government deprives benefit from person legally entitled to receive it	• Suspension from public school • Termination of welfare benefits • Loss of public employment (not at will)

The **Fifth Amendment due process clause** requires that the **federal government** provide an individual with notice and a meaningful **opportunity to be heard** when it deprives that individual of life, liberty, or property. Under this clause, a **property interest** exists when an individual is **legally entitled to a benefit**—but mere anticipation of (or need for) a benefit does not create a protected interest.

Here, the farmer applied for a federal loan under the newly enacted statute. But she was not legally entitled to the loan because the statute gave a federal agency the discretion to decide which applicants would receive loans. And since her need for a loan was not an interest protected by the due process clause, the agency was not obligated to provide her with an opportunity for a hearing. Therefore, the agency's decision should be upheld.

(Choice A) Due process only requires a hearing when the government deprives an individual of a protected life, liberty, or property interest (not seen here).

(Choice B) Pursuing one's chosen occupation is not a liberty interest protected by the due process clause.

(Choice D) Although Article I, Section 8 gives Congress broad authority to control the distribution of appropriated funds, that authority is subject to many constitutional limitations—including the Fifth Amendment due process clause.

Educational objective:

Fifth Amendment due process protections are triggered when the federal government deprives an individual of life, liberty, or property. An individual has a protected property interest when he/she is legally entitled to (not merely anticipating or needing) a benefit.

References

- Bd. of Regents of State Colls. v. Roth, 408 U.S. 564, 577 (1972) (defining property interests protected by procedural due process).

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In one state, certain advanced diagnostic medical technologies were located only in hospitals, where they provided a major source of revenue. In many other states, such technologies were also available at "diagnostic centers" that were not affiliated with hospitals.

A group of physicians announced its plan to immediately open in the state a diagnostic center that would not be affiliated with a hospital. The state hospital association argued to the state legislature that only hospitals could reliably handle advanced diagnostic medical technologies. The legislature then enacted a law prohibiting the operation in the state of diagnostic centers that were not affiliated with hospitals.

The group of physicians filed suit challenging the constitutionality of the state law. What action should the court take?

A. Dismiss the suit without reaching the merits, because the suit is not ripe.

B. Invalidate the law, because it imposes an undue burden on access to medical services in the state.

C. Uphold the law, because the legislature could rationally believe that diagnostic centers not affiliated with hospitals would be less reliable than hospitals.

D. Uphold the law, because the provision of medical services is traditionally a matter of legitimate local concern that states have unreviewable authority to regulate.

Explanation:

The constitutionality of a **discriminatory law** can be challenged under the **equal protection clause**. Such challenges are generally reviewed under the **rational basis test**, which requires that the law be **rationally related** to any **legitimate state interest**. And since **any reasonable, conceivable purpose** that may have motivated the legislature to pass the law will satisfy this test, laws subject to the rational basis test are usually upheld.

Here, a state law discriminates against physicians who wish to operate an unaffiliated diagnostic center by requiring that diagnostic centers be affiliated with hospitals. Since the legislature could rationally believe that unaffiliated diagnostic centers would be less reliable than hospitals, the law is rationally related to a legitimate state interest—providing safe medical services. Therefore, the law satisfies the rational basis test and should be upheld.

(Choice A) A court will dismiss a suit without reaching the merits if it is not ripe—ie, if the plaintiff has yet to suffer actual harm or an imminent threat thereof. But since this law threatens the physicians' immediate plan to open a diagnostic center in the state, their suit *is* ripe for litigation.

(Choice B) Discriminatory laws that unduly burden a fundamental right are presumptively invalid and reviewed under strict scrutiny, which requires that the law be necessary to serve a compelling state interest. But access to medical services is *not* a fundamental right, so this law need only survive rational basis scrutiny.

(Choice D) State laws and regulations are always subject to constitutional limits, so the state does not have the unreviewable authority to regulate the provision of medical services—even if it is traditionally a matter of legitimate local concern.

Educational objective:

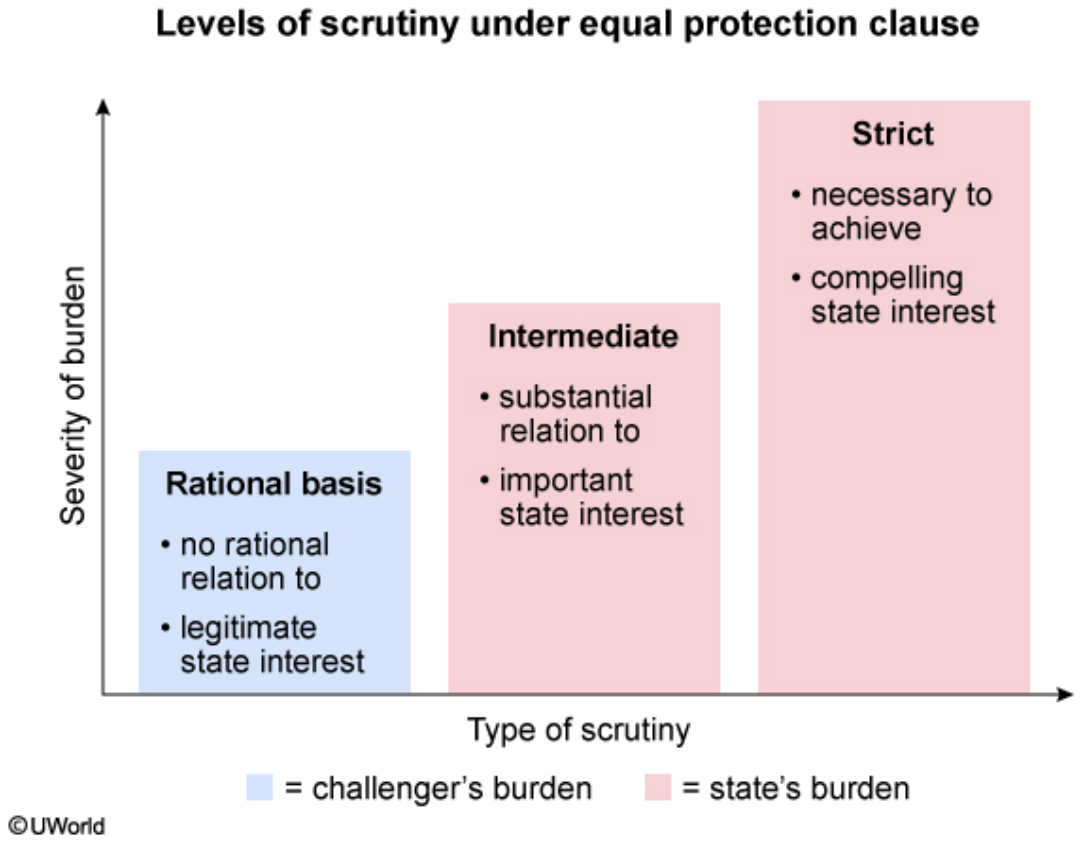
Under the equal protection clause, discriminatory laws are generally reviewed under the rational basis test—ie, the law must be rationally related to *any* legitimate state interest. And any reasonable, conceivable purpose that may have motivated the legislature in passing the law will satisfy this test.

References

- U.S. Const. amend. XIV (equal protection clause).
- Heller v. Doe, 509 U.S. 312, 319–20 (1993) (explaining that any reasonable, conceivable legislative purpose will satisfy rational basis scrutiny).
- Barsky v. Board of Regents, 347 U.S. 442, 449 (1954) (finding that a state has broad power to regulate the health profession).

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Levels of scrutiny under equal protection clause
Severity of burden
Rational basis
• no rational relation to
• legitimate state interest
Intermediate
• substantial relation to
• important state interest
Strict
• necessary to achieve
• compelling state interest
Type of scrutiny
= challenger's burden
= state's burden
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A state statute requires all workers' compensation actions filed in state court to be decided by a judge. A woman brought a workers' compensation action in state court against her employer for injuries she sustained at work. The woman demanded a jury trial, but the court denied her request pursuant to the state statute.

Is the state statute likely constitutional?

A. No, because denying a jury trial only in workers' compensation actions violates equal protection of the laws.

B. No, because the Seventh Amendment guarantees the woman a jury trial.

C. No, because the Sixth Amendment requires a jury to decide the outcome of the case.

D. Yes.

Explanation:

The first 10 amendments to the U.S. Constitution (ie, the **Bill of Rights**) protect individuals from government overreach. These protections limit the power of the federal government, and most **apply to the states** with equal force through incorporation into the **Fourteenth Amendment due process clause**—with three **exceptions**:

- The Third Amendment prohibition against the government **quartering soldiers** in individuals' homes
- The Fifth Amendment requirement of a **grand jury indictment** to charge a person with a capital offense
- The Seventh Amendment guarantee of a **jury trial in civil cases***

Here, the state court denied the woman's jury trial demand pursuant to a state statute requiring judges to decide the outcome of workers' compensation suits. Since the right to a jury trial in civil cases has *not* been incorporated into the Fourteenth Amendment due process clause, this right does not apply in state court. As a result, the woman has no right to a jury trial, and the statute is likely constitutional **(Choice B)**.

*The Supreme Court incorporates a protection under the Bill of Rights into the Fourteenth Amendment due process clause if the protection is fundamental to the scheme of ordered liberty or deeply rooted in the history and tradition of the United States.

(Choice A) The statute implicates the Fourteenth Amendment equal protection clause because it treats workers' compensation claimants differently than other civil claimants. However, the statute does not substantially impact a fundamental right or protected class, so rational basis scrutiny applies. Since this low level of scrutiny is easily met, the statute likely *complies* with the equal protection clause.

(Choice C) The Sixth Amendment right to a jury trial attaches to any *criminal* proceeding in which the defendant could be sentenced to more than six months in prison. But since the woman filed a *civil* action, this right does not apply here.

Educational objective:

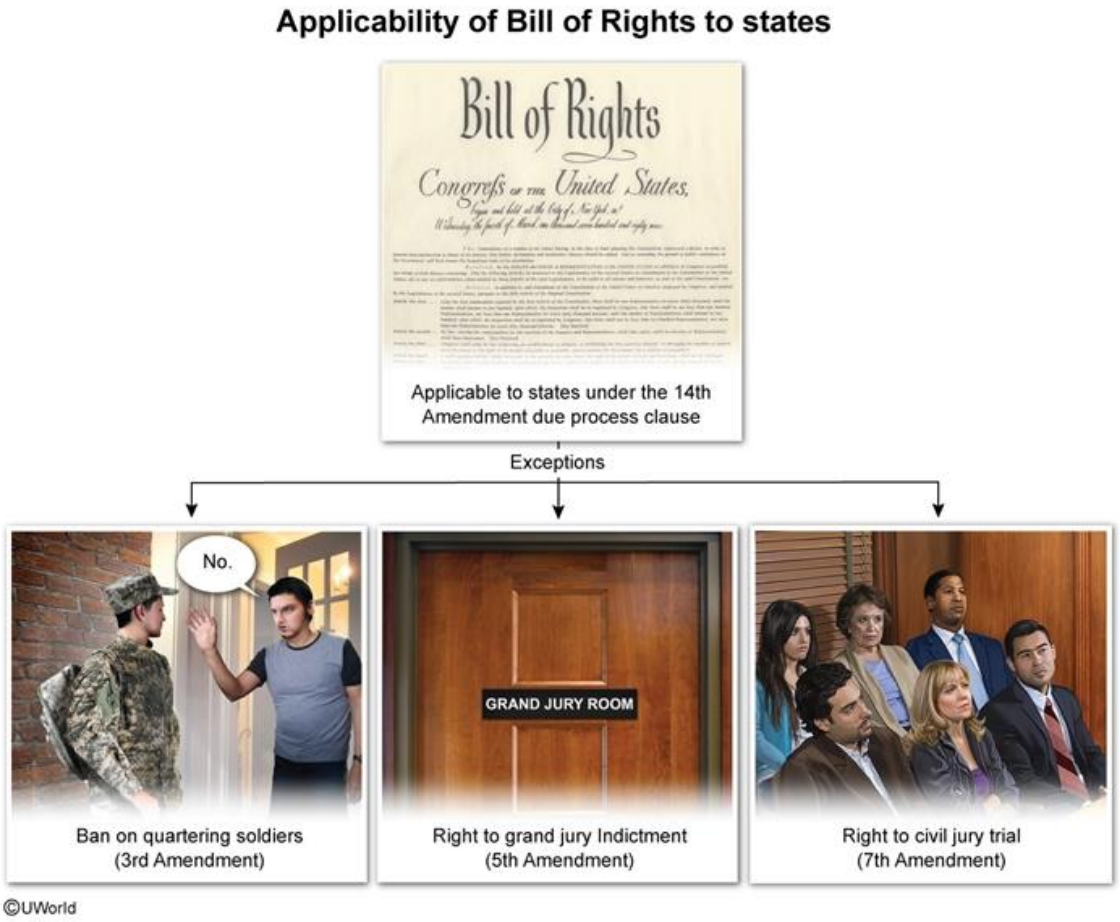
Every Bill of Rights protection applies to the states except (1) the Third Amendment prohibition against the government quartering soldiers in individuals' homes, (2) the Fifth Amendment requirement of a grand jury indictment for capital offenses, and (3) the Seventh Amendment right to a jury trial in civil cases.

References

- Minneapolis & St. Louis R.R. Co. v. Bombolis, 241 U.S. 211, 217–18 (1916) (explaining that the Seventh Amendment right to a jury trial in civil cases does not apply to the states).

- McDonald v. City of Chi., 561 U.S. 742, 765 n.13 (2010) (reaffirming that the Seventh Amendment guarantee of a civil jury trial has not been incorporated into the Fourteenth Amendment due process clause).

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A state has a statute providing that an unsuccessful candidate in a primary election for a party's nomination for elected public office may not become a candidate for the same office at the following general election by nominating petition or by write-in votes.

A woman sought her party's nomination for governor in the primary election. After losing in the primary, the woman filed nominating petitions containing the requisite number of signatures to become a candidate for the office of governor in the following general election. The chief elections officer of the state refused to certify the woman's petitions solely because of the above statute. The woman then filed suit in federal district court challenging the constitutionality of this statute.

If the court holds that the statute constitutes a severe restriction, which of the following is the proper burden of persuasion in this suit?

A. The state must demonstrate that the statute is rationally related to a legitimate state interest.
B. The state must demonstrate that the statute is the least restrictive means of achieving a compelling state interest.
C. The woman must demonstrate that the statute is not necessary to achieve a compelling state interest.
D. The woman must demonstrate that the statute is not rationally related to a legitimate state interest.

Explanation:

State-election restrictions

Restriction	Examples	Test
Ordinary (nondiscriminatory)	• Voter registration • Photo-ID requirement • Disallowing write-in voting	Rational basis: *challenger* must show restriction lacks rational relationship to legitimate state interest
Severe (discriminatory)	• Poll tax • Disallowing third-party candidacies • Property-ownership requirement	Strict scrutiny: *state* must show restriction is necessary to achieve compelling state interest

States may regulate their own elections by requiring voters and candidates to abide by certain requirements. But these regulations must comply with the First Amendment and the Fourteenth Amendment equal protection clause, which together secure an individual's right to vote and freely associate. If the **electoral regulation** is challenged under either constitutional provision, the standard for evaluating that regulation depends on the severity of the burden imposed. A court will apply either:

- **rational basis review** – applies to **ordinary (nondiscriminatory) burdens** and requires the **challenger** to prove that the regulation is **not rationally related** to a **legitimate state interest** *or*

- **strict scrutiny** – applies to **severe (discriminatory) burdens** and requires the **state** to prove that its regulation is the **least restrictive means** of achieving a **compelling state interest**.

Here, a state statute prohibits a loser of a primary election from running for the same public office in the general election (ie, "sore-loser law"). This infringed upon the woman's right to access the ballot as a political candidate (ie, her right to vote and freely associate). And if the court holds that the statute constitutes a severe restriction on that right, then the *state* must demonstrate that the statute is the least restrictive means of achieving a compelling state interest.

(Choices A & D) Rational basis review places the burden of persuasion on the challenging party—not the state—when *ordinary* electoral regulations are involved.

(Choice C) Strict scrutiny places the burden of persuasion on the *state* to demonstrate that a law is necessary (ie, the least restrictive means) to achieve a compelling state interest.

Educational objective:

When an electoral regulation imposes an *ordinary* burden, the challenging party must prove that the regulation is not rationally related to a legitimate state interest (ie, rational basis test). But if the burden is *severe*, the state must show that the regulation is the least restrictive means of achieving a compelling state interest (ie, strict scrutiny).

References

- U.S. Const. amend. I (freedom of association).
- U.S. Const. amend. XIV (equal protection clause).
- Burdick v. Takushi, 504 U.S. 428, 433–34 (1992) (explaining that the level of scrutiny of an election law depends on the severity of the restriction).

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A state legislature enacted a statute that allowed executors to claim a tax deduction for the sale of securities that were purchased by an estate after the decedent's death. After the statute was enacted, the state suffered a significant decrease in revenue because the number of estates that claimed the tax deduction was greater than originally projected. To recover this lost revenue, the legislature amended the statute to prevent an estate from claiming the deduction unless the decedent owned the securities prior to death. The amendment was made retroactive so that its effective date was when the statute was initially enacted.

Before the amendment was enacted, an executor sold securities that he had purchased for a decedent's estate after her death. The executor attempted to claim the tax deduction on the estate's tax returns but the state agency that processes tax returns denied his claim even though the estate had purchased the securities before the amendment was enacted. The executor has filed suit against the agency to challenge the constitutionality of the retroactive application of the amendment.

Is the executor's suit likely to succeed?

A. No, because the retroactive application of the amendment was necessary to achieve a compelling government interest.

B. No, because the retroactive application of the amendment was rationally related to a legitimate government interest.

C. Yes, because the amendment constitutes a bill of attainder.

D. Yes, because the amendment violates the due process clause of the Fourteenth Amendment.

Explanation:

The Fourteenth Amendment **substantive due process** clause prevents states from depriving persons of life, liberty, or property without adequate justification. Civil laws that **retroactively impair** an **ordinary right**—eg, the right to claim a tax deduction—must undergo **rational basis scrutiny**. Under this test, the law is presumed valid until the **challenger** shows that the law's **retroactive application** has **no rational relation** to any **legitimate government interest**.

Here, the executor challenged the amendment's retroactive application since it prevented the estate from claiming the tax deduction on its tax returns, which is an ordinary right. But since the state suffered a significant decline in revenue after the statute was enacted, the retroactive application of the amendment was rationally related to the state's legitimate interest in recovering the lost revenue. This means that the amendment does *not* violate the Fourteenth Amendment due process clause **(Choice D)**. Therefore, the executor's suit is unlikely to succeed.

(Choice A) The retroactive application of a law that affects a *fundamental* right (eg, voting) is subject to strict scrutiny—ie, the government must prove that the law is necessary to achieve a compelling government interest. But here, the amendment's retroactive application affects an *ordinary* right and is therefore subject to rational basis scrutiny.

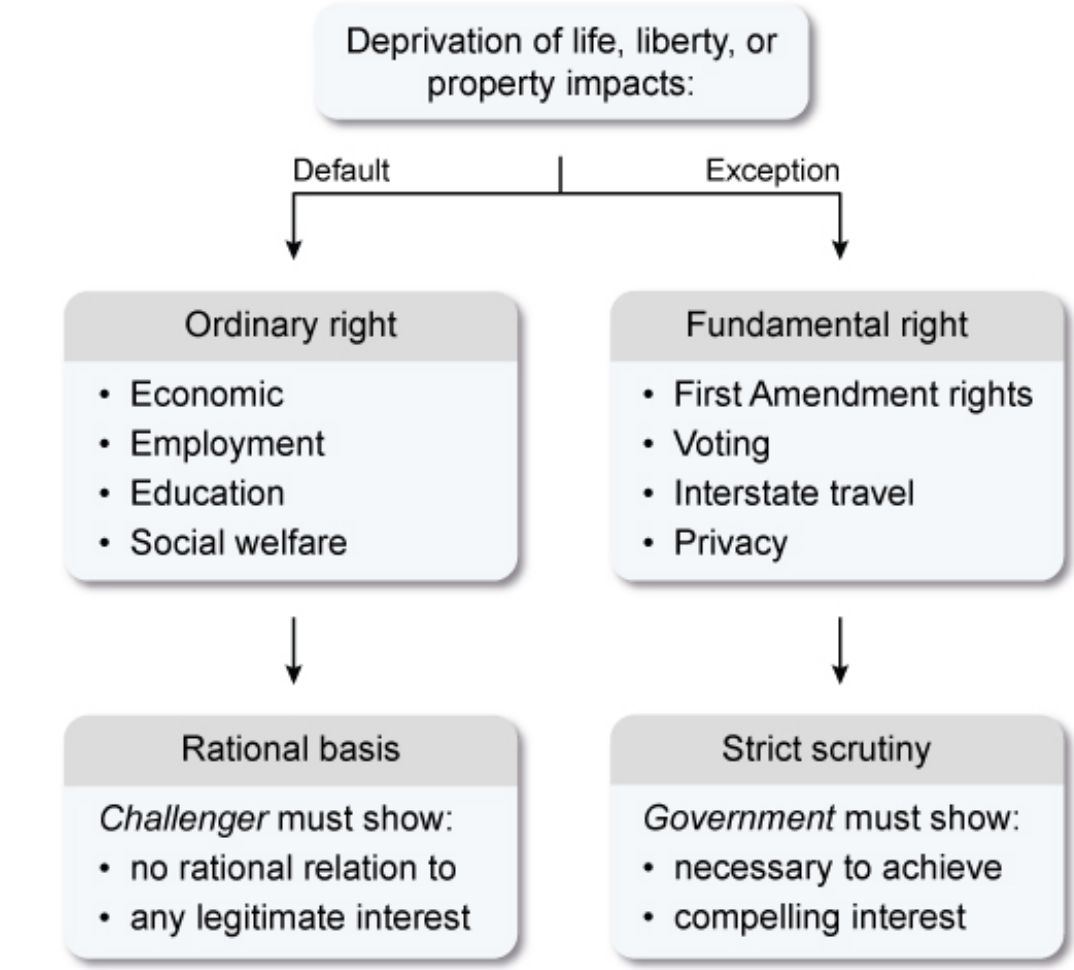
(Choice C) A bill of attainder is a legislative act that punishes a *specified* person or group without a judicial trial. But since the amendment applies to *all* persons who purchase securities, it is not a bill of attainder. Additionally, the amendment seeks to increase the state's revenue—not punish individuals. .

Educational objective:

Laws that retroactively impair an ordinary right—eg, the right to claim a tax deduction—can be challenged on substantive due process grounds. Such laws are reviewed under rational basis scrutiny and generally are presumed valid.

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Substantive due process



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The legislature of State B enacted a statute requiring that all law enforcement officers in that state be United States citizens. A lawfully admitted noncitizen became a permanent resident five years before the enactment of this statute. He sought employment as a forensic pathologist in the state coroner's office. He was denied that job solely because he was not a citizen. The resident noncitizen thereupon brought suit in federal district court against appropriate state officials seeking to invalidate this citizenship requirement on federal constitutional grounds.

Which of the following is the strongest ground upon which to attack this citizenship requirement?

A. The requirement constitutes an ex post facto law as to previously admitted noncitizens.

B. The requirement denies noncitizens equal protection of the laws guaranteed by the Fourteenth Amendment.

C. The requirement denies noncitizens the right to employment in violation of the privileges or immunities clause of the Fourteenth Amendment.

D. The requirement deprives noncitizens of a fundamental right to employment without the due process of law under the Fourteenth Amendment.

Explanation:

Fourteenth Amendment protections

Clause	Applicability
Equal protection	Discriminatory treatment of similarly situated people
Due process	Substantive – deprivation of life, liberty, or property without adequate *justification*
	Procedural – deprivation of life, liberty, or property without adequate *process*
Privileges or immunities*	Interference with rights of national citizenship

*Rarely a correct answer.

Citizenship requirements (as seen here) are discriminatory since they **deny resident noncitizens benefits** or opportunities that are generally **available to U.S. citizens**. As a result, laws with this requirement can be attacked on **equal protection** grounds. And since citizenship is a **suspect class** (triggering strict scrutiny review), these laws are rarely upheld.

(Choice A) An ex post facto law typically refers to a criminal statute that retroactively imposes punishment. Although federal and state governments are barred from passing such laws, State B's statute is civil (not criminal) in nature and has no retroactive effect—ie, there is no requirement that noncitizens currently holding law enforcement positions be terminated.

(Choice C) The Fourteenth Amendment privileges or immunities clause only protects citizens (not noncitizens or corporations) from unreasonable state interference with the narrowly defined rights of national citizenship.

(Choice D) A state law that impacts a fundamental right can be challenged on Fourteenth Amendment due process (or equal protection) grounds. But since employment is not a fundamental right, State B's citizenship requirement cannot be attacked on this basis.

Educational objective:

Citizenship requirements are discriminatory since they deny resident noncitizens benefits or opportunities that are generally available to citizens. As a result, they are strictly scrutinized (and rarely upheld) on equal protection grounds.

References

- Cabell v. Chavez-Salido, 454 U.S. 432, 437 (1982) (explaining that a resident noncitizen can challenge citizenship requirement for public employment).

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A federal statute prohibits websites from displaying sexually explicit material on their homepages. The purpose of the statute is to prevent minors from easily accessing such material. Several website owners who have been prosecuted for violating the statute have defended on the ground that the prosecution is unconstitutional.

Are the website owners likely to prevail in this defense?

A. No, because sexually explicit materials are not protected speech.

B. No, because the government has extensive power to regulate the Internet.

C. Yes, because the government may not punish the broadcast of sexually explicit material.

D. Yes, because there are less restrictive means available to protect children from harmful material.

Explanation:

The First Amendment free speech clause protects the right to freely communicate information and ideas—even through the Internet. To ensure such protection, a **content-based restriction** on speech is **presumptively unconstitutional** and only enforceable if it survives **strict scrutiny**. This means that the government can only restrict speech based on what is being said (ie, its message or ideas) if it can prove that the restriction is the **least restrictive means** (ie, narrowly tailored) to achieve a **compelling government interest**.

Here, the federal statute targets speech based on its content by prohibiting websites from displaying sexually explicit material on their homepages. The government may have a compelling interest in preventing minors from easily accessing such material. However, less restrictive means are available to achieve this interest—eg, requiring sexually explicit materials to be identified so parents can limit what their children can access. Therefore, the statute cannot survive strict scrutiny, and the prosecution of the website owners is likely unconstitutional.

(Choice A) The First Amendment does not protect certain forms of speech, including obscenity. Sexually explicit materials are only considered obscene, and fall outside the First Amendment's protections, in the rare instance when they satisfy the *Miller* test (not seen here).

(Choice B) The government does have power to regulate the Internet, but it must comply with constitutional provisions such as the First Amendment when doing so.

(Choice C) The government *may* punish radio and television stations for broadcasting sexual and offensive speech over the airwaves. That is because the government has extensive power to regulate the broadcast spectrum, which has a limited number of frequencies.

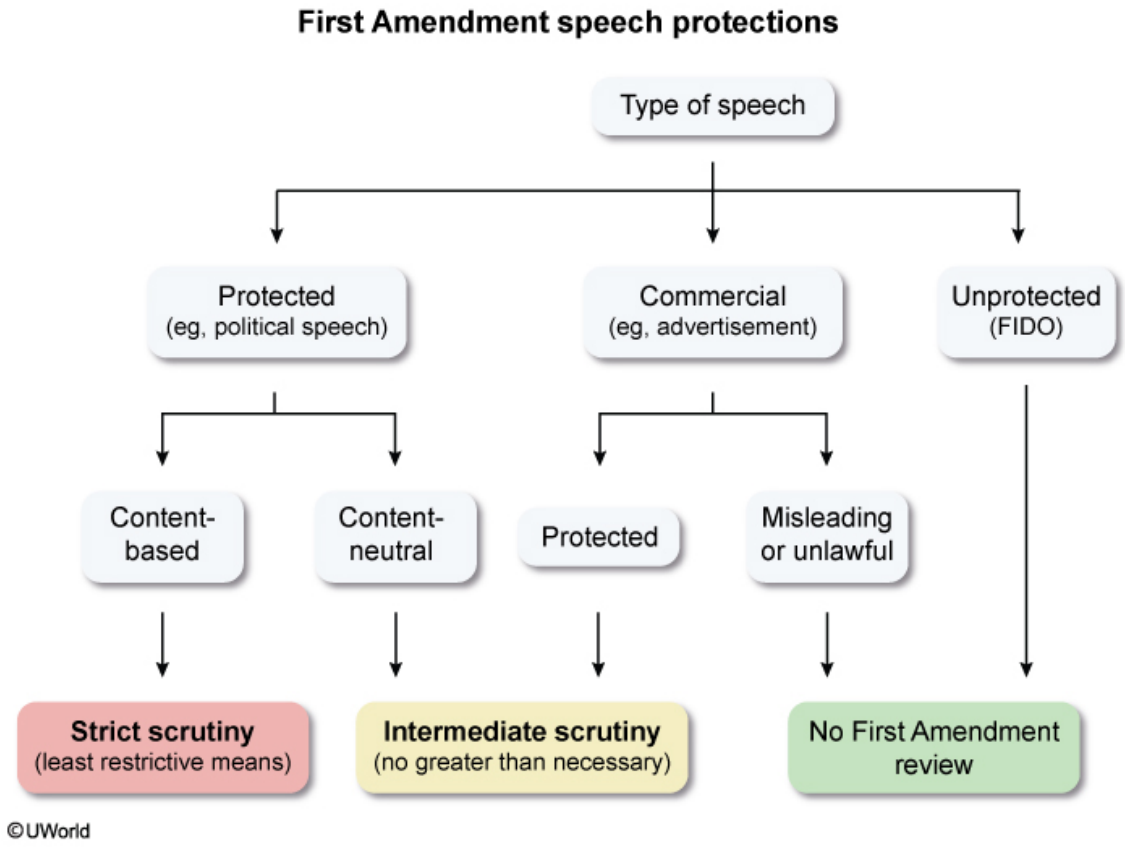
Educational objective:

Content-based government regulations of speech—even speech communicated via the Internet—must survive strict scrutiny. This requires the government to prove that the regulation is the least restrictive means to achieve a compelling government interest.

References

- Reno v. Am. Civil Lib. Union, 521 U.S. 844, 879 (1997) (holding that the compelling government interest of protecting minors from sexually explicit materials on the Internet can be achieved by means other than a ban).

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First Amendment speech protections
Type of speech
Protected
(eg, political speech)
Commercial
(eg, advertisement)
Unprotected
(FIDO)
Content-based
Content-neutral
Protected
Misleading or unlawful
Strict scrutiny
(least restrictive means)
Intermediate scrutiny
(no greater than necessary)
No First Amendment review
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To preserve the appearance and accessibility of its capitol building, a state enacted a law prohibiting "the display of any sign on any portion of the public sidewalk surrounding" the building.

A group of five demonstrators who wanted to protest inadequate state funding for children's services applied for a permit to march single file on the sidewalk surrounding the capitol building. Each demonstrator planned to carry a two-foot-square sign that would read, "Our lawmakers do not care about our children."

The group's permit application was denied pursuant to the state law, and the group has filed an action challenging the law's constitutionality.

Should the court uphold the law's constitutionality?

A. No, because even though the sidewalk at issue is not a public forum, the prohibition against the display of signs is more restrictive than needed to serve a legitimate government interest.

B. No, because the sidewalk at issue is a public forum, and the prohibition against the display of signs is not narrowly tailored to serve a substantial government interest.

C. Yes, because even though the sidewalk at issue is a public forum, the prohibition against the display of signs is necessary to serve a compelling public interest.

D. Yes, because the sidewalk at issue is not a public forum, and the prohibition against the display of signs is reasonable.

Explanation:

The **First Amendment** protects the right to freely communicate information and ideas through speech or conduct—even on government property. But the government can impose reasonable time, place, or manner restrictions (ie, **content-neutral regulations**) on speech that occurs in a **public forum** so long as those restrictions pass **intermediate scrutiny**. This requires the government to prove that the restriction:

- is **narrowly tailored** to serve a **substantial government interest** *and*
- leaves open ample **alternative channels of communication**.

Here, the group's permit application was denied pursuant to a content-neutral law that prohibits the display of *any* sign on the sidewalk surrounding the capitol building—a public forum **(Choices A & D)**. And though the state has a substantial interest in preserving the appearance and accessibility of its capitol building, the law is not narrowly tailored to serve that interest. That is because alternative measures that burden substantially less speech could be used effectively—eg, prohibiting signs near the entrance. Therefore, the law is unconstitutional.

(Choice C) Content-*based* restrictions on speech that occurs in a public forum must be necessary and narrowly tailored to serve a compelling government interest (ie, strict scrutiny). But this law is content-*neutral*.

Educational objective:

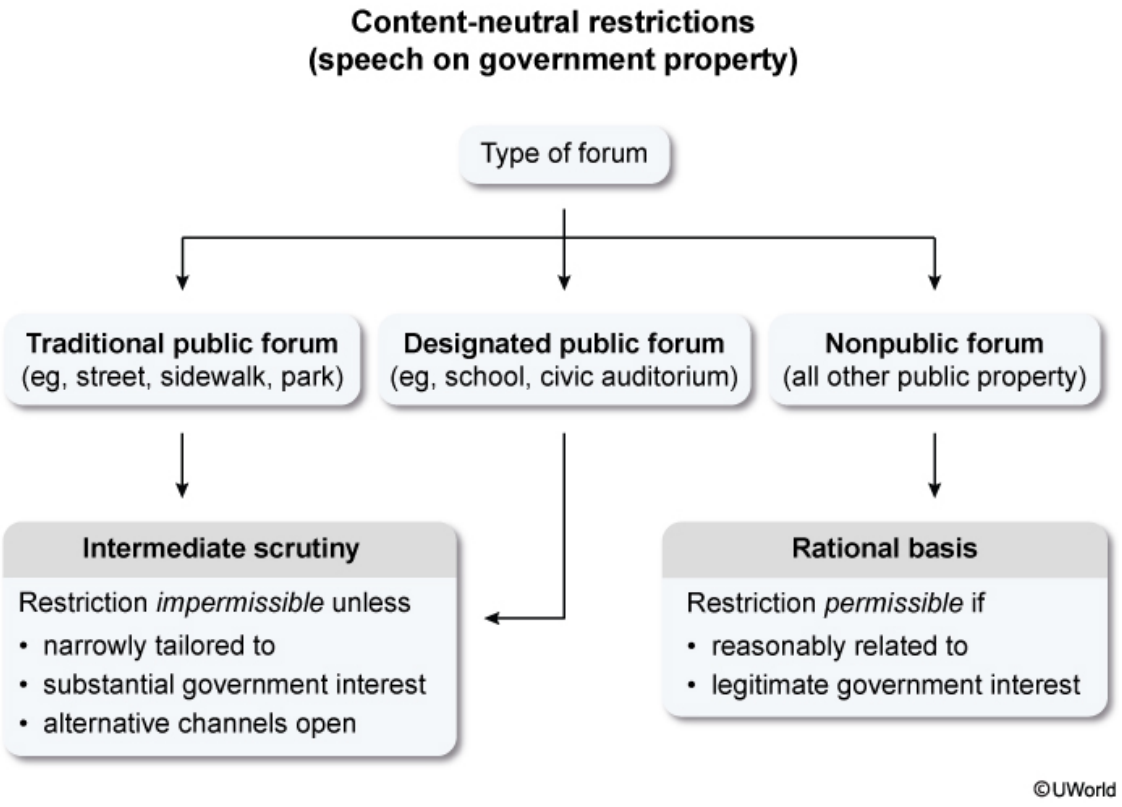
Content-neutral restrictions on the time, place, or manner of speech in a public forum must (1) be narrowly tailored to serve a substantial government interest and (2) leave open ample alternative channels of communication.

References

- Frisby v. Schultz, 487 U.S. 474, 481 (1988) (setting forth the test for determining whether the government's regulation of the time, place, or manner of expression in a public forum is valid).

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Content-neutral restrictions
(speech on government property)
Type of forum
Traditional public forum
(eg, street, sidewalk, park)
Designated public forum
(eg, school, civic auditorium)
Nonpublic forum
(all other public property)
Intermediate scrutiny
Restriction impermissible unless
• narrowly tailored to
• substantial government interest
• alternative channels open
Rational basis
Restriction permissible if
• reasonably related to
• legitimate government interest
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The United States government demonstrated that terrorist attacks involving commercial airliners were perpetrated exclusively by individuals of one particular race. In response, Congress enacted a statute imposing stringent new airport and airline security measures only on individuals of that race seeking to board airplanes in the United States.

Which of the following provides the best ground for challenging the constitutionality of this statute?

A. The commerce clause of Article I, Section 8.

B. The due process clause of the Fifth Amendment.

C. The privileges and immunities clause of Article IV.

D. The privileges or immunities clause of the Fourteenth Amendment.

Explanation:

A law that treats **similarly situated persons differently** may violate the constitutional principle of **equal protection**, which applies to the **federal government** through the **Fifth Amendment** due process clause. This is especially likely when the law intentionally discriminates against a **suspect class** (eg, race). That is because the government must clear the highest hurdle—**strict scrutiny**—to justify such a law. And since this federal statute intentionally targets a particular race, due process provides the best ground to challenge the statute.

*The equal protection clause of the Fourteenth Amendment applies only to states and localities—not the federal government.

(Choice A) The commerce clause grants Congress broad plenary power to regulate the instrumentalities of interstate commerce—eg, planes, trains, automobiles. Therefore, this clause *supports* Congress's authority to regulate airports and airlines.

(Choice C) The Article IV privileges and immunities clause generally prohibits *states* from discriminating against citizens of other states. But it does not apply to the *federal* government.

(Choice D) The Fourteenth Amendment privileges or immunities clause applies to states—not the federal government—and bars them from depriving individuals of the very limited rights of national citizenship.

Educational objective:

Equal protection principles apply to the federal government through the Fifth Amendment due process clause. And under this clause, federal laws that intentionally discriminate against a suspect class (eg, race) are almost always invalidated under strict scrutiny.

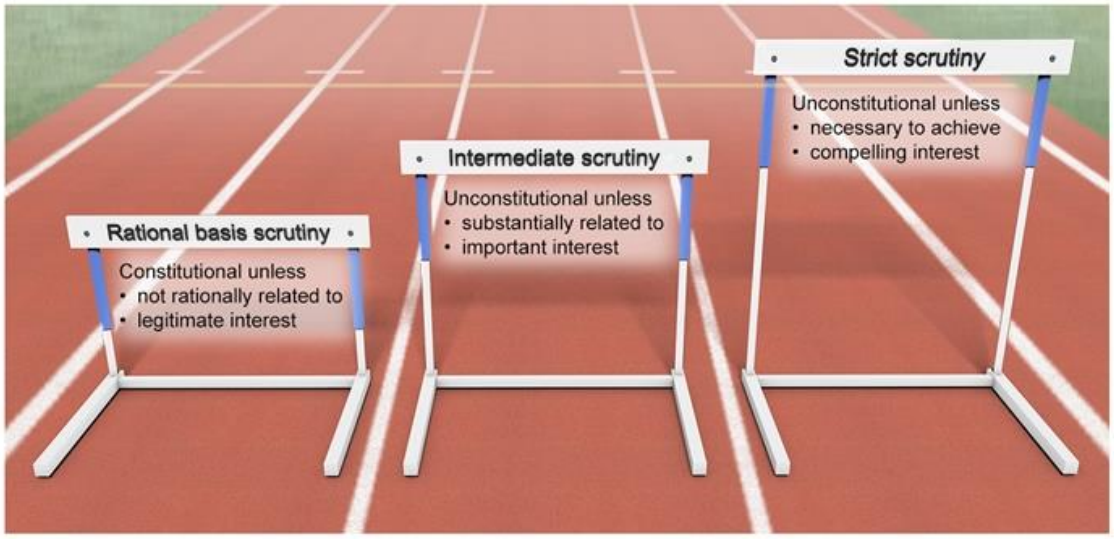
References

- Bolling v. Sharpe, 347 U.S. 497, 499–500 (1954) (holding that equal protection principles apply to the federal government through the Fifth Amendment due process clause).

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Fifth Amendment due process challenge (equal protection principles)



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A federal statute provides health care benefits to U.S. citizens but excludes noncitizens. A group of resident noncitizens who were denied health care benefits pursuant to the statute brought a suit in federal court challenging the statute on constitutional grounds. The group specifically claims that the statute violates the equal protection component of the Fifth Amendment due process clause.

Is the federal statute likely constitutional?

A. No, because the statute is not necessary to achieve an important government interest.
B. No, because the statute is not substantially related to an important government interest.
C. Yes, because the statute is necessary to achieve a legitimate government interest.
D. Yes, because the statute is rationally related to a legitimate government interest.

Explanation:

Congress has plenary (ie, exclusive) authority over immigration and naturalization, so **federal laws based on citizenship** are presumptively constitutional. To rebut this presumption and show that such a law violates the equal protection component of the Fifth Amendment, the challenger must show that the law is **not rationally related** to a **legitimate government interest**—ie, that the law is arbitrary or unreasonable.

Here, the federal statute provides health care benefits to U.S. citizens but excludes noncitizens. The U.S. Supreme Court has repeatedly held that Congress has a legitimate interest in providing benefits only to citizens because U.S. citizens have closer ties to the U.S. than noncitizens. Since the federal statute is rationally related to this interest, the statute is likely constitutional and the group of resident noncitizens is unlikely to prevail.

(Choices A & C) There is no level of scrutiny that requires the government to show that its statute is not necessary to achieve an *important* government interest or is necessary to achieve a *legitimate* government interest. Instead, strict scrutiny (not applicable here) requires the government to show that its statute is necessary to achieve a *compelling* state interest.

(Choice B) Intermediate scrutiny requires a government to show that its action is substantially related to an important government interest when such an action discriminates against a quasi-suspect class (not seen here).

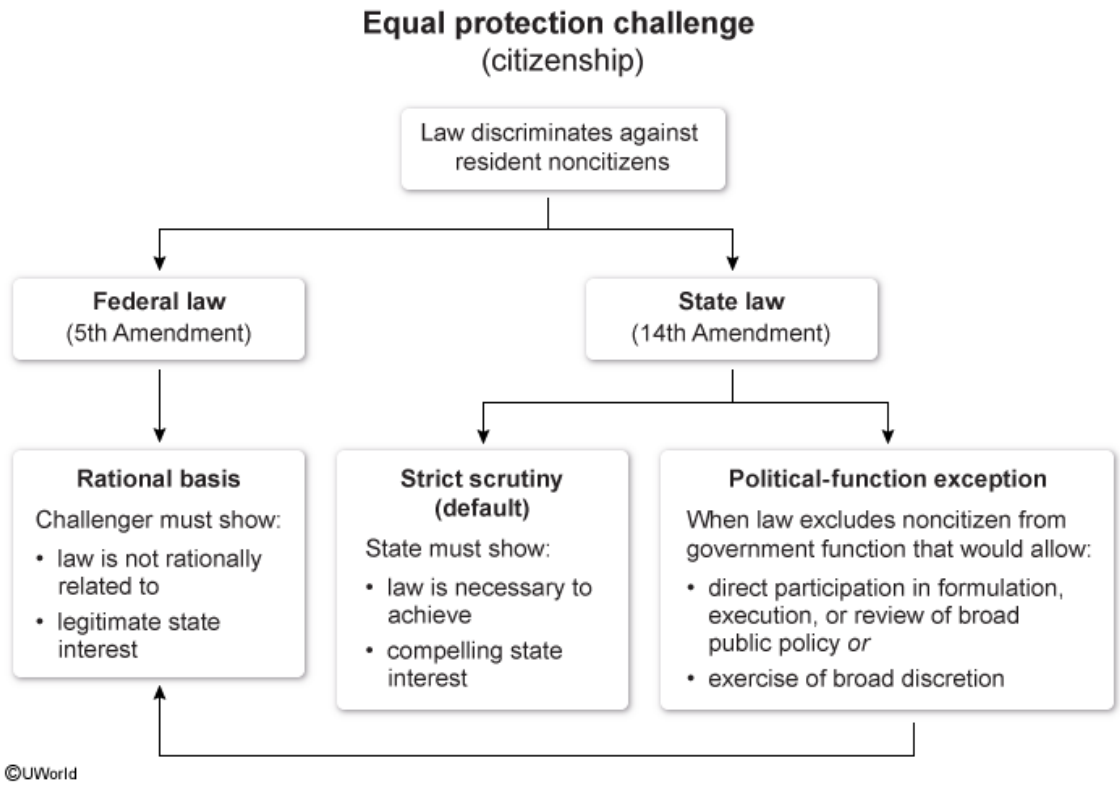
Educational objective:

The equal protection component of the Fifth Amendment requires federal laws based on citizenship to satisfy rational basis scrutiny. This level of scrutiny places the burden on the challenger to prove that the law is not rationally related to a legitimate government interest.

References

- U.S. Const. art. I, § 8, cl. 4 (federal immigration and naturalization power).
- Mathews v. Diaz, 426 U.S. 67, 79–80 (1976) (explaining that Congress may provide benefits to citizens and exclude noncitizens).

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Equal protection challenge
(citizenship)
Law discriminates against resident noncitizens
Federal law
(5th Amendment)
State law
(14th Amendment)
Rational basis
Challenger must show:
• law is not rationally related to
• legitimate state interest
Strict scrutiny (default)
State must show:
• law is necessary to achieve
• compelling state interest
Political-function exception
When law excludes noncitizen from government function that would allow:
• direct participation in formulation, execution, or review of broad public policy or
• exercise of broad discretion
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A state wanted to prevent its only major league baseball team, which was privately owned and operated, from moving to a rival state. After a heated political debate in the legislature, the state enacted legislation providing for a one-time grant of $10 million in state funds to the team to cover part of the projected income losses the team would suffer during the next five years if it remained in that state. The legislation required that the team remain in the state for at least ten years if it accepted the grant.

After accepting the grant, the team owners decided to build a new $150 million stadium in the state. As plans for the construction of the new stadium proceeded, it became evident that all of the contractors and subcontractors would be white males, and that they had been chosen by the team owners without any public bids because these contractors and subcontractors had successfully built the only other new baseball stadium in the region.

Several contractors who were females or members of minority racial groups filed suit against the team owners in federal district court to compel public solicitation of bids for the construction of the team's new stadium on an equal opportunity basis, and to enjoin construction of the stadium until compliance was ensured. Their only claim was that the contracting practices of the team owners denied them the equal protection of the laws in violation of the Fourteenth Amendment.

In this suit, what will the court probably rule?

A. In the absence of additional evidence of state involvement in the operations or decisions of the team owners, a one-time grant of state monies to them is insufficient to warrant treating their actions as subject to the limitations of the Fourteenth Amendment.

B. The intense public preoccupation with the activities of major league baseball teams coupled with the fact that baseball is considered a national pastime is sufficient to justify application of the Fourteenth Amendment to the activities of major league teams.

C. The issues presented by this case are nonjusticiable political questions because there is a lack of judicially manageable standards to resolve them and the court is likely to be deeply involved in partisan politics.

D. The nexus between the actions of the team owners and the one-time grant of monies to them by the state is sufficiently substantial to subject their actions to the limitations of the Fourteenth Amendment.

Explanation:

State-action doctrine

Traditional government function	• Private actor performs traditional & exclusive government function (eg, running elections)
Significant government involvement	• Government & private actor have *mutually beneficial* relationship (eg, joint activity or venture) • Government creates *nexus* by affirmatively facilitating or authorizing private action (eg, police officer acting under color of law) • Government is *pervasively intertwined* in private entity's management or control

The Constitution generally limits government actors. But under the **state-action doctrine**, a **private actor** is **considered a government actor**—and similarly bound by the Constitution—when (1) the private actor performs a **traditional and exclusive government function** *or* (2) the **government is significantly involved** in the private actor's activities. Therefore, the contractors can only challenge the *private* baseball team owners' discriminatory contracting practices on equal protection grounds if the state-action doctrine applies.

Here, the team owners are not performing a traditional and exclusive government function by building a baseball stadium. And though they received a one-time grant of state funds, government funding—however substantial—is insufficient to convert private conduct into state action **(Choice D)**. Therefore, in the absence of additional evidence of significant state involvement in the team owners' operations or decisions, the court will probably rule that the team owners' actions are not subject to the Fourteenth Amendment.

(Choice B) Although major league baseball is a national pastime that intensely preoccupies the public, it is not a traditional government function that would trigger the state-action doctrine.

(Choice C) The political-question doctrine bars federal courts from hearing cases that present issues that (1) are reserved for the executive or legislative branches or (2) lack judicially manageable standards for resolution. But since courts often resolve equal protection claims involving discriminatory executive or legislative policies—without becoming involved in partisan politics—this doctrine does not apply.

Educational objective:

The Constitution generally applies to government actors—not private actors. But under the state-action doctrine, a private actor will be treated as a government actor when (1) the

private actor performs a traditional and exclusive government function or (2) the government is significantly involved in the private actor's activities.

References

- Brentwood Acad. v. Tenn. Secondary Sch. Athletic Ass'n, 531 U.S. 288, 296–98 (2001) (listing scenarios in which the state-action doctrine is applied).

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Congress enacted a federal statute that awards funds to nongovernmental organizations in the United States and around the world to combat the spread of a deadly airborne virus. The statute requires that the funds be used strictly for research and testing related to the virus. The last section of the statute conditions the award of the funds on the recipient's agreement to publicly announce its support for free-trade policies.

A U.S. nongovernmental organization that is headquartered abroad qualifies for funding under the federal statute. The organization does not want to publicly support free-trade policies because it believes that such support will alienate certain foreign governments with which the organization works. As a result, the organization has filed suit in federal court, seeking a declaratory judgment that the statute's condition requiring the announcement of support for free-trade policies compels speech and is therefore unconstitutional as applied to it.

How should the court rule?

A. Declare that the condition is constitutional, because Congress may compel speech by imposing conditions on the receipt of federal funds.

B. Declare that the condition is constitutional, because the organization is headquartered abroad and therefore lacks constitutional protections.

C. Declare that the condition is unconstitutional, because Congress cannot impose conditions on the receipt of federal funds.

D. Declare that the condition is unconstitutional, because the condition infringes upon the organization's First Amendment right to free expression.

Explanation:

Conditions on government funding

Funded activities	Government can restrict use of funds to authorized purposes	"Grant monies must be used for the acquisition, construction, and maintenance of appropriate performance facilities"
Funding recipients	Government cannot restrict protected conduct unrelated to funding's purpose	"Recipient must agree to refrain from all kinds of political lobbying calculated to secure additional tax support for the performing arts"

The taxing and spending clause gives Congress broad power to spend federal revenue for the general welfare. Congress may place conditions on the receipt of federal funds so long as those conditions comply with the U.S. Constitution—including the First Amendment right to free expression **(Choice C)**. The success of a First Amendment challenge to a **conditional spending provision** depends on whether the condition is placed on:

- **funded activities** – in which case the **government *can* insist** that the funds be used for authorized purposes (eg, requiring that funds be used only for research and testing) *or*
- **funding recipients** – in which case the **government *cannot* restrict** the recipient's right to engage in constitutionally protected conduct that falls **outside the funding's purpose or scope (Choice A)**.

Here, the federal statute places a condition on funding *recipients* by requiring them to publicly support a policy promoting free trade. This falls outside of the funding's purpose and scope to combat the virus and infringes upon the U.S. organization's First Amendment right to free expression. Therefore, this requirement is unconstitutional as applied to the organization.

(Choice B) A constitutional challenge can be raised by a U.S. citizen located anywhere in the world or a foreign citizen located within U.S. territories—no one else possesses rights under the Constitution. Therefore, this U.S. organization headquartered abroad *is* protected by the Constitution.

Educational objective:

Congress can insist that federal funds be used for an authorized purpose, but it cannot restrict a funding recipient's right to engage in constitutionally protected conduct that is unrelated to the funding's purpose or scope.

References

- Agency for Int'l Dev. v. All. for Open Soc'y Int'l, Inc., 570 U.S. 205, 221 (2013) (holding that a federal funding program violated the First Amendment by conditioning funds on requirements unrelated to the program's purpose).
- Agency for Int'l Dev. v. All. for Open Soc'y Int'l, Inc., 140 S. Ct. 2082, 2086 (2020) ("Foreign citizens outside U.S. territory do not possess rights under the U.S. Constitution").

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A state statute permits the termination of parental rights when the state proves by a preponderance of the evidence that a child has been a victim of neglect.

A state agency initiated a proceeding in state court to terminate a woman's parental rights based on allegations that she repeatedly abused her child. The agency provided the woman with adequate notice of the hearing. At the hearing, the attorneys for the agency and the woman presented evidence, examined witnesses, and made opening and closing statements. The court found by a preponderance of the evidence that the child was a victim of neglect and entered an order terminating the woman's parental rights.

The woman has appealed the court's order, alleging that the termination of her parental rights was unconstitutional.

How should the appellate court rule in this case?

A. Affirm the order, because a court can terminate parental rights by using a preponderance-of-the-evidence burden of proof.

B. Affirm the order, because the state's interest in the child's welfare outweighs the woman's interest in the burden of proof used at the proceeding.

C. Reverse the order, because the statute denies the woman a right of national citizenship.

D. Reverse the order, because the statute violates due process.

Explanation:

A state must provide **procedural due process** before depriving an individual of a life, liberty, or property interest (eg, parental rights). This requires that the government provide **reasonable notice** and a **meaningful opportunity to be heard** before a neutral decision-maker—as was provided to the woman here. Procedural due process also requires that the proper burden of proof be applied at such hearings. To determine the proper burden (and any other process due), the court must **balance three factors**:

- The **private interest** affected by the deprivation
- The **risk of erroneous deprivation** of that interest through current procedures and the probable **value of additional** or **substitute procedural safeguards**
- The **government's interest**, including the fiscal and administrative burdens that other safeguards would entail

Here, the woman has an interest in maintaining her parental rights, while the state has an interest in ensuring the child's welfare. However, there is a high risk of erroneously terminating parental rights since the state need only prove its case by a preponderance of the evidence. This risk can be mitigated by requiring the state to satisfy a higher burden of proof (eg, clear and convincing evidence). Therefore, the statute violates due process, and the appellate court should reverse the order terminating the woman's parental rights **(Choices A & B)**.

(Choice C) The Fourteenth Amendment privileges or immunities clause prohibits states from denying citizens a right of national citizenship, which does not include parental rights.

Educational objective:

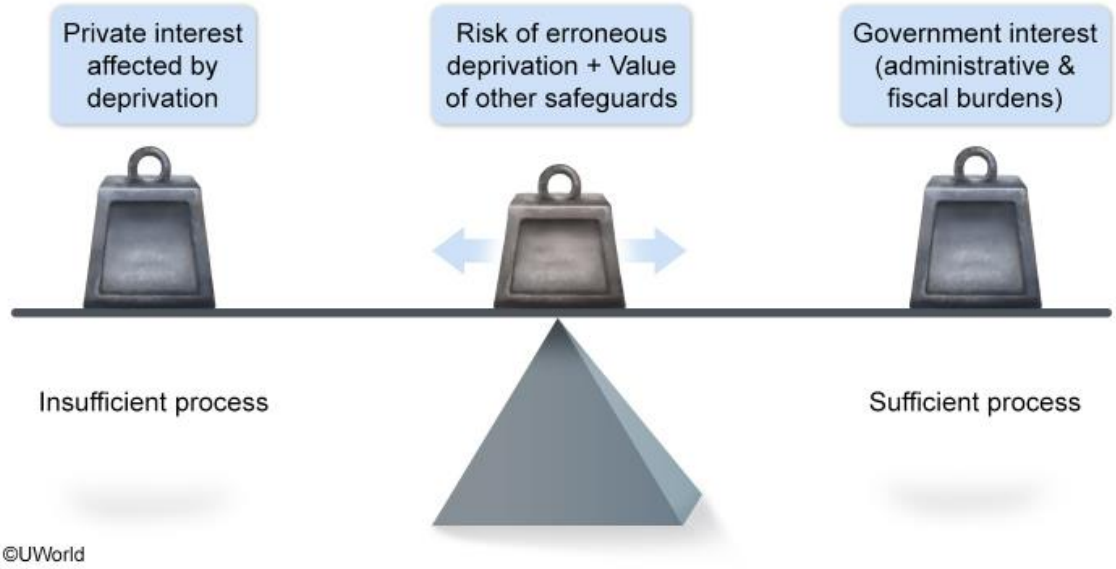
A state seeking to terminate parental rights must prove its case by at least clear and convincing evidence to comply with procedural due process.

References

- Santosky v. Kramer, 455 U.S. 745, 768–69 (1982) (holding that the Fourteenth Amendment due process clause requires states to prove their case by at least clear and convincing evidence when terminating parental rights).
- Mathews v. Eldridge, 424 U.S. 319, 335 (1976) (listing the three factors used to assess compliance with procedural due process).

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Procedural due process
(*Mathews* v. *Eldridge* balancing test)



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A state barber licensing statute provides that the Barber Licensing Board may revoke a barber license if it finds that a licensee has used his or her business premises for an illegal purpose.

A licensed barber in the state was arrested by federal narcotics enforcement agents on a charge of selling cocaine in his barbershop in violation of federal laws. However, the local United States Attorney declined to prosecute, and the charges were dropped.

Nevertheless, the Barber Licensing Board commenced a proceeding against the barber to revoke his license on the ground that he used his business premises for illegal sales of cocaine. At a subsequent hearing before the board, the only evidence against the barber was affidavits by unnamed informants, who were not present or available for cross-examination. Their affidavits stated that they purchased cocaine from the barber in his barbershop. Based solely on this evidence, the board found that the barber used his business premises for an illegal purpose and ordered his license revoked.

In a suit to have this revocation set aside, what is the barber's best constitutional argument?

A. Article III requires a penalty of the kind imposed on the barber to be imposed by a court rather than an administrative agency.

B. The administrative license revocation proceeding was invalid because it denied full faith and credit to the dismissal of the criminal charges by the United States Attorney.

C. The barber's inability to cross-examine his accusers denied him a fair hearing and caused him to be deprived of his barber license without due process of law.

D. The existence of federal laws penalizing the illegal sale of cocaine preempts state action relating to drug trafficking of the kind involved in the barber's case.

Explanation:

A person has a property interest in a benefit that is conferred by state law (eg, professional license, welfare benefits). The **Fourteenth Amendment due process** clause safeguards this interest by requiring states to follow certain procedures before intentionally depriving persons thereof. This typically includes providing persons with:

- adequate notice of the charges or proceedings against them *and*
- a meaningful **opportunity to be heard**—ie, to **confront adverse witnesses** and present arguments—before a neutral decision-maker.

Here, the Barber Licensing Board commenced a proceeding to revoke the barber's license. The only evidence presented against the barber was affidavits by unnamed informants, who were not present or available for cross-examination. Therefore, the barber's best argument to have his revocation set aside is that his inability to confront his accusers denied him a fair hearing and due process of law.

(Choice A) Article III limits the power of the federal courts. It does not apply to state courts or any other state proceedings (as seen here).

(Choice B) The full faith and credit clause requires states to recognize valid judgments issued by other states—not charges dismissed by the United States Attorney (or other states).

(Choice D) Under the Article IV supremacy clause, a state law is void if it is preempted by federal law. But federal laws penalizing the illegal sale of cocaine do *not* preempt state action relating to drug trafficking because these laws are not in conflict.

Educational objective:

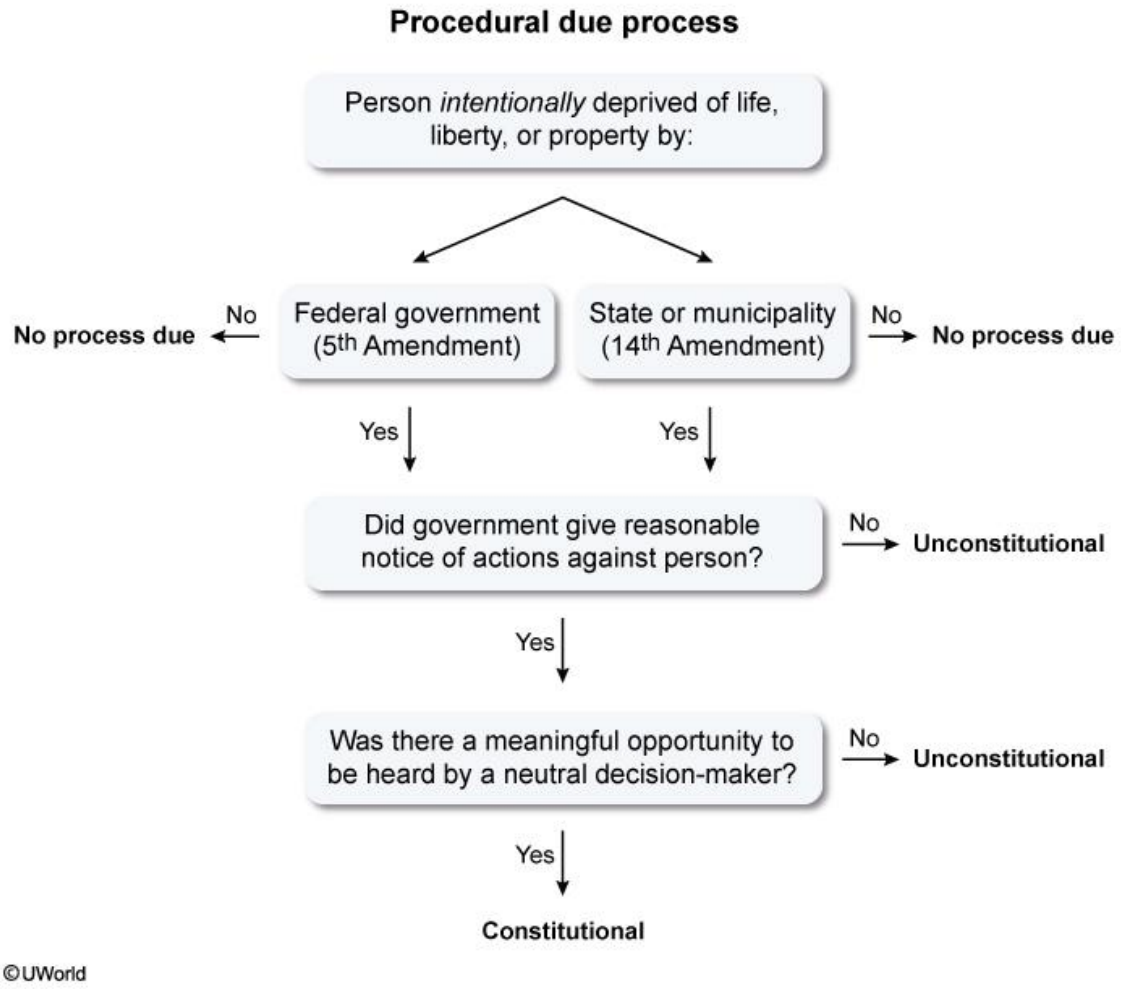
Due process requires that the government provide persons with (1) adequate notice and (2) a meaningful opportunity to be heard by a neutral decision-maker—and to confront adverse witnesses—before intentionally depriving them of life, liberty, or property.

References

- Willner v. Comm. on Character & Fitness, 373 U.S. 96, 103 (1963) (explaining that "procedural due process often requires confrontation and cross-examination of those whose word deprives a person of his livelihood").

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Procedural due process
Person intentionally deprived of life, liberty, or property by:
Federal government (5th Amendment)
State or municipality (14th Amendment)
No
No process due
No
No process due
Yes
Yes
Did government give reasonable notice of actions against person?
No
Unconstitutional
Yes
Was there a meaningful opportunity to be heard by a neutral decision-maker?
No
Unconstitutional
Yes
Constitutional
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A state adopted a rule denying admission to its bar to anyone who was currently or had previously been a member of a subversive group. The state's bar-application form was modified to ask applicants whether they were or had previously been members of any subversive organization. An applicant refused to answer the question and was denied bar admission on that basis. The applicant challenged the decision, arguing that the question infringed upon his freedom of association.

Is the applicant likely to prevail?

A. No, because membership in a subversive group constitutes endorsement of the group's illegal activities.

B. No, because the Constitution does not apply to the bar.

C. Yes, because denying bar admission based on any association with a subversive organization violates the First Amendment.

D. Yes, because inquiring into an applicant's association with a subversive organization to deny bar admission violates the First Amendment.

Explanation:

The First Amendment, as applied to the states through the Fourteenth Amendment, protects the **right to freely associate** with any group or organization—including subversive organizations. As a result, the government cannot **inquire about a person's associations** for the sole purpose of withholding a right or benefit because of that person's beliefs. Instead, the government must show that the inquiry is **necessary** (ie, the least restrictive means) to protect a **legitimate state interest**.

Here, an applicant was denied bar admission for refusing to answer whether he was or had been a member of any subversive organization. This question (and the associated rule) relates to the state's legitimate interest in ensuring that applicants have the requisite character and professional competence to practice law. But since that interest can be protected through less-restrictive means—eg, requiring a list of references and other personal/professional information—the question infringed upon the applicant's freedom of association. As a result, he is likely to prevail.

(Choice A) Membership in a subversive group does not necessarily constitute endorsement of the group's illegal activities since the individual may have joined for other, nonsubversive reasons.

(Choice B) The Constitution (excluding the Thirteenth Amendment) applies only to government action. The rule at issue here constitutes government action since it was adopted by the state. Therefore, the Constitution applies.

(Choice C) The government may punish individuals (eg, by denying bar admission) who are *active* members of subversive organizations and have the specific intent to further the organizations' illegal activities.

Educational objective:

The First Amendment prohibits the government from inquiring into a person's associations unless that inquiry is necessary to protect a legitimate state interest.

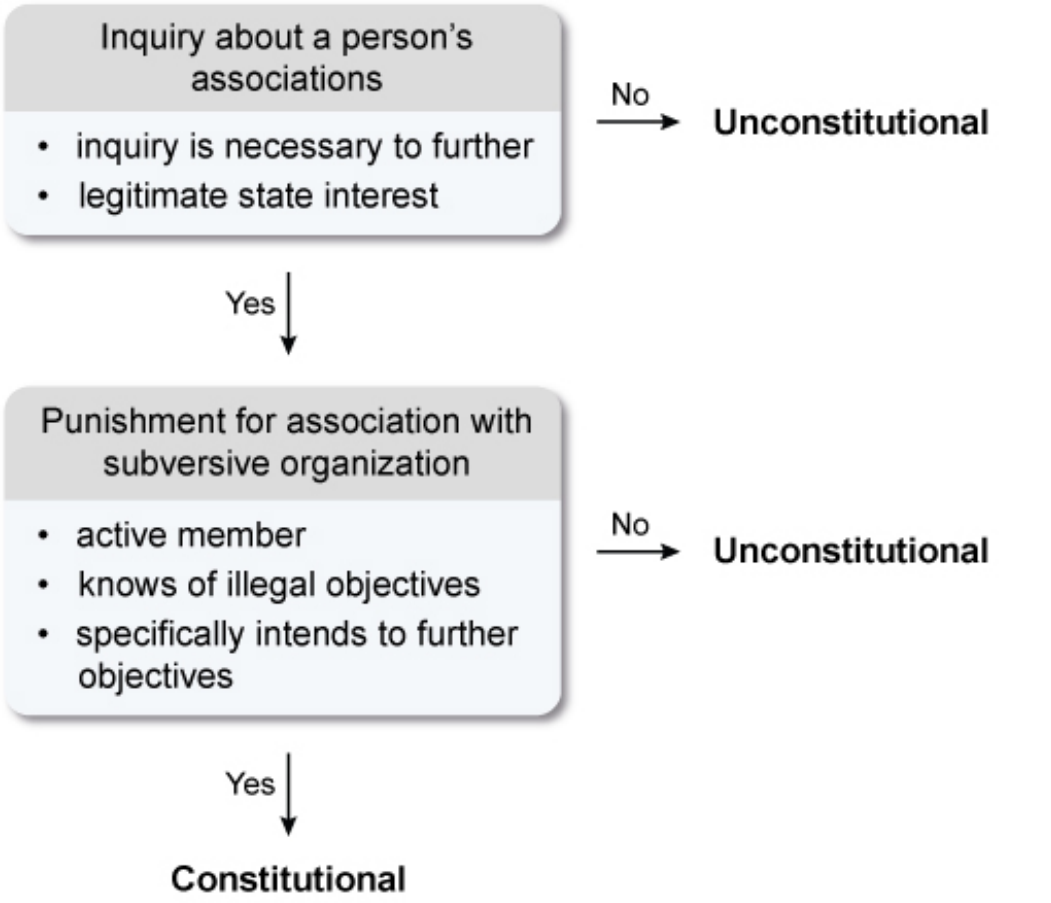
References

- Baird v. State Bar of Ariz., 401 U.S. 1, 6–7 (1971) (holding that a state can only inquire about a person's associations if it is necessary to serve a legitimate state interest).

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Freedom of association (inquiry & punishment)



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A company wanted to expand the size of the building it owned that housed the company's supermarket by adding space for a coffeehouse. The company's building was located in the center of five acres of land owned by the company and wholly devoted to parking for its supermarket customers.

City officials refused to grant a required building permit for the coffeehouse addition unless the company established in its store a childcare center that would take up space at least equal to the size of the proposed coffeehouse addition, which was to be 20% of the existing building. The city officials' action was authorized by provisions of the applicable zoning ordinance.

In a suit filed in state court against the appropriate city officials, the company challenged this childcare-center requirement solely on constitutional grounds. The lower court upheld the requirement even though the city officials presented no evidence and made no findings to justify it other than a general assertion that there was a shortage of childcare facilities in the city. The company appealed.

How should the appellate court rule on the constitutionality of the requirement imposed by the city on the issuance of this building permit?

A. The requirement is constitutional, because the burden was on the company to demonstrate that there was no rational relationship between this requirement and a legitimate governmental interest, and the company could not do so because the requirement is reasonably related to improving the lives of families and children residing in the city.

B. The requirement is constitutional, because the burden was on the company to demonstrate that this requirement was not necessary to vindicate a compelling governmental interest, and the company could not do so on these facts.

C. The requirement is unconstitutional, because the burden was on the city to demonstrate a rough proportionality between this requirement and the impact of the company's proposed action on the community, and the city failed to do so.

D. The requirement is unconstitutional, because the burden was on the city to demonstrate that this requirement was necessary to vindicate a compelling governmental interest, and the city failed to meet its burden under that standard.

Explanation:

Fifth Amendment takings

Type	Attributes
Physical	• Possession or permanent physical invasion of property
Regulatory	• Deprivation of all economically beneficial uses • Restricts use under totality of circumstances: – character of government action – economic impact – reasonable investment-back expectations
Exaction	• Condition to obtain building/development permit
Destruction	• Destruction of property or property interest (eg, easements, liens)

An **exaction** occurs when a local government conditions the issuance of a building or development permit on a landowner's promise to dedicate part of the property for public use. And an exaction amounts to a **Fifth Amendment taking** requiring just compensation **unless the government establishes**:

- an **essential nexus** – the imposed condition **substantially advances** a **legitimate government interest** *and*
- **rough proportionality** – individualized and quantifiable findings show that the **proposed development's impact** on the community is roughly proportional to the **imposed condition's impact** on the landowner.

Here, the city conditioned the grant of a building permit on the company's promise to establish a childcare center in its store without just compensation. This condition substantially advances its legitimate interest in alleviating the shortage of childcare facilities. But the city failed to present any evidence to establish a rough proportionality between that condition and the impact of the company's proposed action on the community. Therefore, the appellate court should rule that this exaction amounts to an unconstitutional taking.

(Choice A) The *city* had the burden to demonstrate that the imposed condition *substantially advances* the city's legitimate interest in expanding childcare facilities.

(Choices B & D) Neither the company nor the city had the burden to demonstrate that the childcare-center requirement was necessary to vindicate a compelling government interest.

Educational objective:

An exaction is a Fifth Amendment taking unless the government shows: (1) an essential nexus between the imposed condition and a legitimate government interest and (2) a rough proportionality between the condition's impact on the landowner and the proposed development's impact on the community.

References

- Nollan v. Cal. Coastal Comm'n., 483 U.S. 825, 837 (1987) (explaining the essential nexus requirement).
- Dolan v. City of Tigard, 512 U.S. 374, 391 (1994) (requiring the government to provide individualized findings to show a rough proportionality between the exaction and the projected impact of the development).

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A state in which several popular ski resorts are located has enacted a law requiring state certification of ski instructors. Under the law, applicants for certification must attend a monthlong course, pass a test, and pay a fee of $1,000. The stated purpose of the law is to "promote uniformity in the methods of ski instruction at the state's ski areas."

Shortly before the law's enactment, when the state did not require certification of ski instructors, a woman moved to the state intending to find employment as a ski instructor. The woman had been a ski instructor in another state for many years. But since her move, even though ski resorts in the state have found her to be highly qualified, no resort will offer her a contract for employment as a ski instructor because she has not received the required state certification.

As applied to the woman, does the state certification requirement constitute a violation of the contracts clause?

A. No, because her ability to contract for employment with the state is not being impaired.

B. No, because she has no existing contract that is being impaired.

C. Yes, because as applied to an otherwise qualified ski instructor, the requirement is not rationally related to a legitimate government interest.

D. Yes, because the requirement substantially impairs her ability to contract for employment in the absence of an important government objective.

Explanation:

The **contracts clause** restricts **state laws**—not court decisions or federal legislation—that substantially **impair *existing* contracts**. Therefore, this clause does **not apply** to ***future* contracts**.

Here, the state law interferes with the woman's ability to obtain an employment contract as a ski instructor. But since she has not been hired by a ski resort, the law does not impair any *existing* contract. Therefore, the state certification requirement does not violate the contracts clause as applied to the woman.

(Choice A) The contracts clause applies to private contracts (ie, agreements with non-government parties) *and* public contracts (ie, agreements with government entities). But the woman's ability to contract for employment with the state is irrelevant since this clause only protects existing contracts.

(Choices C & D) The contracts clause would only apply if the woman—qualified or not—had an existing contract. And had one existed, a substantial impairment of that contract would only be upheld if it was reasonable and narrowly tailored (not just rationally related) to an important and legitimate government interest (here, promoting uniformity in ski-instruction methods in the state).

Educational objective:

The contracts clause restricts state laws that substantially impair existing (not future) contracts.

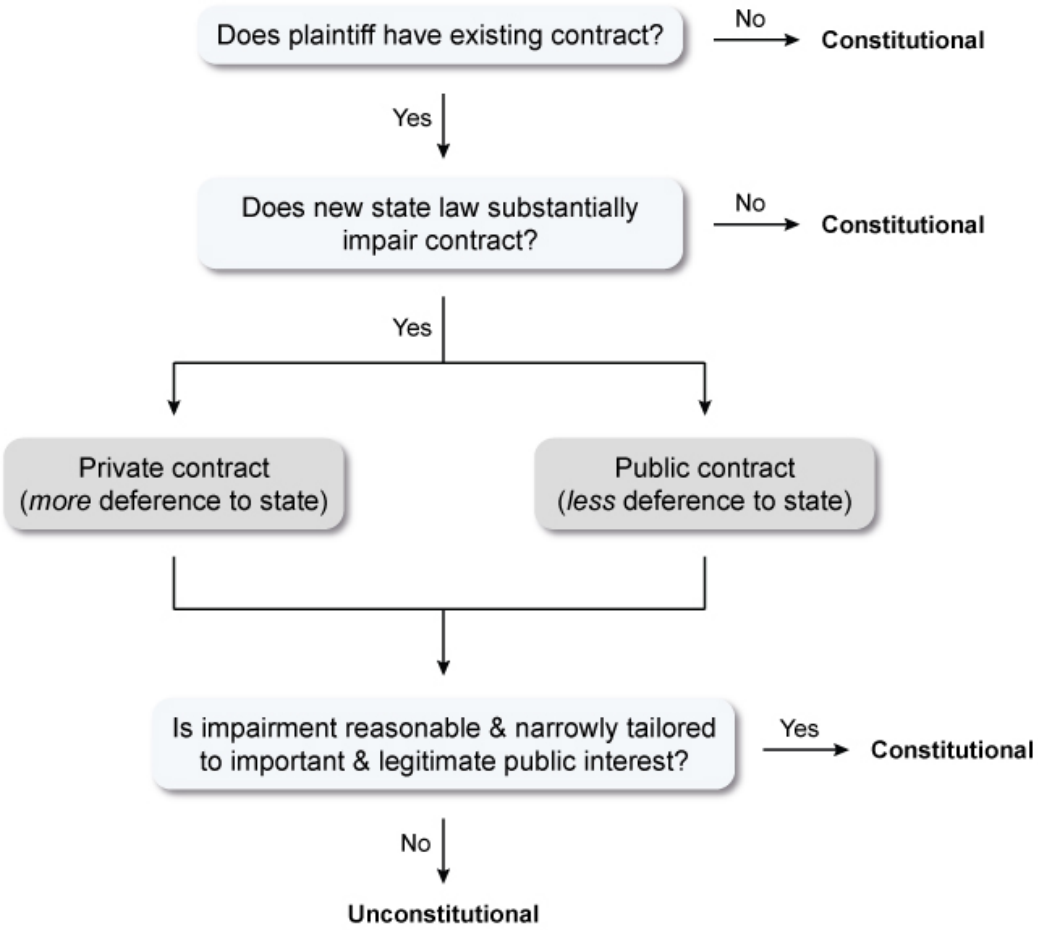
References

- U.S. Const. art. I, § 10 (contracts clause).
- Gen. Motors Corp. v. Romein, 503 U.S. 181,186 (1992) (explaining that the contracts clause only applies when a state law substantially impairs an existing contractual relationship).

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Contracts clause analysis



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A company owned a large tract of land that contained coal deposits that the company intended to mine. The company acquired mining equipment and began to plan its mining operations. Just as the company was about to begin mining, Congress enacted a statute that imposed a number of new environmental regulations and land-reclamation requirements on all mining operations within the United States. The statute made the company's planned mining operations economically infeasible. As a result, the company sold the tract of land to a farmer. While the sale price allowed the company to recover its original investment in the land, it did not cover the additional cost of the mining equipment the company had purchased or the profits it had expected to earn from its mining operations on the land.

In an action filed against the appropriate federal official, the company claims that the statute effected a taking of its property for which it is entitled to just compensation in an amount equal to the cost of the mining equipment it purchased and the profits it expected to earn from its mining operations on the land.

Which of the following is the most appropriate result in the action?

A. The company should prevail on its claims for the cost of the mining equipment and for its lost profits.

B. The company should prevail on its claim for the cost of the mining equipment, but not for its lost profits.

C. The company should prevail on its claim for lost profits, but not for the cost of the mining equipment.

D. The company should not prevail on its claim for the cost of the mining equipment or for its lost profits.

Explanation:

Fifth Amendment takings

Type	Attributes
Physical	• Possession or permanent physical invasion of property
Regulatory	• Deprivation of all economically beneficial uses • Restricts use under totality of circumstances: – character of government action – economic impact – reasonable investment-back expectations
Exaction	• Condition to obtain building/development permit
Destruction	• Destruction of property or property interest (eg, easements, liens)

A **regulatory taking** occurs when the government substantially restricts (or destroys all economically beneficial) use of private property—including land and personal property. A **substantial restriction** is evaluated under the **totality of the circumstances**, including:

- the **character or nature** of the government action (ie, public benefit)
- the severity of the **economic impact** on the property *and*
- the interference with the owner's **reasonable investment-backed expectations**.

And under the Fifth Amendment, the government can only commit a taking if it provides the owner **just compensation**—ie, the **fair market value** of the property at the time of the taking.

Here, the federal statute did not effect a taking of the company's *land* because (1) it is still economically viable as farmland and (2) the company recouped its original investment through the sale to the farmer. Nor did the statute effect a taking of the *mining equipment* because it can be used on other land or sold. Therefore, the company is not entitled to just compensation for the land or mining equipment. But even if a taking had occurred, the company could only recover the fair market value of the taken property—not its lost profits **(Choices A, B, & C)**.

Educational objective:

A regulatory taking occurs when the government substantially restricts (or destroys all economically beneficial) use of private property—including land and personal property. But this only entitles the owner to just compensation in the amount of the property's fair market value at the time of the taking—not lost profits.

References

- Lucas v. S.C. Coastal Council, 505 U.S. 1003, 1019 (1992) (holding that a deprivation of all economically beneficial uses of property constitutes a taking).
- Penn Cent. Transp. Co. v. New York City, 438 U.S. 104, 124 (1978) (establishing the factors to consider when determining if a regulation constitutes a taking).
- 26 Am. Jur. 2d Eminent Domain § 14 (2019) (explaining the Penn Central factors).

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A city owns and operates a large public auditorium. It leases the auditorium to any group that wishes to use it for a meeting, lecture, concert, or contest. Each user must post a damage deposit and pay rent, which is calculated only for the actual time the building is used by the lessee. Reservations are made on a first-come, first-served basis.

A private organization that permits only males to serve in its highest offices rented the auditorium for its national convention. The organization planned to install its new officers at that convention. It broadly publicized the event, inviting members of the general public to attend the installation ceremony at the city auditorium. No statute or administrative rule prohibits the organization from restricting its highest offices to men.

An appropriate plaintiff sues the private organization seeking to enjoin it from using the city auditorium for the installation of its new officers. The sole claim of the plaintiff is that the use of this auditorium by the organization for the installation ceremony violates the Fourteenth Amendment because the organization disqualifies women from serving in its highest offices.

Will the plaintiff prevail?

A. No, because the freedom of association protected by the Fourteenth Amendment prohibits the city from interfering in any way with the organization's use of city facilities.

B. No, because this organization is not a state actor and, therefore, its activities are not subject to the provisions of the Fourteenth Amendment.

C. Yes, because the Fourteenth Amendment prohibits such an organization from discriminating against women in any of its activities to which it has invited members of the general public.

D. Yes, because the organization's use of the city auditorium for this purpose subjects its conduct to the provisions of the Fourteenth Amendment.

Explanation:

The Constitution (except the Thirteenth Amendment) applies to government actors. But under the **state-action doctrine**, a private actor is treated as a government actor—and similarly bound by the Constitution—when (1) the private actor performs a **traditional and exclusive** government function *or* (2) the government is **significantly involved** in the private actor's activities. Significant involvement exists when the government:

- has a **mutually beneficial** relationship with the private actor (eg, joint venture)
- creates a **nexus** by affirmatively facilitating or authorizing private action (eg, through a police officer acting under color of law) *or*
- is pervasively **intertwined** in the private actor's management or control.

Here, the *private* organization is not performing a traditional and exclusive government function because private groups have historically used city auditoriums for conventions **(Choice D)**. And merely leasing the auditorium does not affirmatively facilitate the organization's actions or entwine the city in the organization's management. Nor does it create a mutually beneficial relationship since the city provides uniform access to *any* group at the same rate on a first-come, first-served basis. Therefore, the organization is not a state actor subject to the Fourteenth Amendment.

(Choice A) The First Amendment—applicable to states and municipalities through the Fourteenth Amendment—prohibits some (but not all) government interference with the freedom of association.

(Choice C) The fact that the private organization invited members of the general public to its activities does not make it a government actor subject to the Fourteenth Amendment equal protection clause.

Educational objective:

Under the state-action doctrine, private actors are considered government actors and bound by the Constitution when (1) they perform a traditional government function or (2) the government is significantly involved in their activities—eg, more than providing access to government services or facilities.

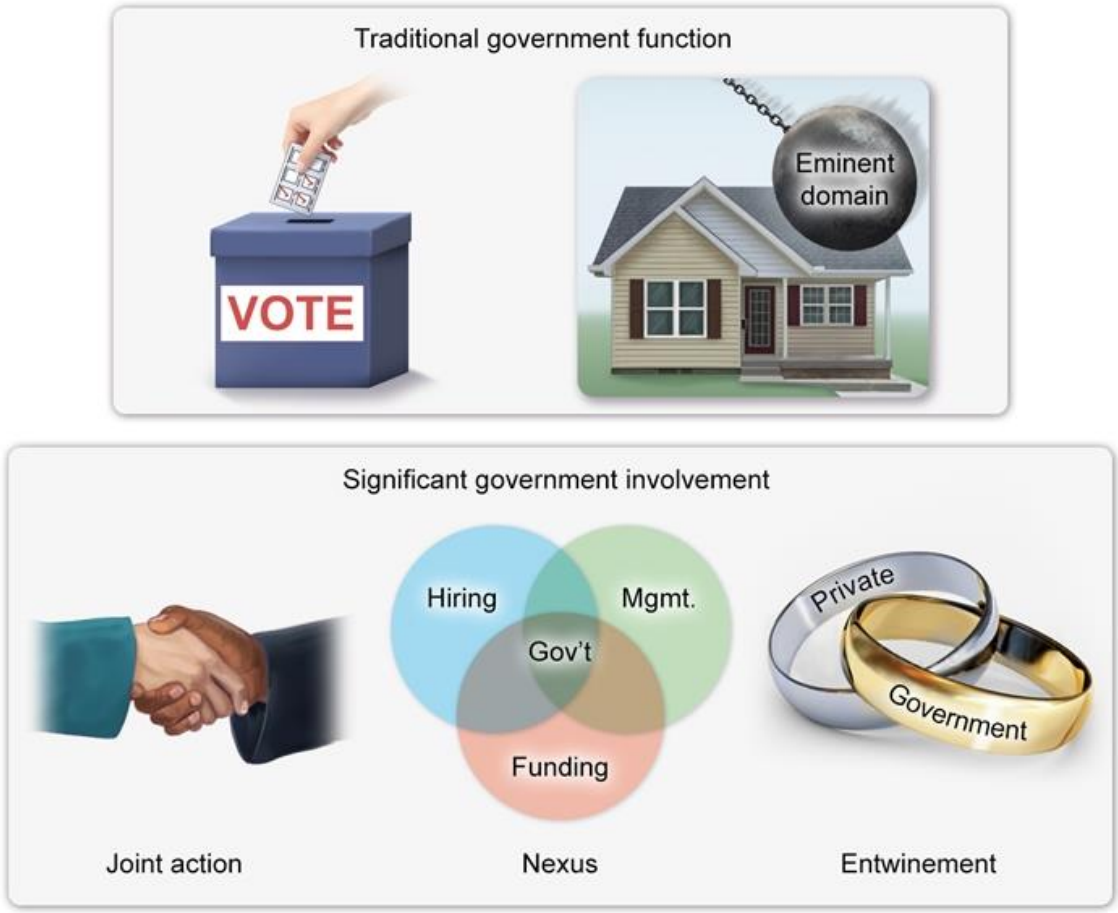
References

- Gilmore v. Montgomery, 417 U.S. 556, 574 (1974) (explaining that the mere private use of government facilities does not constitute significant state involvement under the state-action doctrine).

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State-action doctrine



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Members of a religious group believe in Lucifer as their Supreme Being. The members of this group meet once a year on top of a mountain, located in a national park, to hold an overnight encampment and a midnight dance around a large campfire. They believe that this overnight encampment and ritual are required by Lucifer to be held on the top of that mountain. U.S. National Park Service rules that have been consistently enforced prohibit all overnight camping and all campfires on the mountain because of the very great dangers overnight camping and campfires would pose in that particular location. As a result, the park superintendent denied a request by the religious group for a permit to conduct these activities on top of the mountain. The park superintendent, who was known to be violently opposed to cults and other unconventional groups, had previously issued permits to conventional religious groups to conduct sunrise services in other areas of that national park.

The religious group brought suit in federal court against the U.S. National Park Service and the superintendent of the park to compel issuance of the requested permit.

As a matter of constitutional law, was the denial of the permit valid?

A. No, because the free exercise clause of the First Amendment prohibits the Park Service from knowingly interfering with religious conduct.

B. No, because these facts demonstrate that the action of the Park Service purposefully and invidiously discriminated against the religious group.

C. Yes, because religiously motivated conduct may be subjected to nondiscriminatory time, place, and manner restrictions that advance important public interests.

D. Yes, because the establishment clause of the First Amendment prohibits the holding of religious ceremonies on federal land.

Explanation:

The permit denial restricts the religious group's **right to free expression** by preventing its religiously motivated conduct. However, the permit was denied because of a **content-neutral** (ie, nondiscriminatory) rule prohibiting *all* overnight camping and campfires on the mountain—not because of the content of the group's religious conduct. As a result, this time, place, or manner restriction is valid under **intermediate scrutiny** if it:

- is **narrowly tailored** (ie, no greater than necessary) to serve a substantial or **important government interest** *and*
- leaves open ample **alternative channels of communication**.

The park has an important interest in avoiding the "very great dangers" posed by overnight camping and campfires. And the park rule is narrowly tailored to that interest since (1) park safety would be compromised by allowing the prohibited activities and (2) there is no evidence that the group's conduct poses no such safety threat. The rule also provides alternative channels of communication since the group can conduct religious rituals at other times and places. Therefore, this speech restriction is valid.

The permit denial also interferes with the group's right to free exercise of religion, which largely prohibits intentional government interference with religion **(Choice A)**. But an *incidental* interference is permissible if it is rationally related to a legitimate government interest. Here, the permit was denied under a generally applicable park rule (not the superintendent's beliefs), so the religious interference was *incidental*. And since the rule is rationally related to a legitimate interest in park safety, the permit denial complied with this right **(Choice B)**.

(Choice D) The establishment clause prohibits the government from favoring a particular religion or religion generally. Therefore, religious ceremonies on federal land are permissible so long as the government remains neutral toward religion.

Educational objective:

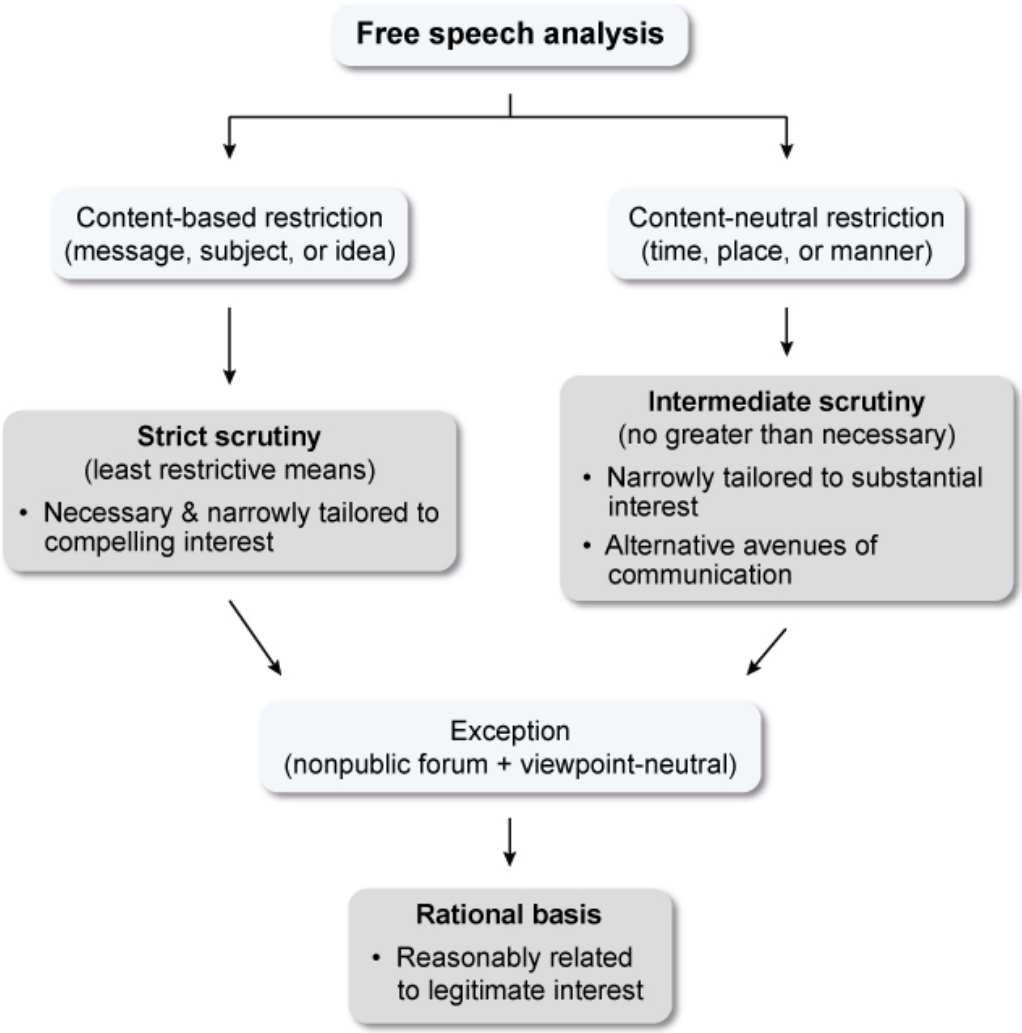
First Amendment free speech protections extend to religious conduct. But the government can impose content-neutral restrictions on such conduct so long as they (1) are narrowly tailored to serve an important government interest and (2) leave open ample alternative channels of communication.

References

- Clark v. Cmty. for Creative Non-Violence, 468 U.S. 288, 298–99 (1984) (holding that the denial of a camping permit for a demonstration is a constitutional time, place, and manner restriction on speech).

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Free speech analysis
Content-based restriction (message, subject, or idea)
Content-neutral restriction (time, place, or manner)
Strict scrutiny
(least restrictive means)
• Necessary & narrowly tailored to compelling interest
Intermediate scrutiny
(no greater than necessary)
• Narrowly tailored to substantial interest
• Alternative avenues of communication
Exception
(nonpublic forum + viewpoint-neutral)
Rational basis
• Reasonably related to legitimate interest

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A state administrative agency employs individuals on a permanent and seasonal basis. Some seasonal employees are rehired at the end of their work period, but most are not. On rare and random occasions, the agency has given seasonal employees who were not rehired a statement of reasons and an opportunity for a hearing. No statute or agency rule requires a statement of reasons or an opportunity for a hearing.

A man who was hired as a seasonal employee of the agency was not rehired at the end of his work period. The man was not given a statement of reasons or an opportunity for a hearing.

The man sued the agency in federal court, requesting a statement of reasons and a hearing.

Will the man's suit likely succeed?

A. No, because the man has no property interest entitling him to procedural due process.

B. No, because the Tenth Amendment reserves to the states the power to set the conditions of state employment.

C. Yes, because the agency's procedure constituted a bill of attainder.

D. Yes, because the agency's procedure denied the man the equal protection of the laws.

Explanation:

The man's claim invokes the Fourteenth Amendment right to **procedural due process**, which requires states to follow certain procedures when they **intentionally deprive** a person of life, liberty, or property. These procedures include giving persons:

- notice of the charges, proceedings, or other actions against them *and*
- a meaningful opportunity to be heard by a neutral decision-maker.

Public employees are only entitled to these procedures if they have a **property interest** in their employment. This exists when the employee (1) has an **ongoing employment contract**, (2) can only be fired **for cause**, *or* (3) receives **assurances of continued employment**. But since none of these conditions apply to a seasonal (ie, probationary) public employee, the man had no property interest entitling him to due process. Therefore, his suit requesting a statement of reasons and a hearing will likely fail.

(Choice B) Under the Tenth Amendment, all powers not expressly granted to the federal government by the Constitution—including the power to set the conditions of state employment—are reserved to the states. But when exercising such powers, states must comply with other constitutional provisions (eg, procedural due process).

(Choice C) A bill of attainder is a legislative act that punishes a specified person or group without a judicial trial. But since the *agency's* procedure is applied against *random* persons, it is not a bill of attainder.

(Choice D) The equal protection clause prohibits the government from treating similarly situated people differently—even unintentionally—without adequate justification. But when, as here, the government does *not* substantially impact a fundamental right or protected class, its actions will likely be upheld under rational basis scrutiny.

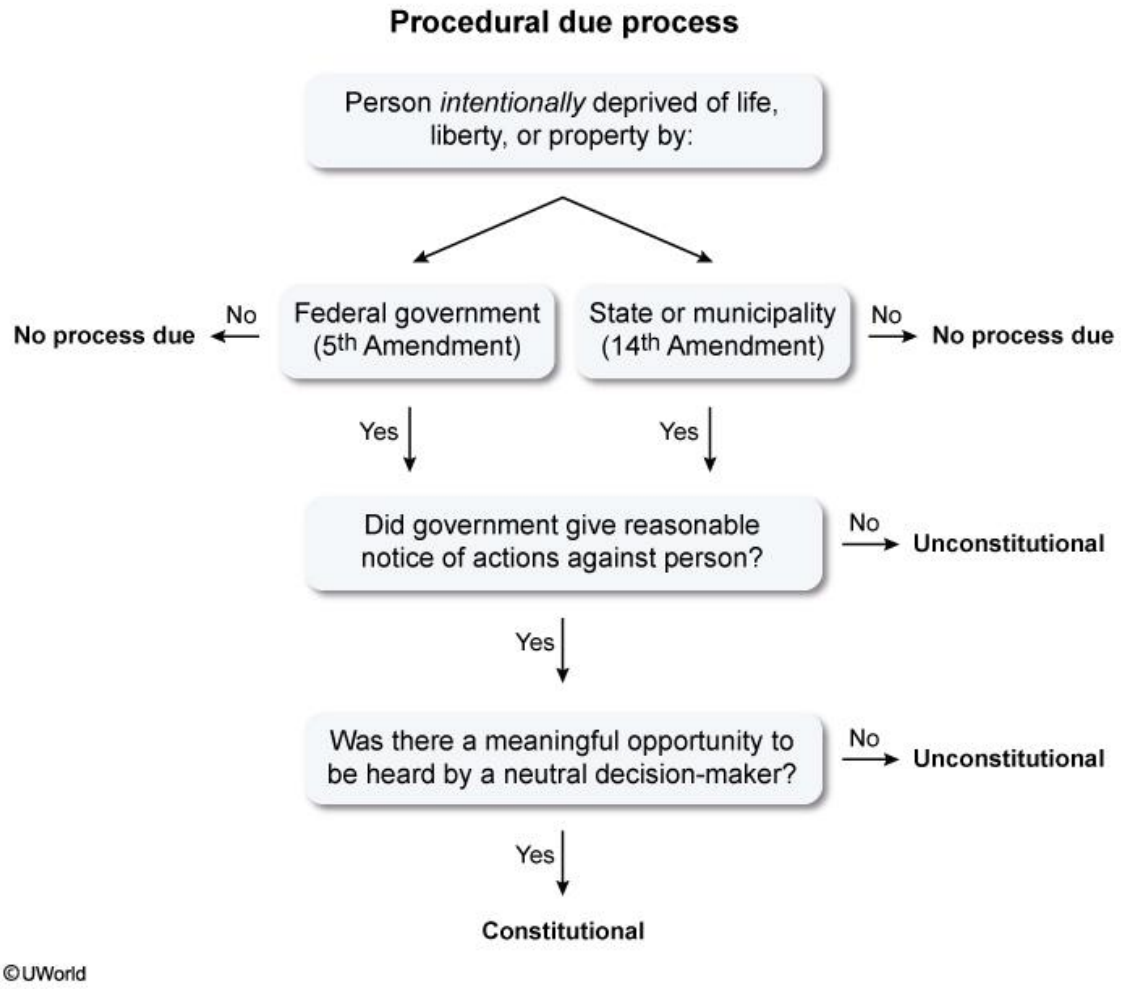
Educational objective:

Public employees have a protected property interest in their jobs if they (1) have an ongoing employment contract, (2) can only be fired for cause, or (3) receive assurances of continued employment. Therefore, seasonal (ie, probationary) public employees can be terminated without due process.

References

- Bd. of Regents of State Colls. v. Roth, 408 U.S. 564, 576–77 (1972) (explaining when public employees have a protected interest in continued employment).

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Procedural due process
Person intentionally deprived of life, liberty, or property by:
Federal government (5th Amendment)
State or municipality (14th Amendment)
No
No process due
No
No process due
Yes
Yes
Did government give reasonable notice of actions against person?
No
Unconstitutional
Yes
Was there a meaningful opportunity to be heard by a neutral decision-maker?
No
Unconstitutional
Yes
Constitutional
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A number of psychotherapists routinely send mailings to victims of car accidents informing the victims of the possibility of developing post-traumatic stress disorder (PTSD) as the result of the accidents, and offering psychotherapy services. Although PTSD is a possible result of a car accident, it is not common.

Many accident victims in a particular state who received the mailings complained that the mailings were disturbing and an invasion of their privacy. These victims also reported that as a result of the mailings, their regard for psychotherapists and for psychotherapy as a form of treatment had diminished. In response, the state enacted a law prohibiting any licensed psychotherapist from sending mailings that raised the concern of PTSD to any car accident victim in the state until 30 days after the accident. The state justified the law as an effort to address the victims' complaints as well as to protect the reputation of psychotherapy as a form of treatment.

Is this law constitutional?

A. No, because the law singles out one type of message for prohibition while allowing others.

B. No, because the mailings provide information to consumers.

C. Yes, because mailings suggesting the possibility of developing PTSD as the result of an accident are misleading.

D. Yes, because the law protects the privacy of accident victims and the public regard for psychotherapy without being substantially more restrictive than necessary.

Explanation:

Commercial speech encompasses all types of economically-oriented expression (eg, advertisements). And it receives **intermediate First Amendment protection** so long as it is not false or misleading and does not concern unlawful activity. Therefore, government regulation of protected commercial speech is only constitutional if it (1) directly advances a **substantial government interest** and (2) is **narrowly drawn**—ie, not substantially more restrictive than necessary—to serve that interest.

Here, the state law prohibits psychotherapists from sending mailings about PTSD (including offers of services) to car-accident victims within 30 days of their accidents. These commercial mailings concern a lawful activity and are not false or misleading since they only suggest the possibility (not the likelihood) of developing PTSD **(Choice C)**. And since a 30-day waiting period (1) directly advances the state's substantial interests in protecting victims' privacy and psychotherapy's reputation and (2) is not substantially more restrictive than necessary, the law is constitutional.

(Choice A) Laws that prohibit one type of message while allowing others (ie, content-based restrictions) are generally struck down under *strict* scrutiny. But since the state law concerns commercial speech—which only undergoes *intermediate* scrutiny—it permissibly targets PTSD mailings.

(Choice B) The mailings are protected commercial speech because they seek to provide consumers with information about PTSD—not to mislead them. But the government can still regulate the content of the mailings because the regulation meets intermediate scrutiny.

Educational objective:

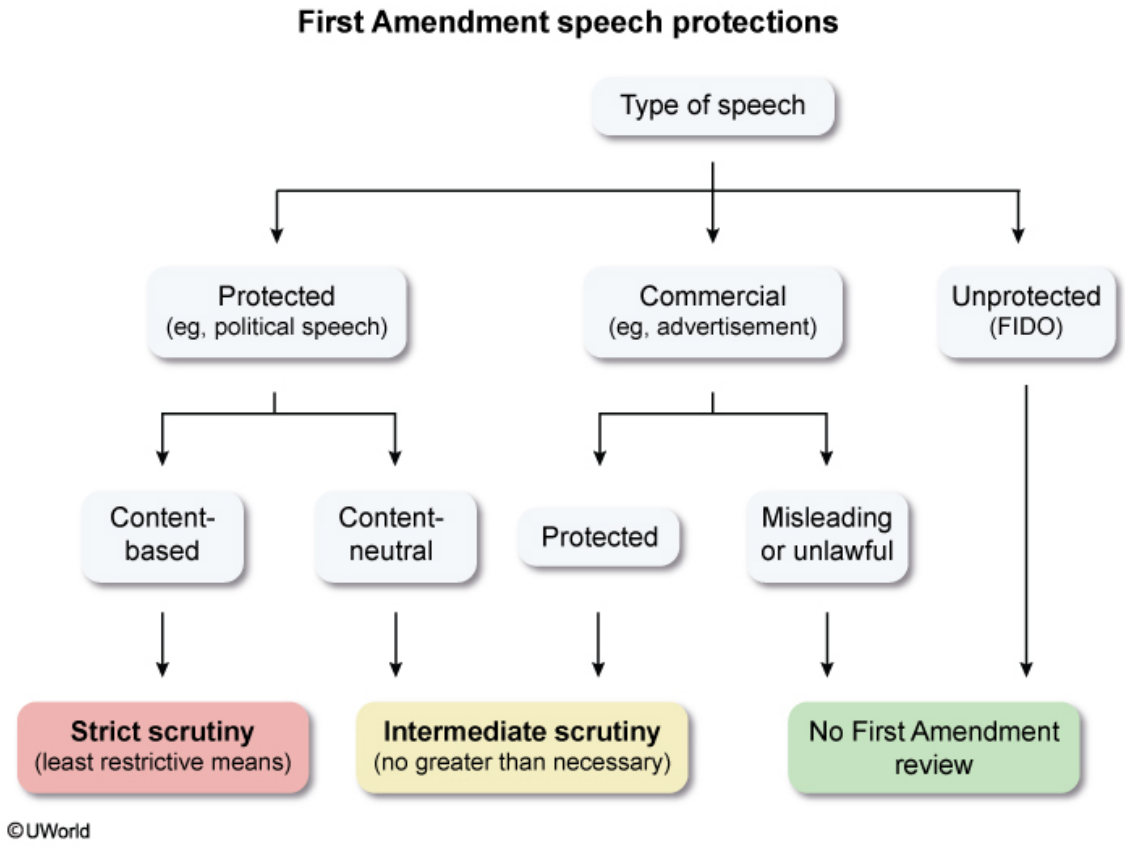
Commercial speech that is false/misleading or concerns unlawful activity can be freely regulated. But any other commercial speech can only be regulated if the government shows, under intermediate scrutiny, that its regulation (1) directly advances a substantial government interest and (2) is narrowly drawn to serve that interest.

References

- Fla. Bar v. Went for It, Inc., 515 U.S. 618, 634–35 (1995) (upholding a state bar rule prohibiting attorneys from mailing solicitations to car-accident victims for 30 days after their accidents).

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First Amendment speech protections
Type of speech
Protected
(eg, political speech)
Commercial
(eg, advertisement)
Unprotected
(FIDO)
Content-based
Content-neutral
Protected
Misleading or unlawful
Strict scrutiny
(least restrictive means)
Intermediate scrutiny
(no greater than necessary)
No First Amendment review
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A state law provides that a person who has been divorced may not marry again unless he or she is current on all child-support payments. A woman who was refused a marriage license pursuant to this law sued the appropriate state officials.

What standard should the court apply in reviewing the constitutionality of this law?

A. The state must show that the law is necessary to serve a compelling government interest.

B. The state must show that the law is substantially related to an important government interest.

C. The woman must show that the law serves no important public purpose.

D. The woman must show that the legislature did not have a rational basis for enacting the law.

Explanation:

Equal protection

(standards of review)

Standard	Applicability	Test
Rational basis	Default test	*Challenger* must show • action is not rationally related • to legitimate government interest
Intermediate scrutiny	Discriminates against quasi-suspect class: • Sex/gender • Legitimacy	*Government* must show • action is substantially related • to important government interest
Strict scrutiny	Discriminates against suspect class: • Ethnicity • Citizenship (state law only) • Race • Nationality Impacts fundamental right (**First VIP**): • **First** Amendment rights • **V**oting • **I**nterstate travel • **P**rivacy: family, marriage, parental rights, sexual acts, contraceptives	*Government* must show • action is necessary (ie, least restrictive means) • to achieve compelling government interest

A government action that treats similarly situated individuals differently can be challenged under the **equal protection clause**. The standard under which a court will review this challenge depends on the alleged **discrimination**. A law that discriminates against a **suspect class** or substantially impacts a **fundamental right** (eg, marriage) will be subject to **strict scrutiny**.

Here, a state law discriminates against divorced persons by requiring them to be current on all child-support payments before remarriage—thereby substantially impacting the

fundamental right to marry. As a result, the court will review that law under the strict scrutiny standard and will only uphold it if the state proves that the law is necessary to serve a compelling government interest.

(Choices B & C) Only laws that impact a quasi-suspect class (ie, sex/gender, nonmarital birth) require the court to apply intermediate scrutiny. Under this standard of review, the *government* must show that the law is substantially related to an important government interest (eg, an important public purpose).

(Choice D) The woman would have had to show that the legislature did not have a rational basis for enacting the law (ie, rational basis review) if the law had *not* impacted a fundamental right, suspect class, or quasi-suspect class.

Educational objective:

Discriminatory laws that impact a fundamental right (eg, marriage) or suspect class must satisfy the strict scrutiny test—ie, the government must show that the law is necessary to serve a compelling government interest.

References

- U.S. Const. amend. XIV (equal protection clause).
- Zablocki v. Redhail, 434 U.S. 374, 387–88 (1978) (holding that strict scrutiny applies when state action impacts the fundamental right of marriage).

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The Federal Family Film Enhancement Act assesses an excise tax of 10% on the price of admission to public movie theaters when they show films that contain actual or simulated scenes of human sexual intercourse.

Which of the following is the strongest argument against the constitutionality of this federal act?

A. The act imposes a prior restraint on the freedom of speech protected by the First Amendment.

B. The act imposes a tax solely on the basis of the content of speech without adequate justification and, therefore, it is prohibited by the freedom of speech clause of the First Amendment.

C. The act is not rationally related to any legitimate national interest.

D. The act violates the equal protection concepts embodied in the due process clause of the Fifth Amendment because it imposes a tax on the price of admission to view certain films and not on the price of admission to view comparable live performances.

Explanation:

Speech regulations

Type	Definition	Test
Content-based	• Facial discrimination • Primary purpose targets message, subject, or idea	Strict scrutiny • Necessary & narrowly tailored to achieve compelling interest
Content-neutral	• Regulates time, place, or manner of speech	Intermediate scrutiny • Narrowly tailored to achieve important interest • Alternative avenues of communication remain

The First Amendment **free speech clause** protects the right to freely communicate and receive information and ideas. To ensure such protection, **content-based restrictions** on speech are **presumptively unconstitutional** and subject to **strict scrutiny**. This means that the government can only restrict speech based on what is being said (ie, its message or ideas) if it can prove that the restriction is **necessary and narrowly tailored** to achieve a **compelling government interest**—a nearly impossible task.

Here, the act is a content-based restriction on speech because it imposes an excise tax on the price of admission to theaters when they show films that depict human sexual intercourse. And since it is highly unlikely that this act can survive strict scrutiny, the strongest argument against its constitutionality is that it imposes a tax based solely on the content of speech without adequate justification.

(Choice A) A prior restraint on speech is a highly disfavored government action that prohibits speech before it even occurs (eg, injunction). But the act here is not a prior restraint on speech because it does not prevent the films from being shown—it merely imposes a tax.

(Choice C) If the federal act is *not* rationally related to a legitimate national interest, it cannot pass rational basis scrutiny—let alone strict scrutiny. But this argument would likely fail since laws almost always survive rational basis review.

(Choice D) This act may trigger the equal protection concepts embodied in the Fifth Amendment, which apply when the government treats similarly situated people differently. But since the movie theater patrons who must pay this tax are not part of a protected class, this is not a strong argument for challenging the act's validity.

Educational objective:

Content-based restrictions on speech are unconstitutional unless they survive strict scrutiny. This incredibly stringent standard requires the government to prove that the restriction is necessary and narrowly tailored to achieve a compelling government interest.

References

- Ark. Writers' Project, Inc. v. Ragland, 481 U.S. 221, 231 (1987) (applying strict scrutiny to a tax scheme that exempts certain magazines based on content).

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A city school board issued a rule authorizing public school principals to punish, after a hearing, students who violate the board's student behavior code. According to the rule, violators of the behavior code may be punished in a variety of ways, including being required to sit in designated school-confinement rooms during all school hours, with their hands clasped in front of them, for a period of up to 15 school days.

A fifth-grade student in a city elementary school was charged with placing chewed bubble gum on a classmate's chair, a violation of the student behavior code. He had never violated the code before and was otherwise an attentive and well-behaved student. After a hearing on the charges, the student's principal determined that the student had violated the behavior code in the manner charged and ordered the student to spend the next 15 school days in the school-confinement room with his hands clasped in front of him.

The student's parents file suit in federal court challenging, solely on constitutional grounds, the principal's action in ordering the student to spend the next 15 school days in the school-confinement room with his hands clasped in front of him.

Which of the following arguments would be most helpful to the student's parents in this suit?

A. Because application of the school board rule in this case denies the student freedom of movement and subjects him to bodily restraint in a manner grossly disproportionate to his offense and circumstances, it violates the due process clause of the Fourteenth Amendment.

B. Because the school board rule is enforced initially by administrative rather than judicial proceedings, it constitutes a prohibited bill of attainder.

C. Because the school board rule is substantially overbroad in relation to any legitimate purpose, it constitutes a facial violation of the equal protection clause of the Fourteenth Amendment.

D. Because the school board rule limits the freedom of movement of students and subjects them to bodily restraint, it denies them a privilege and immunity of citizenship guaranteed them by Article IV, Section 2.

Explanation:

Fourteenth Amendment protections

Clause	Applicability
Equal protection	Discriminatory treatment of similarly situated people
Due process	Substantive – deprivation of life, liberty, or property without adequate *justification*
	Procedural – deprivation of life, liberty, or property without adequate *process*
Privileges or immunities*	Interference with rights of national citizenship

*Rarely a correct answer.

Substantive due process prohibits the government from depriving persons of life, liberty, or property (eg, freedom of movement) without adequate justification. At a minimum, due process requires that any such **government action** be **rationally related** to a **legitimate government interest** (ie, rational basis review). A government action that is **grossly disproportionate** to a person's offense or circumstances **cannot satisfy** this standard of review.

Here, the principal applied a school board rule and ordered the student to spend 15 days in confinement after he placed gum on a classmate's chair. But the student had never violated the behavior code before and was otherwise attentive and well-behaved. As a result, the parents' best argument is that the application of the school board rule violates due process because it subjects the student to bodily restraint in a manner *grossly* disproportionate to his offense and circumstances.

(Choice B) State and federal governments are prohibited from passing bills of attainder—ie, legislative acts that punish a specific person or group without a judicial trial. But since this school board rule allows punishment of any student who violates the behavior code—not just a specific student or group—it is not a bill of attainder.

(Choice C) A rule is facially invalid (eg, substantially overbroad) if no application of the rule is constitutional. But the school board rule is not a facial violation of the equal protection clause since it applies equally to *all* students.

(Choice D) The Article IV privileges and immunities clause prohibits states from discriminating against out-of-state residents by denying them a right of state citizenship. This clause does not apply here since the student is a resident of the school district—not an out-of-state resident.

Educational objective:

Substantive due process prohibits government deprivations of life, liberty, or property that are not rationally related to a legitimate government interest—eg, grossly disproportionate punishments.

References

- Cooper Indus. v. Leatherman Tool Grp., 532 U.S. 424, 433–35 (2001) (explaining that the due process clause prohibits government punishments that are "grossly disproportional" to the offense).

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Public schools in a state are financed, in large part, by revenue derived from real estate taxes imposed by each school district on the taxable real property located in that district. Public schools also receive other revenue from private gifts, federal grants, student fees, and local sales taxes. For many years, the state has distributed additional funds, which come from the state treasury, to local school districts in order to equalize the funds available on a per-student basis for each public school district. These additional funds are distributed on the basis of a state statutory formula that considers only the number of students in each public school district and the real estate tax revenue raised by that district. The formula does not consider other revenue received by a school district from different sources.

The school boards of two school districts, together with parents and schoolchildren in those districts, bring suit in federal court to enjoin the state from allocating the additional funds from the state treasury to individual districts pursuant to this formula. They allege that the failure of the state, in allocating this additional money, to take into account a school district's sources of revenue other than revenue derived from taxes levied on real estate located there violates the equal protection clause of the Fourteenth Amendment. The complaint does not allege that the allocation of the additional state funds based on the current statutory formula has resulted in a failure to provide minimally adequate education to any child.

Which of the following best describes the appropriate standard by which the court should review the constitutionality of the state statutory funding formula?

A. Because classifications based on wealth are inherently suspect, the state must demonstrate that the statutory formula is necessary to vindicate a compelling state interest.

B. Because no fundamental right or suspect or quasi-suspect classification is implicated in this case, the plaintiffs must demonstrate that the funding allocation formula bears no rational relationship to any legitimate state interest.

C. Because the funding formula inevitably leads to disparities among the school districts in their levels of total funding, the plaintiffs must only demonstrate that the funding formula is not substantially related to the furtherance of an important state interest.

D. Because the statutory funding formula burdens the fundamental right to education, the state must demonstrate that the formula is necessary to vindicate a compelling state interest.

Explanation:

Laws that unevenly distribute benefits can be challenged on **equal protection** grounds. These challenges are generally subject to **rational basis** review, where the challenger must show that the law is not rationally related to any legitimate state interest. But **intermediate scrutiny** is used for laws that substantially impact a **quasi-suspect class**. And **strict scrutiny** is used for laws that substantially impact a **suspect class** or **fundamental right**.

Here, a state statute calculates the distribution of funds from the state treasury based on the number of students in each public school district and the real estate tax revenue raised by that district. This formula has a disparate impact on school districts because it fails to account for other sources of revenue. But since this law does not affect a fundamental right, suspect class, or quasi-suspect class, rational basis review will apply.

(Choices A & D) The state must show that its law is necessary to vindicate a compelling state interest (ie, strict scrutiny) when the law substantially impacts a suspect class or fundamental right. In *San Antonio Indep. Sch. Dist. v. Rodriguez*, the Supreme Court held that (1) wealth-based classifications do not impact suspect or quasi-suspect classes and (2) education is not a fundamental right. Therefore, rational basis scrutiny will apply here.

(Choice C) The *state* would have had to demonstrate that its statutory funding formula *is* substantially related to an important state interest (ie, intermediate scrutiny) had the formula impacted a quasi-suspect class (ie, gender, legitimacy). But the statute does not do so.

Educational objective:

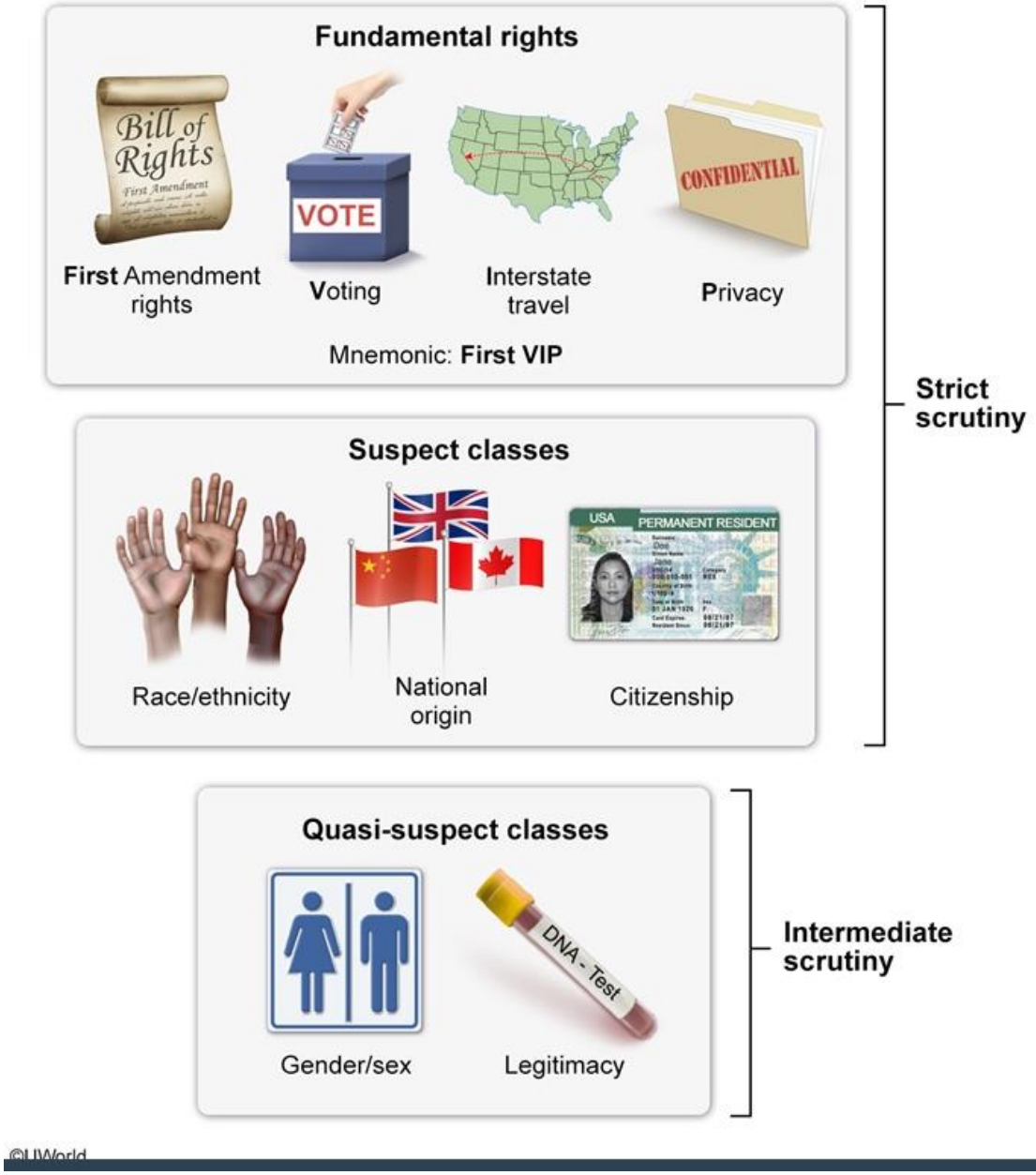
Under the equal protection clause, a discriminatory law that does not substantially impact a fundamental right, suspect class, or quasi-suspect class will be reviewed under the rational basis test—ie, the challenging party must show that the law is not rationally related to any legitimate state interest.

References

- U.S. Const. amend. XIV, § 1 (equal protection clause).
- San Antonio Indep. Sch. Dist. v. Rodriguez, 411 U.S. 1, 28, 37 (1973) (explaining that education is not a fundamental right and wealth is not a quasi-suspect or suspect class).

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Fundamental rights
Bill of Rights
First Amendment
VOTE
CONFIDENTIAL
First Amendment rights
Voting
Interstate travel
Privacy
Mnemonic: First VIP
Strict scrutiny
Suspect classes
USA
PERMANENT RESIDENT
Race/ethnicity
National origin
Citizenship
Quasi-suspect classes
DNA - Test
Gender/sex
Legitimacy
Intermediate scrutiny
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A city zoning ordinance requires that anyone who proposes to operate a group home obtain a special-use permit from the city zoning board. The zoning ordinance defines a group home as a residence in which four or more unrelated adults reside.

An individual applied for a special-use permit to operate a group home for convicted felons during their transition from serving prison sentences to their release on parole. Although the proposed group home met all of the requirements for the special-use permit, the zoning board denied the individual's application because of the nature of the proposed use.

The individual sued the zoning board seeking declaratory and injunctive relief on constitutional grounds.

Which of the following best states the appropriate burden of persuasion in this action?

A. Because housing is a fundamental right, the zoning board must demonstrate that denial of the permit is necessary to serve a compelling government interest.

B. Because the zoning board's action has the effect of discriminating against a quasi-suspect class in regard to a basic subsistence right, the zoning board must demonstrate that the denial of the permit is substantially related to an important government interest.

C. Because the zoning board's action invidiously discriminates against a suspect class, the zoning board must demonstrate that denial of the permit is necessary to serve a compelling government interest.

D. Because the zoning board's action is in the nature of an economic or social welfare regulation, the individual seeking the permit must demonstrate that the denial of the permit is not rationally related to a legitimate government interest.

Explanation:

State and municipal (eg, city) government actions that treat similarly situated persons differently (ie, discriminate) can be challenged under the Fourteenth Amendment **equal protection clause**. To comply with this clause, the challenged action must satisfy the appropriate level of scrutiny:

- **rational basis** scrutiny (default test) – the **challenger** has the burden to prove that the government action is **not rationally related** to a **legitimate government interest**
- **intermediate** scrutiny (quasi-suspect class) – the **government** has the burden to prove that its action is **substantially related** to an **important government interest** *or*
- **strict** scrutiny (fundamental right or suspect class) – the **government** has the burden to prove that its action is **necessary** to serve a **compelling government interest**.

Here, the zoning board denied the individual's application for a permit to operate a group home for convicted felons—even though the proposal met all the permit requirements. The denial was discriminatory because it was based solely on the nature of the individual's proposed use. But housing is not a fundamental right **(Choice A)**, and convicted felons are not a quasi-suspect or suspect class **(Choices B & C)**. As a result, the individual must show that this economic or social welfare regulation does not satisfy rational basis scrutiny.

Educational objective:

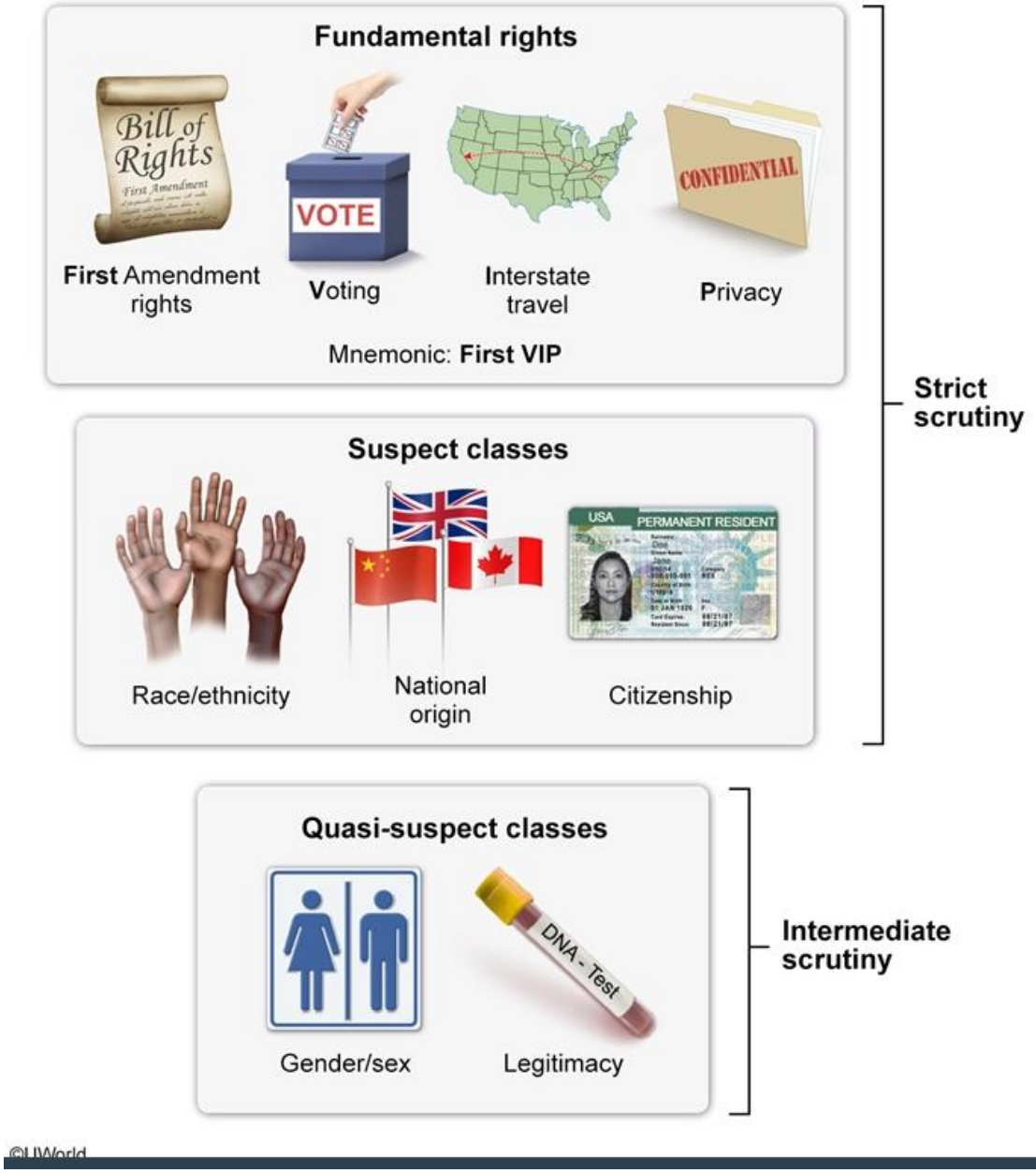
Equal protection challenges that do not involve a fundamental right, quasi-suspect class, or suspect class are reviewed under rational basis scrutiny. This level of scrutiny requires the challenger to show that the government action is not rationally related to a legitimate government interest.

References

- City of Cleburne v. Cleburne Living Ctr., Inc., 473 U.S. 432, 439–41 (1985) (explaining that discriminatory economic and social regulations are analyzed under rational basis scrutiny).

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Fundamental rights
Bill of Rights
First Amendment
VOTE
CONFIDENTIAL
First Amendment rights
Voting
Interstate travel
Privacy
Mnemonic: First VIP
Strict scrutiny
Suspect classes
USA
PERMANENT RESIDENT
Race/ethnicity
National origin
Citizenship
Quasi-suspect classes
DNA - Test
Gender/sex
Legitimacy
Intermediate scrutiny
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A man, who is a resident noncitizen, applied for employment as a state trooper with the state highway patrol. After the man passed a psychological examination and completed the requisite training courses, he was denied employment. The state highway patrol agency explained that the man was ineligible for employment as a state trooper pursuant to a policy that the agency had enacted six months prior. The policy disqualifies all noncitizens from employment with the state highway patrol, restricting employment to U.S. citizens.

The man has filed an action for a declaratory judgment that the agency's policy is unconstitutional as applied to him.

Which of the following best states the burden of persuasion in this action?

A. The agency must demonstrate a rational relationship between the citizenship requirement and a legitimate state interest.

B. The agency must demonstrate that the citizenship requirement is the least restrictive means to achieve a compelling government interest.

C. The man must demonstrate that the citizenship requirement is not narrowly tailored to achieve a compelling state interest.

D. The man must demonstrate that the citizenship requirement is not rationally related to a legitimate state interest.

Explanation:

State laws and policies that discriminate against lawful residents of the United States based on their citizenship can be challenged under the **Fourteenth Amendment equal protection clause**. Since citizenship is a suspect class, such laws and policies are generally subject to strict scrutiny review and struck down.

However, a growing exception exists for state laws that restrict a noncitizen's participation in government functions that would allow (1) direct **formulation**, **execution**, or **review** of **public policy** or (2) exercise of **broad discretion**—eg, serving on a jury, voting, employment as a police officer or public school teacher. Under this **political-function exception**, such laws are subject to **rational basis review** and will be upheld unless the challenger proves that the law is not rationally related to *any* legitimate state interest.

Here, the agency enacted a policy prohibiting noncitizens from employment as state troopers. State troopers are officers of the law that directly participate in the execution of public policy and exercise broad discretion, so the political-function exception applies. This means that the agency's policy is subject to rational basis review, which places the burden on the *man* to demonstrate that the citizenship requirement is not rationally related to a legitimate state interest.

(Choice A) As the challenger, the man—not the agency—bears the burden of proof under rational basis scrutiny.

(Choices B & C) When the political-function exception does not apply, state laws and policies that discriminate on the basis of citizenship are subject to strict scrutiny review. Under strict scrutiny review, the *government* has the difficult burden of demonstrating that the citizenship requirement is necessary (ie, narrowly tailored, the least restrictive means) to achieve a compelling state interest.

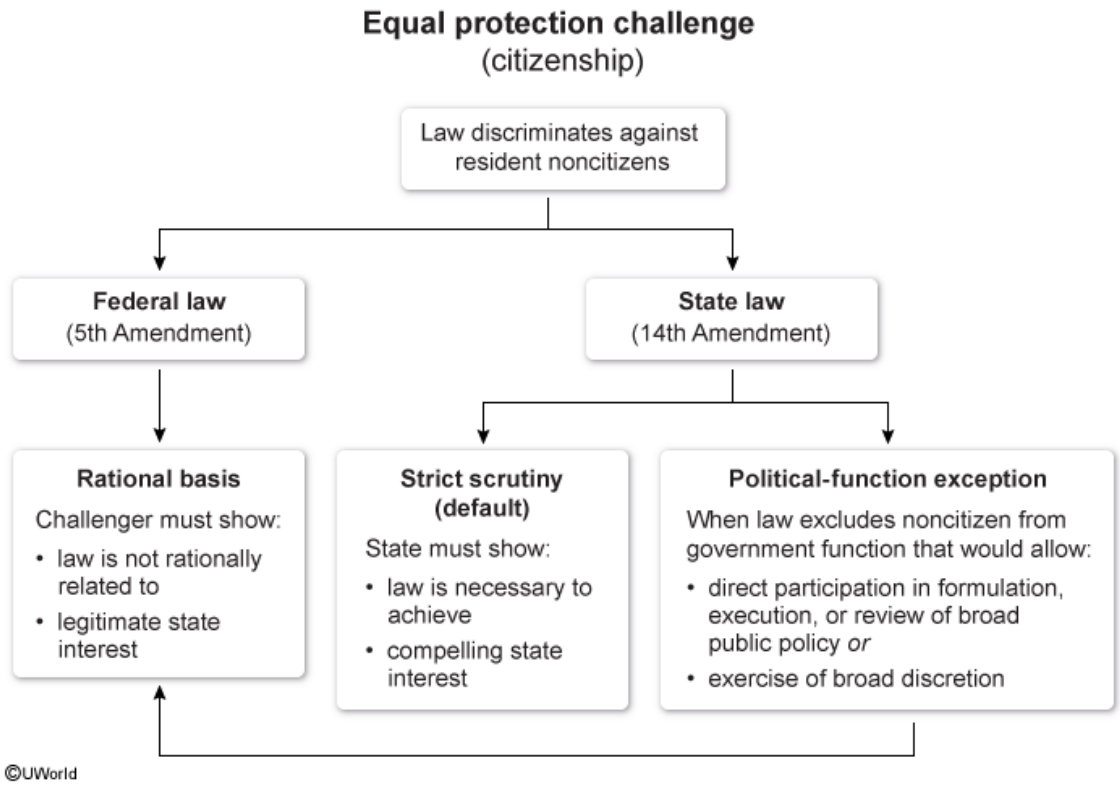
Educational objective:

State laws that discriminate based on citizenship are generally subject to strict scrutiny. But under the political-function exception, rational basis review applies to state laws that restrict a noncitizen's participation in certain government functions—eg, employment as a police officer.

References

- U.S. Const. amend. XIV, § 1 (equal protection clause).
- Foley v. Connelie, 435 U.S. 291, 300 (1978) (holding that the political-function exception is applicable to a state law restricting resident noncitizens from employment as police officers).

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Equal protection challenge
(citizenship)
Law discriminates against resident noncitizens
Federal law
(5th Amendment)
State law
(14th Amendment)
Rational basis
Challenger must show:
• law is not rationally related to
• legitimate state interest
Strict scrutiny (default)
State must show:
• law is necessary to achieve
• compelling state interest
Political-function exception
When law excludes noncitizen from government function that would allow:
• direct participation in formulation, execution, or review of broad public policy or
• exercise of broad discretion
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A Senate investigative committee released a report identifying three U.S. citizens as individuals who were organizing support for terrorist activities. All three were employed by the U.S. government as park rangers.

In response, Congress enacted a statute naming these three individuals and providing that they could not hold any position of employment with the federal government.

Which of the following constitutional provisions provides the best means for challenging the constitutionality of the statute?

A. The bill of attainder clause.

B. The due process clause.

C. The ex post facto clause.

D. The takings clause.

Explanation:

Prohibited legislation

Bill of attainder clauses	Prohibit legislative acts that inflict *civil or criminal* punishment against identified persons (or groups of persons) without a trial
Ex post facto clauses	Prohibit enactment of retroactive *criminal* laws that: • criminalize previously legal conduct • impose greater punishment than previously prescribed • eliminate previously available defenses • decrease prosecution's previous burden of proof

The Article I **bill of attainder** clauses prohibit federal and state **legislative acts** that inflict **civil or criminal punishment** on **named persons**—or easily identifiable groups of persons—**without a judicial trial**. Here, the federal statute bars three *named* park rangers from federal government employment. And since this constitutes a civil punishment that is imposed without a trial, the statute is an unconstitutional bill of attainder.

(Choice B) The Fifth Amendment due process clause requires the government to provide persons with notice and a meaningful opportunity to be heard before depriving them of a life, liberty, or property interest. Public employment is a property interest when the employee (1) has an ongoing employment contract, (2) can only be fired for cause, or (3) receives assurances of continued employment—none of which apply here.

(Choice C) The ex post facto clauses bar legislative acts that impose retroactive *criminal* punishments—ie, punish conduct that occurred before the law was enacted. Although the rangers' alleged support of terrorism occurred before the statute was enacted, their exclusion from government employment is a *civil* punishment.

(Choice D) The Fifth Amendment takings clause prohibits the government from taking private property for public use without just compensation. But this clause applies to real or personal property—not interests in public employment.

Educational objective:

The bill of attainder clauses prohibit legislative acts that inflict civil or criminal punishment on named individuals—or easily identifiable groups of individuals—without a trial. Exclusion from a profession or vocation is a type of civil punishment.

References

- U.S. Const. art. I, § 9 (prohibits the federal government from enacting bills of attainder).

- United States v. Lovett, 328 U.S. 303, 315–16 (1946) (holding that a congressional act that excludes a specific person from a profession or vocation without a trial is an unconstitutional bill of attainder).

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A large privately owned and operated shopping mall is open to the public and includes small shops, major department stores, and restaurants that are located around a pedestrian area. It also has several movie theaters, an ice-skating rink, a small amusement park, and a branch of the local public library. The mall is advertised as "a small town with a big-town feel."

During shopping hours, a group of 10 protesters gathered in the pedestrian area near the entrance to a department store to denounce the sale of animal-fur products in that store. The protesters were peaceful and did not interfere with traffic into or out of the store, but they carried signs and vocally communicated their message to people walking in the area. Mall management quickly broke up the protest and required the protesters to leave the mall. The protesters have sued the mall, claiming that their right to freedom of speech guaranteed by the First and Fourteenth Amendments was violated.

Should the protesters prevail?

A. No, because the mall is private property, and there was no state action to which the freedom of speech guarantees of the First and Fourteenth Amendments apply.

B. No, because the prohibition of protests adjacent to the entrance of a department store during shopping hours is a constitutionally proper limitation on the time, place, and manner of speech.

C. Yes, because the mall is functionally equivalent to a town and, therefore, its actions are subject to the Constitution's guarantees of freedom of speech and assembly.

D. Yes, because the mall's restriction on the protesters' speech was broader than necessary to ensure proper access to the department store.

Explanation:

State-action doctrine

Traditional government function	• Private actor performs traditional & exclusive government function (eg, running elections)
Significant government involvement	• Government & private actor have *mutually beneficial* relationship (eg, joint activity or venture) • Government creates *nexus* by affirmatively facilitating or authorizing private action (eg, police officer acting under color of law) • Government is *pervasively intertwined* in private entity's management or control

First Amendment free speech protections—applicable to the states through the Fourteenth Amendment due process clause—are triggered by government (not private) action. But under the **state-action doctrine**, **private action** is **treated as government action** when either:

- the private actor performs a traditional and exclusive **government function** *or*
- the government is **significantly involved** in the private actor's activities.

Here, the protesters can only sue the *privately* owned shopping mall for violating their freedom of speech if the state-action doctrine applies. But operating a shopping mall is not a traditional and exclusive government function. And though the mall houses a branch of the local public library, this does not amount to *significant* government involvement. Therefore, the mall cannot be treated as a government actor and the protesters' constitutional claim should fail.

(Choices B & D) The *government* can only limit the time, place, and manner of speech if it passes intermediate scrutiny—ie, the limitation (1) is narrowly tailored (ie, no greater than necessary) to achieve a substantial government interest and (2) leaves open ample alternative avenues of communication. But the *private* shopping mall need not comply with constitutional requirements when limiting access to its stores.

(Choice C) Although the mall is advertised as "a small town with a big-town feel," the Supreme Court held in *Hudgens v. NLRB* that a shopping mall is not functionally equivalent to a town.

Educational objective:

Free speech protections are triggered by government—not private—action. But under the state-action doctrine, private action is treated as government action when (1) the private actor performs a traditional and exclusive government function or (2) the government is significantly involved in the private actor's activities.

References

- Hudgens v. NLRB, 424 U.S. 507, 520–21 (1976) (holding that the First and Fourteenth Amendments do not apply to a shopping center since it is not functionally equivalent to a municipality).

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A state law imposed substantial regulations on insurance companies operating within the state with respect to their rates, cash reserves, and financial practices.

A privately owned insurance company operating within the state advertised that it wanted to hire a new data processor. After reviewing applications for that position, the company hired a woman who appeared to be well qualified. The company refused to consider the application of a man who was better qualified than the woman, because he was known to have radical political views.

The man sued the company, alleging only a violation of his federal constitutional right to freedom of expression.

Is the man likely to prevail?

A. No, because hiring decisions are wholly discretionary and thus are not governed by the First Amendment.

B. No, because the company is not subject to the provisions of the First and Fourteenth Amendments.

C. Yes, because the company is affected with a public interest.

D. Yes, because the company is substantially regulated by the state, and thus its employment decisions may fairly be attributed to the state.

Explanation:

Constitutional amendments (excluding the Thirteenth Amendment) only apply to government actors. But a **private actor** can be **treated as a government actor** and be subject to the Constitution under the **state-action doctrine**. This doctrine applies when (1) a private actor performs a **traditional and exclusive government function** *or* (2) the **government is significantly involved** in the private actor's activities. The private actor can then be sued for violating the Constitution—including the First and Fourteenth Amendment guarantee of freedom of expression.

Here, the private insurance company does not perform a traditional and exclusive government function since insurance has historically been provided by private companies. And state regulation of the company's *financial* practices does not involve the state in the company's *hiring* practices. Even if it did, government regulation and funding (however substantial) do not make private action attributable to the state **(Choice D)**. As a result, the man's suit will likely fail because the company is not a state actor subject to the First and Fourteenth Amendments.

(Choice A) Discretionary government decisions (including hiring decisions) *are* governed by the First Amendment. But since the private insurance company's hiring practices are not attributable to the state, the man will not prevail.

(Choice C) Private companies or industries affected with a public interest (eg, insurance companies) are subject to government regulations for the public good. But such regulations do not amount to significant government involvement that will trigger the state-action doctrine.

Educational objective:

Under the state-action doctrine, a private actor is treated as a government actor and bound by the Constitution when the government is significantly involved in the private actor's activities. But mere government regulation or funding (no matter how substantial) does not make a private party's actions attributable to the state.

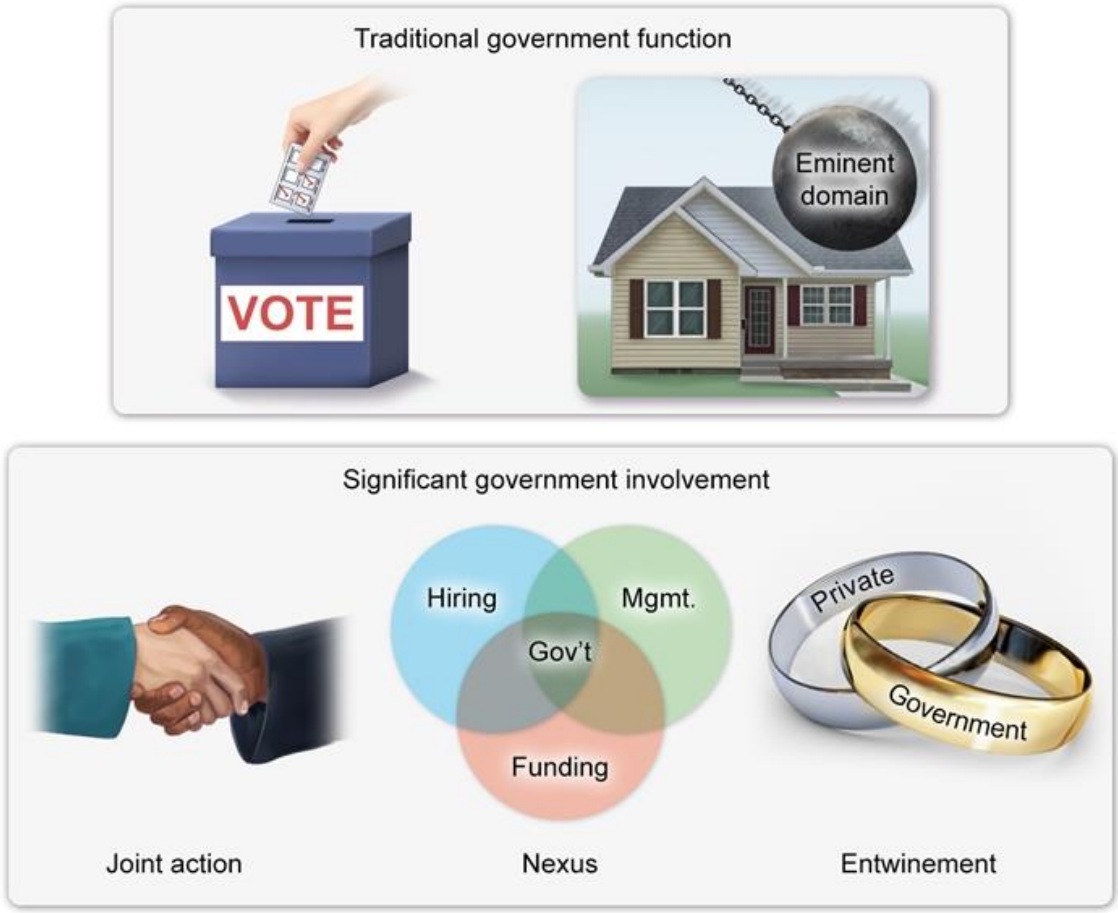
References

- Am. Mfrs. Mut. Ins. Co. v. Sullivan, 526 U.S. 40, 52 (1999) (holding that private insurance companies are not government actors unless the government is significantly involved in their activities).

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State-action doctrine



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A state law makes it a criminal offense for any state employee to "knowingly provide educational services or extend welfare benefits" to a foreign national who was in the United States in violation of U.S. immigration laws. The principal of a public elementary school is prosecuted under the law for enrolling and providing education to several foreign nationals he knew to be in the country illegally. All of these actions took place before the law was adopted. No federal statute applied to the principal's actions.

What constitutional provision would be most helpful to the principal's defense?

A. The due process clause of the Fourteenth Amendment.

B. The equal protection clause of the Fourteenth Amendment.

C. The ex post facto clause of Article I, Section 10.

D. The privileges or immunities clause of the Fourteenth Amendment.

Explanation:

Ex post facto clauses

(applies to federal (art. 1, § 9) & state (art. 1, § 10) governments)

Prohibit enactment of retroactive criminal laws that:

- criminalize previously legal conduct
- impose greater punishment than previously prescribed
- eliminate previously available defenses
- decrease prosecution's previous burden of proof

The **Article I, § 10 ex post facto** clause **prohibits state governments** from enacting ***retroactive*criminal laws**—eg, laws that **punish conduct** that occurred ***before*the law became effective** (thereby criminalizing previously legal conduct). And because the principal enrolled foreign nationals before the law under which he is being prosecuted was adopted, the ex post facto clause would be most helpful to his defense.

(Choice A) The Fourteenth Amendment due process clause requires that states enact reasonable laws. Laws that substantially burden a fundamental right are only reasonable if they pass strict scrutiny—which rarely occurs. But since the principal has no fundamental right to enroll foreign nationals in his school, this law need only pass rational basis scrutiny—which is easily done. Therefore, due process would not be helpful to his defense.

(Choice B) The equal protection clause prohibits states from enacting laws that treat similarly situated people differently (as seen here). But since this state law does not substantially impact a fundamental right or protected class, the law need only pass rational basis scrutiny—ie, be rationally related to any legitimate government interest. Therefore, an equal protection challenge would likely fail.

(Choice D) The Fourteenth Amendment privileges or immunities clause prohibits states from infringing on the very limited rights of national citizenship—none of which are at issue here.

Educational objective:

The ex post facto clauses prohibit federal and state governments from enacting retroactive criminal laws—eg, laws that punish conduct that occurred *before* the law became effective.

References

- Lindsey v. Washington, 301 U.S. 397, 401 (1937) (explaining that the ex post facto clause "forbids the application of any new punitive measure to a crime already consummated").

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A doctor is a resident of state A and is licensed to practice medicine in State A as well as neighboring State B. The doctor finds that the most convenient place to treat her patients who need hospital care is in a publicly owned and operated hospital located in State B. For many years, the doctor had successfully treated her patients in that hospital.

Early this year, the hospital adopted a new rule in conformance with all required procedures. The new rule stated that every doctor who practices in that hospital must be a resident of State B. The doctor was then notified that she could no longer treat patients in that hospital because she was not a resident of State B.

Which of the following constitutional provisions would be most helpful to the doctor in an action to challenge her exclusion from the State B hospital solely on the basis of this hospital rule?

A. The bill of attainder clause.

B. The due process clause of the Fourteenth Amendment.

C. The ex post facto clause.

D. The privileges and immunities clause of Article IV.

Explanation:

Rights of state citizenship

(Article IV privileges & immunities clause)

- Travel/reside in state
- Pursue employment
- Practice commercial trade/business
- Own/transfer property
- Seek medical services
- Access state courts
- Civil liberties
- Creditor's rights
- Tax exemptions

The **Article IV privileges and immunities clause** generally **prohibits states** from **discriminating against citizens of other states** by denying them a **right of state citizenship**. But such discrimination is **valid if** the state can show:

- a substantial reason for the difference in treatment—ie, **nonresidents cause or contribute to the problem** that the state is attempting to solve *and*
- the **discrimination** against nonresidents **bears** a **substantial relationship** to the **state's objective**.

Here, the State B hospital rule discriminates against out-of-state doctors by excluding them from practicing in that hospital. This denies out-of-state doctors a right of state citizenship—to practice their profession in State B. And since there is no evidence that out-of-state doctors contribute to *any* problem the state is trying to solve, the hospital rule likely violates the Article IV privileges and immunities clause. Therefore, this clause would be *most* helpful to the State A doctor in challenging her exclusion.

(Choice A) The hospital rule is *not* a prohibited bill of attainder—ie, a legislative act that punishes a specified person or group without a judicial trial—since it is a legislative act and does not seek to punish the doctor.

(Choice B) The Fourteenth Amendment due process clause prohibits states from depriving persons of life, liberty, or property without adequate justification. When no fundamental right is involved (as seen here), the state action need only be rationally related to a legitimate state interest. And since state action is almost always upheld under this rational basis test, the hospital rule likely complies with due process.

(Choice C) The Article I ex post facto clauses bar state and federal governments from enacting *criminal* statutes that punish actions retroactively. But the hospital rule is not an ex post facto law since it is *civil* in nature.

Educational objective:

The Article IV privileges and immunities clause prohibits states from discriminating against out-of-state citizens by denying them a right of state citizenship unless (1) nonresidents cause or contribute to the problem that the state is attempting to solve and (2) the discrimination bears a substantial relationship to the state's objective.

References

- Ward v. Maryland, 79 U.S. 418, 430 (1870) (holding that the Article IV privileges and immunities clause protects the right of non-state citizens to enter another state to conduct business or practice a trade).
- 16B Am. Jur. 2d Constitutional Law § 800 (listing examples of privileges and immunities of state citizenship).

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A state generally provides funding for the medical care of its residents who cannot afford such care. State law, however, prohibits use of this state funding for surgery for any person who has resided in the state for less than one year, except in emergency situations.

A woman moved to the state two months ago seeking permanent employment. Her physician recommends non-emergency surgery to treat a medical condition. The surgery would qualify for state funding if the woman had resided in the state for a year. The woman has sued to invalidate the state law that prohibits state funding of her surgery.

Should the woman prevail in her action?

A. No, because the law reasonably conserves the state's limited resources.

B. No, because the law reasonably prevents the expenditure of state funds on transient nonresidents.

C. Yes, because the law burdens the woman's fundamental right to health care.

D. Yes, because the law burdens the woman's fundamental right to travel.

Explanation:

A woman who recently moved to the state was denied access to state funding for a surgery due to a **durational residency requirement**. Laws with this requirement are generally reviewed under the **equal protection** clause since they treat two classes of persons differently—those who have resided in the state for a designated period and those who have not. And since these laws substantially burden the **fundamental right to travel** by discouraging persons from moving into the state, they are subject to **strict scrutiny** and **almost always held unconstitutional**. Therefore, the woman should prevail in her action to invalidate the law.

(Choices A & B) A law's ability to reasonably achieve a legitimate state interest (eg, conservation of state resources or funds) would validate the law under the *rational basis test*. But this test only applies when a law does *not* substantially impact a fundamental right or suspect class (which triggers strict scrutiny) or a quasi-suspect class (which triggers intermediate scrutiny).

(Choice C) There is no fundamental right to health care, so the law will not be invalidated on this basis.

Educational objective:

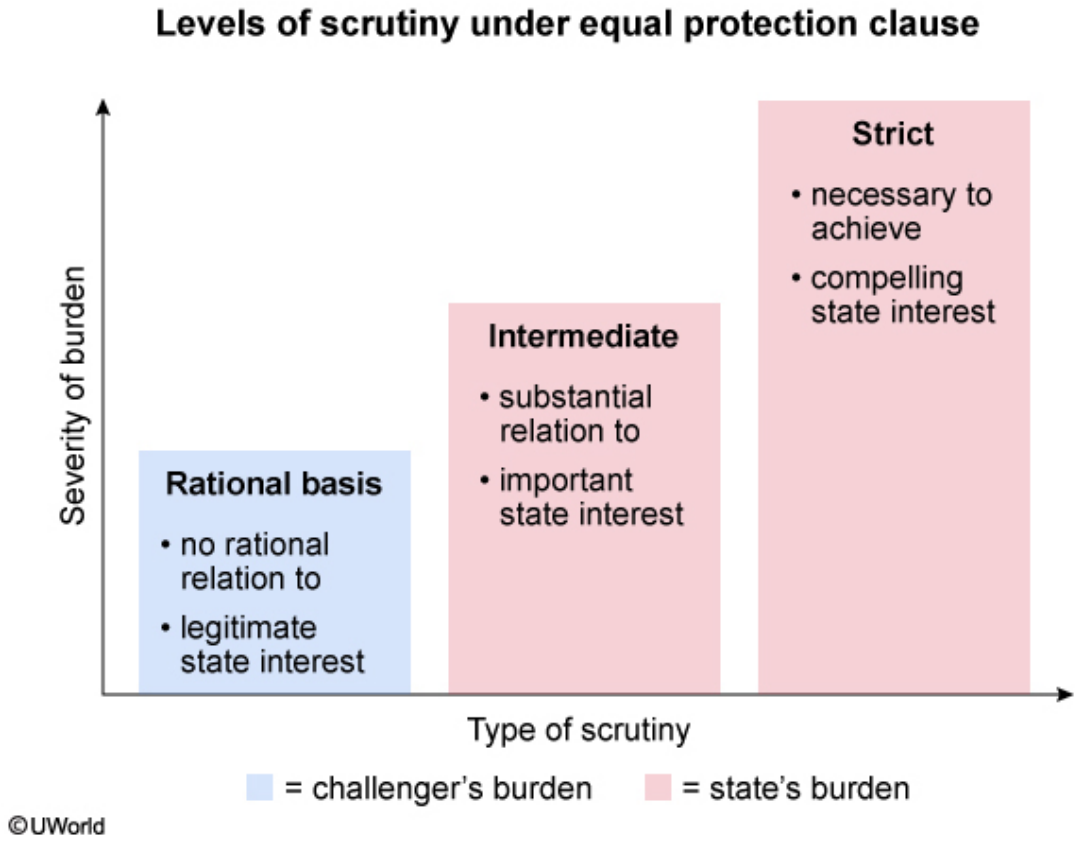
Since durational residency requirements burden the fundamental right to travel, they are strictly scrutinized and almost always held unconstitutional under the equal protection clause.

References

- Shapiro v. Thompson, 394 U.S. 618, 627 (1969) (invalidating durational residency requirement under strict scrutiny equal protection analysis).

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Levels of scrutiny under equal protection clause
Severity of burden
Rational basis
• no rational relation to
• legitimate state interest
Intermediate
• substantial relation to
• important state interest
Strict
• necessary to achieve
• compelling state interest
Type of scrutiny
= challenger's burden
= state's burden
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A police officer was employed on a city's police force for 10 years. When the officer accepted the job, the city's employee benefit plan provided a death benefit to the spouse of any employee who died as a result of any job-related injury. Last year, the city amended its employee benefit plan to deny its death benefit in cases where the death "was caused by the employee's refusal to accept, for any reason, reasonably available medical care prescribed by a physician."

After this amendment took effect, the officer was shot while on duty. Because of a sincerely held religious belief, the officer refused to allow a prescribed blood transfusion and, as a result, died from loss of blood. When the officer's spouse applied for the death benefit, the city denied the application on the basis of the amendment to the employee benefit plan.

The officer's spouse has challenged the amendment, claiming that, as applied to the officer, it violated the officer's constitutional right to the free exercise of religion.

Is the court likely to find the amendment to the employee benefit plan constitutional as applied to the officer?

A. No, because it effectively discriminates against a religious practice.

B. No, because it violates the vested contractual rights of city employees who were hired before the amendment took effect.

C. Yes, because it is generally applicable and religiously neutral, as well as a reasonable limitation on the award of such benefits.

D. Yes, because it imposes a condition only on the award of a government benefit and does not impose a penalty on an individual's conduct.

Explanation:

The First Amendment **free exercise clause** prohibits governments from denying benefits (or imposing burdens) based on an individual's religious belief or conduct **(Choice D)**. The level of scrutiny applied to laws or policies that **burden religion** depends on whether that burden was:

- **direct** (intentional) – triggering **strict scrutiny**, which invalidates a law unless the government proves that it is necessary to achieve a compelling government interest *or*
- **incidental** (generally applicable and religiously neutral) – triggering **rational basis scrutiny**, which upholds a law unless the challenger proves that the law has no rational relation to any legitimate government interest.

But even an incidental burden will trigger strict scrutiny when the law requires an **individualized assessment** of a person's actions.

Here, the employee benefit plan only imposes an incidental burden since the plan is generally applicable to all employees and does not intentionally target religion (ie, is religiously neutral). That is because the plan denies benefits when the refusal to accept medical care was for *any* reason—it does not single out religious reasons (ie, no individualized assessment). And since the plan is reasonably related to the city's legitimate interest in limiting the award of benefits to job-related deaths, it is likely constitutional.

(Choice A) Although the benefit plan effectively discriminates against the officer's religious practice, the plan will likely be upheld since it is generally applicable and there is no evidence that it intentionally interfered with his religion.

(Choice B) The contracts clause prohibits state and municipal legislatures from enacting *laws* that substantially impair vested contract rights. But it does not apply to amendments to employee benefit plans since they are unrelated to lawmaking or rulemaking.

Educational objective:

Direct burdens on religion are strictly scrutinized and struck down unless the government proves that the law is necessary to achieve a compelling government interest. In contrast, *incidental* burdens are upheld unless the challenger proves that the law has no rational relation to any legitimate government interest.

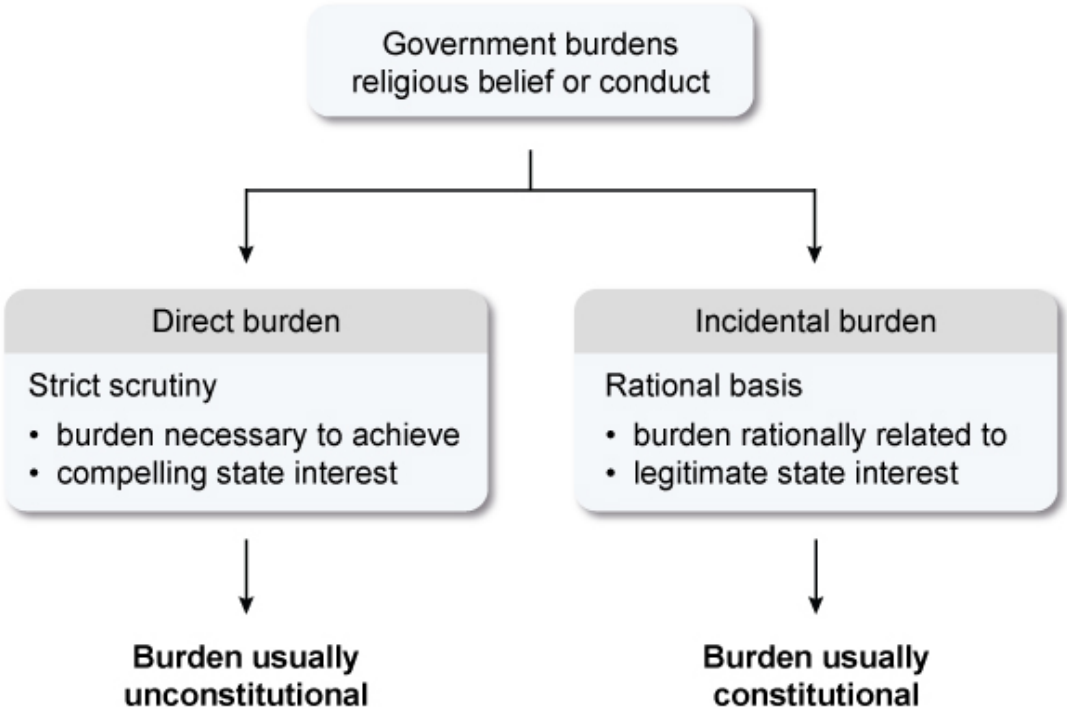
References

- Emp't Div. v. Smith, 494 U.S. 872, 884–85 (1990) (affirming the government's ability to enforce a generally applicable law that incidentally burdens religion).

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Free exercise analysis



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A high priest belonged to a small religious cult whose sincere beliefs required an annual animal sacrifice. The sacrifice required the priest to dissect the animal while it was still alive, which caused the animal excruciating pain and suffering. During one such sacrifice, the priest was arrested. He was charged and convicted under a state statute prohibiting animal cruelty. The priest appealed his conviction.

Will the appellate court likely overturn the priest's conviction?

A. No, because the First Amendment does not protect animal sacrifices.

B. No, because the state statute is rationally related to the state's legitimate interest in protecting animals.

C. Yes, because the state statute directly burdened the priest's sincerely held religious belief in animal sacrifice.

D. Yes, because the state statute is not necessary to achieve the state's compelling interest in protecting animals.

Explanation:

First Amendment free exercise of religion

Burden	Applicability	Level of scrutiny
Incidental	Generally applicable to all persons	Rational basis scrutiny: • burden rationally related to • legitimate government interest
Direct	Intentionally targets religious belief/practice	Strict scrutiny: • burden necessary to achieve • compelling government interest

The First Amendment **free exercise clause**, applicable to the states through the Fourteenth Amendment, **prohibits government interference** with or discrimination against **sincere religious beliefs** or conduct. As a result, criminal prosecution under a statute that burdens a defendant's religion can be challenged on these constitutional grounds. However, the defendant's likelihood of success depends on whether that burden is:

- **direct** – the law **intentionally targets religion** and is usually **unconstitutional** under **strict scrutiny** *or*
- **incidental** – the law **generally applies** to all and is usually **constitutional** under **rational basis scrutiny**.

Here, the priest's sincere religious practice of animal sacrifice was burdened when he was convicted under the state's animal-cruelty statute. Since this statute applies equally to all—regardless of their religion—that burden is merely *incidental* **(Choice C)**. And that burden is constitutional since the statute is rationally related to a legitimate state interest in protecting animals **(Choice D)**. As a result, the priest's sincere religious belief does not excuse him from prosecution under this valid statute, and his conviction will likely be sustained by the appellate court.

(Choice A) The free exercise clause applies to all religious practices—even those that are nontraditional or unpopular (eg, animal sacrifices). So had the state statute directly burdened the priest's religious beliefs and/or practices, it likely would be unconstitutional under strict scrutiny. But since it only incidentally burdens this practice, it is likely constitutional under rational basis scrutiny.

Educational objective:

The First Amendment protects the right to freely exercise a sincerely held religious belief, but it does not excuse persons from complying with an otherwise valid law. As a result, persons can be convicted of violating a law that *incidentally* burdens religion so long as the law is rationally related to a legitimate government interest.

References

- Emp't Div. v. Smith, 494 U.S. 872, 878–80 (1990) (upholding a generally applicable law that prohibits the use of peyote even though that law incidentally burdens Native American religious ceremonies).

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A state has a state employee grievance system that requires any state employee who wishes to file a grievance against the state to submit that grievance for final resolution to a panel of three arbitrators chosen by the parties from a statewide board of 13 arbitrators. In any given case, the grievant and the state alternate in exercising the right of each party to eliminate five members of the board, leaving a panel of three members to decide their case. At the present time, the full board is composed of seven male arbitrators and six female arbitrators.

A female state employee filed a sexual harassment grievance against her male supervisor and the state. The state's attorney exercised all of her five strikes to eliminate five of the female arbitrators. At the time she did so, the state's attorney stated that she struck the five female arbitrators solely because she believed women, as a group, would necessarily be biased in favor of another woman who was claiming sexual harassment. Counsel for the state employee eliminated four males and one female arbitrator, all solely on grounds of specific bias or conflicts of interest. As a result, the panel was all male.

When the panel ruled against the state employee on the merits of her case, she filed an action in an appropriate state court, challenging the panel-selection process as a gender-based denial of equal protection of the laws.

In this case, how should the court rule as to the constitutionality of the panel-selection process?

A. Constitutional, because the gender classification used by the state's attorney in this case satisfies the requirements of the rational basis test.

B. Constitutional, because the gender classification used by the state's attorney in this case satisfies the requirements of the strict scrutiny test.

C. Unconstitutional, because the gender classification used by the state's attorney in this case denies the grievant the right to a jury made up of her peers.

D. Unconstitutional, because the gender classification used by the state's attorney in this case does not satisfy the requirements of intermediate scrutiny.

Explanation:

Equal protection

(standards of review)

Standard	Applicability	Test
Rational basis	Default test	*Challenger* must show • action is not rationally related • to legitimate government interest
Intermediate scrutiny	Discriminates against quasi-suspect class: • Sex/gender • Legitimacy	*Government* must show • action is substantially related • to important government interest
Strict scrutiny	Discriminates against suspect class: • Ethnicity • Citizenship (state law only) • Race • Nationality Impacts fundamental right (**First VIP**): • **First** Amendment rights • **V**oting • **I**nterstate travel • **P**rivacy: family, marriage, parental rights, sexual acts, contraceptives	*Government* must show • action is necessary (ie, least restrictive means) • to achieve compelling government interest

When a government action is challenged under the **equal protection clause**, it must survive **intermediate scrutiny** if it discriminates against a **quasi-suspect class**—ie, **gender/sex**, nonmarital birth. Intermediate scrutiny requires the state to prove that its action was **substantially related** to an **important government interest**.

Here, the state's attorney removed female arbitrators from the panel (government action) because she believed that women would be biased in favor of another woman claiming sexual harassment (gender discrimination). But as the Supreme Court reasoned in *J.E.B. v.*

Alabama ex rel. T.B., a juror's or arbitrator's competence and impartiality (important government interest) cannot be evaluated based on gender (no substantial relationship). Therefore, the attorney's actions cannot survive intermediate scrutiny and should be ruled unconstitutional.

(Choice A) The rational basis test requires the challenger to prove that the government action has no rational relationship to a legitimate government interest. But since this test only applies when the government action does *not* affect a fundamental right, suspect class, or quasi-suspect class, it does not apply here.

(Choice B) Strict scrutiny requires the state to prove that its action is necessary to achieve a compelling government interest when it substantially impacts a fundamental right or suspect class—not a quasi-suspect class (as seen here).

(Choice C) Most criminal and civil litigants have the right to a jury made up of their peers—ie, an impartial group of citizens selected from a fair cross-section of the community. But this right does not apply to non-judicial proceedings like arbitration (as seen here).

Educational objective:

Gender discrimination in the jury (or arbitrator) selection process cannot survive intermediate scrutiny since it is not substantially related to the government's important interest in having grievances decided by competent and impartial individuals. Therefore, such discrimination violates the equal protection clause.

References

- U.S. Const. amend. XIV (equal protection clause).
- J.E.B. v. Alabama ex rel. T.B., 511 U.S. 127, 136 (1994) (explaining that the government cannot rely on gender stereotypes to justify gender-based discrimination).

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A state university adopted a new regulation prohibiting certain kinds of speech on campus. Students, staff, and faculty convicted by campus tribunals of violating the regulation were subject to penalties that included fines, suspensions, expulsions, and termination of employment. The regulation was widely unpopular, and there was a great deal of public anger directed toward the two tenured professors who had drafted and promoted it.

The following year, the state legislature approved a severable provision in the appropriations bill for the university declaring that none of the university's funding could be used to pay the two professors, who were specifically named in the provision. In the past, the professors' salaries had always been paid from funds appropriated to the university by the legislature, and the university had no other funds that could be used to pay them.

If the professors challenge the constitutionality of the appropriations provision, is the court likely to uphold the provision?

A. No, because it amounts to the imposition by the legislature of a punishment without trial.

B. No, because it is based on conduct the professors engaged in before it was enacted.

C. Yes, because the Eleventh Amendment gives the state legislature plenary power to appropriate state funds in the manner that it deems most conducive to the welfare of its people.

D. Yes, because the full faith and credit clause requires the court to enforce the provision strictly according to its terms.

Explanation:

Prohibited legislation

Bill of attainder clauses	Prohibit legislative acts that inflict *civil or criminal* punishment against identified persons (or groups of persons) without a trial
Ex post facto clauses	Prohibit enactment of retroactive *criminal* laws that: • criminalize previously legal conduct • impose greater punishment than previously prescribed • eliminate previously available defenses • decrease prosecution's previous burden of proof

Article I of the Constitution **prohibits bills of attainder**—ie, **legislative acts** that inflict **punishment** (criminal or civil) on **specified individuals** or groups of individuals **without a judicial trial**. Here, the appropriations provision forbids the state university from paying two *named* professors. And since withholding the specified professors' salaries constitutes a civil punishment and no trial is afforded, the provision is an unconstitutional bill of attainder that the court will likely invalidate.

(Choice B) The Article I ex post facto clauses prohibit laws that impose retroactive *criminal* punishments. Here, the state provision punishes the professors for conduct that occurred before the provision was adopted. But since withholding the professors' pay constitutes a *civil* punishment, the provision will not be struck down on this basis.

(Choice C) The Eleventh Amendment bars private parties (and foreign governments) from suing a state in federal court without the state's express consent. And though the Tenth Amendment gives states the power to establish laws for the welfare, health, and safety of their people, that power is not plenary (ie, absolute).

(Choice D) The Article IV full faith and credit clause requires courts to recognize the valid judgments, legislative acts, and records of *other* states. But since the court is considering its *own* state law, this clause does not apply. Even if it did, a court is never required to enforce an unconstitutional law.

Educational objective:

Article I of the Constitution prohibits bills of attainder—ie, legislative acts that inflict punishment (civil or criminal) on specified individuals without a trial.

References

- United States v. Lovett, 328 U.S. 303, 315–16 (1946) (holding that a legislative act that withheld the salaries of named government employees without a trial constituted a prohibited bill of attainder).

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A state enacted a statute providing for the closure of the official state records of arrest and prosecution of all persons acquitted of a crime by a court or against whom criminal charges were filed and subsequently dropped or dismissed. The purpose of this statute is to protect these persons from further publicity or embarrassment relating to those state proceedings. However, this statute does not prohibit the publication of such information that is in the possession of private persons.

A prominent businessman in the state was arrested and charged with rape. Prior to trial, the prosecutor announced that new information indicated that the charges should be dropped. He then dropped the charges without further explanation, and the records relating thereto were closed to the public pursuant to the state statute. A newspaper in the state conducted an investigation to determine why the businessman was not prosecuted but was refused access to the closed official state records.

In an effort to determine whether the law enforcement agencies involved were properly doing their duty, the newspaper filed suit against appropriate state officials to force opening of the records and to invalidate the statute on constitutional grounds.

Which of the following would be most helpful to the state in defending the constitutionality of this statute?

A. The argument that the rights of the press are no greater than those of citizens generally.
B. The argument that the state may seal official records owned by the state on any basis its legislature chooses.
C. The fact that the statute only prohibits public access to these official state records and does not prohibit the publication of information they contain that is in the possession of private persons.
D. The fact that the statute treats in an identical manner the arrest and prosecution records of all persons who have been acquitted of a crime by a court or against whom criminal charges were filed and subsequently dropped or dismissed.

Explanation:

There is **no constitutional right to *access* government information**. Therefore, the government can deny the public (and media) access to official state records. But since there is a **First Amendment right to *publish* truthful information**, any **government restriction** on this right is **unconstitutional** unless it survives strict scrutiny—ie, the government proves that the restriction is necessary to achieve a compelling government interest. Therefore, the fact that the statute only prohibits public *access* to state records and does not prohibit the *publication* of information they contain would help the state defend the statute's constitutionality.

(Choice A) The argument that the press has no greater rights than citizens generally, while true, merely shows that the same standard applies to claims by the press and ordinary citizens. But it does not explain why the newspaper's claim will fail.

(Choice B) A state may seal its official records on any legal or constitutional basis—not any basis that its legislature chooses.

(Choice D) The fact that the statute treats the records of all persons charged with, but not convicted of, a crime identically shows that the statute complies with the Fourteenth Amendment equal protection clause. But this fact will not help the state because it does not address the First Amendment issue—accessing and publishing those records.

Educational objective:

Although there is no right to *access* government information, there is a First Amendment right to *publish* truthful information. As a result, any government restriction on this right is unconstitutional unless it survives strict scrutiny.

References

- U.S. Const. amend. I (free press).
- Houchins v. KQED, Inc., 438 U.S. 1, 14–15 (1978) (holding that there is no constitutional right to access government information).

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First Amendment protections

Access to government records ≠ protected

Publication of government records = protected



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Under a state law, a drug company that makes a false factual claim about a prescription drug is strictly liable in tort to any user of the drug.

In an advertisement promoting sales of a particular drug, a drug company claimed that the drug was safe for children. Suit was filed against the company on behalf of a child who allegedly was harmed as a result of taking the drug. At the time the child took the drug, the available medical studies supported the company's claim that the drug was safe for children, but later research proved that the drug actually was harmful to children. The company has moved to dismiss the suit on First Amendment grounds.

Should the court grant the motion?

A. No, because false or misleading commercial speech is not constitutionally protected.

B. No, because the drug business is subject to extensive health and safety regulation.

C. Yes, because liability cannot be imposed for false statements without a showing of actual malice.

D. Yes, because the company's claims about the drug were a matter of public concern.

Explanation:

Commercial speech is speech that does no more than propose a commercial transaction (eg, advertisements). Although this type of speech is afforded some **First Amendment protections**, these protections **do *not* extend to commercial speech** that (1) is **false or misleading** or (2) concerns **unlawful activity**—even if these statements are made without knowledge or reckless disregard of their falsity or illegality (ie, without actual malice) **(Choice C)**.

Here, the company's advertisement innocently claimed that its drug was safe for children. But this advertisement lost any First Amendment protections when later research proved that the company's drug safety claim was false. Therefore, the company's motion to dismiss the false advertisement suit on First Amendment grounds should be denied.

(Choice B) The fact that the drug business is subject to extensive health and safety regulation does not exclude its speech from First Amendment protections.

(Choice D) Commercial speech that is false or misleading (as seen here) *or* concerns unlawful activity never receives First Amendment protection, regardless of whether that speech pertains to a matter of public concern.

Educational objective:

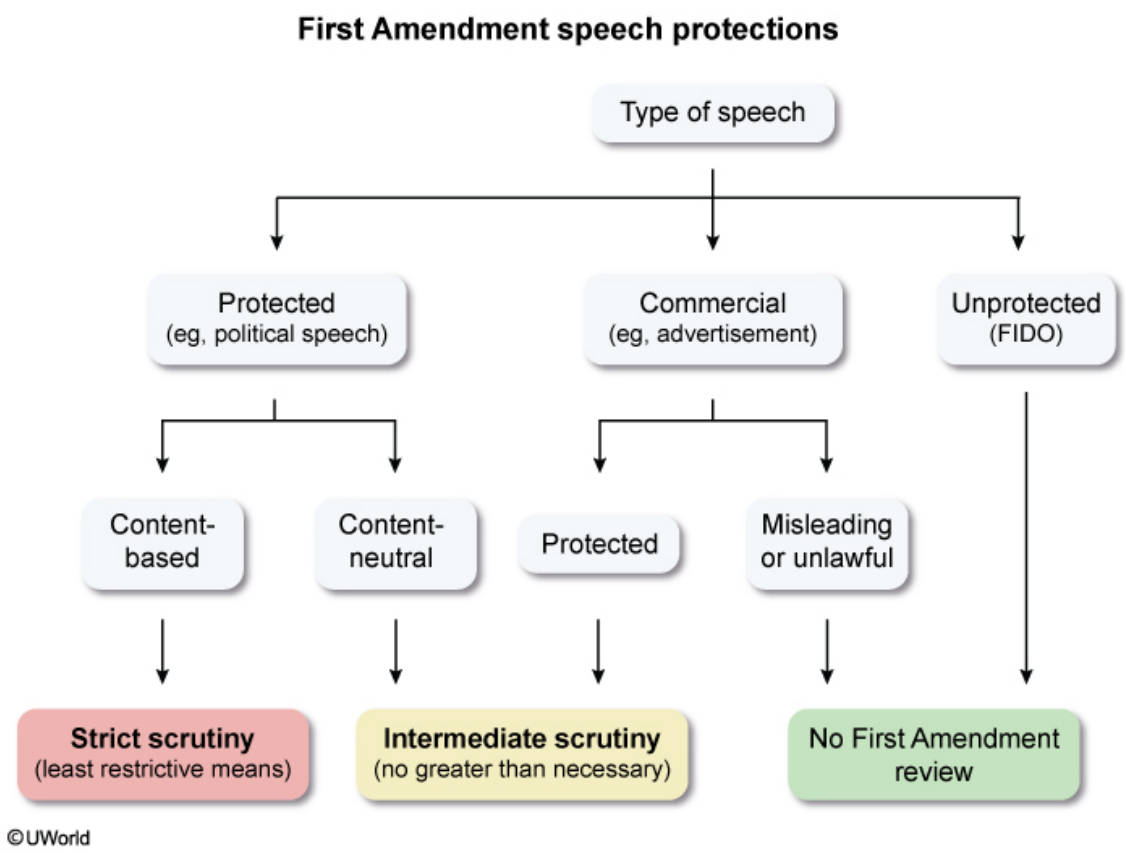
The First Amendment does not protect commercial speech that (1) is false or misleading or (2) concerns unlawful activity—regardless of whether the speaker knew (or recklessly disregarded) that the speech was false, misleading, or unlawful.

References

- Cent. Hudson Gas & Elec. Corp. v. Pub. Serv. Comm'n, 447 U.S. 557, 566 (1980) (explaining that false and misleading commercial speech is not protected by the First Amendment).

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First Amendment speech protections
Type of speech
Protected
(eg, political speech)
Commercial
(eg, advertisement)
Unprotected
(FIDO)
Content-based
Content-neutral
Protected
Misleading or unlawful
Strict scrutiny
(least restrictive means)
Intermediate scrutiny
(no greater than necessary)
No First Amendment review
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A city ordinance requires a taxicab operator's license to operate a taxicab in the city. The ordinance states that the sole criteria for the issuance of such a license are driving ability and knowledge of the city's geography. Applicants are tested by the city for these qualifications with detailed questionnaires, written and oral examinations, and practical behind-the-wheel demonstrations.

The ordinance does not limit the number of licenses that may be issued. It does, however, allow any citizen to file an objection to the issuance of a particular license, but only on the ground that an applicant does not possess the required qualifications. City licensing officials are also authorized by the ordinance to determine, in their discretion, whether to hold an evidentiary hearing on an objection before issuing a license.

A woman applies for a taxicab operator's license and is found to be fully qualified after completing the usual licensing process. Her name is then posted as a prospective licensee, subject only to the objection process. A man who is already a licensed taxicab driver files an objection to the issuance of such a license to the woman solely on the ground that the grant of a license to her would impair the value of his existing license. He demands a hearing before a license is issued to the woman so that he may have an opportunity to prove his claim. City licensing officials refuse to hold such a hearing, and they issue a license to the woman.

The man petitions for review of this action by city officials in an appropriate court, alleging that the Constitution requires city licensing officials to grant his request for a hearing before issuing a license to the woman.

For whom should the court rule in this case?

A. City officials, because the licensing ordinance does not give the man any property interest in being free of competition from additional licensees.

B. City officials, because the man had the benefit of the licensing ordinance and, therefore, may not now question actions taken under it.

C. The man, because the determination of whether to hold a hearing may not constitutionally be left to the discretion of the same officials whose action is being challenged.

D. The man, because the due process clause of the Fourteenth Amendment requires all persons whose property may be adversely affected by governmental action to be given an opportunity for a hearing before such action occurs.

Explanation:

Due process rights

Right	Applicability	Examples
Life	Government deprives person of life	• Execution
Liberty	Government significantly restrains person's physical freedom, exercise of fundamental rights, or freedom of choice	• Incarceration • Commitment to mental institution • Loss of parental rights
Property	Government deprives benefit from person legally entitled to receive it	• Suspension from public school • Termination of welfare benefits • Loss of public employment (not at will)

Procedural due process gives persons the right to **notice and a hearing** when the government **intentionally deprives** them of a life, liberty, or property interest. Persons have a **property interest** in any benefit that they are legally entitled to receive—eg, specific benefits associated with a **business or professional license**. But a unilateral expectation of, or desire for, a benefit does not amount to a property interest.

Here, the ordinance gives any citizen the right to object to the issuance of a license. And the man's license gives him the benefit of operating a taxicab in the city. But neither gives him a property interest in being free of competition from additional licensees (eg, the woman). Nor does his desire for that benefit create a protected interest. Therefore, the court should rule for the city officials and find that they were not required to grant a hearing.

(Choice B) The licensing ordinance gave the man the benefit of a taxicab license. But that does not preclude him from challenging actions taken under it. Instead, he can challenge an attempt to deprive him of *his* license (not the woman's) on due process grounds or file an objection to the issuance of a particular license (like any other citizen).

(Choice C) Had the man possessed a property interest, the determination of whether to hold a hearing *could have* been left to the discretion of the same officials whose action is being challenged. But those officials would have had to use the *Mathews v. Eldridge* balancing test when determining what process was due.

(Choice D) Due process often requires an opportunity for a hearing when a government action *deprives* a person of his/her property interest. However, a government action that merely has an *adverse effect* on such an interest is not sufficient to trigger due process safeguards.

Educational objective:

The Fourteenth Amendment due process clause requires notice and a hearing before the government deprives a person of a life, liberty, or property interest. A property interest includes benefits a person is legally entitled to receive—not merely expecting or desiring.

References

- Barry v. Barchi, 443 U.S. 55, 64 (1979) (holding that the plaintiff had a property interest in his state-issued horse trainer's license).

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A man intensely disliked his neighbors. One night, intending to frighten them, he spray-painted their house with racial epithets and threats to kill them. The man was arrested and prosecuted under a state law providing that "any person who threatens violence against another person with the intent to cause that person to fear for his or her life or safety may be imprisoned for up to five years." In defense, the man claimed that he did not intend to kill his neighbors, but only to scare them so that they would move away.

Can the man constitutionally be convicted under this law?

A. No, because he was only communicating his views and had not commenced any overt action against the neighbors.

B. Yes, because he was engaged in trespass when he painted the words on his neighbors' house.

C. Yes, because his communication was a threat by which he intended to intimidate his neighbors.

D. Yes, because his communication was racially motivated and thus violated the protections of the Thirteenth Amendment.

Explanation:

Unprotected speech

- **F**ighting words/threats
- **I**nciting crime
- **D**efamation
- **O**bscenity

Mnemonic: **FIDO**

The First Amendment **free speech clause** generally prohibits the government from regulating speech based on its content (ie, the message being communicated). But **certain categories** of speech fall **outside First Amendment protection** and can be freely regulated by the government. This includes fighting words and **threats of violence** that are **intended to intimidate** the recipient—regardless of whether the speaker acts on the threat or intends to carry it out **(Choice A)**. And since the man threatened to kill his neighbors so that they would be scared and move away, he can be constitutionally convicted under the state law.

(Choice B) The fact that a person engages in unlawful conduct (eg, trespassing) as an incident to speech has no bearing on whether the person can be constitutionally punished for the content of that speech.

(Choice D) The Thirteenth Amendment prohibits both government and private actors from engaging in slavery or involuntary servitude. But racially motivated threats (as seen here) do not violate this amendment.

Educational objective:

Threats of violence that are communicated with the intent to intimidate the recipient are not protected by the free speech clause—regardless of whether the speaker acts on the threat or intends to carry it out.

References

- Virginia v. Black, 538 U.S. 343, 359–60 (2003) (explaining that the First Amendment permits the government to ban true threats of violence).

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A city zoning ordinance contains provisions restricting places of "adult entertainment" to two specified city blocks within the commercial center of the city. These provisions define "adult entertainment" as "live or filmed nudity or sexual activity, real or simulated, of an indecent nature."

An entrepreneur proposes to operate an adult-entertainment establishment outside the two-block area zoned for such establishments but within the commercial center of the city. When his application for permission to do so is rejected solely because it is inconsistent with the adult-entertainment provisions of the zoning ordinance, he sues the appropriate city officials, seeking to enjoin them from enforcing those provisions against him. He asserts that these provisions violate the First Amendment as made applicable to the city by the Fourteenth Amendment.

In this case, is the court likely to hold that the adult-entertainment provisions of the zoning ordinance are constitutional?

A. No, because they prohibit in the commercial area of the city adult entertainment that is not "obscene" within the meaning of the First and Fourteenth Amendments.

B. No, because zoning ordinances that restrict freedom of speech may be justified only by a substantial interest in preserving the quality of a community's residential neighborhoods.

C. Yes, because adult entertainment of the kind described in these provisions is not protected by the free speech guarantee of the First and Fourteenth Amendments.

D. Yes, because they do not prohibit adult entertainment everywhere in the city, and the city has a substantial interest in keeping the major part of its commercial center free of uses it considers harmful to that area.

Explanation:

The First Amendment **free speech** protections—applicable to local governments through the Fourteenth Amendment—extend to adult entertainment (as seen here) **(Choice C)**. As a result, government regulation of such businesses is subject to constitutional review. The level of review depends on whether the restriction is either:

- **content-based** (targets what is being said) – **strict scrutiny** requires that the regulation be necessary and narrowly tailored (ie, the least restrictive means) to achieve a compelling government interest *or*
- **content-neutral** (targets time, place, or manner of speech) – **intermediate scrutiny** requires that the regulation be narrowly tailored (ie, no greater than necessary) to achieve an important or substantial government interest and leave open ample alternative avenues of communication.

In *Renton v. Playtime Theatres, Inc.*, the Supreme Court held that **zoning ordinances** for **adult-entertainment** businesses (as seen here) target the **secondary effects** that these businesses have on the surrounding community—not the acceptability of their content. As a result, they are considered **content-neutral** restrictions subject to intermediate scrutiny.

Here, the ordinance can pass intermediate scrutiny because it furthers the city's substantial interest in keeping its commercial center free of harmful uses. And it is no more restrictive than necessary to achieve that interest since it does not prohibit adult entertainment everywhere. Instead, it provides ample alternative avenues of communication by allowing these businesses in a two-block area within the city's commercial center. Therefore, the court is likely to hold that the ordinance is constitutional.

(Choice A) Although the ordinance restricts adult entertainment that is not obscene—and therefore is protected by the First and Fourteenth Amendments—that restriction is constitutional because it can survive intermediate scrutiny.

(Choice B) Zoning ordinances that impose content-neutral restrictions on speech may be justified by *any* substantial government interest—not just preserving residential areas.

Educational objective:

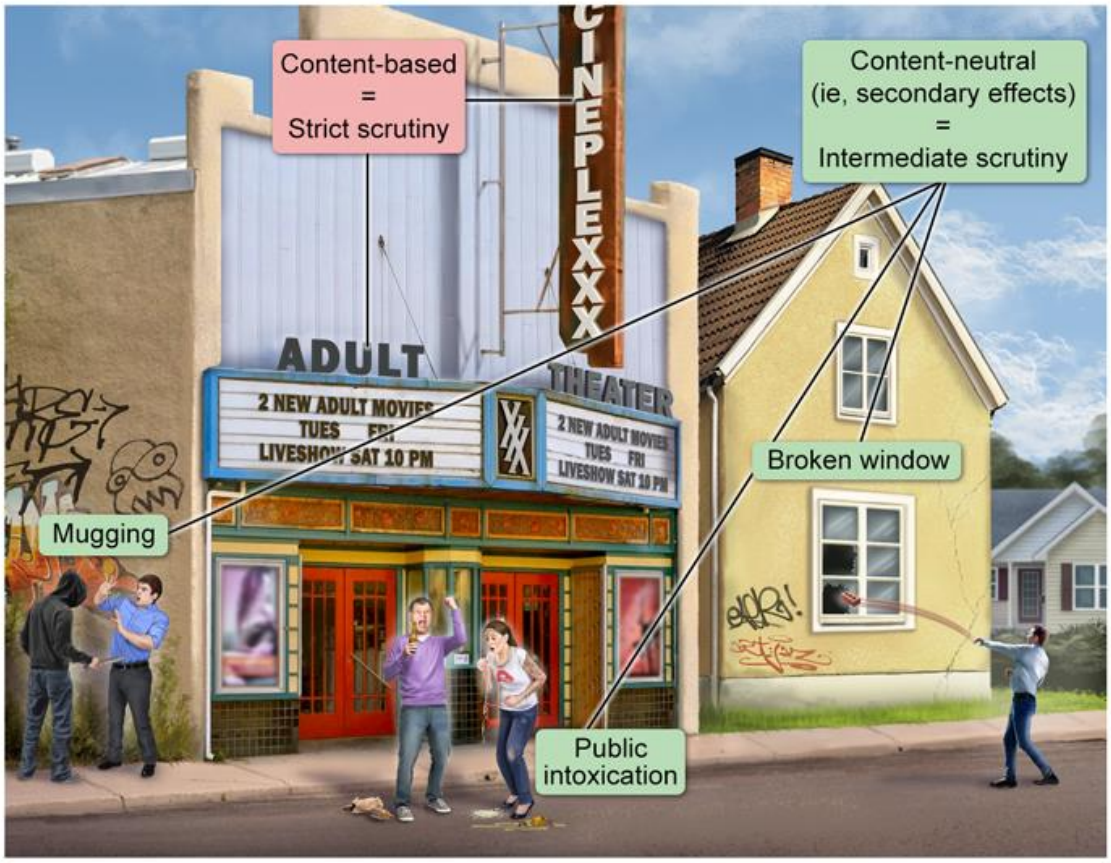
Zoning ordinances affecting adult-entertainment businesses are content-neutral speech restrictions that are subject to intermediate scrutiny—ie, the ordinance must be (1) narrowly tailored to serve a substantial government interest and (2) provide ample alternative avenues of communication.

References

- Renton v. Playtime Theatres, 475 U.S. 41, 48–50 (1986) (applying intermediate scrutiny to a zoning ordinance prohibiting adult theaters in certain parts of the city since it targets the secondary effects of adult theaters).

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Regulation of adult entertainment
(*Renton v. Playtime Theaters, Inc.*)



A state statute provides that assessments of real property for tax purposes must represent the "actual value" of the property. In one county of the state, the county tax commission, in making its assessments, has uniformly and consistently determined the "actual value" of real property solely by reference to the price at which the particular property was last sold. In recent years, the market values of real property in the county have been rising at the rate of 15% per year.

An owner is required to pay real estate taxes on her home in the county that are 200% to 300% higher than those paid by many other owners of similar homes in similar neighborhoods in that county, even though the current market values of their respective homes and the owner's home are nearly identical. The reason the taxes on the owner's home are higher than those imposed on the other similar homes in similar neighborhoods is that she bought her home much more recently than the other owners and, therefore, it is assessed at a much higher "actual value" than their homes. Persistent efforts by the owner to have her assessment reduced or the assessments of the others raised by the county tax commission have failed.

The owner has now filed suit against the county tax commission, claiming only that the comparative overvaluation of her property by the commission is unconstitutional.

What is the owner's strongest argument to support her claim?

A. The tax assessment constitutes a taking of private property for public use without just compensation.

B. The tax assessment constitutes an ex post facto law.

C. The tax assessment deprives the owner of a privilege or immunity of national citizenship.

D. The tax assessment deprives the owner of the equal protection of the laws.

Explanation:

Tax assessments that treat **similarly situated property differently** can be challenged under the **equal protection** clause. Since these assessments are generally subject to rational basis review, they must rationally relate to a legitimate state interest. Rough equality in implementing tax assessments will satisfy this standard of review. But **intentional and substantial inequality** will not.

Here, the owner's real estate taxes are 200% to 300% higher than those paid by owners of similar homes (substantial inequality). And the county tax commission has repeatedly denied the owner's requests to reduce her assessment or raise the others' assessments (intentional inequality). Therefore, the owner's strongest argument is that the tax assessment deprives her of the equal protection of the laws.

(Choice A) The Fifth Amendment prohibits the government from taking private property for public use without just compensation. A taking occurs when the government (1) actually/physically appropriates the property *or* (2) extinguishes all economic benefits/uses of the property. But since the commission did neither, no taking occurred.

(Choice B) The Constitution prohibits the enactment of ex post facto laws—ie, criminal legislation that has a retroactive and punitive effect. But the tax assessment is not an ex post facto law because it is civil in nature.

(Choice C) The Fourteenth Amendment bars states from interfering with the narrowly defined privileges or immunities of national citizenship—none of which are affected here.

Educational objective:

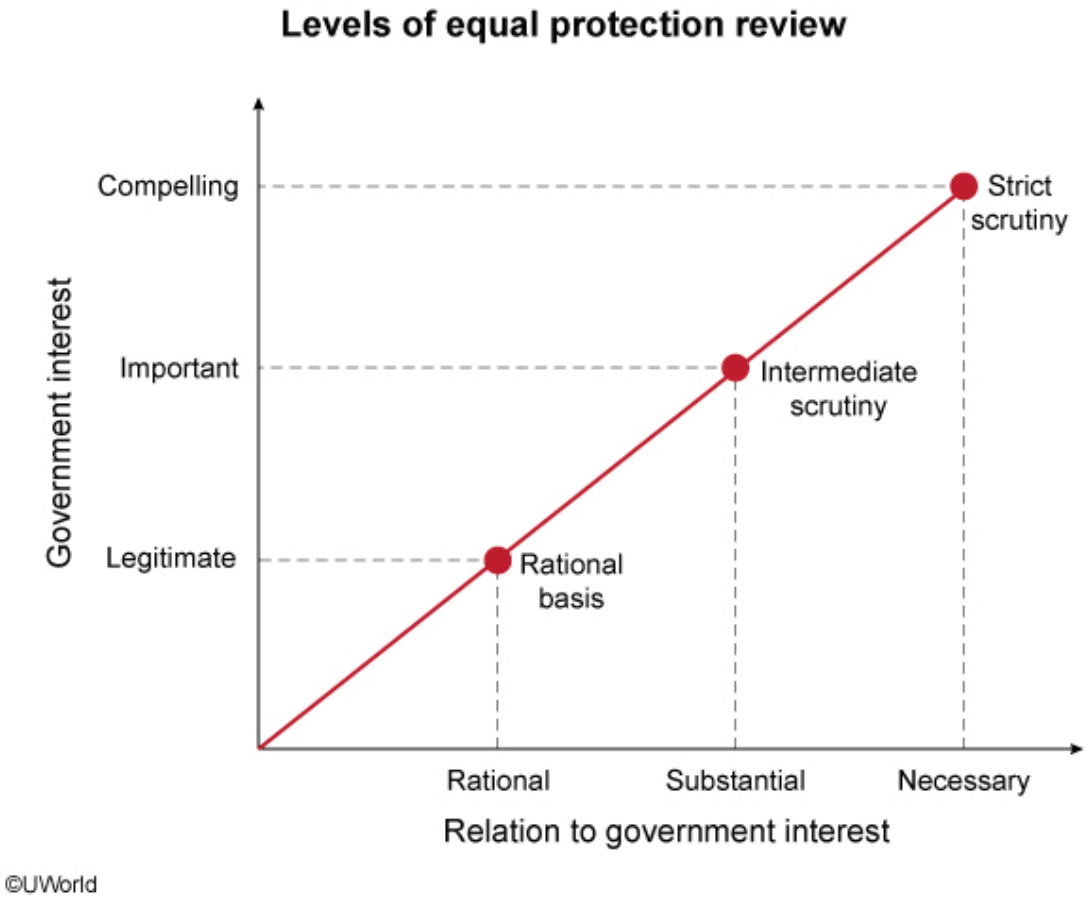
Equal protection challenges to unequal tax assessments are subject to rational basis review. Although some inequality in tax assessments is permissible, intentional and substantial inequality is unconstitutional.

References

- Allegheny Pittsburgh Coal Co. v. Comm'r of Webster Cty., 488 U.S. 336, 345–46 (1989) (holding that an equal protection violation occurred when a tax commission intentionally and substantially undervalued similar property).

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Levels of equal protection review
Compelling
Important
Legitimate
Government interest
Strict scrutiny
Intermediate scrutiny
Rational basis
Rational
Substantial
Necessary
Relation to government interest

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A state statute permits a person's name to appear on the general election ballot as a candidate for statewide public office if the person pays a $100 filing fee and provides proof from the State Elections Board that he or she was nominated in the immediately preceding primary election by one of the state's two major political parties. It also permits the name of an independent candidate or a candidate of a smaller party to appear on the general election ballot if that person pays a filing fee of $1,000 and submits petitions signed by at least 3% of the voters who actually cast ballots for the office of governor in the last state election. The state maintains that these filing requirements are necessary to limit the size of the election ballot, to eliminate frivolous candidacies, and to help finance the high cost of elections.

Historically, very few of the state's voters who are members of racial minority groups have been members of either of the two major political parties. Recently, a new political party has been formed by some of these voters.

Which of the following constitutional provisions would be most helpful to the new political party as a basis for attacking the constitutionality of this state statute?

A. The First Amendment.

B. The Thirteenth Amendment.

C. The Fourteenth Amendment.

D. The Fifteenth Amendment.

Explanation:

State-election restrictions

Restriction	Examples	Test
Ordinary (nondiscriminatory)	• Voter registration • Photo-ID requirement • Disallowing write-in voting	Rational basis: *challenger* must show restriction lacks rational relationship to legitimate state interest
Severe (discriminatory)	• Poll tax • Disallowing third-party candidacies • Property-ownership requirement	Strict scrutiny: *state* must show restriction is necessary to achieve compelling state interest

States have the power to regulate their own elections. But **electoral regulations** (as seen here) must comply with two constitutional provisions:

- First Amendment **freedom of association** – protecting the right to freely engage in group expression *and*
- Fourteenth Amendment **equal protection** – requiring that similarly situated people be treated equally.

If an electoral regulation is challenged under either constitutional provision, the standard for evaluating that regulation depends on whether the burden imposed is ordinary (triggering rational basis review) or severe (triggering strict scrutiny). And since the First Amendment is applied to the states *through* the Fourteenth Amendment, the Fourteenth Amendment would be most helpful in attacking this state statute **(Choice A)**.

(Choice B) The Thirteenth Amendment prohibits both government and private actors from engaging in slavery or involuntary servitude—neither of which is at issue here.

(Choice D) The Fifteenth Amendment prohibits both state and federal governments from denying any citizen the right to vote on account of race, color, or previous condition of servitude. Here, the statute places a higher burden on independent and small-party candidates seeking ballot access—but it does not deny anyone the right to vote.

Educational objective:

State electoral regulations must comply with the First Amendment freedom of association (applicable through the Fourteenth Amendment) and Fourteenth Amendment equal protection clauses. The standard for reviewing such regulations depends on whether the burden imposed is ordinary (rational basis) or severe (strict scrutiny).

References

- Burdick v. Takushi, 504 U.S. 428, 433–34 (1992) (explaining that the level of scrutiny of an election law depends on the extent to which it burdens First and Fourteenth Amendment rights).

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A private university is owned and operated by a religious organization. The university is accredited by the department of education of the state in which it is located. This accreditation certifies that the university meets prescribed educational standards. Because it is accredited, the university qualifies for state funding for certain of its operating expenses. Under this funding program, 25 percent of the university's total operating budget comes from state funds.

A professor at the university was a part-time columnist for the local newspaper. In one of her published columns, the professor argued that "religion has become a negative force in society." The university subsequently discharged the professor, giving as its sole reason for the dismissal her authorship and publication of this column.

The professor sued the university, claiming only that her discharge violated her constitutional right to freedom of speech. The university moved to dismiss the professor's lawsuit on the ground that the U.S. Constitution does not provide the professor with a cause of action in this case.

Should the court grant the university's motion to dismiss?

A. No, because the accreditation and partial funding of the university by the state are sufficient to justify the conclusion that the state was an active participant in the discharge of the professor.

B. No, because the U.S. Constitution provides a cause of action against any state-accredited institution that restricts freedom of speech as a condition of employment.

C. Yes, because the action of the university in discharging the professor is not attributable to the state for purposes of the Fourteenth Amendment.

D. Yes, because the First and Fourteenth Amendments protect the right of the university to employ only individuals who share and communicate its views.

Explanation:

State-action doctrine

Traditional government function	• Private actor performs traditional & exclusive government function (eg, running elections)
Significant government involvement	• Government & private actor have *mutually beneficial* relationship (eg, joint activity or venture) • Government creates *nexus* by affirmatively facilitating or authorizing private action (eg, police officer acting under color of law) • Government is *pervasively intertwined* in private entity's management or control

Constitutional protections (excluding the Thirteenth Amendment) only apply to government conduct. But under the **state-action doctrine**, a **private actor** is **considered a government actor** (and bound by the Constitution) when:

- the private actor performs a **traditional and exclusive government function** *or*
- the **government is significantly involved** in the private actor's activities (more than funding or regulating).

Therefore, the professor can only sue the *private* university for violating her constitutional right to free speech if the state-action doctrine applies.

The university does not perform a traditional and exclusive government function since education has long been undertaken by private entities. And the state's accreditation and funding of the university do not involve the state in the university's *employment* decisions. But even if they did, state accreditation, funding, or regulation—no matter how substantial—does not make private conduct state action **(Choice A)**. And since the university's discharge of the professor is not attributable to the state for Fourteenth Amendment purposes, her lawsuit should be dismissed.

(Choice B) The Constitution does *not* provide a cause of action against any state-accredited institution that restricts freedom of speech as a condition of employment. Instead, such constitutional claims can only be asserted against private institutions if the state-action doctrine applies.

(Choice D) The First and Fourteenth Amendments generally bar a government actor from dismissing its employees for not sharing and communicating its views. But the professor could only sue the private university on these constitutional grounds if she could first establish that the university is a state actor.

Educational objective:

Under the state-action doctrine, private actors are treated as government actors when they perform a traditional government function or the government is significantly involved in their activities. But government accreditation, funding, or regulation—no matter how substantial—does not trigger this doctrine.

References

- Rendell-Baker v. Kohn, 457 U.S. 830, 841–43 (1982) (explaining that the state-action doctrine did not apply to a private school's conduct despite substantial government funding and regulations).

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In order to combat terrorism, Congress enacted a statute authorizing the president to construct surveillance facilities on privately owned property if the president determines that the construction of such facilities is "necessary to safeguard the security of the United States." The statute provides no compensation for the owner of the land on which such facilities are constructed and provides that the surveillance facilities are to be owned and operated by the United States government.

Pursuant to this statute, the president has determined that the construction of a surveillance facility on a very small, unused portion of an owner's large tract of land is necessary to safeguard the security of the United States. The construction and operation of the facility will not affect any of the uses that the owner is currently making of the entire tract of land.

The owner has filed suit to challenge the constitutionality of the construction of a surveillance facility on the portion of land at issue without compensation.

How should the court rule?

A. The construction and operation of the facility would not interfere with any use the owner is currently making of the entire tract of land, and therefore the owner would not be entitled to any compensation.

B. The construction of the facility would be a taking of the owner's property for which the owner must be compensated.

C. The construction of the facility would be valid without any compensation, because it has been determined to be necessary to protect a compelling government interest in national security.

D. The construction of the facility would single out the owner for adverse treatment in violation of the equal protection component of the Fifth Amendment.

Explanation:

Fifth Amendment takings

Type	Attributes
Physical	• Possession or permanent physical invasion of property
Regulatory	• Deprivation of all economically beneficial uses • Restricts use under totality of circumstances: – character of government action – economic impact – reasonable investment-back expectations
Exaction	• Condition to obtain building/development permit
Destruction	• Destruction of property or property interest (eg, easements, liens)

A **physical taking** occurs when the government **permanently and physically occupies** private property—regardless of the size of the property or how the owner has used it. And the Fifth Amendment **takings clause** bars the government from taking private property unless (1) the taking is for a **public use** and (2) the owner receives **just compensation** (ie, the property's fair market value).

Here, the federal government seeks to construct and operate a surveillance facility on the owner's land (permanent and physical occupation) to combat terrorism (public use). Although the facility will only occupy a small, unused portion of the owner's land and will not interfere with his use of the rest of the land, the government's action constitutes a taking **(Choice A)**. Therefore, the court should rule that the owner is entitled to just compensation.

(Choice C) Almost all takings require just compensation—even when the taking is necessary to protect a compelling government interest (eg, national security). The only minor exception to this rule is an *imminent* public emergency. But since there is no indication that a terror attack is imminent, this exception does not apply.

(Choice D) This government action may trigger the equal protection component of the Fifth Amendment, which applies when the federal government treats similarly situated persons differently. But this component is not violated since the government action is rationally related to the government's legitimate interest in national security.

Educational objective:

The Fifth Amendment takings clause bars the government from taking—eg, permanently and physically occupying—private property for public use without just compensation, regardless of the size or use of the property.

References

- Loretto v. Teleprompter Manhattan Catv Corp., 458 U.S. 419, 434 (1982) (holding that a permanent, physical invasion of private property by the government always constitutes a taking).
- 26 Am. Jur. 2d Eminent Domain § 10 (2019) (explaining permanent and physical occupation).

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